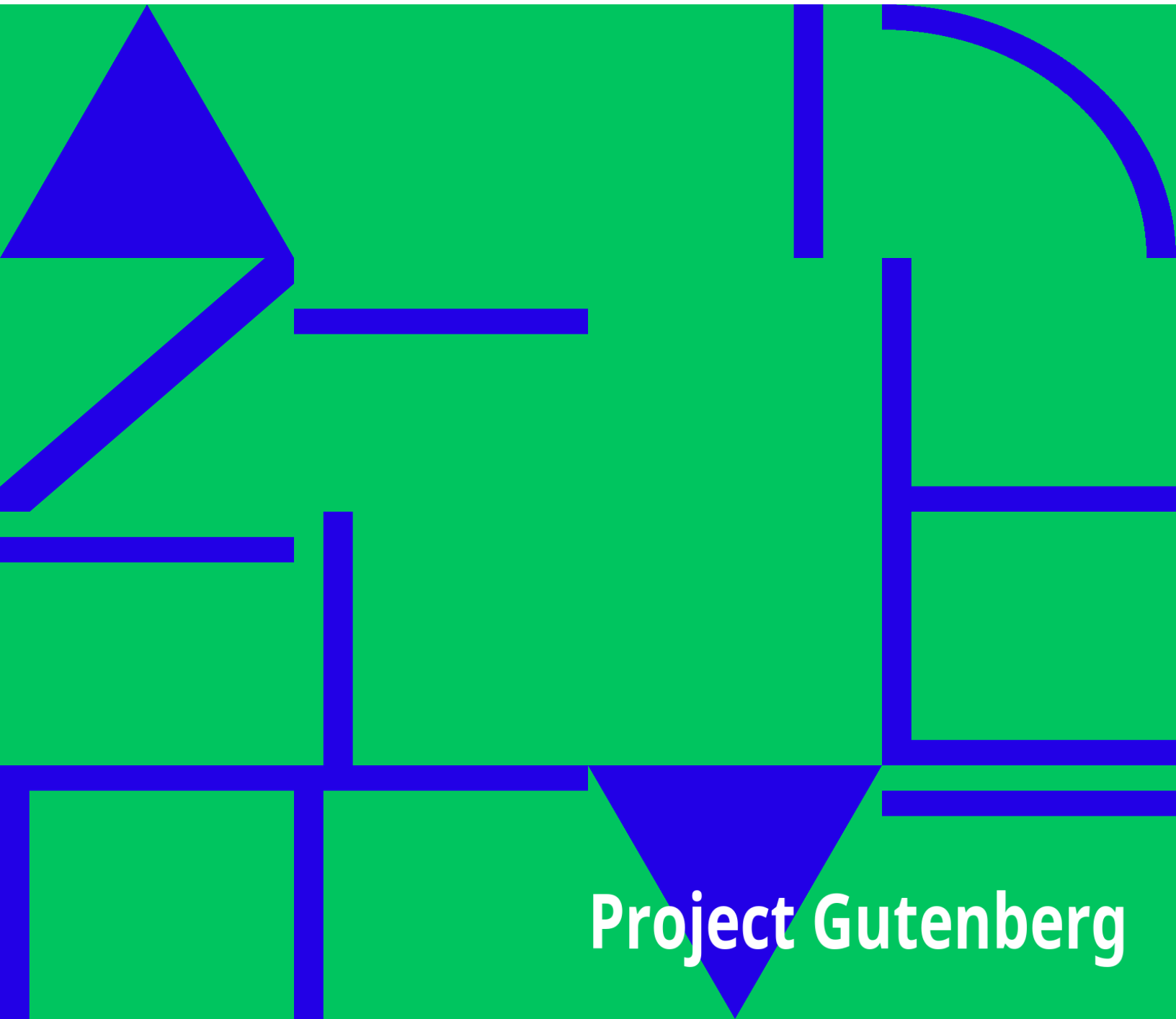


A Hind Let Loose

Alexander Shields



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Title: A Hind Let Loose

Author: Alexander Shields

Release date: August 20, 2011 [eBook #37137]

Most recently updated: October 13, 2011

Language: English

Other information and formats: www.gutenberg.org/ebooks/37137

Credits: E-text prepared by Jordan, Julia Neufeld, and the Online
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Character set encoding: ISO-646-US (US-ASCII)

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A HIND LET LOOSE;

OR,

AN HISTORICAL REPRESENTATION

OF THE

TESTIMONIES

OF THE

CHURCH OF SCOTLAND,

FOR THE

INTEREST OF CHRIST.

WITH THE TRUE STATE THEREOF IN ALL ITS PERIODS.

TOGETHER WITH A Vindication of the present TESTIMONY against the Popish, Prelatical, and malignant Enemies of that Church, as it is now stated, for the Prerogatives of CHRIST, Privileges of the Church, and Liberties of Mankind; and sealed by the sufferings of a reproached Remnant of Presbyterians there, witnessing against the Corruptions of the Time:

WHEREIN Several Controversies of greatest Consequence are enquired into, and in some measure cleared; concerning hearing of the Curates, owning of the present Tyranny, taking of ensnaring Oaths and Bonds, frequenting of Field-meetings, defensive Resistance of tyrannical Violence, with several other subordinate Questions useful for these Times.

* * * * *

BY MR. ALEXANDER SHIELS, LATE MINISTER OF THE GOSPEL IN ST. ANDREW'S.

*Psal. xciv. 20. Shall the throne of iniquity have fellowship with thee,
which frameth mischief by a law?*

*Rev. xii. 11. And they overcame him by the blood of the Lamb, and by the
word of their testimony; and they loved not their lives unto the death.*

Glasgow

PRINTED BY WILLIAM PATON,
FOR JOHN KIRK, CALTON, THE PUBLISHER.
1797.

PREFACE.

CHRISTIAN READER,

Presuming it is thy desire to answer the holy and honourable designation I accost thee with, I shall take the confidence to assure thee, it is my design to answer, in some measure, the expectation which the title of this treatise would offer, in the hope that, wherein I come short (as I indeed confess not only my jealous fears, but my sensible conviction of my insufficiency for such a great undertaking) thy Christian tenderness will impute it to my weakness, and not to any want of worth in the cause I manage, which is truly worthy, weighty, noble and honourable, in the esteem of all the lovers of Christ, that have zeal for his honour in exercise; and therefore as it gives me all the encouragement I have, in dependence on his furniture whose cause it is, to make such an essay, so it animates my ambition, albeit I cannot manage it with any proportion to its merit, yet to move the Christian reader to make enquiry about it, and then sure I am he will find it is truth I plead for, though my plea be weak. All I shall further say by way of preface, is to declare the reason of the title, and the design of the work.

Though books use not to be required to render a reason of their names, which often are arbitrarily imposed more for the author's fancy and the time's fashion, than for the reader's instruction: yet, seeing the time's injuries do oblige the author to conceal his name, the title will not obscurely notify it to some for whose satisfaction this is mainly intended, and signify

also the scope of the subject; which aims at giving goodly words, not sugared with parasitic sweetness, nor painted with affected pedantry, but fairly brought forth in an unhampered freedom, for the beauty of the blessing of human and Christian liberty, in its due and true boundaries. This was the subject of a discourse, as some may remember, on that text whence this title is taken, Gen. xlix. 21. "Naphtali is a Hind let loose." In prosecuting of which, the speaker, with several others, falling at the same time into the hands of the hunters, (to learn the worth of that interrupted subject from the experience of the want of it) an occasion was given, and interpreted by the author to be a call to study more the preciousness of that privilege predicated of Naphtali, which is the right and property of the wrestling tribe of Israel, the persecuted witnesses of Christ now every where preyed upon. And now, providence having opened a door for "delivering himself as a roe from the hand of the hunter," he thought it his duty, and as necessary a piece of service as he could do to the generation, to bring to light his lucubrations thereupon; with an endeavour to discover to all that are free born, and are not contented slaves, mancipated to a stupid subjection to tyrants absoluteness, that this character of Naphtali, "satisfied with favour, and full with the blessing of the Lord," that he is a "hind let loose" from the yoke of tyrannical slavery, is far preferable, in the account of all that understand to be Christians or men, to that infamous stigma of Issachar (the sin, shame, and misery of this age) to be "a strong ass, couching under two burdens; and he saw that rest was good, and the land that it was pleasant, and bowed his shoulder to bear, and became a servant unto tribute." But to all that are not altogether strangers in our Israel, it will appear, that this title is not inaptly applied to the subject and design of this treatise. The party whose case and cause, and contendings are here treated of, being known to have the same situation of residence in Scotland that Naphtali had in Israel, viz. the west and the south (Deut. xxxiii. 23.) will be found, among all our tribes, most appositely to bear the signature of

Naphtali, who, in their wrestlings for the interest of Christ and the liberties of his Israel, have mostly jeopardded their lives in the high places of the fields; and chiefly to deserve his elogy, being a "hind", (called wild by nickname in the scorn of them that are at ease, but) truly weak in their present wilderness condition, to wrestle against the force and fraud of their cruel and cunning hunters, who cease not (when they have now got the rest of the roes and hinds of the field made fast asleep, under the bondage of the lions dens and mountains of leopards, by a pretence of a falsely so called liberty of conscience) to seek and pursue the chace of them for a prey; yet really they are "let loose," and not only suffered to run loose, as a prey to the hunters, by the unwatchfulness of their keepers, but made to escape loose, by the mercy of the Mighty One of Jacob, from the nets of the hunters and snares of the fowlers, and from the yoke of the bondage of these beasts of prey, to whose authority they will not own a willing subjection; and being such "hinds," so "let loose," they make it their work to give goodly words, for the worth and honour, and royalties of their princely master, and for the precious liberties wherewith he hath endoted and entrusted his spouse and children, and to keep the goodly words of his patience, until he return "as a roe or a young hart upon the mountains of Bether." This being the party who are represented as the wild folk of Scotland, the design of this treatise is to hold forth the history of their manifold chaces, the craft, keenness, and cruelty of their hunters, and the goodliness of the words of their testimony, which, by reason of the likeness of the testimony of former periods with the present, and that the latter may be vindicated by the former, is resumed from the beginning of the Church of Scotland's wrestlings against the enemies of Christ, and deduced through all the most signal steps of this long propagated and hereditary war. And, lest my words should not be goodly enough, nor my notions grateful to the critics of this age, who cast every thing as new and nice, which is someway singular, and not suited to their sentiments; that it may appear the cause

here cleared and vindicated is not of yesterday, but older than their grandfathers who oppose it, I dare avouch, without vanity, there is nothing here but what is confirmed by authors of greatest note and repute in our church, both ancient and modern, namely, Buchanan, Knox, Calderwood, Acts of General Assemblies, Causes of Wrath, Lex Rex, Apologetical Relation, Naphtali, Jus Populi, History of the Indulgence, Banders Disbanded, Rectius Instruendum, and some other authors much respected, whose authority, more always repelled by rage than ever yet refitted by reason; though I value more than all the vain oblatrations of the opposers of this testimony, and think it sufficient to confute all imputations of its novelty, and to counterbalance the weight that may be laid on the contradictions of the greatest that treat on this subject, yet I do not lay so much stress on the reason of their authority as on the authority of their reason, which is here represented with that candour and care, that, lest any should cavil that they are wrested or wronged when made to speak so patly to the present controversies, I have chosen rather to transcribe their words, than to borrow their matter dressed up in my own, except where the prolixity and multiplicity of their arguments, as clearly demonstrating that which I adduce them for, as that for which they were primarily intended, did impose the necessity of abridging them, which yet is mostly in their own words, though reduced into a sollogistical form. But this obloquy of novelty being anticipated, when I reflect on the helps I have collected from so many hands, I am rather afraid the truths here delivered be contemned as obsolete and antiquate, than cast at for new speculations. However, I am content; yea it is my ambition, that nothing here be looked upon as mine, but that it may appear this is an old plea, and that the party here pleaded for, who are stigmatized with many singularities, are a people who ask the old paths, and the good way, that they may walk therein; and though their paths be not now much paved, by the frequency of passengers, and multitude of professors walking therein, and albeit it must indeed be confessed the word

of their testimony is someway singular, that the same things were never the word of Christ's patience, stated as heads of suffering before, yet they are not untrodden paths, but the same way of truth which hath been maintained by the witnesses of Christ in all the periods of our church, and asserted by the greatest confessors, though never before sealed by martyrs. As for the arguments I bring to clear and confirm them, whether they be accounted mine, or borrowed from others, I am very indifferent, if they prove the point they are brought for, which I hope they will be found to do; but of this I am confident, there is nothing here can be condemned until some one or more of these grave authors be confuted; and, when that is done, (which will be never, or against the *thirtieth of February*), there is something besides here, which will challenge consideration.

The design then of this work is of great importance, even no less than to essay the discussing the difficulties of all our conflicts with open enemies, about the present state of the testimony; the vindicating of all the heads of sufferings sustained thereupon these twenty-seven years past; the proposing of the right state of the testimony for the interest of Christ, not only of this, but of all former periods, with an account of the propagation and prosecution of the witnesses, wrestlings, and sufferings of it from time to time, to the end it may appear, not only how great the sufferings have been, since this fatal catastrophe and overturning of the covenanted reformation, and unhappy restoration of tyranny and prelacy; but that the grounds upon which they have been stated, are not niceties and novelties, (as they are reproached and reprobated by many), but worthy and weighty truths of great value and validity, and of near affinity unto, and conformity with the continued series and succession of the testimonies in all former periods. So that in this little treatise must be contained a compendious history of the Church of Scotland, her testimony in all ages, a vindication of the present state of it; yea, in effect, a short epitome of the substance of those famous forecited authors, as far as we need to consult them, concerning the

controversies of the present time with adversaries; which is much, and perhaps too much, to be undertaken in so small a volume. But considering that many who are concerned in this cause, yea the most part who concern themselves about, are such who have neither access, nor time, nor capacity to revolve the voluminous labours of these learned men for light in this case, I have done best to bring them into one body of portable bulk with as great brevity as could consist well with any my measure of perspicuity, not meddling with any thing but what I thought might some way conduce to clear some part of the present testimony.

Every undertaking of this nature cannot but be liable to several disadvantages that are unavoidable: this hath many discouraging and difficult. One is, that it shall be exposed to the common fate of such representations, to be stigmatized as a seditious libel, and so may be sent to the flames to be confuted; and, to inflame the fury of these fire brands, already hell-hot, into the utmost extremity of rage against the author, that ever cruelty itself at its fullest freedom did exert against truth and reason arraigned, and cast for sedition and treason: the only sanctuary in such a case, is, in prospect of this, to have the greater care that nothing be spoken, but what the speaker may dare to affirm in the face of cruelty itself. A second common disadvantage is obvious from the consideration of the humour of the age; wherein fancy hath greater force than faith, and nothing is pleasing but what is parasitical, or attempered to the palate of the greatest, not of the best; and naked truth, without the fairdings of flattery, or paintings of that pakiness which is commonly applauded as prudence now a days, is either boggled at, or exposed to scorn and contempt; and reason, if roundly written, except it meet with an honest heart, is commonly read with a stammering mouth, which puts a T before it, and then it is stumbled at as Treason. This essay does expect no entertainment from any, but such who resolve to harbour truth, be the hazard what will, even when the world raises the *Hue* and *Cry* after it, and from such who are really groaning,

either by suffering or sympathy, under the same grievances here represented. There is a third, which makes it not a little difficult, the quality, quantity, and intricacy of the matter, here to be confined to such a compend. All which, together considered, do infer a fourth difficulty, that hardly can it get a pass through the press; which is blocked up against all such books that may offer a manifestation of the innocency of that people, and the injustice and inhumanity of their enemies; which is their only hope of preventing the world's knowledge and condemnation of their actings. Yea, there is a fifth, that wants not its own difficulty; that though the Press were patent, yet an empty purse, from a poor impoverished people, will as readily preclude all access to it, as if it were locked up by law; but both together make it hard. But there is a sixth disadvantage yet more discouraging, that the man as well as the money, is wanting to manage the business: and this needs no other proof; than the necessity of my poor pen to undertake it, instead of a better. It must needs be very low with that people, that stand in need of such a pitiful patrociny as mine is. Our persecuted brethren, elsewhere, have this advantage of us, that they have champions to espouse their quarrel, which we have not; but only such, who as they are reputed in the world, so, in their own sense, own themselves to be very unaccomplished for such work; and under this invincible disadvantage also, that, being forced to a wandering and unsettled life, they have no conveniency, nor can be accommodated with time, nor helps to perform it; and so circumstantiated, that either it must be done at this time, and in this manner, or not at all. In the seventh place, we are at a greater loss than any suffering people; in that, among all other bitter ingredients, we have this gall also in our cup, that they that suffer most among us, have not the comfort and benefit of the sympathy of others, that sufferers use to have from good people. The reason of this makes an eighth discouragement, besides what is said above; that not only is the case and cause of that poor persecuted and wasted witnessing remnant, obscure in itself, and not known in the world, nay, not so much as

in the very neighbouring churches of England and Ireland, but also more obscured by the malice of enemies, traducing, calumniating, and reproaching that righteous remnant whom they intend to ruin; not indeed as hereticks (which is the case of other suffering churches, wherein they have the advantage of us also; that though the name be more odious, yet it makes the notion of their cause, and the nature of their enemies, notour, and is more effectual to conciliate sympathy from all that know that Protestants are persecuted by Papists under the notion of hereticks: but we are at a loss in this, that our persecutors, at least the most part of the executioners of the persecution, will not as yet avouch that Protestantism is heresy though we want not this nick name likewise from the chief of them that are professed Papists) but as Scismaticks, Seditious, Rebels, Traitors, Murderers, Holding principles inconsistent with Government, (to wit, their tyranny), and the peace of human society, (to wit, their association against religion and liberty), and therefore to be exterminated out of the world. And this imposture, covering all their mischiefs, hath prevailed so far with the blinded world, that under this brand the consideration of their case and cause is buried, without farther inquiry. This were yet more tolerable from open enemies, if there were not another more pressing discouragement, in the ninth place, peculiar to them in Scotland; that having to do with treacherous as well as truculent enemies, as they have been much destroyed by open force, so much more by fraud; while, by ensnaring favours, some have been flattered from the testimony, others disdaining and suspecting, as well as deprived of, and secluded from, these favours, have stuck to it; hence defection brought on division, and division confusion, which hath reduced the reformation to a ruinous heap. In the next place, as the consequent of the former, while the purer remnant have been resolutely prosecuting the testimony, and not only keeping themselves free of, and standing at the farthest distance from, all degrees of compliance, but also witnessing against their brethren involved in them and thinking it their duty

to discountenance them in these corruptions and backslidings; they have been therefore reproached and misrepresented very industriously, as "Ignorant, Imprudent, Transported with blind zeal, Extravagant, wild Separatists, Espousing new and nice notions, rejecters of the ministry, imposers on the ministry, deniers of all government, usurpers of an imaginary government of their own, that died as fools, and as guilty of their own blood." By which odious and and invidious obloquies, they have easily prevailed with many, both at home and abroad, that are more credulous than considerate, to believe these things of them: hence, with prejudicate people, a contrary representation will find difficult acceptance. However, this moreover is another great disadvantage, and renders an essay to vindicate their sufferings very uneasy; that they are thrust at, and tossed on both hands, by enemies and professed friends: and by enemies that are not Papists, but professed Protestants, owning the same fundamentals in opinion, though in practice not holding the same head: and by friends, that not only are Protestants, but Presbyterians, under the bonds of the same solemn and sacred covenants, the obligation whereof they still own; and not only so, but such, whose piety and godliness cannot be doubted. This is a gravamen grievous to bear, and greatly aggravates the difficulty. Finally, the greatest of all is, that not only their cause is rendered odious, but must be confessed truly stated as heads of suffering. For now it is the dragon's chief stratagem with us, like to be the most subtle, ensnaring, and successful of any, that ever he set on work since ever he began this war with the Lamb, (which yet I hope will prove as fatal to his interest as the former), to bring the sufferings of Christ's witnesses to such a state, that may seem to spectators little or nothing relative to religion, that so he may destroy both them and their testimony unlamented, and by that trick divert others from concerting that same necessary witness in the season thereof. And, for this end, he will change both matter and manner, in managing the war. He will not now persecute for the old controverted heads of Popery, with fire and

faggot, as formerly, for refusing to worship our Lady, or the "blessed Sacrament of the Altar." These weapons and engines are so worn out of use, that they will not work now as they did before. And that old bawd of Babylon is become so ugly, and out of date; that he does not believe her beauty can be so bewitching, except that she put on a new busk: but her eldest daughter, the prelatical church, of the same complexion with herself, except that she is coloured with Protestant paint, is fitter for his service to allure our land into fornication; and who will not be enticed, must be forced to communion with her, by finings, confinings, exactions, extortions, and impositions of oaths, &c. Religion must be little concerned here; for there is preaching enough, and of protestant doctrine too, and without the monkey-tricks, and montebank shows, and fopperies of English popish ceremonies and liturgical services: What would they be at! Is it not better to yield to this, than to fall into the hand of the Scottish-Spanish inquisition, that will rack the purse, the body, and conscience and all? This is one complex head of suffering, and thought a very small one by many. But now, finding this would not do his business yet, it looked too like religion still: he hath therefore invented a new machine; he will not now persecute, nor force the conscience at all (so good-natured is the devil and his lieutenant grown in their old age) for matters of mere religion. Nay, (if we may believe him, who, when he speaketh a lie, speaketh it of his own) he hath not done it this long time, but only, in all the violent courses exercised against these sufferers, he hath been magistratically chastising the disobedience and rebellion of a few turbulent traitors, who would not own the government. And thus, under the notion of rebellion and disowning authority, he hath had access and success to destroy almost an innumerable number of honest and innocent, faithful and fruitful lovers of Christ, who, though indeed they have had their sufferings stated upon those points, yet I doubt not shall be found among the followers of the Lamb, and confessors and martyrs of Christ, who have overcome by the blood of the Lamb, and the word of their

testimony, not loving their lives unto the death, whose blood is crying for vengeance against the shedders thereof: and he will make inquisition for it, when he comes to overturn, overturn, and take his own right, for which they have been contending. Nevertheless this is a prejudice too prevalent with many, to misregard the case and cause of these contenders, or any thing that can be said to represent them favourably. And all these disadvantages, difficulties, and discouragements, together considered, would soon cool my courage, and, at first blush, make me leave off before I begin, were I not persuaded, that it is the cause of Christ these reproached people are still suffering for: and that their great sufferings and reproaches are both alike unjust: from both which the Lord will vindicate them, and bring forth their righteousness as the light, and their judgment as the noon-day, in his own time. In confidence of which, depending on his conduct, I shall undertake, as briefly as possible for me, to represent their case, and clear the cause, so far at least as concerns their contest with their persecuting enemies, with whom I only deal at present: it not being my purpose to descend particularly in their necessitated contentings with complying brethren: partly because they would make the volume to excresce unto too great a bulk, and because they are to be seen elsewhere: yet, in effect: these also are not only here narratively deduced, but whatever is odious in them is vindicated, and what is difficult in some measure enodated.

But it may be expected and desiderated, that I should give a distinct deduction of all the steps of this woful defection, against which a great part of the testimony hath been stated; but I would have the reader advertised, I touch only that part of the testimony which hath been sealed by severe sufferings from enemies. It were a task transcending my capacity, and a theme wherein I have no pleasure, besides that it is inconsistent with my leisure, to enlarge upon such a sad and shameful subject: though the world indeed is at a loss, that they that would do it, cannot, and they that would and should do it, will not; and it is a greater loss, not only to Scotland, but

also to the whole Christian world, that what hath been done in this kind already cannot see the light, or rather that the church of Christ is deprived of its light, which through the injury of the times, and the disingenuous prudence of some, who suffer themselves to be imposed upon by the patrons of defection, is embezzled and suppressed. I mean that excellent and faithful history of defection, the posthumous work of the famous Mr. M'Ward, whose praise is in the churches; which if they that have it in keeping would do themselves the honour, and the world the happiness, of publishing it, there would be no more need to discover from whence, to what, and how, that church hath fallen and degenerate; nor so great difficulty in that indisputable and indispensable duty that such a day calls for, in searching and trying our ways, to the end we may turn again to the Lord; nor any necessity for my poor essay to invite and incite the people of the Lord to take cognizance and compassion on poor perishing Scotland. I wish that they who have it, may consult more their own duty and credit, and what they owe to the memory of the dead, the church's edification, the day's testimony, and the honour of Christ, than to continue robbing the world of such a treasure; which I doubt not to call treason against Christ, and sacrilege against the church, and stick not to tell them, if they will not publish it, the world must know there was such a thing done. But it not being my design now, to detect or reflect upon all the defections of that declining, and by declensions divided, and by divisions almost (only not) destroyed church; I shall meddle with them no further, than what is necessary to clear the cause, referring the knowledge and account of them, either to the notoriety of the grossest of them, or to the more particular enarration of them, to be found in papers emitted and published by the contenders against them: of which one is of this same year's edition, entitled, 'The Informatory Vindication of a 'poor, wasted, misrepresented Remnant,' &c. In which may be evident, that notwithstanding of all this darkness and distress, defection and division, under which the church of

Scotland hath been so long, and is still labouring, there is yet a poor wasted, wounded, rent, and almost ruined, but still wrestling and witnessing remnant of professors and confessors of Christ there, who though they have not only had their souls exceedingly filled with the scorning of those that are at ease, and with the contempt of the proud; but their bodies also killed all day long, and counted as sheep for the slaughter, have yet through grace endeavoured to overcome by the blood of the Lamb, and the word of their testimony, and have not loved their lives dear unto the death, and have continued to this day contending both against professed enemies, and also declining friends, sustaining from both the utmost of rage and reproach. And since that little book gives an account, what their contendings have been against their backdrawing brethren on the right and left hand, I shall spare labour to offer a discussion of them, only endeavour to make it not difficult to decide and determine, on whose side truth lies, by what is here hinted.

I shall conclude with advertising the reader of one thing further, that, as this reproached people, for testimony I am pleading, is now the only party that is persecuted in Scotland, (some few excepted, who are exempted from the pretended favour of the current indemnities) and their persecution still continues, notwithstanding of the impudent, as well as insnaring declarations of universal liberty to all dissenters, which they look upon as their honour and happiness, to be thought incapable of tyrannical and antichristian favours; so their past and present oppressions and sufferings are only here in general aggregated, described as to their kinds, and vindicated as to their causes: the particular deduction of their number, weight, and measure, of their names that have been martyred and murdered, both by formality of law, and without all formality of law, by sea and land, city and country, on scaffolds, and in the fields; of the manner of their sufferings; and of the form of their trials and testimonies, being intended shortly (if the Lord will) to be emitted and published in a book by itself;

which will discover to the world as rare instances of the injustice, illegality, and inhumanity of the Scottish inquisition, and of the innocence, zeal, ingenuity, and patience of the witnesses of Christ, as readily can be instanced in these latter ages. Only here is a taste till more come; which if the Lord bless for its designed end, the glory of God, the vindication of truth, the information and satisfaction of all serious sympathisers with Zion's sorrows, and the conviction or confutation of reproachers, so far, at least, as to make them surcease from their invidious charge of things whereof the innocence is here vindicated, I have obtained all my design, and shall desire to give the Lord the praise.

It will not be unprofitable for the Reader to cast his eye upon these sentences of great Authors, which relate to some heads of the following discourse.

(Translated from their Originals.)

Erasmus. As a woodcock, otherwise loud, being taken, becomes dumb; so slavery renders some men speechless, who, if they were free, would tell their minds freely.

Nazianzen. Discord is better for the advantage of piety, than dissembled concord.

Bernard. But if scandal arise for the truth, it is better to suffer scandal than relinquish the truth.

Bracton. He is a king who rightly governs, a tyrant who oppresses his people.

Cicero. He loses all right to government, who, by that government, overturns the common-weal.

Aristotle. He who obeys the law, obeys both God and the law; who obeys the king, a man and a beast.

Sueton. They are not bound to be loyal to a wicked king, under the pains of perjury.

Ambrose. He that does not keep off injury from his neighbour, if he can do it, is as much in the fault as he who does it.

Chamier. But all subjects have right of resisting tyrants, who by open force acquire dominion.

Barclay. Against contenders for Monarchy. All antiquity agrees, that tyrants can, most justly, be attacked and slain as public enemies, not only by the public, but also by individual persons.

A

HIND LET LOOSE;

OR,

AN HISTORICAL REPRESENTATION

OF THE

TESTIMONIES

OF THE

CHURCH OF SCOTLAND,

FOR THE

INTEREST OF CHRIST.

WITH THE TRUE STATE THEREOF IN ALL ITS PERIODS.

WITH

A VINDICATION OF THE PRESENT TESTIMONY.

The church of Christ, in the impression of all that have the least spark of the day's spirit is now brought to such a doleful and dreadful case and crisis, that if it be not reckoned the killing of the witnesses, yet all that have or desire the knowledge of the times, will judge it no impeachment to the

prophecy to say, it is either very like, or near unto it. When now the devil is come down in great wrath, and knowing his time is but short, and therefore exerting all the energy of the venom and violence, craft and cruelty of the dragon, and antichrist, alias pope, his captain-general, is now universally prevailing, and plying all his hellish engines to batter down, and bury under the rubbish of everlasting darkness, what is left to be destroyed of the work of reformation; and the crowned heads, or horns of the beast, the tyrants, alias kings of Europe, his council of war, are advancing their prerogatives upon the ruins of the nations and churches privileges, to such a pitch of absoluteness, and improving and employing their power for promoting their masters (the devil and antichrists) interests, to whom they have gifted the churches, mancipated their own, and sacrificed the nations interest; and that with such combination of counsels, and countenance of providential success, that all the powers of hell, the principalities of earth, and the providence of heaven, over-ruling all things for the accomplishment of the divine purpose, and purchase, and prediction, seem to conspire to produce that prodigious period, and last attempt of the church's enemy. And the commencement is so far advanced, that now in all the churches of Europe either the witnesses of Christ are a killing, or the witness for Christ is in a great measure killed; either the followers of the Lamb, who are called, and chosen, and faithful, are killed for their testimony, or fainting in their zeal, and falling from their first love, they are cooled or cajoled from their testimony. Some are indulging themselves in their ease, settling on their lees, and sleeping in a stupid security; and, while the Lord is roaring from above, and his, and their enemies raging about them, and designing to raze them after they have ruined their neighbours, they are rotting away under the destructive distempers of detestable neutrality, loathsome lukewarmness, declining, and decaying in corruptions, defections, divisions, distractions, confusions; and so judicially infatuated with darkness and delusions, that they forget and forego the necessary testimony

of the day. Others again, outwearied with the length and weight of the trial, under the temptation of antichrist's formidable strength on the one hand, and a deceitful prospect of an insnaring liberty on the other, are overcome either to be hectored or flattered from their testimony. And so, in these churches, comprehending all that are free from persecution at this time, the witness for Christ is in a great measure killed. Other churches, which are keeping and contending for the word of Christ's patience, are so wasted, and almost worn out, with persecutions, afflictions, and calamities, that, after they have been, and are (so much) daily killed for the word of God, and the testimony of Jesus, it may well be said, there hath been, and is, a great slaughter of the witnesses. And it were hard to determine, which of them can give the largest and most lamentable account of their sufferings, or which of them have had the greatest and most grievous experiences of the treachery and truculency, violence and villany of atheistical and papistical enemies: whether the reformed church of France, howling under the paw of that devouring lion, the French tyrant; or the protestants of Hungary under the tearing claws of that ravenous eagle, the tyrant of Austria; or those of Piedmont, under the grassant tyranny of that little tyger of Savoy. The accounts they give in print, the reports they bring with them in their flight from their respective countries, and the little hints we have in gazettes and news-letters, must needs enforce a conviction, if not extort a compassion of the greatness of their pressures; and that with such a parity, that it is doubtful which preponderates. I shall not make comparisons, nor aggravate nor extenuate the sufferings of any of the churches of Christ, beyond or below their due measures; but will presume to plead, that Scotland, another ancient, and sometimes famous reformed church, be inrolled in the catalogue of suffering churches, besides these mentioned; and crave, that she may have a share of that charity and sympathy which is the demand and desire of afflicted churches of Christ, from all the fellow members of that same body: and so much the rather is this her due, that, whereas, among all

the rest of the churches, Christ's witnesses are killed in some particular respect, and each of them have their own proper complaint of it; some upon the account of persecution, some of defection, division, &c. of this it may be said, in all respects, both the witnesses of Christ, and a witness for Christ, are killed with a witness. This is the case of the sometimes renowned, famous, faithful, and fruitful, reformed, covenanted church of Scotland, famous for unity, faithful for verity, fruitful in the purity of doctrine, worship, discipline, and government; which now, for these twenty-seven years past, under the domination of the late tyrant, and present usurper of Britain, hath been so wasted with oppression, wounded with persecution, rent with division, ruined with defection, that now she is as much despised, as she was before admired; and her witness and testimony for reformation, is now as far depressed and suppressed in obscurity, as it was formerly declared and depredicated in glory and honour. And yet, which should move the greater commiseration, her witnessings and wrestlings, trials and temptations, have not been inferior, in manner or measure, quality or continuance, to any of the fore-mentioned churches, though in extent not so great, because her precinct is not so large, whereby the number of her oppressed and murdered children could not be so multiplied, though her martyrs be more, and the manner of their murder more illegal, than can be instanced in any of them during that time. A particular enumeration or ennaration whereof, cannot be here exhibited, but is referred and reserved to a peculiar treatise of that subject, which ere long the world may see. Only I shall give a compendious account of the kinds and causes, grounds and heads of their sufferings, who have been most slighted, and least sympatized with, though they have sustained the greatest severities of any; and, in end, endeavour to vindicate the merit of their cause, in the most principal heads upon which their sufferings have been stated: whereby it will appear to impartial men, that will not be imposed upon, there hath been, and yet is, a great and grievous, and some way

unparalleled, persecution in Scotland, at least inferior to none: which hath not hitherto been duly considered, with any proportion to the importance thereof.

But though this be the scope, it is not the sum of what is intended in this discourse. The method I have proposed to prosecute it withal, will discover it; which is, 1. To give a brief and summary account of the series and succession, success and result of the several contendings of the witnesses of Christ, against his enemies in Scotland from time to time; that it may appear, whether or not the present sufferings, as now stated, can be condemned, if the former be approved. 2. To rehearse some of the chief means, methods and measures, that the popish, prelatical and malignant faction have managed, for the ruin of this witnessing remnant, and some of the most signal steps of sufferings sustained by and from these within these twenty-seven years; by which it will appear, that the persecution in Scotland hath been very remarkable (though little regarded) both in respect of the injustice, illegality, and inhumanity of the persecutors, and in respect of the innocency, zeal and ingenuity of the persecuted. 3. To clear the state, and vindicate the merit of the cause of their sufferings, as to the most material heads of it, that are most controverted at this time. In the first of these, I must study all compendious brevity, as may consist with the clearing of my scope; which is not to enlarge an historical deduction of the rise and result, progress and prosecution, occasion and continuation of every controversy the church hath had with her several adversaries in several periods; but only to hint at the chief heads of their contendings, with a design to make it appear, that the most material heads of sufferings that are now condemned as new and nice notions, have been transmitted from age to age, from the beginning even to this present time, through all the periods of this church.

PERIOD I.

Comprehending the TESTIMONY of the CULDEES.

It is not without reason reckoned among the peculiar prerogatives of the renowned church of Scotland, that Christ's conquest in the conversion of that nation, is one of the most eminent accomplishments of scripture-prophecies, of the propagation of his kingdom in the new testament dispensation; not only because it was, when called out of Gentile paganism, among the rudest of heathen nations, and in the acknowledgement of all, among "the uttermost parts of the earth," which were given to Christ for his inheritance and possession; whereunto he had, and hath still undoubted right, by his Father's grant, and by his own purchase; and took infeftment of it by a glorious conquest of that land, which the Roman arms could never subdue; and erected his victorious trophies there, whither their triumphs could never penetrate; obtaining and thereby accomplishing that predicted song of praise, "From the uttermost parts of the earth have we heard songs, even glory to the righteous." Which gives us ground to expect, that however Christ's interest there be now very low, and like to be lost as a prey in the dragon's mouth, yet Christ, having such undoubted and manifold right to it, will not so easily quit or forego his possession; but also, because he hath so constantly continued his possession, and maintained his title, by a long course of contendings, by the testimonies of his witnesses against the invaders thereof, through all the periods of the church, from the very infancy of this new dispensation; and because Scotland's conversion unto the Christian faith was among the first fruits of the Gentiles, of the oldest date, that any standing church holding the head Christ this day can deduct its original from. For it is clear from ancient records, the Christian faith was embraced here a few years after the ascension of our Saviour, being taught by the disciples of John the apostle; and received afterwards great increase from the Britons flying to Scotland to escape the persecution of the Emperor Domitian, and was long promoted by the ancient Culdees, (or worshippers of God,) men whose memory is still fragrant for piety and

purity of faith and life, who continued some hundreds of years under various vicissitudes of providence, before either prelacy or popery was known in Scotland. They were first universally encouraged by King Cratilinth, in the time of the last persecution under Dioclesian, which brought many of Christ's witnesses hither for shelter, who were very helpful for the settling of truth, and the total extirpation of the idolatry of the Druids, the heathen priests, whereby the pure doctrine, worship, and government also, of Christ's institution, was established and continued many years, while these witnesses of Christ had no other emulation but of well-doing, and to advance piety. In this period, these ancient, and first confessors and witnesses of Christ, did wrestle strenuously, according to their strength and light, for the truths and words of Christ's patience, controverted in their day, both against professed enemies, Pagan persecutors and priests, and pretended friends, corrupters of the faith. Their testimony was stated in a peculiar manner, for the verity, value and virtue of Christ's natures and offices, in asserting his truths relative to either, against the malignants and sectaries of their time; particularly for the concerns of his prophetic office. And though we be at a loss, that for the most part their witness is buried in oblivion, through the darkness of the times succeeding; yet the scrapes and fragments that are left, do furnish us with these few remarks.

I. They maintained the verity of the Christian doctrine, against both Pagan Persecutors and heretical perverters; and the purity of his instituted worship, without the vanity of human inventions, or conformity with, either the Druids on the one hand, or the heretics on the other, with which, sometime before the end of that period, they were infested; chiefly the Pelagians, with whom the faithful would have no communion; but abstracted themselves in a monastical life, living and exercising their religion in cells, from whence many places in the country yet retain the name, as Kilmarnock, Kilpatrick, &c. that is the cells of these eminent men

among the Culdees. And their government also was that of the primitive order, without bishops, with little vanity, but great simplicity and holiness. Many authors do testify, that near about 400 years, the church of Scotland knew nothing of the episcopal Hierarchy, until Palladius brought it in, and not without great opposition.

II. In these recesses, they had the advantage, both of outward peace, when others were in trouble, and of inward peace of conscience, when others were debauched with many conjurations and abjurations, combinations and confederacies, imposed and exacted by them that prevailed for the time, whereby they might both keep themselves free of ensnaring oaths, perfidious compliances, and associations with the wicked, and also entertain and encourage the oppressed for equity, who fled unto their sanctuary for safety. We find they refused to enter into league with malignant enemies. One memorable passage I shall insert (though strictly it belong not to this period, as I distinguish it, yet falling out, within eighty years thereafter, in the time of the Culdees, it will not obscurely evidence the truth of this) Goranus the forty-fifth king of Scots, earnestly dissuaded Lothus king of Picts to entertain the league with the Saxons, not only because they were treacherous and cruel, but because they were enemies to the country and to the religion they professed, concluding thus: *Homini vero Christiano id longe omnium videri*, &c. "But to a Christian nothing must seem more grievous, than to consent to such a covenant, as will extinguish the Christian religion, and reduce the prophane customs of the heathen, and arm wicked tyrants, the enemies of all humanity and piety, against God and his laws." Whereupon Lothus was persuaded to relinquish the Saxons, Buchan. Hist. Rer. Scotie.

III. Though they were not for partaking in wicked unnecessary wars, without authority, or against it; yet we have ground to conclude, they were for war, and did maintain the principle of resisting tyranny; since there was

never more of the practice of it, nor more happy resistances in any age, than in that; where we find, that, as their ancestors had frequently done before, so they also followed their footsteps, in resisting, reducing to order, repressing, and bringing to condign punishment tyrants and usurpers; and thought those actions, which their fathers did by the light of nature and dictates of reason, worthy of imitation, when they had the advantage of the light of revelation and dictates of faith; the one being indeed moderate and directed, but no ways contradicted by the other. Therefore we read, that, as their predecessors had done with Thereus the 8th king of Scotland, whom they banished in the year before Christ's incarnation 173; with Dustus the 11th king, whom they slew in battle in the year before Christ 107; Evenus the 3d, who was imprisoned, and died there, in the year before Christ 12; Dardanus the 20th king, who was taken in battle, beheaded by his own subjects, his head exposed to mockage, and his body cast into a sink, in the year of Christ 72; Luctatus the 22d king, who was slain for his leachery and tyranny in the year 110, Mogaldus the 23d king, slain in the year 113; Conarus the 24th king, a lecherous tyrant, died in prison in the year 149; Satrael the 26th king hanged in the year 159. So, after the Christian faith was publicly professed, they pursued Athirco the 29th king, when degenerate into tyranny, who was forced to kill himself in the year 231. They slew Nathalocus the 30th king, and cast him into a privy, in the year 241. They beheaded Romachus the 36th king, and carried about his head for a show in the year 348. As they did with many others afterwards, as witnesseth Buchanan, Book IV. Scottish History.

IV. Whence it is evident, that as they attained, even in these primitive times, and maintained the purity and freedom of their ministry, independent on Pope, Prelate, or any human supremacy (that Antichristian hierarchy and Erastian blasphemy not being known in those days) so they contended for the order and boundaries of the magistracy, according to God's appointment and the fundamental constitutions of their government; and thought it their

duty to shake off the yoke, and disown the authority of these tyrants that destroyed the same. Yea, we find, that even for incapacity, stupidity and folly, they disowned the relation of a magistrate, and disposed of the government another way, as they did with Ethodius II. whose authority they did own, but only to the title. See Buchanan in the before cited place.

PERIOD II.

Comprehending the TESTIMONY of the same CULDEES, with that of the LOLLARDS.

The following period was that fatal one, that brought in universal darkness on the face of the whole church of Christ, and on Scotland with the first of them: which, as it received very early Christianity, so it was with the first corrupted with antichristianism: for that mystery of iniquity that had been long working, till he who letted was taken out of the way, found Scotland ripe for it when he came; which, while the dragon did persecute the woman in the wilderness, did valiantly repel his assaults; but when the beast did arise, to whom he gave his power, he prevailed more by his subtilty, than his rampant predecessor could do by his rage. Scotland could resist the Roman legions while heathenish, but not the Roman locusts when antichristian. At his very first appearance in the world, under the character of antichrist, his harbinger Palladius brought in prelacy to Scotland, and by that conveyance the contagion of popery, which hath always been, as every where, so especially in Scotland, both the mother and daughter, cause and effect, occasion and consequence of popery. These rose, stood and lived together, and sometimes did also fall together; and we have ground to hope that they shall fall again; and their final and fatal fall is not far off. Whatever difficulty authors do make, in calculating the epocha of the forty-two months of antichrist's duration in the world, because of the obscurity of

his first rise; yet there needs not be much perplexity in finding out that epocha in Scotland, nor so much discouragement from the fancied permanency of that kingdom of wickedness. For if it be certain, as it will not be much disputed, that popery and prelacy came in by Palladius, sent legate by Pope Celestine, about the year 450; then if we add forty-two months, or 1260 prophetic days, that is, years, we may have a comfortable prospect of their tragical conclusion. And though both clashings and combinations, oppositions and conjunctions, this day may seem to have a terrible aspect, portending a darker hour before the dawning; yet all these reelings and revolutions, though they be symptoms of wrath incumbent upon us for our sins, they may be looked upon, through a prospect of faith, as presages and prognostics of mercy impendent for his name's sake, encouraging us, when we see these dreadful things come to pass in our day, to lift up our heads, for the day of our redemption draweth nigh. This dark period continued nigh about 1100 years, in which, though Christ's witnesses were very few, yet he had some witnessing and prophesying in sackcloth all the while. Their testimony was the same with that of the Waldenses and Albigenses, stated upon the grounds of their secession, or rather abstraction from that mystery Babylon, mother of harlots, popery and prelacy, for their corruption in doctrine, worship, discipline and government. And did more particularly relate to the concerns of Christ's priestly office, which was transmitted from the Culdees to the Lollards, and by them handed down to the instruments of reformation in the following period. Their testimony indeed was not active, by way of forcible resistance against the sovereign powers; but passive, by way of confession and martyrdom, and sufferings and verbal contendings, and witnessings against the prevailing corruptions of the time. And no wonder it should be so, and in this somewhat different from ours, because that was a dispensation of suffering, when antichrist was on the ascendant, and they had no call or capacity to oppose him any other way, and were new spirited for this passive testimony, in which

circumstances they are an excellent pattern for imitation, but not an example for confutation of that principle of defensive resistance, which they never contradicted, and had never occasion to confirm by their practice. But, as in their managing their testimony, their manner was someway different from ours on this respect; so they had by far the advantage of us, that their cause was so clearly stated upon the greatest heads of sufferings, having the clearest connexion with the fundamentals of religion; yet we shall find in this period our heads of suffering someway homologated, if we consider,

I. That as they did faithfully keep and contend for the word of Christ's patience under that dispensation, in asserting and maintaining both the verity of Christ's doctrine, and the purity of his worship, by testifying against the corruptions, errors, idolatries and superstitions of popery; so they did constantly bear witness against the usurpation and tyrannical domination of the antichristian prelates. And as the Culdees did vigorously oppose their first introduction, and after aspiring domination, as well as the corruptions of their doctrines, as we have the contendings of eminent witnesses recorded from age to age; in the fourth and fifth age, Columbe, Libthac, Ethernan, Kintegern or Mungo; in the sixth and seventh age, Colmanus, Clemens, and Samson, with others; in the eighth and ninth age, Alcuin, Rabanus, Maurus, Joannes Scotus AErigena, are noted in history. And the Lollards, by their examinations and testimonies, are found to have witnessed against the exercise of their power, and sometimes against the very nature of their power itself: so in their practice they condemned prelacy as well as popery, in that their ministers did in much painfulness, poverty, simplicity, humility, and equality, observe the institution of our Lord. And so far as their light served, and had occasion to enquire into this point, they acknowledged no officer in the house of God superior to a preaching minister, and according to this standard, they rejected and craved reformation of exorbitant prelacy. And it is plain, that they were frequently

discovered by discountenancing and withdrawing from their superstitious and idolatrous worship; for all which, when they could not escape nor repel their violence, they cheerfully embraced and endured the flames.

II. That their adversaries did manage their cruel craft, and crafty cruelty, in murdering those servants of God, much after the same methods that ours do; except that they are many stages outdone by their successors; as much as perfect artists do outstrip the rude beginnings of apprentices. But, on the other hand, the sufferers in our day, that would follow the example of those worthies under Popery, would be much condemned by this generation, even by them that commend the matter of their testimony, though they will not allow the manner of it to be imitated in this day. The adversaries of Christ, in this and that generation, are more like than his confessors and witnesses are. The adversaries then, when constrained by diversions of the time's troubles, or when their designs were not ripe, pretended more moderation and aversation from severity; but no sooner got they opportunity, (which always they sought), but so soon they renewed the battle against Jesus Christ; so now: when they had seven abominations in their hearts, and many cursed designs in their heads, they always spoke fairest; so now: when they had a mind to execute their cruelty, they would resolve before hand whom to pitch upon before conviction; so now: and when so resolved, the least pretence of a fault, obnoxious to their wicked law, would serve their design; so now: they used then to forge articles, and falsely misrepresent their answers, and declarations of their principles; so now. Yet, on the other hand, if now poor sufferers should glory in that they are counted worthy to suffer shame for the name of Christ, as they did then; if now they should suffer with as great chearfulness, for the smallest points as for the greatest heads, as they did then, who endured the flames as gallantly, for eating a goose upon Friday, as others did for the doctrine of justification, or purgatory, or indulgences, or worshipping of images and saints; if now they should speak for every truth in question, with all simplicity and plainness, without

reserves or shifts declining a testimony, as they did; if they should supersede from all application to their enemies for favour, and not meddle with either petitioning or bonding with them, as they did; nay, not accepting deliverance, that they might obtain a better resurrection: then they might expect the severe censure of ignorant and precise fools, as the most part who suffer now are counted.

III. That they stood aloof from every appearance of a base compliance with them; not so much as to give them an interpretative sign of it; which, in their meaning, might be thought a recantation, though, abstractly considered, it might be capable of a more favourable construction; as the required burning of their bill was; which might have been thought a condemning of their accusations; but because that was not their adversaries sense of it, they durst not do it. Not like many now a-days, who will not be solicitous to consult that. Neither would they take any of their oaths, nor pay any of their ecclesiastical exactions, as we find in the articles brought in against the Lollards of Kyle, Knox's History of Reformation. These things are easily complied with now: and such as will suffer upon such things are condemned.

IV. That while the love of God and his blessed truth, and the precepts, promise, and presence of our Lord Jesus Christ, did enable them unto all patience with joy, in a passive testimony, being by the call of a clear and necessary providence sent and set forth to be his witnesses; they did not indeed endeavour any resistance: yet we find they never resigned nor abandoned that first and most just privilege of resistance; nay, nor bringing public beasts of prey to condign punishment, in an extraordinary way of vindictive justice, for the murder of the saints. As, upon the murder of Mr. George Wishart, was done with Cardinal Beaton, who was slain in the tower of St. Andrew's by James Melvin: who, perceiving his consorts in the enterprize moved with passion, withdrew them, and said, 'This work and

judgment of God, although it be secret, ought to be done with greater gravity.' And, presenting the point of the sword to the Cardinal, said, 'Repent thee of thy former wicked life, but especially of the shedding of the blood of that notable instrument of God, Mr. George Wishart, which albeit the flame of fire consumed before men, yet it cries for vengeance upon thee, and we from God are sent to revenge it; for here, before my God, I protest, that neither the hatred of thy person, the love of thy riches, nor the fear of any trouble thou couldst have done me in particular, moved or moveth me to strike thee, but only because thou hast been and remainest an obstinate enemy against Christ Jesus, and his holy gospel.' Of which fact, the famous and faithful historian Mr. Knox speaks very honourably, and was so far from condemning it, that while, after the slaughter, they kept out the castle, he, with other godly men, went to them, and stayed with them, till they were together carried captives to France. Yet now such a fact, committed upon such another bloody and treacherous beast, the Cardinal Prelate of Scotland, eight years ago, is generally condemned as horrid murder.

V. However, though in this dark period there be no noted instances of these witnesses resisting the superior powers, for reasons above hinted: yet, in this period, we find many instances of noble and virtuous patriots, their not only resisting, but also revenging to the utmost of severity, rigorous and raging tyrants, as may be seen in histories. For, before the corruption of antichrist came to its height, we find Ferchardus 1st, the 52d King, was drawn to judgment against his will, great crimes were laid to his charge, and among others the Pelagian heresy, and contempt of baptism, for which he was cast into prison, where he killed himself in the year 636; Eugenius 8th, the 62d King, degenerating into wickedness, and rejecting the admonitions of his friends, and especially of the ministers, was killed in a convention of his nobles, with the consent of all, in the year 765; Donaldus 7th was imprisoned, where he killed himself, in the year 859; Ethus, surnamed Alipes, the 72d King, was apprehended, and his wicked life laid out before

the people, and then compelled to resign the government, and died in prison, in the year 875. Afterwards when the government was transmitted to the Stewarts, James the 2d, the 103d King, who killed William Earl of Douglas in the castle of Stirling, most treacherously, after he had pretended a civil treatment, was publicly defied by the Earl's friends, who took the King's public writ and subscription made to the said Earl, and tied it to a horse tail, dragging it through the streets; and, when they came to the market-place, they proclaimed both King and Nobles perjured covenant breakers; and thereafter, when Earl James his brother was desired to submit, he answered, 'He would never put himself in their reverence who had no regard to shame; nor to the laws of God or man, and who had so perfidiously killed his brother and his cousins.' James 3d, the 104th King, for his treachery and tyranny, was opposed and pursued by arms by his own subjects; who, finding himself under disadvantages, sent to the rebels (as he thought them, and called them) an offer of peace, and received this answer — 'That seeing the King did nothing honestly, a certain war seemed better to them than a peace not to be trusted, that there was no other hope of agreement but one, that he should quit the government, otherwise it was to no purpose to trouble themselves with treaties.' Thereafter, in a battle, he was slain at Bannockburn by Gray, Ker, and Borthwick. The same King was also constrained, by the valour of Archibald Douglas Earl of Angus, called Bell the Cat, to reform the court, and put away some wicked sycophants from his council, and give way, though against his will, to the execution of judgment upon others: which was the occasion of that foresaid agnomen to the Earl: for he, with other nobles, in a meeting at Lauder, consulting how to reform and repress the insolency of the Court, had the apologue of the mice laid out before them; that the mice fell upon deliberating how to be rid of the cat, and concluded that the best way was to put a bell about her neck; but when it came to be put in execution, never a mouse durst undertake it: the Earl quickly made application, saying, I will bell the cat; and forthwith

went out, and meeting Cochran, one of these wicked counsellors, took hold of him, and hanged him with a horse halter over the bridge of Lauder; and, rushing into the King's presence, proceeded to snatch Ramsay, another of the country's enemies, out of the King's arms; but that he yielded at length to the King's earnest entreaties to spare him. However we see how generously zealous these noble patriots were for the country's good, against tyranny, though they were ignorant of religion: yet this all along was still the character of the Scots in these days, none more terrible to tyrants, none more loyal to Kings than they.

PERIOD III.

Containing the TESTIMONY of the REFORMATION from POPERY.

As in the former, the testimony was mostly passive; so, in the following period, when they were encreased in number and strength that embraced the gospel, the Lord called, and spirited to an active testimony, for these two twins, religion and liberty, that were then sought to be stifled in the birth, and are now designed more declaredly to be destroyed, after they have grown up to some maturity: which, as it renders the cruelty of the present destroyers the more grassant and grievous, so it rubs the more indelible infamy on the shameful security and ass-like stupidity of this generation, that have received such an excellent testimony deposited to their trust, transmitted to them through a continued tract of the witnessings and wrestlings of their worthy ancestors, and now let it slip and slide through their feeble fingers; and does the more justify, yea magnify, the poor endeavours of the present sufferers, who, at least, when they cannot re-act these mighty works, in defending religion and liberty, do chuse rather to die than to resign the testimony, or quit the least privilege that their progenitors possessed them of: and though they be superciliously despised, as little

insignificant nothings in the eyes of the bulk of the big boasters of this blind age; yet if these valiant heroes, who did such exploits for their God, in commencing and carrying on the work of reformation, were now to see the dull dotages of this dreaming generation, (not only suffering and consenting to, but congratulating and applauding, the introduction and re-establishment of idolatry and tyranny, popery and slavery, upon the ruins of the work they built with so great expence); and were to read the pitiful petitions, and airy and empty, flattering and fawning addresses, to this antichristian tyrant, for the toleration of that religion and liberty, under the odious notion of a crime, which they had conveyed to them under the security of a fundamental law; they, if any, would be acknowledged as their children, who disdain and disown such dishonourable and dastardly yieldings, and are therefore most despised with disdain and despatch. A brief rehearsal of their contendings will clear the case.

While the Queen Dowager regent reigned by the curse of God, and employed all her power and policy to suppress the gospel in Scotland, God so counteracted her, that the blood of the martyrs she caused to be murdered, proved the seed of the church; and the endeavours of his servants had such success, that no small part of the barons and gentlemen, as well as commons, began to abhor the tyranny of the bishops: yea, men almost universally began to doubt, whether they could without sin give their bodily presence 'to the mass, or offer their children to the papistical baptism? Whether these that were in any public trust, could with safe conscience serve the higher powers in maintaining of idolatry, persecuting their brethren, and suppressing Christ's truth? Or whether they might suffer their brethren to be murdered in their presence, without any declaration that such tyranny displeased them?' And, from the scriptures, they were resolved, That a lively faith requires a plain confession, when Christ's truth is impugned; and that not only they be guilty that do evil, but also they that consent to evil, and this they should do, if seeing such things openly

committed, they should be silent, and so allow whatsoever was done. From doubts they came to determinations, to endeavour that Christ Jesus his glorious gospel should be preached, his holy sacraments truly ministred, superstition, idolatry, and tyranny should be suppressed in this realm; and that both as to the worship, discipline, and government, the reverend face of the first primitive and apostolic church should be reduced again to the eyes and knowledge of men. And in this they never fainted till the work was finished. To accomplish this, famous and faithful Mr. Knox, and other servants of the Lord, did preach diligently in private meetings. And for that, when they were summoned before the Queen, several zealous and bold men repaired to her, and plainly in the hearing of the Prelates, did charge them with the cruel device intended, and told her with a vow, 'They should make a day of it, because they oppressed them and their tenants for feeding their idle bellies, they troubled the preachers, and would murder all; should they suffer this any longer? No; it should not be.' Thereafter, the more effectually to prosecute the reformation begun, they entered into covenants, to maintain and advance that work of reformation, and to stand to the defence thereof; and of one another, against all wicked power, that might intend tyranny or trouble against them, and to resent any injury done to any of their brethren, upon the account of the common cause, as done to all. Of which covenants they entered into many very solemnly; one was at Edinburgh in the year 1557; another at Perth 1559; another at Stirling 1559, binding, that none should have any correspondence with the Queen, without notifying it to one another; and that nothing should proceed therein, without common consent of them all. Another at Leith, in the year 1560; another at Ayr, in the year 1562, of the same tenor. By which covenants, as their conjunction was the more firm among themselves, so was it the more fearful to their adversaries: when, according to the tenor of them, they kept their conventions, and held counsels with such gravity and closeness, that the enemies trembled. I mention these things more particularly, because these same very things

commended in our fathers, are now condemned in a poor handful, that would aim at imitating their example, in renewing and reiterating such covenants of the same nature and tenor, and binding to the same very duties, and prosecute in the same methods of keeping general meetings for correspondence, and consultation about common mutual duties in common danger; whereunto they have not only present necessity to urge them, but also preterite examples of these worthies to encourage them, and their experience of comfort and tranquillity they reaped, by these Christian assemblies and godly conferences, as oft as any danger appeared to any member or members of their body. These beginnings, the zealous covenanted reformers left no means unessayed to promote, by protestations to the parliament, and petitions, and many reiterated addresses to the Queen Dowager: from whom they received many renewed fair promises; which she had never mind to keep, and wanted not the impudence, when challenged for breaking them, to declare, 'It becomes not subjects to burden their princes with promises further than it pleased them to keep the same:' and, at another time, 'that she was bound to keep no faith to hereticks:' and again, 'that princes must not be strickly bound to keep their promises; and that herself would make little conscience to take from all that sort their lives and inheritance, if she might do it with an honest excuse.' Wherein she spoke not only the venom of her own heart, but the very soul and sense, principle and project of all popish princes: whereby we may see what security we have for religion and liberty this day, though the most part make such a pretence a pillow to sleep on. But, after many discoveries in this kind of the Queen's treachery, at length they would no more be bribed by promises, blinded by pretences, nor boasted by her proclamations, (slandering their enterprise, as if it pertained nothing to religion) from their endeavours to prosecute the same: but finding themselves compelled to take the sword of just defence, against all that should pursue them for the matter of religion, they first signified unto her; 'that they would notify to the king of

France, and all Christian princes, that her cruel, unjust, and most tyrannical murder intended against towns and multitudes, was and is the only cause of their revolt from their accustomed obedience, which they owned and promised to their Sovereign; provided they might live in peace and liberty, and enjoy Christ's gospel, without which they firmly purpose never to be subject to mortal man; and that better it were to expose their bodies to a thousand deaths; than to deny Christ; which thing not only do they, who commit open idolatry, but also all such, as, seeing their brethren pursued for the cause of religion, and having no sufficient means to comfort and assist them, do nevertheless withdraw from them their dutiful support.' And thereafter, they published a declaration to the generation of antichrist, the pestilent prelates, and their shavelings within Scotland. 'That they should not be abused, thinking to escape just punishment, after that they, in their blind fury, had caused the blood of many to be shed; but if they proceeded in this their malicious cruelty, they should be dealt withal, wheresoever they should be apprehended, as murderers, and open enemies to God and to mankind. And that with the same measure they had measured, and intended to measure to others, it should be measured to them;—that is, they should, with all force and power they had, execute just vengeance and punishment upon them; yea begin that same war which God commandeth Israel to execute against the Canaanites; that is, contract of peace should never be made, till they desist from their open idolatry and cruel persecution of God's children.' I rehearse this declaration the more expressly, because in our day declarations of this style and strain, and aiming at the same scope, are hideously hissed and houted at as unheard of novelties. Finally, when by all their letters, warnings, admonitions and protestations, they could obtain no redress, but rather an increase of insupportable violence, they proponed the question in a general meeting, 'Whether she, whose pretences threatened the bondage of the whole common wealth, ought to be suffered so tyrannically to domineer over them?' Unto which the ministers, being required to give

their judgment, answered, That she ought not. And accordingly they declared her deposed from all government over them; 'because of her persecuting the professors of the true religion, and oppressing the liberties of the true lieges, never being called nor convinced of any crime; because of her intrusion of magistrates against all order of election; because of her bringing in strangers to suppress the liberty of the country, and placing them in greatest offices of credit; because of her altering and subverting the old laws of the realm,' &c. Which I mention, because hence we may see what things our fathers judged did dissolve the relation between the people and their rulers; and, when applied to our case, will justify their reasons that have renounced the present tyranny. This was done at Edinburgh in the year 1559. And thereafter, while they vindicated themselves, and went on with the work of reformation, throwing down all monuments of idolatry, and propagating the reformed religion, God so blessed their endeavours, that their confession of faith, and all articles of the protestant religion, was read and ratified by the three estates of parliament, at Edinburgh, July 1560. And the same year the book of discipline, containing the form and order of presbyterial government, was subscribed by a great part of the nobility. Thus, through the wisdom and power of God alone, even by the weakness of very mean instruments, against the rage and fury of the devil, and of all the powers of hell, was this work of reformation advanced and effectuated; and came to the establishment of a law, which did not only ratify and confirm the protestant religion, but abolish antichristian popery, and appoint punishment for the professors and promoters thereof. Which law, often confirmed and ratified afterwards, though it be now cested and rescinded by the prerogative of the present tyrant; because it annuls and invalidates his pretence to succession in the government, (it being expressly enacted afterwards, by a parliament at Edinburgh, 1567, confirming this, that all princes and kings hereafter, before their coronation, shall take oath to maintain the true religion then professed, and suppress all things contrary to

it), yet is still in force in the hearts of all honest men, that will not prostitute religion, law and liberty, to the lusts of tyrants; and will be accounted a better bottom to build the hope of enjoying religion upon, than the perfidious promises of a popish usurper, pretending a liberty to dissenting protestants, by taking away the penal statutes, the legal bulwark against popery: all which yet, to the reproach of all protestants, some are applauding and congratulating in this time by their addresses and petitions, to this destroyer of law and religion. I wish they would look back to see what the building of this bulwark cost our fathers, before they sell it at such a rate; and compare the present addresses, courting and caressing the papists, with the addresses of these worthy builders of what they are destroying. There is one dated Edinburgh, May 27, 1561, presented to the Council, shewing, that honesty craved them, to make the secrets of their heart patent, which was—"That, before ever these tyrants and dumb dogs empire over them professing Christ Jesus within this realm, they were fully determined to hazard life, and whatsoever they had received of God in temporal things.—And let these enemies of God assure themselves, that if their council put not order unto them, that they should shortly take such order, that they shall neither be able to do what they list, neither yet to live upon the sweet of the brows of such as are no debtors to them.' And when the mischievous Mary, the daughter of the degraded Queen, returning from France, set up the mass but in her own family, the godly at that time gave plain signification, that they could not abide that 'the land which God had purged from idolatry, should in their eyes be polluted again. Shall that idol (say they) be suffered again to take place within this realm? It shall not.' The idolatrous priests should die the death according to God's law. And a proclamation being issued to protect the Queen's domestic servants that were papists, there was a protestation given forth presently, 'That if any of her servants should commit idolatry, say mass, participate therewith, or take the defence thereof, in that case this proclamation was not extended to them

in that behalf, no more than if they commit murder; seeing the one is much more abominable in the sight of God than the other; but that it may be lawful to inflict upon them, the pains contained in God's word against idolaters, wherever they may be apprehended, without favour.' The words of John Knox upon the following Sabbath may be added, 'That one mass was more fearful unto him, than if ten thousand armed enemies were landed in any part of the realm, of purpose to suppress the whole religion: for (said he) in our God there is strength to resist and confound multitudes, if we unfeignedly depend upon him; but when we join hands with idolatry, it is no doubt but both God's amiable presence and comfortable defence will leave us, and what shall then become of us?' Yea, when it was voted in the General Assembly, whether they might take the Queen's mass from her? many frankly affirmed, 'That as the mass is abominable, so it is just and right that it should be suppressed; and that in so doing, men did no more hurt to the Queen's Majesty, than they that should by force take from her a poisoned cup, when she was going to drink it.' Thus we have some specimen of the zeal of our fathers against idolatry. But in a little time court favours blunted it in many; and then had the servants of God a double battle, fighting on the one hand against idolatry, and the rest of the abominations maintained by the court. And upon the other hand, against the unfaithfulness of false brethren, and treachery of sycophants, who informed the court against the ministers, for their free and faithful preaching and warnings on all occasions; yet they sustained the brunt of all these assaults, and came off with honour. At length, to be short, in process of time, this Mary, a woman of a proud and crafty wit, and an obdured heart against God and his truth, infilled in the same steps of tyranny and treachery (but with greater aggravations) that her mother walked in, and was served according to her desert. For after that her darling David Rizzo, the Italian fidler, (whom most men then supposed, and do still suspect to be the father of King James, this man's grandfather; and some do think it not unlikely, that

his successors have derived from this stock the Italian complexion and constitution both of body and mind, spare and swarthy, cruel and crafty) received his due rewards in her presence, by the King's consent and counsel; she conceived such contempt of, and indignation against the poor uxorious young King, Henry of Darnley, that she never rested till she and Bothwel contrived and executed his murder, and then she married that murdering adulterer, the said Earl of Bothwel: whereupon the Protestant Noblemen pursuing the murder, took her, and sent her prisoner to Lochleven, where they made her resign the government to her son James, then an infant, and afterwards she was beheaded by Elizabeth Queen of England. We see now by this deduction, what was the testimony of this period, and how in many things it confirms the heads of the present sufferings, which we may particularly remark.

I. The reformation of Scotland had this common with all other protestant churches, that it was carried on by resisting the opposing powers; but it had this peculiar advantage above all, that at once, and from the beginning, both doctrine and worship, discipline and government were reformed: as Mr. Knox witnesseth, that there was no realm upon the face of the earth at that time that had religion in greater purity. 'Yea,' says he, 'we must speak the truth, whomsoever we offend, there is no realm that hath the like purity; for all others, how sincere soever the doctrine be, retain in their churches and ministry thereof, some footsteps of antichrist, and dregs of popery; but we (praise to God alone) have nothing in our churches that ever flowed from that Man of Sin.' The doctrine was purely reformed, according to the rule of Christ, both as to matter and manner of delivery. As to the matter of it, what it was, the Confession of Faith, ratified in parliament in the year 1560, doth witness. In the manner of it, they studied not the smooth and pawky prudence that is now so much applauded, for not observing which, such as would fain be honest in this duty, are so much condemned; but they cried aloud against, and did not spare the sins of the time, with application to

every degree of men; as we have it published and vindicated in Mr. Knox's History. They cried, 'that the same God who plagued Pharaoh, repulsed Sennacherib, struck Herod with worms, and made the bellies of dogs the grave and sepulchre of the spiteful Jezebel, will not spare misled princes, who authorize the murderers of Christ's members in this our time. Many now a days will have no other religion than the Queen; the Queen no other than the Cardinal; the Cardinal no other than the Pope; the Pope no other than the devil: let men therefore consider what danger they stand in, if their salvation shall depend upon the Queen's faith.' And they used to defend such manner of free dealing, from the examples of the prophets reproofing Kings personally. 'Now, if the like and greater corruptions be in the world this day, who dare enterprize, to put to silence the Spirit of God, which will not be subject to the appetites of misled princes.' Mr. Knox's defence before the Queen, when rebuked for speaking of her marriage in the pulpit, was: 'The Evangel, saith he, hath two points, repentance and faith; in preaching repentance, of necessity it is, that the sins of men may be noted, that they may know wherein they offend.' And in his dispute with Lethington, requiring where any of the prophets did so use Kings and rulers; he gave the example of Elias 'reproofing Ahab and Jezebel, that dogs shall lick the blood of Ahab, and eat the flesh of Jezebel; which was not whispered in their ears, but so as the people understood well enough, for so witnessed Jehu after the accomplishment.' Elisha reproofed Jehoram, saying, 'What have I to do with thee; if it were not for Jehosaphat, I would not have looked toward thee. Though a subject, yet he gave little reverence to the King.' These were their arguments for faithfulness then, which are now exploded with contempt. Their worship was also reformed from all dregs of popery, and fopperies of human ceremonies, retained in many other churches, especially in England; to whose bishops, in Queen Elizabeth's time, the Assembly wrote, 'That if surplice, corner cap, tippet, &c. have been the badges of idolaters in the very act of idolatry, what have preachers to do with the dregs of that

Romish beast? Yea, what is he that ought not to fear to take, either in his hand or forehead, the mark of that odious beast?—We think you should boldly oppose yourselves to all power, that will dare extol itself against God, and against all such as do burden the conscience of the faithful, further than God hath burdened them by his own word.' The discipline and government was from the beginning presbyterial, even before the establishment: both in practice, among the persecuted ministers, who kept their private meetings; and in their doctrine. This was one of Mr. Knox's articles he sustained at St. Andrew's, upon his first entry unto the ministry. *Art. 8.* There is no bishop, except he preach even by himself, without any substitute. But so soon as they attained any settlement, they assembled in their first national synod in the year 1560, by virtue of that intrinsic power granted by the Lord to his church; nor did they so much as petition for the indulgence of the then authority; but upon Christ's warrant, they kept and held their courts in the name of the Lord Jesus Christ only; and in his sole authority, by direction of his word and Spirit, concluded all their counsels, votes and acts. And as they knew nothing of an exotic supremacy, so they put out and held out prelacy, and kept a perfect parity; which was nothing infringed by the extraordinary employments and commissions delegated to some superintendants, upon the account of the particular exigence of these times.

II. Next we find in the practice of these renowned reformers, many demonstrations of pure zeal, worthy of all imitation; which I remark the rather, because poor sufferers that would now imitate it, are condemned as blind and ignorant zealots. But why are not the reformers condemned for the same things? We find in the first place, that they were so far from complying with, or conniving at, or countenancing public sins, that they could not contain themselves from declaring their detestation of the sight of them; yea the very boys did abominate them, as at the reformation, at St. Johnstoun, a boy cried with a bold voice, This is intolerable, that when God

by his word hath plainly condemned idolatry, we shall stand and see it used in despite. Whereupon he and others threw down all the monuments of idolatry in that place. But if now any should enterprise such a thing, when the idol of the mass is set up in every city, they might expect Jerubaal's censure of the Abiezrites; though it is true they might have the same encouragement, because they have the same command as he had, to wit, the perpetual precept of throwing down idolatrous altars. Next, they were so far from complying with the enemies, in keeping the peace with them, that they thought it a great sin not to oppose them, when their brethren were forced to take the sword of self-defence, being persuaded by these arguments: 'That by their fainting and abstracting their support, the enemies would be encouraged; and thereby they should declare themselves both traitors to the truth once professed, and murderers of their brethren, whom their presence and concurrence might preserve; and that if they should deny their brethren suffering for his name's sake, they should also deny Christ, and be denied of him; and that God hath punished subjects with their princes, for winking at, and not resisting their manifest iniquity; and therefore, as he is immutable in nature, so would he not pardon them in that which he hath punished in others,' &c. Which arguments prevailed with the noble Earl of Glencairn, in zeal to burst forth in these words:—'Albeit never man should accompany me, yet I will go to my brethren, and if it were but a pike upon my shoulder, I had rather die with that company, than live after them.' But now professors cannot only sit at home, in their shops and cieled houses, when the Lord's people are pursued and murdered in the fields, but also can hire their murderers, and strengthen their hands, by paying them cesses and localities, and what they require for help to do their work, and maintaining them in their iniquity. Which famous Mr. Knox disproveth very much in his day, arguing, 'That if people thought they were innocent, because they were not the actors of such iniquity, they were utterly deceived; for God doth not only punish the chief offenders, but the consenters to such iniquity; and all

are judged to consent, who give not testimony against it; as the rulers and bishops are criminal of all the innocent blood that is shed for the testimony of Christ's truth; so are all who assist and maintain them in their blind rage, and give no declaration, that their tyranny displeaseth them. This doctrine is strange to the blind world, but the verity of it hath been declared in all notable punishments from the beginning. When the old world was destroyed by water, Sodom and Jerusalem were destroyed, were all alike wicked? Yet all perished: why? All kept silence, or did not resist; by which all approved iniquity, and joined hands with the tyrants, as it had been in one battle against the Omnipotent.' Which words, if impartially applied, will condemn and confute the dull daubings of the present compliances, in maintaining tyrants and their emissaries, by emoluments which they require and exact, and that professedly, for promoting their accursed projects; and will justify conscientious sufferers, for refusing to pay these impositions. And this will the more appear, if we add some more of his pithy expressions in the same place, clearing the subject he is upon, and answering an objection, what poor people might do, when compelled to give obedience to all their rulers demanded? 'Ye may,' saith that author, without sedition, 'withhold the fruits and profits, which your false bishops and clergy most unjustly received of you: upon which he subjoins the preceeding arguments.' Yet now a-days these have no weight, but such as refuse either to pay oppressors exactions, or curates stipends, are condemned for giddy fools. Again we find, that when they were challenged for duty, they would never decline a declaration of its righteousness, nor do any thing directly or indirectly, which might seem a condemning of it. And therefore they would receive no pardons for these things which they could not confess to be offences. John Knox, challenged for offending the Queen, had her promise, that if he would confess an offence his greatest punishment should be, but to go within the castle of Edinburgh, and immediately to return to his own house; he refused absolutely. But now, if our pardon-mongers, and prudent

men had been so circumstantiate, surely they could have helped themselves with their distinctions, they might confess and be pardoned for offending the Queen, though not confess it to be a fault in their conscience: but Mr. Knox had not learned that then. When they were pursuing the murderer of King Henry of Darnly, the queen finding herself not strong enough, offers to forgive and pardon that insurrection: the Earl of Morton, in name of all the rest, did not only refuse a cessation, but told her they would not ask a pardon. But now sufferers, for refusing of these base and unmanly, as well as unchristian compliances, are much condemned. Finally, because this strictness, especially in their severity against their enemies, may be accused of Jewish rigidity, inconsistent with a gospel spirit of lenity, which also is imputed to the much condemned sufferers of Scotland at this time, for their testimonies against toleration and liberty of conscience: let us hear what Knox says, 'whatsoever God required of the civil magistrate in Israel or Judah, concerning the observation of true religion during the time of the law, the same doth he require of lawful magistrates, professing Christ Jesus, in the time of the gospel: and cites a large testimony out of Augustine to this purpose.' And afterward objecting to himself the practice of the apostles, who did not punish the idolatrous Gentiles; he answers, 'That the Gentiles, being never avowed to be God's people before, had never received his law, and therefore were not to be punished according to the rigour of it, to which they were never subject, being strangers from the common-wealth of Israel; but if any think, after the Gentiles were received in the number of Abraham's children, and so made one people with the Jews believing; then they were not bound to the same obedience of Israel's covenant, the same seems to make Christ inferior to Moses, and contrary to the law of his heavenly Father; for if the contempt and transgression of Moses' law was worthy of death, what judge we the contempt of Christ's ordinance to be? And if Christ be not come to dissolve, but to fulfil the law of his heavenly Father, shall the liberty of his gospel be an occasion that the special glory of

his Father be trodden under foot, and regarded of no man? God forbid: and therefore I fear not to affirm, that the Gentiles be bound by the same covenant that God made with his people Israel, in these words—"Beware that thou make not any covenant with the inhabitants of the land, but thou shalt destroy their altars," &c. When, therefore, the Lord putteth the sword in the hand of a people, they are no less bound to purge their cities and countries from idolatry, than were the Israelites, what time they received the possession of the land of Canaan.'

III. For the head of resistance of superior powers, we have no clearer instances in any period than in this, whereof the above-mentioned hints give some account, to which their sentiments and arguments may be here subjoined. They prized and improved this principle so much, that they put it in their Confession of Faith, Art. 14. To save the lives of innocents, to repress tyranny, to defend the oppressed, are among the good works of the second table, which are most pleasing and acceptable to God, as these works are commanded by himself; and to suffer innocent blood to be shed, if we may withstand it, is affirmed to be sin, by which God's hot displeasure is kindled against the proud and unthankful world. And if there were no more to render the late test of Scotland detestable, that condemns all resistance of kings upon any pretence whatsoever, this may make all Christians, and all men, abhor the contrivance of it; that that same test that confirms this thesis, doth also impose the antithesis upon conscience. It obliges to this confession in the first part of it, and to deny it in the latter. But no wonder, that men of feared consciences can receive any thing, though never so contradictory to itself, and that men who deny sense, and that principle radicated in human nature, may also deny conscience, and make a tool of it in soldering contradictories. But not only did our reformers assert this truth, for which now their children adhering to their testimony, suffer both rage and reproach; but also gave their reasons for it. As (1.) Mr. Knox, in his first conference with the Queen, argues thus, 'There is neither

greater honour nor obedience to be given to princes than parents; but so it is, that the father may be stricken with a phrensy, in the which he would slay his own children; now if the children arise, take his weapon from him, bind his hands, do the children any wrong? It is even so with princes, that would murder the children of God subject to them, their blind zeal is nothing but a very mad phrensy; and therefore to take the sword from them, and cast them into prison till they be brought to a more sober mind, is no disobedience against princes.' (2.) In his conference with Lethingtoun, he proves the same point, from the consideration of the justice of God, punishing the people for not resisting the prince. The scripture of God teacheth me (saith he) 'Jerusalem and Judah were punished for the sins of Manasseh; if you alledge they were punished, because they were wicked, and not because the king was wicked; the scripture says expressly, for the sins of Manasseh; yet will I not absolve the people, I will grant the whole people offended with their king, but how? To affirm that all Judah committed the acts of his impiety, hath no certainty; who can think, that all Jerusalem should turn idolaters immediately after Hezekiah's notable reformation? One part therefore willingly followed him in his idolatry, the other suffered him, and so were criminal of his sin; even as Scotland is guilty of the Queen's idolatry this day.' In the same discourse he makes it plain, that all are guilty of innocents murder who do not oppose it, from Jeremiah's words in his defence before the princes.—"Know ye for certain, if ye put me to death, ye shall surely bring innocent blood upon yourselves, and upon the city, and upon the inhabitants thereof:" Now, if the princes, and the whole people should have been guilty of the prophet's blood; how shall others be judged innocent before God, if they suffer the blood of innocents to be shed, when they may save it? (3.) *Ibid.* He argues from the distinction between the person placed in authority, and the ordinance of God, the one may be resisted, the other cannot. The plain words of the apostle makes the difference, 'The ordinance is of God, for

preservation of mankind, punishment of vice, which is holy and constant: persons commonly are profane and unjust: he that resisteth the power there, is only meant of the just power wherewith God hath armed his magistrates, which whoso resists, resists God's ordinance; but if men, in the fear of God, oppose themselves to the fury of princes, they then resist not God, but the devil, who abuses the sword and authority of God: it is evident the people resisted Saul, when he had sworn Jonathan should die, whom they delivered: the Spirit of God accuses them not of any crime, but praises them, and condemns the king: this same Saul again commanded the priests of the Lord to be slain, his guard would not obey, but Doeg put the king's cruelty in execution; I will not ask, whether the king's servants, not obeying, resisted the ordinance of God; or whether Doeg's murdering gave obedience to just authority? The Spirit of God condemns that fact, Psal. lii. that God would not only punish the commander, but also the merciless executor; therefore they who gainstood his command, resisted not the ordinance of God. (4.) *Ibid.* He argues from examples, not only of resisting, but of punishing tyrants; chiefly the example of Uzziah is pertinent to this purpose, 2 Chron. xxvi. who after his usurping the priest's office, was put out of the temple.' When it was replied, that they were the priests that withstood the king, not simple people: he answered, 'The priests were subjects, as Abiathar was deposed by Solomon, &c. yet they made him go out of the temple for his leprosy, and the people put him from the kingdom.' It is noted also, that Mr. Knox, in that discourse, adduces examples of those, who use to be brought in as objections against defensive arms, even the primitive Christians, before that passage last cited: 'what precepts,' says he, 'the apostle gave, I will not affirm; but I find two things the faithful did; the one was, they assisted their preachers even against the rulers; the other was, they suppressed idolatry wheresoever God gave unto them force, asking no leave of the emperor, nor of his deputies: read the Ecclesiastical histories, and ye shall find examples sufficient.'

IV. In the next place, we may enquire into the judgment of these reformers, concerning that question that is now so puzzling to many; which indeed was never started before this time, as a head of suffering; but now, when it is started, we may gather from our ancestors actings and determinations about it, how it ought to be answered. They were indeed in capacity, and accordingly did improve it, for disowning the authority of both the Queens; for their capacity was not the thing that made it duty, if it had not been so before. Capacity makes a thing possible, but not lawful: it does indeed make a duty seasonable, and clears the call to it, and regulates the timing of affirmative duties, but the want of it can never dispense with negative precepts: and a duty, negative especially, may become necessary, when it hath not the advantage of seasonableness or capacity; certainly it were duty to depose the Pope from his usurped authority, and to disown it even in Rome itself, but there it would not be thought very feasible or seasonable, for twenty or thirty people to avouch such a thing there; yet, at all times, it is a duty never to own it. It is thought unseasonable and unfeasible to disown the tyrants authority; but it is made necessary, when urged, never to own it. And for this we have the grounds of our ancestors, shewing who may be disowned, and must not be owned. I shall first insert here John Knox's propositions, prosecuted in his second blast, extant at the end of Anton. Gilbie's admonition to England and Scotland, 1. 'It is not birth only, nor propinquity of blood, that maketh a king lawfully to reign over a people professing Christ Jesus and his eternal verity; but, in his election, the ordinance which God hath established in the election of inferior judges, must be observed. 2. No manifest idolater, nor notorious transgressor of God's holy precepts, ought to be promoted to any public regimen, honour, or dignity, in any realm, province, or city, that hath subjected themselves to Christ Jesus, and his blessed evangel. 3. Neither can oath, or promise, bind any such people to obey and maintain tyrants, against God and his truth known. 4. But if rashly they have promoted any manifest wicked person, or

yet ignorantly have chosen such an one, as after declareth himself unworthy of regimen above the people of God, (and such be all idolaters and cruel persecutors) most justly may the same men depose and punish him, that unadvisedly before they did nominate, appoint and elect.' Accordingly this was done in deposing both the Queens; which is fully vindicated by the Earl of Morton, in his discourse to the Queen of England, as Buchanan relates it, book xx. page 746. 'The deed itself, neither the custom of our ancestors of taking a course with their governors, will suffer it to be accounted new, nor the moderation of the punishment to be odious; for it were not needful to recount so many kings punished by death, bonds, and exile by our progenitors. For the Scottish nation, being from the beginning always free, hath created kings upon these conditions, that the government entrusted to them by the people's suffrages, might be also (if the matter required) removed by the same suffrages: of which law there are many footsteps remaining even to our day; for both in the isles about, and in many places of the continent, in which the old language and institutions have any abode, this custom is kept, in creating their governors of clans: and the ceremonies, used at the entering into government, do yet retain the express representation of this law. Whence it is evident, that the government is nothing else but a mutual stipulation between kings and people: which further appears, from the inviolated tenor of the ancient law, since the beginning of the Scottish government, reserved even unto our memory, without the least essay either to abrogate it, or disable, or diminish it. Yea, even when our fathers have deposed, banished, and more severely punished so many kings, yet never was any mention or motion made of relaxing the rigour of that law, and not without reason, seeing it was not of that kind of constitutions, that change with the times, but of those which are engraven in the minds of men from the first original, and approved by the mutual consent of all nations, and by nature's sanction continued inviolable and perpetual, which, being subject to no other laws, do command and rule all.

This, which in every action doth offer itself to our eyes and minds, and whether we will or not, abides in our breasts, our predecessors followed; being always armed against violence, and ready to suppress tyrants.—And now for the present, what have we done, but insisting in the footsteps of so many kingdoms and free nations, suppressed tyrannical licentiousness, extolling itself above all order of laws, not indeed so severely as our predecessors in like cases; if we had imitated them, not only would we have been far from all fear of danger, but also have escaped the trouble of calumnies.—What would our adversaries be at? Is it that we should arm with authority tyrants convicted of grievous crimes, maintained by the spoils of the subjects, having hands embrued in loyal blood, and hearts gaping for the oppression of all good men? And shall we put them upon our head, who are infamously suspected of parricide, both projected and perpetrated?' To which we may add, a foreign conclusion indeed, but adduced and maintained by Mr. Craig, in the assembly, in the 1564, which had been determined by learned men in Bononia, 'All rulers, be they supreme or subordinate, may and ought to be reformed, or bridled (to speak moderately) by them, by whom they are chosen, confirmed, or admitted to their office; so oft as they break that promise made by oath to their subjects, because princes are no less bound by oath to their subjects, than are the subjects to their princes: and therefore ought it to be kept and performed equally, according to law and condition of the oath that is made of either party.' By comparing which two testimonies together, we may see the reasons, why neither of the two royal brothers, that have ruled in our day, could be conscientiously owned as magistrates, in the case they have been in for several years past: the first testimony is for the second brother, the latter is for the first that's gone. But, as for Mr. Knox's opinion, it is evident he had written a book against the government of women; which though he did not intend it particularly against Mary of Scotland, yet it did invalidate her authority as well as other women's. This book he owns and maintains, in

his first conference with her, and consequently could not own her authority as of the Lord, tho' he gave her common respect, as the title of majesty, &c. yet when he was particularly urged by the Queen's question, you think, said she, 'That I have no just authority;' he would not answer in the affirmative, but shifted it, by telling her, 'That learned men, in all ages, have had their judgment free, and most commonly disagreeing from the common judgment of the world. And though, he says, he could live under her government (so may, and would the greatest disowners of tyranny, if they be not troubled with questions about owning it) yet he affirms that with the testimony of a good conscience, he had communicated his judgment to the world, and that if the realm found no inconveniences in her government, he would no further disallow than within his own breast.' Certainly then, in his conscience, he did not, and could not own her, as the magistrate of God; and that though many things which before were holden stable, had been called in doubt, yet neither protestant nor papist could prove, that any such question was, at any time, moved in public or private. Neither could ever such a question be moved, if the conscience were not posed; and then, when it must speak, it must of necessity be unpleasant to tyrants. Thus we have heard both the positions and scruples of this witness; let us also hear his arguings, that people may punish princes for their idolatry and murder, &c. and therefore much more may disown them: and therefore again much more may they forbear to own them, when called; for can a dead man, by law, be owned to be a magistrate, and keeper of the law. 'Idolatry' (saith he in his conference with Lethington) 'ought not only to be suppressed, but the idolater ought to die the death; but by whom? By the people of God, for the commandment was given to Israel; yea, a command, that if it be heard that idolatry is committed in any one city, that then the whole body of the people arise and destroy that city, sparing neither man, woman, nor child. But shall the king also be punished? If he be an idolater, I find no privilege granted unto kings more than unto people, to offend God's majesty. But the people

may not be judges to their king.—God is the universal judge; so that what his word commands to be punished in the one, is not to be absolved in the other; and that the people, yea, or a part of the people, may not execute God's judgments against their king, being an offender; I am sure you have no other warrant, except your own imaginations, and the opinion of such as more fear to offend their princes than God.' In the same conference we have the instance of Jehu adduced to prove that subjects may execute God's judgments upon their princes. It was objected, Jehu was a king before he executed judgment upon Ahab's house, and the fact was extraordinary, and not to be imitated. He answered, He was a mere subject; 'No doubt Jezabel both thought and said he was a traitor, and so did many others in Israel and Samaria. And whereas it was said, that the fact was extraordinary; I say, it had the ground of God's ordinary judgment, which commandeth the idolater to die the death; and therefore I yet again affirm, it is to be imitated of all those that prefer the true honour of the true worship and glory of God, to the affection of flesh and wicked princes. We are not bound, said Lethington, to follow extraordinary examples, unless we have the like commandment and assurance. I grant, said the other, if the example repugn to the law, but where the example agrees with the law, and is, as it were, the execution of God's judgment expressed within the same; I say, that the example approved of God, stands to us in place of a commandment; for as God, in his nature, is constant and immutable, so cannot he condemn, in the ages subsequent, that which he hath approved in his servants before us.' Then he brings another argument from Amaziah who fled to Lachish, but the people sent thither and slew him there. Lethington doubted whether they did well or not: he answered, 'Where I find execution according to God's law, and God himself not accuse the doers, I dare not doubt of the equity of their cause: And it appears, God gave them sufficient evidence of his approving the fact, for he blessed them with peace and prosperity. But prosperity does not always prove that God approves the fact: yes, when the

acts of men agree with the law, and are rewarded according to the promise in that law, then the prosperity succeeding the fact is a most infallible assurance that God hath approved it; but so it is, that there is a promise of lengthening out prosperity to them that destroy idolatry. And again, concluding Uzziah's example, he says there, the people ought to execute God's law, even against their princes, when that their open crimes, by God's law, deserve punishment; especially when they are such as may infect the rest of the multitude.'

V. There is another thing for which people have suffered much in our day of blasphemy, rebuke and trouble, which yet we find was not so odious in our reformers eyes as this dull and degenerate age would represent it. That in some cases it is lawful and laudable for private persons, touched with the zeal of God, and love to their country, and respect to justice trampled upon by tyrants; to put forth their hand to execute righteous judgment upon the enemies of God and mankind, intolerable traitors, murderers, idolaters; when the ruin of the country, destruction of religion and liberty, and the wrath of God is threatened, in and for the impunity of that vermin of villains, and may be averted by their destruction, always supposed, that these, whose office it is to do it, decline their duty. The mind of our reformers as to this is manifest, both in their practice and opinion. We heard before of the slaughter of Cardinal Beaton, and of the fiddler Rizzio: we shall find both commended by Mr. Knox, giving account how these that were carried captives to France for this cause from St. Andrew's were delivered. 'This (saith he), we write, to let the posterity to come to understand, how potently God wrought in preserving and delivering of those that had but a small knowledge of his truth, and for the love of the same hazarded all; that if we, in our days, or our posterity that shall follow, shall see a dispersion of such as oppose themselves to impiety, or take upon them to punish the same otherwise than laws of men will permit, if such shall be left of men, yea as it were despised and punished of God: yet let us

not damn the persons that punish vice, (and that for just cause,) nor yet despair, but that the same God that dejects will raise up again the persons dejected, to his glory and their comfort; and to let the world understand in plain terms what we mean; that great abuser of this commonwealth, that poultron and vile knave Davie was justly punished, March 9, 1565, by the counsel and hands of James Douglas, Earl of Morton, Patrick Lord Lindsay, &c. who, for their just act, and most worthy of all praise, are now unworthily left of all their brethren.' This is not only commended by the author alone, but we find it concluded by all the brethren at that time, when the Queen brought in the idol of the mass again, and the proud papists began to avow it: Then let it be marked that, 'The brethren universally offended, and espying that the Queen by proclamation did but delude them, determined to put to their own hands, and to punish for example of others; and so some priests in the West land were apprehended, intimation was made to others, as to the abbot of Cosragnel, the parson of Sanquhar, and such, that they should neither complain to the Queen nor council, but should execute the punishment that God has appointed to idolaters in his law, by such means as they might, wherever they should be apprehended.' Upon this the Queen sent for Mr. Knox, and dealt with him earnestly, that he would be the instrument to persuade the people not to put hand to punish. He perceiving her craft, willed her Majesty to punish malefactors according to law, and he durst promise quietness, upon the part of all them that professed Christ within Scotland: but if her Majesty thought to delude the laws, he feared some would let the papists understand, that without punishment they should not be suffered so manifestly to offend God's majesty. Will ye (quoth she) allow they shall take my sword in their hand? 'The sword of justice (said he) Madam, is God's, and is given to princes and rulers for one end; which, if they transgress, sparing the wicked, and oppressing the innocents, they that in the fear of God execute judgment, where God hath commanded, offend not God, although kings do it not: the

examples are evident, for Samuel spared not to slay Agag the fat and delicate king of Amalek, whom king Saul had saved; neither spared Elias Jezabel's false prophets, and Baal's priests, albeit that king Ahab was present; Phineas was no magistrate, and yet feared he not to strike Zimri and Cozbi in the very act of filthy fornication; and so, Madam, your Majesty may see that others than magistrates may lawfully punish, and have punished the vice and crimes that God commands to be punished.' He proved it also at more length in his appellation, from Deut. xiii. "If thy brother solicit thee secretly, saying, Let us go serve other gods, consent not to him, let not thine eye spare him, but kill him; let thy hand be first upon him, and afterward the hand of the whole people." Of these words of Moses, two things appertaining to our purpose are to be noted: 'The first is, that such as solicitate only to idolatry ought to be punished to death, without favour or respect of person; for he that will not suffer man to spare his son, wife, &c. will not wink at the idolatry of others, of what state or condition soever they be: it is not unknown that the prophets had revelations of God, which were not common to the people; now, if any man might have claimed any privilege from the rigour of the law, or might have justified his fact, it should have been the prophet, but God commands, that the prophet that shall so solicitate the people to serve strange gods, shall die the death, notwithstanding that he alledge for himself, dream, vision, or revelation, because he teacheth apostacy from God: hereby it may be seen, that none, provoking the people to idolatry, ought to be exempted from the punishment of death. Evident it is, that no state, condition, nor honour can exempt the idolater from the hands of God, when he shall call him to an account: how shall it then excuse the people, that they according to God's command, punish not to death such as shall solicitate or violently draw the people to idolatry? The second is, that the punishment of such crimes, as idolatry, blasphemy, and others that touch the majesty of God, doth not appertain to kings and chief rulers only, but also to the whole body of the

people, and to every member of the same, according to the vocation of every man, and according that possibility and occasion which God doth minister, to revenge the injury done against his glory: and that doth Moses more plainly speak in these words of the same chapter, "If in any city which the Lord thy God giveth thee, thou shalt hear this brute, there are some men sons of Belial."—Plain it is, that Moses speaks not nor giveth charge to kings, rulers, and judges only; but he commands the whole body of the people, yea and every member of the same, according to their possibility. And who dare be so impudent as to deny this to be most reasonable and just? For seeing God had delivered the whole body from bondage, and to the whole multitude had given his law, and to the twelve tribes had distributed the land of Canaan: was not the whole and every member addebt to confess the benefits of God, and to study to keep the possession received? which they could not do, except they kept the religion established, and put out iniquity from amongst them. To the carnal man this may seem to be a rigorous and severe judgment, that even the infants there should be appointed to the cruel death; and as concerning the city and spoil of the same, man's reason cannot think but that it might have been better bestowed, than to be consumed. But in such cases, let all creatures stoop, and desist from reasoning, when commandment is given to execute his judgment. I will search no other reasons than the Holy Ghost hath assigned; first, That all Israel should fear to commit the like abomination; and, secondly, That the Lord might turn from the fury of his anger: which plainly doth signify, that, by the defection and idolatry of a few, God's wrath is kindled against the whole, which is never quenched, till such punishment be taken upon the offenders, that whatsoever served them in their idolatry be brought to destruction,' &c. I have enlarged so far upon this period, that it may appear, there is nothing now in controversy, between the suffering and reproached party now in Scotland, and either their friends or enemies, which could fall under our reformers inquiry; but they have declared

themselves of the same sentiments that are now so much opposed; and therefore none can condemn the present heads of suffering, except also they condemn the reformers judgment; and consequently the imputation of novelty must fall.

PERIOD IV.

Containing the Testimony of the first Contenders against Prelacy and Supremacy, from the Year 1570, to 1638.

Hitherto the conflict was for the concerns of Christ's prophetic and priestly office, against paganism and popery. But from the year 1570, and downward, the testimony is stated, and gradually prosecuted for the rights, privileges and prerogatives of Christ's kingly office; which hath been the peculiar glory of the church of Scotland, above all the churches in the earth, that this hath been given to her as the word of her testimony; and not only consequentially and reductively, as all other churches may challenge a part of this dignity, but formally and explicitly to contend for this very head, the headship and kingship of Jesus Christ, the prince of the kings of the earth, and his mediatory supremacy over his own kingdom of grace, both visible and invisible. This is Christ's supremacy, a special radiant jewel of his imperial crown, which as it hath been as explicitly encroached upon in Scotland, by his insolent enemies, as ever by any that entered in opposition to him, so it hath been more expressly witnessed and wrestled for by his suffering servants in that land than in any place of the world. This was in a particular manner the testimony of that period, during the reign of King James the 6th; as it hath been in a great measure in our day, since the year 1660. Which, as it is the most important cause, of the greatest consequence that mortals can contend for; so it hath this peculiar glory in it, that it is not only for the truth of Christ, of greater value than the standing of heaven and

earth, but also it is the very truth for which Christ himself died, considered as a martyr; and which concerns him to vindicate and maintain as a monarch. The witnesses of that day made such an high account of it, that they encouraged one another to suffer for it, as the greatest concern; 'being a witness for Christ's glorious and free monarchy, which, as it is the end of the other two offices, so the testimony is more glorious to God, more honourable to his Son, and more comfortable to them, than the testimony either for his prophetic office, or for his priesthood, because his kingdom was especially impugned at the time;' as Mr. Forbes and Mr. Welch wrote in a letter to the Ministers at court. The corruptions and usurpations wronging this truth, that they contended against, were prelacy and the King's supremacy in ecclesiastical matters; which will be useful to hint a little, how they prosecuted the conflict. When Satan (whose kingdom was then declining) by several instruments and means, both by force and fraud, did endeavour to put a stop to the reformation, by reintroducing the antichristian hierarchy of prelacy, when he could not re-establish the antichristian doctrine of popery; he left no means unessayed to effectuate it. And first he began to bring the name Bishop in request, that was now growing obsolete and odious, by reason of the abuse of it (as it ought to be still, for though the name be found in the scriptures, yet neither is that catechetical application of it to prelates to be found, nor was there any other reason for the translation of it after that manner, except it were to please princes; seeing the native signification of it is an overseer, proper and common to all faithful pastors.) And indeed his first essay reached little further than the bare name, for they were to be rejected to, and tried by assemblies, and hardly had so much power as superintendants before. But it was a fine court juggle for noblemen to get the church-revenues into their hands, by restoring the ecclesiastical titles, and obtaining from the titulars either temporal lands, or pensions to their dependers; so they were only Tulchan bishops, *a calf-skin to cause the cow give milk*. Yet, though this in

our day would have been thought tolerable, the faithful servants of Christ did zealously oppose it. Mr. Knox denounced Anathema to the giver, and Anathema to the receiver. And the following Assembly condemned the office itself, 'as having no sure warrant, authority, nor ground in the book of God, but brought in by the folly and corruption of men's invention, to the overthrow of the church; and ordained all that brooked the office, to demit simpliciter, and to desist and cease from preaching, while they received *de novo* admission from the General Assembly, under the pain of excommunication.' Hereby they were awakened and animated to a more vigorous prosecution of the establishment of the house of God in its due government. In pursuance whereof, the Assemblies from that time, until the year 1581, did with much painfulness and faithfulness attend the work: until, by perfecting of the second book of discipline, they completed their work, in the exact model of Presbyterian Government, in all its courts and officers; which was confirmed and covenanted to be kept inviolate, in the National Covenant, subscribed that year by the King, his Court and Council; and afterwards by all ranks of people in the land. Whence it may be doubted, whether the impudence of the succeeding prelates, that denied this, or their perjury in breaking of it, be greater. This was but the first brush. A brisker assault follows; wherein, for the better establishment of prelacy, that what it wants of divine right, might be supplied by the accession of human prerogative, and not only Diocesan, but also Erastian prelacy might be set up, to destroy Christ's kingdom, and advance Satan's; the Earl of Arran, and his wicked accomplices move the King, contrary both to the word and oath of God, to usurp the prerogative of Jesus Christ, and assume to himself a blasphemous monster of supremacy, over all persons, and in all causes, as well ecclesiastical as civil. But this also the faithful servants of God did worthily and valiantly resist; and at the very appearance of it, gave in a grievance to the King in the year 1582, 'That he had taken upon him a spiritual power, which properly belongs to Christ, as only king

and head of the church; the ministry and execution whereof is only given to such as bear office in the ecclesiastical government in the same: so that in the King's person, some men press to erect a new popedom, as though he could not be full king of this commonwealth, unless as well the spiritual as temporal sword be put in his hand, unless Christ be reft of his authority, and the two jurisdictions confounded, which God hath divided, which directly tendeth to the wreck of all true religion.' Which being presented by the Commissioners of the General Assembly, the Earl of Arran asked with a frowning countenance, who dare subscribe these treasonable articles? Mr. Andrew Melvin answered, we dare, and will subscribe, and render our lives in the cause. And afterward, that same Assembly presented articles, shewing, 'That seeing the spiritual jurisdiction of the church is granted by Christ, and given only to them, that by preaching, teaching, and overseeing, bear office within the same, to be exercised, not by the injunctions of men, but by the only rule of God's word.—Hereafter, no other, of whatsoever degree, or under whatsoever pretence, have any colour to ascribe, or to take upon them any part thereof either in placing or displacing of ministers, without the church's admission, or in stopping the mouths of preachers, or putting them to silence, or take upon them the judgment of trial of doctrine,' &c. But in contempt and contradiction to this, and to prosecute and exert this new usurped power, Mr. Andrew Melvin was summoned before the Secret Council, for a sermon of his, applying his doctrine to the time's corruptions; whereupon he gave in his declinature against them, as incompetent judges, and told them, 'They were too bold, in a constitute Christian church, to pass by the pastors, prophets, and doctors, and to take upon them to judge the doctrine, and to controul the ambassadors of a greater than was there, which they neither ought nor can do. There are (saith he, loosing a little Hebrew bible from his girdle) my instructions and warrant: see if any of you can controul me, that I have past my injunctions.' For this he was decerned to be warded in the castle of Edinburgh; but he

being informed that if he entered in ward, he would not be released, unless it were for the scaffold, he conveyed himself secretly out of the country. Hereafter when the parliament 1584 had enacted this supremacy, and submission to prelacy, to be subscribed by all ministers; the faithful first directed Mr. David Lindsay to the King, desiring, that nothing be done in parliament prejudicial to the church's liberty, who got the prison of Blackness for his pains. And then when they could not get access for shut doors to protest before the parliament; yet when the acts were proclaimed at the cross of Edinburgh, they took public documents in name of the church of Scotland (though they were but two) that they protested against the said acts, and fled to England, leaving behind them reasons that moved them to do so. And Mr. James Melvin wrote against the subscribers at that time very pertinently; proving first, 'That they had not only set up a new pope, and so become traitors to Christ; and condescended to that chief error of papistry, whereupon all the rest depend; but further, in so doing, they had granted more to the King, than ever the popes of Rome peaceably obtained,' &c. And in the end, as for those that lamented their own weakness and feebleness, he adviseth them, to remove the public slander, 'by going boldly to the King and Lords, and shew them how they had fallen through weakness, but by God's power are risen again; and there by public note and witness taken, free themselves from that subscription, and to will the same to be delete, renouncing and detesting it plainly, and thereafter publicly in their sermons; and by their declaration and retractation in writ, presented to the faithful, manifest the same, let them do with stipend, benefice, and life itself, what they list.' This I inferr, because this counsel is now condemned; and when poor people, offended with ministers subscriptions of bonds and other compliances, desire acknowledgments of the offence, they reject it as an impertinent imposition, and plead they are not obliged to manifest any retractation but to an ecclesiastical judicatory. To which I shall say nothing here, but this is no novelty. After this, it is known what bickerings the

faithful witnesses of Christ had, in their conflicts with this supremacy upon the account of Mr. David Black's declinature, which they both advised him to, and approved when he gave it in, against the King and Council, as judges of his doctrine. And the Commissioners of the General Assembly ordained all, to deal mightily with the power of the word, against the Council's encroachments; for which they were charged to depart forth of Edinburgh. After which he added a second declinature: 'Declaring, there are two jurisdictions in this realm; the one spiritual, the other civil; the one respecting the conscience, the other externals, &c.—Therefore, in so far as he was one of the spiritual office-bearers, and had discharged his spiritual calling in some measure of grace and sincerity, should not, nor could not be lawfully judged for preaching and applying the word, by any civil power; he being an ambassador and messenger of the Lord Jesus, having his commission from the King of kings, and all his instructions set down and limited in the book of God, that cannot be extended, abridged, or altered by any mortal wight, king or emperor; and seeing he was sent to all sorts, his commission and discharge of it should not, nor cannot be lawfully judged by them to whom he was sent; they being sheep, and not pastors, to be judged by the word, and not to be judges thereof in a judicial way.' The interlocutor being past against him for this, the brethren thought it duty, that the doctrine of the preacher should be directed against the said interlocutor, as against a strong and mighty hold set up against the Lord Jesus, and the freedom of the gospel; and praised God for the force and unity of the spirit that was among themselves. And being charged to depart out of the town, they leave a faithful declaration at large, shewing how the liberties of the church were invaded and robbed. But all this was nothing, in comparison of their wrestlings for the royalties of their princely Master, and privileges of his kingdom, against the tyrant's insolences, after he obtained the crown of England; for then he would not suffer the church to indict her own Assemblies. And when the faithful thought themselves obliged to

counteract his encroachments, and therefore convened in an Assembly at Aberdeen in the year 1605, they were forced to dissolve, and thereafter, the most eminent of the ministers there assembled were transported prisoners to Blackness; whence being cited before the Council, they decline their judicatory. And one of their brethren, Mr. Robert Youngson, who had formerly succumbed, being moved in conscience, returned; and when the rest were standing before the Council, desired to be heard, and acknowledged his fault; and therefore, howbeit not summoned by the Lords, was charged by the living God, and compelled to compear that day, to justify that Assembly, to the great astonishment of the Lords, and comfort of his brethren; he subscribed the declinature with the rest; and for this they were arraigned, and condemned, as guilty of treason, and banished. Before the execution of which sentence, Mr. Welch wrote to the Lady Fleming, to this effect: 'What am I, that he should first have called me, and then constituted me a minister of glad tidings of the gospel of salvation, these fifteen years already, and now last of all to be a sufferer of his cause and kingdom? To witness that good confession, that Jesus Christ is the King of saints, and that his church is a most free kingdom; yea, as free as any kingdom under heaven, not only to convocate, hold and keep her meetings, conventions and assemblies; but also to judge of all her affairs in all her meetings and conventions among his subjects. These two points, (1.) That Christ is the head of his church. (2.) That she is free in her government from all other jurisdiction except Christ's, are the special cause of our imprisonment, being now convict as traitors, for maintaining thereof. We have now been waiting with joyfulness to give the last testimony of our blood in confirmation thereof, if it would please our God to be so favourable, as to honour us with that dignity.' After this, the King resolving by parliament to advance the state of bishops again, as in the time of popery, without cautions as before; and further, to establish not only that Antichristian Hierarchy, but an Erastian supremacy: the faithful ministers of

Christ thought themselves bound in conscience to protest; and accordingly they offered protestation to the parliament July——1606, obtesting, 'That they would reserve into the Lord's own hands, that glory which he will communicate neither to man nor angel, to wit, to prescribe from his holy mountain a lively pattern, according to which his own tabernacle should be formed: remembring always, that there is no absolute and undoubted authority in this world, except the sovereign authority of Christ the King; to whom it belongeth as properly to rule the church, according to the good pleasure of his own will, as it belongeth to him to save his church by the merit of his own sufferings: all other authority is so entrenched within the marches of divine command, that the least overpassing of the bounds, set by God himself, brings men under the fearful expectation of temporal and eternal judgment.—If ye should authorize bishops, ye should bring into the church the ordinance of man, which experience hath found to have been the ground of that Antichristian Hierarchy, which mounted up on steps of bishops pre-eminence, until that man of sin came forth, as the ripe fruit of man's wisdom, whom God shall consume with the breath of his own mouth. Let the sword of God pierce that belly, which brought forth such a monster; and let the staff of God crush that egg, which hath hatched such a cockatrice: and let not only that Roman Antichrist be thrown down from the high bench of his usurped authority, but also let all the steps, whereby he mounted up to that unlawful pre-eminence, be cut down and utterly abolished in this land: and beware to strive against God with an open displayed banner, by building up again the walls of Jericho, which the Lord hath not only cast down, but also hath laid them under an horrible interdiction and execration; so that the building of them again must needs stand to greater charges to the builders, than the re-edifying of Jericho, to Hiel the Bethelite in the days of Ahab.' Yet notwithstanding of all opposition, prelacy was again restored in parliament. And to bring all to a compliance with the same, presbyteries and synods universally charged,

under highest pains, to admit a constant moderator without change; which many refused resolutely, as being the first step of prelacy. Upon this followed a great persecution of the faithful, for their non-conformity, managed by that mongrel and monstrous kind of court, made up of clergymen and statesmen, called the high commission court, erected in the year 1610, whereby many honest men were put violently from their charges and habitations; the generality were involved in a great and fearful defection. But the cope-stone of the wickedness of that period, was the ratification of the five articles of Perth, 'kneeling at the communion; private communion to be given to the sick, private baptism: and confirmation of children by the bishop; and observation of festival days:' which were much opposed and testified against by the faithful, from their first hatching in the year 1618, to the year 1621, when they were ratified in parliament; at what time they were also witnessed against from heaven; by extraordinary lightnings and tempests. And against this the testimony of the faithful continued, till the revolution in the year 1638. Here we see how the cause was stated in this period; and may gather also wherein it agrees; and how far it differs from the present testimony, now suffered for under all rage and reproach.

I. The matter of the testimony was one with that we are suffering for, against popery, prelacy and supremacy; except that it was not so far extended against tyranny, because that tyrant was not such an usurper, nor such a violator of the fundamental constitutions of the civil government, as these that we have had to do withal. But as to the managing the testimony; they far outstripped their successors in this generation, in conduct and courage, prudence and zeal, as is above hinted in many instances; to which we may add some more. When several plots of papist lords had been discovered, conspiring with the king of Spain, and they were by the king's indulgence favoured, and some were also persuaded to treat with them, famous Mr. Davidson opposed with great resolution; declaring before the

synod of Lothian, 'That it savoured much of defection in these days, that such notorious rebels to God, his church, and the country, should be so treated with; we should not rashly open a door to God's enemies, without better proof of their manners nor were yet seen.' And when a convention in Falkland was consulting to call home these conspiring traitors, Mr. Andrew Melvin went thither uncalled; and when found fault with by the king for his boldness, he answered, 'Sir, I have a call to come here from Christ and his church, who have special interest in this turn, and against whom this convention is assembled directly; I charge you, and your estates, in the name of Christ and his church, that ye favour not his enemies whom he hateth, nor go about to call home, nor make citizens of these, who have traiterously fought to betray their city and native country, with the overthrow of Christ's kingdom.' And further challenged them of treason against Christ, his church and the country, in that purpose they were about. About the same time, in a private conference with the king, he calls the king God's silly vassal; and taking him by the sleeve, told him, 'Sir, you, and church and country is like to be wrecked for not telling the truth, and giving you faithful counsel; we must discharge our duty, or else be enemies to Christ and you: therefore I must tell you, there are two kings and two kingdoms; there is Christ and his kingdom, whose subject king James VI. is, and of whole kindom he is not a king, nor a head, nor a lord, but a member; and they whom Christ hath called to watch over and govern his church, have sufficient authority and power from him, which no Christian king should controul, but assist, otherwise they are not faithful subjects to Christ. Sir, when you were in your swaddling clouts, Christ reigned freely in this land, in spite of all his enemies; but now the wisdom of your council, which is devilish and pernicious, is this, that you may be served of all sorts of men to your purpose and grandeur, Jew and Gentile, Papist and Protestant, because the ministers and Protestants in Scotland are too strong, and controul the king, they must be weakened and brought low, by stirring

up a party against them; and the king being equal and indifferent, both shall be fain to flee to him, so shall he be well settled: but, Sir, let God's wisdom be the only wisdom, this will prove mere and mad folly; for his curse cannot but light upon it; so that in seeking both, you shall lose both.' To the like effect Mr. Robert Bruce, in a sermon upon Psal. li. gives faithful warning of the danger of the times. 'It is not we (says he) that are party in this cause; no, the quarrel is betwixt a greater prince and them. What are we but silly men: Yet it has pleased him to let us in this office, that we should oppose to the manifest usurpation that is made upon his spiritual kingdom. Is there a more forcible mean to draw down the wrath of God, than to let Barabbas that nobilitate malefactor pass free, and to begin the war against Christ and his ministry. It putteth on the cope-stone, that so many of our brethren should not be so faithful, as their calling and this cause craveth. Fy upon false brethren, to see them dumb, so faint-hearted, when it comes to the shock; not only are they ashamed to speak the thing they think, which is a shame in a pastor, but speak directly against their former doctrine. They will speak the truth a while, till they be put at, but incontinent they will turn, and make their gifts weapons to fight against Christ; for there is none so malicious as an apostate, when he begins to slide back,' &c. The same faithful witness, because he would not preach as the king would have him, against his own conscience, to justify and proclaim the king's innocency, in a forged conspiracy against him, was put from his church in Edinburgh; and being requested in an insinuating manner to desist from preaching but for nine or ten days; he condescended at first, thinking the matter of no great importance; yet that night his body was cast in a fever, with the terror of his conscience, and he promised he should never obey their commandments any more. These were faithful men, yet we find they challenge themselves, in deep humiliation, for their short-comings and defections. At the renovation of the national covenant March 30th, 1596, was the greatest solemnity ever had been seen in Scotland before that time; so that the place

might worthily have been called Bochim. O when shall we see such a day, when even the most faithful among us, shall mourn over our far more aggravated defections! but if they mourned then for these first degrees of declensions; we may say, 'How heavily would these valiant men groan, who formerly contended so stoutly for the liberty of the church of Scotland, if they beheld this our laziness (that I may call it by no worse name!') I know notwithstanding of all this, that some encourage themselves in a base compliance with the present corruptions of our church, from the practice of these worthies; alledging, they did not scruple to hear and join with prelatical men, dispensing the ordinances. But this objection will be easily refelled, if we consider, first, the period wherein they were but growing up to a more perfect reformation, and therefore might bear with many things which we cannot, after we have been reformed from them: they were then advancing, and still gaining ground, we are now declining, and therefore should be more shy to lose what we have gained. They had then of a long time enjoyed their judicatories, unto which they might recur for an orderly redress of such grievances that offended them; and when they were deprived of them, yet they were still in hopes of recovering them; and so suspended their total secession from that corrupt church, until they should recover them; in the mean time still holding their right, and maintaining their cause against these invaders. But we were, at the very first beginning of this unhappy revolution, totally deprived of our judicatories, and denuded of all expectation of them in an ordinary way, and of all place, but what they are masters of to contend with them that way; therefore must keep ourselves free of their communion. But next, if we consider their practice, we shall find these worthies were not such conformists, as our compliers would make them. What if we find among them meetings, that were called and counted as seditious and schismatic as ours are now? We find a field meeting, yea, a General Assembly at Dumfermline, without and against the king's warrant, when the ports were shut against them, in the

year 1585. But that is not so pat to the purpose, as that we find private meetings at Edinburgh, and that in the very time of public service in the churches, discharged by open proclamation in 1624, wherein it is charged, that they had no respect to the ordinary pastors, contemned and impugned their doctrine, disobeyed and controuled their discipline, abstained to hear the word preached, and to participate of the sacraments. And long before that, we find the sincerer sort scrupled to hear Bishop Adamson, notwithstanding that he was absolved in the Assembly. And that afterwards, the doubt being proponed to the Assembly, if it be a slander to a Christian to absent himself from the sermons of them that are suspended from all function in the ministry? The Assembly answered, there is no slander in the case, but rather it is slanderous to resort. And why is not this ground to think it slanderous, or scandalous to resort to them, who deserve to be suspended (all of them by a spiritual cognizance, and some of them to be suspended corporally for their villany) when there can be no access orderly to do it. And the rather, because we find in this period, that sometimes ministers were so faithful and zealous against the corruptions of the ministry, that they decerned ministers to be suspended for far smaller faults, than many now could exempt themselves from, viz. if they were not powerful and spiritual; if they did not apply their doctrine to corruptions; if they were obscure and too scholastic before the people; cold and wanting zeal, flatterers, dissembling at public sins for flattery or fear, &c. As we may read in the advice of the brethren, deputed for penning the corruptions in the ministry, in 1596. I wish our silent prudent ministers now would consider the justness of this censure, and what ground people have to be offended at such censurableness. But not only this may answer the false imputation of conformity on these witnesses of Christ at that time; but I shall set down a part of a letter of one of the banished ministers at that time, discovering his mind about hearing these men, that were then serving the times. Mr. John Welch, writing to Mr. Robert Bruce,—'What my mind is

concerning the root of these branches, the bearer will shew you more fully. They are no more to be counted orthodox, but apostates; they have fallen from their callings, by receiving an antichristian, and bringing in of idolatry, to make the kingdom culpable, and to expose it to fearful judgments, for such an high perfidy against an oath so solemnly enacted and given; and are no more to be counted Christians, but strangers, apostates, and persecutors; and therefore, not to be heard any more, either in public, or in consistories, colleges, or synods; for what fellowship hath light with darkness?' We see then as to that part of the testimony, they were not dissonant to the witness of the present reproached sufferers.

II. As the matter and manner of their testimony against all the invaders of the church's privileges, did speak forth a great deal of sincere and pure zeal; so their practice was conform, shewing forth a great deal of strictness and averseness from all sinful compliances, even with things that would be now accounted of very minute and inconsiderable consequence, and for which honest sufferers now are flouted at as fools. When that oath was formed for acknowledging the supremacy, there was a clause added which might have been thought to salve the matter, "according to the word of God." I fear many now would not stand to subscribe with such a qualification. Yet the faithful then perceived the sophistry, that it made it rather worse, affirming that that brat of hell was according to the word of God: and therefore, though there were several eminent men to persuade them to it, both by advice and example, yet they could not, in conscience, comply; and pleaded also from the illegality of that imposition, that they should be charged with the subscription of laws, a thing never required before of any subject; if they offended against the laws, why might they not be punished according to the laws? When many honest faithful patriots, for the attempt at Ruthven to deliver the country from a vermin of villains that abused the King, to the destruction of the church and kingdom, were charged to crave pardon, and take remission; they would do neither, judging it a base condemning duty,

which puts a brand upon our sneaking supplicators and petitioners, and pardon mongers, as unworthy to be called the race of such worthies, who scorned such baseness; and choosed rather to endure the extremity of their unjust sentences of intercommuning and banishment, &c. And when the Earl of Gowrie accepted of a remission, he afterwards condemned himself for it, and desired that his old friends would accept of his friendship, to whom he had the same favour offered to him, refused altogether, lest so doing he should condemn himself, and approve the courts proceedings: and the brethren, conferring with the counsellors, craving that some penalty should be condescended unto for satisfying his majesty in his honour, would not condescend to any, how light soever; lest thereby they should seem to approve the judicatory and their proceeding. The imprisoned ministers, for declining the counsel, had it in their offer, that if they would, without any confession of offence, only submit themselves to his majesty, "for scandal received, not given," they should be restored to their places: but it pleased God so to strengthen them, that they stopped their mouths, and convinced them in their consciences, that they could not do it without betraying of the cause of Christ. Again, in another case, we have instances of such strictness, as is much scorned now a-days. The ministers of Edinburgh were committed to ward, for refusing to pray for the queen, before her execution in Fotheringham castle 1586. They refused not simply to pray for her, but for the preservation of her life, as if she had been innocent of the crimes laid to her charge, which had imported a condemnation of the proceedings against her. Afterwards, in the year 1600. The ministers of Edinburgh would not praise God for the delivery of the king from a pretended conspiracy of the Earl of Gowrie at that time, of which they had no credit nor assurance; and would not crave pardon for it neither. For this Mr. Robert Bruce was deprived of the exercise of his ministry, and never obtained it again in Edinburgh: but now, for refusing such compelled and imposed devotion, to pray or praise for the king, poor

people are much condemned. I know it is alledged, that these faithful sufferers in those days, were not so strict as they are now, in submitting to unjust sentences, and obeying and keeping their confinements. I shall grant, there was much of this, and much might be tolerate in their circumstances, when the court's procedure against them was not so illegal, their authority was not so tyrannical, nor so necessary to be disowned, and they were so stated, that they were afraid to take guilt upon them, in making their escapes; whereas it is not so with us. Yet we find very faithful men broke their confinements; as Mr. John Murray, confined at Dumfries, perceiving there was no end of the bishop's malice, and that he would be in no worse case than he was, he resolved without licence, either of king or council, to transport himself: so did also Mr. Robert Bruce.

III. For resistance of superior powers, we have in this period, first the practice of some noblemen at Ruthven, in the [year] 1582. who took the King, and seized on that arrant traitor, enemy to the church and country the Earl of Arran; declaring to the world the causes of it, the King's correspondence with papists, his usurping the supremacy over the church, and oppressing the ministers, all by means of his wicked counsellors, whom therefore they removed from him. The King himself emitted a declaration allowing this deed. The General Assembly approved of it, and persuaded to a concurrence with it, and nothing was wanting to ratify it, as a most lawful and laudable action. At length the fox escapes, and changes all, and retracts his former declaration. The lords again rally, and interprise the taking of the castle of Stirling, and gain it; but afterward surrender it: after which the Earl of Gowrie was executed, and ministers are commanded to retract the approbation of Ruthven business, but they refused; and many were forced to flee to England, and the lords were banished. But, in the year 1585, they return with more success, and take the castle of Stirling. The cowardly king does again acknowledge and justify their enterprise, 'that they needed no apology of words, weapons had spoken well enough, and gotten them

audience to clear their own cause:' but his after carriage declared him as crafty and false, as he was cowardly and fearful. Again, we have the advice of the General Assembly, for resisting, when the ministers were troubled upon Mr. Black's business, and there was an intention to pull them out of their pulpits; they advised them to stand to the discharge of their calling, if their flocks would save them from violence, and yet this violence was expected from the King and his emissaries. As to that point then there can be no dispute.

IV. There was little occasion for the question about the King's authority in this period, but generally all acknowledged it; because they were not sensible of his usurpation, and his cowardice made him incapable of attempting any thing that might raise commotions in civil things. Yet we remark, that whatsoever authority he usurped beyond his sphere, that was disowned and declined by all the faithful, as the supremacy. Next that they resented, and represented very harshly, any aspiring to absoluteness; as Mr. Andrew Melvin could give it no better name, nor entertain no better notion of it, than to term it, the bloody gully, as he inveighs against it in the Assembly 1582. And next, in this same period, we have a very good description of that authority, which the King himself allows not to be owned, which out of a King's mouth abundantly justifies the disowning of the present tyranny: this same King James, in a speech to the parliament, in the year 1609, saith, 'A king degenerateth into a tyrant, when he leaveth to rule by law, much more when he beginneth to invade his subjects persons, rights and liberties, to set up an arbitrary power, impose unlawful taxes, raise forces, make war upon his subjects, to pillage, plunder, waste, and spoil his kingdoms.'

PERIOD V.

Containing the Testimony for the last Reformation from Prelacy, in all its steps, from the year 1638. to 1660.

The following period, from the year 1638, to 1660, continues and advances the testimony, to the greatest height of purity and power, that either this church, or any other did ever arrive unto, with a gradation, succession, and complication of wonders, of divine wisdom, power, justice and mercy, signally and singularly owning and sealing it, to the confusion of his enemies, comfort of his people, conviction of indifferent neutrals, and consternation of all. Now after a long winter, and night of deadness and darkness, the sun returns with an amiable approach of light and life; now the winter was past, the rain was over and gone, the flowers appear on earth, and the time of singing of birds is come, and the voice of the turtle is heard in our land. Now the second time, the testimony comes to be managed in an active manner, as before it was passive: as the one hath been always observed to follow interchangeably upon the other, especially in Scotland, and the last always the greatest; which gives ground to hope, though it be now our turn to suffer, that when the summer comes again after this winter, and the day after this night, the next active testimony shall be more notable than any that went before. The matter of the testimony was the same as before, for the concerns of Christ's kingly prerogative, but with some more increase as to its opposites: for these grew successively in every period, the last always including all that went before. The first period had Gentilism principally to deal with; the second Popery; the third Popery and Tyranny; the fourth Prelacy and Supremacy; this fifth hath all together, and Sectarianism also, to contend against. The former had always the opposites on one hand, but this hath them in extremes on both hands; both fighting against one another, and both fighting together against the church of Scotland, and she against both, till at length one of her opposites prevailed, viz. the Sectarian party, and that prevailing brought in the other, to wit, the Malignant, which now domineers over all together. Wherefore, because this

period is in itself of so great importance, the revolutions therein emergent so eminent, the reformation therein prosecuted wanting little of its perfect complement, the deformation succeeding in its deviation from the pattern being so destructive; to the end it may be seen from whence we have fallen, and whether or not the present reproached sufferers have lost or left their ground, we must give a short deduction of the rise, progress, and end of the contendings of that period.

In the midst of the forementioned miseries and mischiefs, that the pride of prelacy and tyrannical supremacy had multiplied beyond measure upon this church and nation, and at the height of all their haughtiness, when they were setting up their Dagon and erecting altars for him, imposing the service-book, and book of Canons, &c. the Lord in mercy remembered his people, and surprised them with a sudden unexpected deliverance, by very despicable means; even the opposition of a few weak women, at the beginning of that contest, which, ere it was quashed, made the tyrant tumble headless off his throne. The zeal against the English popish ceremonies, obtruded on Edinburgh, did first inflame some feminine hearts to witness their detestation of them; but afterwards was followed out with more masculine fervor, accosting King and Council with petitions, remonstrances, protestations and testimonies against the innovations, and resolving upon a mutual conjunction, to defend religion, lives and liberties, against all that would innovate or invade them. To fortify which, and conciliate the favour both of God and man in the resolution, all the lovers of God, and friends to the liberty of the nation, did solemnly renew the national covenant, (wherein they were signally countenanced of the Lord,) which, though in itself obliging to the condemnation of prelatical Hierarchy, and clearly enough confirming presbyterial government, yet they engaged into it with an enlargement, to suspend the practice of novations already introduced, and the approbation of the corruptions of the present government, with the late places and power of church men, till they be tried

in a free General Assembly. Which was obtained that same year, and indicted at Glasgow: and there, notwithstanding all the opposition that the King's commissioner could make, by protestations and proclamations to dissolve it, the six preceeding Assemblies establishing Prelacy were annulled, the service-book, and high commission were condemned; all the bishops were deposed, and their government declared to be abjured in that national covenant; though many had, through the commissioners persuasions, subscribed it in another sense without that application: as also the five articles of Perth were there discovered to have been inconsistent with that covenant and confession, and the civil places and power of church men were disproved and rejected: on the other hand presbyterial government was justified and approved, and an act was passed for their keeping yearly General Assemblies. This was a bold beginning, into which they were animated with more than human resolution, against more than human opposition, hell as well as the powers of the earth being set against them. But when the Lord gave the call, they considered not their own deadness, nor were daunted with discouragements, nor staggered at the promise through unbelief, but gave glory to God, outbraving all difficulties. Which in the following year were much increased, by the prelates and their popish partakers rendezvousing their forces under the King's personal standard, and menacing nothing but misery to the zealous covenanters; yet when they found them prepared to resist, were forced to yield to a pacification, concluding that an Assembly and Parliament should be held, for healing all grievances of church and state.

In which Assembly at Edinburgh, the covenant is ratified and subscribed by the Earl of Traquair commissioner, and enjoined to be subscribed by the body of the whole land, with an explication, expressly condemning the five articles of Perth, the government of bishops, the civil places and power of churchmen: but the sons of Belial cannot be taken with hands, nor bound with bonds of faith, humanity, or honour, for in the year following, king and

prelates, with their popish abettors, go to arms again; but were fain to accommodate the matter by a new pacification, whereby all civil and religious liberties were ratified. And in the following year 1641, by laws, oaths, promises, subscriptions of king and parliament, fully confirmed, the king, Charles I. being present, and consenting to all; though in the mean time he was treacherously encouraging the Irish murderers, who by his authority made a massacre of many thousand innocent protestants in Ireland. But in Scotland things went well, the kingdom of our Lord Jesus was greatly advanced, the gospel flourished, and the glory of the Lord did shine upon us with such a splendour, that it awaked England, and animated the Lord's people there, then groaning under those grievances from which Scotland was delivered, to aspire to the like reformation. For advice in which, because though all agreed to cast off the yoke of prelacy, yet sundry forms of church government were projected to be set up in the room thereof, chiefly the Independent order, determining all acts of church government, as election, ordination, and deposition of officers, with admission, excommunication, and absolution of members, to be done and decided by the voices of every particular congregation, without any authoritative concurrence or interposition of any other, condemning all imperative and decisive power of classes, &c. as a mere usurpation. Therefore, the brethren in England wrote to the Assembly then sitting at Edinburgh, who gave them answer,——"That they were grieved, that any of the godly should be found not agreeing with other reformed churches, in point of government as well as doctrine; and that it was to be feared, where the hedge of discipline and government is different, the doctrine and worship shall not long continue the same without change; that the government of the church, by compound presbyteries and synods, is a help and strength, and not a hindrance to particular congregations and elderships, in all the parts of government; and are not an extrinsical power set over particular churches, but the intrinsical power wherewith Christ hath

invested his officers, who may not exercise it independently, but with subordination, unto presbyteries, &c. which as they are representative of particular churches, conjoined together in one under their government; so their determination, when they proceed orderly, whether in causes common to all, or brought before them by reference in case of aberration, is to the several congregations authoritative, and not consultatory only. And this subordination is not only warranted by the light of nature, but grounded upon the word of God, and conform to the pattern of the primitive and apostolic church, for the preservation of verity and unity, against schism, heresy and tyranny, which is the fruit of this government wheresoever it hath place.' So from henceforth the Assembly did incessantly urge uniformity in reformation with their brethren in England, as the chiefest of their desires, prayers and cares. And in the year 1643, prevailed so far, that the English parliament did first desire, that the two nations might be strictly united for their mutual defence, against the papists and prelatical faction, and their adherents in both kingdoms; and not to lay down arms, till these implacable enemies should be brought in subjection; and instantly urge for help and assistance from Scotland. Which, being sent, did return with an olive branch of peace, and not without some beginnings of a reformation in England. And afterwards, a bloody war beginning between the King and Parliament, with great success on the King's side, whence the papists at the time got great advantage, (witness the cessation of arms concluded in Ireland,) commissioners were sent from both houses to Scotland, earnestly inviting to a nearer union of the kingdoms, and desiring assistance from this nation to their brethren in that their great distress. And this, by the good hand of God, produced the solemn league and covenant of the three kingdoms, first drawn up in Scotland, and approven in the Assembly at Edinburgh, and afterward embraced in England to the terror of the popish and prelatical party, and to the great comfort of such as were wishing and waiting for the reformation of religion, and the recoveries of just liberties.

The tenor whereof did import, their sincere and constant endeavours, in their several places and callings, for preservation of the uniformity in reformation, in doctrine, worship, discipline, and government: the extirpation of popery, prelacy, error and profanity; the preservation of the rights and liberties of the people; and of the magistrates authority, in defence of the true religion and liberty; the discovery and punishment of incendiaries; the retaining of the peace and union of the kingdoms; the mutual assistance and defence of all under the bond of this covenant; and the performing all duties we owe to God, in the amendment of our lives, and walking exemplarily one before another. This is that covenant comprehending the purpose of all prior, and the pattern of all posterior covenants, to which Christ's witnesses did always adhere, for which the present witnesses do suffer and contend; that covenant, which the representatives of church and state in the three nations did solemnly subscribe and swear, for themselves and posterity, of which the obligation, either to the duty or the punishment, continues indispensibly on the generation; which for the moral equity of its matter, the formality of its manner, the importance of its purpose, the holiness of its solemn engagement, and the glory of its ends, no power on earth can disannul, disable, or dispense; that covenant, which the Lord did ratify from heaven, by the conversion of many thousands at their entering under the bond of it, securing and establishing unto them, and all the faithful, the blessings and privileges therein express, and avouching himself to be their God, as they had avouched themselves to be his people; that covenant, which, in all the controversies it hath occasioned, did never receive a greater confirmation than from the malice and opposition of its adversaries; that covenant, which malignants do malign and deny, and sectaries scorn and lay aside, as an almanack out of date; which hath been many ways traduced and reproached by enemies, and yet could never be reflected on by any serious in this land, without an honourable and fragrant remembrance: especially that retortion

of adversaries of the rigour of its imposition upon recusants, to justify their cruelty upon its asserters now, is to be refelled, not with confutation of its importance, but with disdain of its impudence. For who were the recusants; but wicked enemies to God, and church, and nation, who for their malignancy were then to be prosecuted, not for their scrupling at a covenant, but for their contumacious contempt of a law? This was no violence done to their conscience; for as they had none, and could not pretend to any, so they were never troubled for that, but for their opposition and conspiracy against the common cause. However, it went through at that time: and that the covenanted reformation, in a nearer conjunction betwixt the united churches, might be promoted, the parliament of England called an Assembly of divines at Westminster, and desired the Assembly of Scotland to send thither their commissioners; which accordingly nominated and elected Mr. Alexander Henderson, Mr. Robert Douglas, Mr. Samuel Rutherford, Mr. Robert Balzie, Mr. George Gillespie, ministers; John Earl of Cassils, John Lord Maitland, and Sir Archibald Johnston of Waristoun, ruling elders; to propone, consult, treat, and conclude in all such things as might conduce to the extirpation of popery, prelacy, heresy, schism, superstition, and idolatry; and for the settling of the so much desired union of the whole island, in one form of church-government, one confession of faith, one common catechism, and one directory for the worship of God. Forces were also sent to assist the parliament of England: which were favoured with great success in their enterprizes, till that war was ended by the total overthrow of tyranny at that time, and all its upholders. But that popish, prelatical, and malignant faction, being brought much under in England, attempted (not unlike the Syrians, who thought the God of Israel was not God of the hills and valleys both) to try the fortune of war in Scotland, under the conduct of that treacherous and truculent traitor Montrose, gathering an army of wicked apostates and Irish murderers: who prevailing for a time, did punish in the justice of God, the hypocrisy and

self-seeking of such in this land, whose hearts were not upright in his covenant; at length was defeat at Philiphaugh, in the year 1645. Yet certain it is, that they had commission and warrant from the King; as the Assembly that year, February 13. remonstrates it to himself? warning him, in the name of their Master, the Lord Jesus Christ, 'That the guilt, which cleaved to his throne, was such, as (whatsoever flattering preachers or unfaithful counsellors, might say to the contrary) if not timely repented, could not but involve himself and his posterity, under the wrath of the ever-living God, for his being guilty of the shedding of the blood of many thousand of his best subjects, for his permitting the mass and other idolatry in his family and dominion,' &c. At the same time also, the Assembly did zealously incite the Parliament to a speedy course of justice, against these incendiaries and murderers, as the only mean of cleansing the land from that deluge of blood then current, and of appeasing the wrath of God: and solemnly and seasonably warned all ranks to applaud the glory and righteousness of that judgment of the sword, in the hands of these apostates, and murderers, and to search to understand the language of that dispensation; wherein many public sins and breaches of covenant are pointed at, as the causes of that desolation; and the covenant itself is there very encomiastically vindicated. 'We are so far from repenting of it (say they) that we cannot mention it without great joy and thankfulness to God, as that which hath drawn many blessings after it, and unto which God hath given manifold evident testimonies: for no sooner was the covenant begun to be taken in England, but sensibly the condition of affairs there was changed to the better, and our forces sent into that kingdom, in pursuance of that covenant, have been so mercifully and manifestly assisted and blessed from heaven, that we have what to answer the enemy that reproacheth us concerning that business, and that which may make iniquity itself to stop her mouth; but which is more unto us than all victories, the reformation of religion in England, and uniformity therein between both kingdoms (a principal end of that

covenant) is so far advanced, that the government of the church by congregational elderships, classical presbyteries, provincial and national assemblies, is agreed upon by the Assembly of Divines at Westminster, and voted and concluded in both houses of Parliament.' After this the malignants in England being crushed in all their projects, the King renders himself to the Scots in Newcastle: by whom (because by covenant they were not obliged to defend him, but only in defence of religion and liberty, which he had been destroying, and they defending, because in this war he did directly oppose and oppugn these conditions, under which they were only to defend him; and therefore they had all along carried towards him as an enemy, as he to them; and because, by the same covenant, they were obliged to discover, and render to condign punishment all malignants and incendiaries, of whom he was the chief, and to retain the peace and union of the kingdoms, which could not be retained in maintaining their destroyer, and to assist mutually all entered into that covenant, which he was fighting against) he was delivered up unto the English, and kept under restraint in the isle of Wight, until he received his just demerit, for all his oppressions, murders, treachery, and tyranny; being condemned and executed January 30th, in the 1648-9. Which fact, though it was protested against, both before and after, by the Assembly of the church of Scotland, out of zeal against the Sectarians, the executioners of that extraordinary act of justice; yet it was more for the manner than for the matter, and more for motives and ends of it, than for the grounds of it, that they opposed themselves to it, and resented it. For they acknowledged and remonstrated to himself, the truth of all these things upon which that sentence and execution of justice was founded. And when a wicked association, and unlawful engagement was on foot to rescue him, they opposed it with all their might: shewing, in their answers to the estates that year 1648, and declarations and remonstrances, the sinfulness and destructiveness of that engagement; that it was a breach of the commandments of God, and of all the articles of the covenant;

declaring withal, they would never consent to the King's restitution to the exercise of his power, without previous assurance, by solemn oath, under his hand and seal, for settling of religion according to the covenant. By which it appears, they were not so stupidly loyal, as some would make them. Yet indeed it cannot be past without regret, that there was too much of this plague of the king's-evil even among good men: which from that time forth hath so infected the heads and hearts of this generation, that it hath almost quite extinct all loyalty to Christ, and all zeal for religion and liberty.

Then it began to infuse and diffuse its contagion, when after the death of Charles first, in the year 1649, they began, after all that they had smarted for their trusting these treacherous tyrants, and after that grace had been shewed them from the Lord their God, by breaking these men's yokes from off their necks, and putting them again into a capacity to act for the good of religion, their own safety, and the peace and safety of the kingdom, to think of joining once more with the people of these abominations, and taking into their bosom these serpents which had formerly stung them almost to death. Hence these tears, lo the origin and spring of our defection! There was indeed at that time a party faithful for God, who considering the many breaches of the solemn league and covenant, and particularly by the late engagement against England, did so travel, that they procured the covenant to be renewed, with the solemn acknowledgment of sins and engagement to duties, which was universally subscribed and sworn through all the land; wherein also they regret this tampering with malignants. And therefore the Lord did mightily save and defend them from all their adversaries, subdued them at Stirling, and in the north. They did also give warning concerning the young King, "That notwithstanding of the Lord's hand against his father, yet he hearkens unto the counsels of these, who were authors of these miseries to his father, by which it hath come to pass, that he hath hitherto refused to grant the just and necessary desires of the church and kingdom, for securing of religion and liberty: And it is much to be feared, that these

wicked counsellors, may so far prevail upon him, as to engage him in a war, for overturning the work of God, and bearing down all those in the three kingdoms that adhere thereto. Which if he shall do, cannot but bring great wrath from the Lord upon himself and throne, and must be the cause of many new and great miseries and calamities to these lands.' And, in the same warning, by many weighty reasons, they prove, that he is not to be admitted to the exercise of his power, without security for religion and liberty. And when the bringing home of the King came to be voted in the Assembly, there was one faithful witness, Mr. Adam Kae, minister in Galloway, protested against it: foreshewing, and foretelling, what mischief and misery he would bring with him when he should come. These things might have had some weight, to demur the nation from meddling with that perfidious traitor. But all this serves only to aggravate the sin and shame of that distraction, which hath procured all this destruction, under which the land mourns to this day: that notwithstanding of all these convictions, warnings; yea, and discoveries of his malignancy, treachery, and inclination to tyranny; they sent commissioners, and concluded a treaty with him at Breda. During which treaty, the commissions which he had sent to that bloody villain Montrose, and his cut-throat complices, to raise an army, and waste, and invade the country with fire and sword the second time; were brought to the Committee of Estates, discovering what sort of a king they were treating with. Whereupon, after serious consulting, not only together, but with the Lord: and after many debates what to do in such a doubtful case, wherein all was in danger, the Estates concluded to break off the treaty, and recal their Commissioners. To which intent, they sent an express with letters to Breda; which, by providence, falling into the hands of Libberton, a true libertine, and false betrayer of his trust and country, was by him, without the knowledge of the other Commissioners, delivered unto the King; who consulting the contents of the packet with his jesuitical and hypocritical cabal, found it his interest to play the fox (being disappointed

at that time to play the tyger) and dissemble with God and man. And so sending for the Commissioners, he made a flattering speech to them, shewing, that now after serious deliberation, he was resolved to comply with all their proposals. Whereupon the poor cheated Commissioners dispatch the post back with letters full of praise and joy for the satisfaction they had received. The Estates, perceiving themselves imposed upon, consulted again what to do; and in end, being overswayed more with respect to their own credit, (which they thought should be impeached, if they should retract their own plenipotentiary instructions, to conclude the treaty, upon the King's assent to their conditions) than to their reclamant consciences, they resolved to bring home that pest, and thereby precipitated themselves and us into eluctable misery. Yet they thought to mend the matter, by binding him with all cords, and putting him to all most explicit engagements, before he should receive the imperial crown. Well, upon these terms, home he comes, and, before he sets his foot on British ground, he takes the covenant: and thereafter, because the commission of the General Assembly, by the act of the West-kirk, August 13th, 1650, precluded his admittance unto the crown, if he should refuse the then required satisfaction, before his coronation, he emits that declaration at Dunfermline; wherein, 'Professing and appearing in the full persuasion and love of the truth, he repenteth (as having to do with and in the fight of God) his father's opposition to the covenant and work of God, and his own reluctances against the same, hoping for mercy through the blood of Jesus Christ, and obtesting the prayers of the faithful to God for his stedfastness. And then protesteth his truth and sincerity in entring into the oath of God, resolving to prosecute the ends of the covenant to his utmost, and to have with it the same common friends and enemies, exhorting all to lay down their enmity against the cause of God, and not to prefer man's interest to God's, which will prove an idol of jealousy to provoke the Lord: and he himself accounteth to be but selfish flattery.' A declaration so full of heart-

professions, and high attestations of God, that none, considering what followed, can reflect thereon, without horror and trembling from the holy jealousy of the Lord, either for the then deep dissimulation, or the after unparalleled apostasy. I know it is objected by court-parasites, that the king was then compelled to do these things. To which I shall only say, it would have cost any of them their head at that time, to have asserted, that he did upon deliberation and choice mock God and man, and entered into these engagements, only with a purpose to be thereby in better capacity to destroy what he swore to maintain, only because he could not have the crown without this way, which, in the confession of the objectors themselves, was only deliberate and premeditate perjury. Next, if it should be granted he was compelled; let it be also considered, who compelled him; and these will be found to be the deceitful courtiers. For, let it be adverted, what Mr. Gillespie declares of the case, who put the pen in his hand when he subscribed that declaration: he, perceiving there was sufficient ground to jealousy his reality, and seeing evidently that the courtiers prevailed with the king on a sudden to offer to subscribe the declaration (when they observed that the commissioners of church and state were resolute, and ready to go away in a fixedness, to leave out the putting of his interest in the state of the quarrel) and being afraid of the said consequences of it, spoke his mind plainly to the king: 'That if he was not satisfied in his soul and conscience, beyond all hesitation of the righteousness of the subscription, he was so far from over-driving him to run upon that, for which he had no light, as he obtested him, yea, he charged him in his master's name, and in the name of these who sent him, not to subscribe this declaration, no not for the three kingdoms.' Whereupon the king answered,—Mr. Gillespie, Mr. Gillespie, I am satisfied, I am satisfied with the declaration, and therefore will subscribe it. Upon which some of the courtiers swore that Mr. Gillespie intended simply to dissuade the king from subscribing it, that so church and state might professedly lay aside his interest; which would have defeat their hopes to

make up themselves, as now they have done, upon the then designed ruin of the interest of truth. Then at his coronation, we have his again reiterated confirmations of that covenant; first, he is desired in name of the people to accept the crown, and maintain religion according to the national and solemn league and covenant; whereunto he gave his apparently cordial consent (the words are in the form and order of the coronation with the whole action.) Then next, a sermon being preached upon 2 Kings xi. 12 and 17. the action commenceth, with his most solemn renewing of the national and solemn league and covenant, by oath. Then, he is presented to the people, and their willingness demanded to have him for their king on these terms. At the same time, in the next place, he took the coronation oath. Then on these terms he accepted the sword. And after the crown is set upon his head, the people's obligatory oath is proclaimed on the terms foresaid, otherwise he is not that king to whom they swore subjection. Then being set upon the throne, he was by the minister put in mind of his engagements, from 1 Chron. xxix. 33. And then the nobles of the land came one by one kneeling, and lifting up their hands between his hands, swore the same oath. These things done, the whole action was closed with a most solid and severe exhortation from several instances, Neh. v. 13. Jer. xxxiv. 18, 19, 20. &c. Thereafter in the year 1651, followed the ratification of all these preceeding treaties, transactions, and engagements, concluded and enacted by the king, and the parliament then fully and freely convened; whereby the same did pass into a perpetual law. And this covenant, which from the beginning was and is the most sure and indispensable oath of God, became at length the very fundamental law of the kingdom, whereon all the rights or privileges, either of king or people, are principally bottomed and secured. This might seem security sufficient, but considering the former discoveries and experiences they had of his treachery, and the visible appearances (in the mean time) of his refusals, visible reluctances, manifest refilings, open counter actings, and continued prejudices against the covenant, and his

following unprecedented avowed perjury, every thing doth indelibly fasten upon them the weakness at least of an overweening credulity, and upon him the wickedness of a perfidious policy, in all these condescensions. After this it came to pass, that zeal for the cause rightly stated was suddenly contracted to a few, and the flame thereof extinguished in many, and court wild-fire substitute in its place: whereby a plain defection was violently carried on by the public resolutioners, who relapsing into that most sinful conjunction with the people of these abominations, so solemnly repented for and resolved against, did notwithstanding bring in notorious malignants, into places of power and trust, in judicatories and armies, in a more politic than pious way of requiring of them a constrained and dissembled repentance, to the mocking of the God of truth, and scorn of all our holy engagements. Which defection did not only cause for a long time an incurable division; the first of that kind, and most permanent of any that ever was in the church of Scotland, by reason of the surcease of general assemblies, stopped and hindered by the yoke of the sectarian usurpation; but also was the spring and source of all our defections since, all flowing from and fomented by that same spirit that fostered that: and for that, since that time, the Lord hath been contending with this church and nation, bringing us under the bondage of these malignant enemies, whom we suffered them then to encourage and introduce. And both at that time, and since that time, the Lord never countenanced an expedition where that malignant interest was taken in unto the state of that quarrel. Upon this our land was invaded by Oliver Cromwel, who defeated our army at Dunbar, where the anger of the Lord was evidently seen to smoke against us, for espousing that interest. And remarkable it is, how in that very day wherein the public resolutions were concluded in the assembly at St. Andrew's, the Lord then shed the blood of his people at Inverkeithing; so as that the assembly, having in great haste hurried through this approbation, were all made to run for it, and adjourn themselves to Dundee, where they met and

completed that step of defection. And afterwards it is known, what a peculiar vengeance fell upon that city, where this deed was done, beyond all other cities of the nation. Next, an army being raised, according to these unhallowed resolutions, and the Lord putting remarkable discountenance upon them in their attemptings at home, as was manifest in their attemptings at Torwood, &c. They march into England, and there did the Lord continue, by his leaving our army to the sword, to preach that doctrine to the world, Josh. vii. 10, 11, 12. ('Israel hath sinned and transgressed the covenant—have taken the accursed thing—and dissembled also, and have put it even amongst their own stuff, therefore the children of Israel could not stand before their enemies, but turned their backs before their enemies, because they were accursed: Neither will I be with you any more, except ye destroy the accursed thing from among you.') An army of near 30,000 was totally routed at Worcester, and the Achan, the cause of the overthrow, was forced to hide himself in the oak, and thence to transport himself beyond sea, where he continued a wandering fugitive in exile, till the year 1660. In the mean time the sectarian army here prevailed, till, after the usurper Cromwel's death, the false Monk then general, with a combination of malignants and public resolutioners, did machinate our misery, and effectuated it by bringing home the king to England from his banishment: Wherein he was habituate into an implacable hatred against the work of God. Yet, though since the king's first reception into Scotland, our declensions were still growing, until they produced this dreadful revolt from God, wherein the nation is now involved; there was still a faithful remnant of ministers and professors, zealous for the cause, keeping their integrity; who in their remonstrances and testimonies witnessed against both their malignant enemies, and their backsliding brethren the revolutioners, and also against the sectarians their invaders; whose vast toleration and liberty of conscience, which they brought in to invade our religion as they had invaded our land, and infected it with their multifarious errors, was

particularly by the synod of Fife, and other brethren in the ministry that joined themselves to them, testified against, and demonstrated to be wicked and intolerable. Now to see how far the present testimony is confirmed by the witnesses of this period, we may resume some reflections on it.

I. They impartially carried on the testimony against prelacy, and the popish, prelatical and malignant factions on the one hand, and the sectarians on the other, without ever waving the testimony against either, or at the least, winking at the one to weaken the other: both which testimonies they thought of so great importance, that they could not dispense with but faithfully maintain both, in their witnessings and warnings. In that seasonable and necessary warning and declaration, concerning present and imminent dangers, given at Edinburgh July 27. sess. 27. they first say of the sectaries, 'That prevailing party of sectaries in England, who have broken the covenant, and despised the oath of God, corrupted the truth, subverted the fundamental government, look upon us with an evil eye, as upon these who stand in the way of their monstrous and new fangled devices in religion and government; and though there were no cause to fear any thing from that party, but the gangrene and infection of those many damnable and abominable errors which have taken hold on them; yet our vicinity unto and daily commerce with that nation, may justly make us afraid, that the Lord may give up many in this land into a spirit of delusion to believe lies, because they have not received the love of the truth. In that same warning they say, We are not so to have the one of our eyes upon the sectarians, as not to have the other upon malignants, they being an enemy more numerous and more dangerous than the other; not only because experience hath proven, that there is a greater aptitude and inclination in these of our land to comply with malignants, than sectaries, in that they carry on their wicked design, under a pretext of being for the king, but also because there be many of them in our own bowels.' By which we may see how impartially they opposed both; and that this cannot be condemned in the testimonies of

the present sufferers, except the assembly be condemned. And because many now a-days have extenuating notions of those debates, against prelacy and sectarianism, about the government of the church, &c. and condemn these that would adhere to and suffer for the punctilios of it, as rigid nicety: I shall, for seeing what account the assembly had of them, cite their words in a letter to the assembly of divines at Westminster, dated Edinburgh, June 18, 1646. The 'smallest (say they) of Christ's truths (if it be lawful to call any of them small) is of greater moment than all the other businesses, that ever have been debated since the beginning of the world to this day: but the highest of honours and heaviest of burdens is put upon you; to declare out of the sacred records of divine truth, what is the prerogative of the crown and extent of the sceptre of Jesus Christ; what bounds are to be set between him ruling in his house, and powers established by God on earth; how and by whom his house is to be governed; and by what ways a restraint is to be put on these who would pervert his truth and subvert the faith of many.'

II. In the manner of maintaining this testimony, these famous fathers, while faithful for God, gave us a perfect pattern of purity and strictness, in opposition to all degrees of conformity and compliance with the corruptions of the time; and laid down such rules and constitutions, as might regulate us in our contentings about present defections, and teach us what account to make of them, and how to carry towards them: which if adverted unto, would evince how manifest and manifold the declinings of many have been from the late reformation, that yet pretend to adhere unto it, and how justifiable the aversation and abstraction of the present reproaching suffering party is, from all these defections and the daubings of them, because so much deviating and declining from the attained reformation. I need not repeat how prelacy, and all the parts and pendicles of that antichristian hierarchy, were abjured in the national covenant, and condemned in the acts of assemblies, and re-abjured in the solemn league and covenant, and in the solemn acknowledgement of sins and engagement

to duties, where also we came under sacred and inviolable engagements, to endeavour the extirpation thereof: Which doth clearly file the present countenancing and submitting to the prelatic curates, in receiving ordinances from them, among the grossest of defections; being altogether inconsistent with these acts and constitutions, and covenant obligations to extirpate them, as much as the countenancing of popish priests were inconsistent therewith, being both equally covenanted to be extirpated. Next, though in this period, tyranny being in its retrograde motion, erastian supremacy was not so much contended for, and therefore not so much questioned as formerly, being held exploded with execration out of doors and out of doubt; yet the testimony was still continued against it, in the uninterrupted maintaining of the church's privileges and freedom of assemblies, against all encroachings of adversaries. And therefore the embracing of the late detestable indulgences, were as contrary to the actings of this as to the testimonies of the former period, against the supremacy from which they flow. Yea many particulars, might be instanced, wherein the accepters had declined from the covenanted reformation then prosecuted; not only in their confederating with malignant usurpers, for the pretended benefit of them (by which, if there had been no more, they are obnoxious to the censure of the church, standing registered in an act of assembly, ordaining all persons in ecclesiastic office, for the like or lesser degrees of compliance, yea even for procuring protections from malignant enemies, to be suspended from their office and all exercise thereof at Edin. 1646. sess. 14.) Nor only in their taking sinful instructions from them, restricting them in the exercise of their ministry; but in admitting themselves, by their patronage, to be by them presented to their prelimited and pre-imposed congregations: which involves them in the iniquity of the abolished patronages, condemned by the assembly; for that ministry of such so presented, is made too much to depend upon the will and pleasure of man, and such an imposition is destructive of the church and people's

liberties, obstructive of the gospel's freedom and faithful plainness, and occasion of much base flattery and partiality; and in subjecting to, homologating, and fortifying a sacrilegious supremacy, overturning the intrinsic power of the church, contrary to the covenant obliging to the preservation of the government, as well as to the doctrine of the church, in the first article thereof; and in their suffering themselves, either directly or indirectly, either by combination, persuasion, or terror, to be divided and withdrawn from that blessed union and conjunction, which they were obliged to maintain and promote, according to the sixth article of the solemn league and covenant; and in their strengthening the erastian usurpations of enemies encroaching upon the church's liberties and Christ's prerogatives, against which we are engaged expressly in the solemn acknowledgment of sins and engagement to duties, where also we have these words article 2. Because many have of late laboured to supplant the liberties of the church, we shall maintain and defend the church of Scotland, in all her liberties and privileges, against all who shall oppose or undermine the same, or encroach thereupon under any pretext whatsoever. Next, we have many demonstrations of the zeal and strictness of these servants of Christ, in their synodical determinations of censures, to be past upon many ministerial corruptions; which will condemn the present course of covering and countenancing them, and commend the contendings of a poor reproached party against them, in their conscientious abstracting from them. Of which determinations, I shall rehearse some. Among the enormities and corruptions of the ministry, in their callings, this is one, sect. 4, 5. Silence in the public cause—some accounting it a point of wisdom to speak, ambiguously—whereof the remedy is sect. 15. 'That beside all other scandals, silence or ambiguous speaking in the public cause—be seasonably censured, general assembly, at Edinburgh, June 13. 1646.' There is indeed an act against withdrawers from ministers: but in the self same act they are charged to be diligent in fulfilling their ministry, 'to be faithful in preaching,

declaring the whole counsel of God, and as they have occasion from the text of scripture to reprove the sins and errors, and press the duties of the time, and in all these to observe the rules prescribed by the acts of assembly, wherein if they be negligent, they are to be censured, general assembly Edinburgh, Aug. 24. 1647. sess. 19.' Then there is that act, Aug. 3. 1648. sess. 26. for censuring ministers for their silence, and not speaking to the corruptions of the time; 'calling it, a great scandal, through some ministers their reserving and not declaring themselves against the prevalent sins of the times; appointing, that all that do not apply their doctrine to these corruptions, which is the pastoral gift, and that are cold or wanting of spiritual zeal, dissembling of public sins, that all such be censured even to deprivation; for forbearing or passing in silence the errors and exorbitancies of sectaries in England, or the defections current at home, the plots and practices of malignants, the principles and tenets of erastianism; and if they be found too sparing, general, or ambiguous in their applications and reproofs, and continuing so, they are to be deposed, for being pleasers of men rather than servers of Christ, for giving themselves to a detestable indifferency or neutrality in the cause of God for defrauding the souls of people, yea for being highly guilty of the blood of souls, in not giving them warning.' And in that seasonable and necessary warning of the general assembly, Edinburgh July 27. 1649. sess. 27. we are taught how they resented the unfaithfulness of ministers continuing in defections, and how we are to look upon them and carry to them: where they say, it is undeniably true, that many of the evils, 'wherewith this church and kingdom hath been afflicted in our age, have come to pass because of the negligence of some and corruptions of others of the ministry; and the course of backsliding was carried on, until it pleased God to stir up the spirits of these few, who stood in the gap, to oppose and resist the fame, and to begin the work of reformation in the land; since which time, the silence of some ministers, and the compliance of others, hath had great influence upon the

backslidings of many amongst the people, who, upon the discovery of the evil of their way, complain that they got no warning, or that if they were warned by some, others held their peace, or did justify them in the course of their backsliding: we can look upon such ministers no otherwise, than upon these that are guilty of the blood of the Lord's people, and with whom the Lord will reckon, for all the breach of covenant and defection that hath been in the land; the priest's lips should preserve knowledge, and they should seek the law at his mouth, for he is the messenger of the Lord of hosts, but such as are departed out of the way, and have caused many to stumble at the law, therefore hath the Lord made them contemptible before all the people, according as they have not kept his ways, but have been partial in his law, because they have lost their favour, he hath cast out many of them as unsavoury salt.' Furthermore, to evidence the purity and power of zeal burning and blazing in these days in their contendings against public enemies on all hands, I shall instance some of their acts and testimonies, clearly condemning the manifold compliances of this generation and which may contribute somewhat to justify the reproached preciseness of a remnant, standing at the furthest distance from them. There is an act for censuring the compliars with the public enemies of this church and kingdom, general assembly, June 17. 1646, sess. 14. 'where, they judge it a great and scandalous provocation, and grievous defection from the public cause, to comply with those malignants (such as James Graham then was) in any degree, even to procure protections from them, or to have invited them to their houses, or to have drunk James Graham's health, or to be guilty of any other such gross degrees of compliance; censured to be suspended from the communions, ay and while they acknowledge their offence.' And yet now, for refusing these degrees of compliance, for not having the protection of a pass from the wicked courts of malignant enemies, by taking a wicked oath, and for refusing to drink the king's health, a greater enemy then ever James Graham was, some poor

conscientious people have not only been murdered by enemies, but mocked and condemned by professors. There is an act likewise, and declaration against all new oaths or bonds in the common cause imposed without consent of the church general assembly, Edinburgh July 28. 1648. sess. 18. 'Enjoining all the members of the church to fearbear the swearing or subscribing any new oaths, or bonds, in this cause without advice and concurrence of the church, especially any negative oaths or bonds, which may any way limit or restrain them in the duties whereunto they are obliged, by national or solemn league or covenant.' Yet now, for refusing oaths, not only limiting in covenanted duties, but contradicting and condemning many material principles of the covenanted reformation, many have not only lost their lives, but also have been condemned, by them that are at ease, having a wider conscience to swallow such baits. It is known how pertinacious the most faithful in those days were, in their contendings against associations, in any undertaking for the cause, with persons disaffected to the true state thereof. I need not give any account of this, were it not that now that principle is quite inverted; and poor adherers to it, for their abstracting and substracting their concurrence with such promiscuous associations, are much hated and flouted; therefore I shall give some hints of their sentiments of them. In their answer to the committee of estates, July 25, 1648, sess. 14. the general assembly says, 'It was represented to the parliament, that for securing of religion it was necessary, that the popish, prelatical, and malignant party, be declared enemies to the cause upon the one hand, as well as sectaries upon the other, and that all associations either in forces or counsels, with the former as well as with the latter, be avoided.' And in their declaration concerning the present dangers of religion, especially the unlawful engagement in war, July ult. 1648. sess. 21. they say, 'Suppose the ends of that engagement be good (as they are not) yet the means and ways of prosecution are unlawful; because there is not an equal avoiding of rocks on both hands, but a joining with malignants to

suppress sectaries, a joining hands with a black devil to beat a white devil; they are bad physicians who would so cure one disease, as to breed another as evil or worse—we find in the scriptures condemned, all confederacies and associations with the enemies of true religion, whether Canaanites, Exod. xxiii. 32 and 24. xii. 15. Deut. vii. 2. or other heathens, 1 Kings xi. 1, 2.' More arguments against associations may be seen in that excellent discussion of this useful case, concerning associations and confederacies with idolaters, infidels, hereticks, or any other known enemy of truth or godliness, by famous Mr. G. Gillespie, published at that same time: whereunto is appended his letter to the commission of the general assembly, having these golden words in it, words fitly spoken in that season, when he was a-dying, at the beginning of the public resolutions: 'Having heard of some motions and beginnings of compliance, with these who have been so deeply engaged in a war destructive to religion and the kingdom's liberties, I cannot but discharge my conscience, in giving a testimony against all such compliance. I know and am persuaded, that all the faithful witnesses that gave testimony to the thesis, that the late engagement was contrary and destructive to the covenant, will also give testimony to the appendix, that compliance with any who have been active in that engagement is most sinful and unlawful. I am not able to express all the evils of that compliance, they are so many—But above all, that which would heighten this sin even to the heavens is, that it were not only a horrid backsliding, but a backsliding into that very sin, which was specially pointed at and punished by the prevalency of the malignant party, God justly making them thorns and scourges who were taken in as friends. Alas! shall we split twice upon the same rock? yea run upon it, when God hath set a beacon on it? yea I may say, shall we thus outface and outdare the Almighty, by protecting his and our enemies, by making peace and friendship with them, when the anger of the Lord is burning against them. I must here apply to our present condition, the words of Ezrah, ix. 14.—O happy Scotland, if thou canst now

improve and not abuse this golden opportunity! but if thou help the ungodly, and love them that hate the Lord, wrath upon wrath, and wo upon wo, shall be upon thee from the Lord.' Whereunto is subjoined his dying testimony to the same purpose; wherein are these words: 'But if there shall be falling back, to the sin of compliance with malignant ungodly men, then I look for the breaking out of the wrath of the Lord, till there be no remedy.' This was the warning of a worthy dying man. Notwithstanding of which and many other warnings and witnessings, a course of compliance was commenced by the public resolutioners, and continued in to this day; wherein that faithful warning of a dying servant of Christ is verified. But before I leave this purpose, I must obviate an objection that some make use of for strengthening themselves in their incorporations and joining at least in worship, with the corruptions of the time, and for condemning conscientious withdrawers; that the godly in those days did not separate from the men of these compliances and defections, as many do now, viz. the protesting party did not withdraw from the public resolutioners and associators with malignants. I answer, first, many and these the most godly and tender did withdraw, even from their own ministers, and would have gone forty or fifty miles to hear a faithful minister at that time: yea ministers themselves, in the case of intrusion of the unfaithful, would have supplied the paroch, as if the church had been vacant, and when they could not get access to the pulpit, they preached in the fields, on purpose to witness against, and professedly to withdraw the people from such an unfaithful intruder; as might be instanced particularly for time and place, if need were. But next, the church then, though broken by division, and under the subjection of strangers deprived of her general assemblies, yet was in a constitute case, enjoying the privilege, power and order of synods and presbyteries, to whom the people offended with their ministers might address themselves, for an orderly redress, and removal of these scandals in an ordinary way; and so they needed not assume to themselves that power

to regulate their communion, that in a broken state, as now is, must be allowed to them. And besides, both the ministers at that time who were faithful, though they might have proceeded to censure and silence the corrupt party as they were obliged, yet not only found it difficult by reason of the injury of the times; but also thought it best to spare them, and the people to bear them, as burdens; until, as they were still in hopes, they should obtain a general assembly to take order with them, but now it is not so. And then the defection was but beginning, and people did not know and could not expect it would go such a length, and therefore could not fall upon the rigour of that duty, which such disorders call for at first: but if they had seen where these beginnings would land them at length, I doubt not but they would have resisted those beginnings, in such a way as would have precluded this imputation of novelty upon our necessitated withdrawals.

III. We have in this period, not only an illustrious testimony for the principle, but a continued and unintermitted putting into practice the duty of defensive arms, in resisting the sovereign power, maleversing and abusing authority to the destruction of the ends of it; which resistance was avowed, encouraged, and furthered by the general assembly, both for the defence of themselves, and for the help of their brethren in England. Take one expression in their solemn and seasonable warning to all ranks, Feb. 12, 1645, sess. 18.—'Unless men will blot out of their hearts the love of religion and cause of God, and cast off all care of their country, laws, liberties, &c. (all being in visible danger of present ruin and destruction) they must now or never appear actively, each one stretching himself to, yea beyond his power. It is not time to dally, or go about the business by halves, nor be almost, but altogether zealous: Cursed is he that doeth the work of the Lord negligently. If we have been forward to assist our neighbour kingdoms, shall we neglect to defend our own? Or shall the enemies of God be more active against his cause than his people for it? God forbid.' In another seasonable and necessary warning, July 27, 1649, sess. 27. they say,

'But if his majesty, or any having or pretending power and commission from him, shall invade this kingdom, upon pretext of establishing him in the exercise of his royal power; as it will be an high provocation against God, to be accessory or assisting thereto, so it will be a necessary duty to resist and oppose the same.' These fathers could well distinguish, between authority and the person abusing it: and were not so loyal, as now their degenerate children are ambitious to shew themselves, stupidly stooping to the shadow thereof, and yet will be called the only asserters of presbyterian principles. But we find, they put it among the characters of malignants, to confound the king's honour and authority with the abuse and pretence thereof, and with commissions, warrants, and letters, procured from the king by the enemies of the cause and covenant, as if we could not oppose the latter, without incroaching upon the former. But here an objection or two must be removed out of the way before we go forward. One is, from the third article of the covenant; where there seems to be a great deal of loyalty, obliging to defend the king's majesty, his person and authority, in the preservation and defence of the true religion and liberties of the kingdoms, 'that the world may bear witness with our consciences of our loyalty, and that we have no thoughts or intentions to diminish his majesty's just power and greatness.' I answer, there is indeed a deal of loyalty there, and true loyalty, because lawfully limited, being qualified with, and subordinate unto the preservation and defence of the true religion and liberties of the kingdom (as the makers of the covenant do expound it, in the assembly's declaration against the unlawful engagement, July *ult.* 1648, sess. 21.) not that reverse loyalty, which makes duties to God conditional and limited, and duties to the king absolute and unlimited, as our loyalists do now. And I wish others were free of it, who have sworn oaths of unlimited allegiances to maintain the king in any power unto which his force aspires; and to justify this their loyalty, will bring in this article of the covenant with a distorted sense, reading it backward, 'that we in the preservation and

defence of religion must preserve and defend the king:' As if religion obliged to defend him, do what he will. It were better such pretended covenanters denied the covenant, than to be such a reproach to it, in wresting its genuine sense. But I have adduced the sense of the best interpreters of it, the general assembly. Next when they entered under the bond of this covenant, they did it with a purpose to oppose all his invasions upon religion and the liberties of the people, and to vindicate these precious interests from his usurpings, into a state of liberty: And shall we imagine, that that very oath of God did lay upon them or us an obligation to defend the person who is a destroyer of all these, contrary to the very nature of the oath, contrary to the hope of the covenanters, and contrary to their subsequent practice? But then it will be urged, why then was that clause cast into the covenant? I answer we have not the same cause to keep it, as they had some cause to put it in, with accommodation to the present possessor of the sovereignty. The owning of it in our circumstances would be as great a reproach to us, as the want of it was to them in theirs. They put in the words to prevent the world's mistake, and to remove that odium industriously heaped upon the heads of whose hearts were associate in the defence of religion and liberty, therefore they would profess they would not be disloyal while he was for God. And a defiance may be given to clamour, and calumny itself, to give one instance of the defect of performance hereof, while he went not about to ruin those things, incomparably more precious than his person or authority, and in ruining whereof no person can retain authority.

IV. But now two things will chiefly be desiderated, which now we own in our testimony, for which many have died, that seem not to be confirmed by or consistent with the testimony of this period. One is, that we not only maintain defensive resistance, but in some cases vindictive and punitive force, to be executed upon men that are bloody beasts of prey, and burdens to the earth, in cases of necessity, when there is no living among them. This

principle of reason and natural justice, was not much inquired into in this time; when the sun was up, whose warmth and light made these beasts creep into their dens, and when they, being brought under subjection, could not force people into such extraordinary violent courses when the ordinary and orderly course of law was running in its right channel. Yet from the ground of their ordinary procedure, military and civil, against such monsters, we may gather the lawfulness of an ordinary procedure in a pinch of necessity, conform to their grounds: I hope to make this evident, when I come *ex proposito* to vindicate this head. But there is another thing that we own, which seems not to have been known in these days, viz. That when we are required to own the authority of the present dominator, we hold sinful to own it. Yet we find these reverend and renowned fathers owned King Charles I. and did not refuse the succession of Charles II. I shall answer in order. First, As to King Charles I. there was a great difference betwixt him and his sons that succeeded; he never declared parliamenterily that neither promises, contracts, nor oaths should bind him, as the first of his perfidious sons did; it might have been then presumed, if he had engaged so far for promoting the work of God, he would have been a man of his word (for to say a king of his word, is antiquitate in a good sense, except that it means he is as absolute in his word as in his sword, and scorns to be a slave to it.) Neither professed he himself a papist, as the second son hath done: Again it must be granted, that more might have been comported with in the beginning, when there were some hopes of redress, than after such process of time; whereby now we see and feel beyond all debate, that the throne stands and is stated, not only in opposition to, but upon the ruins of the rights and privileges both of religion and liberty. But was not the equivalent done by the church, anno 1648, when they refused to concur with that unlawful engagement, for restoring of the king, 'till security be had, by solemn oath under his hand and seal, that he shall for himself and successors, give his assent to all acts and bills for enjoining presbyterial

government, and never make opposition to it, nor endeavour any change thereof? July *ult.* 1648. sess. 21.' But it will be laid, that in their renewing the covenant that year, they did not leave out that article. True, thereby they stopped the mouths of their adversaries; and then they were not without hopes, but that in his straits he might have proved a Manasseh taken among the thorns. And the covenanters at that time, not being clear that he had done that which *ipso jure* made him no magistrate, chused rather, while matters stood so, to engage to maintain him, than simply to disown him (which yet our forefathers did upon smaller grounds many times) in the hopes of being prevailed with at last. But when they saw that this proved ineffectual, therefore at the coronation of the new king they made the covenanted interest the sole basis upon which alone authority was conferred upon him. For the second, though they did not refuse the succession of Charles the Second (which was their blame and our bane, of which we may blush this day) yet we find many things in that transaction which justify our disowning of him, and condemn the owning of the present possessor. (1.) In that seasonable and necessary warning, July 27, sess. 27. 'whereas many would have admitted his majesty to the exercise of his royal power, upon any terms whatsoever: the assembly declares first; that a boundless and unlimited power is to be acknowledged in no king nor magistrate; neither is our king to be admitted to the exercise of his power, as long as he refuses to walk in the administration of the same, according to this rule. Secondly, that there is a mutual stipulation and obligation between the king and the people, as both of them are tied to God, so each of them are tied to one another, for the performance of mutual and reciprocal duties; accordingly kings are to take the oath of coronation, to abolish popery and maintain the protestant religion: As long therefore as the king refuses to engage and oblige himself for security of religion and safety of his people, it is consonant to scripture and reason and laws of the kingdom, that he should be refused. Thirdly, in the league and covenant the duty of defending and preserving the king, is

subordinate to the duty of preserving religion and liberty: And therefore, he standing in opposition to the public desires of the people for their security, it were a manifest breach of covenant, and a preferring the king's interest to the interest of Jesus Christ, to bring him to the exercise of his power. Fourthly, That it was for restraint of arbitrary government, and for their just defence against tyranny, that the Lord's people did join in covenant, and have been at the expence of so much blood these years past; and if he should be admitted to the government before satisfaction, it were to put in his hand that arbitrary power, and so to abandon their former principles, and betray the cause. Fifthly, That he, being admitted before satisfaction, would soon endeavour an overturning of the things which God hath wrought, and labour to draw public administrations, concerning religion and liberty, into that course and channel in which they did run under prelacy, and before the work of reformation. Whence they warn that every one take heed of such a snare, that they be not accessory to any such design, as they would not bring upon themselves and their families, the guilt of all the detriment that will undoubtedly follow thereupon, of all the miseries it will bring upon the kingdoms—And therefore whosoever attempt the same, oppose themselves to the cause of God, and will at last dash against the rock of the Lord's power, which hath broken in pieces many high and lofty ones, since the beginning of the work in the kingdoms.' 2. I shall here insert the act of the West-kirk, declaring their mind very manifestly.

'West Kirk, August 13, 1650. The commission of the general assembly, considering that there may be just ground of stumbling, from the king's majesty refusing to subscribe and emit the declaration, offered to him by the committee of estates and the commission of the general assembly, concerning his former carriage and resolutions for the future, in reference to the cause of God and the enemies and friends thereof; doth therefore declare, That this kirk and kingdom doth not own or espouse any malignant

party, or quarrel, or interest, but that they fight merely upon their former grounds and principles, and in the defence of the cause of God and of the kingdom, as they have done these twelve years past: And therefore, as they disclaim all the sin and guilt of the king and of his house, so they will not own him nor his interest, otherwise than with a subordination to God, and so far as he owns and prosecutes the cause of God, and disclaims his and his father's opposition to the work of God, and to the covenant, and likewise all the enemies thereof; and that they will with convenient speed take unto consideration the papers, lately sent unto them by Oliver Cromwel, and vindicate themselves from all the falshoods contained therein; especially in these things wherein the quarrel betwixt us and that party is mistated, as we owned the late king's proceedings, and were resolved to prosecute and maintain his present majesty's interest, before and without acknowledgement of the sin of his house and former ways, and satisfaction to God's people in both kingdoms.'

'A. KER.'

'August 13, 1650. The committee of estates, having seen and considered a declaration of the commission of the general assembly, anent the stating of the quarrel wherein the army is to fight, do approve the same, and heartily concur therein.'

'THO. HENDERSON.'

In the third place: It is specified in the Causes of Wrath, as one of the steps of defection, Art. 9. Step. 5. 'That a treaty should have been closed with him, upon his subscribing demands, after he had given many clear evidences of his disaffection and enmity to the work and people of God: That these demands, which he was required to subscribe, did not contain a

real security, a real abandoning of former malignant courses and principles, and cleaving to the work of God; it was not a paper or verbal security which we were bound to demand of him, but a real one; and to entrust him without this, was but to mock God, and to deceive the world, and to betray and destroy ourselves, by giving up all the precious interests of religion and liberty unto the hands of one, who was in a course of enmity to them: That both before, and in the mean time of the treaty, he had given evidences of his enmity in many instances there condescended upon particularly; that he authorized James Graham to invade this kingdom, and encouraged him by letters to go on in that invasion, even whilst he was in terms of a treaty with us, as appeared by bringing into our hands the authentic commission itself, and sundry letters under his own hand.' Next, in the same Causes of Wrath, among the sins of the ministry, in relation to the public, sect. 10, 11, 12, 13. 'That they agreed to receive the king to the covenant, barely upon writing, without any apparent evidences of a real change of principle: That they did not use freedom, in showing what was sinful in reference to that treaty, but went on therein when they were not satisfied in their consciences, for fear of reproach, and of being mistaken: That they were silent in public, and did not give testimony, after a discovery of the king's commission to James Graham for invading the kingdom: That they pressed the king to make a declaration to the world, whilst they knew by clear evidences that he had no real conviction of the things contained therein.'

PERIOD VI.

Containing the Testimony through the continued tract of the present deformation from the year 1660 to this day.

Now comes the last catastrophe of the deformation of the church of Scotland, which now renders her to all nations as infamously despicable, as

her reformation formerly made her admired and envied; which in a retrograde motion hath gradually been growing these 27 years, going back through all the steps by which the reformation ascended, till now she is returned to the very border of that Babylon, from whence she took her departure, and reduced through defection, and division, and persecutions to a confused chaos of almost irreparable dissolution, and unavoidable desolation. Through all which steps notwithstanding, to this day, Scotland hath never wanted a witness for Christ, against all the various steps of the enemy's advancements, and of professed friends declinings: though the testimony hath had some singularities, some way discriminating it from that of former periods; in that it hath been more difficult by reason of more desperate and dreadful assaults of more enraged enemies, more expert and experienced in the accursed art of overturning than any formerly; in that it hath been attended with more disadvantages, by reason of the enemies greater prevalency, and friends deficiency, and greater want of significant asserters, than any formerly; in that it hath been intangled in more multifarious intricacies of questions, and debates, and divisions among the assertors themselves, making it more dark, and yet in the end contributing to clear it more than any formerly; in that it hath been intended and extended to a greater measure, both as to matter and manner of contendings against the adversaries, and stated upon nicer points; more enixly prosecuted and tenaciously maintained, and sealed with more sufferings, than any formerly; in that it hath had more opposition and contradiction, and less countenance from professed friends to the reformation, either at home or abroad, than any formerly. And yet it hath had all these several specialities together, which were peculiar to the former testimonies, in their respective periods: being both active and passive, both against enemies and friends; and *in cumulis* stated against atheism, popery, prelacy, and erastian supremacy, which were the successive heads of the former testimonies, and also now extended in a particular manner against tyranny. And not only

against the substance and circumstance, abstract and concret root and branch, head and tail of them, and all complying with them, conforming to them, or deduced from them, any manner of way, directly or indirectly, formally or interpretatively. This is that extensive and very comprehensive testimony of the present period, as it is now stated and sealed with the blood of many: which in all its parts, points and pendicles is most directly relative, and dilucidly reducible, to a complex witness for the declarative glory of Christ's kingship and headship over all, as he is Mediator, which is the greatest concern that creatures have to contend for, either as men or as Christians. The matter of this testimony, I shall give a short manuduction to the progress and result of its management.

During the exile of the royal brothers, it is undeniably known that they were, by their mothers caresses and the jesuits allurements, seduced to abjure the reformed religion (which was easy to induce persons to, that never had the sense of any religion) and to be reconciled to the church of Rome: and that, not only they wrote to the pope many promises of promoting his projects, if ever they should recover the power into their hands again, and often frequented the mass themselves; but also, by their example and the influence of their future hopes, prevailed with many of their dependents and attendants abroad, to do the like. Yet it is unquestionably known, that in the mean time of his exile, he renewed and confirmed, by private letters to presbyterians, his many reiterated engagements to adhere to the covenant, and declared that he was and would continue the same man, that he had declared himself to be in Scotland, (wherein doubtless, as he was an expert artist, he equivocated, and meant in his heart he would continue as treacherous as ever) which helped to keep a loyal impression of his interest in the hearts of too many, and an expectation of some good of him, of which they were ashamed afterwards. And immediately before his return, it is known what promises are contained in that declaration from Breda (from whence he came also the second time,

with greater treachery than at the first) to all protestants that would live peaceably under his government; beginning now to weigh out his perfidy, and perjury, and breach of covenant, in offering to tolerate that in an indulgence, which he swore to maintain as a duty. But in all this he purposed nothing, but to ingere and ingratiate himself into the peoples over credulous affections, that they might not obstruct his return, which a jealousy of his intended tyranny would have awakened them to withstand. And so having seated himself, and strengthened his power against the attemptings of any, whom his conscience might suggest an apprehension that they ought to resist him, he thought himself discharged from all obligations of covenants, oaths, or promises, for which his faith had been pledged. And from the first hour of his arrival, he did in a manner set himself to affront and defy the authority of God, and to be revenged upon his kingdoms for inviting him so unanimously to sway their sceptre; in polluting and infecting the people with all debaucheries and monstrous villanies; and commencing his incestuous whoredoms that very first night he came to his palace, wherein he continued to his dying day outvying all for vileness. Yet he went on deluding our church with his dissimulations, and would not discover all his wickedness hatched in his heart at first, till his designs should be riper; but directed a letter to the presbytery of Edinburgh, declaring he was resolved to protect and preserve the government of the church of Scotland, as it is settled by law without violation: wherein it was observed he altered the stile, and spake never a word of the covenant, our *Magna Charta* of religion and righteousness, our greatest security for all interests intrusted to him, but only of law; by which, as his practice expounded it afterwards, he meant the prelatical church, as it was settled by the law of his father, since which time he reckoned there was no law but rebellion. This was a piece and prelude of our base defection, and degeneration into blind blockish, and brutish stupidity; that after he had discovered so much perfidy, we not only at first tempted him to perjury, in

admitting him to the crown, upon his mock-engagement in the covenant, whereby God was mocked, his Spirit was grieved, his covenant prostituted, the church cheated, and the state betrayed; but after the Lord had broken his yoke from off our necks, by sending him to exile ten years, where he was discovered to be imbibing all that venom and tyrannical violence, which he afterward vented in revenge upon the nation; and after we had long smarted for our first transaction with him; yet notwithstanding of all this, we believed him again, and Issachar-like couched under his burdens and were so far from withstanding, that we did not so much as witness against the re-admission and restoration of the head and tail of malignants, but let them come in peaceably to the throne, without any security to the covenanted cause, or for our civil or religious interests, and by meal, at their own ease, leisure and pleasure, to overturn all the work of God, and reintroduce the old antichristian yoke of absurd prelacy, and blasphemous sacreligious, supremacy, and absolute arbitrary tyranny with all their abominations: which he, and with him the generality of our nobility, gentry, clergy, and commonality by him corrupted, without regard to faith, or fear of God or man, did promote and propogate, the nation was involved in the greatest revolt from, and rebellion against God, that ever could be recorded in any age or generation; nay attended with greater and grosser aggravations, than ever any could be capable of before us, who have had the greatest privileges that ever any church had, since the national church of the Jews, the greatest light, the greatest effects of matchless magnified love, the greatest convictions of sin, the greatest resolutions and solemn engagements against it, and the greatest reformation from it, that ever any had to abuse and affront. O heavens be astonished at this, and horribly afraid! for Scotland hath changed her glory, and the crown hath fallen from off her head, by an unparallelled apostasy, a free and voluntary, wilful and deliberate apostasy, an avowed and declared and authorized apostasy, tyrannically carried on by military violence and cruelty, a most universal and every way

unprecedented apostasy! I must a little change my method, in deducing the narration of this catastrophe, and subdistinguish this unhappy period into several steps; shewing how the enemies opposition to Christ advanced, and the testimony of his witnesses did gradually ascend, to the pitch it is now arrived at.

I. These enemies of God, having once got footing again, with the favour and the fawnings of the foolish nation, went on fervently to further and promote their wicked design: and meeting with no opposition at first, did encourage themselves to begin boldly. Wherefore, hearing of some ministers peaceably assembled, to draw up a monitory letter to the king, minding him of his covenant engagements and promises (which was though weak, yet the first witness and warning against that heaven-daring wickedness then begun) they cruelly incarcerate them. Having hereby much daunted the ministry from their duty in that day, for fear of the like unusual and outrageous usage. The parliament convenes January 1, 1661, without so much as a protestation for religion and liberty given in to them. And there, in the first place, they frame and take the oath of supremacy, exauctorating Christ, and investing his usurping enemy with the spoils of his robbed prerogative, acknowledging the king 'only supreme governor over all persons and in all causes, and that his power and jurisdiction must not be declined.' Whereby under all persons and all causes, all church officers, in their most properly ecclesiastic affairs and concerns of Christ, are comprehended: And if the king shall take upon him to judge their doctrine, worship, discipline, or government, he must not be declined as an incompetent judge. Which did at once enervate all the testimony of the 4th period above declared, and laid the foundation for all this Babel they have built since, and of all this war that hath been waged against the Son of God, and did introduce all this tyranny and absolute power, which hath been since carried to its complement, and made the king's throne the foundation of all the succeeding perjury and apostacy. Yet, though then our synods and presbyteries were not discharged, but might have had access in some concurrence to witness against this horrid invasion upon Christ's prerogative and the church's privilege, no joint testimony was given against it, except that some were found witnessing against it in their singular capacity by themselves. As faithful Mr. James Guthrie, for declining this

usurped authority in prejudice of the kingdom of our Lord Jesus, suffered death, and got the martyr's crown upon his head: And some others, for refuting that oath arbitrarily imposed, were banished or confined, when they had gained this bulwark of Christ's kingdom; then they waxed more insolent, and set up their ensigns for signs, and broke down the carved work of reformation with axes and hammers. In this parliament, 1661, they past an *act rescissory* whereby they annulled and declared void the national covenant, the solemn league and covenant, presbyterial government, and all laws made in favour of the work of reformation since the year 1643. O horrid wickedness! both in its nature so atrocious, to condemn and rescind what God did so signally seal as his own work, to the conviction of the world, and for which he will rescind the rescinders, and overturn these overturners of his work, and make the curse of that broken covenant bind them to the punishment, whom its bond could not oblige to the duty covenanted; and in its design and end so base and detestable, for nothing but to flatter the king in making way for prelacy, tyranny, and popery, and to indulge the licentiousness of some debauched nobles, who could not endure the yoke of Christ's government, and to suppress religion and righteousness under the ruins of that reformation. But O holy and astonishing justice, thus to recompence our way upon our own head! to suffer this work and cause to be ruined under our unhappy hands, who suffered this destroyer to come in before it was so effectually secured, as it should not have been in the power of his hand (whatever had been in his heart, swelled with enmity against Christ) to have razed and ruined that work as now most wickedly he did, and drew in so many into the guilt of the same deed, that almost the whole land not only consented unto it but applauded it; by approving and countenancing another wicked act framed at the same time, by that same perfidious parliament for an anniversary thanksgiving, commemorating every 29th of May, that blasphemy against the Spirit and work of God, and celebrating that unhappy restoration of the

rescinder of the reformation; which had not only the concurrence of the universality of the nation, but (alas for shame that it should be told in Gath, &c!) even of some ministers who afterwards accepted of the indulgence (one of which, a pillar among them, was seen scandalously dancing about the bonfires.) And others, who should have alarmed the whole nation *quasi pro aris & focis*, to rise for religion and liberty, to resist such wickedness, did wink at it. O how righteous is the Lord now in turning our harps into mourning! Though alas! we will not suffer ourselves to this day, to see the shining righteousness of this retribution: And though we be scourged with scorpions, and brayed in a mortar, our madness, our folly in these irreligious frolics, is not yet acknowledged, let be lamented. Yet albeit, neither in this day when then the covenant was not only broken, but cased and declared of no obligation, nor afterward when it was burnt (for which Turks and Pagans would have been ashamed and afraid at such a terrible sight, and for which the Lord's anger is burning against these bold burners, and against them who suffered it, and did not witness against it) was there any public testimony by protestation or remonstrance, or any public witness? though the Lord had some then, and some who came out afterward with the trumpet at their mouth, whole heart then sorrowed at the sight; and some suffered for the sense they shewed of that anniversary abomination, for not keeping which they lost both church and liberty. It is true the ordinary meetings of presbyteries and synods were about that time discharged, to make way for the exercise of the new power conferred on the four prelates who were at court, re-ordained and consecrated thereby renouncing their former title to the ministry. But this could not give a discharge from a necessary testimony, then called for from faithful watchmen. However the reformation being thus rescinded and razed, and the house of the Lord pulled down, then they begin to build their Babel. In the parliament 1662, by their first act they restore and re-establish prelacy, upon such a foundation as they might by the same law bring in popery,

which was then designed; and so settled its harbinger diocesan and erastian prelacy, by fuller enlargement of the supremacy. The very act begins thus: 'For as much as the ordering and disposal of the external government of the church, doth properly belong to his majesty as an inherent right of the crown, by virtue of his royal prerogative, and supremacy in causes ecclesiastic—whatever shall be determined by his majesty, with advice of the archbishops, and such of the clergy as he shall nominate, in the external government of the church (the same consisting with the standing laws of the kingdom) shall be valid and effectual. And in the same act all laws are rescinded, by which the sole power and jurisdiction within the church doth stand in the church assemblies, and all which may be interpreted, to have given any church power, jurisdiction, or government to the office-bearers of the church, other than that which acknowledgeth a dependence upon, and subordination to the sovereign power of the king as supreme.' By which, prelates are reintegrated to all their privileges and pre-eminencies, that they possessed 1637. And all their church power (robbed from the officers of Christ) is made to be derived from, to depend upon, and to be subordinate to the crown prerogative of the king: whereby the king is made the only fountain of church power, and that exclusive even of Christ, of whom there is no mentioned exception: And his vassals the bishops, as his clerks in ecclesiastics, are accountable to him for all their administrations; a greater usurpation upon the kingdom of Christ, than ever the papacy itself aspired unto. Yet, albeit here was another display of a banner of defiance against Christ, in altering the church government of Christ's institution into the human invention of lordly prelacy, in assuming a power by prerogative to dispose then of the external government of the church, and in giving his creatures patents for this effect, to be his administrators for that usurped government; there was no public, ministerial, at least united testimony against this neither. Therefore the Lord punished this sinful and shameful silence of ministers, in his holy justice, though by men's horrid wickedness;

when by another wicked act of the council at Glasgow, above 300 ministers were put from their charges; and afterwards, for their non-conformity in not countenancing their diocesan meeting, and not keeping the anniversary day, May 29, the rest were violently thrust from their labours in the Lord's vineyard, and banished from their parishes, and adjudged unto a nice and strange confinement, twenty miles from their own parishes, six miles from a cathedral church, as they called it, and three miles from a burgh; whereby they were reduced into many inconveniencies. Yet in this fatal convulsion of the church, generally all were struck with blindness and baseness, that a paper proclamation made them all run from their posts, and obey the king's orders for their ejection. Thus were they given up, because of their forbearing to sound an alarm, charging the people of God, in point of loyalty to Christ, and under the pain of the curse of the covenant, to awake and acquit themselves like men, and not to suffer the enemy to rob them of that treasure of reformation, which they were put in possession of, by the tears, prayers, and blood of such as went before them; instead of those prudential fumbings and firstlings then and since so much followed. Wherefore the Lord in his holy righteousness, left that enemy (against whom they should have cried and contended, and to whose eye they should have held the curse of the covenant, as having held it first to their own, in case of unfaithful silence in not holding it to his) to call them out of the house of the Lord, and dissolve their assemblies, and deprive them of their privileges, because of their not being so valiant for the truth, as that a full and faithful testimony against that encroachment might be found upon record. Nevertheless some were found faithful in that hour and power of darkness, who kept the word of the Lord's patience, and who were therefore kept in and from that temptation (which carried many away into sad and shameful defections) though not from suffering hard things from the hands of men; and only these who felt most of their violence, found grace helping them to acquit themselves suitably to that day's testimony, being thereby

prevented from an active yielding to their impositions, when they were made passively to suffer force. However that season of a public testimony was lost, and as to the most part never recovered to this day. The prelates being settled, and re-admitted to voice in parliament, they procure an act, dogmatically condemning several material parts and points of our covenanted reformation, to wit, these positions, 'That it was lawful for subjects, for reformation or necessary self-defence, to enter into leagues, or take up arms against the king: And particularly declaring, that the national covenant, as explained in the year 1638, and the solemn league and covenant, were and are in themselves unlawful oaths, and were taken by and imposed upon the subjects of this kingdom against the fundamental laws and liberties thereof, that all such gatherings and petitions that were used in the beginning of the late troubles, were unlawful and seditious: And whereas then people were led unto these things, by having disseminated among them such principles as these, That it was lawful to come with petitions and representations of grievances to the king, that it was lawful for people to restrict their allegiance under such and such limitations, and suspend it until he should give security for religion, &c. It was therefore enacted, that all such positions and practices founded thereupon, were treasonable.—And further did enact, that no person, by writing, praying, preaching, or malicious or advised speaking, express or publish any words or sentences, to stir up the people to the dislike of the king's prerogative and supremacy, or of the government of the church by bishops, or justify any of the deeds, actings, or things declared against by that act.' Yet notwithstanding of all this subversion of religion and liberty, and restraint of asserting these truths here trampled upon either before men by testimony, or before God in mourning over these indignities done unto him, in everting these and all the parts of reformation, even when it came to Daniel's case of confession, preaching and praying truths interdicted by law; few had their eyes open (let be their windows in an open avouching them) to see the duty

of the day calling for a testimony. Though afterwards, the Lord spirited some to assert and demonstrate the glory of these truths and duties to the world. As that judicious author of the Apologetical Relation, whose labours need no eulogium to commend them. But this is not all: for these men, having now as they thought subverted the work of God, they provided also against the fears of its revival: making acts, declaring, 'that if the outed ministers dare to continue to preach, and presume to exercise their ministry, they should be punished as seditious persons; requiring of all a due acknowledgement of, and hearty compliance with, the king's government, ecclesiastical and civil; and that whosoever shall ordinarily and wilfully withdraw and absent from the ordinary meetings for divine worship in their own churches on the Lord's day, shall incur the penalties there insert.' Thus the sometimes chaste virgin, whose name was Beulah to the Lord, the reformed church of Scotland, did now suffer a violent and villainous rape, from a vermin of vile schismatical apostates, obtruded and imposed upon her, instead of her able, painful, faithful, and successful pastors, that the Lord had set over her, and now by their faintness and the enemy's force, robbed from her, and none now allowed by law to administer the ordinances, but either apostate curates, who by their perjury and apostacy forfaulted their ministry, or other hirelings and prelates journeymen, who run without a mission, except from them who had none to give according to Christ's institution, the seal of whose ministry could never yet be shewn in the conversion of any sinner to Christ: but if the tree may be known by its fruits, we may know whose ministers they are; *ut ex ungue leonem*, by their conversions of reformation into deformation, of the work and cause of God into the similitude of the Roman beast, of ministers into hirelings, of their proselytes into ten times worse children of the devil than they were before, of the power of godliness into formality, of preaching Christ into orations of morality, of the purity of Christ's ordinances into the vanity of men's inventions, of the beautiful government of the house of God for edification,

to a lordly pre-eminence and domination over consciences; in a word, of church and state constitutions for religion and liberty, all upside down into wickedness and slavery: These are the conversions of prelacy. But now this astonishing blow to the gospel of the kingdom, introducing such a swarm of locusts into the church, and in forcing a compliance of the people with this defection, and that so violently and rigorously, as even simple withdrawing was so severely punished by severe edicts of fining, and other arbitrary punishments at first; what did it produce? did it awaken all Christ's ambassadors, now to appear for Christ, in this clear and claimant case of confessing him, and the freedom and purity of his ordinances? Alas! the backwardness and bentness to backsliding, in a superseding from the duties of that day, did make it evident, that now the Lord had in a great measure forsaken them, because they had forsaken him. The standard of the gospel was then fallen, and few to take it up. The generality of ministers and professors both went and conformed so far as to hear the curates, contrary to many points of the reformation formerly attained, contrary to their covenant engagements, and contrary to their own principles and practice at that same time; scrupling and refusing to keep the bishops visitations, and to countenance their discipline and power of jurisdiction, because it was required as a testification of their acknowledgment of, and compliance with the present government, and yet not scrupling to countenance their doctrine and usurped power of order required also by the same law, as the same test of the same compliance and submission. Its strange that some yet do plead for persisting in that same compliance, after all the bitter consequents of it. Other ministers lay altogether by in their retired recesses, waiting to see what things would turn to: others were hopeless, turned farmers and doctors: others more wily, staid at home, and preached quietly in ladies chambers. But the faithful thought that this tyrannical ejection did not nor could not unminister them, so as they might not preach the gospel wherever they were, as ambassadors of Christ; but rather found themselves under an

indispensible necessity to preach the gospel and witness for the freedom of their ministry, and make full proof of it, in preaching in season and out of season: and thereupon as occasion offered preached to all such as were willing to hear; but at first only in private houses, and that for the most part at such times, when sermons in public surceased (a superplus of caution.) But afterwards, finding so great difficulties and persecutions for their house meetings, where they were so easily entrapped, were constrained at last to keep their meetings in the fields, without shelter from cold, wind, snow, or rain. Where testifying both practically and particularly against these usurpations on their Master's prerogatives, and witnessing for their ministerial freedom, contrary to all law-interdictions, without any licences or indulgences from the usurper, but holding their ministry from Jesus Christ alone, both as to the office and exercise thereof; they had so much of their Master's countenance, and success in their labours, that they valued neither hazards nor hardships, neither the contempt of pretended friends, not the laws nor threatnings of enemies, adjudging the penalty of death itself to preachers at field conventicles as they called them. Now having thus overturned the church-government, by introducing prelacy, to advance an absolute supremacy; the effects whereof were either the corruption, or persecution of all the ministry, encouragement of profanity and wickedness, the encrease and advancement of popery, superstition, and error, cruel impositions on the conscience, and oppressions for conscience sake, by the practices of cruel supra-Spanish inquisitions, and all manner of outcries of outrageous violence and villany: the king proceeds in his design, to pervert and evert the well modelled and moderated constitution of the state government also, by introducing and advancing an arbitrary tyranny; the effects whereof were, an absolute mancipation of lives and liberties and estates unto his lust and pleasure, the utter subversion of laws, and absolute impoverishing of the people. For effectuating which, he first procures a lasting imposition of intollerable subsidies and taxations, to impoverish that

he might the more easily enslave the nation; next a further recognizance of his prerogative, in a subjection of persons, fortunes, and whole strength of the kingdom to his absolute arbitrement, 'in a levy of militia of 20,000 footmen, and 2000 horsemen sufficiently armed with 40 days provision, to be ready upon the king's call to march to any part of his dominions, for opposing whatsoever invasion, or insurrection, or for any other service.' The first sproutings of tyranny were cherished, by the cheerful and stupid submission generally yielded to these exorbitancies; under which they who suffered most were inwardly malecontents, but there was no opposition to them by word or action, but on the contrary, generally people did not so much as scruple sending out, or going out as militiamen: never adverting unto what this concurrence was designed, and demanded, and given for; nor what an accession it was, in the nature and influence of the mean itself, and in the sense and intention of the requirers, unto a confederacy for a compliance with, and a confirmation and strengthening of arbitrary tyranny. After the fundamental constitutions of both church and state are thus razed and rooted up, to confirm this absolute power, he contrived to frame all inferior magistrates according to his mould: And for this end appointed, that all persons in any public trust or office whatsoever should subscribe a declaration, renouncing and abjuring the covenants; whereby perjury was made the chief and indispensable qualification, and *conditio sine qua non*, of all that were capable of exercising any power or place in church or state. But finding this not yet sufficient security for this unsettled settlement; because he well understood, the people stood no ways obliged to acknowledge him but only according to the solemn covenants, being the fundamental conditions whereupon their allegiance was founded (as amongst all people, the articles mutually consented betwixt them and these whom they set over them, are the constituent fundamentals of government) and well knowing, that he and his associates, by violating these conditions, had loosed the people from all subjection to him, or any deriving power

from him, whereby the people might justly plead, that since he had kept no condition they were not now obliged to him, he therefore contrived a new oath of allegiance to be imposed upon all in public trust both in church and state; wherein they are made to oblige themselves to that boundless breaker of all bonds sacred and civil, and his successors also, without any reciprocal obligation from him to them, or any reserved restriction, limitation, or qualification, as all human authority by God's ordinance must be bounded. Whereby the swearers have by oath homologated the overturning of the very basis of the government, making free people slaves to the subverters thereof, betraying their native brethren and posterity to the lust of tyranny, and have in effect as really as if in plain terms affirmed, that whatsoever tyranny shall command or do, either as to the overturning of the work of God, subverting of religion, destroying of liberty, or persecuting all the godly to the utmost extremity, they shall not only stupidly endure it, but actively concur with it, and assist in all this tyranny. Alas there was no public testimony against this trick, to bring people under the yoke of tyranny; except by some who suffered for conscientious refusing it, while many others did take it, thinking to salve the matter by their pitiful quibbling senses, of giving Cesar his due. Whereas this Cesar, for whom these loyal alledgers plead, is not an ordinary Cesar, but such a Cesar, as Nero, or Caligula, that if he got his due, it would be in another kind. Strange! can presbyterians swear that allegiance, which is substituted in the place of the broken and burnt covenant? Or could they swear it to such a person, who having broken and buried the covenant, that he who had sworn it might have another right and allegiance than that of the covenant, had then remitted to us all allegiance founded upon the covenant? However, having now prepared and furnished himself with tools so qualified for his purpose, in church and state, he prosecutes his persecution with such fervour and fury, rage and revenge, impositions and oppressions, and with armed formed force, against the faithful following their duty in a peaceable

manner, without the least shadow of contempt even of his abused authority, that at length in the year 1666, a small party were compelled to go to defensive arms. Which, whatever was the desire of the court (as it is known how desirous they have been of an insurrection, when they thought themselves sure to suppress it, that they might have a vent for their cruelty; and how one of the brothers hath been heard say, that if he might have his wish, he would have them all turn rebels and go to arms.) Yet it was no predetermined design of that poor handful. For Sir James Turner, pursuing his cruel orders in Galloway, sent some soldiers to apprehend a poor old man; whom his neighbours compassionating, intreated the soldiers to loose him as he lay bound, but were answered with drawn swords and necessitated to their own defence: In which they relieve the man, and disarm the soldiers, and further attacked some others oppressing that country, disarming ten or twelve more, and killing one that made resistance. Whereupon, the country being alarmed, and fearing from sad experience Sir James would certainly avenge this affront upon the whole country, without distinction of free and unfree, they gather about 54 horsemen, march to Dumfries, take Sir James Turner prisoner, and disarm the soldiers, without any more violence. Being thus by providence engaged without any hope of retreat, and getting some concurrence of their brethren in the same condition, they came to Lanark, where they renew the covenant, and thence to Pentland hills; where, by the holy disposal of God, they were routed, many killed, and 130 taken prisoners, who were treated so treacherously and truculently, as Turks would have blushed to have seen the like. Hence now on the one hand, we may see the righteousness of God in leaving that enemy to him, whom we embraced, to make such avowed discoveries of himself, without a blush to the world, and to scourge us with scorpions that we nourished and put in his hands: And also, how justly at that time he left us into such a damp, that like asses we couched under all burdens, and few came out to the help of the Lord against the mighty, drawing on them

Meroz's curse, and the blood of their butchered brethren; after we had sat, and seen, and suffered all things civil and sacred to be destroyed in our fight, without resentment. And though the Lord, who called out these worthy patriots who fell at Pentland to such an appearance for his interests, did take a testimony of their hands with acceptance by sufferings, and singularly countenanced them in sealing it with their blood; yet he would not give success nor his presence to the enterprise, but left them in a sort of infatuation, without counsel and conduct, to be a prey to devourers, that by a sad inadvertency they took in the tyrant's interest into the state of the quarrel. Which should have warned his people for the future to have stated the quarrel otherwise.

II. By this time, and much more after, the king gave as many proofs and demonstrations of his being true to antichrist, in minding all the promises and treaties with him, as he had of his being false to Christ, in all his covenanted engagements with his people. For in this same year 1666, he, with his dear and royal brother the duke of York, contrived, countenanced, and abetted, the burning of London, evident by their employing their guards to hinder the people from saving their own, and to dismiss the incendiaries, the papists, that were taken in the fact. The committee, appointed to cognosce upon that business, traced it so far, that they durst go no further, unless they would arraign the duke, and charge the king, and yet before this, it was enacted as criminal for any to say the king was a papist. But having gained so much of his design in Scotland, where he had established prelacy, advanced tyranny to the height of absoluteness, and his supremacy almost beyond the reach of any additional supply, yea above the pope's own claim, and had now brought his only opposites, the few faithful witnesses of Christ, to a low pass; he went on by craft as well as cruelty, to advance his own in promoting antichrist's interest. And therefore, having gotten the supremacy devolved upon him by law (for which also he had the pope's dispensation, to take it to himself for the time, under promise to restore and

surrender it to him, as soon as he could obtain his end by it, as the other brother succeeding hath now done) he would now exert that usurped power, and work by insnaring policy to effectuate the end which he could not do by other means. Therefore, seeing he was not able to suppress the meetings of the Lord's people for gospel ordinances, in house and fields, but that the more he laboured by violent courses, the greater and more frequent they grew; he fell upon a more crafty device, not only to overthrow the gospel and suppress the meetings, but to break the faithful, and to divide, between the mad-cap and the moderate fanatics (as they phrased it) that he might the more easily destroy both, to confirm the usurpation, and to settle people in a sinful silence, and stupid submission to all the incroachments made on Christ's prerogatives, and more effectually to overturn what remained of the work of God. And, knowing that nothing could more fortify the supremacy than minister's homologating and acknowledging it; therefore he offered the first indulgence in the year 1669, signifying in a letter, dated that year June 7, his gracious pleasure was, 'to appoint so many of the outed ministers, as have lived peaceably and orderly, to return to preach and exercise other functions of the ministry, in the parish churches where they formerly served (provided they were vacant) and to allow patrons to present to other vacant churches, such others of them as the council should approve: That all who are so indulged, be enjoined to keep presbyteries, and the refusers to be confined within the bounds of their parishes: And that they be enjoined not to admit any of their neighbour parishes unto their communions, nor baptize their children, nor marry any of them, without the allowance of the minister of the parish, and if they countenance the people deserting their own parishes, they are to be silenced for shorter or longer time, or altogether turned out, as the council shall see cause; and upon complaint made and verified, of any seditious discourse or expressions in the pulpit, uttered by any of the ministers, they are immediately to be turned out, and further punished according to law: And seeing by these orders, all pretences for

conventicles were taken away, if any should be found hereafter to preach without authority, or keep conventicles, his pleasure is, to proceed with all severity against them, as seditious persons and contemners of authority.' To salve this in point of law, (because it was against former laws of their own) and to make the king's letter the supreme law afterwards, and a valid ground in law, whereupon the council might proceed, and enact, and execute what the king pleased in matters ecclesiastic; he therefore caused frame a formal statutory act of supremacy, of this tenor, 'That his majesty hath the supreme authority and supremacy over all persons and in all causes ecclesiastic, within his dominions, and that by virtue thereof, the ordering and disposal of the external government of the church, doth properly belong to him and his successors, as an inherent right to the crown: And that he may settle, enact, and emit such constitutions, acts, and orders, concerning the administrating thereof, and persons employed in the same, and concerning all ecclesiastical meetings and matters, to be proposed and determined therein, as he in his royal wisdom, shall think fit: which acts, orders, and constitutions, are to be observed and obeyed by all his majesty's subjects, any law, act, or custom to the contrary notwithstanding.' Whereupon, accordingly the council, in their act July 27, 1669, do nominate several ministers, and 'appoint them to preach, and exercise the other functions of the ministry, at their respective churches there specified, with consent of the patrons.' The same day also they conclude and enact the forementioned restrictions, conform to the king's letter above rehearsed, and ordain them to be intimate to every person, who is by authority foresaid allowed the exercise of the ministry. These indulged ministers, having that indulgence given only upon these terms, that they should accept these injunctions, and having received it upon these terms also (as an essential part of the bargain and condition, on which the indulgence was granted and accepted, as many following proclamations did expressly declare) do appoint Mr. Hutcheson, one of the number, 'to declare so much; in acknowledging his majesty's

favour and clemency, in granting that liberty, after so long a restraint; and however they had received their ministry from Jesus Christ, with full prescriptions from him for regulating them therein, yet nothing could be more refreshing on earth to them, than to have free liberty for the exercise of their ministry, under the protection of lawful authority; and so they purposed to behave themselves in the discharge of their ministry, with that wisdom that became faithful ministers, and to demean themselves towards lawful authority, notwithstanding of their known judgment in church affairs, as well becometh loyal subjects; and their prayer to God should be, that the Lord should bless his majesty in his person and government, and the council in the public administration, and especially in the pursuance of his majesty's mind in his letter, wherein his singular moderation eminently appears.'—Afterwards they issued out proclamations, reinforcing the punctual observation of the forementioned injunctions, and delivered them into the indulged. In the mean time, though cruel acts and edicts were made against the meetings of the Lord's people, in houses and the fields, after all these Midianitish wiles to suppress them, such was the presence of the Lord in these meetings, and so powerful was his countenance and concurrence with the labours of a few, who laid up themselves to hold up the standard of Christ; that the number of converts multiplied daily, to the praise of free grace, and to the great encouragement of the few hands that wrestled in that work, through all human discouragement. Therefore, the king and council was put to a new shift, which they supposed would prove more effectual: To wit, because there was a great number of nonconformed ministers not yet indulged, who either did or might hereafter hold conventicles, therefore to remeedy or prevent this in time coming, they appoint and ordain them to such places where indulged ministers were settled, there to be confined with allowance to preach as the indulged should employ them; thinking by this means to incapacitate many to hold meetings there or elsewhere: And to these also they give injunctions and restrictions to regulate them in the

exercise of their ministry. And to the end that all the outed ministers might be brought under restraint, and the word of God be kept under bonds, by another act of council they command, that all other ministers (not disposed of as is said) were either to repair to the parish churches where they were, or to some other parishes where they may be ordinary hearers, and to declare and condescend upon the parishes where they intend to have their residence. After this they assumed a power, to dispose of these their curates as they pleased, and transport them from place to place; whereof the only ground was a simple act of council, the instructions always going along with them, as the constant companion of the indulgence. By all which it is apparent; whatever these ministers alledge, in vindication of it to cover its deformity, in their balms to take away its stink, and in their surveys to gather plaisters to scurf over its scurviness, viz. that it was but the removal of the civil restraint, and that they entered into their places by the call of the people (a mere mock pretence for a prelimited imposition, whereby that ordinance of Christ was basely prostituted and abused) and that their testimony and protestation was a salvo for their conscience (a mere Utopian fancy, that the indulgers with whom they bargained never heard of, otherwise, as they did with some who were faithful in testifying against their encroachments, they would soon have given them a bill of ease). It cannot be denied, that that doleful indulgence, both in its rise, contrivance, conveyance, grant, and acceptance, end and effects, was a grievous encroachment upon the princely prerogative of Jesus Christ the only head of the church; whereby the usurper's supremacy was homologated, bowed to, complied with, strengthened and established, the cause and kingdom of Christ betrayed, his church's privileges surrendered, his enemies hardened, his friends stumbled, and the remnant rent and ruined; in that it was granted and deduced from the king's supremacy, and conveyed by the council; in that, according to his pleasure, he gave and they received a licence and warrant, to such as he nominated and elected, and judged fit and qualified

for it, and fixed them in what particular parish he pleased to assign, under the notion of a confinement, in that he imposed and they submitted to restrictions in the exercise of their ministry, in these particular parishes, inhibiting to preach elsewhere in the church; and with these restrictions, he gave and they received instructions to regulate and direct them in their functions: all which was done without advice or consent of the church: and thereupon they have frequently been called and convened before the council, to give account of their ministerial exercise, and some of them sentenced, silenced, and deposed for alledged disobedience. This was a manifest treason against Christ, which involved many in the actual guilt of it that day, and many others who gaped after it, and could not obtain it, and far more at that time and since in the guilt of misprision of treason, in passing this also without a witness. Thus, in holy judgment, because of our indulging and conniving at the usurper of Christ's throne, he left a great part of the ministers to take that wretched indulgence; and another part, instead of remonstrating the wickedness of that deed, have been left to palliate, and plaister, and patronize it, in keeping up the credit of the king and council's curates, wherein they have shewed more zeal, than ever against that wicked indulgence. Yet the Lord had some witnesses, who pretty early did give significations of their resentment of this dishonour done to Christ, as Mr. William Weir, who having got the legal call of the people, and discharging his duty honestly, was turned out; and Mr. John Burnet, who wrote a testimony directed to the council, shewing why he could not submit to that indulgence, inserted at large in the history of the indulgence; where also we have the testimony of other ten ministers, who drew up their reasons of non-compliance with such a snare; and Mr. Alexander Blair, who, upon occasion of a citation before the council for not observing the 29th of May, having with others made his appearance, and got new copies of instructions presented to them, being moved with zeal and remembering whose ambassador he was, told the council plainly, that he could receive no

instructions from them in the exercise of his ministry, otherwise he should not be Christ's ambassador but theirs, and herewith lets their instructions drop out of his hand, knowing of no other salvo or manner of testifying for the truth in the case; for which he was imprisoned, and died under confinement. But afterwards, the Lord raised up some more explicit witnesses against that defection. All this trouble was before the year 1673. About which time, finding this device of indulgences proved so steadable for his service in Scotland, he was induced to try it also in England; which he did almost with the same or like success, and producing the same effects of defection, security, and unfaithfulness. The occasion was upon his wars with the Dutch; which gave another demonstrative discovery of his treachery and popish perfidy, in breaking league with them, and entering into one with the French, to destroy religion and liberty in Britain: 'Wherein the king of France assures him an absolute authority over his parliaments, and to re-establish the catholic religion in his kingdoms of England, Scotland and Ireland; to compass which it was necessary first to abate the pride and power of the Dutch, and to reduce them to the sole province of Holland, by which means the king of England should have Zealand for a retreat in case of need, and that the rest of the Low Countries should remain to the king of France, if he could render himself master of it. But to return to Scotland.' While by the forementioned device, he thought he had utterly suppressed the gospel in house and field meetings, he was so far disappointed, that these very means and machines by which he thought to bury it, did chiefly contribute to its revival. For, when by persecution many ministers had been chased away by illegal law sentences, many had been drawn away from their duty, and others were now sentenced with confinements and restraints, if they should not chuse and fix their residence where they could not keep their quiet and conscience both; they were forced to wander and disperse through the country, and the people being tired of the cold and dead curates, and wanting long the ministry of their old

pastors, so longed and hungered after the word, that they behaved to have it at any rate cost what it would; which made them entertain the dispersed ministers more earnestly, and encouraged them more to their duty. By whose endeavours, through the mighty power and presence of God, and the light of his countenance now shining through the cloud, after so fatal and fearful a darkness that had overclouded the land for a while, with such a resplendent brightness, that it darkened the prelatic locusts, and made them hiss and gnash their tongues for pain, and dazzled the eyes of all onlookers; the word of God grew exceedingly, and went through at least the southern borders of the kingdom like lightning, or like the sun in its meridian beauty; discovering so the wonders of God's law, the mysteries of his gospel, and the secrets of his covenant, and the sins and duties of that day, that a numerous issue was begotten to Christ, and his conquest was glorious, captivating poor slaves of satan, and bringing them from his power unto God, and from darkness to light. O! who can remember the glory of that day, without a melting heart, in reflecting upon what we have lost, and let go, and sinned away, by our misimprovements. O that in that our day we had heartened to his voice, and had known the things that belonged to our peace! A day of such power, that it made the people, even the bulk and body of the people, willing to come out and venture, upon the greatest of hardships and the greatest of hazards, in pursuing after the gospel, through mosses and muirs, and inaccessible mountains, summer and winter, through excess of heat and extremity of cold, many days and night-journeys; even when they could not have a probable expectation of escaping the sword of the wilderness, and the barbarous fury of bloody Burrio's raging for their prey, sent out with orders to take and kill them, it being now made criminal by law, especially to the preachers and convokers of those meetings. But this was a day of such power, that nothing could daunt them from their duty, that had tasted once the sweetness of the Lord's presence at these persecuted meetings. Then had we such humiliation-days for personal and public

defections, such communion-days even in the open fields, and such sabbath-solemnities, that the places where they were kept might have been called Bethel, or Peniel, or Bochim, and all of them Jehovah-Shammah; wherein many were truly converted, more convinced, and generally all reformed from their former immoralities: that even robbers, thieves, and profane men, were some of them brought to a saving subjection to Christ, and generally under such a restraint, that all the severities of heading and hanging, &c. in a great many years, could not make such a civil reformation, as a few days of the gospel, in these formerly the devils territories, now Christ's quarters, where his kingly standard was displayed. I have not language to lay out in the inexpressible glory of that day: but I will make bold to say two things of it, first, I doubt if ever there was greater days of the Son of man upon the earth since the apostolic times, than we enjoyed for the space of seven years at that time: and next, I doubt, if upon the back of such a lightsome day there was ever a blacker night of darkness, defection, division, and confusion, and a more universal impudent apostasy, than we have seen since. The world is at a great loss, that a more exact and complete account demonstrating both these, is not published, which I am sure would be a fertile theme to any faithful pen. But this not being my scope at present, but only to deduce the steps of the contendings of Christ's friends and his enemies, I must follow the thread of my narration. Now when Christ is gaining ground by the preached gospel in plenty, in purity, and power, the usurper's supremacy was like to stagger, and prelacy came under universal contempt, in so much that several country curates would have had but scarce half a dozen of hearers, and some none at all. And this was a general observe that never failed, that no sooner did any poor soul come to get a serious sense of religion, and was brought under any real exercise of spirit about their souls concerns, but as soon they did fall out with prelacy and left the curates. Hence to secure what he had possessed himself of by law, and to prevent a dangerous paroxism which he thought

would ensue upon these commotions, the king returned to exercise his innate tyranny, and to emit terrible orders, and more terrible executioners, and bloody emissaries, against all field meetings: which, after long patience, the people at length could not endure; but being first chased to the fields, where they would have been content to have the gospel with all the inconveniences of it, and also expelled from the fields, being resolute to maintain the gospel, they resolved to defend it and themselves by arms. To which, unavoidable necessity in unsupportable extremity did constrain them, as the only remaining remedy. It is known, for several years they met without any arms, where frequently they were disturbed and dispersed with soldiers, some killed, others wounded, which they patiently endured without resistance: At length the ministers that were most in hazard, having a price set upon their heads to be brought in dead or alive, with some attending them in their wanderings, understanding they were thus appointed for death, judged it their duty to provide for the necessary defence of their lives from the violence of their armed assaulters. And as meetings increased, diverse others came under the same hazards, which enforced them to endeavour the same remedy, without the least intention of prejudice to any. Thus the number of sufferers increasing, as they joined in the ordinances at these persecuted meetings, found themselves in some probable capacity to defend themselves, and these much endeared and precious gospel privileges, and to preserve the memory of the Lord's great work in the land, which to transmit to posterity was their great design. And they had no small encouragement to endeavour it, by the satisfying sweetness and comfort they found in these ordinances, being persuaded of the justness of their cause, and of the groundlessness of their adversaries quarrel against them: And hereunto also they were incited and prompted, by the palpableness of the enemy's purposes to destroy the remainder of the gospel, by extirpating the remnant that professed it. Wherefore in these circumstances, being reduced to that strait, either to be deprived of the

gospel, or to defend themselves in their meetings for it; and thinking their turning their backs upon it for hazard was a cowardly deserting duty, and palpable breach of covenant-engagements, abandoning their greatest interest, they thought it expedient, yea necessary, to carry defensive arms with them. And as for that discouragement, from the difficulty and danger of it, because of their fewness and meanness, it did not deter or daunt them from the endeavour of their duty; when they considered the Lord in former times was wont to own a very small party of their ancestors, who in extremity jeopardied their lives in defence of reformation against very potent and powerful enemies: These now owning the same cause, judged themselves obliged to run the same hazard, in the same circumstances, and to follow the same method, and durst not leave it unessayed, leaving the event to God: considering also, that not only the law of nature and nations doth allow self defence from unjust violence, but also the indissoluble obligation of their covenants, to maintain and defend the true religion, and one another in promoting the same, made it indispensable to use that endeavour, the defect of which, through their former supineness gave no small encouragement to the enemies: They considered also what would be the consequence of that war, declared against all the faithful of the land with a displayed banner, prosecuted with fire and sword, and all acts of horrid hostility published in printed proclamations, and written in characters of blood by barbarous soldiers, so that none could enjoy gospel ordinances dispensed in purity, but upon the hazard of their lives: and therefore, to prevent and frustrate these effects, they endeavoured to put themselves in a posture. And hereunto they were encouraged, by the constant experience of the Lord's countenancing their endeavours in that posture, which always proved successful for several years, their enemies either turning their backs without disturbance, when they observed them resolve defence, or in their assaultings repulsed: So that there was never a meeting which stood to their defence, got any considerable harm thereby. Thus the Lord was with us

while we were with him, but when we forsook him, then he forsook us, and left us in the hands of our enemies. However, while meetings for gospel ordinances did continue, the wicked rulers did not cease from time to time to encrease their numerous bands of barbarous soldiers for suppressing the gospel in these field meetings. And for their maintenance, they imposed new wicked and arbitrary cesses and taxations, professedly required for suppressing religion and liberty, banishing the gospel out of the land, and preserving and promoting his absoluteness over all matters and persons sacred and civil: Which, under that temptation of great suffering threatened to refusers, and under the disadvantage of the silence and unfaithfulness of many ministers, who either did not condemn it, or pleaded for the peaceable payment of it, many did comply with it then, and far more since. Yet at that time there were far more recusants, in some places, (especially in the western shires) than compliers; and there were many of the ministers that did faithfully declare to the people the sin of it; not only from the illegality of its imposition, by a convention of overawed and prelimitated states; but from the nature of that imposed compliance, that it was a sinful transaction with Christ's declared enemies, a strengthening the hands of the wicked, an obedience to a wicked law, a consenting to Christ's expulsion out of the land, and not only that, but (far worse than the sin of the Gadarenes) a formal concurrence to assist his expellers, by maintaining their force, a hiring our oppressors to destroy religion and liberty; and from the fountain of it, an arbitrary power domineering over us, and oppressing and overpressing the kingdoms with intolerable exactions, that to pay it, it was to entail slavery on their posterity; and from the declared end of it, expressed in the very narrative of the act, viz. to levy and maintain forces for suppressing and dispersing meetings of the Lord's people, and to show unanimous affection for maintaining the king's supremacy as now established by law; which designs he resolved, and would be capacitate by the granters to effectuate by such a grant, which in effect, to all tender

consciences had an evident tendency to the exauctorating the Lord Christ, to maintain soldiers to suppress his work, and murder his followers, yet all this time ministers and professors were unite, and with one soul and shoulder followed the work of the Lord, till the indulged, being dissatisfied with the meetings in the fields, whose glory was like to overcloud and obscure their beds of ease, and especially being offended at the freedom and faithfulness of some, who set the trumpet to their mouth, and shewed Jacob his sins, and Israel his transgressions, impartially without a cloak or cover, they began to make a faction among the ministers, and to devise how to quench the fervour of their zeal who were faithful for God. But the more they sought to extinguish it, the more it broke out and blazed into a flame. For several of Christ's ambassadors, touched and affected with the affronts done to their princely master by the supremacy and the indulgence its bastard brood and brat, began after long silence to discover its iniquity, and to acquaint the people how the usurper had invaded the Mediator's chair, in taking upon him to depose, suspend, silence, plant, and transplant his ministers, where and when and how he pleased, and to give forth warrants and licences for admitting them, with canons and instructions for regulating them in the exercise of their ministry, and to arraign and censure them at his courts for delinquencies in their ministry; pursuing all to the death who are faithful to Christ, and maintain their loyalty to his laws, and will not prostitute their consciences to his lusts, and bow down to the idol of his supremacy, but will own the kingly authority of Christ. Yet others, and the greater number of dissenting ministers, were not only deficient herein, but defended them, joined with them, and (pretending prudence and prevention of schism) in effect homologated that deed and the practice of these priests. Ezek. xxii. 16. teaching and advising the people to hear them, both by precept and going along with them in that erastian course: and not only so, but condemned and censured such who preached against the sinfulness thereof, especially in the first place, worthy Mr. Welwood, who was among

the first witnesses against that defection, and Mr. Kid, Mr. King, Mr. Cameron, Mr. Donald Gargil, &c. who sealed their testimony afterwards with their blood; yet then even by their brethren were loaden with the reproachful nicknames of schismatics, blind zealots, Jesuits, &c. But it was always observed, as long as ministers were faithful in following the Lord in the way of their duty, professors were fervent, and under all their conflicts with persecutors, the courage and zeal of the lovers of Christ was blazing, and never out-braved by all the enemies boastings to undertake brisk exploits: which from time to time they were now and then essaying, till defection destroyed, and division diverted their zeal against the enemies of God, who before were always the object against which they whetted the edge of their just indignation. Especially the insulting insolency and insolent villany of that public incendiary, the arch-prelate Sharp, was judged intolerable by ingenuous spirits; because he had treacherously betrayed the church and nation, and being employed as their delegate to oppose the threatened introduction of prelacy, he had like a perjured apostate and perfidious traitor advanced himself into the place of primate of Scotland, and being a member of council he became a chief instrument of all the persecution, and main instigator to all the bloody violence and cruelty that was exerced against the people of God; by whose means, the letter sent down to stop the shedding of more blood after Pentland was kept up, until several of these martyrs were murdered. Therefore in July 1668, Mr. James Mitchel thought it his duty to save himself, deliver his brethren, and free the land of the violence of that beast of prey, and attempted to cut him off: which failing, he then escaped, but afterwards was apprehended; and being moved by the council's oath, and act of assurance promising his life, he made confession of the fact: yet afterwards for the same he was arraigned before the justiciary, and the confession he made was brought in against him, and witnessed by the perjured chancellor Rothes, and other lords, contrary to their oath and act produced in open court, to their

indelible infamy: whereupon he was tortured, condemned, and executed. But justice would not suffer this murder to pass long unrevenged, nor that truculent traitor, James Sharp the arch-prelate, who was the occasion and cause of it, and of many more both before and after, to escape remarkable punishment; the severity whereof did sufficiently compensate its delay, after ten years respite, wherein he ceased not more and more to pursue, persecute, and make havock of the righteous for their duty, until at length he received the just demerit of his perfidy, perjury, apostacy, sorceries, villanies, and murders, sharp arrows of the mighty and coals of juniper. For upon the 3d of May 1679, several worthy gentlemen, with some other men of courage and zeal for the cause of God and the good of the country, executed righteous judgment upon him in Magus Moor near St. Andrews. And that same month, on the anniversary day, May 29, the testimony at Rutherglen was published against that abomination of celebrating an anniversary day, kept every year for giving thanks for the setting up an usurped power, destroying the interest of Christ in the land.—And against all sinful and unlawful acts, emitted and executed, published and prosecuted against our covenanted reformation. Where also they burnt the act of supremacy, the declaration, the act recissory, &c. in way of retaliation for the burning of the covenants. On the Sabbath following June 1. a field meeting for the worship of God near to Loudoun-hill was assaulted by Graham of Claverhouse, and with him three troops of horse and dragoons, who had that morning taken an honest minister and about fourteen country men out of their beds, and carried them along with them as prisoners to the meeting in a barbarous manner. But by the good hand of God upon the defendents, they were repulsed at Drumclog and put to flight, the prisoners relieved, about thirty of the soldiers killed on the place, and three of the meeting, and several wounded on both sides. Thereafter the people retreating from the pursuit, consulted what was expedient in that juncture, whether to disperse themselves as formerly, or to keep together for their

necessary defence. The result was, that considering the craft and cruelty of those they had to deal with, the sad consequence of falling into their hands now more incensed than ever, the evil effects that likely would ensue upon their separation, which would give them access to make havock of all; they judged it most safe in that extremity for some time not to separate. Which resolution, coming abroad to the ears of others of their brethren, determined them incontinently to come to their assistance, considering the necessity, and their own liableness to the same common danger, upon the account of their endeavours of that nature elsewhere to defend themselves, being of the same judgment for maintaining of the same cause, to which they were bound by the same covenants, and groaning under the same burdens; they judged therefore that if they now with-held their assistance in such a strait, they could not be innocent of their brethren's blood, nor found faithful in their covenant: to which they were encouraged with the countenance and success the Lord had given to that meeting, in that defensive resistance. This was the rise and occasion of that appearance at Bothwel-bridge, which the Lord did in his holy sovereignty confound, for former defections by the means of division, which broke that little army among themselves, before they were broken by the enemy. They continued together in amiable and amicable peace for the space of eight or nine days, while they endeavoured to put out and keep out every wicked thing from amongst them, and adhered to the Rutherglen testimony, and that short declaration at Glasgow confirming it; representing their 'present purposes and endeavours, where, only in vindication and defence of the reformed religion—as they stood obliged thereto by the national and solemn league and covenant, and the solemn acknowledgment of sins and engagement to duties; declaring against popery, prelacy, erastianism, and all things depending thereupon.' Intending hereby to comprehend the defection of the indulgence, to witness against which all unanimously agreed: until the army increasing, the defenders and daubers of that defection, some ministers and others, came in

who broke all, and upon whom the blood of that appearance may be charged. The occasion of the breach was, first, when in the sense of the obligation of that command, when the host goeth forth against thine enemies, keep thee from every wicked thing, an overture was offered to set times apart for humiliation for the public sins of the land, according to the practice of the godly in all ages, before engaging their enemies, and the laudable precedents of our ancestors; that so the causes of God's wrath against the nation might be enquired into and confessed, and the Lord's blessing, counsel, and conduct to and upon present endeavours, might be implored. And accordingly the complying with abjured erastianism, by the acceptance of the ensnared indulgence, offered by and received from the usurping rulers, was condescended upon among the rest of the grounds of fasting and humiliation, so seasonably and necessarily called for at that time. The sticklers for the indulgence refused the overture, upon politic considerations, for fear of offending the indulged ministers and gentlemen, and provoking them to withdraw their assistance. This was the great cause of the division, that produced such unhappy and destructive effects. And next, whereas the cause was stated before according to the covenants, in the Rutherglen-testimony and Glasgow-declaration, wherein the king's interest was waved; these dividers drew up another large paper (called the Hamilton-declaration) wherein they assert the king's interest, according to the third article of the solemn league and covenant. Against which the best affected contended, and protested they could not in conscience put in his interest in the state of the quarrel, being now in stated opposition to Christ's interests, and inconsistent with the meaning of the covenant, and the practices of the covenanters, and their own testimonies; while now he could not be declared for as being in the defence of religion and liberty, when he had so palpably overturned and ruined the work of reformation, and oppressed such as adhered thereunto, and had burnt the covenant, &c. Whereby he had loosed the people from all obligation to him from it. Yet

that contrary faction prevailed, so far as to get it published in the name of all: whereby the cause was perverted and betrayed, and the former testimonies rendered irrite, and the interest of the public enemy espoused. Finally, the same day that the enemy approached in sight, and a considerable advantage was offered to do execution against them, these loyal gentlemen hindered and retarded all action, till a parly was beat, and an address dispatched to the duke of Monmouth, who then commanded his father's army. By which nothing was gained, but free liberty given to the enemies to plant their cannon, and advance without interruption. After which, in the holy all over-ruling providence of God, that poor handful was signally discountenanced of God, deprived of all conduct, divested of all protection, and laid open to the raging sword, the just punishment of all such tamperings with the enemies of God, and espousing their interest, and omitting humiliation for their own and the land's sins. About 300 were killed in the fields, and 1000, and upwards were taken prisoners, stripped, and carried to Edinburgh, where they were kept for a long time in the Greyfriar's church-yard, without shelter from cold and rain. And at length had the temptation of an insnaring bond of peace: Wherein they were to acknowledge that insurrection to be rebellion, and oblige themselves never to rise in arms against the king, nor any commissionate by him, and to live peaceably, &c. Which, through fear of threatened death, and the unfaithfulness of some, and the impudence of other ministers that persuaded them to take it, prevailed with many: Yet others resolutely resisted, judging it to imply a condemning of their duty, an abandoning of their covenant engagements, wherein they were obliged to duties inconsistent with such bonds, and a voluntary binding up their hands from all oppositions to the declared war against Christ, which is the native sense of the peace they require, which can never be entertained long with men so treacherous. And therefore, upon reasons of principle and conscience they refused that pretended indemnity, offered in these terms. Nevertheless the most part took

it: and yet were sentenced with banishment, and sent away for America as well as they who refused it; and by the way, (a few excepted,) perished in shipwreck: whose blood yet cries both against the imposers, and the persuaders to that bond.

III. This fearful and fatal stroke at Bothwel, not only was in its immediate effects so deadly, but in its consequents so destructive, that the decaying church of Scotland, which before was beginning to revive, was then cast into such a swoon that she is never like to recover to this day. And the universality of her children, which before espoused her testimony, was after that partly drawn by craft, and partly drawn by cruelty, from a conjunction with their brethren in prosecuting the same, either into an open defection to the contrary side, or into a detestable indifferency and neutrality in the cause of God. For first of all the duke of Monmouth, whose nature, more averse from cruelty than the rest of that progeny, made him pliable to all suggestions of wicked policy that seemed to have a shew of smoothness and lenity, procured the emission of a pretended indemnity, attended with the foresaid bond of peace for its companion. Which were dreadful snares, catching many with flatteries, and fair pretences of favours, fairded over with curious words, and cozening names, of living peaceably, &c. while in the mean time a most deadly and destructive thrust (as it were under the fifth rib) because most secret, was intended against all that was left remaining of the work of God undestroyed, and a bar put upon all essays to revive or recover it by their own consent who should endeavour it. This course of defection carried away many at that time: And from that time, since the taking of the bond of peaceable living, there hath been an universal preferring of peace to truth, and of ease to duty. And the generality have been left to swallow all baits, though the hook was never so discernible, all those ensnaring oaths and bonds imposed since, which both then and since people were left to their own determination to chuse or refuse; many ministers refusing to give their advice when required and

requested thereunto, and some not being ashamed or afraid to persuade the people to take them. The ministry then also were generally insnared with that bonded indulgence, the pretended benefit of that indemnity, which as it was designed, so it produced the woful effect of propagating the defection, and promoting the division, and laying them by from their duty and testimony of that day, which to this day they have not yet taken upon their former ground. For when a proclamation was emitted, inveighing bitterly against field meetings, and absolutely interdicting all such for the future under highest pain, but granting liberty to preach in houses upon the terms of a cautionary bond given for their living peaceably: yet excluding all these ministers who were suspected to have been at the late rebellion, and all these who shall afterward be admitted by non-conform ministers: and certifying, that if ever they shall be at any field conventicle, the said indemnity shall not be useful to such transgressors any manner of way: and requiring security, that none under the colour of this favour continue to preach rebellion. Though there seems to be enough in the proclamation itself to have scared them from this scandalous snare, yet a meeting of ministers at Edinburgh made up of indulged, avowed applauders of the indulgence, or underhand approvers and favourers of the same, and some of them old public resolutioners, assuming to themselves the name of a general assembly, yea of the representatives of the church of Scotland, voted for the acceptance of it. And so formally transacted and bargained upon base, dishonest, and dishonourable terms with the usurper, by consenting and compacting with the people to give that bond, wherein the people upon an humble petition to the council, 'obtaining their indulged minister to bind and oblige—that the said—shall live peaceably. And in order thereto to present him, before his majesty's privy council, when they shall be called so to do; and in case of failzie in not presenting him, to be liable to the sum of 6000 merks.' Whereby they condemned themselves of former unpeaceableness, and engaged to a sinful peace with the enemies of

God, and became bound and fettered under these bonds to a forbearance of a testimony, and made answerable to their courts, and the people were bound to present them for their duty. The sinfulness, scandalousness, and inconveniences of which transactions, are abundantly demonstrated by a treatise thereupon, intitled, the banders disbanded. Nevertheless many embraced this new bastard indulgence, that had not the benefit of the former brat, of the same mother the supremacy, and far more consented to it without a witness, and most of all did some way homologate it, in preaching under the scone of it: declining the many reiterated and urged calls of the zealous lovers of Christ, to come out and maintain the testimony of the gospel in the open fields, for the honour of their Master and the freedom of their ministry. Whereupon, as many poor people were stumbled and jumbled into many confusions, so that they were so bewildered and bemisted in doubts and debates, that they knew not what to do, and were tempted to question the cause formerly so fervently contended for against all opposition, then so simply abandoned, by these that seemed sometimes valiant for it, when they saw them consulting more their own ease than the concerns of their Master's glory, or the necessity of the poor people hungering for the gospel, and standing in need of counsel in time of such abounding snares, whereby many became a prey to all tentations: so the more zealous and faithful, after several addresses, calls, and invitations to ministers, finding themselves deserted by them, judged themselves under a necessity to discountenance many of them, whom formerly they followed with pleasure; and to resolve upon a pursuit and prosecution of the duty of the day without them, and to provide themselves with faithful ministers, who would not shun for all hazards to declare the whole counsel of God. And accordingly through the tender mercy of God, compassionating the exigence of the people, the Lord sent them first Mr. Richard Cameron, with whom after his serious solicitation his brethren denied their concurrence, and then Mr. Donald Cargil; who, with a zeal and boldness becoming

Christ's ambassadors, maintained and prosecuted the testimony, against all the indignities done to their Master and wrongs to the cause, both by the encroachments of adversaries and defections of their declining brethren. Wherein they were signally countenanced of their Master; and the Lord's inheritance was again revived with the showers of the gospel's blessings, wherewith they had been before refreshed; and enlightened with a glance and glimpse of resplendent brightness, immediately before the obscurity of this fearful night of darkness that hath succeeded. But as Christ was then displaying his beauty, to his poor despised and persecuted people; so antichrist began to blaze his bravery, in the solemn and shameful reception of his harbinger, that pimp of the Romish whore, the duke of York. Who had now pulled off the mask, under which he had long covered his antichristian bigotry, through a trick of his brother, constrained by the papists importunity, and the necessity of their favour, and recruit of their coin, either to declare himself papist, or to make his brother do it: whereby all the locusts were engaged to his interest, with whom he entered into a conspiracy and popish plot; as was discovered by many infallible evidences, and confessed by Coleman his secretary, to Sir Edmund-Bury Godfrey; for which, lest he should witness against him, when Coleman was apprehended, that gentleman was cruelly murdered by the duke of York's contrivance and command. Yet for all the demonstrations of his being a bigot papist, that he had long given unto the world, it is known what some suffered for saying, that the duke of York was a papist, and being forced to leave England, he was come to Scotland to promote popery and arbitrary government. However, though the parliament of England, for his popery and villany, and his plotting and pursuing the destruction of the nation, did vote his exclusion; yet degenerate Scotland did receive him in great pomp and pride. Against which, the forementioned faithful witnesses of Christ did find themselves obliged to testify their just resentment, and to protest against his succeeding to the crown, in their declaration published at Sanquhar, June

22d, 1680. 'Wherein also they disown Charles Stewart, as having any right, title, or interest in the crown of Scotland or government thereof, as being forefaulted several years since, by his perjury and breach of covenant, usurpation on Christ's prerogatives, and by his tyranny and breaches in the very *leges regnandi* in matters civil—and declare a war with him, and all the men of these practices—homologating the testimony at Rutherglen, and disclaiming that declaration at Hamilton.' This action was generally condemned by the body of lurking ministers, both for the matter of it, and the unseasonableness of it, and its apparent unfeasibleness, being done by a handful so inconsiderable, for number, strength, or significancy. But as they had very great and important reasons to disclaim that tyrant's authority, hinted in the declaration itself, and hereafter more fully vindicated: so the necessity of a testimony against all the tyrannical encroachments on religion and liberty, then current and increasing; and the sin and shame of shifting and delaying it so long, when the blasphemous supremacy was now advanced to its summit; the church's privileges all overturned; religion and the work of reformation trampled under foot; the people's rights and liberties destroyed, and laws all subverted; and no shadow of government left but arbitrary absoluteness, obtruding the tyrant's will for reason, and his letter for the supreme law (witness the answer which one of the council gave to another; objecting against their proceedings as not according to law, what devil do ye talk of law? have not we the king's letter for it?) and all the ends of magistracy wholly inverted; while innocent and honest people were grievously oppressed in their persons, consciences, and estates; and perjuries, adulteries, idolatries, and all impieties were not only connived at, but countenanced as badges of loyalty, and manifest and monstrous robberies and murders authorized, judgement turned into gall, and the fruit of righteousness into hemlock; do justify its seasonableness: and the ends of the declaration, to keep up the standard of the gospel, and maintain the work of reformation, and preserve a remnant of faithful adherers to it; the

nature of the resolution declared, being only to endeavour to make good and maintain their revolt, in opposition to all who would pursue them for it, and reinforce them to a subjection to that yoke of slavery again; and the extremity of danger and distress that party was in, while declared and pursued as rebels, and intercommuned and interdicted of all supply and solace, being put out of their own, and by law precluded of the harbour of all other habitations, and so both for safety and subsistence compelled by necessity to concur and keep together, may alleviate the censure and stop the clamour of its unfeasibleness. But though it is not the prudence of the management, but the justness of the action, that I would have vindicated from obloquies; yet it wanted nothing but success to justify both, in the conviction of many that made much outcry against it. In these dangerous circumstances their difficulties and discouragements daily increased, by their enemies vigilance, their enviers treachery, and their own inadvertency, some of their number falling into the hands of them that sought their lives. For two of the most eminent and faithful witnesses of Christ, Mr. Donald Cargil and Henry Hall, were surprized at Queensferry; Mr. Cargil escaped at that time, but the other fervent contender for the interest of Christ, fixed in the cause, and courageous to his death, endeavouring to save him and resist the enemies, was cruelly murdered by them. And with him they got a draught of a covenant, declaring their present purposes and future resolutions. The tenor whereof was an engagement. '1. To avouch the only true and living God to be their God, and to close with his way of redemption by his Son Jesus Christ, whose righteousness is only to be relied upon for justification; and to take the scriptures of the old and new testament, to be the only object of faith, and rule of conversation in all things. 2. To establish in the land righteousness and religion, in the truth of its doctrine, purity and power of its worship, discipline, and government; and to free the church of God of the corruption of prelacy on the one hand; and the thralldom of erastianism on the other. 3. To persevere in the doctrine

of the reformed churches, especially that of Scotland, and in the worship prescribed in the scriptures, without the inventions, adornings, and corruptions of men; and in the presbyterian government, exercised in sessions, presbyteries, synods, and general assemblies, as a distinct government from the civil, and distinctly to be exercised, not after a carnal manner, by plurality of votes, or authority of a single person, but according to the word of God, making and carrying the sentence. 4. To endeavour the overthrow of the kingdom of darkness, and whatsoever is contrary to the kingdom of Christ, especially idolatry, and popery in all its articles, and the overthrow of that power that hath established and upheld it—and to execute righteous judgments impartially, according to the word of God, and degree of offences, upon the committers of these things especially, to wit, blasphemy, idolatry, atheism, bougery, sorcery, perjury, uncleanness, profanation of the Lord's day, oppression and malignancy.—5. Seriously considering—there is no more speedy way of relaxation from the wrath of God, that hath ever lien on the land since it engaged with these rulers, but of rejecting them who hath so manifestly rejected God—disclaiming his covenant—governing contrary to all right laws, divine and human—and contrary to all the ends of government, by enacting and commanding impieties, injuries, and robberies, to the denying of God his due, and the subjects theirs; so that instead of government, godliness, and peace, there is nothing but rapine, tumult, and blood, which cannot be called a government, but a lustful rage—and they cannot be called governors, but public grassators and land-judgments, which all ought to set themselves against, as they would do against pestilence, sword, and famine raging amongst them—Seeing they have stopped the course of law and justice against blasphemers, idolaters, atheists, bougerers, sorcerers, murderers, incestuous and adulterous persons—And have made butcheries on the Lord's people, sold them as slaves, imprisoned, forefaulted &c. and that upon no other account, but their maintaining Christ's right of ruling over

their consciences against the usurpations of men. Therefore, easily solving the objections, (1.) Of our ancestors obliging the nation to this race and line: That they did not buy their liberty with our thralldom, nor could they bind their children to any thing so much to their prejudice, and against natural liberty (being a benefit next to life, if not in some regard above it) which is not as an engagement to moral things: they could only bind to that government, which they esteemed the best for common good, which reason ceasing, we are free to choose another, if we find it more conducive for that end. (2.) Of the covenant binding to defend the king: That this obligation is only in his maintenance of the true covenanted religion—which homage they cannot now require upon the account of the covenant, which they have renounced and disclaimed; and upon no other ground we are bound to them—the crown not being an inheritance that passeth from father to son without the consent of tenants—(3.) Of the hope of their returning from these courses: whereof there is none, seeing they have so often declared their purposes of persevering in them, and suppose they should dissemble a repentance—supposing also they might be pardoned, for that which is done—from whose guiltiness the land cannot be cleansed, but by executing God's righteous judgments upon them—yet they cannot now be believed, after they have violated all that human wisdom could devise to bind them. Upon these accounts they reject that king, and those associate with him in the government—and declare them henceforth no lawful rulers, as they had declared them to be no lawful subjects—they having destroyed the established religion, overturned the fundamental laws of the kingdom, taken away Christ's church-government, and changed the civil into tyranny, where none are associate in partaking of the government, but only these who will be found by justice guilty criminals—and declare they shall, God giving power, set up government and governors according to the word of God, and the qualifications required Exod. xviii. verse 20.—And shall not commit the government to any single person, or lineal succession, being not tied as the

Jews were to one single family—and that kind being liable to most inconveniences, and aptest to degenerate into tyranny—and moreover, that these men set over them shall be engaged to govern principally, by that civil and judicial law (not that which is any way typical) given by God to his people of Israel—as the best so far as it goes, being given by God—especially in matters of life and death—and other things, so far as they reach, and are consistent with Christian liberty—exempting divorces and polygamy—6. Seeing the greatest part of ministers not only were defective in preaching against the acts of the rulers for overthrowing religion—but hindered others also who were willing, and censured some that did it—and have voted for acceptation of that liberty, founded upon and given by virtue of that blasphemously arrogate and usurped power—and appeared before their courts to accept of it, and to be enacted and authorized their ministers—whereby they have become the ministers of men, and bound to be answerable to them as they will—and have preached for the lawfulness of paying that tribute, declared to be imposed for the bearing down of the true worship of God—and advised poor prisoners to subscribe that bond—which if it were universally subscribed—they should close that door, which the Lord hath made use of in all the churches of Europe, for casting off the yoke of the whore—and stop all regrets of men, when once brought under tyranny, to recover their liberty again.—They declare they neither can nor will hear them &c. nor any who encouraged and strengthened their hands, and pleaded for them, and trafficked for union with them. 7. That they are for a standing gospel ministry, rightly chosen and rightly ordained—and that none shall take upon them the preaching of the word &c. unless called and ordained thereunto—and whereas separation might be imputed to them, they resell both the malice, and the ignorance of that calumny—for if there be a separation, it must be where the change is; and that was not to be found in them, who were not separating from the communion of the true church, nor setting up a new ministry, but cleaving to the same ministers and

ordinances, that formerly they followed, when others have fled to new ways, and a new authority, which is like the old piece in the new garment.

8. That they shall defend themselves in their civil, natural, and divine rights and liberties—and if any assault them, they shall look on it as a declaring a war, and take all advantages that one enemy does of another—but trouble and injure none but those that injure them.' This is the compend of that paper which the enemies seized and published, while it was only in a rude draught, and not polished, digested, nor consulted by the rest of the community: yet, whether or not it was for their advantage, so to blaze their own baseness in that paper truly represented, I leave it to the reader to judge: or, if they did not thereby proclaim their own tyranny, and the innocency and honesty of that people, whom thereby they were seeking to make odious; but in effect inviting all lovers of religion and liberty to sympathise with them, in their difficulties and distresses there discovered. However that poor party continued together in a posture of defence, without the concurrence or countenance of their covenanted brethren, who staid at home, and left both them to be murdered and their testimony to be trampled upon, until the 22d of July 1680. Upon the which day they were attacked at Airmoss, by a strong party of about 120 horse well armed, while they were but 23 horse and 40 foot at most; and so fighting valiantly were at length routed, not without their adversaries testimony of their being resolute men: Several of Zion's precious mourners, and faithful witnesses of Christ were killed; and among the rest, that faithful minister of Christ, Mr. Richard Cameron, sealed and fulfilled his testimony with his blood. And with others, the valiant and much honoured gentleman, David Hackstoun of Rathillet, was after many received wounds apprehended, brought in to Edinburgh; and there, resolutely adhering to the testimony, and disowning the authority of king and council, and all their tyrannical judicatories, was cruelly murdered, but countenanced eminently of the Lord. Now remained Mr. Donald Cargill, deprived of his faithful colleague, destitute of his

brethren's concurrence, but not of the Lord's counsel and conduct; by which he was prompted and helped to prosecute the testimony against the universal apostacy of the church and nation, tyranny of enemies, backsliding of friends, and all the wrongs done to his Master on all hands. And considering, in the zeal of God, and sense of his holy jealousy, provoked and threatening wrath against the land, for the sins especially of rulers, who had arrived to the height of heaven-daring insolence in all wickedness, in which they were still growing and going on without controul; that notwithstanding of all the testimonies given against them, by public preachings, protestations, and declarations, remonstrating their tyranny, and disowning their authority; yet not only did they still persist in their sins and scandals, to make the Lord's fierce anger break forth into a flame, but were owned also by professors, not only as magistrates, but as members of the christian and protestant church; and that, however both the defensive arms of men had been used against them, and the christian arms of prayer, and the ministerial weapon of preaching, yet that of ecclesiastical censure had not been authoritatively exerted against them: Therefore, that no weapon which Christ allows his servants under his standard to manage against his enemies, might be wanting, though he could not obtain the concurrence of his brethren to strengthen the solemnity and formality of the action, yet he did not judge that defect, in this broken case of the church, could disable his authority, nor demur the duty, but that he might and ought to proceed to excommunication. And accordingly in September 1680, at the Torwood, he excommunicated some of the most scandalous and principal promoters and abettors of this conspiracy against Christ, as formally as the present case could admit: After sermon upon Ezek. xxi. 25, 26, 27. 'And thou profane wicked prince of Israel, whose day is come,' &c. He had a short and pertinent discourse on the nature, the subject, the causes, and the ends of excommunication in general: And then declared, that he was not led out of any private spirit or passion to this action, but constrained by

conscience of duty, and zeal to God to stigmatize with this brand, and wound with the sword of the Lord, these enemies of God that had so apostatized, rebelled against, mocked, despised, and defied our Lord, and to declare them as they are none of his, to be none of ours. 'The persons excommunicated; and the sentence against them was given forth as follows: 'I being a minister of Jesus Christ, and having authority and power from him, do, in his name, and by his Spirit, excommunicate, cast out of the true church, and deliver up to Satan, Charles the Second, king,' &c. The sentence was founded upon these grounds, declared in the pronunciation thereof, (1.) 'For his high mocking of God, in that after he had acknowledged his own sins, his father's sins, his mother's idolatry, yet he had gone on more avowedly in the same than all before him. (2.) For his great perjury in breaking and burning the covenant. (3.) For his rescinding all laws for establishing the reformation, and enacting laws contrary thereunto. (4.) For commanding of armies to destroy the Lord's people. (5.) For his being an enemy to true protestants, and helper of the papists, and hindering the execution of just laws against them. (6.) For his granting remissions and pardons for murderers, which is in the power of no king to do, being expressly contrary to the law of God. (7.) For his adulteries, and dissembling with God and man.' Next, by the same authority, and in the same name, he excommunicated James duke of York, 'for his idolatry, and setting it up in Scotland to dedefile the land, and enticing and encouraging others to do so:' Not mentioning any other sins but what he scandalously persisted in in Scotland, &c. With several other rotten malignant enemies, on whom the Lord hath ratified that sentence since very remarkably, whole sins and punishments both may be read more visible in the providences of the time, than I can record them. But about this time, when amidst all the abounding defections and divisions of that dark and dismal hour of temptation, some in zeal for the cause were endeavouring to keep up the testimony of the day, in an abstraction from complying ministers; others

were left (in holy judgment, to be a stumbling-block to the generation hardening them in their defections, and to be a beacon to the most zealous to keep off from all unwarrantable excesses) to fall into fearful extravagancies, and delirious and damnable delusions, being overdriven with ignorant and blind zeal into untrodden paths, which led them into a labyrinth of darkness; when as they were stumbled at many ministers unfaithfulness, so through the deceit of Satan, and the hypocrisy of his instruments, they came to be offended at Mr. Cargil's faithfulness, who spared neither left hand declensions, nor right hand extremes, and left him and all the ministers; not only disowning all communion with those that were not of their way, but execrating and cursing them; and kept themselves in desert places from all company; where they persisted prodigiously in fastings and singing psalms, pretending to wonderful raptures and enthusiasms: and in fine, J. Gib, with four more of them came to that height of blasphemy, that they burnt the Bible and Confession of Faith. These were the 'sweet singers,' as they were called, led away into these delusions by that impostor and sorcerer, John Gib, who never encreased to such a number, as was then feared and reported, being within thirty, and most part women: all which for the most part have been through mercy reclaimed from that destructive way, which through grace the reproached remnant, adhering to the foresaid testimony, had always an abhorrence of. Wherefore that ignorant and impudent calumny, of their consortship with Gib's followers, is only the vent of viperous envy. For they were the first that discovered them, and whose pains the Lord blessed in reclaiming them, and were always so far from partaking with them, that to this day these that have come off from that way, and have offered the confession of their scandal, do still complain of their over rigid severity, in not admitting them to their select fellowships. To which may be added this undeniable demonstration, that whereas the persecuting courts of inquisition did always extend the utmost severity against the owners of this testimony, yet they

spared them: And the duke of York, then in Scotland, was so well pleased with Gib's blasphemies, that he favoured him extraordinarily, and freely dismissed him. This was a cloudy and dark day, but not without a burning and shining light as long as that faithful minister of Christ, Mr. Donald Cargil, was following the work of the Lord; who shortly after this finished his testimony, being apprehended with other two faithful and zealous witnesses of Christ, Mr. Walter Smith, and Mr. James Boog, who with two more were altogether, at Edinburgh, 27 July, 1681, crowned with the glory of martyrdom. Then came the day of the remnant's vexation, trouble, darkness and dimness of anguish, wherein whoso looked unto the land could see nothing but darkness and sorrow, and the light darkened in the heavens thereof, wherein neither star nor sun appeared for many days, and poor people were made to grope for the wall like the blind, and to stumble in noon-day as in the night. While the persecution advanced on the one hand, a violent spait of defection carried down the most part of ministers and professors before it, driving them to courses of sinful and scandalous conformings with the time's corruptions, compearings before their courts, complying with their commands, paying of their cesses and other exactions, taking of their oaths and bonds, and countenancing their prelatial church-services, which they were ashamed to do before: and thereupon on the other hand the divisions and confusions were augmented, and poor people that desired to cleave to the testimony were more and more offended and stumbled at the ministers, who, either left the land in that clamant call of the people's necessity, or lurked in their own retirements, and declined the duty of that day, leaving people to determine themselves in all their perplexities, as a prey to all temptations. But the tender Pastor and Shepherd of Israel, who leads the blind in the way they know not, did not forsake a remnant in that hour of temptation who kept the word of his patience; and as He helped those that fell into the hands of enemies to witness a good confession, so He strengthened the zeal of the remaining

contenders, against all the machinations of adversaries to crush it, and all the methods of backsliding professors to quench it. And the mean which most effectually preserved it in life and vigour, was the expedient they fell upon of corresponding in general meetings, to consult, inform, and confirm, one another about common duties in common dangers, for preservation of the remnant from the destruction and contagion of the times, and propagation of the testimony: laying down this general conclusion for a foundation of order, to be observed among them in incident doubtful cases, and emergent controversies, that nothing relative to the public, and which concerns the whole of their community, be done by any of them, without harmonious consent sought after and rationally waited for, and sufficient deliberation about the means and manner. In the mean time, the duke of York, as commissioner from his brother, held a parliament wherein he presided, not only against all righteous laws that make a bloody and avowed papist incapable of such a trust, but against the letter of their own wicked laws, whereby none ought to be admitted but such as swear the oaths; yet not only was he constitute in this place, but in the whole administration of the government of Scotland without the taking any oath, which then he was courting to be entailed successor and heir of the crown thereof; and for this end made many pretences of flatteries, and feigned expressions of love, and of doing many acts of kindness to that ancient kingdom, as he hath made many dissembling protestations of it since, for carrying on his own popish and tyrannical designs: but what good-will he hath borne to it, not only his acts and actings written in characters of the blood of innocents declare, but his words do witness, which is known when and to whom he spake, when he said, It would never be well till all on the southside of Forth were made a hunting field. However in that parliament, anno 1681, he is chiefly intended, and upon the matter by a wicked act declared legal and lineal successor, and a detestable blasphemous and self-contradictory test is framed for a pest to consciences, which turned out of all places of trust any

that had any remaining measure of common honesty; and when some was speaking of a bill for securing religion in case of a popish prince, the duke's answer was notable, that whatsoever they intended or prepared against papists should light upon others: whereby we may understand what measures we may expect, when his designs are ripe. And to all the cruel acts then and before made against the people of God, there was one superadded regulating the execution of all the rest, whereby at one dash all civil and criminal justice was overthrown, and a foundation laid for popish tyranny, that the right of jurisdiction both in civil and criminal matters is so inherent in the crown, that his majesty may judge all causes by himself, or any other he thinks fit to commissionate. Here was law for commissionating soldiers to take away the lives of innocents, as was frequently exemplified afterwards, and may serve hereafter for erecting the Spanish inquisition to murder protestants when he thinks fit to commissionate them. Against which wicked encroachments on religion and liberty, the faithful thought themselves obliged to emit a testimony: and therefore published a declaration at Lanark, January 12. 1682. Confirming the preceeding at Sanquhar, and adding reasons of their revolt from the government of Charles the second.

1. 'For cutting off the neck at one blow of the noble constitution of church and state, and involving all officers in the kingdom in the same perjury with himself.
2. For exalting himself into a sphere exceeding all measures divine and human, tyrannically obtruding his will for a law in his arbitrary letters, so that we are made the reproach of nations, who say, we have only the law of letters instead of the letter of the law.
3. For his constant adjourning and dissolving parliaments at his pleasure.
4. For his arrogantly arrogated supremacy in all causes civil and ecclesiastic, and oppressing the godly for conscience and duty.
5. For his exorbitant taxings, cessings, and grinding the faces of the poor, dilapidating the rights and revenues of the crown, for no other end but to employ them for keeping up a brothel rather than a court.
6. For installing a successor, such an one (if

not worse) as himself, contrary to all law, reason, and religion, and framing the test, &c. And in end offer to prove, they have done nothing in this against our ancient laws, civil or ecclesiastic—but only endeavoured to extricate themselves from under a tyrannous yoke, and to reduce church and state to what they were in the year 1648 and 1649.' After which declaration, they were more condemned by them that were at ease than ever, and very untenderly dealt with; being without any previous admonition reproached, accused, and informed against, both at home and abroad, as if they had turned to some wild and unhappy course. For which cause, in the next general meeting, they resolved to delegate some of their number to foreign churches, on purpose to vindicate themselves from these calumnies, and to represent the justness of their cause, and the sadness of their case, and provoke them to some sympathy abroad, which was then denied at home: and withal to provide for a succession of witnesses, who might maintain the testimony, which was then in appearance interrupted, except by martyrdom and sufferings. Therefore by that means having obtained access for the instruction of some young men, at an university in the united provinces, in process of time, Mr. James Renwick received ordination there, and came home to take up the standard of his master, upon the ground where it last was left, and to carry on the testimony against all the oppositions of that day, from open enemies and backsliding professors: an undertaking more desperate-like than that *Unus Athanasius contra totam orbem*, and like that of a child threshing down a mountain. Which yet against all the outrageous rage of ravening enemies, ranging, ravaging, hunting, chasing, pursuing after him, through all the towns, villages, cottages, woods, moors, mosses, and mountains of the country; and against all the scourge of tongues, contradictions, condemnations, obliquies, reproaches, and cruel mockings of incensed professors, and generally of all the inhabitants of the land; he was helped to prosecute, by many weary wanderings, travels, and traversings thro' the deserts, night and day, preaching, conferring, and

catechising, mostly in the cold winter-nights in the open fields: until, by the blessing of God upon his labours, not only was the faithful witnessing remnant that joined in the testimony, further cleared, confirmed, and encouraged, and their number much increased by the coming in and joining of many others to the fellowship of their settled societies; but also many others, in other places of the country were induced to the contracting themselves in the like, to the settling such fellowships in most of the southern shires. But then the fury of persecutors began to flame more flagrantly than ever; not only in sending out cruel soldiers, foot, horse and dragoons, habitually fleshed in, and filled with the blood of the saints, to hunt, hound, chase, and pursue after them, and seek them out of all their dens and hiding-holes, in the wildest glens, fens, and remotest recesses in the wilderness; but emitting edicts allowing them to kill, slay, hang, drown, and destroy such as they could apprehend of them *pro libitu*; and commanding the country to assist them, in raising the hue and cry after them, and not to refer, harbour, supply, or correspond any manner of way with them, under the hazard and pain of being liable to the same punishment. Whereby the country was harassed and spoiled in searching after them, and many villains were stirred up to give informations and intelligence of these wanderers wherever they saw them, or learned where they were. Hence followed such a slaughter and seizure of them, that common people usually date their common occurrences since, from that beginning of killing time, as they call it. For which cause, to preserve themselves from, and put a stop to that deluge of blood, and demur and deter the insolency of intelligencers and informers, they were necessitate to publish the Apologetical Relation, and affix it upon several market-crosses and parish-doors, November 8, 1684. Wherein they 'declare their firm resolution, of constant adherence to their covenants and engagements, and to the declarations disowning the authority of Charles Stewart. And to testify to the world, that they purpose not to injure or offend any

whomsoever, but to pursue the ends of their covenants, in standing to the defence of the work of reformation, and of their own lives; yet, if any shall stretch forth their hand against them, by shedding their blood actually, either by authoritative commanding or obeying such commands, to search for them, and deliver them up to the spilling of their blood, to inform against them, to raise the hue and cry after them, and delate them before their courts. All these shall be reputed by them enemies to God and the covenanted reformation, and punished as such, according to their power and the degree of their offence, if they shall continue so maliciously to proceed against them; and declare, they abhor and condemn any personal attempt, upon any pretext whatsoever, without previous deliberation, common or competent consent, without certain probation by sufficient witnesses, the guilty person's confession, or the notourness of the deeds themselves; and in the end warn the bloody Doegs, and flattering Ziphites informing against them, to expect to be dealt with as they deal with them.' This declaration, though it occasioned greater trials to them and trouble to the country, by the courts of inquisition, pressing an oath abjuring the same universally upon all, as well women as men, and suffering none to travel without a pass, declaring they had taken that oath: yet it was so far effectual, as to scare many from their former diligence in informing against them, and to draw out some to join with the wanderers more publicly, even when the danger was greatest of owning any respect to them. But at length in the top and height of their insulting insolency, and heat of their brutish immanity and barbarous cruelty, designing to cut off the very name of that remnant, the king of terrors (a terror to kings) cut off that supreme author and authorizer of these mischiefs, Charles the Second, by the suspicious intervention of an unnatural hand as the instrument thereof. Wherein much of the justice of God was to be observed, and of his faithfulness verified, that 'bloody and deceitful men shall not live out half their days.' His bloody violence was recompensed with the unnatural villany of his brother, and his unparalleled

perfidy was justly rewarded with the most ungrate and monstrous treachery of a parricide: for all the numerous brood of his adulterous and incestuous brats, begotten of other men's wives, and of his numerous multitude of whores at home and abroad, yea of his own sister too, he died a childless pultron, and had the unlamented burial of an ass, without a successor save him that murdered him: and for all his hypocritical pretensions to a protestant profession, he not only received absolution and extreme unction from a popish priest at his death, but drunk his death in a popish potion, contrived by his own dear brother that succeeded him; impatiently longing to accomplish that conspiracy of reintrading popery, wherein the other moved too slowly, and passionately resenting Charles's vow, to suffer the murder of the earl of Essex to come to a trial (which was retorted by the reiterated solicitations of some, who offered to discover by whom it was contrived and acted) which made the duke's guilty conscience to dread a detection of his deep accession to it: whereupon the potion quickly after prepared, put a stop to that, and an end to his life, Feb. 6, 1685. Of which horrid villany time will disclose the mystery, and give the history when it shall be seasonable.

IV. The former persecution and tyranny, mainly promoted by the duke of York's instigation, did not only oppress the poorer sort, but reached also the greatest of the nobility and gentry in both kingdoms. In Scotland, the earl of Argyle was arraigned and condemned for his explanation of the test, but escaped out of the castle of Edinburgh, *anno* 1681. And after him several gentlemen were arbitrarily oppressed and troubled, upon the act of intercommuning with rebels, and for a pretended plot against the government (as they called it) but really because they knew these gentlemen had a desire, and would design to preserve the nation, which they were seeking to destroy, and would counteract their wicked projects to advance popery and tyranny upon the ruins of the nation's interest. For which cause they left their native country, to seek safety and quiet abroad. And in

England, upon the same pretences, the lord Russel was murdered by law, and the earl of Essex by a razor in the Tower, in a morning when the king and duke of York came to pay it a visit. And many other gentlemen lost either their lives or fortunes, upon the same grounds of opposing the duke's designs: which made many resort to the United Provinces. Where they, with the Scots gentlemen, as soon as they heard of the death of Charles II. and of the ascending of James duke of York, a notorious and bigot papist, to the throne, associating themselves in counsel, to essay some diversion and opposition to the present current of tyranny and popery, threatening the ruin of both nations; resolved and agreed upon the declaring a war against that usurper and all his complices. And in order thereunto, having provided themselves with arms, concluded that a certain number should, under the conduct of James duke of Monmouth, direct their course for England, for managing the war there: And others to go for the same ends to Scotland, under the conduct of Archibald earl of Argyle, their chosen captain. Whereupon in a short time they arrived at Orkney, where two gentlemen of their company going ashore, were taken prisoners, and carried to Edinburgh; whereby the country was alarmed, and a huge host gathered to oppose them. From thence they went to the West Highlands, where encreasing to the number of about 2000 men, they traversed to and again about Kintyre and Bute, and other places in the Highlands, for six or seven weeks, until many of their men ran away, and the rest were much straitened for want of victuals, their passage by sea was blocked up by ships of war, and by land with their numerous enemies, who got time to gather and strengthen themselves, whereby their friends were frustrate and more oppressed, and themselves kept little better than prisoners, till their spirits were wearied and worn out, and all hope lost. At length the earl determined, when out of time, to leave the Highlands, and the ships, cannons, arms, and ammunition at Island Craig, and marched towards Dumbarton, crossing the water of Leven about three miles above it. Next morning near Duntreith,

they discovered a party of the enemy, and faced towards them, but they retired. And then directed their course towards Glasgow, were intercepted by a body of the enemy's army: where they drew up in battalia one against another, and stood in arms till the evening, a water being betwixt them. But Argyle's party, perceiving that their enemies were above ten times their number, and that themselves were wearied out with a long and tedious march, want of victuals and sleep, resolved to withdraw: but as soon as it grew dark, all hope lost, they dispersed, every man shifting for himself; only a few keeping together all the next day, had a skirmish with a party of the enemies, in which they slew the captain, and about 12 or some more of his men, and afterwards they dispersed themselves also. The enemies, searching the country, gleaned up the earl of Argyle himself, colonel Rumbol an Englishman, Mr. Thomas Archer minister, Gavin Russel, and David Law, who were all condemned and executed at Edinburgh, and many others who were banished to America: and about some 20 in the Highlands, who were hanged at Inveraray. In England, the duke of Monmouth's expedition, though it had more action, yet terminated in the same success, the loss of many hundred lives, many killed in battle: and afterwards, by the mercy of the duke of York, several hundreds in the west of England were carried about, and hanged before the doors of their own habitations; and to make his captains sport by the way, according to the number of the hours of the day, when the murdering humour came in their head, so many of the poor captives were hanged, as a prodigious monument of monstrous cruelty. This was the commencement of the present tyrant's government. In the mean time, the wanderers in Scotland, though they did not associate with this expedition upon the account of the too promiscuous admittance of persons to trust in that party, who were then and since have discovered themselves to be enemies to the cause, and because they could not espouse their declaration as the state of their quarrel, being not concerted according to the constant plea of the Scots covenanters, and for other reasons given in

their late vindication: yet against this usurpation of a bloody papist, advancing himself to the throne in such a manner, they published another declaration at Sanquhar, May 28, 1685. 'Wherein approving and adhering unto all their former declarations, and considering that James Duke of York, a profest and excommunicate papist, was proclaimed.—To testify their resentment of that deed, and to make it appear unto the world, that they were free thereof, by concurrence or connivance; they protest against the foresaid proclamation of James duke of York as king: in regard that it is the chusing of a murderer to be a governor, who hath shed the blood of the saints—that it is the height of confederacy with an idolater, forbidden by the law of God—contrary to the declaration of the general assembly of the church, July 27, 1649. And contrary to many wholesome and laudable acts of parliament—and inconsistent with the safety, faith, conscience, and christian liberty of a Christian people, to chuse a subject of antichrist to be their supreme magistrate—and to instruct an enemy to the work and people of God with the interests of both: and upon many important grounds and reasons (which there they express) they protest against the validity and constitution of that parliament, approving and ratifying the foresaid proclamation.—And against all kind of popery in general and particular heads—as abjured by the national covenant, and abrogated by acts of parliament—and against its entry again into this land, and every thing that doth or may directly or indirectly make way for the same: disclaiming likewise all sectarianism, malignancy, and any confederacy therewith.'—This was their testimony against popery in the season thereof: which though it was not so much condemned as any former declarations, yet neither in this had they the concurrence of any ministers or professors; who as they had been silent, and omitted a seasonable testimony against prelacy, and the supremacy, when these were introduced, so now also, even when this wicked mystery and conspiracy of popery and tyranny, twisted together in the present design of antichrist, had made so great a progress, and was

evidently brought above board, they were left to let slip this opportunity of a testimony also, to the reproach of the declining and far degenerate church of Scotland. Yea to their shame, the very rabble of ignorant people may be brought as a witness against the body of presbyterian ministers in Scotland, in that they testified their detestation of the first erection of the idolatrous mass, and some of the soldiery, and such as had no profession of religion, suffered unto death for speaking against popery and the designs of the king, while the ministers were silent. And some of the curates, and members of the late parliament, 1686, made some stickling against the taking away of the penal statutes against papists; while presbyterians, from whom might have been expected greater opposition, were sleeping in a profound submission. I cannot without confusion of spirit touch these obvious and dolorous reflections, and yet in candour cannot forbear them. However the persecution against the wanderers went on, and more cruel edicts were given forth against them, while a relenting abatement of severity was pretended against other dissenters. At length what could not be obtained by law at the late parliament, for taking off the statutes against papists, was effectuated by prerogative: and to make it pass with the greater approbation, it was conveyed in a channel of pretended clemency, offering a sort of liberty, but really introducing a licentious latitude, for bringing in all future snares by taking off some former, as arbitrarily as before they were imposed, in a proclamation, dated Feb. 12, 1687. 'Granting by the king's sovereign authority, prerogative royal, and absolute power, which all subjects are to obey without reserve, a royal toleration, to the several professors of the Christian religion afternamed, with and under the several conditions, restrictions, and limitations aftermentioned. In the first place, tolerating the moderate presbyterians to meet in their private houses, and there to hear all such ministers, as either have or are willing to accept of the indulgence allenerly, and none other: and that there be nothing said or done contrary to the well and peace of his reign, seditious or treasonable, under

the highest pains these crimes will import, nor are they to presume to build meeting houses, or to use out-houses or barns——in the mean time it is his royal will and pleasure, that field conventicles, and such as preach at them, or who shall any way assist or connive at them, shall be prosecute according to the utmost severity of laws made against them——in like manner tolerating the quakers to meet and exercise in their form, in any place or places appointed for their worship——and by the same absolute power, foresaid, suspending, stopping, and disabling all laws or acts of parliament, customs or constitutions against any Roman catholic subjects ——so that they shall in all things be as free in all respects as any protestant subjects whatsoever, not only to exercise their religion, but to enjoy all offices, benefices, &c. which he shall think fit to bestow upon them in all time coming——and cassing, annulling, and discharging all oaths whatsoever, and tests, and laws enjoining them. And in place of them this oath only is to be taken——I A.B. do acknowledge, testify, and declare that James the VII. &c. is rightful king and supreme governor of these realms, and over all persons therein; and that it is unlawful for subjects, on any pretence or for any cause whatsoever, to rise in arms against him, or any commissioned by him; and that I shall never so rise in arms nor assist any who shall so do; and that I shall never resist his power or authority, nor ever oppose his authority to his person—but shall to the utmost of my power assist, defend, and maintain him, his heirs and lawful successors, in the exercise of their absolute power and authority against all deadly—and by the same absolute power giving his full and ample indemnity, to all the foresaid sorts of people, under the foresaid restrictions.' Here is a proclamation for a prince: that proclaims him in whose name it is emitted, to be the greatest tyrant that ever lived in the world, and their revolt who have disowned him to be the justest that ever was. For herein that monster of prerogative is not only advanced, paramount to all laws divine and human, but far surmounting all the lust, impudence, and insolence of all the

Roman, Sicilian, Turkish, Tartarian, or Indian tyrants that ever trampled upon the liberties of mankind: who have indeed demanded absolute subjection, and surrender of their lives, lands, and liberties at their pleasure, but never arrived at such a height of arrogance as this does, to claim absolute obedience, without reserve of conscience, religion, honour, or reason; not only that which ignorantly is called passive, never to resist him, not only on any pretence, but for cause, even though he should command his popish janissaries to murder and massacre all protestants, which is the tender mercy and burning fervent charity of papists; but also of absolute active obedience without reserve, to assist, defend, and maintain him in every thing, whereby he shall be pleased to exercise his absolute power, though he should command to burn the Bible as well as the covenant (as already he applauded John Gib in doing of it) and to burn and butcher all that will not go to mass, which we have all grounds to expect will be the end of his clemency at last. Herein he claims a power to command what he will, and obliging subjects to obey whatsoever he will command: a power to rescind, stop, and disable all laws; which unhinges all stability and unsettles all the security of human society, yea extinguishes all that remains of natural liberty: wherein, as is well observed by the author of the representation of the threatening dangers impending over protestants page 53. 'It is very natural to observe, that he allows the government, under which we were born, and to which we were sworn, to be hereby subverted and changed, and that thereupon we are not only absolved and acquitted from all allegiance to him, but indispensibly obliged, by the ties and engagements that are upon us, to apply ourselves to the use of all means and endeavours against him, as an enemy of the people and subverter of the legal government.' But this was so gross, and grievously gripping in its restrictions, as to persons, as to the place, as to the matter allowed the presbyterians in preaching, that it was disdained of all; and therefore he behoved to busk it better, and mend the matter, in a letter to the council (the

supreme law of Scotland) bearing date March 31. 1687. of this tenor —'Whereas we did recommend to you to take care, that any of the presbyterians should not be allowed to preach, but such only as should have your allowance for the same, and that they at the receiving the indulgence should take the oath contained in the proclamation——these are therefore to let you know, that thereby we meant such of them as did not solemnly take the test; but if nevertheless the presbyterian preachers do scruple to take the said oath, or any other oath whatsoever, and that you shall find it reasonable or fit to grant them or any of them our said indulgence, so as they desire it upon these terms, it is now our will and pleasure——to grant them our said indulgence, without being obliged to take the oath, with power unto them to enjoy the benefit of the said indulgence (during our pleasure only) or so long as you shall find they behave themselves regularly and peaceably, without giving any cause of offence to us, or any in authority or trust under us in our government.'——Thus finding the former proposal not adequately apportioned to his design, because of its palpable odiousness, he would pretend his meaning was mistaken (though it was manifest enough) and mitigate the matter by taking away of the oaths altogether, if any should scruple it; whereas he could not but know, that all that had sense would abhor it: yet it is clogged with the same restrictions, limited to the same persons, characterized more plainly and peremptorily, with an addition of cautions, not only that they shall not say or do any thing contrary to the well and peace of his reign seditious or treasonable, but also that they behave themselves regularly and peaceably without giving any cause of offence to him or any under him; which comprehends lesser offences than sedition or treason, even every thing that will displease a tyrant and a papist, that is, all faithfulness in seasonable duties or testimonies. But at length lest the deformity and disparity of the proclamation for the toleration in Scotland, and the declaration for liberty of conscience in England, should make his pretences to conscience suspect of

disingenuity, and lest it should be said he had one conscience for England and another for Scotland; therefore he added a third eik to the liberty, but such as made it still an ill favoured patched project to destroy religion and true liberty, in another proclamation dated at Windsor, June 28, 1687, wherein he says—"Taking into our royal consideration, the sinisterous interpretations, which either have or may be made of some restrictions (mentioned in the last) we have thought fit by this further to declare, that we will protect our arch bishops, &c. And we do likewise, by our sovereign authority, prerogative-royal, and absolute power, suspend, stop, and disable, all penal and sanguinary laws; made against any for non-conformity to the religion established by law in that our ancient kingdom—to the end, that by the liberty thereby granted the peace and security of our government in the practice thereof may not be endangered, we hereby strictly charge all our loving subjects, that as we do give them leave to meet and serve God after their own way, in private houses, chapels, or places purposely hired or built for that use, so that they take care that nothing be preached or taught, which may any way tend to alienate the hearts of our people from us and our government, and that their meetings be peaceably and publicly held, and all persons freely admitted to them, and that they do signify and make known to some one or more of the next privy counsellors, sheriffs, stewards, bailiffs, justices of the peace, or magistrates of burghs royal, what place or places they set apart for these uses, with the names of the preachers——provided always that the meetings be in houses, and not in the open fields for which now after this our royal grace and favour (which surpasses the hopes, and equals the very wishes of the most zealously concerned) there is not the least shadow of excuse left: which meeting in the fields we do hereby strictly prohibit and forbid, against all which we do leave our laws and acts of parliament in full force and vigour, notwithstanding the premises; and do further command all our judges, magistrates, and officers of forces, to prosecute such as shall be guilty of the said field conventicles

with the utmost rigour; for we are confident, none will after these liberties and freedoms, given to all without reserve to serve God in their own way, presume to meet in these assemblies, except such as make a pretence of religion to cover their treasonable designs against our royal person and the peace of our government.'——

This is the royal charter for security of the protestant religion (intended to secure it so, that it shall not go much abroad again) in lieu of all the laws, constitutional oaths, and covenants wherewith it was formerly confirmed. This is the only patent which the royal dawties, the moderate presbyterians, have now received to ensure their enjoyment of it *durante bene placito*, during his pleasure whole faith is as absolute over all ties of promises, as his power from whence it flows is over all laws; whose chiefest principle of conscience is that no faith is to be kept to hereticks. Here is the liberty which is said to surpass the hopes, and equal the wishes of the most zealously concerned; holding true indeed of too many, whose hopes and wishes and zeal are terminate upon peace rather than truth, case rather than duty, and their own things rather than the things of Christ; but as for the poor wild wanderers, it some way answers their fears and corresponds with their jealousies, who put the same interpretation upon it as on all the former indulgences, indemnities and tolerations, proceeding from the same fountain, and designed for the same sinistrous ends with this, which they look upon as more openly and obviously antichristian: and therefore, while others are rejoicing under the bramble-shadow of it, they think it a cause of weeping and matter of mourning, not because they do not share of the benefit of it, but because they are afraid to share of the curse of it. For which cause, though a freedom be pretended to be given, to all without reserve to serve God in their own way, they think it necessary to reserve to themselves the liberty wherewith Christ hath made them free, and to serve him in his way though interdicted by men, and to take none from antichrist restricted with his reserves; and do look upon it as a seasonable testimony

for the cause of Christ, and the interest of the protestant religion, and the laws and liberties of the country, all overturned and subverted by this toleration, to keep their meetings as in former times, in the open fields whither their tyranny hath driven them. And let them call these meetings covered and treasonable designs against the government on pretence of religion, I trust it shall be made evident to the conviction of all that know religion, that their designs are to preserve it, in opposition to the tyranny that goes about all these ways to suppress it. Though I must suspend the reasons of their keeping their meetings in the fields, till I come to discuss that case in its own place: here I shall only say, none that are acquainted with their circumstances, which are as dangerously stated as ever, by reason of the constant persecution of cruel enraged enemies incessantly pursuing them without relenting, notwithstanding of all this pretence of clemency and tenderness to conscience, but may know they can neither have safety, secrecy, nor conveniency in houses for fear of their entrapping enemies, and none will blame them, that after so many discoveries of their truculent treachery they dare not trust them: and besides, they think it sinful, scandalous, and inconvenient to seem to homologate this toleration, the wickedness whereof they are convinced of, from these reasons.

I. Considering the granter in his personal capacity, as to his morals, they look upon him as a person with whom they cannot in prudence communicate, in any transaction of that nature. First, because being in his principles and practice professedly treacherous, yea, obliged to be both perfidious and cruel by that religion whereunto he is addicted, he cannot be trusted in the least concerns, let be those of such momentous consequence as this, without a stupid abandoning of conscience, reason and experience. Since both that known principle, that 'no faith is to be kept to 'hereticks,' which is espoused by all papists, does to them justify all their lying dissimulations, equivocations, and treacheries imaginable; and that lateran canon, that enjoins kings 'to destroy and extirpate 'hereticks, under pain of

excommunication,' does oblige them to be cruel; besides what deep engagements he is known to be under by oaths and promises to the pope, both in his exile, and while a subject, and since he came to the crown; which make him, to all considering persons, to be a person of that character, whose deceitful dainties are not to be desired, and that when he speaketh fair is not to be believed, for there are seven abominations in his heart. Of which open and affronted lies we have a sufficient swatch, both in his proclamation for Scotland, and declaration for England; where he speaks of his constant resolves of 'uniting the hearts of subjects to God in religion, and to their neighbours in christian love, and that it never was his principle to offer violence to any man's conscience, or use invincible necessity against any man on the account of his persuasion;' and that their property was never in any case invaded since his coming to the crown; and that it hath been his constant sense and opinion, that 'conscience ought not to be constrained, nor people forced to matters of mere religion.' To which his uninterrupted endeavours to divide us from God, and from one another, that he might the more easily destroy us, and his constant encroachments upon laws, liberties, and properties, and all interests of men and christians for conscience sake, do give the lie manifestly. And it must be great blindness not to see, and great baseness willingly to wink at that double-faced equivocation, in matters of mere religion; by which he may elude all these flattering promises of tenderness, by excepting at the most necessary and indispensable duties, if either they be such wherein any other interest is concerned, beside mere religion, or if their troubles sustained thereupon be not altogether invincible necessities. Hence the plain falsehood and doubleness of his assertions as to what is past, may give ground to conclude his intended perfidy in the promises of what is future. Next, it is known what his practice and plots have been for the destruction of all honest and precious interests; what a deep hand he had in the burning of London, in the popish plot discovered in 1678, in the murder of the earl of Essex, yea in

the parricide committed upon his own brother. By all which it appears, nothing is so abominable and barbarous which he hath not a conscience that will swallow and digest without a scruple; and what he hath done of this kind must be but preparatory to what he intends, as meritorious to atone for these villanies. And in his esteem and persuasion of papists, nothing is thought more meritorious than to extirpate the protestant religion, and destroy the professors thereof. Therefore being such a person with whom in reason no honest man could transact, for a tenure of the least piece of land or house, or any holding whatsoever, they dare not accept of his security or protection for so great an interest, as the freedom and exercise of their religion under the shadow of such a bramble. If it was the Shechemites sin and shame to strengthen a naughty Abimelech, and strengthen themselves under the shadow of his protection, much more must it be to take protection for religion, as well as peace, from such a monster of cruelty and treachery. This were against their testimony, and contrary to the laudable constitutions of the church of Scotland, to take no protections from malignant enemies, as was shewed above in Montrose's case. See page 107 above.

II. Considering his religion more particularly, they judge it unlawful so to bargain with him as this acceptance would import. It is known he is not only a papist, an apostate papist, and an excommunicate papist (as is related above) but a fiery bigot in the Romish religion, and zealous sworn votary and vassal of antichrist: who, as the letter from the Jesuits in Liege lately published in print, tells us, is resolved 'either to convert England to popery, or die a martyr,' and again that he stiles himself 'a son of the society of Jesuits, and will account every injury done to them to be a wrong done against himself;' being known to be under the conduct and guidance of that furious order, yea and enrolled as a member of that society. Which makes it the less to be wondered, that he should require absolute obedience without reserve, seeing he himself yields absolute obedience as well as implicit faith without reserve, to the Jesuits. Such a bigot was Mary of England (as also

his great grand dame of Scotland if she had got her will;) and his bigotry will make him emulous of her cruelty, as counting it a diminution of his glory, for such a champion as he under antichrist's banner to come short of a woman's enterprizes: Nor would the late king have been so posted off the stage, if his successor were not to act more vigorously than he in this tragical design, to which this toleration is subservient. He is then a servant of antichrist, and as such under the Mediator's malediction; yea in this respect is heir to his grandfather's imprecations, who wished the curse of God to fall upon such of his posterity as should at any time turn papists. How then can the followers of the Lamb strike hands, be at peace, associate, confederate, or bargain with such a declared enemy to Christ, certainly the scripture-commands of making no covenant or league, interdicting entering into any affinity with the people of these abominations, and forbidding saying a confederacy with them, do lay awful bonds on the faithful to stand aloof from such. The people might have had liberty of conscience under the Assyrian protection, when they were saying a confederacy with him, but in so doing they forefaulted the benefit of the Lord's being a sanctuary to them. To bargain therefore with such an one for a toleration of religion, were contrary to the scriptures, contrary to the covenants and principles of the church of Scotland, against associations and confederacies with such enemies. See Gillespie's useful Case of Conscience concerning associations, hinted page 109, and more head 3. argument 1. But to accept of this liberty as now offered were a bargaining; for where there is a giving and receiving upon certain conditions, where there are demands and compliance; commands and obedience, promises and reliance, offers upon terms, and acquiescence in these terms, what is there wanting to a bargain, but the mere formality of subscriptions? at least it cannot be denied, but the addressers have bargained for it, and in the name of all the accepters, which must stand as their deed also; if they do not evidence their resentment of such presumption, which I do not see how they can, if they

abide under the shadow thereof the same way as they do. I grant liberty is very desirable, and may be taken and improved from enemies of religion: and so do the wanderers now take it and improve it to the best advantage, without receiving it by acquiescing in any terms. But such a liberty as this was never offered without a destructive design, nor ever received without a destructive effect. It is one of the filthy flatteries found in the English addresses, particularly that from Totness, that the present indulger is like another Cyrus who proclaimed liberty to the people of God, Ezra i. But who sees not the disparity in every respect? Cyrus at his very first entry into the government did lay out himself for the church's good; this man who speaks now so fair, his first work was to break our head, and next to put on our hood, first to assert and corroborate his prerogative, and then by virtue of that to dispense with all penal laws: it was foretold that Cyrus should deliver the church at that time; but was it ever promised that the church should get liberty to advance antichrist? or that antichrist, or one of his limbs, should be employed in the church's deliverance, while such? The Lord stirred up the spirit of Cyrus; can it be said without blasphemy that the Lord stirred up this man, to contrive the introduction of popery by this gate and gap, except in a penal sense for judgment? Cyrus had a charge to build the Lord a house, but this is not a charge but a grant or licence, not from nor according to God's authority but man's, not to build Christ a house, but a Babel for antichrist; and all this liberty is but contrived as scaffolding for that edifice, which when it is advanced then the scaffolding must be removed.

3. Considering him in his relation as a magistrate, it were contrary to their testimony so often renewed and ratified, and confirmed with so many reasons, and sealed by so much blood, bonds, banishment, and other sufferings, to own or acknowledge his authority which is mere usurpation and tyranny; in that by the laws of the land he is incapable of government, and that he had neither given nor can give, without an hypocritical and

damning cheat, the oath and security indispensibly required of him before and at his entry to the government. Yet this liberty cannot be complied with, without recognizing his authority that he arrogates in giving it: seeing he tenders it to all his good subjects, and gives it by his sovereign authority, and to the end that by the liberty thereby granted, the peace and security of the government in the practice thereof may not be indangered; and in the declaration to England, it is offered as an expedient to establish his government on such a foundation, as may make his subjects happy, and unite them to him by inclination as well as duty; to which indeed the acceptance thereof hath a very apt subserviency: seeing it implies, not only owning of the government out of duty, but an union and joining with it and him by inclination, which is a cordial confederacy with God's enemy, and a co-operating to the establishment of his tyranny; that the peace and security thereof may not be endangered. And in his former proclamation, he gives them the same security for their rights and properties, which he gives for religion; and in the English declaration, addeth that to the perfect enjoyment of their property, which was never invaded, &c. Which to accept, were not only to take the security of a manifest lie, but to prefer the word of a man that cannot, must not, will not keep it (without going cross to his principles) to the security of right and law which is hereby infringed, and to acknowledge not only the liberty of religion, the right of property to be his grant: which when ever it is removed, there must remain no more character for it, but stupid slavery entailed upon posterity, and pure and perfect tyranny transmitted to them. The sin and absurdity whereof may be seen demonstrated, head 2.

4. Considering the fountain whence it flows, they cannot defile themselves with it. In the English declaration, it flows from the royal will and pleasure which speaks a domination despotical and arbitrary enough, but more gently expressed than in the Scots proclamation; when it is refounded on sovereign authority, prerogative royal, and absolute power:

proclaiming by sound of trumpet a power paramount to all law, reason, and religion, and outvying the height of Ottoman tyranny: a power which all are to obey without reserve: a power to tolerate or restrain the protestant religion, according to his royal will or pleasure: an absolute power which cannot be limited by laws, nor most sacred obligations, but only regulated by the royal lust; whereby indeed he may suffer the protestant religion, but only precariously so long as he pleases, and until his royal pleasure shall be to command the establishment of popery, which then must be complied with without controul. Whereby all the tenure that protestants have for their religion, is only the arbitrary word of an absolute monarch, whose principles oblige him to break it, and his ambition to disdain to be a slave to it. Now the acceptance of this grant, would imply the recognizance of this power that the granter claims in granting it; which utterly dissolves all government, and all security for religion and liberty, and all the precious interests of men and Christians: Which to acknowledge, were contrary to scripture, contrary to reason, and contrary to the principles of the church of Scotland, particularly the declaration of the general assembly, July 27, 1649. See page 117, &c. and contrary to the covenant.

5. Considering the channel in which it is conveyed, they cannot comply with it. Because it comes through such a conveyance, as suspends, stops, and disables all penal laws against papists, and thereby averts all the securities and legal bulwarks that protestants can have for the establishment of their religion; yea in effect leaves no laws in force against any that shall attempt the utter subversion of it, but ratifies and leaves in full vigour all wicked laws and acts of parliament, against such as would most avowedly assert it; and stops and disables none of the most cruel and bloody laws against protestants: for the most cruel are such as have been made against field-meetings, which are hereby left in full force and vigour. Hence as he hath formally by absolute power suspended all laws made for the protection of our religion, so he may when he will dispense with all the laws made for

its establishment; and those who approve the one by such an acceptance, cannot disallow the other, but must recognise a power in the king to subvert all laws, rights, and liberties, which is contrary to reason as well as religion, and a clear breach of the national and solemn league and covenants.

6. Considering the ends of its contrivance, they dare not have any accession to accomplish such wicked projects, to which this acceptance would be so natively subservient. The expressed ends of this grant are, to unite the hearts of his subjects to him in loyalty and to their neighbours in love, as in the former proclamation; and that by the liberty granted the peace and security of his government in the practice thereof may not be endangered, as in the latter proclamation; and to unite the subjects to him by inclination as well as duty, which he thinks can be done by no means so effectually as by granting the free exercise of religion, as in the English declaration. Whence we may gather not obscurely, what is the proper tendency of it, both as to the work and worker, to wit, to incline and induce us by flattery to a lawless loyalty, and a stupid contented slavery when he cannot compel us by force, and make us actively co-operate in setting and settling his tyranny, in the peaceable possession of all his usurpations, robberies, and encroachments upon our religion, laws, and liberties, and to incorporate us with Babylon; for who are the neighbours he would have us unite with in love, but the papists? against whom all the lovers of Christ must profess themselves irreconcilable enemies. The English declaration does further discover the design of this device, in one expression which will most easily be obtained to be believed of any in it, viz. that he heartily wishes that all the people of these dominions were members of the catholic church: which clearly insinuates, that hereby he would entice them to commit fornication with that mother of harlots; which enticing to idolatry (if we consult the scripture) should meet with another sort of entertainment than such a kind and thankful acceptance, which is not an opposing of such

a wicked wish, but an encouraging and corroborating of it. And further he says, that all the former tract of persecutions never obtained the end for which it was employed; for after all the frequent and pressing endeavours that were used, to reduce this kingdom to an exact conformity in religion, it is visible the success has not answered the design, and that the difficulty is invincible. Wherein we may note his extorted acknowledgment, that all former endeavours to destroy the work of God have been unsuccessful, which induces him to try another method, to which this acceptance is very subservient, to wit, to destroy us and our religion by flatteries, and by peace to overturn truth, and by the subversion of laws to open a door to let in popery and all abominations. But what is more obscurely expressed in his words, is more visibly obvious in his works, to all that will not willingly wink at them; discovering clearly the end of this liberty is not for the glory of God, nor the advantage of truth, or the church's edification, nor intended as a benefit to protestants; but for a pernicious design, by gratifying a few of them in a pretended favour to rob all of them of their chiefest interests, religion, laws, rights, and liberties, which he could not otherwise effectuate but by this arbitrary way; for if he could have obtained his designs by law: he would never have talked of lenity or liberty, but having no legal ends, he behoved to compass them by illegal means. They must then be very blind who do not see, his drift is, first to get in all popish officers in places of public trust, by taking off the penal laws disabling them for the same; then to advance his absoluteness over all laws, in a way which will be best acknowledged and acquiesced in by people, till he be so strengthened in it that he fears no control; and then to undermine and overturn the protestant religion, and establish popery and idolatry: which he is concerned the more violently to pursue, because he is now growing old, and therefore must make haste, lest he leave the papists in a worse condition than he found them: which, to be sure, the papists are aware of, and their conscious fears of the nation's resentments of their villanies will prompt them, as long as

they have such a patron, to all vigilance and violence in playing their game; and withal, hereby he may intend to capacitate himself for subduing the Dutch, against whom he hath given many indications of a hostile mind of old and of late; not only in hiring two rascals to burn the Amsterdam-fleet heretofore, but in stirring up and protecting the Algerine pirates against them; so universal a protector is he become of late, that Papists and Protestants, Turks and Jews are shrouded under the shadow of his patrociny, but with a design to destroy the best, when his time comes. Which cursed designs cannot be counteracted, but very much strengthened by this acceptance.

7. Considering the effects already produced thereby, they cannot but abhor it. Seeing the eyes of all that are tender may afflict their hearts, observing how the papists are hereby encouraged and encreased in numbers, the whole nation overflowed with their hellish locusts, and all places filled with priests and Jesuits, yea the executive power of the government put into the hands of the Romanists, and on the other hand how the people are endangered with their abounding and prevailing errors (to which the Lord may and will give up those that have not received the love of the truth) truth is fallen in the streets and equity cannot enter, a testimony against antichrist is abandoned and laid aside as unseasonable, the edge of zeal for the interest of Christ is blunted and its fervour extinguished, they that should stand in the gap and upon the watch tower are laid aside from all opposition to the invasions of the enemy, and lulled asleep by this bewitching charm and intoxicating opium, ministers and, professors are generally settling on their lees and languishing in a fatal security, defection is carried on, division promoted, and destruction is imminent. Is it not then both a part of the witness of the faithful, and of their wisdom to stand aloof from such a plague, that hath such destructive effects?

8. Considering the nature and name of this pretended liberty, they cannot but disdain it as most dishonourable to the cause of Christ. It is indeed the honour of kings and happiness of people, to have true human and Christian liberty established in the common wealth, that is, liberty of persons from slavery; liberty of privileges from tyranny, and liberty of conscience from all impositions of men; consisting in a freedom from the doctrines, traditions, and commandments of men against or beside the word of God in the free enjoyment of gospel ordinances in purity and power, and in the free observance and establishment of all his institutions of doctrine, worship, discipline, and government, in subordination to the only rule of conscience, the revealed will of its only lawgiver Jesus Christ. When this is ratified as a right by the sanction of approved authority, and countenanced and encouraged as religion, by the confirmation of laws, approving whatsoever is commanded by the God of heaven to be done for the house of the God of heaven (which is the full amount of all magistrates authority) then we are obliged to accept of it with all thankful acceptation. But such a liberty, as overturns our rights, our privileges, our laws, our religion, and tolerates it only under the notion of a crime, and indemnifies it under the notion of a fault to be pardoned, and allows the exercise thereof only in part so and so modified, cannot be accepted by any to whom the reproach thereof is a burden, and to whom the reproaches of Christ are in esteem, in such a day, when even the hoofs of Christ's interest buried in bondage are to be contended for. Whatever liberty this may be to some consciences, it is none to the tender according to the rule of conscience, it is only a toleration which is always of evil: for that which is good cannot be tolerated under the notion of good, but countenanced and encouraged as such. Therefore this reflects upon our religion, when a toleration is accepted which implies such a reproach: and the annexed indemnity and pardon tacitely condemns the profession thereof as a fault or crime, which no Christian can bear with or by his acceptance homologate these reproaches, if he consider the nature of

it: and much more will he be averse from it, if he consider how dishonourable it is to God (whatever some addresses, particularly the presbyterians at London, have blasphemously alledged, that God is hereby restored to his empire over the conscience) since the granter, after he hath robbed the Mediator of his supremacy and given it away to antichrist, and God of his supremacy imperial as universal king by a claim of absolute power peculiar to him, he hath also robbed him of his empire over the conscience, in giving every man the empire over his own conscience, which he reserves a power to retract whom he pleases.

9. Considering the extent of it, they cannot class themselves among the number of them that are indulged thereby. It takes in not only the archbishops and bishops, and the prelatical and malignant crew, but all quakers, and papists, reaching all idolatry, blasphemy, and heresy, and truth also (which could never yet dwell together under one sconce.) Whereby the professors of Christ come in as partners in the same bargain with antichrist's vassals; and the Lord's ark hath a place with Dagon, and its priests and followers consent to it; and the builders of Babel and of Jerusalem are made to build together, under the same protection; and a sluice is opened to let the enemy come in like a flood, which to oppose the accepters cannot stand in the gap, nor lift up a standard against them. Liberty indeed should be universally extended to all the Lord's people, as Cyrus's proclamation was general, who is there among you of all his people? his God be with him. But a toleration of idolaters, blasphemers, and hereticks, as papists, &c. is odious to God, because it is contrary to scripture, expresly commanding idolaters to die the death, and all seducers and enticers to apostacy from God to be put to death without pity; and commending all righteous magistrates that executed judgment accordingly, as Asa, Hezekiah, &c. yea even heathen magistrates that added their faction to the laws of God, as Artaxerxes is approven for that statute, that whosoever will not do the law of God and of the king, judgment should be executed speedily upon him.

And in the new testament this was never repealed but confirmed, in that the sword is given to magistrates, not in vain, but to be a terror to, and revengers to execute wrath upon all that do evil, among whom seducers that are evil workers and idolaters are chiefly to be ranked, being such as do the worst of evil to mankind. Ephesus is commended because they could not bear them which are evil: and Thyatira reprov'd for suffering Jezebel: by which it appeareth, that our Lord Jesus is no friend to toleration. It is true this is spoken against churchmen; but will any think that will be approv'd in civil powers, which is so hateful in church officers? Surely it will be the duty and honour of these horns spoken of Rev. xvii. to eat the whore's flesh and burn her with fire: and shall that be restricted only to be done against the great antichrist, and not be duty against the lesser antichrists, the limbs of the great one? it is recorded of Julian the apostate, that among other devices he used, to root out Christianity this was one, that he gave toleration openly to all the different professions that were among Christians, whereof there were many heretical in those days: which was exactly aped by James the apostate now for the same end. It is also contrary to the confession of faith, chap. 20, sect. 4. asserting that 'for their publishing such opinions, or maintaining of such practices, as are contrary to the light of nature, or to the known principles of Christianity, whether concerning faith, worship, or conversation, or to the power of godliness, or such erroneous opinions or practices, as either in their own nature, or in the manner of publishing or maintaining them, are destructive to the external peace and order, which Christ hath established in the church; they may lawfully be called to account, and proceeded against by the censures of the church, and by the power of the civil magistrate.' And therefore to accept of this toleration is inconsistent with the principles of the church of Scotland, with the national and solemn league and covenants, and solemn acknowledgment of sins and engagement to duties, in all which we are bound to extirpate popery, prelacy, &c. With the whole tract of contentings in the fifth period above

related, and particularly by the testimony of the synod of Fife, and other brethren in the ministry, against Cromwell's vast toleration and liberty of conscience, mentioned above page —, for it is plain, if it be not to be suffered, then it is not to be accepted.

10. Considering the terms wherein it is offered, they cannot make such a shameful bargain. In the former proclamation it is granted expressly under several conditions, restrictions, and limitations: whereof indeed some are retracted in the latter, as the restriction of it to moderate presbyterians, which would seem to be taken off by extending to all without reserve to serve God in their own way; but being evidently exclusive of all that would serve God in Christ's way, and not after the mode prescribed, it is so modified and restricted that all that will accept of it must be moderate presbyterians indeed, which as it is taken in the court sense, must be an ignominy to all that have zeal against antichrist. The limitation also to private houses and not to out-houses, is further enlarged to chapels, or places purposely hired, but still it is stinted to these, which they must bargain for with counsellors, sheriffs, &c. So that none of these restrictions and limitations are altogether removed, but the condition of taking the oath only: yet it is very near to an equivalency homologated, by the accepters acknowledging in the granter a prerogative and absolute power over all laws, which is confirmed and maintained by their acceptance. As for the rest that are not so much as said to be removed, they must be interpreted to remain, as the terms, conditions, restrictions, and limitations, upon which they are to enjoy the benefit of this toleration. And what he says, that he thought fit by this proclamation further to declare, does confirm it, that there are further explications, but no taking off of former restrictions. Hence it is yet clogged with such provisions and restrictions, as must make it very nauseous to all truly tender. (1.) The restriction as to the persons still remains, that only moderate presbyterians, and such as are willing to accept of this indulgence allenary, and none other, and such only whose names

must be signified to these sheriffs, stewards, bailiffs, &c. are to have the benefit of this indulgence: whereby all the zealous and faithful presbyterians are excluded, (for these they will not call them moderate) and all that would improve it without a formal acceptance, and all who for their former diligence in duty are under the lash of their wicked law, and dare not give up their names to those who are seeking their lives, must be deprived of it. (2.) It is restricted to certain places still, which must be made known to some one or more of the next privy counsellors, and whereby they are tied to a dependence on their warrant, and must have their lease and licence for preaching the word in any place, and field-meetings are severely interdicted, though signally countenanced of the Lord, whereby the word of the Lord is bound and bounded; and by this acceptance their bloody laws against preaching in the open fields, where people can have freest access with conveniency and safety, are justified. (3.) The manner of meeting is restricted, which must be in such a way as the peace and security of the government in the practice thereof may not be endangered, and again that their meetings be peaceably held, which is all one upon the matter with the bond of peace, and binding to the good behaviour so much formerly contended against by professors, and is really the same with the condition of the cautionary bond in the indulgence after Bothwel, of which see page ——. And further they must be openly and publicly held, and all persons freely admitted to them; which is for the informing trade, exposing to all the inconveniencies of Jesuits, and other spies and flies their delations, in case any thing be spoken reflecting on the government, a great temptation to ministers. (4.) The worst of all is upon their matter of preaching, which is so restricted and limited, that nothing must be said or done contrary to the well and peace of his reign, seditious or treasonable; and in case any treasonable speeches be uttered, the law is to take place against the guilty, and none other present, providing they reveal to any of the council the guilt so committed, as in the former proclamation: and in the last it is further

declared, that nothing must be preached or taught, which may any way tend to alienate the hearts of the people from him or his government. Here is the price at which they are to purchase their freedom (a sad bargain to buy liberty and sell truth) which yet hardly can be so exactly paid, but he may find a pretence for retrenching it when he pleases; for if a minister shall pray for the overturning of a throne of iniquity, or for confounding all that serve graven images, and for destruction to the pope, and all that give their power to that beast, there will be something said against the well of his government; or if any shall hear this and not delate it, then the same pretence is relevant; or if he shall preach against the king's religion as idolatry, and the church of Rome as Babylon, and discharge his conscience and duty in speaking against the tyranny of the times; or let him preach against any public sin faithfully, a popish critic or Romish bigot shall interpret it to be an alienation of the people's hearts from the king and his government. But who can be faithful, and preach in season and out of season now, but he must think it his duty to endeavour to alienate the hearts of the people from such an enemy to Christ, and his absolute tyranny, so declaredly stated against God? What watchman must not see it his indispensable duty, to warn all people of his devilish designs to destroy the church and nation, and preach so that people may hate the whore, and this pimp of her's? sure if he preach the whole counsel of God, he must preach against popery and tyranny. And if he think this indulgence from absolute prerogative, granted and accepted on these terms, can supersede him from this faithfulness, then he is no more the servant of Christ but a pleaser of men. Therefore since it is so clogged with so many restrictions, so inconsistent with duty, so contrary to scripture, so clearly violatory of covenant-engagements, so cross to the constant contentings and constitutions of this church, and acts of assembly (see page —, &c.) it were a great defection to accept of it.

11. Considering the scandal of it, they dare not so offend the generation of the righteous by the acceptance, and dishonour God, disgrace the protestant profession, wrong the interest thereof, and betray their native country, as thus to comply with the design of antichrist, and partake of this cruel tender mercy of the beast; who hath always mischief in his heart, and intends this as a preparative for inducing or inforcing all that are hereby lulled asleep either to take on his mark, or bear the marks of his fiery fury afterwards. For hereby foreign churches may think, we are in a fair way of reconciliation with antichrist, when we so kindly accept his harbinger's favours. And it cannot but be very stumbling to see the ministers of Scotland, whose testimony used to be terrible to the popish, and renowned through all the protestant churches, purchasing a liberty to themselves at the rate of burying and betraying the cause into bondage and restraint, and thus to be laid by from all active and open opposition to antichrist's designs, in such a season. The world will be tempted to think, they are not governed by principles but their own interest in this juncture, seeking their own things more than the things of Christ; and that it was not the late usurpation upon, and overturning of religion and liberty that offended them, so much as the persecution they sustained thereby; but if that arbitrary power had been exerted in their favours, though with the same prejudice of the cause of Christ, they would have complied with it as they do now. Alas, sad and dolorous have been the scandals given, and taken by and from the declining ministers of Scotland heretofore, which have rent and racked the poor remnant, and offended many both at home and abroad, but none so stumbling as this. And therefore the tender will be shy to meddle with it.

12. Considering the addresses made thereupon, with such a stain of fulsome and blasphemous flatteries, to the dishonour of God, the reproach of the cause, the betraying of the church, and detriment of the nation, and exposing themselves to the contempt of all, the poor persecuted party dare not so much as seem to incorporate with them. I shall set down the first of

their addresses, given forth in the name of all the presbyterian ministers, and let the reader judge whether there be not cause of standing aloof from every appearance of being of their number. It is dated at Edinburgh, July 21, 1687, of this tenor.

To the king's most excellent majesty. The humble address of the presbyterian ministers of his majesty's kingdom of Scotland.

'We your majesty's most loyal subjects, the ministers of the presbyterian persuasion in your ancient kingdom of Scotland, from the due sense we have of your majesty's gracious and surprising favour, in not only putting a stop to our long sad sufferings for non-conformity, but granting us the liberty of the public and peaceable exercise of our ministerial function without any hazard: as we bless the great God who hath put this in your royal heart, do withal find ourselves bound in duty to offer our most humble and hearty thanks to your sacred majesty, the favour bestowed being to us and all the people of our persuasion valuable above all our earthly comforts, especially since we have ground from your majesty to believe that our loyalty is not to be questioned upon the account of our being presbyterians, who as we have amidst all former temptations endeavoured, so we are firmly resolved still to preserve an entire loyalty in our doctrine and practice (consonant to our known principles, which according to the holy scriptures are contained in the confession of faith, generally owned by presbyterians in all your majesty's dominions) and by the help of God so to demean ourselves, as your majesty may find cause rather to enlarge than to diminish your favours towards us; throughly persuading ourselves from your majesty's justice and goodness, that if we shall at any time be otherwise represented, your majesty will not give credit to such information, until you

have due cognition thereof: and humbly beseeching, that those who promote any disloyal principles and practices (as we disown them) may be looked upon as none of ours, whatsoever name they may assume to themselves. May it please your most excellent majesty graciously to accept of this our most humble address, as proceeding from the plainness and sincerity of loyal and thankful hearts, much engaged by your royal favour, to continue our fervent prayers to the King of kings, for divine illumination and conduct, with all other blessings spiritual and temporal, ever to attend your royal person and government, which is the greatest duty can be rendered to your majesty, by

Your majesty's most humble, most faithful, and most obedient subjects.

Subscribed in our names, and in the name of the rest of our brethren of our persuasion, at their desire.'

Which received this gracious return.

The king's letter to the presbyterians in his ancient kingdom of Scotland.

'We love you well: and we heartily thank you for your address: we resolve to protect you in your liberty, religion, and properties, all our life: and we shall lay down such methods, as shall not be in the power of any to alter hereafter. And in the mean time, we desire you to pray for our person and government.' To which may be added that kind compliment of the chancellor's: 'Gentlemen, My master hath commanded me to tell you, that I am to serve you in all things within the compass of my power.'

These gentlemen needed not to have been solicitous that those who avouch an adherence to the covenanted reformation, and avow an opposition to antichristian usurpers (which they call promoting disloyal principles and practices) might not be looked upon as of their confederacy: for all that abide in the principles and practices of the church of Scotland (which they have deserted) and that desire to be found loyal to Christ, in opposition to his and the church's, and the country's declared enemy, would count it a sin and scandal, laying them obnoxious to the displeasure of the holy and jealous God, who will resent this heinous indignity they have done unto his majesty (if they do not address themselves unto him for pardon of the iniquity of this address, which is the desire of those whom they disown that they may find grace to do so) and a shameful reproach, exposing them to the contempt of all of whom they expect sympathy, to be reckoned of their association who have thus betrayed the cause and the country. These mutual compliments (so like the caresses of the Romish whore, whereby she entices the nations to her fornication) between the professed servants of Christ and the vassals of antichrist, if they be cordial, would seem to import that they are in a fair way of compounding their differences, and to accommodate their oppositions at length; which yet I hope will be irreconcilably maintained and kept up by all true presbyterians, in whose name they have impudence to give out their address: but if they be only adulatory and flattering compliments, importing only a conjunction of tails (like Samson's foxes) with a disjunction of heads and hearts, tending towards distinct and opposite interests; then, as they would suit far better the dissimulations of politicians, than the simplicity of gospel-ministers, and do put upon them the brand of being men-pleasers rather than servants of Christ, so for their dissemblings with dissemblers, who know their compliments to be and take them for such, they may look to be paid home in good measure, heaped up and running over, when such methods shall be laid down as shall not be in the power of any to alter, when such designs

shall be obtained by this liberty and these addresses, that the after-bought wit of the addressers shall not be able to disappoint. However the address itself is of such a dress, as makes the thing addressed for to be odious, and the addressers to forefault the respect, and merit the indignation of all that are friends to the protestant and presbyterian cause, as may appear from these obvious reflections. 1. It was needful indeed they should have assumed the name of presbyterians (though it might have been more tolerable to let them pass under that name, if they had not presumed to give forth their flatteries in the name of all of that persuasion, and to alledge it was at their desire; which is either an illuding equivocation, or a great untruth, for though it might be the desire of the men of their own persuasion, which is a newly start up opinion that interest hath led them to espouse, yet nothing could be more cross to the real desires of true presbyterians, that prefer the truth of the cause to the external peace of the professors thereof) and call it the humble address of presbyterian ministers: for otherwise it could never have been known to come from men of the presbyterian persuasion; seeing the contents of this address are so clearly contrary to their known principles. It is contrary to presbyterian principles, to congratulate an antichristian usurper for undermining religion, and overturning laws and liberties. It is contrary to presbyterian principles, to justify the abrogation of the national covenant, in giving thanks for a liberty whereby all the laws are cased and disabled therein confirmed. It is contrary to presbyterian principles, to thank the king for opening a door to bring in popery, which they are engaged to extirpate in the solemn league and covenant. It is contrary to presbyterian principles, to allow or accept of such a vast toleration for idolaters and hereticks, as is evident above from all their contendings against it, which is also contrary to the confession of faith, generally owned by presbyterians, as may be seen in the place forecited, chap. 20. par. 4. It is contrary to presbyterian principles, to consent to any restrictions, limitations, and conditions, binding them up in

the exercise of the ministerial function, wherewith this liberty is loaded and clogged; whereby indeed they have the liberty of the public and peaceable exercise of it, without any hazard of present persecution, but not without great hazard of sin; and incurring the guilt of the blood of souls, for not declaring the whole counsel of God, which addressers cannot declare, if they preserve an entire loyalty in their doctrine, as here they promise. 2. There is nothing here sounds like the old presbyterian strain; neither was there ever an address of this stile seen before from presbyterian hands. It would have looked far more presbyterian like, instead of this address, to have sent a protestation against the now openly designed introduction of popery, and subversion of all laws and liberties which they are covenanted to maintain, or at least to have given an address in the usual language of presbyterians, who used always to speak of the covenants, and work of reformation; but here never a word of these, but of loyalty to his excellent, to his gracious, and to his sacred majesty, of loyalty not to be questioned, an entire loyalty in doctrine, a resolved loyalty in practice, and a fervent loyalty in prayers: and all that they are solicitous about is not lest the prerogatives of their master be encroached upon, and the liberties of the church be supplanted, and religion wronged; but lest their loyalty be questioned, and they be otherwise represented: and all that they beseech for is, not that the cause of Christ be not wronged, nor antichristian idolatry introduced by this liberty; but that these who promote any disloyal principles and practices may be looked upon as none of theirs, wherein all their encouragement is, that they persuade themselves from his majesty's justice and goodness, that he will not give credit to any other information, until he take due cognition thereof. Here is a lawless unrestricted loyalty to a tyrant, claiming an absolute power to be obeyed without reserve, not only professed, but solicitously sought to be the principle of presbyterians; whereas it is rather the principle of atheistical hobbes exploded with indignation by all rational men. This is not a Christian loyalty, or profession

of conscientious subjection, to a minister of God for good, who is a terror to evil doers, but a stupid subjection and absolute allegiance to a minister of antichrist, who gives liberty to all evil men and seducers. This is not the presbyterian loyalty to the king, in the defence of Christ's evangel, liberties of the country, ministration of justice, and punishment of iniquity, according to the national covenant; and in the preservation and defence of the true religion and liberties of the kingdoms, according to the solemn league and covenant; but an erastian loyalty to a tyrant, in his overturning religion, laws and liberties, and protecting and encouraging all iniquity. This loyalty in doctrine will be sound disloyalty to Christ, in a sinful and shameful silence at the wrongs done to him, and not declaring against the invasions of his open enemies. This loyalty in practice is a plain betraying of religion and liberty, in lying by from all opposition to the open destroyer of both. And this loyalty in prayers, for all blessings ever to attend his person and government, will be found neither consonant to presbyterian prayers in reference to popish tyrants, nor consistent with the zeal of Christians, and the cries of all the elect unto God to whom vengeance belongs, against antichrist and all his supporters, nor any way conform to the saints prayers in scripture, nor founded upon any scripture promises, to pray for a blessing to a papist's tyranny, which cannot be of faith and therefore must be sin. It were much more suitable to pray, that the God which hath caused his name to dwell in his church, may destroy all kings that shall put to their hand to alter and destroy the house of God, Ezra vi. 12. 3. This address is so stuffed with sneaking flatteries, that it would become more sycophants and court-parasites than ministers of the gospel; and were more suitable to the popish, prelatical, and malignant faction, to congratulate and rejoice in their professed patron and head, and fill the gazettes with their adulatory addresses, which heretofore used to be deservedly inveighed against by all dissenters; than for presbyterians to take a copy from them, and espouse the practice which they had condemned before, and which was never

commended in any good government, nor never known in these British nations, before Oliver's usurpation and Charles' tyranny; flattery being always counted base among ingenuous men. But here is a rhapsody of flatteries, from the deep sense they have of his majesty's gracious and surprising favour——finding themselves bound in duty to offer their most humble and hearty thanks, to his sacred majesty, the favour bestowed being to them——valuable above all earthly comforts. One would think this behoved to be a very great favour, from a very great friend, for very gracious ends: but what is it? in not only putting a stop to their long sad sufferings; which were some ground indeed if the way were honest: but this not only supposes an also; what is that? but also granting us the liberty——which is either a needless tautology (for if all sufferings were stopped, then liberty must needs follow) or it must respect the qualifications of the liberty; flowing from such a fountain, absolute power; through such a conveyance, the stopping all penal laws against papists; in such a form as a toleration; for such ends, as overturning the reformation, and introducing popery. This is the favour for which they offer most humble and hearty thanks, more valuable to them than all earthly comforts; though it be manifestly intended to deprive the Lord's people, at the long run, of the heavenly comforts of the preached gospel. Sure, if they thank him for the liberty, they must thank him for the proclamation whereby he grants it, and justify all his claim there to absoluteness, being that upon which it is superstructed, and from which it emergeth, and so become a listed faction to abett and own him in all his attemptings, engaged now to demean themselves as that he may find cause rather to enlarge than to diminish his favours, which can be no other way but assisting him to destroy religion and liberty, at least in suffering him to do what he will without controul. O what an indelible reproach is this for ministers, who pretend to be set for the defence of the gospel, thus to be found betraying religion, through justifying and magnifying a tyrant, for his suspension of so many laws

whereby it was established and supported. 4. It were more tolerable if they went no further than flatteries: but I fear they come near the border of blasphemy, when they say, that the great God hath put this in his royal heart: which can bear no other construction but this, that the holy Lord hath put it in his heart to assume to himself a blasphemous and absolute power, whereby he stops and suspends all penal laws against idolaters, and gives a toleration for all errors: or if it be capable of any other sense, it must be like that as the Lord is said to have moved David to number the people, or that Rev. xvii. 17.

"God hath put it in their hearts to fulfil his will, and to agree and give their kingdom unto the beast." But to bless God and thank the tyrant for this wicked project, as deliberate and purposed by men, I say is near unto blasphemy. And again where they say, they are firmly resolved by the help of God so to demean themselves as his majesty may find cause rather to enlarge than to diminish his favours; this in effect is as great blasphemy as if they had said, they resolved by the help of God to be as unfaithful, time-serving and silent ministers as ever plagued the church of God; for no otherwise can they demean themselves so as he may find cause to enlarge his favours towards them, it being in no way supposeable that his enlarging his favours can consist with their faithfulness, but if they discover any measure of zeal against antichrist, he will quickly diminish them.

Thus far I have compendiously deduced the account of the progress, and prosecution of the testimony of this church to the present state thereof, as it is concerted and contended for, by the reproached remnant now only persecuted: which I hope this pretended liberty shall be so far from obscuring and interrupting, that it shall contribute further to clear it, and engage them more to constancy in it, and induce others also to countenance it, when they shall see the sad effects of this destructive snare, which I leave to time to produce; and hope, that as the former representation of their

cause will conciliate the charity of the unbiassed, so an account of their sufferings thereupon will provoke them to sympathy. To which I now proceed.

PART II.

Containing a brief account of the persecution of the last period, and of the great suffering whereby all the parts of its testimony were sealed.

The foregoing deduction, being the first thing I proposed to be discussed in the method of this essay, hath now swelled to such a bulk, that the last period of it doth, in a manner, swallow up what I intended to have said on the second: because it gives grounds to gather the methods and measures that our adversaries have managed, for the ruin of this witnessing remnant, and also discover some special steps of their sufferings within these 27 years past, under the tyranny of both the brothers. It will now be the more easy to glean the gradations of the means and machines, used by this popish, prelatical, and malignant faction, to raze the work of reformation, and to build their Babel of popery and slavery on the ruins thereof; and to aggregate an account in brief of the great sufferings of the faithful. Which though it be beyond my power, and besides my purposes at present, to offer a narrative of it, with any proportion to the greatness of the subject; a more particular relation thereof, being now projected, if providence permit, to be published to the world, which will discover strange and unheard of cruelties: yet, in this little heap of some hints only of the kinds of their sufferings, I do not question but it will appear, that the persecution of Scotland hath been very remarkable, and scarcely out-done by the most cruel in any place or age, in respect of injustice, illegality, and inhumanity,

though perhaps inferior in some other circumstances. But that none could be more unjust, illegal, or inhuman, I need not further, I cannot better, demonstrate than only to declare the matter of fact, as it fell out in the several steps of the last period.

I. In the entry of this fatal catastrophe, the first of their mischievous machinations was to remove out of the way all who were eminent instruments in carrying on the former work of God, or might be of influence for obstructing their antichristian and tyrannical designs, both in the state and in the church. And accordingly, when the marquis of Argyle, who had a main hand in bringing home the king, and closing the second treaty at Breda, went up to London, to congratulate his return from exile, he was made prisoner in the tower, thereafter sent down to Scotland, indicted of high treason, at length beheaded, and his head placed upon the tolbooth of Edinburgh (a watch-word of warning to our addressers, who may, ere all be done, meet with the same sauce) for no other alledged cause, but for his compliance with the English, when they had our land in subjection; a thing wherein the judges who condemned him were equally criminal; but really for another provocation that incensed the king against him, which made him a tyrant as infamous for villany as for violence, to wit, for his reproving the king (when others declined it) for an adulterous rape, which he held for so piacular a crime, that he resolved nothing should expiate it but the blood of this nobleman. For the same pretended cause was the lord Wariston afterwards executed to death at Edinburgh, after they had missed of their design of taking him off by clandestine ways abroad. Then they fall upon the ministers: and because Mr. James Guthrie was a man, who had been honoured of God to be zealous and singularly faithful, in carrying on the work of reformation, and had asserted the kingly authority of Christ, in opposition to the erastian supremacy encroaching thereupon, therefore he must live no longer, but is condemned to die, and most basely handled, as if he had been a most notorious thief or malefactor; he is hanged, and

afterward his head placed upon one of the ports of Edinburgh, where it abideth to this day, preaching not only against the enemies rebellion against God, but against the defection of many ministers since, who have practically denied that great truth for which he suffered, to wit, his testimony against the supremacy, and for declining the usurped authority of him who arrogated it. At the same time there was a proclamation, which they caused to be read at all the church-doors, discharging ministers to speak against them or their proceedings, whereby profane and malicious persons were encouraged to witness against their ministers. By which means (though many were in no hazard, thinking it commendable prudence, commended indeed by the world, but hateful unfaithfulness before God, to be silent at such a time) some faithful ministers giving faithful and free warning, and protesting against the present defection, were condemned of treason, and banished out of the three dominions. Others, without a legal citation, or without access to give in their defences, were sentenced with banishment, and could never get an extract of their sentence: and further, were compelled to subscribe a bond, under pain of death, to remove out of all the dominions betwixt and such a day. This was the lot, and also the blot of these famous and faithful ministers, Mr. John Livingston, Mr. Robert Macward, Mr. John Brown, &c. who spent the rest of their days in Holland, serving their generation by their excellent writings. Then, after they had disposed of many other ministers, whom they thrust out, for not keeping the 29th of May, having now laid by the most eminent, and whom they feared most of the ministry, they shortly thereafter outed, and violented the rest from the exercise of their ministry, and straitned them with strange and severe confinements; yea, because they would not be outdone in suppressing religion by any, no, not by Julian the apostate, they proceeded to poison all the springs and fountains of learning; ordaining that none be masters in universities, except they take the oath of supremacy, and own the government of prelacy; and none be admitted to teach in a school, without

the prelate's licence. These courses brought many ministers and expectants to great sufferings.

II. Hitherto they reached only noblemen, gentlemen and ministers, and others whom they thought might stand in their way of advancing their cursed designs. The next drift is, when they had emptied the churches of ministers, and filled them with the vermin of ignorant and scandalous curates, to force the people to conformity, and to disown and discountenance their own ministers; first, by severe edicts of exorbitant fining not only the persons themselves contraveining, but those that had the superiority over them, and rigorous exaction of these fines, to the depopulation of a poor country, by military force; whereby, where there was but one church in the bounds, still enjoying a minister whom the people could hear, the profane soldiers would beset that church in time of worship, and cause all within to pay their fines, or take the garments from them that could not, and beat them to the effusion of their blood: and where the church was planted with a curate, the soldiers would come, and call the names of the parishioners, and amerciate the absents in such fines as they pleased. In other places they went to private houses, and by force drove them to church, even though sick and unable. But where the dissenters were numerous, great bands of legal robbers were sent to exact and extort these exorbitant fines, by plundering, quartering, beating, wounding, binding men like beasts, chasing away from houses, and harassing whole country-sides in a hideous manner. And yet after all these insolencies, some of the common sort were compelled to subscribe an acknowledgment, that the captain had used them civilly and discreetly; though the account of others of that place manifests the violence to have been so monstrous, that it justified the great barbarity; shewing their exactions to have been intolerable, both for the quantity, without all proportion or pity, and for the manner of it, consuming and wasting poor people's provision by their very dogs, and sparing no more these who conformed, than others who did not

conform at all, and punishing husbands for their wives, yea, doubling and tripling the same exactions after payment. Next, though at first they did not imprison any for simple absenting themselves from the curates, yet they began to fill prisons with such as at any time shewed more than ordinary zeal against the curates intrusion, and testified their dissatisfaction to his face; for which, some were imprisoned, scourged, stigmatized, and thereafter carried to Barbadoes. Others, because they would not give the prelates their title of lords, when convened before them, were also scourged: and one minister seized for preaching, and offending the prelates by the same fault, was carried first to the thieves hole, laid in irons in company with a madman, and then banished to Shetland, the coldest and wildest of all the Scots islands.

III. But when fining would not do, and still the people were more averse from the curates, by getting sometimes occasions of hearing their own ministers in private; hence were houses forced and searched, many hawled to prisons, and several necessitate to escape at windows with the hazard of their lives, spies sent unto and set in suspected places, to seize and fall upon such as they found at such meetings, or but suspected to have been there. Whence it came to pass, that many, both men and women, young and old, have been dragged to prisons, and there close kept as malefactors, besides several other outrageous and illegal acts of violence and oppression committed against them, contrary to all law, equity and conscience.

IV. After Pentland defeat, they ruled by rage more than either law or reason. There 40 prisoners, who were taken upon quarter, and solemn parole to have their life spared, yet treacherously and bloodily were all hanged (except five that were reprieved) who had much of the Lord's presence at their deaths, and assurance of his love, strengthening them to seal a noble testimony. One of them, a much honoured young minister, only for having a sword about him, though not present at the fight, did first most

patiently endure the cruel torture of the boots (a cruel engine of iron, whereby with wedges the leg is tortured, until the marrow come out of the bone) and afterwards death, with great courage and constancy. Upon the scaffold, at their execution, they then began that barbarity never practised in Scotland before, but frequently, and almost always at all the executions since, to beat drums, that they might not be heard. After this conflict, many were forefaulted of their estates, and intercommuned, with inhibition to all to reset, conceal, or correspond with any that had escaped, under the pain of being accounted guilty of the same rebellion, as they called it. Soldiers are permitted to take free quarter in the country, and licensed to all the abuses, that either rapine or cruelty may suggest; to examine men by tortures, threatening to kill or roast alive, all that would not delate all they knew were accessory to that rising; to strip them who did so much as reset the fugitives, and thrust them into prisons, in cold, hunger and nakedness, and crowd them so with numbers, that they could scarce stand together, having the miseries of their own excrements superadded; yea, to murder without process, such as would not, nay could not, discover those persecuted people. But not only time, but heart and tongue would fail, to relate all the violences and insolencies, the stobbings, woundings, stripping and imprisonings of mens persons, violent breaking of their houses both by day and night, beating of wives and children, ravishing of women, forcing of them by fire-matches and other tortures, to discover their husbands and nearest relations, although not within the compass of their knowledge, and driving away all their goods that could be carried away without respect to guilt or innocency, and all the cruelties that were exercised without a check by these ruffians at that time.

V. After all these tender mercies and clemencies, or cruelties, which his gracious majesty was pleased to confer or commit upon these poor contenders for religion and liberty, he and his cabal the council thought it not enough to suppress them with oppressions and force, distrusting the

authority of his law (that he knew the people would no more observe, than he would observe a promise or oath) and diffiding also the authority of his sword, which he had above their heads, he proposes terms of bargaining with them, whereupon he would suffer them to live, and to which he would have them bound to live according to his prescript; therefore, besides the old oaths of allegiance and supremacy, that were still going among hands, he caused coin new ones to keep the peace, and to live orderly, meaning to conform themselves to the disorders of the times! whereby, after he had wrought such destruction to their bodies and estates, and almost nothing was left them but a bit of a conscience, he would rob them of that too, verifying the constant character of the wicked, they only consult to cast a man down from his excellency. What is a man's excellency but a good conscience? But these men, having feared consciences of their own, not capable of any impression, they presume to impose upon all others, and cannot endure so much as to hear of the name of conscience in the country, except it be when it is baffled in the belchings of beastly mouths; as one, that was well acquaint with the council's humour in this point, told a gentleman that was going before them, to have one of these oaths imposed upon him, who was beforehand signifying his scruples, that he could not do such things in conscience. Conscience (said he) I beseech you whatever you do, speak nothing of conscience before the lords, for they cannot abide to hear that word. Therefore it is, that since this last revolution, there have been more conscience-debauching and ensnaring oaths invented and imposed, and some repugnant and contradictory to others, than ever was in any nation in the world in so short a time: and hereby they have had woful success in their designs, involving the generality of the land in the sin of perjury and false swearing with themselves. And it hath been observed, that scarcely have they let one year pass, without imposing some oaths or bonds upon presbyterians; such always as are unlawful to take, yea and impossible to keep, sometimes more obviously gross, sometimes more seemingly

smooth, sometimes tendered more generally through the kingdom, sometimes imposed upon particular shires; and these carried on by craft and cunning, sometimes by force and cruelty. Doubtless it is not the least part of their design, hereby to make oaths and bonds become a trivial and common thing, and by making all men of as capacious consciences as themselves.

VI. Further, they never ceased to express their fear of another rising, (their guilty consciences dictating that they deserved greater opposition.) Hence, to secure themselves, and incapacitate the people from further attempts of that nature, they order all withdrawers from churches, all who did not join to suppress the Lord's people, to deliver up their arms betwixt and such a day, and not keep a horse above such a very mean price, unfit for service.

VII. When force could not do the business, then they try flatteries; and hence contrive that wicked indulgence to divide and destroy the ministers that remained, and to suppress meetings. But when this bait, so well busked, could not catch all, but still there were meetings for administering the ordinances; their flattery turns to fury, and the acceptance of that indulgence by some, and despising of it by others, did both animate and instigate them unto a following forth of their design, by all the cruel acts and bloody executions. And hereby the residue of the faithful of the land were exposed unto their rage, while the indulged became interpretatively guilty of, and accessory to all the cruelties used and executed upon ministers and professors, for adhering unto that way. Hence it was common at private and peaceable meetings, when, without arms of defence, they were disturbed by soldiers, and exposed to all manner of villanous violence, some being dragged to prisons, some banished and sold to French captains to be transported with rascals, many intercommuned and driven from their dwellings and relations, great sums of money were proffered to any that would bring in several of the most eminent ministers, either dead or alive;

yea several at several times were killed, and others cruelly handled: all which, for several years, they patiently endured without resistance. But especially, when not only they were driven to the fields to keep their meetings in all weathers, summer and winter, but necessitate to meet with arms, then they raised more troops of horse and dragoons to pursue them with all rage, as traitors and rebels. Hence what pursuings, hornings, huntings, hidings, wanderings through mountains and muirs, and all kinds of afflictions, the people of God then met with, because of their following that necessary and signally blessed duty; all the lands inhabitants know, the jailors can witness to this day, and the barbarous soldiers, bloody executioners of the commands of their enraged masters, having orders to wound and kill, and apprehend all they could take at these meetings, or on the way suspected to be going to or coming from them, having encouragement to apprehend some ministers, and bring them dead or alive, by the promise of 2000 merks, others valued at 1000, and several professors also with prices put upon their heads. Hence others that were taken of them were sent into the Bass, a dry and cold rock in the sea, where they had no fresh water, nor any provision but what they had brought many miles from the country; and when they got it, it would not keep unspoiled. And others, both ministers and many hundreds of professors, were outlawed; whereby all the subjects were prohibited to reset, supply, intercommune with any of them, or to correspond with them by word, writ, or message, or furnish them with meat, drink, house, harbour, victual, or any other thing useful, under the highest pains. Hence also prisons were filled, and the wives and children of the outed ministers, that were come to Edinburgh for shelter, were commanded to dislodge, within a short day prefixed, under the pain of being forcibly shut up or dragged out. For which and other such uses, to apprehend and seize, on meetings, a major was appointed in Edinburgh, with command over the town guards, and a good salary for that end. Then prisons being filled, they were emptied to make room for others in ships, to

be taken away to be sold for slaves, in one of which were sent to Virginia above 60 men, some ministers; who, through the kindness and sympathy of some English godly people, were relieved at London. A greater barbarity not to be found in the reigns of Caligula or Nero.

VIII. But all this is nothing to what followed; when, thinking these blood-hounds were too favourable, they brought down from the wild Highlands an host of savages upon the western shires, more terrible than Turks or Tartars, men who feared not God nor regarded man; and being also poor pitiful Skybalds, they thought they had come to a brave world, to waste and destroy a plentiful country, which they resolved, before they left it, to make as bare as their own. This hellish crew was adduced to work a reformation, like the French conversions, to press a band of conformity, wherein every subscriber was bound for himself and all under him, wife, children, servants, tenants, to frequent their parish churches, and never to go to these meetings, nor reset, nor entertain any that went, but to inform against, pursue, and deliver up all vagrant preachers, as they called them, to trial and judgment. Which they prosecuted with that rigour and restless, boundless rage, that the children then unborn, and their pitiful mothers do lament the memory of that day, for the loss of their fathers and husbands. Many houses and families then were left desolate in a winter flight, many lost their cattle and horses, and some, in seeking to recover them, lost their lives, by the sword of these Burrios. So that it was too evident, both by what orders was given, the severity of prosecuting, and the expressions of some great ones since, that nothing less than the utter ruin and desolation of these shires was consulted and concluded, and that expedition, at that time, calculated for that end; for what else can be imagined could induce to the raising 10 or 11,000 barbarous savages, the joining them to the standing forces, and with such cruel orders the directing them all to the west, where there was not one person moving the finger against them: neither could they pretend any quarrel, if it was not the faithfulness of the people there in their

covenanted religion, and their hopelessness of complying to their popish and tyrannical designs, and therefore no course so feasible as to destroy them; so for dispatching thereof, order is given forth, that whosoever refuseth to subscribe that hell-hatched bond, must instantly have 10, 20, 30, 40, more or fewer according to his condition as he is poorer or richer, of these new reformers sent to him, to ly not only upon free quarters to eat up and destroy what they pleased, but also (for the more speedy expedition) ordered to take a sixpence for each common soldier a-day, and the officers more, according to their degrees, and so to remain till either the bond was subscribed, or all destroyed; nor was these trustees deficient to further their purposes in prosecuting their orders, who, coming to their quarters, used ordinarily to produce a billgate for near to as many more as came, and for these absents they must have double money, because their landlord was not burdened with their maintenance, and, where that was refused, would take the readiest goods, and if any thing remained not destroyed and plundered at their removing, which was not transportable, rather than the owner should get any good of it, they would in some places set fire to it, as they did with the cornstacks. It would require several great volumes to record the many instances of horrid barbarities, bloods and villanies of that wicked expedition; so that what by free quarterings, exactions, robberies, thefts, plunderings, and other acts of violence and cruelty, many places were ruined almost to desolation, all which the faithful choosed rather to suffer, than to sin in complying: and albeit their oppression was exceeding lamentable, and their loss great, yet that of the compliers was greater and sadder, who losed a good conscience in yielding to them, and compounding with them.

IX. Then the country behoved to pay the soldiers for all this service, and hire them to do more, by paying the imposed cess; whereby they were sharpened into a greater keenness in cruel executions of their orders, returning to those places of the country whither they had chased the

persecuted people, who still kept their meetings wherever they were, though they could not attend them, but upon the hazard of being killed, either in the place (where some had their blood mingled with their sacrifice) or fleeing, or be exposed to their dreadful cruelties, more bitter than death. For then it was counted a greater crime, and punished with greater severity, for persons to hear a faithful minister preach, than to commit murder, incest, adultery, or to be guilty of witchcraft, or idolatry, or the grossest abominations: for these have passed unpunished, when some, for their simple presence at a meeting, have been executed unto the death. Then also, when some were forced to flee into the English border for shelter, there also were parties ordered to pursue these poor hunted partridges, who could not find a hole to hide their head in. There we lost a valiant champion for truth, and truly zealous contender for the interest of Christ, that universally accomplished gentleman and Christian, Thomas Ker of Heyhope, who was cruelly murdered in a rencounter with a party of the English side.

Thereafter followed that lamentable stroke at Bothwel, where about 300 were killed on the field, and about 10 or 1100 taken prisoners, and stript, and brought into Edinburgh in a merciless manner. After which, first two faithful and painful ministers and witnesses of Christ, Mr. John Kid and Mr. John King, received the crown of martyrdom, sealing that testimony with their blood, and many others after them for the same cause. Then the enemy, after the manner used before, first to wound our head, and then put on a hood upon it, (as they have done always after a mischief, and intending a greater), offered their bond of peace, on terms that clearly condemned the cause, never to rise in arms against the king, &c. by which bond, many of the prisoners, after they had lien several weeks in a church-yard, without the shadow of a house to cover them night and day, were liberate: and many of the rest, by the persuasion of some ministers, at whose door their blood lies as well as at the enemy's, took that bond; and yet were sent away with others that did not take it, in a ship bound for America between 2 and 300 in

all, who were all murdered in the ship, being shut up under the hatches, when it split upon a rock in the north of Scotland, except about 50 persons; whereof many to this are living witnesses of such a cruelty.

X. Hitherto only the common rules and rudiments of the art of persecution were put in practice, exactly quadrating with the rules of Adam Contzen the Jesuit for introducing of popery, in his polit. lib. 2. cap. 18. which are, (1.) To proceed as musicians do, in tuning their instruments gradually. (2.) To press the examples of some eminent men to draw on the rest. (3.) To banish all arch-heretics at once (that is the most zealous witnesses of Christ) or at least with all expedition by degrees. (4.) To put them out of all power and trust, and put in friends to the catholic interest. (5.) To load the protestant opinions, as are most obnoxious, with all odious contions. (6.) To discharge all private conventicles. (7.) To make and execute rigorous laws against the most dangerous. (8.) To foment all quarrels among protestants, and strengthen the party that is ready to comply. But these, and many other of a deeper projection, and greater perfection, were fallen upon afterwards, equalling the most mischievous machines of Spanish inquisition, or the methods that effectuated the desolation of the church of Bohemia; that were exactly followed, as they are related in Clark's Martyrology. Especially the last of Contzen's rules were industriously observed, in the device of the indulgence both before and after Bothwel, which contributed more to the rending and ruining the remnant, and to expose the faithful to rage and cruelty, than any thing; for when, by these ensnaring favours, many were drawn away from their duty, the rest that maintained it, and kept up the testimony, were both the more easily preyed upon, and more cruelly insulted over. Hence the field-meetings that were kept, were more fiercely pursued after Bothwel than the many before, and more cruel laws were made against them, and more bloody executions, than I can find words to express in short. But, in a word, no party of Tartars invading the land, or crew of cut-throats destroying the inhabitants, or the

most capital malefactors, could have been more violently opposed, or more vigorously fought to be suppressed, than these poor meeters were. But I must make some more special hints.

1. They not only raised more forces to exhaust the strength and substance of the already wasted country, and laid on and continued from one term to another that wicked exaction and cruel oppression of the cess, for the same declared ends of suppressing and banishing what remained of the gospel, and imposed localities for maintaining the soldiers employed in those designs; for refusing which many families were pillaged, plundered, and quite impoverished, besides the beating and abusing them: but also they went on unweariedly with their courts of inquisition, pressing the bonds of peace, and dragging them like dogs to prisons that would not subscribe them, and for taking up in their Porteous' rolls the names of all that were suspected to have been at Bothwel insurrection: which they gathered by the information of sycophants, and reputed them convict, if being summoned they did not appear, and forced others to swear concerning things that are to be enquired after, and delate upon oath whom they did either see or heard that they were in arms, or went to meetings; and such as refused, suffered bonds or banishment. Yea, having made it criminal to reset, harbour, correspond, or converse with these whom they declared rebels, they thereupon imprisoned, fined, and ruined vast numbers, for having seen or spoken with some of them, or because they did not discover or apprehend them when they fancied they might, and even when they were not obliged, and could not know whether they were obnoxious persons or not: for which many gentlemen and others were indicted and imprisoned, and some arraigned and condemned to death. For these causes, the country was harrassed and destroyed by four extraordinary circuit courts, successively going about with their numerous train, whereby many were grievously oppressed, and with their oppressions tempted with many impositions of conscience-debauching oaths, and bonds to compear when called, and to

keep the church, and to refrain from going to meetings, &c. and by these temptations involved in compliances and defections.

2. To enrich themselves, by these means, with the spoil of the country, did not satisfy these destroyers; but they must glut themselves with the blood of the saints, upon every pretext that they could catch, under any colour of law. As upon the account of Bothwel insurrection, many were cruelly executed to the death, some gentlemen, and some common country men, without any legal conviction, by packing bloody juries and assizes most partially for their murdering ends, besides more than can be reckoned that were kept to perish in their imprisonments. And not only for being actually in arms, or any ouvert act of transgressing their wicked laws, but even for their extorted opinion of things, or because they could not condemn these necessitated risings in arms to be rebellion, and a sin against God, which they were forced to declare by terrible menacings of death and torture, they have been condemned to death; making their arbitrary laws to reach the heart, thoughts, and inward sentiments of the mind, as well as outward actions. Whereupon this became a criminal question robbing many of their lives, Was the rising at Bothwel-bridge rebellion, and a sin against God? And this another, Was the killing of the bishop of St. Andrew's horrid murder? Which if any answered negatively, or did not answer affirmatively, they were cruelly condemned to death; for which, first, five innocent Christians were execute upon the spot, where that murderer fell. Though they declared, and it was known, they were as free as the child unborn, and that some of them had never seen a bishop that they knew from another man, and were never in that place of the country where he was killed. And afterwards this was the constant question that all brought before them were troubled with, which some avouching to be duty, were dismembered alive, their hands struck off, and then hanged, and their heads cut off when dead.

3. After Sanquhar declaration, they observed the jesuits rules more exactly, especially that mentioned above, to load the opinions that are most obnoxious with all odious constructions, and to make it both criminal to declare them, and also criminal to conceal and wave their intrapping questions thereupon. For after Mr. Hall was killed at the Queensferry, and Mr. Cameron with several worthies were slain at Airmoss, and after Mr. Hackston for declining the authority of his murderers, head and tail, and for being accessory to executing judgment upon the arch traitor, or arch bishop of St. Andrew's (though he laid not his hands on him himself, nor was present at the action, but at a distance when it was done) was tortured alive, with the cutting off of his hands, and then hanged, and before he was dead, ripped up, his heart taken out, and carried about on the point of a knife, and thrown into a fire, and afterwards his body quartered. Then, not only such as were with that little handful at Airmoss were cruelly murdered, but others against whom they could charge no matter of fact, were questioned if they owned the king's authority? which if any did not answer affirmatively and positively, he was to look for nothing but exquisite torments by terrible kinds of tortures, and death besides. And if any declared their judgment, that they could not, in conscience, own such authority as was then exercised; or if they declined to give their thoughts of it, as judging thoughts to be under no human jurisdiction; or if they answered with such innocent specifications as these, that they owned all authority in the Lord, or for the Lord: or according to the word of God, or all just and lawful authority, these underwent and suffered the capital punishment of treason. And yet both for declining and declaring their extorted answers about this, they were condemned as unsufferable maintainers of principles inconsistent with government.

4. But here, as in Egypt, the more they were afflicted, the more they grew, the more that the enemies rage was increased, the more were the people inflamed to inquire about the grounds of their suffering, seeing

rational men and religious christians die so resolutely upon them; and the more they insisted in this inquisition, the more did the number of witnesses multiply, with a growing increase of undauntedness, so that the then shed blood of the martyrs became the seed of the church, and as by hearing and seeing them so signally countenanced of the Lord, many were reclaimed from their courses of compliance, so others were daily more and more confirmed in the ways of the Lord, and so strengthened by his grace, that they chose rather to endure all torture, and embrace death in its most terrible aspect, than to give the tyrant and his complices any acknowledgment: yea, not so much as to say, God save the king, which was offered as the price of their life, and test of their acknowledgment, but they would not accept deliverance on these terms, that they might obtain a better resurrection. Which so enraged the tygrish truculency of these persecutors, that they spared neither age, sex, nor profession: the tenderness of youth did not move them to any relenting, in murdering very boys upon this head, nor the grey hairs of the aged; neither were women spared, but some were hanged, some drowned, tied to stakes within the sea-mark, to be devoured gradually with the growing waves, and some of them of a very young, some of an old age. Especially after the murder of the never to be forgotten martyr, Mr. Cargil, the multitude of merciless sufferings upon this account cannot be enumerated; which increased far beyond all the former steps, after the Lanark declaration, which was burnt with great solemnity by the magistrates of Edinburgh in their robes, together with the solemn league and covenant, which had been burnt before, but then they would more declaredly give new demonstrations of their rage against it, because they confessed, and were convinced of its being conform unto and founded upon that covenant. And because the incorporation of Lanark did not, because they could not, hinder the publishing of it; therefore they were threatened with the loss of their privileges, and forced to pay 6000 merks. Upon the back of which, the sufferings of poor people that owned the testimony were

sadder and sharper, and further extended than ever: some being banished for soldiers to Flanders, &c. some to be sold as slaves in Carolina, and other places in America, to empty the filled prisons, and make room for more, which were daily brought in from all quarters, and either kept languishing in their nasty prisons, or thieves holes, in bolts and irons to make them weary of their life, or dispatched as sacrifices, and led as dumb sheep to the slaughter, without suffering them to speak their dying words, for beating of drums, or disposed of to masters of ships to be transported to slavery.

5. Had they satisfied themselves with murdering them out of hand, it would have been more tolerable, and reckoned some degree of mercy, in comparison of their malice; which, after all their endeavours to murder their souls, by ensnaring offers, enslaving bonds, blasphemous and contradictory oaths, and multiplying captious questions to catch the conscience, or at least vex the spirits of the righteous, whom they could not prevail with to put forth their hands into iniquity, did proceed to invent all exquisite torments more terrible than death. Some at their first apprehending were tortured with fire-matches, burning and for ever thereafter disabling their hands: then laid fast, and locked up in great irons upon their legs, where they lay many months in the cold of winter, without any relaxation. Some were tortured with the boots, squeezing out the marrow of their legs: others with thumbkins, piercing and bruising the bones of their thumbs: and some tormented with both one after another, and besides, kept waking nine nights together by watchful soldiers, who were sworn not to let the afflicted person sleep all that time.

6. All this tyranny had been the more tolerable, if they had kept within any bounds of colourable or pretended shadow of legality, or in any consonancy to their own wicked laws, or exemplars of any former persecutions. But in an ambition to outdo all the Neros, Domitians, Dioclesians, duke d'Alvas, or Lewis le Grands, they scorned all forms, as

well as justice of law, and set up monstrous monuments of unprecedented illegality and inhumanity. For when, after all their hornings, harassings, huntings, searchings, chafings, catchings, imprisonments, torturings, banishments, and effusions of blood, yet they could not get the meetings crushed, either in public or private, or the zeal of the poor wanderers quenched, with whom they had interdicted all harbour, supply, comfort, refreshment, converse or correspondence, and whom they had driven out of their own and all other habitations, in towns, villages, or cottages, to the deserts, mountains, muirs, and mosses, in whose hags and holes they were forced to make dens and caves to hide themselves, but that they would still meet for the worship of God, either in public (though mostly in the cold winter nights) or in their private fellowships for prayer and conference; and to rescue their brethren, and prevent their murder in these extremities, would surprize and take advantages of the soldiers now and then: they then raged beyond all bounds, and not only apprehending many innocent persons (against whom they had nothing to accuse them of, but because they could not satisfy them in their answers) sentenced, and executed them, all in one day, and made an act to do so with all; but allowed the bloody soldiers to murder them, without either trial or sentence. Especially after the apologetical declaration, affixed on the church doors, they acted with an unheard of arbitrariness. For not only did they frame an oath of abjuration, renouncing the same, but pressed it universally upon pain of death, upon all men and women in city and country, and went from house to house, forcing young and old to give their judgment of that declaration, and of the king's authority, &c. to ridicule and reproach, and make a mocking stock of all government: yea impowered soldiers, and common varlets, to impanel juries, condemn, and cause to be put to death, innocent recusants, and having stopt all travel and commerce without a pass, signifying they had taken that oath, they gave power to all hostlers and inn-keepers to impose oaths upon all passengers, travellers, gentlemen and countrymen, who were

to swear, that their pass was not forged. And prisoners that would not take the oath were, according to the foresaid act, condemned, sentenced and execute, all in one day, and early in the morning, that the people might not be affected with the spectacles of their bloody severities. Yea spectators also, that gathered to see the execution, were imposed upon, and commanded to give their judgment, whether these men were justly put to death or not. And not only so, but after that, they gave orders and commands to the soldiers to pursue the chase after these wanderers more violently, and shoot, or otherwise put them to death wherever they could apprehend them; whereby many were taken and instantly most inhumanly murdered.

XI. In the beginning of this killing time, as the country calls it; the first author or authorizer of all these mischiefs, Charles II. was removed by death. Then one would have thought the severity would have stopped: and the duke of York succeeding, in his late proclamation would make the world believe, that it never was his principle, nor will he ever suffer violence to be offered to any man's conscience, nor use force or invincible necessity against any man on the account of his persuasion: smooth words, to cover the mischiefs of his former destructions, and the wickedness of his future designs. To which his former celebrated saying, that it would never be well till all the south side of Forth were made a hunting field; and his acts and actings designed to verify it, since his unhappy succession, do give the lie. For immediately, upon his mounting the throne, the executions and acts, prosecuting the persecution of the poor wanderers, were more cruel than ever.

1. There were more butchered and slaughtered in the fields, without all shadow of law, or trial, or sentence, than all the former tyrant's reign; who were murdered without time given to deliberate upon death, or space to conclude their prayers, but either in the instant, when they were praying,

shooting them to death, or surprizing them in their caves, and murdering them there, without any grant of prayer at all; yea many of them murdered without taking notice of any thing to be laid against them, according to the worst of their own laws, but slain and cut off without any pity, when they were found at their labour in the field, or travelling upon the road. And such as were prisoners, were condemned for refusing to take the oath of abjuration, and to own the authority, and surprized with their execution, not knowing certainly the time when it should be, yea left in suspense whether it should be or not, as if it had been on design to destroy both their souls and bodies. Yea Queensberry had the impudence to express his desire of it, when some went to solicit him, being then commissioner, for a reprieve in favours of some of them, he told them, they should not have time to prepare for heaven, hell was too good for them.

2. There have been more banished to foreign plantations in this man's time, than in the other's. Within these two years, several shipfuls of honest and conscientious sufferers have been sent to Jamaica, (to which before they were sent, some had their ears cut) New Jersey, and Barbadoes, in such crouds and numbers, that many have died in transportation; as many also died before in their pinching prisons, so thronged that they had neither room to ly nor sit. Particularly the barbarous usage of a great multitude of them that were sent to Dunotter castle, when there was no room for them in Edinburgh, is never to be forgotten; which the wildest and rudest of savages would have thought shame of. They were all that long way made to travel on foot, men and women, and some of both sexes, very infirm and decrepit through age; and several sick, guarded by bands of soldiers, and then put into an old ruinous and rusty house, and shut up under vaults above 80 in a room, men and women, without air, without ease, without place, either to ly or walk, and without any comfort save what they had from heaven, and so straitned for want of refreshment, which they could not have but at exorbitant prices inconsistent with their poor empty purses, and so

suffocated with the smell of the place, and of their own excrements, that as several of them died; so it was a wonder of mercy that any of them could outlive that misery, yet there they remained some months, at a distance from all their friends, being sent thither to that northern corner out of the south and west borders of the country; and some out of London. Whose transportation hither, if it were not a part of this tragical story, would seem a merry and ridiculous passage to strangers, discovering the ridiculous folly as well as the outrageous fury of their persecutors. For at a private meeting in London, among others, some Scotsmen, of very mean figure, some taylors, a shoemaker, a chapman, &c. were taken, and being found to be Scotsmen, were not only examined at the common courts there, but by Sir Andrew Foster, by express commission from the late king a little before his death; who threatened them under a strange sort of certification, (considering what fell out immediately thereafter) that assuredly they should be sent to Scotland very shortly, if there were not a revolution of the government. But this revolution, following within a few days, retarded it a little: yet not long thereafter they were sent in a yacht, with a guard of soldiers, and a charge of high treason. But, when brought before the council of Scotland, the amount of all that bustle was, a question posed to them under pain of death, whether the king should be king or no? that is, whether they owned his authority or not. Yet though some of the poor men did own it, they were sent to Dunotter castle: and thence among the rest banished and transported to New Jersey; in which passage, by reason of their crude and bad provision, the most part in the ship were cast into a fever, and upwards of sixty died, yea even since the former proclamation for this pretended liberty, there are twenty-one men and five women sent to Barbadoes, against whom nothing could be alledged but matters of mere religion and conscience: which, as it proclaims the notoriousness of these impudent lies, wherewith the proclamations for this liberty are stuffed; so it puts an indelible brand of infamy upon some London merchants, that are

said to pretend to some profession of religion, who sent the ship to transport them, thereby to make gain of the merchandise of the Lord's captives.

3. There have been more cruel acts of parliament enacted in this tyrant's time, than the former made all his reign. For in his first parliament held by Queensberry, commissioner, not only was there an act for making it treason to refuse the oath of abjuration, confirming all the illegalities of their procedure hereupon before; but an act making it criminal to own the covenant, and another act making it criminal for any to be present at a field-meeting, which was only so to preachers before. Yet neither these acts, and all the executions following upon them, have daunted, nor I hope shall drive them, nor the indemnity and toleration (so generally now applauded) draw them from the duty of owning both these, that are so much the more publicly to be avouched, that they are so openly interdicted by wicked and blasphemous tyranny, though for the same they expect from the Scottish inquisition all the murdering violence, that hell and Rome and malignant rage can exert.

But to conclude this tragical deduction: as these hints we have heaped together of the kinds and several sorts (the particulars being impossible to be reckoned) of barbarities and arbitrary methods, used in carrying on this persecution, demonstrating the reign, or rather rage of these two dominators, under which we have howled these twenty-seven years, to be a complete and habitual tyranny, to discover the inhumanity and illegality of their proceedings, having no other precedent save that of the French conversions, or Spanish inquisition, out-done by many stages, in respect of illegality, by the Scottish inquisition, and the practices of the council of Scotland, and judiciary court; so I shall shut up all in a summary relation of the common practices and forms of procedure in these courts: which will be useful to understand a little more distinctly, to the end the innocency of sufferers may more clearly appear. 1. They can accuse whom they will, of

what they please; and if by summar citation, he will not, may be, because he cannot, compear; if once his name be in their Porteous' rolls, that is sufficient to render him convict. 2. They used also to seize some, and shut them up in prison year and day, without any signification of the cause of their imprisonment. 3. They can pick any man off the street; and if he do not answer their captious questions, proceed against him to the utmost of severity; as they have taken some among the croud at executions, and imposed upon them the questions. 4. They can also go through all the houses of the city, as well as the prisons, and examine all families upon the questions of the council's catechism, upon the hazard of their life, if they do not answer to their satisfaction, as has been done in Edinburgh. 5. When any are brought in by seizures, sometimes (as is said before) they let them lie along without any hearing, if they expect they cannot reach them; but if they think they can win at them any way, then they hurry them in such haste, that they can have no time to deliberate upon, and oftentimes have no knowledge or conjecture of the matter of their prosecution: yea, if they be never so insignificant, they will take diversion from their weightiest affairs, to examine and take cognizance of poor things, if they understand they dare vent or avow any respect to the cause of Christ: and the silliest body will not escape their catechization about affairs of state, what they think of the authority, &c. 6. If they be kept in prison any space, they take all ways to pump and discover what can be brought in against them: yea, sometimes they have exactly observed that device of the Spanish inquisition, in suborning and sending spies among them, under the disguise and shew of prisoners, to search and find out their minds, who will outstrip all in an hypocritical zeal, thereby to extort and draw forth words from the most wary, which may be brought in judgment against them the next day. 7. When prisoners are brought in before them, they have neither libel nor accuser, but must answer concerning things that are to be enquired after, to all questions they are pleased to ask. 8. If at any time they form a sort of

libel, they will not restrict themselves to the charges thereof, but examine the person about other things altogether extraneous to the libel. 9. They have frequently suborned witnesses, and have sustained them as witnesses, who either were sent out by themselves as spies and intelligencers, or who palpably were known to delate those against whom they witnessed, out of a pick and prejudice, and yet would not suffer them to be cast for partial counsel. 10. If they suppose a man to be wary and circumspect, and more prudent than forward in the testimony; then they multiply questions, and at first many impertinent interrogations, having no connexion with the cause, to try his humour and freedom, that they may know how to deal with him: and renew and reiterate several criminal examinations, that they may know whereof, and find matter wherein, to indict him, by endeavouring to confound, or intrap, or involve him in confessions or contradictions, by wresting his words. 11. They will admit no time for advice, nor any lawful defence for a delay, but will have them to answer presently, except they have some hopes of their compliance, and find them beginning to stagger and succumb in the testimony; in that case, when a man seeks time to advise, they are animated to a keenness to impose, and encouraged to an expectation of catching by their snares, which then they contrive and prepare with greater cunning. 12. If a man should answer all their questions, and clear himself of all things they can alledge against him, yet they used to impose some of the oaths, that they concluded he would not take; and according to the measure of the tenderness they discovered in any man, so they apportioned the oaths to trap them, to the stricter the smoother oaths, to the laxer, the more odious, that all natural consciences did fear at. 13. They will not only have their laws obeyed, but subscribed, and they reckon not their subjects obedience secured by the lawmaker's sanction, but the people's hand-writing; and think it not sufficient that people transgress no laws, but they must also own the justness of them, and the authority that enacts them, and swear to maintain it: and yet when some have done all

this, and cleared themselves by all compliances, they will not discharge them, but under a bond to answer again when called. 14. They will have their laws to reach not only actions, but thoughts; and therefore they require what people think of the bishop's death, and of Bothwel insurrection; and whether they own the authority, when they can neither prpve their disowning of it, nor any way offending it. 15. They will have them to declare their thoughts, and hold them convict, if they do not answer positively all their captious questions; and if they will not tell what they think of this or that, then they must go as guilty. 16. If they insist in waving, and will not give categorical answers, then they can extort all, and prove what they please by torture: and when they have extorted their thoughts of things, though they be innocent as to all actions their law can charge them with, then they used to hang them when they had done. 17. They have wheedled men sometimes into confession either of practices or principles, by promising to favour their ingenuity, and upbraiding them for dissemblers if they would not, and by mock expostulations, why were they ashamed to give a testimony? and then make them sign their confessions at the council, to bring them in as a witness against them at the criminal court. 18. Yea, not only extrajudicial confession will sustain in their law: but when they have given the public faith, the king's security the act and oath of council, that their confession shall not militate against them, they have brought it in as witness against them, and given it upon oath, when their former oath and act was produced in open court, in demonstration of their perjury. 19. When the matter comes to an assize or cognizance of a jury, they use to pack them for their purpose, and pick out such as they listed, who they think will not be bloody enough. 20. Sometimes when the jury hath brought their verdict in favours of the pannel, they have made them sit down, and resume the cognition of the case again, and threatened them with an assize of error, if they did not bring him in guilty. 21. Yea, most frequently the king's advocate used to command them to condemn, and bring in the pannel

guilty, under most peremptory certifications of punishment if they should not; so that they needed no juries, but only for the fashion. 22. Sometimes they have sentenced innocent persons twice, once to have their ears cut and be banished, and after the lopping of their ears, some have been re-examined, and sentenced to death, and execute. 23. They have sentenced some and hanged them both in one day; others early in the morning, both to surprize the persons that were to die, and to prevent spectators of the sight of their cruelty; others have been kept in suspence, till the very day and hour of their execution. 24. Not only have they murdered, serious and zealous followers of Christ in taking away their lives, but endeavoured to murder their names, and to murder the cause for which they suffered; loading it with all reproaches, as sedition, rebellion, &c. which was their peculiar policy, to bring the heads of sufferings to points that are most obnoxious to men's censure, and accounted most extrinsic to religion, whereby they levelled their designs against religion, not directly under that notion, but obliquely in the destruction of its professors, under the odium and reproach of enemies to government. 25. But chiefly they labour to murder the soul, defile the conscience, and only consult to cast a man down from his excellency, which is his integrity; that is a christian's crown, and that they would rather rob him of as any thing, either by hectoring or flattering him from the testimony: which they endeavour, by proposing many offers, with many threatnings in subtile terms; and pretend a great deal of tenderness, protesting they will be as tender of their blood as of their own soul (which in some sense is true, for they have none at all of their own souls) and purging themselves as Pilate did, and charging it upon their own heads. 26. They will be very easy in their accommodations, where they find the poor man beginning to faint, and hearken to their overtures, wherein they will grant him his life, yielding to him as cunning anglers do with fishes: and to persuade him to complying, they will offer conference sometimes or reasoning upon the point, to satisfy and inform his

conscience, as they pretend, but really to catch him with their busked hook. 27. Sometimes they used to stage several together, whereof they knew some would comply, to tantalize the rest with the sight of the others liberty, and make them bite the more eagerly at their bait, to catch the conscience. But when they had done all they could, Christ had many witnesses, who did retain the crown of their testimony in the smallest points, till they obtained the crown of martyrdom, and attained boldly to them without fear or shame, and disdaining their flattering proposals, but looking on them under a right notion, as stated there in opposition to Christ; whereby they found this advantage, that hence they were restrained from all sinful tampering with them, or entertaining any discourse with them, but what was suitable to speak to Christ's enemies, or doing any thing to save their life, but what became Christ's witnesses, who loved not their lives unto the death. Of whom universally this was observed, that to the admiration of all, the conviction of many enemies, the confirmation of many friends, the establishment of the cause, and the glory of their Redeemer, they went off the stage with so much of the Lord's countenance, so much assurance of pardon and eternal peace, so much hope of the Lord's returning to revive his work, and plead his cause again in these lands, that never any suffered with more meekness humility and composure of spirit, and with more faithfulness, stedfastness and resolution, than these worthies did for these despised and reproached truths; for which their surviving brethren are now contending and suffering, while others are at ease.

PART III.

The Present testimony stated and vindicated in its principal heads.

By what is above premitted, the reader may see the series and succession of the testimony of Christ's witnesses in Scotland from time to time, in all the periods of that church; how it hath been transmitted from one generation to another down to our hands; how far it hath been extended, and what increasements it hath received in every period; how it hath been opposed by a continued prosecution of an hereditary war against Christ, by an atheistical, papistical, prelatical, and tyrannical faction; and how it hath been concerted, contended for, maintained, and sealed actively and passively, by an anti-pagan, anti-popish, anti-prelatical, anti-erastian, anti-sectarian, and anti-tyrannical remnant of the followers, professors, confessors, and martyrs of Christ in all ages. Now it remains in the third and last place, to consider the merit of the cause as it is now stated, to see whether it will bear the weight of those great sufferings wherewith it hath been sealed. I hope all the lovers of Christ, who have an esteem even of his reproaches above all the treasures of Egypt, will grant, that if these sufferings be stated on the least or lowest of the truths of Christ, then they are not mistated, nor built upon a bottom that will not bear them, or is not of that worth to sustain them. For certainly every truth, the least of truths, is of greater value than any thing that we can suffer the loss of for it; yea, of infinitely greater value, than the whole world. So that if I prove these heads

of suffering to be truths wherein conscience is concerned, the cause will be sufficiently vindicated from the loadings and lashings of such as prefer peace to truth, and ease to duty, who to justify their own backwardness and detestable lukewarmness, call some of them only state questions about things civil, and not gospel truths and heads to state suffering upon: and if they be truths and duties, the cause will some way be rendered more illustrious, that it is stated upon the smallest hoofs and hair-breadths of the concerns of Christ's declarative glory; as being a greater witness of its owners love and loyalty to Christ, and of their pure and tender zeal for his honour, than if for more substantial and fundamental truths, which a natural conscience may reclaim to decline, when for the meanest circumstantial of Christ's truths they dare and are ambitious to bestow their dearest blood. But if the complex of them be impartially considered, no unprejudiced arbiter will suffer himself to have such extenuating impressions of the present word of patience, and testimony of the suffering remnant in Scotland this day: but it will appear to be a very weighty and worthy concern, as any that either men or Christians can be called to witness for; being the privilege of all mankind, the duty of all Christians, and the dignity of all churches, to assert; it is for the glory and crown prerogatives and imperial regalia of the King of kings, with reference to his visible kingdom, of which the government is laid upon his shoulders, against the heaven daring usurpations and encroachments made thereupon, both as he is Mediator, and King, and Head of the church, and as he is God and universal King of the world. As he is Mediator, it is his peculiar prerogative to have a supremacy and sole sovereignty over his own kingdom, to institute his own government, to constitute his own laws, to ordain his own officers, to appoint his own ordinances, which he will have observed without alteration, addition, or diminution, until his second coming: this his prerogative hath been, and is invaded by erastian prelacy, sacrilegious supremacy, and now by antichristian popery, which have overturned his government, inverted his

laws, subverted his officers, and perverted his ordinances. As he is God and universal King, it is his incommunicable property and glory, not only to have absolute and illimited power, but to invest his deputed ministers of justice with his authority and ordinance of magistracy, to be administred in subordination to him, to be regulated by his laws, and to be improved for his glory, and the good of mankind; this glory of his, hath been invaded by tyrants and usurpers arrogating to themselves an absolute power, intruding themselves without his investment into authority, in a rebellion against him, in opposition to his laws, and abusing it to his dishonour, and the destruction of mankind. Against both which encroachments the present testimony is stated, in a witness for religion and liberty, to both which these are destructive. This will appear to be the result and tendency of the testimony in all its parts, opposed by the enemies of religion and liberty, and the end of all their opposition, to bring it to this crinomenon, who shall be king? Jesus or Caesar? Let any seriously search into all their proclamations and edicts against religion and liberty, this will be found to be the soul and sense of them, practically and really speaking to this purpose, especially since this man came to the throne.

'J. R.

'James the VII. II. by the V. of G. king of Scotland, England, France, and Ireland, defender of the antichristian faith: To all and sundry our good subjects, whom these presents do, or may concern: greeting. We having taken into our royal consideration, the many and great inconveniencies which have happened in that our ancient kingdom of Scotland, especially of late years, through the persuasions of the christian religion, and the great heats and animosities, betwixt the professors thereof, and our good and faithful subjects, whose faith and religion is subject and subservient to our royal will (the supreme law, and reason, and

public conscience) to the disappointment of our projects, restraint of our pleasures, and contempt of the royal power, converting true loyalty and absolute subjection, into words and names (which we care not for) of religion and liberty, conscience and the word of God, thereby withdrawing some to the christian faction, from an absolute and implicit subjection to us and our will, as if there were a superior law to which they might appeal; and considering that these rebellious christians do never cease to assert and maintain strange paradoxes, such principles as are inconsistent with the glory and interest of our government, as that the authority of kings should be hemmed in with limits, and that their acts and actions are to be examined by another rule than their own authority to make them lawful, that some things in the kingdom are not subject to the king's authority, that there is a kingdom within a kingdom not subordinate to the king, and that there is another King superior to the supreme whom they will rather obey than us, and that we must either take laws from him, or otherwise we are no magistrates; and considering also their practices are conform to their principles, they will not obey our laws, but the laws of another inconsistent with ours, and will calculate their religion according to his laws, and not according to ours, and continually make their addresses to, and receive ambassadors from a prince whom we know not, whom our predecessors, of truly worthy memory, did crucify, one Jesus who was dead, whom they affirm to be alive, whose government they alledge is supreme over all kings, whom they acknowledge but as his vassals: being now by favourable fortune, not only brought to the imperial crown of these kingdoms through the greatest difficulties, but preserved upon the throne of our royal ancestors, which from our great founder Nimrod of glorious memory, and our illustrious predecessors

Pharaoh, Nebuchadnezzar, Herod the great, Nero, Caligula, &c. of blessed and pious memory, hath been ever opposite to, and projecting the destruction of that kingdom of Christ, do, after their laudable example, resolve to suppress that kingdom by all the means and might we can use, because his government is hateful to us, his yoke heavy, his sayings are hard, his laws are contrary to our lusts; therefore we will not let this man reign over us, we will break his bonds, and cast away his cords from us; and advance and exercise our sovereign authority, prerogative royal, and absolute power, which all our subjects are to obey without reserve. 'And as by virtue of our supremacy, whereby we are above all, but such as we are pleased to subject ourselves to, settled by law, and lineally derived to us as an inherent right to the crown, we have power to order all matters of church as well as state, as we in our royal wisdom shall think fit, all laws and acts of Christ to the contrary notwithstanding; and accordingly in our royal wisdom have overturned the platform of that government which Christ hath instituted, razed all courts fenced in his name, and severely interdicted all meetings of his subjects, and entertainment of his ambassadors: many of whom, in contempt of him that sent them, we have punished according to law, for negotiating his affairs in our kingdoms without our pleasure, and requiring allegiance and obedience to him, after we had exauctorated him; we have also established our right trusty, and well beloved clerks in ecclesiastic affairs, and their underlings, by our authority to have the administration of the business of religion and impowered our right trusty and well beloved cousins and counsellors, to compel all to submit to them, by finings, confinings, imprisonment, banishment, oaths, and bonds, and all legal means: so now having prosecuted this war against Christ to this length, that we have no fears of a

rally of his forces again so often beaten, we are now engaged with other antichristian princes to give our power to our holy father antichrist, so far as may serve his purpose to oppose Christ in his way; but we reserve so much to ourselves, as may encroach upon him in our capacity. And therefore we have thought fit to restore to antichrist our ecclesiastical supremacy, from whom we borrowed it, and for which we have no use at present: but we resolve to maintain and prosecute our sovereign authority, prerogative royal, and absolute power foresaid, against Christ, and without subordination to him, from whom, as we sought none, so we received no power by his warrant and grant, and against whom we mind to manage it to the uttermost of our power. Yet reflecting upon the conduct of the four last reigns, how, after all the frequent and pressing endeavours that were used in each of them, to reduce our kingdoms to antichrist, the subjects of Christ were so stubborn, that the success hath not answered the design: we must now change our methods a little, and tolerate that profession of Christ which we cannot yet get overturned, his subjects being so numerous, but always upon these terms, that they take a special care that nothing be preached or taught among them, which may be a testimony for Christ's prerogatives, in opposition to our usurpation, or may any way tend to alienate the hearts of our people from us, or our government, or preach his truths which we have condemned as seditious and treasonable, under the highest pains these crimes will import. Hereby we shall establish our government on such a foundation, on the ruin of Christ's, as may make our subjects happy, and unite them to us by inclination as well as duty, in a belief that we will not restrain conscience in matters of mere religion: for which we have a dispensation from our holy father, and also from our own absoluteness, to be slaves

to this promise no longer than consists with our own interest; and which we have power to interpret as we please: and would have all to understand, that no testimony for Christ's supremacy against our encroachments thereupon, shall be comprehended under these matters of mere religion, for which the conscience shall not be constrained: but we will have the consciences of such subjects of his, that dare assert it, brought to a test and probation how they stand affected in this competition betwixt us and this King Jesus, and see whether they will own or decline our authority, because not of him, nor for him, nor to him, but against him and all his interests. Our will is therefore, that all who will countenance any other meetings of his subjects than we have allowed, or connive at them, shall be prosecuted according to the utmost severity of our laws made against them, which we leave in full force and vigour, notwithstanding of all the premises. And for this effect, we further command all our judges, magistrates, and officers of our forces, to prosecute all these subjects and followers of Christ, who shall be guilty of treating with, or paying homage to that exauctorated king of theirs, in their assemblies with his ambassadors in the fields with the utmost rigour, as they would avoid our highest displeasure: for we are confident none will, after these liberties and freedom we have given to all without reserve, to serve God publicly, in such a way, as we, by our sovereign authority, prerogative royal, and absolute power aforesaid, have prescribed and allowed, presume to meet in these assemblies, except such whose loyalty to Christ doth alienate them from us and our government. As also, under the same certifications, by the same sovereign authority, and prerogative royal, and absolute power foresaid, we charge, impower, warrant, and authorize, against all hazards (hell excepted) all our foresaid judges and officers, in their

respective places, to prosecute and execute our laws, against all that may be suspected or convicted of their adherence to Christ, or be found guilty of owning their allegiance to him as their liege Lord, by solemn covenant, which we have caused burn by the hand of the hangman, and declared criminal to own it, or shall be found guilty of declining allegiance to us and our absolute authority, stated in opposition to him and his, or of maintaining that pernicious principle, inconsistent with our government, that their lives are their own, which they will preserve without surrender to our mercy: all which we command to be executed to death, or banished as slaves, as shall be found most conducive to our interest. And to the end, the few that remain of that way may be totally exterminated, we straitly command all our soldiers, horse and foot, to be ready upon order, to march and make search, pursue and follow, seize and apprehend, kill and slay, and cause to perish, all such, whether they shall be found at meetings, or in their wanderings, wherever they may be apprehended: and ordain all our good subjects to be assistant to these our forces, in prosecuting this war against Christ and his followers, and contribute their best help and encouragement, in giving them their required maintenance, and duly paying cess and locality imposed for that end; and that they shall not dare to countenance, converse with, refer, harbour, supply, or keep any manner of correspondence with any of these traitors that adhere to Christ, under the pain of being found art and part with them, and obnoxious to the same punishments to which they are liable; but on the contrary, to assist our forces to apprehend, and raise the hue and cry after them wherever they shall be seen, that they may be forthwith pursued, seized, cut off, and destroyed, which we order to be instantly done

upon the place, where they or any of them are apprehended, and that without any delay or mercy to age or sex,' &c.

On the other hand, if any will take a look of the declarations and testimonies of the other party without prejudice or stumbling at some expressions, which may be offensive to critics, he will find the scope and strain of them to have this importance.

'We, a poor company of persecuted, reproached, and despised Christians; who indeed have not many wise men among us after the flesh, not many mighty, not many noble, but are a few foolish, weak, base, and despised nothings in the world; yet having this ambition to be his called chosen; and faithful soldiers, who is King of glory, King of heaven, King of saints, King of nations, King of kings, whose kingdom is everlasting and universal; considering the many insolent indignities, affronts, and reproaches cast upon his name and glory, and the many usurpations, encroachments, and invasions made upon his crown and dignity, by a pestilent generation of his atheistical, papistical, prelatical, and tyrannical enemies, who have rebelled against him, and have renounced, corrupted, and subverted his royal government, both in the church and in the world, both in his kingdom of grace and of power: do bear witness and testimony against these rebels, from the highest to the lowest: and assert the interest and title of our princely Master, and own allegiance and absolute obedience to him and his government, to which he hath undoubted right; an essential right by his eternal Godhead, being the everlasting Father, whose goings forth have been of old from everlasting; a covenant-right by compact with the Father, to bear the glory and rule upon his throne, by virtue of the council of peace between them both; a donative right by the Father's right of delegation, by which he hath

all power given to him in heaven and in earth, and all authority, even because he is the Son of man; an institute right by the Father's inauguration, which hath set him as King in Zion; an acquiste right by his own purchase, by which he hath merited and obtained not only subjects to govern, but the glory of the sole sovereignty over them in that relation, a name above every name; a bellical right by conquest, making the people fall under him, and be willing in the day of his power, and overcoming those that make war with him; an hereditary right by proximity of blood and primogeniture, being the first born, higher than the kings of the earth, and the first born from the dead, that in all things he might have the pre-eminence; an electing right by his people's choice and surrender, a crown wherewith his mother crowned him in the day of his espousals. In a humble recognizance of all which rights, we own and avouch, that he hath that incommunicable prerogative of sole sovereignty over his visible kingdom, as well as invisible, without a co-partner or competitor, either co-ordinate or subordinate; in prescribing laws, by no human authority to be reversed; in appointing ordinances immutable, without addition or diminution, for matter or manner; instituting a government, which no man or angel can, without blasphemy, arrogate a power either to invert or evert, change or overturn; and constituting officers, which must depend only on his authority, and his alone; and must be cloathed only with his commission, and his alone; guided by his instructions, and his alone; acting according to his laws and prescribed platform, and his alone; without any dependence on, subordination to, licence, warrant or indulgence from any mortal. And therefore we disown and detest every thing that hath not the stamp of his authority, either in doctrine, worship, discipline or government: and will discountenance prelacy, supremacy, popery,

and all corruption contrary to his institution, who is sole and supreme lawgiver to the conscience, and will submit to, or comply with nothing that may directly or indirectly signify our respect unto them. Hence we will take none of their oaths, subscribe none of their bonds, yield to none of their impositions, pay none of their exactions; neither will we hear or receive ordinances from any minister, but the faithful authorized ambassadors of Christ our king, whatever either rage or reproach we suffer for it. We assert and affirm also, that our exalted Prince is King of the whole world, by whom kings reign, and princes decree justice, as his ministers of justice, in subordination to him; whom he hath appointed to rule over us, with just boundaries, that they may not exceed, and true characters, by which we should know them and pay them deference. And therefore, whosoever shall arrogate to themselves, and extend their power beyond and above his prescripts, being neither called to, nor qualified for, nor improving the office for the ends he hath appointed; we will acknowledge them no otherwise than usurping tyrants, and not magistrates nor ministers of justice, to whom he hath given the sword by his perceptive will; only as lions, bears, wolves, to whom he hath given a rod by his providential will; in that case we may be passively subject, when we cannot do better; but will never own conscientious allegiance to them, nor own them as our lawful magistrates; and therefore we will not bow down to their idols they have set up, nor prostitute either conscience or liberty to their lust, but will endeavour, under our Master's banner and conduct, to preserve whatever he hath intrusted to us religion, life, liberty, estate, and whatsoever the Lord our God hath given us to possess, as they unjustly possess what their god gives them; and will maintain a war of constant opposition to them (against whom our Lord hath declared a war

for ever) without parley, treaty of peace, capitulation, composition, truce, or any transaction; we will neither meddle nor make with them, less or more, nor seek their favour, nor embrace it when it is offered, on any terms that may imply any obligation to surcease from our duty to our King, and irreconcilable opposition to them,' &c.

Now I shall come more distinctly to the purpose, in offering a short vindication of the heads and grounds of our great sufferings, dividing them into their principal parts, which I reduce to two, to wit, negatives and positives. The negative grounds I reckon three principally. 1. For refusing to acknowledge a corrupt ministry. 2. For refusing to own a tyrannical magistracy. 3. For refusing to swear and subscribe their unlawful imposed oaths, chiefly that of abjuration, which was the occasion of suffering unto death. The positive grounds are also three. 1. For frequenting field-meetings, to receive gospel ordinances from faithful ministers. 2. For maintaining the principle and practice of defensive resistance of superior powers. 3. For maintaining the privilege and duty of offensive revenge, in executing justice upon murdering enemies of mankind, in cases of extreme necessity, in prosecuting which, I shall intertex some subordinate questions relating to their respective heads, and endeavour to discuss them briefly.

HEAD I.

Where the sufferings of many, for refusing to acknowledge a corrupt ministry, are vindicated; and the question of hearing curates is cleared.

This question, though it may seem nice, and of no great moment, to persons of Gallio's or Laodicea's temper, indifferent and lukewarm dispositions, consulting their own more than the things of Christ, which make it pass without any enquiry with the most part of the world; yet, to all

who are truly tender in keeping a good conscience, free of the times contagion, to all who have the true impression of the fear of God, who is jealous, especially in the matters of his worship; to all who have the true zeal of God eating them up, in a just indignation at the indignities done to him, in usurping the office and corrupting the administration of the ministry; to all who truly love the gospel, and put a due value on the ordinances of Christ, the corruptions whereof this question touches, it will be accounted of great importance.

There are three questions about the duty of hearing the word, concerning which the Lord Jesus gives us very weighty cautions, to wit, what we should hear, Mark iv. 24. how we should hear, Luke viii. 28. and whom we should hear. The last of which, though it be not so expressly stated as the other two, yet the searcher of the scriptures will find it as clearly determined, and as many cautions to guard from erring in it, as in any other case, and that the concern of conscience in it is very weighty. And certain it is, if there had been more advertency in this point, there would not have been such inconsideration and licentiousness in the matter and manner of hearing. Nor would that itching humour and luxuriancy of lust, in heaping up teachers to please the fancy, have been so much encouraged, to the great detriment of the church, disgrace of the gospel, and destruction of many poor souls. But through the ignorance and neglect of this duty of trying whom we should hear, by seeking some satisfying evidence of their being cloathed with authority from Christ, the world hath been left loose in a licence to hear what they pleased, and so have received the poison of error from the mountebanks, instead of the true and wholesome potions of Christ's prescripts from them that had power and skill to administer them. Hence the many sects, and schisms, and errors that have pestered the church in all ages, have in a great measure proceeded from this latitude and laxness of promiscuous hearing of all whom they pleased, whom either the world's authority empowered, or by other means were possessed of the place of

preaching, without taking any cognizance whether they had the characters of Christ's ambassadors or not. If this had been observed, and people had scrupled and refused to hear these whom they might know should not have preached; neither the great antichrist, nor the many lesser antichrists, would have had such footing in the world as they have this day. It is then of no small consequence to have this question cleared. Neither is it of small difficulty to solve the intricacies of it, what characters to fix for a discovery of Christ's true ministers; whom we should submit to and obey in the Lord, and love and esteem them for their work's sake, and for their qualities sake, as standing in Christ's stead, having the dispensation of the word of reconciliation committed to them; and how we may discern those characters; what judgment is incumbent to private Christians, for the satisfaction of their own consciences in the case; and how they ought to demean themselves in their practice, without scandal on either hand, or sin against their own conscience; how to avoid the rocks and extremes that inadvertency or precipitancy in this matter may rush upon; so as to escape and sail by the Scylla of sinful separation on the one hand, and the Charybdis of sinful union and communion on the other, which are equally dangerous; especially how these cautions are to be managed in a broken, and disturbed, and divided case of the church. The question also is the more difficult, that as it was never so much questioned before this time, and never so much sought to be obscured, by the perverse disputings of men of corrupt minds, to find out evasions to cover sin and escape sufferings upon this account; so it hath never been discussed by divines either at home or abroad, with relation to our case, except what hath been of late by some faithful men, who have suffered upon this head, from whom I shall gather the most of my arguments, in as compendious a way as I can without wronging them. The reason, I fancy, that we are at such a loss in our helps from the learned on this head, is partly, that they have written with relation to their own times, in a constitute case of the church, when corruptions and

disorders might be orderly rectified, and people might have access to get their scruples removed in a legal way by church-order, in which case the learned and judicious Mr. Durham hath written excellently in his book on scandal; but therein neither he nor others did consult, nor could have a prospect of such a case as ours is; and partly, that foreign divines, not having this for their exercise, could not be acquainted with our circumstantiate case, and so are not fit nor competent arbiters to decide this controversy; hence many of them do wonder at our sufferings upon this head. Every church is best acquainted with her own testimony. Yet we want not the suffrage of some of the most learned of them, as the great Gisb. Voetius in his *polit. eccles.* in several places comes near to favour us: where he allows people to leave some, and hear such ministers as they profit most by, from these grounds, 'That people should choose the best and most edifying gifts, and from that scripture, 1 Thess. v. 21. Prove all things, &c. and answers objections to the contrary, and granteth, that, upon several occasions, one may abstain from explicit communion with a corrupt church, for these reasons, that such communion is not absolutely necessary, by necessity either of the mean or precept, where the Christian shall have more peace of conscience, and free exercise of Christian duties elsewhere, and that he may keep communion with more purity in other places, *polit. eccles. quest. 17. pag. 68.* And he approves of the people refusing to bring their children to be baptized by such corrupt ministers, because they may wait until they have occasion of a minister; for if the best gifts be to be coveted, why should not the best ministers be preferred? and why should not Christians shew by their deeds, that they honour such as fear the Lord, and condemn a vile person? They ought not to partake of other men's sins, 1 Cor. v. 9, 11. Eph. v. 11. They should not strengthen the hands of the wicked, and make sad the godly; the authority of such ministers should not be strengthened,' Voet. *polit. eccles. pag. 637 to 640.* But though it labour under all these disadvantages; yet it is not the less, but so much the rather

necessary, to say somewhat to clear it, with dependence upon light from the fountain, and with the help of faithful men who have sufficiently cleared it up, to all that have a conscience not blinded nor bribed with some prejudices, by which more light hath accrued to the church in this point of withdrawing from corrupt ministers than ever was attained in former times; which is all the good we have got of prelacy. Insomuch that I might spare labour in adding any thing, were it not that I would make the arguments, vindicating this cause of suffering, a little more public, and take occasion to shew, that the grounds espoused by the present and reproached party for their withdrawals, so far as they are stretched, are no other than have been owned by our writers on this head; to the intent that it may appear, there is no discrepancy, but great likeness and harmony between the arguments and grounds of withdrawing, in the late informatory vindication, &c. and those that are found in other writings. And so much the rather I think it needful to touch this subject now, that not only this hath been the first ground of our sufferings, but many that suffered a while for it, now have fainted, and condemned all their former contendings for this part of the testimony, calling in question all these reasons that formerly satisfied them. But to proceed with some distinctness in this thorny point: some concessory assertions must first be permitted, and then our grounds propounded.

First, I willingly yield to, and cordially close with the truth of these assertions.

I. The unity of the spirit, in the bond of peace, ought to be the endeavour of all that are members of the one body of Christ, partakers of his one Spirit, called in one hope, professing one Lord, confessing one faith, sealed with one baptism, Eph. iv. 3. &c. and for brethren to dwell together in unity, is good and pleasant, and like the precious ointment upon the head, that ran down upon Aaron's beard, Psal. cxxxiii. 1, 2. A fragrant ointment indeed, if it be composed aright of gospel simples, according to divine art, and the

wisdom that is from above, which is pure, and then peaceable: and not made up of adulterate politics: that union that hath the Spirit for its author, the scripture for its rule, peace for its bond and beauty, love for its cement, faith for its foment, Christ for its foundation, and truth and holiness for its constant companions, cannot but be intensely desired, enixly endeavoured, and fervently followed by all the professors of the gospel of peace, and subjects of the Prince of peace: which makes division and schism, not only a great misery, but a grand sin. But it must be in the way of truth and duty, and consistent with holiness and the honour of Christ, otherwise if it be in the way of apostasy and defection, it is but a confederacy and conspiracy against the Lord. And true union can neither be attained, nor retained, nor recovered, except the sinful cause of division, defection, and the holy overruling cause, the anger of the Lord be removed, in turning to and following him.

II. Though there be not perfect union, but diversity both of judgments and practices, in several cases there may be communion with a church in its ordinances and ministry. As, 1. We may have a catholic communion with all christian ministers and members of the catholic church, considered as such; holding the head Christ, and the fountain sure. And so we may meet for worship with all devout men in every nation under heaven, whether they be Parthians, or Medes, or Elamites, or French or Dutch, &c. though differing in controversies of lesser moment, not overturning that; if they hold the universal testimony of the gospel, against the common enemies thereof, Jews, Turks, or Pagans: for there is neither Greek nor Jew, if he be a christian, Christ is all and in all, Col. iii. 11. But if they be heretics, we can have no communion with them. 2. We may have a more special communion with all protestant ministers and members of the reformed church, considered as such, more strictly, and upon stricter conditions: providing they hold, not only the universal of christians, but the general testimony of protestants, against the greater and lesser antichrists; though differing from

us in some circumstantial points, not reformed, and not contradictory unto the protestant testimony against popery, and all heresy; nor declining from their own reformation, by defection or schism. And consequently, it is lawful to own communion with the churches of the united provinces, and take ordination from them, though they have some forms not allowable, from which they were never reformed, because they are sound in the protestant testimony. But with the sectarians, or schismatics, or apostates among them, we cannot own that special communion. 3. We may have a more particular communion upon yet stricter conditions with all our covenanted brethren, ministers and members of the churches of Britain and Ireland, considered as such: providing they hold, not only the universal, not only the more special, protestant testimony against the greater and lesser antichrists, but the covenanted testimony for the reformation in doctrine, worship, discipline, and government, against popery, prelacy, superstition, heresy, schism, and profaneness, according to the covenant; though differing from us in those controversial points, never reformed, and which were never the word of Christ's patience, and do not overturn the covenanted testimony. But with those that contradict and counteract that, we own that particular communion. 4. We may have yet a nearer organical communion, upon stricter conditions still with all the ministers and members of the national church of Scotland constitute and confederate under one reformed government, according to the rule of Christ: providing they hold, not only all the former testimonies under the foresaid considerations, but the presbyterian testimony as stated in the ecclesiastical constitution, and sworn to in the national covenants and engagements of that church, founded upon the word of God, against popery, prelacy, erastianism, sectarianism, toleration, schism and defection; though differing in some things from us, never reformed, never considered in ecclesiastical judicatories, never engaged against in our covenants, never stated as the word of patience and matter of testimony. But with those that oppose,

suppress, reproach, and abandon this testimony, we cannot own this organical communion, in this broken state of the church. We may have yet a stricter congregational communion, upon stricter conditions, in and with the ordinary or extraordinary meetings or societies of the Lord's people for gospel ordinances, with any minister or ministers, duly and truly admitted to that function, according to Christ's appointment, and the call of the people, whether in a fixed or unfixed relation; providing he holds the testimony of Christ, under all the considerations, and owns and adheres unto the true received principles of the church of Scotland, in doctrine, worship, discipline and government, founded upon the written word of God, and whatsoever declarations or testimonies, former or latter, particular or more general, are agreeable thereunto; though differing from us in some of the integral and not essential parts of our testimony against the enemies of our covenanted reformation. But with such as deny or decline from it, by schism or defection, or compliance with the enemies thereof, we cannot own this congregational communion, in this broken state of the church.

III. Though there be many things in a church, to brangle and lessen the comfort of our communion with it, and the ministry thereof; yet we may keep fellowship with a true church, though in many things faulty and corrupt, as all churches are, in some measure, in this militant state. As the church of Corinth had many corruptions in their practice, yet no separation is enjoined from it. And the Lord did not require separation from the churches of Pergamos and Thyatira; though they had many corruptions and deficiencies in discipline, in a toleration of heretics; and would lay no other burden upon them, but to hold fast what they had: as Mr. Durham shews in his Commentary on the Revelation, chap. 2. lect. 6. page 148, 149. as also chap. 18. lect. 1. page 585. in 4to. This must be granted especially in these cases, 1. In the infant state of the church, when the reformation is only begun: then many things may be tolerated, before they be gradually reformed, which, in an adult state, are not to be suffered. 2. In a growing

case of the church, advancing out of corruptions, then many things may be borne with, while they are ascending and wrestling up the hill, which in a declining state, when the church is going backward, must not be yielded unto. See that objection of hearing prelatical men in the time of former prelacy, answered above, Period 4. In a constitute and settled case of the church, enjoying her privileges and judicatories, corruptions may be forborn, and the offended are not to withdraw, before recourse to the judicatories for an orderly redress; but in a broken and disturbed state, when there is no access to these courts of Christ; then people, though they must not usurp a power of judicial censuring these corruptions, yet they may claim and exercise a discretive power over their own practice; and by their withdrawing from such ministers as are guilty of them, signify their sense of the moral equity of these censures that have been legally enacted against these and the equivalent corruptions, and when they should be legally inflicted. As we do upon this ground withdraw from the prelatic curates, and likewise from some of our covenanted brethren, upon the account of their being chargeable with such corruptions and defections from our reformation, as we cannot but shew our dislike of. This the reverend author of *Rectius Instruendum* justifies, Confut. 3. Dial. chap. 10. p. 8. where he is shewing what separation is not sinful; and gives this for one, If we separate in that, which a national church hath commanded us as her members to disown, by her standing acts and authority, while those from whom we separate own that corruption. Which holds true of the curates, and indulged and addressers, and all that we withdraw from. However it be, certainly those are to be withdrawn from, with whom we cannot communicate without submitting to the laws establishing them, and taking on that test and badge of our incorporation with them, and partaking of their sin, and in hazard of their judgment.

IV. Though in some cases, as we are warranted, so are necessitated to withdraw: yet neither do we allow it upon slight or slender grounds, nor can

any tender soul be forced to discountenance the ministers of Christ, (I do not here speak of the prelatical curates), without great reluctancy and grief of heart, even when the grounds of it are solid and valid, and the necessity unavoidable; therefore we reject these as insufficient grounds. Besides what are given already, 1. We cannot withdraw from a minister, for his infirmities or weakness, natural, spiritual, or moral. 2. Neither for personal faults and escapes: we expect a faithful, but not a sinless ministry. 3. Nor for every defect in faithfulness, through ignorance, want of courage, misinformation, or being biassed with affection for particular persons. We do not hold, that faults in members or defects in ministers, do pollute the ordinances, and so necessitate a separation; but agree with what Mr. Durham says on Revelations, chap. 2. lect. 6. p. 147. in quarto. Sincerity discovered will cover many faults. 4. Nor for every discovery of hypocrisy; though we may have ground to suspect a man's principle and motive be not right, yet if he be following duty unblameably, and have a lawful call, what then! "notwithstanding every way, whether in pretence or in truth, Christ is preached, therein we may rejoice," Phil. i. 18. 5. Nor yet for real scandals, not attended with obstinacy, if ministers will take reproof and admonition, and at least by doctrinal confessing, and practical forsaking them, satisfy the offended. 6. Yea, though his scandals be so gross, that we must discountenance him, when he persists in them: yet that is not a disowning of his ministry, or a rejecting his commission, but a discountenancing for his disorders, until they be removed. But the Apologet. Relat. sect. 14. p. 290, 291. says, (1.) "There may be ministerial corruptions, that cut the very throat of the office, and make one no officer,——and it is past questioning, such may be shunned, without all hazard of separation. (2.) When personal faults are very gross and palpable, open and avowed, such may be shunned without any hazard of separation; because the man's being an officer, before God, is much to be questioned; and there is great probability, that by the very deed itself, he had forefaulted the same, though such should be the

corruption in a church, that notwithstanding of all this he may be maintained. (3.) Separation is one thing, and not hearing such or such a man is a far other thing: there may be many just grounds of exception against a particular person, why people may refuse to countenance him, without any hazard of separation, or joining with separatists in their principles: separation is one thing, and refusing to attend the ministry of such a man is another thing; for a man may join with ordinances in another congregation, and so testify that he hath no prejudice at the ministry, but only against such a man in particular.' Whence it is an ignorant as well as malicious calumny, to say, that our withdrawing from the curates, and also from some ministers, whom otherwise we respect and reverence as godly ministers, for their offensive defections, is a disowning all the ministry of Scotland. Whereas, we do profess indeed a disowning of the curate's ministry, but for our reverend presbyterian ministers, though we do discountenance many of them with sad hearts, for not keeping the word of the Lord's patience in this hour of tentation, nor adhering to the principles and constitutions of the church of Scotland: yet this is not a disowning of their ministry, but a refusing to countenance them in their present administrations, in this disturbed state, till these offences be removed.

V. As to disown the ministry were hateful sectarianism; so to dissolve or break off communion with a true church, whereof we are members, were an unnatural schism, which is horrid sin. But because among all the various sufferings, wherewith the poor tossed and racked remnant now persecuted, have been exercised, this hath not been the lightest; that they have been on all hands stigmatized as schismatics and separatists, not only because they have maintained a resolved withdrawing from the curates, but also have discountenanced many presbyterian ministers, with whom they have been offended for their declining courses, and compliances with the times corruptions, and forsaking in a great measure the duty of this day: I shall distinguish some cases of separation, out of the writings of our approven

authors, which will justify all their withdrawals. 1. Mr. Durham distinguishes these three, schism separating from the unity and communion of a true church, consisting not always in diversity of doctrine, but in divided practices, according to that of Augustine, it is not a different faith makes schismatics, but a broken society of communion: then separation, either in whole from a church as no church, or in part in some things wherein they cannot communicate with that corrupt church, which is lawful if it exceed not its ground; then, lastly, secession, a local removing to a better church. The first of these cannot be imputed to the persecuted wanderers: for they separate from no true church, whereof they were members, but these from whom they separate, will be found to be the schismatics. 2. The second of these, to wit separation, is either positive and active, or negative and passive. The first is, when a party not only leaves communion with a church whereunto they were formerly joined, but also gathers up new distinct churches, different from the former, under another government and ministry, and ordinances, disowning those they left. The latter is, when the faithful remnant of a declining church, standing still and refusing to concur with the backsliding part of the same church, after they have become obstinate in their defections, hold closely by, and adheres unto the reformation attained. This famous Mr. Rutherford, in his due right of presbyteries, p. 253, 254. sheweth to be lawful, and calleth it a non-union, as that in Augustine's time, when the faithful did separate from the Donatists; which is lawful and laudable. 3. 'Mr. Rutherford there proceeds to distinguish between a separation from the church in her worst and most part, and a separation from the best and least part: and these who separate from the worst and greatest part, do notwithstanding retain a part of, and a part in the visible church, because they do not separate from the church, according to the least and best part thereof; as the godly in England, who refused the popish ceremonies and antichristian bishops. Hence it will follow, that though people should now withdraw from communion with the

greatest part of the church, which is now corrupted, they cannot be counted separatists, because they hold full communion with the better, though lesser part. Moreover he saith, p. 254, 255. That there may be causes of non-union with a church which are not sufficient causes of separation. Lastly, he tells us in the same place, p. 258. when the greatest part of a church makes defection from the truth, the lesser part remaining sound, the greatest part is the church of separatists; though the manyest and greatest part in the actual exercise of discipline be the church, yet in the case of right discipline the best, though fewest, is the church. For truth is like life, that retireth from the manyest members unto the heart, and there remaineth in its fountain in case of dangers. So that it is the major part which hath made defection, that are to be accounted separatists, and not such who stand to their principles, though they cannot comply or join with the corrupt majority.'

Thus the Apol. Relat. rehearsed his words, sect. 14. pag. 292. 293. 4. There may be a lawful withdrawing, where the ordinances and ministry are not cast at, as the Apol. Rel. saith *ibid.* 291. 'So then, so long as people do not cast at the ordinances, but are willing to run many miles to enjoy them: nor cast at the church as no church (though they sadly fear, that God shall be provoked by this dreadful defection, which is carried on by these men and their favourers, to give her a bill of divorce) nor at the ministry, for they love those that stand to their principles dearly, and are most willing to hear them either in public or private. 5. It is granted by all that write against separatists, that separation from a church is lawful, when the case so falleth out, that union cannot be kept up with her without sin,' Voet. Polit. Eccles. p. 68. quest. 17. 6. The grave author of *Rectius Instruendum Confut.* 3 dial. chap. pag. 7. &c. 'Allows, every separation is not schism, even from the church which hath essentials; yea, and more than essentials: if it be from those (though never so many) who are drawing back from whatever piece of duty and integrity is attained; for this is still to be held fast, according to many scripture commands. So Elias, when God's covenant was forsaken,

was as another Athanasius (I and I only am left) in point of tenacious integrity. 7. Next he says, If we separate in that which a national church hath commanded us as her members to disown, by her standing acts and authority, while those from whom we separate own that corruption. 8. Likewise he there asserts, there is a lawful forbearance of union and compliance with notorious backsliders, in that which is of itself sinful, or inductive to it: which is far from separation strictly taken. The commands of abstaining from all appearance of evil, and hating the garment spotted with the flesh, do clearly include this. 9. He adds, many things will warrant separation from such a particular minister or congregation; which will not warrant separation from the church national; nor infer it, by Mr. Durham's acknowledgment (on Scandal, pag. 129.) for if scandals become excessive, he allows to depart to another congregation. 10. Lastly, He says, There is a commanded withdrawing from persons and societies even in worship, the precepts, Rom. xvi. 17. 2 Cor. vi. 17. Prov. xix. 27. Acts ii. 40. will clearly import this by consequence.—Surely the ministers and professors, adhering to the reformation, must be the true church of Scotland, though the lesser number: these soldiers who keep the generals orders, are the true army, not the deserters of the same.'

But, Secondly, it being in part cleared by these assertions, what is our mind in this controversy, I shall lay down from scripture oracles, all the causes and cases justifying and warranting withdrawing from any ministers; with application of all of them to the curates, and accommodation of some of them to all that the wanderers withdraw from: with arguments endeavouring to evince the validity of them, and evidencing they are not new notions, but the same grounds which approven authors have improved in this controversy. I shall omit the ordinary criticisms in stating the question, in distinguishing betwixt hearing and joining in worship, and owning them as our ministers, and submitting to them, &c. And only essay to prove this thesis: we cannot, without sin, own church communion in

gospel ordinances with the prelates or their curates, as our ministers, but must withdraw from them, and any other guilty of the like corruptions, which we can make out against them. I shall not resume what confirmations this thesis is strengthened with, from the testimonies, or church constitutions of former periods, which are permitted in the foregoing discourse; nor make any repetition of the circumstances of our present condition, represented above, which contributes to clear it: but shortly come to the arguments.

I. It is necessary that we must acknowledge them ministers of Christ, and his ambassadors clothed with his commission, from whom we receive the ordinances of the gospel. For otherwise they must be looked upon as thieves, robbers, usurpers, and strangers, whom Christ's sheep will not, nay must not hear, John x. 1, 5. And "how shall they preach," or be heard, "except they be sent," Rom. x. 15. For such whom we know may not lawfully preach, we cannot lawfully hear. These from whom we may receive the mysteries of God, we must account ministers of Christ, 1 Cor. iv. 1. and ambassadors for Christ, standing in his stead, beseeching us to be reconciled to God, 2 Cor. v. 20. Hence such as we doubt to acknowledge ministers of Christ, clothed with his commission, them we cannot hear without sin; but the prelatical curates are such as we doubt to acknowledge ministers of Christ, clothed with his commission: therefore we cannot hear them. The minor only needs probation. These who neither have nor can have the qualifications of a minister of Christ, cannot be acknowledged with confidence to be ministers of Christ clothed with his commission: but the prelatical curates are such: Ergo——First, they neither have, nor can have the qualifications of Christ's ministers; since few of them have the personal, as christians, far less the ministerial as officers, mentioned 1 Tim. iii. 2, 3. Tit. i. 6, 9. except it be to be "husbands of one wife," and if that do not make them ministers, they having nothing else, especially four are wanting in all of them. (1.) Blamelessness, and freedom from scandal, even such as affects the office (besides other gross disorders in their life and

conversation, obvious to the view of onlookers, being men who have denied the faith; and therefore unfit to have the privilege of church members in any well governed church) being, in the experience of all that know them signalized under the characters of those that run unsent, and from whom we are commanded to withdraw: causing the people to err by their lies, and by their lightness, not sent of God, Jer. xxiii. making the heart of the righteous sad, and strengthening the hands of the wicked, Ezek. xiii. 22. See also Ezek. xxxiv. 2, 3. Such as we are commanded to beware of, Matth. vii. 15, 16. Such as we must mark and avoid, Rom. xvi. 17, 18. Phil. iii. 2. Disorderly walkers from whom we must withdraw, 2 Thess. iii. 6. Covenant breakers, from whom we are commanded to turn away, 2 Tim. iii. 3, 5. They are not then blameless: and in shewing how fitly these agree unto the persons now spoken of, time needs not be spent, such as know them can best judge. Hence, such as either are not fit to be church members, or have all the characters of such officers from whom we are to withdraw, cannot be acknowledged capable of the qualifications of the ministers of Christ; but such are the curates: Ergo——(2.) The qualification of vigilancy cannot be found with them for all that know them will acknowledge that they neither do, nor can in preaching the word be "instant in season and out of season," so as to make "full proof of their ministry," 2 Tim. vi. 1,—5. Nay, they can give no proof of their ministry at all, further than may be competent to dumb dogs that cannot bark, Isa. lvi. 10, 11. For they nor no man can say, That the diseased they have strengthened, or healed that which was sick, &c. Ezek. xxxiv. 4. And it is known to all that know them, that if ever there were any that assumed to themselves the name of Levites, who departed out of the way, and caused many to stumble at the law, and corrupted the covenant of Levi, and therefore were deservedly contemptible and base before all the people, (Mat. ii. 8, 9.) they are the men. Let any man judge then, whether they have the qualifications of the messengers of the Lord of hosts. Hence, they that can give no proof of their ministry, but that which

proves them to be such whom the Lord condemns, and such who deserve to be contemned of all, cannot be acknowledged to be qualified as the Lord's ministers; but the prelatic curates can give no proof of their ministry, &c. Ergo——(3.) The qualification of aptness to teach is wanting; yea, incompatible with them, not only such of them as are noted for ignorance, of whom clearly that is verified, they are blind watchmen, they are all ignorant (Isa. lvi. 10.) but even their greatest clerks and rabbies may fitly be called after the name of their forefathers, whom Christ calls blind leaders of the blind, concerning whom he gives a command to let them alone, Mat. xv. 14. Either generally they are discovered to be such masters of Israel, as know not these things, John iii. 10. being men not exercised in religion, and have not learned the truth as it is in Jesus; or they are such, as if they have had gifts or grace, yet now they are palpably blasted of God, and so cannot profit the people at all, being such as do not stand in God's counsel, for then they should have turned the people from their evil way, and so they are not apt to teach others when they are not taught of God, but steal his words every one from their neighbour, clearly discovering they are not sent of him, Jer. xxiii. 21, 22, 30, 32. And because they do not stand in God's counsel, they cannot declare all the counsel of God, Acts xx. 27. For they can neither be apt to teach repentance towards God, since they cannot be supposed to be sensible of these sins to be repented of, for which the land perisheth, and is burnt up like a wilderness, Jer. ix. 12. For then they would first repent themselves of their own conformity with prelacy, of their breach of covenant, &c. All that they can do in such a subject is, to see vain and foolish things, and not to discover the land's iniquity, but to see false burdens, and causes of banishment, Lam. ii. 14. Nor can they be apt to teach faith, seeing in many things they teach otherwise than Christ hath taught us in his word, and consent not to wholesome words, and to the doctrine which is according to godliness, from such the command is to withdraw, 1 Tim. vi. 3,—5. whose mouths must be stopped when they teach things which they

ought not, Tit. i. 9,—11. which is undeniable to all that know what sort of stuff they preach, contrary to the word of God, and the principles of our covenanted reformation. Hence if none of them be apt to teach, then none of them is fit to be heard; but none of them is apt to teach: Ergo——'It is true private christians may not judge of the endowments and qualifications of ministers; yet every private christian hath the judgment of discretion, and that way may judge such an one if he appear qualified according to the rule of the word; and may doubt if he be a qualified minister before God, wanting these qualifications which the word requireth,' Apol. Relat. sect. 15. p. 285. Secondly, They have not the lawful call of a minister of Christ, so much as an external call of his institution: which I prove thus. They that have presentations from patrons, and collations from prelates, and no more for a call, have no lawful call at all; but the curates have presentations from patrons, and collations from prelates, and no more for a call: Ergo they have no lawful call at all. The minor cannot be doubted: 'For, in this government, the minister's mission, call, ordination, and relation to such a people over whom he is to officiate, flows all from the prelate; the congregational eldership hath not the least interest in it: hence the presbyterian way of calling pastors was ranversed by the parliament, when prelacy was set up, and the old custom of patronages was restored,' Rectius Instru. Confut. of 1 Dial. chap. 4. p. 3. The major proposition may be proven by parts. First, Presentations from patrons cannot give a lawful call; for besides what other reasons might be given against this old relict of popish bondage of patronages, it destroys that privilege and liberty of the church in calling their own pastors, and makes all intruders, without the church's choice; whereas the flock are allowed a judgment of discretion, knowledge of, and consent to the admission of their pastors, to whom they intrust their soul's directions, before they be subject to, and obey him in the Lord, for otherwise he is a stranger that hath not come in at the door, and they must not, nor will not be imposed upon, John x. 1-5. They had an interest in

choosing and nominating even the apostles, though there were other apostles of infallible knowledge, as to qualifications, present to ordain them; and they appointed two to be chosen by lot, Acts vi. 23. and even the deacons were looked out and chosen by the people, and appointed over the business, Acts vi. 3. 'Much less ought ministers to be thrust upon such a weighty employment, to pleasure great men who are patrons, since in their faithfulness the people are infinitely more concerned,' Rectius Instruen. ubi Supra. Hence, if the curates have no call but what destroys the people's privilege, they have no lawful call at all, neither ought they to be owned, or countenanced as called ministers; but by the presentation of patrons they have no call, but what destroys the people's privilege: Ergo—Next, collations from prelates cannot give a lawful call: for (1.) they cannot give that to others which they have not themselves; but they have not a lawful call themselves, because they are not lawful officers, as is clear, and may be proven afterwards. (2.) the only way of conveyance of an ordinary call to this office, is by the act of a presbytery, Tim. iv. 4. And, by ministers, their ordaining elders in every church, with the consent of that church; but a prelate's collation is not this act of a presbytery. (3.) That which only makes a man a prelate's depute, cannot give him a call to the ministry of Christ; but this collation only makes a man a prelate's depute. Or thus, a prelate's depute is no minister; but a curate is a prelate's depute: Ergo—That a prelate's depute is no minister, I prove; not only from that, that a prelate, as such, is not a servant of Christ, but an enemy; and therefore cannot confer upon another, that dignity to be Christ's servant; but from this, that the scripture allows no derivation of deputed officers. If no officers of Christ can have deputies of Christ's institution; then the deputies that they make cannot be Christ's officers of his institution; but no officers of Christ can have deputies by Christ's institution: every man that hath any piece of stewardship in God's family must ever see and execute it immediately by himself, and wait upon it, Rom. xii. 7, 8. That curates are prelates deputies is

clear: for they are subject to them in order and jurisdiction, and derive all their power from them, and are accountable to them: therefore they cannot be acknowledged with confidence of conscience to be Christ's ministers. 'Because they have not such a visible evidence of the call of Christ, as, in reason and charity, doth oblige all men to receive the person so called, as truly sent: which things are so evident in themselves, that whoever denieth them, is obliged by the same consequence to affirm, that if Simon Magus had in his horrid wickedness, purchased the apostleship by money, the Christian world had been bound to receive him as an apostle,' Naphtali, p. 105, 106, first edition. That their ministry is the Lord's ordinance is plainly denied, Naphtali, p. 109. 'They have nothing like a solemn ordination, having no imposition of hands of the presbytry with fasting and prayer, according to the order of the gospel, but the sole warrant and mission of the prelate, and therefore it cannot be lawful to countenance such, and to look upon them as lawful ministers,' Apol. Relat. sect. 15. pag. 183. It will be objected here, 1. 'That then their baptism is no baptism, if they be no ministers.' Ans. '(1.) what sad consequences may follow upon the nulling of their office, let them see to it who either send such forth, or employ them.' Apol. Relat. ib. p. 294. the best way to avoid these inconveniences is not to countenance them. But (2.) the same answers may serve which are adduced for popish baptisms and ordinations: and the deed sometimes signifies, That it ought not to be done. Next it will be, Object. 2. That many of the curates were in the ministry before, therefore the argument is not stringent against them. Ans. The one half of it about the qualifications does still urge them, through the want of which, and their base treachery and betraying their trust, and perjuries in breaking covenant, they have really forefaulted their ministry, and loosed all from an obligation to hear them, or any other to whom these scripture-characters may be applied, and brings all under the guilt of partaking with them that hear them.

II. It is necessary also, that all whom we may lawfully hear as ministers and ambassadors of Christ, should not only have had a commission from Christ, sometimes conveyed to them in his orderly appointed way, by and from approven church officers; but they must have it then when we hear them, at this time when we own communion with them. For if they have sometimes had it, and forefaulted or changed it, by taking a new right another way, it is all one in point of owning them, as if they had none at all: and we must not meddle with such changelings, in things that they and we must not come and go upon, Prov. xxiv. 21. Now plain it is, that some curates sometimes had a commission from Christ, when they were presbyters; but now they have changed their holding, and taken a new right from them who are no officers of Christ, invested with power to confirm or convey a ministerial mission; and so they have forefaulted what they had. Mr. Durham, in a digression on this subject of hearing, shews, that ministers may forfeit, on Revel. chap. i. p. 55. in 4to. 'In matter of hearing (says he) it is not so hard to discern, who are to be counted to speak without God's commission; because ordinarily such have no warrantable call at all (no not in the outward form, and so cannot be counted but to run unsent) or by palpable defection from the truth, and commission given them in that call, they have forfeited their commission: and so no more are to be counted ambassadors of Christ, or watchmen of his flock, than a watchman of the city is to be accounted an observer thereof, when he hath publicly made defection to the enemy, and taken on with him.' Let the indulged and addressing ministers advert to this: and consider, whether or not the truly tender have reason to discountenance them, while they continue in their palpable defection. But undeniably this resells that objection of the curates ordination before they were curates; for they that change their holding of a right, and take a new right which is null, they forego and forfeit their old right, and all right; but the prelatie curates have changed their holding of their right, and taken a new one, which is null: therefore they have foregone

and forfeited their old one. The minor I prove thus. They who had a right from Christ by conveyance of his officers, and take a new grant for the exercise of it, not from Christ, but by conveyance of such as are none of his officers, they change their holding, and take a new one, which is null. But the prelate curates, who had a right by conveyance of his officers, have taken a new grant for the exercise of it, not from Christ, but by conveyance of the prelate, which is none of his officers; Therefore——The stress of all will ly in the probation of this, that the prelate is none of Christ's officers, and therefore the conveyance of a power from him is not from Christ. Which I prove, 1. Because his office is cross to the very nature of gospel church government, and therefore he cannot be a gospel church ruler. Christ discharged his officers to exercise dominion (or lordship, Luke xxii. 25.) or authority, as the Gentiles did, but that the chiefest should be only a minister, Matth. xxii. 25, 26. The apostle Paul disclaims dominion over the church, 2 Cor. i. ult. Peter exhorts the elders not to be lords over God's heritage, 1 Pet. v. 3. The authority of church-officers then is not a despotic power, but a ministerial stewardship. But the diocesan bishop is both a lordly title and power, having all authority in the diocese derived from him, as being as it were the universal pastor, and so taking upon him a power, which is neither commanded, nor can be discharged. Hence, he that subjects his ministry to the domination of a strange lord, inverting the nature of gospel church-government, cannot be owned in his ministry; but all curates subject their ministry, &c. Therefore——2. Because he is an officer distinct from, and superior to a presbyter or pastor; whereas the scripture makes a bishop and presbyter all one. The elders of the church of Ephesus are called episcopi or overseers, Acts xx. 17, 28. An ordained elder must be a blameless bishop, as the steward of God, Tit. i. 5, 7. Again, it cannot be shown, where the scripture mentions either name, qualification, work, duty, or ordination of an ordinary church-officer superior to presbyters, and which are not likewise appropriate to them who are called rulers, governors, bishops. In

all the holy Ghost's purposed recitals of ordinary church-officers, there is not the least hint of a diocesan bishop; and yet a deacon is described the meanest officer in his work and qualifications. Hence then, if this diocesan prelate be such an uncouth beast, that neither in name nor nature is found in the word of God, all the power derived from him is null; but the first is true: therefore——3. Because every officer in the scripture relates to the flock (except the extraordinary officers, who were further extended, now ceased) bishops of Ephesus, were overseers over the flock, Acts xx. the elders that Peter writes to were over the flock. But this diocesan antiscriptural monster pretends to be over the shepherds, and invents new degrees and orders of superiority and inferiority of officers of the same kind, beside and against the scripture, which makes all apostles alike, and all evangelists, so all teachers; though there be a distinction and superiority in diverse kinds, yet not in same. God hath set some in the church, first apostles, secondarily prophets, thirdly teachers, 1 Cor. xii. 28. but not among teachers, some above others, in a power of order and jurisdiction. Hence, an officer over officers of the same kind, is not an officer of Christ's institution, and consequently any power conveyed from him is null; but a prelate pretends to be an officer, over officers of the same kind: therefore, 4. Because every officer in the church hath equally, and in perfect parity, equal power and authority allowed them of God in the exercise of both order and jurisdiction; all ruling elders may rule alike, and deserve equal honour; and all preaching elders have the like authority, and the like honour conferred upon them, 1 Tim. vi. 17. The scripture attributes both power of order and jurisdiction; to all preaching presbyters equally. They must oversee the flock (or as the word is, do the part of a bishop over them) Acts xx. 28. and they must also feed the flock, 1 Pet. v. 2. Subjection and obedience is due to them all alike: all that are over us and admonish us, we must esteem highly for their work's sake, 1 Thes. v. 12. and obey and submit ourselves to them that watch for our souls, Heb. xiii. 17. We find also excommunication

belongs to all alike, 2 Cor. ii. 6. and ordination, 1 Tim. iv. 14. But the diocesan prelate takes from presbyters to himself power of ordination, assuming only his curates for fashion's sake, and the sole decisive power in church judicatories, wherein he hath a negative voice; like a Diotrephes, the first prelate who loved to have the pre-eminence, 3 John 9. the only precedent for prelacy in the scripture. Hence, he that would take all power to himself, which is undivided and equal to all officers by Christ's appointment, hath none by Christ's allowance, but is to be reckoned an usurping Diotrephes; but the Diocesan prelate would take all the power to himself, which is undivided and equal to all. By all which it appears, the prelate being no authorized church-officer of Christ's, no authority can be derived from him; and so that such as betake themselves to this pretended power, for warranting them in the function, can warrantably claim no deference thereupon, nor can be owned as ministers, whatever they were before. 'For this were an acknowledging of the power and authority of prelates (especially when the law commands our hearing as a submitting to them.) The reason is, because these men came forth from the prelate, having no other call or warrant but what the prelate giveth: and so a receiving of them will be a receiving of the prelate, as a refusing of them will be accounted a slighting of the prelate and his power,' Apol. Relat. 15. p. 272.

III. It is necessary also, that all with whom we own communion as ministers, should be Christ's ambassadors, having then, when we hear them, and holding still their commission from Christ as king, and only head of his church: conveyed not only from church-officers, in a way that he hath revealed as the prophet of his church, but in a way of dependence upon, and subordination to Christ as king, who ascending far above principalities and powers, appointed and gave the gifts of the ministry, Eph. iv. 8, 11. and set them in the church, 1 Cor. xii. 28. and gave them commission to go and teach the nations, by virtue of that all power that was given to him in heaven and earth, Matth. xxviii. 18, 19. If then they take a new holding, and

close with a new conveyance of the ministry, and of the power to exercise the same, from a new architectonic usurped power in the church, encroaching on Christ's royal prerogative, we dare not homologate such an affront to Christ, as to give them the respect of his ambassadors, when they became the servants of men, and subject even in ministerial functions to another head than Christ, for then they are the ministers of men, and by men, and not by Jesus Christ, and God the Father, who raised him from the dead, because they do not hold the head, Col. ii. 19. Hence those that receive and derive their church power from, and are subordinate in its exercise to, another head than Christ Jesus, should not be received and subjected to as the ministers of Christ in his church; but the prelates and their curates do receive and derive their church power from, and are subordinate in its exercise to, another head than Christ: therefore they should not be received, &c. The first proportion cannot be denied, the second is proved thus: Those officers in the church, professing themselves such, that derive their church power from, and are subordinate in its exercise to, a power truly architectonic and supreme in the church (to wit the magistrate) beside Christ, do derive their power from, and are subordinate in its exercise to another head than Christ Jesus; but so it is that prelates and their curates do derive, &c. Therefore——The major is evident; for whosoever hath a supreme architectonic power in and over the church, must be a head to the same, and the fountain of all church-power. The minor is also clear, from the foregoing historical deduction, manifesting the present prelacy to be gross erastianism; for the disposal of the government of the church is declared by law to be the crown-right, and an inherent perpetual prerogative, and thereupon the bishops are restored to the episcopal function; it is expressly declared, that there is no church power in the church office-bearers, but what depends upon, and is subordinate unto the supremacy, and authorized by the bishops, who are declared accountable to the king for the administration; by virtue of which

ecclesiastic supremacy, he put excommunication, and spiritual censures, and consequently the power of the keys, into the hands of persons merely civil, in the act for the high commission. Hence it is clear, that as the fountain of all church government, he imparts his authority to such as he pleases, and the bishops are nothing else but his commissioners in the exercise of that ecclesiastic power, which is originally in himself, and that the curates are only his under clerks. All the stress will ly in proving, that this monster of a supremacy, from which the prelates and their curates have all their authority, is a great encroachment on the glory of Christ as king; which will appear, if we will briefly consider these particulars. 1. It usurps upon Christ's prerogative, who only hath all undoubted right to this architectonic and magisterial dominion over the church, his own mediatory kingdom; not only an essential right by his eternal Godhead, being the everlasting Father, whose goings forth hath been of old, from everlasting, Isa. ix. 6. Mic. v. 2. in recognizance of which, we own but one God the Father, and one Lord, by whom are all things, and we by him, 1 Cor. viii. 6. but also a covenant-right, by compact with the Father, to bear the glory and rule upon his throne, by virtue of the counsel of peace between them both, Zech. vi. 13. A donative right by the Father's delegation, by which he hath all power given in heaven and in earth, Mat. xxviii. 18. and all things given into his hand, John iii. 35. and all judgment and authority to execute it, even because he is the Son of man, John v. 22, 27. and to be head over all things to the church, Eph. 1. 22. An institute right, by the Father's inauguration, who hath set him as King in Sion, Psal. ii. 6. and appointed him governor, that shall rule over his people Israel, Matth. ii. 6. An acquiste right, by his own purchase, by which he hath merited and obtained, not only subjects to govern, but the glory of the sole sovereignty over them in that relation. A name above every name, Phil. ii. 9. which is, that he is the head of the church, which is as much his peculiar prerogative, as to be Saviour of the body, Eph. v. 23. A bellical right by conquest, making the people fall under

him, Psal. xlv. 4. and be willing in the day of his power, Psal. cx. 3. and overcoming those that make war with him, Rev. xvii. 14. An hereditary right by proximity of blood and promogeniture, being the first born, higher than the kings of the earth, Psal. lxxxix. 27. and the first born from the dead, that in all things he might have the pre-eminence, Col. i. 18. An elective right, by his people's choice and surrender, having a crown wherewith his mother crowned him in the day of his espousals, Cant. iii. last verse. By all which undoubted titles, it is his sole incommunicable prerogative, without a co-partner or competitor, co-ordinate or subordinate, to be judge, and only lawgiver, and king in spirituals, Isa. xxxiii. 22. to be that one lawgiver, Jam. iv. 12. who only can give the power of the keys to his officers, (which comprehends all the power they have) Matth. xvi. 9. to be that one Master over all church officers, who are but brethren, Matth. xxiii. 8, 10. in whose name only they must perform all church acts, and all parts of their ministry, and not in the name of any mortal, Matth. xxviii. 18, 19. Matth. xviii. 20. from whom only they receive whatever they have to deliver to the church, 1 Cor. xi. 23. to be the only instituter of his officers, who hath set them in the church, 1 Cor. xii. 28. and gave them to the church, Eph. iv. 11. whose ambassadors only they are, 2 Cor. v. 20. from whom they have authority for edification of the church, 2 Cor. x. 8. 2 Cor. xiii. 10. in whose name only they are to assemble, and keep and fence their courts, both the least, Matth. xviii. 20. and the greatest, Acts xv. But now also this is usurped by one who is not so much as a church-member, let be a church-officer, as such: for the magistrate is neither, as he is a magistrate, otherwise all magistrates would be church-members. Hence they that have all their power from a mere usurper on Christ's prerogative, who is neither member nor officer of the church, have none at all to be owned or received as his lawful ambassadors; but the prelates and their curates have all their power from a mere usurper on Christ's prerogative, who is neither member nor officer of the church: Ergo——2. It confounds the mediatory kingdom

of Christ with, and subjects it to, the kingly government of the world, removes the scripture land-marks and limits between civil and ecclesiastic powers in making the governors of the state to be governors of the church, and denying all church-government in the hands of church-officers, distinct from and independent upon the civil magistrate: which clearly derogates from the glory of Christ's mediatory kingdom, which is altogether distinct from, and not subordinate to the government of the world, both in the old testament and in the new. For, they have distinct fountains whence they flow; civil government flows from God Creator, church government from Christ the Lord Redeemer, Head and King of his church, whose kingdom is not of this world, John xviii. 36. though for this end he came into the world, that he should have a kingdom there, verse 37. They have distinct objects: civil government hath a civil object, the outward man; church government a spiritual object, men considered as Christians; in the old testament, the matters of the Lord are clearly distinguished from the matters of the king, 2 Chron. xix. last verse. In the new testament, there are matters of church cognizance which do not at all belong to the civil magistrate; as, in the case of offence, they must tell the church, not the civil magistrate, Matth. xviii. 15, 20. In the case of excommunication, the church is to act by virtue of the power of the Lord Jesus Christ, 1 Cor. v. 4, 5. not by the magistrate's power; in the case of absolution, the church is to judge what punishment is sufficient, and what evidence of repentance is sufficient to remove it, 2 Cor. ii. 6, 7. So in the case of trial and ordination of ministers, &c. None of those belong to the magistrate. They have distinct natures: the civil is a magisterial, the ecclesiastic is a ministerial government; the one is the power of the sword, the other of the keys; the one put forth in political punishments, the other in ecclesiastic censures: In the old testament, the magistrate's power was coactive, by death, banishment, confiscation, &c. Ezra vii. 26. the church, but putting out of the synagogue, interdiction from sacred things, &c. In the new testament, the magistrate's power is described,

Rom. xiii. to be that of the sword by punishment; the power of the church only in binding and loosing, Matth. xvi, 19. They have distinct ends, the end of the one being the good of the commonwealth, the other the church's edification: In the old testament, the end of the civil government was one thing, and of the church another, to wit, to warn not to trespass against the Lord, in that forecited, 2 Chron. xix. 10. In the new testament, the end of magistratical power is to be a terror to evil works, and a praise to the good, Rom. xiii. 3. but the end of church power is edification, 1 Cor. v. 5. 2 Cor. x. 8. 2 Cor. xiii. 10. They have distinct courts of officers: in the old testament, the distinction of the civil and ecclesiastic Sanhedrim is known, where there were distinct causes, and persons set over them to judge them respectively, 2 Chron. xix. last verse. In the new testament, we find officers given unto the church, 1 Cor. xii. 28. with no mention of the civil magistrate at all, and church assemblies distinct from parliaments or senates (yea, when the magistrate was an enemy) determining questions that did not belong to the magistrate at all, Acts xv. we have rulers distinct from the rulers of the commonwealth, 1 Thess. v. 12. whom we are to obey and submit ourselves to as those who are accountable to Christ only, for to whom else can they give account of souls? Heb. xiii. 17. we have rulers inferior to labourers in word and doctrine, not to be honoured so much as they: sure these cannot be civil rulers, 1 Tim. v. 17. we have rulers commended for trying impostors, which were not magistrates, Rev. ii. 2. And others who are rebuked for suffering hereticks, *ibid.* ver. 14, 15, 20. which supposes they had authority to do it; yet distinct from and not depending on the magistrate. Besides it is from the confusion of the two governments together, and making the supreme magistrate to be supreme governor of the church, would follow many absurdities; as that they who are not church-members should be church-officers, even heathen magistrates; yea women should be church-officers; and none should be chosen for magistrates, but such as have the qualifications of church-

officers. See Apol. Relat. Sect. 12. pag. 190. Rectius Instruen. Confut. 1. Dial. chap. 6. pag. 50. Hence, they that in deriving their authority do confound the two governments, civil and ecclesiastic, and take it all from a mere civil power, cannot be owned as having any authority of Christ's institution: but the prelates and their curates, in deriving their authority, do confound the two governments civil and ecclesiastic, and take it all from a mere civil power. This same argument equally militates against hearing the indulged ministers, who have taken a licence and warrant from the usurper of this supremacy: because it is highly injurious to Christ's headship; very contrary to presbyterian principles; clearly homologatory of the supremacy; plainly prejudicial to the power of the people; very much establishing erastianism; sadly obstructive and destructive to the good of the church; wronging our cause and ground of suffering; strengthening the prelates hands; contradictory to our covenants; prejudging the meetings of God's people; and heinously scandalous and offensive: as is clear by, and unanswerably proven in the history of the indulgence.

IV. There is a necessity that any man whom we may join with as a minister, must not only be a minister, and a minister clothed with Christ's commission then, when we join with him, but he must also have a right to administer there where we join with him. Else we can look upon him no otherwise than a thief and a robber, whom Christ's sheep should not hear, John x. 1-5. Now the prelates and curates, though they should be accounted and acknowledged ministers, yet they have not a right to officiate where they have intruded themselves. Hence we have several arguments, as 1. They who have no just authority, nor right to officiate fixedly in this church as the proper pastors of it, ought not to be received but withdrawn from: but the prelates and their curates have no just authority, or right to officiate in this church as her proper pastors: therefore they ought not to be received, but withdrawn from. All the debate is about the minor, which may thus be made good. They who have entered into and do officiate fixedly in this

church, without her authority and consent, have no right so to do: but the prelates and their curates have entered into and officiate fixedly in this church, without her authority and consent: Ergo—The major is manifest: for if this church have a just right and power of electing and calling of ministers, then they who enter into and officiate fixedly in this church, without her authority and consent, have no just authority or right so to do: But this church hath a just right and power of electing and calling of ministers, as all true churches have. And, if it were not evident from what is said above, might be easily demonstrated from scripture. The minor, to wit, that the prelates and their curates have entered into and officiate fixedly in this church, without her authority and consent, is evident, from matter of fact: for there was no church-judicatory called or convoked, for bringing of prelates into this church; but on the contrary her judicatories were all cashiered and discharged, and all her officers turned out to let them in; and all was done immediately by the king and acts of parliament without the church; a practice wanting a precedent in this, and (for any thing we know) in all other churches: All that the curates can say is, that they came in by the bishop and patron, who are not the church, nor have any power from her for what they do; all their right and power is founded upon and derived from the supremacy, whereby the diocesan erastian prelate is made the king's delegate and substitute, only impowered thereto by his law. This is Mr. Smith's, 1st and 6th argum. If 'we suppose a particular congregation acknowledging their own lawful pastor, and a few violent persons arise and bring in a minister by plain force, and cast out their lawful pastor; are not the faithful in that church obliged to relinquish the intruder, and not only discountenance him, but endeavour his ejection?' This is our case, Naphtali, pag. 106. Sect. 5. first edition. 2. If we cannot submit to these curates, without consenting to the great encroachments made upon the privileges of this church, then we cannot submit to them without sin; but we cannot submit to them without consenting to the great encroachments made upon

the privileges of this church: therefore we cannot submit to them without sin. The minor is all the question: but instances will make it out. As first, The robbing of the privilege of election of her pastors, and substituting the bondage of patrons presentations, is a great encroachment upon the privilege of this church: but accepting of curates as ministers lawfully called, notwithstanding that they want the election of the people, and have nothing for their warrant but a presentation from the patron, were a consenting to that robbery and wicked substitution. It will be of no force to say, Our forefathers did submit to this, and to a ministry who had no other call. This is answered above in the narrative; 'tis a poor consequence to say, The posterity may return backward, because their forefathers could not advance further forward. Secondly, The thrusting out of lawful ministers without any cause but their adhering to the covenanted work of reformation, and thrusting in others in their rooms who denied the same, is a great encroachment on the churches privileges; but embracing and encouraging curates by countenancing their pretended ministry, were a consenting to this violent extrusion and intrusion. The minor is proven thus. They who leave the extruded, and countenance the intruded, they consent to the extrusion and intrusion, and declare they confess the intruded's right is better than his who is extruded: but they who embrace and encourage curates by countenancing their pretended ministry, do leave the extruded, to wit, their old ministers, and countenance the intruded: Ergo——To say, that people, in this case, should protest against these encroachments is frivolous; for withdrawing is the best protestation: and if after their protestation they still countenance the encroachment, they should undo their own protestation. The same argument will militate against countenancing the indulged, or any that obtained authority to preach in any place by a power encroaching on the churches liberties. There is an objection to be removed here, from Matth. xxiii. 2, 3. The Scribes and Pharisees sit in Moses chair; therefore whatever they bid you observe, that observe and do; therefore they who,

without a title, usurp the office, may be heard. Ans. 1. The case is no-ways alike; for then the Lord had no other church in the world but that, which was confined in its solemnities of worship to that place, where they intruded themselves: he had not yet instituted the New Testament form of administration in its ordinances and officers. Therefore the head of the church being present might give a toleration, during pleasure: but it is not so now. But, 2. Our Lord's words bear no command for the people to hear them at all, but only not to reject sound doctrine, because it came from them: surely he would not bid them hear such, as he calls plants that his Father had never planted, whom he bids let alone, Matth. xv. 13, 14. and who were thieves and robbers whom his sheep should not hear.

V. They must not only be ministers, and acknowledged as such then and there, when and where we join with them; but they must be such as we can own church communion with in the ordinances administrated by them, as to the matter of them. Otherwise if they pervert and corrupt their ministry, by preaching and maintaining errors, either in doctrine, worship, discipline, or government, contrary to the scriptures, our confessions, and principles of our covenanted reformation, and contradictory to our testimony founded thereupon, and agreeable thereunto, maintaining errors condemned thereby, or condemning truths maintained thereby, we must withdraw from them. For if any seek to turn us away from the Lord our God, we must put away that evil, and not consent nor hearken to them, Deut. xiii. 5, 8. We must cease to hear the instruction that causeth to err from the words of knowledge, Prov. xix. 27. We must have a care of these leaders that will cause us to err lest we be destroyed with them, Isa. ix. 16. we must mark these who contradict the doctrine that we have learned, and avoid them, Rom. xvi. 17. If any man teach otherwise we must withdraw ourselves from such, 1 Tim. vi. 3, 5. If there come any, and bring not this doctrine, we must not receive him, nor bid him God speed, in that work of his preaching or practising against any of the truths, we have received from the word, 1 John

x. 11. Hence we must not hear false teachers, who, in preaching and prayer, bring forth false doctrine contrary to the principles of our reformation; but the curates are false teachers, who, in preaching and prayer, bring forth false doctrine, &c. Therefore we must not hear them. The minor is certain, in that not only many of them are tainted with points of Popery and Arminianism; but all of them do teach false doctrine tending to seduce the hearers: when in their preaching they cry up the lawfulness of prelacy, and vent bitter invectives against presbyterian government, condemn the work of reformation, and inveigh against the covenant, and so teach and encourage people to follow them in open perjury, and condemning all our testimony, as nothing but treason and sedition; which we are persuaded is truth, and that therefore they are blasphemers: and in their prayers, stuffed with error, and larded with blasphemy, they reproach the work of reformation, and the power of godliness, and pray for a blessing on the prelates, and on their courses which are cursed; besides their parasitick prayers for the king, to be blessed in his government when stated in opposition to Christ, and several other things that tender consciences cannot go along with them therein. And yet if they hear them, they must go along and actively concur with them, as their mouth to God. If it be objected here, that this doth not strike against all, nor against any at all times, because some preach always sound doctrine, and all preach sometime sound doctrine, and the like may be said of their prayers: therefore sometimes at least they may be heard. I answer 1. This may be alledged for all hereticks, who do all at sometimes preach sound doctrine, and yet these scriptures are stringent against them at all times, which I have adduced; for by these fruits which they bring forth at sometimes, they shew themselves to be such as we must beware of at all times. 2. We cannot know when they will preach sound doctrine, seeing by their subjection to that government, they are obliged to maintain prelacy, and impugn our covenanted constitution.

VI. They must not only be such as we can join with in the ordinances as to the matter of them, but in the manner also they must be such administrators, as we are obliged in charity to think the Lord will approve of them, and their administrations, and of us in our communion with them; or at least, that, in their manner of dispensing ordinances, they be not such as we find are under a recorded sentence of dreadful punishment, both against them and their partakers: for if it be so, it is as sufficient a ground to withdraw from them, as for men to withdraw from a company staying in a house, that they see will fall and smother them in its ruin; yea it is as warrantable to separate from them, as for Israel to separate themselves from the congregation of the rebels who were to be consumed in a moment, Numb. xvi. 21. or for the Lord's people to come out of Babylon, that they receive not of her plagues, Rev. xviii. 4. Now we find that not only the prophets of Baal, and enticers to idolatry, and leaders to error upon the matter are threatened, and the people for adhering to them, but we find also (as is observed by Rectius Instruendum confut. dial chap. 1. pag. 21.) many terrible charges and adjurations laid upon ministers, in reference to a faithful diligence in their ministerial function, and a suitable testimony concerning the sin and duty of the time, that they are commanded to cry aloud and shew the people their sin, Isa. lviii. 1. and as they would not have the blood of souls upon them, to give faithful warning touching the peoples case and hazard, sin and duty, especially in times of great sin and judgment, when God is terribly pleading his controversy with them, Ezek. iii. 17. therefore they must be instant in season and out of season, 2 Tim. iv. 2. And for their negligence and unfaithfulness herein, we find many scripture woes and threatenings thundered against them. When in the deceit of their own heart they promise assured peace, when the Lord is pleading against a generation, they are threatened to be consumed with sword and famine, and the people to whom they prophesy shall be cast out in the streets, Jer. xiv. 13, 15, 16. therefore we dare not admit them to prophesy to us. When they

strengthen the hands, and harden the hearts of evil doers, that none doth return from his wickedness, the Lord threatens to feed them with wormwood, and commands not to hearken to them, Jer. xxiii. 14.-16. their blood shall be required at their hands, Ezek. iii. 18. one builds a wall, and another daubs it with untempered mortar, then ye, O great hailstones shall fall, and they shall be consumed in the midst thereof, Ezek. xiii. 10, 11, 14, 18, 22. we dare not join with either builders or daubers of such a work, as is carried on to the dishonour of Christ and ruining of reformation, nor by our countenance and concurrence strengthen either builders or daubers; lest we also be consumed in the midst thereof. When there is a conspiracy of the prophets, and the priests violate the law, and profane holy things, and shew no difference between the unclean and the clean, then the Lord will pour out his indignation upon all, Ezek. xxii. 25,—to the end. We would endeavour to keep ourselves free of having any hand in that conspiracy. These scriptures do give the perfect pourtracture of our curates, in the conviction of all that know them. Hence we draw a complex argument: such ministers as can do no good by their ministry, but a great deal of hurt to their hearers, and expose themselves and them both to the indignation of a jealous God, are not to be heard; but the curates are such as can do no good by their ministry, but a great deal of hurt to their hearers, and expose themselves and them both to the indignation of the jealous Lord: therefore they are not to be heard. The connexion of the major is clear from what is said above. The minor is also evident from the application of these scriptures, thus: they that in the deceit of their own heart promise peace to, and strengthen the hands of evil doers, and give them not warning, but seduce them by daubing their wickedness, and shew no difference between the unclean and the clean, &c. are such as can do no good by their ministry, but a great deal of hurt to hearers, and expose themselves and them both to the indignation of God; but the curates are such, and all others, who are so unfaithful as to give no warning against, but justify the sins of the times. To be short, the minor of

both these foregoing arguments is evident from the experience of all that go to the curates, who wrong thereby their own souls, mar their edification; and run to cisterns without water. What blessing can be expected upon the labours of such, who having perjured themselves in taking on with the prelates, are prosecuting that course of defection, and making themselves captains to lead the people back to Egypt, encouraging profanity and wickedness, being themselves patterns and patrons of the times corruptions? And seeing a blessing cannot be expected upon their labours, but rather a curse, as daily experience maketh good, when instead of any work of conversion or conviction among people, there is nothing seen but a fearful hardening in profanity, ignorance and atheism: so that many that seemed to have somewhat like religion before, through hearing of them, are turned loose and lax in all duties: yea never can it be instanced these twenty-seven years, that they have brought one soul to Christ, from darkness to light, and from the power of Satan unto God: but many instances might be given of their murdering souls, as indeed they cannot be free of it, who cannot warn nor declare the whole counsel of God. Hence these who cannot but be soul-murderers, may not be heard nor entertained as soul-physicians; but the curates cannot but be soul-murderers. Again, we can expect no good from them, but a great deal of hurt; seeing their ministry is not the Lord's ordinance, which he will approve, and no performances can be acceptable unto the Lord which are not, in manner as well as in matter, agreeable to his will: hence the wickedness even of the Lord's lawful priests, not only caused the people to abhor the offerings of the Lord, but even the Lord himself to abhor his sanctuary, and to account their incense an abomination, so that he could not away with the calling of their assemblies, which yet upon the matter were duties. Should not we then hate that which the Lord hates, and withdraw from that which he hath forsaken? But the meetings of the curates for administration of ordinances in their way, the Lord hates, and hath signally forsaken: therefore we should hate

and forsake them. This is confirmed by what Mr. Durham says in that digression about hearing, Rev. 1. page 55. in quarto, 'Seeing edification is God's gift, can it be expected but in his way, or can that be accounted his way which he hath not warranted.'

VII. As we would not partake of their judgment in countenancing of their administration of ordinances, so we would keep ourselves free from all participation of their sin; for we must not be partakers with any in sin, nor have fellowship with the unfruitful works of darkness, that we must reprove, and that we find the Lord reproves and condemns, Eph. v. 7, 11. and not only ministers in ordaining, but people in hearing, may be in hazard of partaking of some mens sins, who enter into the ministry, 1 Tim. v. 22. we must keep at the greatest distance from sin: hence if we hear the curates without partaking of their sin, then we must not hear them; but we cannot hear the curates without partaking of their sin: therefore we must not hear them. The minor I prove. If hearing of them be a tessera of our incorporation with them, a test of our submission to them, a badge of our compliance with them, and sign of our approbation of them, then we cannot hear them without partaking of their sin; but hearing of them is such: the major cannot be denied, if prelacy and conformity therewith be sin, as is in part proven above: for if these be sins, then we must not incorporate with, nor submit to them, nor comply with them, nor approve them. The minor I prove by parts. 1. Hearing of curates is a tessera of our incorporation with them; for communion in sacred things doth infer an incorporation of the communicants or joiners in all cases, both in lawful and unlawful communions, 1 Cor. x. 17.-20. All partakers of the bread are one body, and they which eat of the sacrifices are partakers of the altar; and also they that partake of the sacrifice offered to devils, though they do not offer it so themselves, yet they are incorporate, and have fellowship with devils. And 2 Cor. vi. 14.-17. where they that do not come out, and are separate from unlawful communions, are expostulated with, as making an unequally

yoked fellowship between righteousness and unrighteousness, light and darkness, Christ and Belial, the temple of God and idols: hence then, if we cannot partake of their sacred things, without partaking of their altar, and becoming one body with them, and making such an unequally yoked mixture with them, then we must be separate; but the first is true from these places. This argument concludes with equal force, against joining with any deeply engaged in the gross defections of the time. 2. Hearing of curates is a test of our submission to them, and compliance with them: for so it is required by law, as the acts themselves say, 'That a chearful concurrence, countenance, and assistance given to such ministers, and attending all the ordinary meetings for divine worship, is an evidence of a due acknowledgment of, and hearty compliance with his majesty's government ecclesiastical and civil, as now established by law within this kingdom,' Act of Parl. July 10, 1663. And themselves look on all such as obey this act as their friends. Hence, if this be sinful to submit to them, and comply with their establishment, in obedience to a sinful act of parliament, then it is sinful to hear them; but the former is true, as hath been shown: Therefore——3. Hence it follows, by native consequence, that hearing of curates is a sign of our approbation of them: for he that gives that which is required, and accepted, and interpreted as an evidence of a due acknowledgment, and of compliance with the government ecclesiastical, gives the sign of his approbation of it; but the hearer of curates does that in obedience to the act requiring accepting, and expressly interpreting it so: therefore, &c.

VIII. As we would be free of their sin, in approving of, and complying with their course; so we must endeavour to stand at the greatest distance from all appearance of sin in ourselves, either by commission or omission, in which our joining with them in these circumstances would involve us. For we must abstain from all appearance of evil, 1 Thess. v. 22. and from every thing that circumstances may make sinful: for otherwise, suppose a thing might be materially lawful and not sinfully sinful, yet circumstances

may make it sinful, and a countenancing it so circumstantiated, doth infer a communion in these circumstances that makes it sinful. They that eat of the sacrifice are partakers of the altar, and if the altar be not of God's approbation, the thing offered, though otherwise lawful to be eaten, cannot justify the eaters, so circumstantiated. An idol is nothing, and that which is offered in sacrifice to idols is nothing, yet they who eat of it, when they know it is so circumstantiated, have fellowship with devils, 1 Cor. x. 18, 19, 20, 21. And it is called idolatry, comp. verse 14. which provokes the Lord to jealousy, verse 22. Especially when an action is so circumstantiated, that it would infer an omission of our duty, and a declining from or denying of our testimony, then it is clearly sinful. For whosoever shall deny the Lord before men, him will he deny before his Father, Matth. x. 33. And we must 'hold fast the profession of our faith without wavering,' Heb. x. 23. and 'keep the word of his patience,' if we would be kept in the hour of temptation, and hold it fast that no man take our crown, Rev. iii. 10, 11. 'All truth must be avowed, and practically avowed, on the greatest hazard: and as this testimony must be full so must it be also constant. It was Demas's shame, that the afflictions of the gospel made him forsake the apostle, after great appearances for Christ: and therefore whatever truth or duty is opposed, that becomes the special object of this testimony.' Rectius instruend. confut. 3. Dial. Chap. 1. Pag. 18, 19. Hence, if hearing of the curates would infer and involve us under the guilt both of commission of sin, and omission of duty, then we cannot hear them without sin; but the former is true; therefore also the latter. I prove the minor by parts. First, That it would infer and involve us under the guilt of commission of sin, all that is said above doth evince it; and besides, palpable breach of covenant, hereafter to be charged and cleared: and idolatry is a great sin of that nature; but the hearing of the curates doth infer this. Which may be made out thus; the breach of the second commandment is idolatry, (for to make the sins against that command odious, they are all comprehended under that odious

name of worshipping images, as the sins against the seventh are called adultery, comprehending all unchaste thoughts, words, and actions); hearing of curates is a breach of the second command: Ergo——The minor I prove thus: Every worship, not according to Christ's appointment, is a breach of the second commandment; but hearing of curates is a worship not according to Christ's appointment. Which I prove thus: a worship enjoined by, and performed in obedience to a law, establishing a human ordinance in the church, besides and against the institution of Christ, is a worship not according to Christ's appointment; but the hearing of curates is a worship enjoined by, and performed in obedience to a law establishing a human ordinance, to wit Diocesan Erastian prelacy, with the curates their substitutes. Hence also the second doth follow by necessary consequence, that it would infer and involve us under the guilt of omission of duty. For, first, If reductively it may involve us under the guilt of idolatry and breach of the second commandment, then it will infer the guilt of omission of these necessary duties incumbent to the Lord's people with a reference to idolatry; to make no covenant with them nor with their gods, nor let them dwell in the land, lest they make us sin, Exod. xxiii. 32. 33. Exod. xxxiv. 14, 15. to overthrow their altars, and break their pillars, and destroy the names of them out of the place, Deut. xii. 3. Judg. ii. 2. I do not adduce these precepts, to stretch them to the full measure of the demerit of the grossest of idolaters: for as there are degrees of breaches of the commandment, some grosser, some smaller, so there are also degrees of punishment, and as to the manner of destroying and extirpating all pieces of idolatry; but that the commands being founded upon a moral ground, lest they be sins and snares unto us, do oblige us to some endeavour of expelling, extirpating and overthrowing all pieces of idolatry, according to the word and our covenants; 'and that the true and right zeal of God should and would not only inspire all with an unanimous aversion against the profane intruding curates, but animate us as one man to drive away these wolves and thieves,

and to eradicate these plants which our heavenly Father never planted,' Naph. Prior edit. pag. 108. The least duty that can be inferred is that of the apostles, flee from idolatry, 1 Cor. x. 14. which idolatry, there mentioned to be avoided, is to eat of the sacrifices offered to idols: whence we infer, that if to eat of things consecrated to idols be idolatry, then also to partake of sacred things consecrated by idols must be idolatry; as the curates dispensing of ordinances is consecrated by, and hath all its sanction from an idol of Diocesan Erastian prelacy; but we see the apostle expresses the former: therefore we may infer the latter. Further, It will also infer a declining from, and denying a necessary testimony, in the case circumstantiated. Even the smallest matter is great, when a testimony is concerned in it, were it but the circumstance of an open window; Daniel durst not omit it upon the greatest hazard. And now this is clearly come to a case of confession, when there is no other way to exoner our 'consciences before God and the world, and declare our non-conformity to this course of backsliding, no getting of wrongs redressed, or corruptions in the ministry removed, but by this practice; and certainly some way we must give public testimony against these courses, and there is no other way so harmless and innocent as this, though suffering follow upon it,' Apol. Relat. Sect. 14. 272, 273. And now there is no other way apparent, whereby the difference shall be kept up betwixt such as honestly mind the covenanted work of reformation, and the corrupt prelatical and malignant enemies; but this argument also will infer the expediency of withdrawing from all ministers, with whom our circumstantiate joining would involve us in a participation with their defections.

IX. As we would endeavour to avoid sin in ourselves; so we must have a care to give no occasion of others sinning, by our taking liberty in a promiscuous joining in church communion, whereby we may offend and stumble the conscience of others: for to that, in this as well as in other things, we must have a special respect, and forbear things, not only for our

own uncleanness, but for the sake of others also. If therefore the hearing of curates be a scandal, we must refuse it, be the hazard what will: for 'whoso shall offend one of Christ's little ones, it were better for him that a milstone were hanged about his neck,' Matth. xviii. 6. 'No man must put a stumbling block, or an occasion to fall in his brother's way,' Rom. xiv. 13. They that 'sin so against the brethren, and wound their weak conscience, they sin against Christ,' 1 Cor. viii. 12. we must forbear some things for conscience sake. Conscience, I say, not our own, but of others, giving none offence, neither to the Jews, nor to the Gentiles, nor to the church of God,' 1 Cor. x. 28, 29, 32. and so 'cut off all occasion from them that desire occasion,' 2 Cor. xi. 12. 'These commands discharge whatever practice gives occasion of our brother's sinning, of calling truth in question, of acting with a doubting conscience, or which weakens his plerophory or assurance; and neither the lawfulness nor indifferency of the thing itself, nor mens authority commanding it, nor the weakness, yea, or wickedness of those in hazard to be stumbled, will warrant the doing of that out of which offence arises,' Rectius Instruend. Confut. 3. Dial. chap. 1. p. 19. Mr. Durham in that forecited place saith, 'It carries offence along with it; in reference to the party who runs unsent, it proves a strengthening and confirming of him, and so a partaking of his sin; in reference to others, either strengthens them by that example, to cast themselves in that snare, which possibly may be their ruin; or it grieves them, and makes them sad, who are tender of such things, or gives occasion to make all difference of that kind to be thought light of.' Hence, if hearing of the curates be an offence or scandal, both in reference to malignants, and in reference to the godly, and in reference to the posterity, then it must be avoided; but the former is true: which is evidenced by parts. First, in reference to malignants, it hardens and encourages them in their opposition to the work of God, and all backsliders and compliers with them in their apostacy; this strengthens their hands in their wicked courses, when they see how they are countenanced by all, and that there is

no disrespect put upon them, nor dissatisfaction evinced against their courses, then they conclude that they are approved of all: and this hardeneth them, so that they never once think of the evil of their ways. Next, in reference to the godly, stumbles the truly tender, by encouraging them to do contrary to their light and conscience, even when they are not clear to hear them, then they are emboldened thereunto when they see others doing so; and so it tends to the wounding of their peace, and makes them halt in the ways of the Lord. Lastly, With reference to posterity, it would prejudice them very much: though now the honest party be not in a capacity to transmit the work of reformation unto their posterity, in such a manner as were to be wished: yet they should do something for keeping fresh the memory of the good old cause, by keeping up some footsteps of a standing controversy for Zion's interest against the common enemy: but now let all join with, and own the curates, what appearance of this shall the posterity see? shall not they conclude that the day is lost, and the cause is gone, when they see that this generation hath fled the fields, or rather sold and betrayed the cause, by owning, countenancing, and complying with the enemy, and no standing testimony against these corruptions? whereas if there were but this much of a standing difference, betwixt the people of God and the common enemies of God, to be seen, posterity shall in some measure be kept from being deceived, and shall see the interest of Christ not killed nor buried quick, but living, though in a bleeding condition, and this will occasion their engaging for Christ, and interesting themselves in the quarrel; and it is far better to see the cause of Christ owned, though by suffering and blood, than sold and betrayed by base flenching and complying with persecutors. This argument may also sound and infer a withdrawing from the addressing ministers, who, to the great scandal of presbyterians, give forth their addresses in the name of all of that persuasion.

X. Our duty to themselves, yea our greatest office of love we owe to them, in order to their conviction, does oblige us to withdraw from them. This may seem a paradox, yet it will be apparent, if we search the scriptures, to see what we owe to scandalous brethren. There we find it is a duty, to endeavour by all lawful means to shame them out of their sin; and it is an argument of hatred, when we do not rebuke our neighbour, or when we suffer sin upon him, Lev. xix. 17. If we consider them then as neighbours and friends, we must use endeavours to take away their sin from them; if we consider them not as such, but as enemies, then we must avoid them, and not be mingled with them, as I could adduce many scriptures for that. But I suppose all that will oppose my thesis, would have them considered as friends. Well then, if they be scandalous brethren, this is the way prescribed by the apostle to deal with them, in order not to suffer sin upon them, that we should withdraw from them our company; and if we must withdraw our company, then also a fortiori, we must deny them our religious communion: for that must either be included there, or necessarily inferred. He writes, not to keep company: If any man that is called a brother (mark that especially) be a fornicator, or covetous, or an idolater, or a railer, or an extortioner, with such an one no not to eat, 1 Cor. v. 11. And I presume they that know them best will grant, that it would not be hard to prove, that all the curates in Scotland were chargeable with some of these, or at least partakers with them; and that if they were all impartially impannelled, they would be rare ones, whom an honest jury would not bring in guilty of this libel. Then we are expressly commanded 'in the name of our Lord Jesus Christ, to withdraw ourselves from every brother that walketh disorderly, and not after the received tradition. And if any man obey not the word, to note him, and have no company with him, that he may be ashamed,' 2 Thess. iii. 6, 14. Sure neither their office nor their innocence can exempt them from these rules. For either they must be considered as our brethren; or not; if not, then we own no church

communion with them; for that is only among brethren that are so in sympathy and affection, and affinity, having one father and one mother, if they be brethren, then all scandalous brethren are to be withdrawn from; but they are scandalous brethren: therefore they are to be withdrawn from. The minor will not be doubted by any, but such as are strangers to them, who both in their ministerial and personal capacity are so scandalous to the conviction of all, that profaneness hath gone forth from them into all the land, and they as much as ever the profane sons of Eli, have made men to abhor the offering of the Lord, 1 Sam. ii. 17. But even strangers, that are unacquaint with their personal profligateness and ignorance, &c. cannot be altogether ignorant of the scandal of prelacy and erastianism, in which they are involved, of the scandal of apostasy, perjury, and breach of covenant, which is their brand, and the nation's bane, that hath countenanced them. And none can doubt, but if our church were duly constitute, and invested with the orderly power of Christ, and in capacity to exercise and improve it, they would soon be censured every soul of them as scandalous, as they have been also previously sentenced as such, by the acts of our general assemblies. This argument levels also against all complying, indulged, addressing ministers, who by these courses have incurred the character of disorderly brethren.

XI. Our faithfulness to God, and to one another, engaged in our covenants, doth oblige us to turn away from them who have broken it, and so classed themselves among these truce breaking traitors, who make our times perilous, from whom we must turn away, 2 Tim. iii. 1,—5. It appears from the foregoing deduction, how solemnly these nations were engaged, both to keep out and put out this generation of prelatists, now prevailing; the obligation of which yet lies upon all the inhabitants of the land, with a binding force, both in regard of their form, and object and end. Hence, if the curates be covenant-breakers, and we also in owning them, then we cannot own them without sin; but the curates are covenant-breakers, and we also in

owning them: Ergo——The minor may be manifest by an induction of all the articles of the solemn league and covenant, broken by them, and all that own them. 1. That doctrine, worship, discipline and government in the 1st article, sworn to be preserved and propagated, was the presbyterian then established, which our church was in possession of, which they have opposed, and their owners refiled from, and have not maintained. 2. We are engaged in the 2d article, to endeavour the extirpation of prelacy, and its dependents; which is diametrically opposite to owning of curates: can we own them whom we are bound to abhor? and submit to them whom we are bound to extirpate? Surely this were to rebuild what we have destroyed, see Napht. p. 104. and since in relation to popery, heresy and schism, this article obliges us to disown, and not to hear papists and schismatics, why not also in relation to prelatists, who are greatest schismatics? 3. They have established and homologated an erastian supremacy, to the prejudice of true religion, and the liberties of the church and kingdom; and their owners have abetted and countenanced the same, and not preserved either the liberties of church or kingdom, contrary to the 3d article. 4. They have not only concealed and countenanced malignant enemies to this church and kingdom, but have themselves been real incendiaries, hindering the reformation of religion, making factions and parties among them contrary to this league and covenant: and their hearers are so far from bringing them to condign punishment, that they have strengthened their hands in their avowed opposition to the covenants, contrary to the 4th article. 5. They have broken our conjunction in firm peace and union, and yet their hearers have not marked and avoided these causers of divisions, contrary to scripture, and the 5th article. 6. Instead of assisting and defending all these that entered into this league and covenant, &c. they have been the greatest persecutors of all them that adhered to it; and their owners have suffered themselves, by combination, or persuasion, or terror, to be divided and withdrawn from their suffering brethren, and have made defection to the

contrary part, and given themselves to a detestable indifferency in this cause, contrary to the 6th article. 7. Instead of humbling themselves for their sins, and going before others in the example of a real reformation, they have obstinately defended their breach of covenant, and have been patrons and patterns of all deformations; and their owners and hearers have not repented of that neither, when they countenance such covenant-breakers and profane persons, nor of their not labouring for the purity and power of the gospel when they seek it from such impure hands: neither do they go before others in reformation, when they are such bad examples of defection, contrary to the conclusion of the covenant. This argument will also strike against hearing of such ministers, that have made themselves guilty of the same, or equivalent breaches of covenant.

XII. Finally, for union's sake, and to avoid schism in the body, we must withdraw from them. This may seem another paradox; but it is apparent, if we consider, 'That there should be no schism in the body, but that the members should have the same care one for another,' 1 Cor. xii. 25. And that for to prevent and remeid this, the apostle 'beseeches us to mark them which cause divisions and offences, contrary to the doctrine which we have learned, and avoid them,' Rom. xvi. 17. Now then, if the prelates and their curates be schismatics and separatists, and dividers, then we must avoid and withdraw from them, but so it is, that the prelates and their curates are schismatics and separatists, and dividers: therefore we must avoid and withdraw from them. The minor I prove from all the constituents of a formed schism, separation and sinful division. 1. They that start out from under due relations to a church, and from her ministry, are schismatics, separatists and dividers; but the prelates and their curates have started out from under due relations to the covenanted church of Scotland, and from her ministry, in being so unnatural rebellious children, as have broken their mother's beauty and bands, order and union, and razed her covenanted reformation in doctrine, worship, discipline and government. 2. These who

withdraw from the communion of a true church, and therefore are censurable by all her standing acts, are schismatical separatists; but the prelates and their curates have withdrawn from the communion of the true church of Scotland, and therefore are censureable by all her standing acts, in that they have made a faction and combination repugnant to the communion of this church, and all her established order. 3. Those who separate from a church, whose principles and practices are subservient to that church's true union and communion, and right establishment, are properly schismatics; but the prelates and their curates have separated from this church, whose principles and practices are subservient to its true union and communion, and right establishment: for they could never yet impeach or challenge any principle or practice, contrary to the word of God, or not subservient to true union and order, but their principles and practices are stated in opposition to her purity and reformation. Those who innovate the worship and government, owned and established in a true church, are schismatics; but the prelates and their curates have innovated the worship and government of the true church of Scotland, in bringing a doctrine new and odd, and not the voice of this church; and their worship, over and above the corruption adhering to it, is the worshipping of an innovating party, contrary to our church's established order. 5. They that make a rent in the bowels of the true and genuine church, are the schismatics; but the prelates and their curates have made a rent in the bowels of this church, and have caused all the divisions in this church. 6. Those that divide themselves from the fellowship of a pure church, either in her ministry, lawful courts and ordinances, are the schismatics; but the prelates and their curates have divided themselves from the fellowship of this pure church, in her ministry, lawful courts and ordinances, in that they have caused the ejection of her ministry, dissipation of her assemblies, and subversion of her pure ordinances. 7. Those that break union with such, to whom they were under obligations to adhere, are schismatical dividers; but the prelates and their

curates have broken union with such to whom they were under obligations to adhere, both from the antecedent morally obliging duty, and from the superadded obligation of the covenants, neither could they ever pretend any thing that might loose the obligation. 8. That party in a reformed church, which having overturned her reformation, hath shut out, laid aside, and persecute away sound adherers thereunto, both ministers and professors, and will not admit ministers to officiate, but upon the sinful terms of compliance with their way, are schismatics; but the prelates and their curates are that party in this reformed church, which having overturned her reformation, hath shut out, laid aside, and persecute away sound adherers thereunto, &c. therefore they are the schismatics to be withdrawn from, and their way is the schism, which we are bound to extirpate in the covenant.

HEAD II.

The sufferings of many for refusing to own the tyrant's authority vindicated.

The other grand ordinance of God, magistracy, which he hath in his sovereign wisdom, justice, and goodness, appointed, ordained, and consecrated, for the demonstration, illustration, and vindication of his own glory, and the communication, conservation, and reparation of the peace, safety, order, liberty, and universal good of mankind, is next to that of the ministry of great concern: wherein not only the prudence, policy, property, and liberty of men, but also the conscience, duty, and religion of Christians, have a special interest. And therefore it is no less important, pertinent, profitable, and necessary for every one that hath any of these to care and contend for, keep and recover, to inquire into and understand something of the institution, constitution, nature, and boundaries of the sacred ordinances of magistracy, than into the holy ordinance of the ministry; so far at least as may consist with the sphere of every one's capacity and station, and may

conduce to the satisfaction of every one's conscience, in the discharge of the duties of their relations. Every private man indeed hath neither capacity, concern, nor necessity, to study the politics, or search into the secrets, or intrigues of government, no more than he is to be versed in all the administrations of ecclesiastical policy, and interests of the ministry; yet every man's conscience is no less concerned, in distinguishing the character of God's ministers of justice, the magistrates, to whom he owes and owns allegiance, that they be not usurping tyrants, everting the ordinances of the magistracy, than in acknowledging the character of Christ's ministers of the gospel, to whom he owes and owns obedience, that they be not usurping prelates or impostors, perverting the ordinance of the ministry. The glory of God is much concerned, in our owning and keeping pure and entire, according to his will and word, both these ordinances. And our conscience as well as interest is concerned in the advantage or hurt, profit or prejudice, of the right or wrong, observation or prevarication, of both these ordinances; being interested in the advantage of magistracy, and hurt of tyranny in the state, as well as in the advantage of the ministry, and hurt of diocesan, or erastian supremacy in the church; in the advantage of liberty, and hurt of slavery in the state, as well as in the advantage of religion, and hurt of profaneness in the church; in the profit of laws, and prejudice of prerogative in the state, as well as in the profit of truth, and prejudice of error in the church; in the profit of peace and true loyalty, and prejudice of oppression and rebellion in the state, as well as in the profit of purity and unity, and prejudice of defection, and division or schism in the church. So that in confidence, we are no more free to prostitute our loyalty and liberty absolutely, in owning every possessor of the magistracy; than we are free to prostitute our religion and faith implicitly, in owning every pretender to the ministry. This may seem very paradoxical to some, because so dissonant and dissentient from the vulgar, yea almost universal and inveterate opinion and practice of the world, that hitherto hath not been so precise in the matter

of magistracy. And it may seem yet more strange, that not only some should be found to assert this; but that any should be found so strict and strait laced, as to adventure upon suffering, and even to death, for that which hath hitherto been seldom scrupled, by any that were forced to subjection under a yoke, which they had no force to shake off, and wherein religion seems little or nothing concerned; for not owning the authority of the present possessors of the place of government: which seems to be a question not only excentric and extrinsic to religion, but such a state-question, as for its thorny intricacies and difficulties, is more proper for politicians and lawyers to dispute about, (as indeed their debates about this head of authority, have been as manifold and multiplied as about any one thing) than for private christians to search into, and suffer for, as a part of their testimony. But if we will cast off prejudices, and the tyranny of custom, and the bondage of being bound to the world's mind in our inquiries about tyranny, and suffer ourselves to ponder impartially the importance of this matter; and then to state the question right; we shall find religion and conscience hath no small interest in this business. They must have no small interest in it, if we consider the importance of this matter, either extensively, objectively, or subjectively. Extensively considered, it is the interest of all mankind to know and be resolved in conscience, whether the government they are under be of God's ordination, or of the devil's administration? Whether it be magistracy or tyranny? Whether it gives security for religion and liberty, to themselves and their posterity? Or whether it induces upon themselves, and entails upon the posterity, slavery as to both these invaluable interests? Whether they have matter of praise to God for the blessings and mercies of magistracy, or matter of mourning for the plagues and miseries of tyranny, to the end they may know both the sins and snares, duties and dangers, cases and crisis, of the times they live in? All men, that ever enjoyed the mercy of a right constitute magistracy, have experienced, and were bound to bless God for the blessed fruits of it: and, on the other hand, the world is

full of the tragical monuments of tyranny, for which men were bound both to search into the causes, and see the effects of such plagues from the Lord, to the end they might mourn over both. And from the beginning it hath been observed, that as people's sins have always procured the scourge of tyranny; so all their miseries might be refounded upon tyrants encroachments, usurping upon or betraying their trust, and overturning religion, laws and liberties. Certainly mankind is concerned in point of interest and conscience, to inquire into the cause and cure of this epidemic distemper, that hath so long held the world in misery, and so habitually, that now it is become, as it were, natural to ly stupidly under it; that is, that old ingrained gangrene of the king's evil, or compliance with tyranny, that hath long afflicted the kingdoms of the world, and affected not only their backs in bearing the burden thereof; but their hearts into a lethargic stupor of insensibleness; and their heads in infatuating and intoxicating them with notions of the sacredness and uncontroublableness of tyranny; and their hands in infeebling and fettering them from all attempts to work a cure: or else it hath had another effect on many that have been sensible of a touch of it; even equivalent to that, which an ingenious author, Mr. Gee, in his preface to the divine right and original of the civil magistrate, (to which Mr. Durham is not absonant) expounds to be the effect of the fourth vial, Rev. xvi. 8, 9. when in these dog days of the world, power is given to the sun of imperial, especially popish, tyranny, by their exorbitant stretches of absolute prerogative, to scorch men with fire of furious oppressions, they then blaspheme the name of God which hath power over these plagues, in their male-content complaints, grumblings, grudgings, and murmurings under the misery, but they do not repent, nor give him glory, in mourning over the causes promoteriting such a plague, and their own accession in exposing themselves to such a scorching sun, nakedly without a sconce. Certainly this would be the remedy that conscience would suggest, and interest would incite to, an endeavour either of allaying the heat or of

subtracting from it under a shelter, by declining the oblique malignity of its scorching rays. But will the world never be awakened out of this dream and dotage, of dull and stupid subjection to every monster that can mount a throne? Sure at length it may be expected, either conscience from within as God's deputy, challenging for the palpable perversion of this his excellent ordinance, or judgments from without, making sensible of the effects of it, will convince and confute these old inveterate prejudices. And then these martyrs for that universal interest of mankind, who got the fore-start and the first sight of this, will not be so flouted as fools, as now they are. And who knoweth, what prelude or preparative, foreboding and presaging the downfall of tyranny, may be in its aspirings to this height of arbitrary absoluteness, and in the many questions raised about it, and by them imposed upon consciences to be resolved. If we consider the object of this question; as conscience can only clear it, so in nothing can it be more concerned. It is that great ordinance of God, most signally impressed by a very sacred and illustrious character of the glorious majesty of the Most High, who hath appointed magistracy; in which, considering either its fountain, or dignity, ends, or effects, conscience must have a very great concern. The fountain, or efficient cause of magistracy, is high and sublime. The powers that are, be of God, not only by the all-disposing hand of God in his providence, as tyranny is, nor only by way of naked approbation, but by divine in-institution; and that not only in the general, by at least a secondary law of nature, but also the special investiture of it, in institution and constitution, is from God; and therefore they are said to be ordained of God, to which ordinance we must be subject, not only for wrath, but also for conscience sake: which is the great duty required in the fifth commandment, the first commandment with promise; that hath the priority of place before all the second table, because the other commandments respect each some one interest, this hath a supereminent influence upon all. But tyrannical powers are not of God in this sense. And it were blasphemy

to assert they were of the Lord's authorization, conscience cannot bind to a subjection to this. Again, the dignity of magistracy, ordained for the maintenance of truth and righteousness, the only foundations of people's felicity, whether temporal or eternal, including the bonds and boundaries of all obedience and subjection, for which they are intended, and to which they refer, is supereminent; as that epithet of higher, added to the powers that are of God, may be rendered; making them high and sublime in glory, whose highest prerogative is, That, being God's ministers, they sit in the throne of God, anointed of the Lord; judging not for man, but for the Lord, as the scripture speaks. To this conscience is concerned in duty to render honour as due, by the prescript of the fifth commandment; but for tyranny, conscience is bound to deny it, because not due, no more than obedience, which conscience dare not pay to a throne of iniquity, and a throne of the devil, as tyranny may be called, as really as magistracy is called the throne of God. Next, conscience is much concerned in the ends of magistracy, which are the greatest, the glory of God, and the good of mankind. And, in the effects of it, the maintenance of truth, righteousness, religion, liberty, peace, and safety, and all choicest external blessings; but the ends and effects of tyranny are quite contrary, domineering for pleasure, and destroying for profit. Can we think that conscience is nothing concerned here, that these great ends shall be subverted, and the effects precluded; and to that effect, that tyranny not only be shrouded under a privilege of impunity, but by our subjection and acknowledgement of it, as a lawful power, encouraged into all enormities, and licensed to usurp, not only our liberties, but God's throne by an uncontrollable sovereignty? But if we consider the subjective concern of conscience, it must be very great, when it is the only thing that prompts to subjection, that regulates subjection, and is a bottom for subjection to lawful powers. If it were not out of conscience, men that are free born are naturally such lovers of liberty, and under corruption such lusters after licentiousness, that they would never come

under the order of this ordinance, except constrained for wrath's sake: but now, understanding that they that resist the power, resist the ordinance of God, and they that resist shall receive to themselves damnation, they must needs be subject, not only for wrath, but also for conscience sake. If conscience were not exercised in regulating our duty to magistrates, we would either obey none, or else would observe all their commands promiscuously, lawful or unlawful, and would make no difference either of the matter commanded, or the power commanding: but now, understanding that we must obey God rather than man, and that we must render to all their dues, fear to whom fear, honour to whom honour, conscience regulates us what and whom to obey. And without conscience there is little hope for government to prove either beneficial or permanent; little likelihood of either a real, regular, or durable subjection to it. The discernible standing of government upon conscientious grounds, is the only thing that can bring in conscience, and a conscientious submission to it; it being the highest and most kindly principle of, and the strongest and most lasting obligation to any relative duty. It will not be liberty of conscience, (as saith the late declaration for it) but reality of conscience, and government founded upon a bottom of conscience, that will unite the governed to the governors, by inclination as well as duty. And if that be, then there is needful a rule of God's revealed preceptive will, (the only cynosure and empress of conscience), touching the founding and erecting of government, that it have the stamp of God's authority. It must needs then follow, that conscience hath a very great concernment in this question in the general, and that before it be forced to an abandoning of its light in a matter of such moment, it will rather oblige people that are conscientious to suffer the worst that tyrants can do; especially when it is imposed and obtruded upon conscience, to give its sufferage and express acknowledgment that the present tyranny is the authority of God, which is so visible in the view of all that have their eyes open, that the meanest capacity that was never conversant in laws and

politics can give this verdict that the constitution and administration of the government of the two royal brothers, under whose burden the earth and we have been groaning these twenty-seven years past, hath been a complete and habitual tyranny, and can no more be owned to be magistracy, than robbery can be acknowledged to be a rightful possession. It is so plain, that I need not the help of lawyers and politicians to demonstrate it, nor launch into the ocean of their endless debates in handling the head of magistracy and tyranny: yet I shall improve what help I find in our most approved authors who have enlarged upon this question, (though not as I must state it) to dilucidate the matter in *Thesi*, and refer to the foregoing deduction of the succession of testimonies against tyranny, to clear it in *Hypothesi*. Whence we may see the occasion, and clearly gather the solution of the question, which is this:

Whether a people, long oppressed with the encroachments of tyrants and usurpers, may disown their pretended authority; and, when imposed upon, to acknowledge it, may rather choose to suffer than to own it?

To clear this question: I shall premit some concessions, and then come more formally to resolve it.

1. It must be granted the question is extraordinary, and never so stated by any writer on this head; which makes it the more difficult and odious, because odd and singular, in the esteem of those who take up opinions rather from the number of votes than from the weight of the reasons of the asserters of them. It will also be yielded, that this was never a case of confession for Christians to suffer upon. And the reason of both is, because, before these seven years past, this was never imposed upon private and common subjects to give an account of their thoughts and conscience about the lawfulness of the government they lived under. Conquerors and usurpers sometimes have demanded an acknowledgment of their authority, from men

of greatest note and stroke in the countries they have seized; but they never since the creation urged it upon common people, as a test of loyalty; but thought always their laws and power to execute them on offenders, did secure their subjection. Or otherwise to what purpose are laws made, and the execution of them committed to men in power, if they be not thought a sufficient fence for the authority that makes them; except it also have the actual acknowledgment of the subjects to ratify it? Men that are really invested with authority, would think it both a disparagement to their authority, and would disdain such a suspicion of the questionableness of it, as to put it as a question to the subjects, whether they owned it or not. But the gentlemen that rules us, have fallen upon a piece of unprecedented policy; wherein they think both to involve the nation in the guilt of their unparalelled rebellion against the Lord, by owning that authority that promotes it; and so secure their usurpations, either by the suffrage of all that own them, or by the extirpation of the conscientious that dare not, with the odium and obloquy of being enemies to authority; by which trick they think to bury the honour of their testimony. Yet in sobriety without prophesying it may be presumed, at the long run, this project will prove very prejudicial to their interest: and herein they may verify that Scots proverb, 'o'er fast o'er loose,' and accomplish these divine sayings, 'He disappointeth the devices of the crafty, he taketh the wise in their own craftiness, and the counsel of the froward is carried headlong.' For as they have put people upon this question, who would not otherwise have made such inquiries into it, and now finding they must be resolved in conscience to answer it, whenever they shall be brought before them; upon a very overly search, they see terrible tyranny written in legible bloody characters almost on all administrations of the government, and so come to be fixed in the verdict that their conscience and the word of God gives of it; so it may be thought, this question now started, for as despicable beginnings it hath, yet ere it come to a full and final decision, will be more enquired into through the

world, and at length prove as fatal to tyranny, as ever any thing could be, and then they may know whom to thank. But however, though the question be extraordinary, and the sufferings thereupon be unprecedented, and therefore, among other contradictions that may be objected, that neither in history nor scripture we can find instances of private people's refusing to own the authority they were under, nor of their suffering for that refusal; yet nevertheless it may be duty without example. Many things may be done, though not against the law of God, yet without a precedent of the practice of the people of God. Though we could not adduce an example for it, yet we can gather it from the law of God, that tyranny must not be owned, this will be equivalent to a thousand examples. Every age in some things must be a precedent to the following, and I think never did any age produce a more honourable precedent, than this beginning to decline a yoke under which all ages have groaned.

2. It will be also granted, it is not always indispensibly necessary, at all times, for a people to declare their disclaim of the tyranny they are under, when they cannot shake it off; nor, when they are staged for their duty before wicked and tyrannical judges, is it always necessary to disown their pretended authority positively; when either they are not urged with questions about it, then they may be silent in reference to that; or when they are imposed upon to give their judgment of it, they are not always obligated, as in a case of confession, to declare all their mind, especially when such questions are put to them with a manifest design to entrap their lives, or intangle their conscience. All truth is not to be told at all times; neither are all questions to be answered when impertinently interrogate, but may be both cautiously and conscientiously waved. We have Christ's own practice, and his faithful servant Paul's example, for a pattern of such prudence and Christian caution. But yet it were cruel and unchristian rigour, to censure such as, out of a pious principle of zeal to God and conscience of duty, do freely and positively declare their judgment, in an absolute

disowning of their pretended authority, when posed with such questions, though to the manifest detriment of their lives, they conscientiously looking upon it as a case of confession. For where the Lord hath not peremptorily astricted his confessors to such rules of prudence, but hath both promised, and usually gives his Spirit's conduct, encouraging and animating them to boldness, so as before hand they should not take thought how or what they shall speak, and in that same hour they find it given them, it were presumption for us to stint them to our rules of prudence. We may indeed find rules to know, what is a case of confession; but hardly can it be determined, what truth or duty we are questioned about is not, or may not be, a case of confession. And who can deny, but this may be in some circumstance, a case of confession, even positively to disown the pretended authority of a bloody court or council? when either they go out of their sphere, taking upon them Christ's supremacy, and the cognizance of the concerns of his crown, whereof they are judges noways competent; then they must freely and faithfully be declined. Or when, to the dishonour of Christ, they blaspheme his authority, and the sacred boundaries he hath prescribed to all human authority, and will assert an illimited absolute authority, refusing and discharging all offered legal and scriptural restrictions to be put thereupon, (as hath been the case of the most part of these worthy though poor martyrs, who have died upon this head) then they must think themselves bound to disown it. Or when they have done some cruel indignity and despite to the Spirit of God, and to Christ's prerogative and glory, and work of reformation, and people, in murdering them without mercy, and imposing this owning of their king, by whose authority all is acted, as a condemnation of these witnesses of Christ their testimony, and a justification of their bloody cruelties against them, which hath frequently been the case of these poor people that hath been staged upon this account: in this case, and several others of this sort that might be mentioned, then they may be free and positive in disowning this test of wicked loyalty, as

the mark of the dragon of the secular beast of tyranny. And in many such cases, when the Lord gives the spirit, I see no reason but that Christ's witnesses must follow his pattern of zeal in the case of confession, which he witnessed before Pontius Pilate in asserting his own kingship, as they may in other cases follow his pattern of prudence. And why may we not imitate the zeal of Stephen who called the council before whom he was staged stiff-necked resisters of the Holy Ghost, persecutors of the prophets, and betrayers and murderers of Christ the just one, as well as the prudence of Paul? But, however it be, the present testimony against this pretended authority lies in the negative, which obliges always, for ever and for ever; that is to say, we plead, that it must never be owned. There is a great difference between a positive disowning and a not owning; though the first be not always necessary, the latter is the testimony of the day, and a negative case of confession, which is always clearer than the positive. Though we must not always confess every truth, yet we must never deny any.

3. It is confessed, we are under this sad disadvantage besides others, that not only all our brethren, groaning under the same yoke with us, will not take the same way of declining this pretended authority, nor adventure, when called, to declare their judgment about it, (which we do not condemn, as is said, and would expect from the rules of equity and charity, they will not condemn us when we find ourselves in conscience bound to use greater freedom) but also some when they do declare their judgment, give it in terms condemnatory of, and contradictory unto our testimony, in that they have freedom positively to own this tyranny as authority, and the tyrant as their lawful sovereign: and many of our ministers also are of the same mind. And further, as we have few expressly asserting our part of the debate, as it is now stated; so we have many famous divines expressly against us in this point, as especially we find in their comments upon, Rom. xiii. among whom I cannot dissemble my sorrow to find the great Calvin,

saying, *Saepe solent inquirere, &c.* 'Men often enquire, by what right they have obtained their power who have the rule! it should be enough to us that they do govern; for they have not ascended to this eminency by their own power, but are imposed by the hand of the Lord.' As also Pareus saying too much against us. For answer to this, I refer to Mr. Knox's reply to Lethington, producing several testimonies of divines against him upon this very head; wherein he shews, that the occasions of their discourses and circumstances wherein they were stated, were very far different from those that have to do with tyrants and usurpers, as indeed they are the most concerned, and smart most under their scourge, are in best case to speak to the purpose. I shall only say, *mens averment*, in a case of conscience, is not an oracle, when we look upon it with an impartial eye, in the case wherein we are not prepossessed: it will bear no other value, than what is allayed with the imperfections of fallibility, and moreover is contradicted by some others, whose testimony will help us as much to confirm our persuasion, as others will hurt us to infirm it.

4. But now when tyrants go for magistrates, lest my plea against owning tyranny, should be mistaken, as if it were a pleading for anarchy, I must assert, that I and all those I am vindicating, are for magistracy, as being of divine original, institute for the common good of human and Christian societies, whereunto every soul must be subject, of whatsoever quality or character, and not only for wrath but also for conscience sake (though as to our soul and conscience, we are not subject) which whosoever resisteth, resisteth the ordinance of God, and against which rebellion is a damnable sin, whereunto (according to the fifth commandment, and the many reiterated exhortations of the apostles) we must be subject, and obey magistrates, and submit ourselves to every ordinance of man, for the Lord's sake, whether it be unto the king as supreme, &c. And we account it a hateful brand of them that walk after the flesh, to despise government, to be presumptuous, self-willed, and not afraid to speak evil of dignities: and that

they are filthy dreamers, who despise dominion, and speak evil of dignities: and of those things which they know not. We allow the magistrate, in whatsoever form of government, all the power the scripture, laws of nature and nations, or municipal do allow him; asserting, that he is the keeper and avenger of both the tables of the law, having a power over the church, as well as the state, suited to his capacity, that is, not formally ecclesiastical, but objectively, for the church's good; an external power, of providing for the church, and protecting her from outward violence, or inward disorder, an imperate power, of commanding all to do their respective duties; a civil power of punishing all, even church-officers, for crimes; a secondary power of judicial approbation or condemnation; or discretive, in order to give his sanction to synodical results; a cumulative power, assisting and strengthening the church in all her privileges, subservient, though not servile, co-ordinate with church-power, not subordinate (though as a christian he is subject) in his own affairs, viz. civil; not to be declined as judge, but to be obeyed in all things lawful, and honoured and strengthened with all his dues. We would give unto Caesar the things that are Caesar's, and to God the things that are God's; but to tyrants, that usurp and pervert both the things of God and of Caesar, and of the peoples liberties, we can render none of them, neither God's, nor Caesar's, nor our own: nor can we from conscience give him any other deference, but as an enemy to all, even to God, to Caesar, and the people. And in this, though it doth not sound now with court-parasites, nor with others, that are infected with royal indulgencies and indemnities, we bring forth but the transumpt of old principles, according to which our fathers walked when they still contended for religion and liberty, against the attemptings and aggressions of tyranny, against both.

5. It must be conceded, it is not an easy thing to make a man in the place of magistracy a tyrant: for as every escape, error, or act of unfaithfulness, even known and continued in, whether in a minister's entry to the ministry,

or in his doctrine, doth not unminister him, nor give sufficient ground to withdraw from him, or reject him as a minister of Christ: so neither does every enormity, misdemeanor, or act of tyranny, injustice, perfidy, or profanity in the civil magistrate, whether as to his way of entry to that office, or in the execution of it, or in his private or personal behaviour, denominate him a tyrant or an usurper, or give sufficient ground to divest him of magistratical power, and reject him as the lawful magistrate. It is not any one or two acts contrary to the royal covenant or office, that doth denude a man of the royal dignity, that God and the people gave him. David committed two acts of tyranny, murder and adultery; yet the people were to acknowledge him as their king (and so it may be said of some others, owned still as kings in scripture) the reason is, because though he sinned against a man or some particular persons, yet he did not sin against the state, and the catholic good of the kingdom, subverting law; for then he would have turned tyrant, and ceased to have been lawful king. There is a great difference between a tyrant in act, and a tyrant in habit; the first does not cease to be a king. But on the other hand, as every thing will not make a magistrate to be a tyrant; so nothing will make a tyrant by habit a magistrate. And as every fault will not unminister a minister; so some will oblige the people to reject his ministry, as if he turn heretical, and preach atheism, Mahometanism, or the like, the people, though they could not formally depose him, or through the corruption of the times could not get him deposed; yet they might reject and disown his ministry: so it will be granted, that a people have more power in creating a magistrate, than in making a minister; and consequently they have more right, and may have more light in disowning a king, as being unkinged; than in disowning a minister, as being unministred. It will be necessary therefore, for clearing our way, to fix upon some ordinary characters of a tyrant, which may discriminate him from a magistrate, and be ground of disowning him as such. I shall rehearse some, from very much approved authors; the application of

which will be as apposite to the two brothers, that we have been burdened with, as if they had intended a particular and exact description of them. Buchanan *de jure regni apud Scotos*, shews, 'That the word tyrant was at first honourable, being attributed to them that had the full power in their hands, which power was not astricted by any bonds of laws, nor obnoxious to the cognition of judges; and that it was the usual denomination of heroes, and thought at first so honourable, that it was attributed to the gods: but as Nero and Judas were sometimes among the Romans and Jews names of greatest account, but afterwards by the faults of two men of these names, it came to pass, that the most flagitious would not have these names given to their children, so in process of time, rulers made this name so infamous by their wicked deeds, that all men abhorred it, as contagious and pestilentious, and thought it a more light reproach to be called hangman than a tyrant.' Thereafter he condescends upon several characters of a tyrant. 1. 'He that doth not receive a government by the will of the people, but by force invadeth it, or intercepteth it by fraud, is a tyrant; and who domineers even over the unwilling (for a king rules by consent, but a tyrant by constraint) and procures the supreme rule without the peoples consent, even tho' for several years they may so govern, that the people shall not think it irksome.' Which very well agrees with the present gentleman that rules over us, who, after he was by public vote in parliament secluded from the government, of which the standing laws of both kingdoms made him incapable for his murders, adulteries and idolatries, by force and fraud did intercept first an act for his succession in Scotland, and then the actual succession in England, by blood and treachery, usurping and intruding himself into the government, without any compact with, or consent of the people; though now he studies to make himself another Syracusan Hiero, or the Florentine Cosmo de medices, in a mild moderation of his usurped power; but the west of England, and the west of Scotland both, have felt the force of it. 2. He does not govern for the subjects welfare, or public utility, but for himself,

having no regard to that, but to his own lust, 'acting in this like robbers, who cunningly disposing of what wickedly they have acquired, do seek the praise of justice by injury, and of liberality by robbery; so he can make some shew of a civil mind; but so much the less assurance gives he of it, that it is manifest, he intends not hereby the subjects good, but the greater security of his own lusts, and stability of empire over posterity, having somewhat mitigated the peoples hatred, which when he had done, he will turn back again to his old manners; for the fruit which is to follow, may easily be known, both by the seed and by the sower thereof.' An exact copy of this we have seen within these two years, oft before in the rule of the other brother.

After God hath been robbed of his prerogatives, the church of her privileges, the state of its laws, the subjects of their liberty and property, he is now affecting the praise, and captating the applause of tenderness to conscience, and love of peace, by offering now liberty after all his cruelties; wherein all the thinking part of men do discern he is prosecuting that hellish project, introducing popery and slavery, and overturning religion, law, and liberty. 3. The kingly government is according to nature, the tyrannical against it; principality is the kingly government of a freeman amongst freemen; the tyrannical a government of a master over slaves. Tyranny is against nature, and a masterly principality over slaves. Can he be called a father, who accounts his subjects slaves; or a shepherd, who does not feed, but devours his flock? or a pilot, who doth always study to make shipwreck of the goods, and strikes a leak in the very ship where he fails? 'What is he then that bears command, not for the people's advantage, but studies only himself, who leadeth his subjects into manifest snares? He shall not verily be accounted by me either commander, emperor, or governor.' King James VI. also, in a speech to the parliament in the year 1609, makes this one character of a tyrant, when he begins to invade his subjects rights and liberties. And if this be true, then we have not had a king these many years:

the foregoing deduction will demonstrate, what a slavery we have been under. 4. What is he then, who doth not contend for virtue with the good but to exceed the most flagitious in vices? 'If you see then any usurping the royal name, and not excelling in any virtue, but striving to exceed all in baseness, not tendering his subjects good with native affection, but pressing them with proud domination, esteeming the people committed to his trust, not for their safeguard, but for his own gain, will you imagine this man is truly a king, albeit he vapours with a numerous levee guard, and makes an ostentation of gorgeous pomp?' The learned Althusius likewise in his politics, chap. 38. Num. 15. (as he is cited by Jus Populi, chap. 16. p. 347.) makes this one character of a tyrant, that 'living in luxury, whoredom, greed and idleness, he neglecteth, or is unfit for his office.' How these suit our times we need not express; what effrontery of impudence is it, for such monsters to pretend to rule by virtue of any authority derived from God, who pollute the world with their adulteries and incests, and live in open defiance of all the laws of the universal king; with whom to exceed in all villanies is the way to purchase the countenance of the court, and to aspire to preferment? No Heligobaldus, &c. could ever come up the length in wickedness, that our rulers have professed. 5. He can transfer unto himself the strength of all laws, and abrogate them when he pleases. King James VI. in that forecited speech saith, a king degenerateth into a tyrant, when he leaveth to rule by law. Althusius also, in the forecited place, saith, 'There is one kind of tyranny, which consisteth in violating, changing, or removing of fundamental laws, specially such as concern religion; such, saith he, Philip the king of Spain, who, contrary to the fundamental Belgic laws, did erect an administration of justice by force of arms; and such was Charles IX. of France, that thought to overturn the Salic law.' All that knoweth what hath been done in Britain these twenty-seven years, can attest our laws have been subverted, the reformation of religion overturned, and all our best laws rescinded; and now the penal statutes against papists disabled and stopped,

without and against law. 6. He can revoke all things to his nod, at his pleasure. This is also one part of King James VI.'s character of a tyrant, when he sets up an arbitrary power; and of Althusius, in the forecited place, 'when he makes use of an absolute power, and so breaks all bonds for the good of human society.' We allow a king an absolute power taken in a good sense, that is, he is not subaltern, nor subordinate to any other prince, but supreme in his own dominions: or if by absolute he meant perfect he is most absolute that governs best, according to the word of God; but if it be to be loosed from all laws, we think it blasphemy to ascribe it to any creature. Where was there ever such an arbitrary and absolute power arrogated by any mortal, as hath been claimed by our rulers these years past? especially by the present usurper, who, in this liberty of conscience now granted to Scotland, assumes to himself an absolute power, which all are to obey without reserve, which carries the subjects slavery many stages beyond whatever the grand Signior did attempt. 7. For by a tyrant strangers are employed to oppress the subjects: 'they place the establishment of their authority in the people's weakness, and think that a kingdom is not a procuration concredited to them by God, but rather a prey fallen into their hands; such are not joined to us by any civil bond, or any bond of humanity, but should be accounted the most capital enemies of God, and of all men.' King James, as above says, he is a tyrant that imposes unlawful taxes, raises forces, makes war upon his subjects, to pillage, plunder, waste, and spoil his kingdoms. Althusius as above, makes a tyrant, who by immoderate exactions, and the like, exhausts the subjects, and cites scripture, Jer. xxii. 13, 14. Ezek. xxxiv. 1. Kings xii. 19. Psal. xiv. 4.' It is a famous saying of Bracton, he is no longer king, than while he rules well, but a tyrant whensoever he oppresseth the people that are trusted to his care and government. And Cicero says, he loseth all legal power in and over an army or empire, who by that government and army does obstruct the welfare of that republic. What oppressions and exactions by armed force our nation

hath been wasted with, in part is discovered above. 8. Althusius in the place above quoted, makes this another mark, 'When he keepeth not his faith and promise, but despiseth his very oath made unto the people.' What shall we say of him then, who not only brake, but burnt, and made it criminal to assert the obligation of the most solemnly transacted covenant with God and with the people, that ever was entered into, who yet upon these terms of keeping that covenant only was admitted to the government? And what shall we say of his brother succeeding, who disdains all bonds, whose professed principle is, as a papist, to keep no faith to heretics? 9. In the same place he makes this one character: 'A tyrant is he, who takes away from one or more members of the commonwealth the free exercise of the orthodox religion.' And the grave author of the impartial enquiry into the administration of affairs in England, doth assert, p. 3. 4. 'Whensoever a prince becomes depraved to that degree of wickedness, as to apply and employ his power and interest, to debauch and withdraw his subjects from their fealty and obedience to God, or sets himself to extirpate that religion which the Lord hath revealed and appointed to be the rule of our living, and the means of our happiness, he doth by that very deed depose himself; and instead of being owned any longer for a king, ought to be treated as a rebel and traitor against the supreme and universal sovereign.' This is the perfect portrature of our princes; the former of which declared an open war against religion, and all that professed it: and the latter did begin to prosecute it with the same cruelty of persecution, and yet continues without relenting against us; though to others he tolerates it under the notion of a crime, to be for the present dispensed with, until he accomplish his design. 10. Ibid. he tells us, 'That whoso for corrupting of youth erecteth stage plays, whore-houses, and other play-houses, and suffers the colleges and other seminaries of learning to be corrupted.' There were never more of this in any age, than in the conduct of our court, which, like another Sodom, profess it to be their design to debauch mankind into all villanies, and to

poison the fountains of all learning and virtue, by intruding the basest of men into the place of teachers, both in church and university, and precluding all access to honest men. 11. Further he says. 'He is a tyrant who doth not defend his subjects from injuries when he may, but suffereth them to be oppressed, (and what if he oppress them himself?)' It was one of the laws of Edward the confessor, if the king fail in the discharge of his trust and office, he no longer deserves nor ought to enjoy that name. What name do they deserve then, who not only fail in the duty of defending their subjects, but send out their lictors and bloody executioners to oppress them, neither will suffer them to defend themselves! But Althusius makes a distinct character of this. 12. Then, in fine he must certainly be a tyrant, who will not suffer the people, by themselves nor by their representatives, to maintain their own rights, neither by law nor force; for, saith my author forecited, 'He is a tyrant who hindereth the free suffrages of members of parliament, so that they dare not speak what they would; and chiefly he who takes away from the people all power to resist his tyranny, as arms, strengths, and chief men, whom therefore, though innocent, he hateth, afflicteth, and persecuteth, exhausts their goods and livelihoods, without right or reason.' All know that our blades have been all along enemies to parliaments; and when their interest forced to call them, what means were used always to paque and prelimit them, and overawe them, and how men, who have faithfully discharged their trust in them, have been prosecuted with the height of envy and fury, and many murdered thereupon; and how all the armed force of the kingdoms have been inhanced into their hand, and the people kept so under foot, that they have been rendered incapable either to defend their own from inrestine usurpers, or foreign invaders. All that is said amounts to this, that when ever men in power to evert and subvert all the ends of government, and intrude themselves upon it, and abuse it, to the hurt of the commonwealth, and the destruction of that for which government was appointed; they are then tyrants, and cease to be

magistrates. To this purpose I shall here append the words of that forecited ingenious author of the Impartial Inquiry, pag. 13, 14. 'There can be nothing more evident from the light of reason as well as scripture, than that all magistracy is appointed for the benefit of mankind, and the common good of societies; God never gave any one power to reign over others for their destruction, (unless by his providence when he had devoted a people for their sins to ruin,) but on whomsoever he confers authority over cities or nations, it is with this conditional proviso and limitation, that they are to promote their prosperity and good, and to study their defence and protection; all princes are thus far pactional——And whosoever refuseth to perform this fundamental condition, he degrades and deposes himself; nor is it rebellion in any to resist him; whensoever princes cease to be for the common good, they answer not the end they were instituted unto, and cease to be what they were chosen for.'

6. It will not be denied, but when the case is so circumstantiate, that it would require the arbitration of judgment to determine, whether the king be a tyrant or not, that then people are not to disown him: for if it be a question, whether the people be really robbed of their rights and liberties, and that the king might pretend as much reason to complain of the people's doing indignity to his sovereignty, as they might of his tyranny; then it were hard for them to assume so far the umpirage of their own cause, as to make themselves absolute judges of it, and forthwith to reject his authority upon these debatable grounds. But the case is not so with us; no place being left for doubt or debate, but that our fundamental rights and liberties civil and religious, are overturned, and an absolute tyranny, exactly characterized as above, is established on the ruins thereof. Hence we have not disowned the pretended authority, because we judged it was tyrannical, but because it was really so. Our discreitive judgment in the case was not our rule, but it was our understanding of the rule, by which only we could be regulated, and not by the understanding of another, which cannot be better, nor so good, of our

grievances, which certainly we may be supposed to understand best ourselves, and yet they are such as are understood every where. To the question then, who shall be judge between these usurping and tyrannizing rulers and us? We answer briefly and plainly. We do not usurp a judgment in the case pretending no more authority over them in our private capacity, than we allow them to have over us, that is none at all? Nor can we admit that they should be both judges and party; for then they might challenge that prerogative in every case, and strengthen themselves in an uncontrollable immunity and impunity to do what they pleased. But we appeal to the fundamental laws of the kingdom, agreeable to the word of God, to judge, and to the whole world of impartial spectators to read and pronounce the judgment. Lex Rex, Quest. 24. pag. 213. saith in answer to this, 'There is a court of necessity no less than a court of justice; and the fundamental laws must then speak, and it is with the people in this extremity as if they had no ruler. And as to the doubtsomeness of these laws, he saith, (1.) As the scriptures in all fundamentals are clear, and expound themselves, and *in the first instance* condemn heresies; so all laws of men in their fundamentals, which are the law of nature and nations, are clear. (2.) Tyranny is more visible and intelligible than heresy, and it is soon discerned—The people have a natural throne of policy in their conscience, to give warning, and materially sentence against the king as a tyrant;—where tyranny is more obscure, and the thread small, that it escape the eye of man, the king keepeth possession, but I deny that tyranny can be obscure long.'

7. I shall grant that many things are yieldable even to a grassonant dominator, and tyrannical occupant of the place of magistracy; as 1. There may be some cases, wherein it is lawful for a people to yield *subjection* to a lawless tyrant, when groaning under his overpowering yoke, under which they must patiently *bear the indignation of the Lord, because they have sinned against him, until he arise and plead his own cause, and execute judgment* in the earth, (Mic. vii. 9.) until which time they must kiss the rod

as in the hand of God, and own and adore the holiness and sovereignty of that providence that hath subjected them under such a slavery; and are not to attempt a violent ejection or excussion, when either the thing attempted is altogether impracticable, or the means and manner of effectuating it dubious and unwarrantable, or the necessary concomitants and consequents of the cure more hurtful or dangerous than the disease, or the like. As in many cases also a man may be subject to a robber prevailing against him; so we find the people of Israel in Egypt and Babylon, &c. yielded subjection to tyrants. But in this case we deny two things to them, (1.) Allegiance or active and voluntary subjection, so as to own them for magistrates. (2.) Stupid *passive obedience*, or suffering without resistance. For the first, we owe it only to magistrates, by virtue of the law, either ordinative of God, or constitutive of man. And it is no argument to infer; as a man's subjecting himself to a robber assaulting him, is no solid proof of his approving or acknowledging the injury and violence committed by the robbery, therefore a person's yielding subjection to a tyrant a public robber does not argue his acknowledging or approving his tyranny and oppression. For, the subjection that a tyrant requires, and which a robber requires, is not of the same nature; the one is legal of subjects, which we cannot own to a tyrant; the other is forced of the subdued, which we must acknowledge to a robber. But to make the parallel; if the robber should demand, in our subjecting ourselves to him, an owning of him to be no robber but an honest man, as the tyrant demands in our subjecting ourselves to him in owning him to be no tyrant, but a magistrate, then we ought not to yield it to the one no more than to the other. For the second, to allow them passive obedience is unintelligible nonsense and a mere contradiction; for nothing that is merely passive can be obedience as relative to a law; nor can any obedience be merely passive; for obedience is always active. But not only is the inaccuracy of the phrase excepted against, but also that position maintained by many, that, in reference to a yoke of tyranny, there is a time which may

be called the proper season of suffering, that is, when suffering (in opposition to acting or resisting) is a necessary and indispensable duty, and resisting is a sin: for if the one be an indispensable duty, the other must be a sin at the same time, but this cannot be admitted. For, though certainly there is such a season of suffering, wherein suffering is lawful, laudable and necessary, and all must lay their account with suffering, and little else can be attempted, but which will increase sufferings; yet even then we may resist as well as we can: and these two, resistance and suffering, at the same time, are not incompatible: David did bear most patiently the injury of his son's usurpation, when he said, 'Let the Lord do to me as seemeth him good,' 2 Sam. xv. 26. chap. x. 12. and betaketh himself to fervent prayers, Psal. iii. and yet these were not all the weapons he used against him; neither did he ever own him as a magistrate. We are to suffer all things patiently as the servants of the Lord, and look to him for mercy and relief, (Psal. cxxiii. 2.); but we are not obliged to suffer even in that season, as the slaves of men. Again, suffering in opposition to resistance, does never fall under any moral law of God, except in the absolutely extraordinary case of Christ's passive obedience, which cannot fall under our deliberation or imitation; or in the case of a positive law, as was given to the Jews to submit to Nebuchadnezzar, which was express and peculiar to them, as shall be cleared. That can never be commanded as indispensable duty, which does not fall under our free will or deliberation, but the enemies will, as the Lord permits them, as the case of suffering is. That can never be indispensable duty, which we may decline without sin, as we may do suffering, if we have not a call to it; yea, in that case, it were sin to suffer; therefore, in no case it can be formally and indispensibly commanded, so as we may not shift it, if we can without sin. Suffering simply the evil of punishment, just or unjust, can never be a conformity to God's preceptive will, but only to his providential disposal; it hath not the will of the sign for its rule, but only the will of well-pleasing. All the commands that we have for suffering, are

either to direct the manner of it, that it be patiently and cheerfully, when forced to it wrongfully, 1 Pet. ii. 19, 20, or comparatively, to determine our choice in an unavoidable alternative, either to suffer or sin; and so we are commanded, rather to suffer, than to deny Christ, Matth. xiii. 33. and we are commanded upon these terms to follow Christ, to take up his cross, when he lays it on his providence, Matth. xvi. 24. See at length this cleared, Lex Rex, Q. 30. page 317-320 otherwise in no case subjection, even passive, can be a duty; for it is always to be considered under the notion of a plague, judgment and curse, to be complained of as a burden, never to be owned as a duty to magistrates.

As we find the Lord's people resenting it as a servitude, under which they were servants even in their own land, which did yield increase unto the kings whom the Lord had set over them, because of their sins, Neh. ix. 36, 37. 2. In divers cases there may be some compliance with a mere occupant, that hath no right to reign; as upon this account the noble marquis of Argyle and lord Warriston suffered for their compliance with the usurper Cromwell. Such may be the warrantableness, or goodness, or necessity, or profitableness of a compliance, when people are by providence brought under a yoke which they cannot shake off, that they may part with some of their privileges, for the avoidance of the loss of the rest, and for the conveniency and profit, peace and safety of themselves and their country, which would be in hazard, if they did not comply; they may do whatsoever is due from them to the public weal, whatsoever is an office of their station or place, or which they have any other way a call unto, whatsoever may make for their own honest interest, without wronging others, or the country's liberties in their transactions with these powers, even though such a compliance may be occasionally to the advantage of the usurpers, seeing good and necessary actions are not to be declined for the ill effects that are accidental to them, and arise from the use which others make of them. But though this may be yielded in some cases to such usurpers, especially

conquerors, that have no right of occupying the empire, but are capable of it by derivation from the people's consent: yet it must not be extended to such usurpers as are also tyrants, that have no right of their own, nor are capable of any, and that overturn all rights of subjects. To such we can yield no compliance, as may infer either transacting with them, or owning them as magistrates. We find indeed the saints enjoyed places under these, who were not their magistrates; as Nehemiah and Mordecai and Esther was queen to Ahasuerus. But here was no compliance with tyrants (for these heathens were not such) only some of them were extraordinary persons, raised up by an extraordinary spirit, for extraordinary ends in extraordinary times, that cannot be brought to an ordinary rule, as Esther's marriage; and all of them in their places kept the law of their God, served the work of their generation, defiled not themselves with their customs, acted against no good, and engaged to no evil, but by their compliance promoted the welfare of their country, as Argyle and Warriston did under Cromwel. Again, we find they paid custom to them, as Neh. ix. 36, 37. and we read of Augustus' taxation universally complied with, Luke ii. 1-5. and Christ paid it. This shall be more fully answered afterwards. Here I shall only say (1.) It can never be proven that these were tyrants. (2.) Christ paid it with such a caution, as leaves the title inflated; not for conscience (as tribute must be paid to magistrates, Rom. xiii. 5, 6.) but only that he might not offend them. (3.) Any other instances of the saints taxations are to be judged forced acts, badges of their bondage, which, if they had been exacted as tests of their allegiance, they would not have yielded. Strangers also, that are not subjects, use to pay custom in their trafficking, but not as tests of their allegiance. 3. There may be also, in some cases, obedience allowed to their lawful commands because of the lawfulness of the thing commanded, or the coincidency of another just and obligging authority commanding the same. We may do many things which a tyrant commands, and which he enforces; and many things also whether he will or not; but we must do nothing upon

the consideration of his command, in the acknowledgement of obedience, due by virtue of allegiance, which we owe of conscience to a lawful magistrate. We must do nothing, which may seem to have an accessoriness to the tyrant's unlawful occupancy, or which depends only on the warrant of his authority to do it, or may entrench on the divine institution of magistracy, or bring us into a participation of the usurper's sin. In these cases we can neither yield obedience in lawful things, nor in unlawful: 'nor can we own absolute subjection, no more than we can absolute obedience; for all subjection is enjoined, in order to obedience: and to plead for a privilege in point of obedience, and to disclaim it in point of subjection, is only the flattery of such, as having renounced with conscience all distinction of obedience, would divest others of all privileges, that they may exercise their tyranny without controul, Naphtali, p. 28. prior edit.'] 4. There may be addresses made to such as are not rightful possessors of the government, for justice, or mercy, or redress of some intolerable grievances, without scruple of accepting that which is materially justice or mercy, or seeking them at the hand of any who may reach them out to us, though he that conveys them to us be not interested in the umpirage of them. Thus we find Jeremiah supplicated Zedekiah for mercy, not to return to prison; and Paul appealed to Caesar for justice. But in these addresses we may not acknowledge the wicked laws that brought on these grievances, nor conceal the wickedness, no more than the misery of them which we have endured; nor may we own the legal power of them that we address, to take them off, nor signify any thing, in the matter and manner of our representations, that may either import a declining our testimony, for which we have suffered these grievances, or a contradiction to our declination of their pretended authority: only we may remonstrate, what cruelties we have endured, and how terrible it will be to them to be guilty of, or accessory to our blood, in not pitying us; which was all that Jeremiah did. And as for Paul's appeal, we find he was threatened to be murdered by his countrymen, Acts xxiii. 14.

from whose hands he was rescued, and brought before the judicatory of Festus the Roman deputy, not voluntarily; thence also they sought to remand him to Jerusalem, that they might kill him, Acts xxv. 3. whereupon he demands in justice that he might not be delivered to his accusers and murderers, but claims the benefit of the heathens own law, by that appeal to Caesar, which was the only constrained expedient of saving his own life, Acts xxviii. 19, by which also he got an opportunity to witness for Christ at Rome. But, as shall be cleared further afterwards, Caesar was not an usurper over Judea; which not obscurely is insinuated by Paul himself, who asserts, that both his person, and his cause criminal, of which he was accused (it was not an ecclesiastical cause, and so no advantage hence for the supremacy) appertained to Caesar's tribunal, and that not only in fact, but of right, Acts xxv. 10. 'I stand at Caesar's judgment-seat, where I ought to be judged.' We cannot say this of any tribunal; fenced in the name of them that tyrannize over us. 5. I will not stand neither upon the names and titles of kings, &c. to be given to tyrants and usurpers, in speaking to them or of them, by way of appellation or compellation: for we find even tyrants are called by these names in scripture, being kings in fact, though not by right and indeed not impertinently, kings and tyrants for the most part are reciprocal terms. But in no case can we give them any names or titles, which may signify our love to them whom the Lord hates, or who hate the Lord, 2 Chron. xix. 2. or which may flatter them, whom Elihu durst not give, for fear his Maker should take him away, Job xxxii. 22. or which may be taken for honouring of them, for that is not due to the vilest of men, when exalted never so high, Psal. xii. ult. a vile person must be contemned in our eyes, Psal. xv. 4. nor which may any way import or infer an owning of a magistratical relation between them and us, or any covenant-transaction or confederacy with them, which is no terms with them, as such, we will say or own. Isa. viii. 12. Hence many sufferers upon this head forbear to give them their titles.

8. It will be yielded very readily by us, that a magistrate is not to be disowned, merely for his differing in religion from us: yea, though he were a heathen. We do not disown our pretended rulers merely upon that account, but cheerfully do grant and subscribe to that truth in our Confession of Faith, chap. xxiii. sect. 4. That infidelity, or difference in religion, doth not make void the magistrate's just and legal authority, nor free the people from their due obedience to him: on which our adversaries have insulted, as if our principle and practice were thereby disproved. But it is easy to answer, 1. Let the words be considered, and we are confident, 'That no sober man will think, the acknowledgement of just and legal authority, and due obedience a rational ground to infer, that tyranny is thereby either allowed or privileged,' Napht. p. 60 prior edition. 2. Though infidelity or difference of religion, does not make void authority, where it is lawfully invested; yet it may incapacitate a person, and lawfully seclude him from authority, both by the word of God, which expressly forbids to set a stranger over, who is not our brother, Deut. xvii. 15. which includes as well a stranger of a strange religion, as one of a strange country, and by the laws of the land, which do incapacitate a papist of all authority, supreme or subordinate. And so, if this James VII. II. had been king before he was a Roman Catholic, if we had no more to object, we should not have quarrelled his succession. 3. We both give and grant all that is the confession, to wit, that dominion is not founded in grace: yet this remains evident, that a prince, who not only is of another religion, but an avowed enemy to, and overturner of the religion established by law, and intending and endeavouring to introduce a false, heretical, blasphemous and idolatrous religion, can claim no just and legal authority, but in this case the people may very lawfully decline his pretended authority; nay, they are betrayers of their country and posterity, if they give not a timely and effectual check to his usurpings, and make him sensible that he hath no such authority. Can we imagine, that men in the whole of that blessed work so remarkably led of God, being convocate by a

parliament of the wisest and worthiest men that ever were in England, whom they did encourage, by writing and preaching, and every way to stand fast in their opposition to the then king displaying a banner for his prerogative (a court dream) against religion and liberty, should be so far left, as to drop that as a principle and part of our religion, which would sacrifice religion itself to the lust of a raging tyrant? Must we believe, that a religion destroying tyrant is a righteous ruler? And must we own him to be a nursing father to the church? Shall we conclude, that the common bounds and limits, whereby the Almighty hath bounded and limited mankind, are removed by an article of our Confession of Faith, which hereby is turned into a court creed: Then welcome Hobs de cive, with all the rest of Pluto's train, who would babble us into a belief, that the world is to be governed according to the pleasure of wicked tyrants. I would fain hope at length the world would be awakened out of such ridiculous dreams, and be ashamed any more to own such fooleries. And it may be, our two royal brothers have contributed more to cure men of this moral madness than any who went before them. And this is the only advantage, I know, that the nations have reaped by their reign.

9. Though we deny that conquest can give a just title to a crown; yet we grant, in some cases, that by the peoples after-consent it may be turned into a just title. It is undeniable, when there is just ground of the war, if a prince subdue a whole land, who have justly forfeited their liberties, when by his grace he preserves them, he may make use of their right now forfeited, and they may resign their liberty to the conqueror, and consent that he be their king, upon fair and legal, and not tyrannical conditions. And even when the war is not just, but successful on the invading conquerors side, this may be an inducement to the conquered, if they be indeed free and unengaged to any other, to a submission, dedition, and delivery up of themselves to be the subjects of the victor, and to take him for their sovereign: as it is like the case was with the Jews in Caesar's time, whose government was translated

by dedition to the Roman power; in the translation, when a-doing, there was a fault, but after it was done, it ceased; though the beginning was wrong, there was a post-fact, which made it right, and could not be dissolved, without an unjust disturbance of public order. Whence, besides what is said above, in answer to that much insisted instance of Christ's paying tribute, and commanding it to be paid to Caesar, the difficulty of that instance may be clearly solved. That tribute which he paid, Matth. xvii. 14. &c. and that about the payment whereof he was questioned, Matth. xxii. 21. seem to be two different tributes. Many think, very probably, they were not one and the same tribute. It is a question, for whom, and by whom that of Matth. xvii. was gathered; it is most likely, it was gathered by the officers of the temple for its service: however, the payment was made, with such caution (tacitely declining the strict right to exact it from him, but to avoid offence, in an act in itself unobliging) that their claim is left as much in the dark, as if the question had never been moved. The other, Matth. xxii. was exacted for Caesar: but to that captious question our Lord returns such an answer, as might both solve it, and evade the snare of the propounder, giving a general rule of giving to God and to Caesar each their own, without defining which of them had the right to the payment in question; whether Caesar should have it, or whether it should be paid only for the temple's use: upon which they marvelled, which they needed not do, if they had understood in his words an express and positive declaration of an obligation to make that payment to Caesar; for then they would have obtained one of their ends, in making him odious to the people, who were not satisfied with the payment of it. But however, the knot is loosed, by considering that they were now lawfully subject to the Roman Emperors, as their governors, to whom they were obliged (I do not say Christ was) to pay tribute. For they had yielded themselves unto, and owned the Roman dominion in Pompey, Caesar Augustus and Tiberius, ere this question about tribute paying was proposed to our Saviour; and therefore they who stuck at the payment of it, were a

sedition party, dissenting from the body of the nation; else it is not supposeable readily, that their dominion in Judea could have been exercised long without some consent, sufficient to legitimate it to the present rulers; and this is the more likely, if we consider the confession of the Jews themselves, disavowing the power of capital punishment. It is not lawful for us to put any man to death, and owning Caesar as their king, with an exclusive abrenunciation of all other, we have no king but Caesar; as Paul also acknowledges, he ought to be judged at Caesar's bar, in his appeal to Caesar. It is also acknowledged by very good authors, that this was the tribute which Judas the Galilean stood up to free the people from; and that the sedition of those Jews that followed him, mentioned Acts v. 37. who mutinied upon this occasion, was, according to Gamaliel's speech, disallowed by that Sanhedrim, or council of the Jews. And it may be gathered out of Josephus, that the Jews of Hircanus' party came under the Roman power by consent and dedition, while they of Aristobulus' party looked upon the Romans as usurpers. Which difference continued till our Saviour's time, when some part of them acknowledged the Caesarean authority, some part looked upon it as an usurpation; and of this generally were the Pharisees. To confirm this, Calvin's testimony may be adduced, upon Matth. xxii. who saith, 'The authority of the Roman emperors was by common use approved and received among the Jews, whence it was manifest, that the Jews had now of their own accord imposed on themselves a law of paying the tribute, because they had passed over to the Romans the power of the sword.' And Chamiers panstrat. tom. 2 lib. 15. cap. 16. p. 635. 'What then? if Caesar's authority was from bad beginnings, did therefore Christ untruly say it was from above? Can no power, at first unjust, afterward become just? if that were so, then either none, or very few kingdoms would be just.'

10. As tyranny is a destructive plague to all the interests of men and Christians; to anarchy, the usual product of it, is no less pernicious, bringing

a community into a paroxysm as deadly and dangerous. We must own government to be absolutely necessary, for the constitution and conservation of all societies. I shall not enter into a disquisition, let be determination of the species or kind of magistracy, whether monarchy aristocracy or democracy, be preferable. My dispute, at present, is not levelled against monarchy, but the present monarch: not against the institution of the species (though I believe, except we betake ourselves to the divine allowance and permission; we shall be as puzzled to find out the divine original of it, as cosmographers are in their search of the spring of Nilus, or theologues of the Father of Melchizedeck) but the constitution of this individual monarchy established among us, which, in its root and branch, spring and streams, in its original, nature, ends and effects, is diametrically opposite to religion and liberty; and because its contagion, universally converting and corrupting all the ends and orders of magistracy, doth affect and infect all the subordinate officers, deriving their power from such a filthy fountain; we must also subtract and deny their demanded acknowledgments as any way due, so long as they serve the pride and projects of such a wicked power: and do not reckon ourselves obliged by covenant, or any otherwise (though, in the third article of the solemn league, we are bound to preserve the rights and privileges of our parliaments, and consequently the honour and deference that's due to our peers, or other parliament-men, acting according to the trust committed to them, but not when they turn traitors engaged in a conspiracy with the tyrant) to own or defend a soulless shadow of a court cabal, made up of persons who have sold themselves to work wickedness, in conspiring with this throne of iniquity against the Lord, which is all we have for a parliament, whom we can in no ways own as our representatives, but must look upon them as perjured and perfidious traitors to God and their country, which they have betrayed into the hands of a tyrant; and therefore divested of that power and authority, which they had of the people as their

representatives, which now is returned to the fountain. And therefore we must act as we can against them, and also what is necessary for securing of ourselves, religion and liberty, without them. We would think nobles, ennobled with virtue, a great mercy and encouragement; and if they would concur in the testimony for religion and liberty, we would be glad that they should lead the van, and prove themselves to be powers appointed by God, in acting for him in his interest. But for the want of their conduct, we must not surcease from that duty that they abandon, nor think that the concurrence of peers is so necessary to legitimate our actions, as that without that formality our resolutions to maintain the truth of God on all hazards, in a private capacity, were unlawful in the court of God and nature: but, on the contrary, must judge that their relinquishing or opposing their duty, which before God they are obliged to maintain, preserve, and promote, is so far from loosing our obligation, or exeeing us from our duty that it should rather press us to prosecute it with the more vigour, without suspending it upon their precedency. For now they can pretend to no precedency, when they do not answer the end of their own private advantage, they cease to be the ministers of God and of the people, and become private persons. And reason will conclude, 'That when the Ephori or trustees betray their trust, and sell, or basely give away the liberties and privileges of the people, which they were entrusted with, the people cannot be brought into a remediless condition; if a tutor waste and destroy the pupils estate, the law provides a remedy for the pupil, Jus popu. vind. cap. 15. page 335, 336.' 'The remedy, in this case, can only be, as every one must move in his own sphere, while all concur in the same duty; so if any, in higher place, become not only remiss, but according to the influence of their power would seduce others into their apostasy, it is their duty to resist and endeavour their reformation or removal: and if these more eminently entrusted shall turn directly apostates, and obstructive and destructive to common interests, the people of an inferior degree may step forward to

occupy the places, and assert the interests, which they forefault and desert. Neither is this a breach of good order; for order is only a mean subordinate to, and intended for the glory of God, and the peoples good, and the regulation thereof must only be admitted as it is conducive, and not repugnant to these ends. A general's command to his soldiers in battle, does not impede the necessity of succession, in case of vacancy of any charge, either through death or desertion, even of such as in quality may be far inferior to those whose places they step into, Naphtali, page 151. first edition.' I do not assert this for private peoples aspiring into the capacity of primores of peers; but that they may do that which the peers desert, and dare not, or will not do, if the Lord put them in a capacity to do it. And more plainly I assert, that if the peers of the land whose duty it is principally to restrain and repress tyranny, either connive at it, or concur with it, and so abandon or betray their trust, then the common people may do it; at least are obliged to renounce, reject, and disown allegiance to the tyrant, without the peers. For which I offer these reasons. 1. Because all men have as much freedom and liberty by nature as peers have, being no more slaves than they; because slavery is a penal evil contrary to nature, and a misery consequent of sin, and every man created according to God's image, is a sacred thing; and also no more subjects to kings, &c. than they; freedom being natural to all (except freedom from subjection to parents, which is a moral duty, and most kindly and natural, and subjection of the wife to the husband, &c.) but otherwise as to civil and politic subjection, man, by nature, is born as free as beasts; no lion is born king of lions, nor no man born king of men; nor lord of men, nor representative of men, nor rulers of men, either supreme or subordinate; because none, by nature, can have those things that essentially constitute rulers, the calling of God, nor gifts and qualifications for it, nor the election of the people. 2. The original of all that power, that the primores or representatives can claim, is from the people, not from themselves; from whence derived they their being

representatives, but from the people's commission or compact? when at the first constitution of parliaments, or public conventions for affairs of state, necessity put the people, who could not so conveniently meet all, to confer that honour and burden upon the best qualified, and who had chief interest by delegation. Hence, if the people give such a power, they may wave it when perverted, and act without their own impowered servants. 3. The people's power is greater than the power of any delegated or constituted by them; the cause is more than the effect; parliament-men do represent the people, the people do not represent the parliament: they are as tutors and curators unto the people, and in effect their servants deputed to oversee their public affairs, therefore if their power be less the people can act without them. 4. It were irrational to imagine, the people committing the administration of their weighty affairs unto them, did denude themselves of all their radical power; or that they can devolve upon them, or they obtain any other power but what is for the good and advantage of the people; therefore they have power to act without them, in things which they never resigned to them; for they cannot be deprived of that natural aptitude, and nature's birth-right, given to them by God and nature, to provide the most efficacious and prevalent means for the preservation of their rights and liberties. 5. As the people have had power before they made peers, and have done much without them; so these primores could never do without them, therefore in acts of common interest, the peers depend more upon the people than the people do upon them. 6. All these primeve rights, that gave rise to societies, are equal to both people and peers, whereof the liberty to repress and reject tyranny is a chief one. The people as well as peers have a hand in making the king, and other judges also, as is clear from Deut. xvii. 14. Judg. ix. 6. 1 Sam. xi. 15. 2 Kings xiv. 21. therefore they may unmake them as well as they. To seek to preserve the ends of government, when they are overturned, is essentially requisite to all societies, and therefore common and competent to all constituents of these societies, superiors or

inferiors. The glory of God and security of religion, the end of all Christian government, doth concern all equally. As every one equally is bound to obey God rather than man, so violence in this case destroys both the commonwealth, and maketh the end and means of government, and the injured persons obligation thereto to cease; and this equally to every man of private or public capacity. In the concern of religion at least, we must not think because we are not nobles, or in authority, that the care of it, or reformation thereof does nothing pertain to us; nay in that, and carrying on the work thereof, there is an equality: as in the erection of the Old Testament tabernacle, all the people were to contribute alike half a shekel, *Exod. xxx.* that it might be for a remembrance before the Lord. Hence it follows, if we disown the supreme ruler, and the inferior confederate with him, and cannot have the concurrence of others: 'now through the manifest and notorious perversion of the great ends of society and government, the bond thereof being dissolved, we liberated therefrom, do relapse into our primeve liberty and privilege: and accordingly, as the similitude of our case, and exigence of our cause doth require, may, upon the very same principles, again join and associate, for our better defence and preservation, as we did at first enter into societies,' *Nap. p. 150.* yet, whatever we may do in this case, we are not for presumptuous assumptions of authority which maleversers have forefaulted: neither are we for new erections of government, but are for keeping the society, of which we are members, entire, in an endeavour to have all our fellow members united unto God, and to one another, in religion and liberty, according to the bond of the solemn league and covenant. Certain it is, that greater societies, under one government, may in some cases make a secession, and divide into lesser, without sedition: or else, how would there be so many distinct commonwealths in the world? seeing at first all was under one head: and how comes it to pass, that there are so many kingdoms in Europe, when it can be instanced, when all, or the most part, were under one Roman

emperor? But this, in our circumstance, is noway expedient, neither was it ever in projection. But our aim is to abstract ourselves inoffensively, and maintain our rights that remain unrobbed, and to adhere closely to the fundamental constitutions, laws, and laudable practices of our native kingdom.

II. We own the obligation of our sacred covenants, unrepealably and indispensably binding to all the duties of christian subjection to magistrates. But we deny, that hereby we are bound either to maintain monarchy, especially thus perverted; nor to own the authority of either of the two monarchs that have monarchized or tyrannized over us these twenty-seven years past. For as to the first, we assert, That that which is in its own nature mutable, cannot be simply sworn unto to be maintained and preserved, but hypothetically at most, else it were simply sinful; since it were to make things in their own nature, and in the providence of God changeable, unchangeable; yea it were a downright swearing not to comply with, but to spurn against, the various vicissitudes of divine providence, the great rector of the universe. And it is unquestionable, that when things alterable and unalterable are put in the same oath, to make the engagement lawful the things must be understood, as they are in their own nature, and no otherwise: else both the imposer and the taker grievously transgress; the former, in taking upon him what is in the power of no mortal, and a contradiction to the prerogative of the immortal God; and the other, in owning that power as just. Hence when these two fall to be in the same oath, they must be so understood as it may not be made a snare to the conscience of the swearer. For it may fall so out in the providence of God, that the preservation of both is in all respects made impossible: and an adhesion to the one, may so far interfere with the preservation of the other, as if the mutable and that which hath no objective obligation to be stuck to the other, which with the loss of all interests we are to maintain, must be abandoned; yea, that which was sworn to be maintained as a mean only, and

a mutable one too, may not only cease to be a mean, but may actually destroy the main end, and then it is to be laid aside, because then it inverts the order of things. Hence also it may be questioned, if it were not more convenient, to leave out those things that are alterable in themselves, out of the same oath with things unalterable, and put them in a distinct oath or covenant by themselves; as we see Jehoadah did 2 Kings xi. 17. 'He made a covenant between the Lord, and the king, and the people, that they should be the Lord's people; between the king also and the people.' Here are two distinct covenants; the one made with God, about things eternally obligatory, wherein the king and people engage themselves upon level ground to serve the Lord, and Joash the king, his treacherous dealing with God in that matter, brought the curse of that covenant upon him: the other covenant was civil, about things alterable relating to points of government and subjection. And as he, by virtue of that prior covenant, had obliged himself, under the pain of the curse thereof, to carry as one covenanted to God with the people, and so not to tyrannize over his brethren: so, the people, by virtue of that same covenant, were to yield obedience, but in nothing to acknowledge him, as having power or authority to countermand God's command; neither had it been an act of disloyalty, to have broken down his groves, which he had, with the addition of the guilt of perjury, set up, and to have bound his ungrateful hands from the blood of the gracious Zechariah: a perfect parallel to our case under the former dominator, save that it was outdone as to all dimensions of wickedness by him. To speak more plainly, the religious part of our covenant is of an eternal obligation; but as to the civil part, it is impossible it can ever be so, unless it be well and cautiously understood; that is, unless instead of any species of government, as monarchy, &c. we put in magistracy itself. For this is that power which is of God; but monarchy, &c. is only a human creature, about the creation whereof men take a liberty, according to what suits them best in their present circumstances. And as to this species of monarchy; men are

never left at liberty to clothe therewith any inept or impious person. And they are perfectly loosed from it. 1. When that species of government becomes opposite to the ends of government, and is turned tyranny, especially when a legal establishment is pretended, then it affects with its contagion the very species itself: the house is to be pulled down, when the leprosy is got into the walls and foundation. 2. When it is exercised, it is turned inept for answering the ends of its erection, and prejudicial to the main thing for which government is given, to wit, the gospel and the coming of Christ's kingdom: hence it is promised to the church, Isa. xlix. 23. 'Kings shall be nursing fathers to the church:'—And Isa. lii. 15. It is promised to the Mediator that 'Kings shall shut their mouths,'—*i.e.* never a word in their head, but out of reverence and respect to his absolute sovereignty, they shall take the law from him, without daring to contract, far less to take upon them to prescribe in the house of God, as they in their wisdom think fit. 3. When providence, without any sinful hand, makes that species impossible to be kept up, without the ruin of that for which it was erected: when things comes to this push, whosoever are clothed with the power, are then under an obligation to comply with that alteration of providence, for the safety of the people; else they declare themselves unworthy of rule, and such who would sacrifice the interest of their people to their particular interest; in which case the people may make their public servant sensible, he is at his highest elevation but a servant. Hence now, when this species named in the covenant, viz. monarchy, is by law so vitiate, as it becomes the mean and instrument of the destruction of all the ends of that covenant, and now by law transmitted to all successors as a hereditary, pure, perfect and perpetual opposition to the coming of Christ's kingdom, so that as long as there is one to wear that crown, (but Jehovah will in righteousness execute Coniah's doom upon the race, Jer. xxii. *ult.* 'Write this man childless'—) and enter heir to the government as now establishment, he must be an enemy to Christ; there is no other way left, but

to think on a new model moulded according to the true pattern. As to the second, we are far less obliged to own and acknowledge the interest of any of the two monarchs, that we have been mourning under these many years, from these sacred covenants. For, as to the first of them, Charles II. Those considerations did cassate his interest, as to any covenant obligation to own him. 1. In these covenants we are not sworn absolutely to maintain the king's person and authority, but only conditionally, in the preservation and defence of religion and liberties. Now, when this condition was not performed, but, on the contrary, professedly resolved never to be fulfilled; and when he laid out himself to the full of his power and authority, for the destruction of that reformed religion and liberties of the kingdom, which he solemnly swore to defend when he received the crown, only in the terms that he should be a loyal subject to Christ, and a true and faithful servant to the people, in order to which a magistrate is chosen, and all his worth, excellency, and valuableness, consists in his answering that purpose; for the excellency of a mean, as such, is to be measured from the end, and its answerableness thereunto: we were not then obliged, to maintain such an enemy to these precious interests. 2. Because, as the people were bound to him, so he was bound to them by the same covenant, being only on these terms entrusted with the government, all which conditions he perfidiously broke, whereupon only his authority and our allegiance were founded; and thereby we were loosed from all reciprocal obligation to him by virtue of that covenant. 3. Though he and we stood equally engaged to the duties of that covenant, only with this difference, that the king's capacity being greater, he was the more obliged to have laid out that power, in causing all to stand to their covenant engagements, as Josiah did, 2 Chron. xxxiv. 31, 32, 33. (but alas! there was never a Josiah in the race,) yet he rose up to the height of rebellion against God and the people, in heaven daring insolency, and not only brake, but burnt that covenant, and made laws to cass and

rescind it, and made a not-concurring in this conspiracy, a note of incapacity for any trust in church or state.

Therefore to plead for an owning of him in this case, were only concludent of this, that the generation had dreamed themselves into such a distraction, as may be feared will be pursued with destruction, and make such dreamers the detestation of posterity, and cause all men proclaim the righteousness of God, in bringing ruin upon them by that very power and authority they owned in such circumstances. 4. It is a known maxim, 'He that does not fulfil the conditions, falls from the benefit of it, and whoso remits the obligation of the party obliged upon condition, cannot exact it afterwards.' So then it is evident, that the subjects of Scotland were by king Charles II. his consent, yea express command, disengaged from so much of that covenant as could be alledged in favours of himself: so that all that he did, by burning and rescinding these covenants, and pursuing all who endeavoured to adhere to them, was a most explicit liberating his subjects from, and remission of their allegiance to him, (and in this we had been fools if we had not taken him at his word;) yea he rescinded his very coronation, by an act of his first parliament after his return, which did declare null and void all acts, constitutions and establishments, from the year 1633 to that present session, not excepting those for his own coronation, after which he was never recrowned, and therefore we could not own that right, which himself did annul. But as for his royal brother, James the VII. and II. we cannot indeed make use of the same reasons and arguments to disown him, as we have now adduced; yet, as we shall prove afterwards, this covenant does oblige to renounce him. So it is so clear, that it needs no illustration, that there lies no obligation from this covenant to own him. 1. Because, as he is an enemy to the whole of our covenant, and especially to these terms upon which authority it is to be owned therein: so he will not come under the bond of this covenant, nor any other compact with the people, but intrude himself upon the throne, in such a way as

overturns the basis of our government, and destroys all the liberties of a free people, which by covenant we are bound to preserve, and consequently, as inconsistent therewith, to renounce his usurpation. For, a prince that will set himself up without any transactions with the people, or conditions giving security for religion and liberty, is an usurping tyrant, not bounded by any law but his own lusts. And to say to such an one, reign thou over us, is all one as to say, come thou and play the tyrant over us, and let thy lust and will be a law to us: which is both against scripture and natural sense. If he be not a king upon covenant terms, either expressly or tacitly, or general stipulations according to the word of God, and laws of the land, he cannot be owned as a father, protector, or tutor, having any fiduciary power entrusted to him over the common wealth, but as a lawless and absolute dominator, assuming to himself a power to rule or rage as he lists: whom to own were against our covenants: for there we are sworn to maintain his majesty's just and lawful authority, and by consequence not to own usurpation and tyranny, stated in opposition to religion and liberty, which there also we are engaged to maintain. Sure, this cannot be lawful authority which is of God, for God giveth no power against himself; nor can it be of the people, who had never power granted them of God to create one over them, with a liberty to destroy them, their religion and liberty, at his pleasure. 2. As he is not, nor will not be our covenanted and sworn king (and therefore we cannot be his covenanted and sworn subjects;) so he is not nor cannot be our crowned king, and therefore we must not be his liege subjects, owning fealty and obedience to him. For, 'according to the national covenant, as all lieges are to maintain the king's authority, consistent with the subjects liberties; which, if they be innovated or prejudged, such confusion would ensue, as this realm could be no more a free monarchy;—so for the preservation of true religion, laws and liberties of this kingdom, it is statute by the 8th act, parl. 1. repeated in the 99th act, parl. 7th, ratified in the 23d act, parl. 11th, and 14th act, parl. 12th of king James VI, and 4th

act. of king Charles I. that all kings and princes, at their coronation and reception of their princely authority, shall make their faithful promise by their solemn oath, in the presence of the eternal God, that enduring the whole time of their lives, they shall serve the same eternal God, to the uttermost of their power, according as he hath required in his most holy word, contained in the Old and New Testaments; and according to the same word, shall maintain the true religion of Christ Jesus, the preaching of his holy word, the due and right ministration of the sacraments, now received and preached within this realm (according to the confession of faith immediately preceding) and shall abolish and gainst and all false religion, contrary to the same; and shall rule the people committed to their charge, according to the will and command of God, revealed in his foresaid word, and according to the laudable law and constitutions received in this realm, no ways repugnant to the said will of the eternal God; and shall procure, to the uttermost of their power, to the kirk of God, and whole Christian people, true and perfect peace in all time coming, and that they shall be careful to root out of their empire all hereticks, and enemies to the true worship of God, who shall be convicted by the true kirk of God of the foresaid crimes.' Now, this coronation oath he hath not taken, he will not, he cannot take; and therefore cannot be our crowned king according to law. As there be also many other laws, incapacitating his admission to the crown, being a professed papist, and no law for it at all, but one of his own making, by a packed cabal of his own complices, a parliament, wherein himself presided as commissioner, enacting materially his succession, and rescinding all these ancient laws: which act of succession (which is all the legal right he can pretend to in Scotland) because it cannot be justified, therefore his right cannot be owned, which is founded upon the subversion of our ancient laws. But as he cannot be our legally crowned king, so he is not so much as formally crowned. And therefore before his inauguration, whatever right to be king (whom the representatives may admit to the government) he may

pretend to, by hereditary succession, yet he cannot formally be made king, till the people make a compact with him, upon terms for the safety of their dearest and nearest liberties, even though he were not disabled by law. He might, as they say, pretend to some right to the thing, but he could have no right in the thing. The kings of Scotland, while uncrowned, can exercise no royal government; for the coronation in concrete, according to the substance of the act, is no ceremony (as they, who make conscience itself but a ceremony, call it) nor an accidental ingredient in the constitution of a king, but as it is distinctive, so it is constitutive: it distinguished Saul from all Israel, and made him from no king to be a king; it is dative, and not only declarative; it puts some honour upon him that he had not before. 3. Though the laws should not strike against his coronation, and though the representatives legally should take the same measures with him that they took with his brother, and admit him upon the terms of the covenant; yet after such doleful experiences of such transactions with these sons of Belial, who must not be taken with hands, nor by the hand, it were hard to trust, or entrust them with the government, even though they should make the fairest professions; since they, whose principles is to keep no faith to heretics (as they call us) and who will be as absolute in their promises as they are in their power, have deservedly forfeited all credit and trust with honest men; so that none could rationally refer the determination of a half crown reckoning to any of them, far less own them and their government in the management of the weightiest affairs of state, since their malversations are written in such bloody characters, as he that runs may read them. At least it were wisdom, and is our duty, to take our measures from the general assembly's procedure with the other brother, before his admission to the government, to suspend our allegiance to him, until authority be legally devolved upon him, and founded upon, and bounded by terms, giving all security for religion and liberty.

12. As I said, before wary prudence, in waving such an impertinent and ticklish question, cannot be condemned; since whatever he may be in conscience, no man in law can be obliged, so far to surrender the common privilege of all mankind, to give an account of all his inward thoughts, which are always said to be free. And as in nothing they are more various, so in nothing they can be more violented, than to have our opinion and sentiments of the current government extorted from us, a declining of which declaration of thoughts, where no ouvert act in project or practice can be proven against it, cannot be treason in any law in the world: so a cautelous answer, in such a ticklish, and intrapping imposition, cannot be censured in point of lawfulness or expediency, even though much be conceded, to stop the mouths of these bloody butchers, gaping greedily after the blood of the answerer; if he do not really own, but give them to understand, he cannot approve of this tyranny. But as these poor faithful witnesses, who were helped to be most free, have always been honoured with the most signal countenance of the Lord in a happy issue of their testimony: so those that used their prudentials most, in seeking shifts to shun severity, and studying to satisfy these inquisitors with their stretched concessions, were ordinarily more exposed to snares, and found less satisfaction in their sufferings even though they could say much to justify, or at least extenuate their shiftings. I knew one, who had proof of this, who afterwards was ashamed of this kind of prudence. A short account of whose managing of answers to this question, because it may conduce somewhat to the explication of it, may here be hinted. The question moved after the usual form, was, do ye own the authority of king James VII. In answer to which, he pleaded first, for the immunity of his thoughts, which he said were not subject to theirs or any tribunal. When this could not be an evasion from their extortions, he objected the ambiguity of the terms in which the question was conceived, being capable of divers senses: and enquired, what they meant by authority? What, by owning authority? By authority, whether did they mean the

administration of it as now improved? If so, then he was not satisfied with it: or the right, as now established? If so, then he was not clear to give his opinion of it, as being neither significant nor necessary; and that it was fitter for lawyers and those that were better acquaint with the secrets of government, than for him to dispute it.

Again he asked, what they meant by owning? Either it is passive subjection, that he did not decline; or active acknowledgment of it and that he said he looked upon as all the suffrage he could give to its establishment in his station, which he must demur upon some scruple. The replies he received were very various, and some of them very rare, either for ignorance or imposture. Sometimes, it was answered: to own the king's authority, is to take the oath of allegiance; this he refused. Some answered, it is to engage never to rise in arms against the king, upon any pretence whatsoever; this he refused likewise. Others explained it to be, to acknowledge his right to be king: to this he answered, when the authority is legally devolved upon him by the representatives of both kingdoms, it was time enough for him to give account of his sentiments. Others defined it, to own him to be a lawful king by succession. To this he answered, he did not understand succession could make a man formally king, if there were not some other way of conveyance of it; it might put him in the nearest capacity to be king, but could not make him king.

Some did thus paraphrase upon it, that he must own him to be his sovereign Lord under God, and God's vicegerent, to be obeyed in all things lawful. To this he answered, whom God appoints, and the people choose according to law, he would own. When those shifts would not do, but from time to time being urged to a categorical answer; he told them, he was content to live in subjection to any government providence set up; but for owning the present constitution as of God, and according to law, he durst not acknowledge it, nor own any mortal as his lawful sovereign, but in

terms consistent with the covenant securing religion and liberty. This not satisfying, when he came to a more pinching trial; he declared, he owned all lawful authority according to the word of God, and all authority that was the ordinance of God by his preceptive will, and he could be subject to any; but further to acknowledge it, he behoved to have more clearness; for sometimes a nation might be charged with that, 'Ye have set up kings, and not by me,' &c. Further he conceded, he owned his providential advancement to the throne; he owned as much as he thought did oblige him to subject himself with patience; he owned him to be as lawful, as providence possessing him of the throne of his ancestors, and lineal succession, as presumed next in blood and line, could make him: but still he declined to own him as lawful king, and alledged that was all one, whether he was lawful or not, he refused not subjection, distinguishing it always from allegiance.

But all these concessions did not satisfy them, and alledged he might say all this of a tyrant; and therefore commanded him to give it under hand, to own not only the lineal, but the legal succession of king James VII. to the crown of Scotland; which he did, upon a fancy, that legal did not import lawful, but only the formality of their law; withal protesting, he might not be interpreted to approve of his succession. But this was a vain protestation against fact. However, by this we see, what is owning this authority, in the sense of the inquisitors.

The result of all is, to acknowledge allegiance to the present possessor, and to approve his pretended authority as lawful, rightful and righteous; which indeed is the true sense of the words, and any other, that men can forge or find out, is strained. For, to speak properly, if we own his authority in any respect, we own it to be lawful: for every authority, that is owned to be authority indeed, is lawful; authority always importing authorization, and consisting in a right or call to rule, and is formally and essentially

contradistinct to usurpation: where ever the place of power is merely usurped, there is no authority but according to his word; a stile without truth, a barely pretended nominal equivocal authority, no real denomination: if we then own this man's authority, we own it to be lawful authority: and if we cannot own it so, we cannot own it all. For it is most suitable, either to manly ingenuity, or Christian simplicity, to speak properly, and to take words always in the sense, that they to whom they are speaking will understand them, without equivocating.

These preliminaries being thus put by, which do contribute to clear somewhat in this controversy, and both furnish us with some arguments for, and solutions in most of the objections against my thesis, in answer to the questions above stated. I set it down thus: A people long oppressed with the encroachments of tyrants and usurpers, may disown all allegiance to their pretended authority, and when imposed upon to acknowledge it, may and must rather chuse to suffer, than to own it. And consequently we cannot, as matters now stand, own, acknowledge, or approve the pretended authority of king James VII. as lawful king of Scotland; as we could not, as matters then stood, own the authority of Charles II. This consequence is abundantly clear from the foregoing deduction, demonstrating their tyranny and usurpation. In prosecuting of this general thesis, which will evince the particular hypothesis, I shall, 1. Adduce some historical instances, whence it may be gathered, that this is not altogether without a precedent, but that people have disowned allegiance to tyrants and usurpers before now. 2. Deduce it from the dictates of reason. 3. Confirm it by scripture arguments.

I. Albeit, as was shewed before, this question, as now stated, is in many respects unprecedented; yet the practice, which in our day hath been the result of it, to disown, or not to own prevailing dominators usurping the government, or abusing it, is not so alien from the examples of history, but

that by equivalency or consequence it may be collected from and confirmed by instances.

1. To begin at home, besides many passages related already for confirmation, we may add, (1.) That for about 1025 years, the people had in their choice whom to own, or admit to succeed in the government, 'Even though the kingdom was hereditary; and used to elect, not such who were nearest in blood and line, but these that were judged most fit in government, being of the same progeny of Fergus,' Buchanan's History of Scotland, book vi. pag. 195. in the life of Kenneth III. This continued until the days of Kenneth III. who to cover his villainous murder of his brother's son Malcolm, and prevent his, and secure his own son's succession, procured this charter for tyranny, the settlement of the succession of the next in line from the parliament: which, as it pretended the prevention of many inconveniencies, arising from contentions and competitions about the succession; so it was limited by laws, precluding the succession of fools or monsters, and preserving the people's liberty to shake off the yoke when tyranny should thereby be introduced: otherwise it would have been not only an irrational surrender of all their own rights, and enslaving the posterity, but an irreligious contempt of providence, refuting and anticipating its determination in such a case. However it is clear, before this time, that as none but the fittest were admitted to the government; so if any did usurp upon it, or afterwards did degenerate into tyranny, they took such order with him, as if he had not been admitted at all; as is clear in the instances of the first period, and would never own every pretender to hereditary succession. (2.) As before Kenneth's days, it is hard to reckon the numerous instances of kings that were dethroned, or imprisoned, or slain, upon no other account than that of their oppression and tyranny; so afterwards they maintained the same power and privilege of repressing them, when ever they began to encroach. And although no nation hath been more patient towards bad kings, as well as loyal towards good ones; yet, in

all former times, they understood so well the right they had, and the duty they owed to their own preservation, as that they seldom failed of calling the exorbitantly flagitious to an account. And albeit, instead of condoling or avenging the death of the tyrannous, they have often both excused and justified it, yet no kingdom hath inflicted severer punishments upon the murders of just and righteous princes: and therefore, though they did neither enquire after, nor animadvert upon those that slew James III. a flagitious tyrant, yet they did, by most exquisite torments, put them to death who slew James the I. a virtuous monarch. Hence, because these and other instances I mind to adduce of deposing tyrants, may be excepted against, as not pertinent to my purpose, who am not pleading for exauctoration and deposition of tyrants, being impracticable in our case: I shall once for all remove that, and desire it may be considered, (1.) That though we cannot formally exauctorate a tyrant; yet he may, by law itself, fall from his right, and may exauctorate himself, by his laws by whom kings reign; and this is all we plead for as a foundation of not owning him. (2.) Though we have not the same power, yet we have the same grounds, and as great and good, if not greater and better reasons to reject and disown our tyrant, as they, whose example is here adduced, had to depose of their tyrannizing princes. (3.) If they had power and ground to depose them, then a fortiori, they had power and ground to disown them; for that is less, and included in the other, and this we have. (4.) Though it should be granted, that they did not disown them before they were deposed; yet it cannot be said that they did disown them only because they were deposed: for it is not deposition that makes a tyrant; it only declares him to be justly punished for what he was before. As the sentence of a judge does not make a man a murderer or thief, only declares him convict of these crimes, and punishable for them; it is their own committing them that makes him criminal: and, as before the sentence, having certain knowledge of the fact, we might disown the man's innocence or honesty; so a ruler's acts of tyranny and usurpation make him a tyrant

and usurper, and give ground to disown his just and legal authority; which he can have no more than a murderer or thief can have innocence or honesty. (3.) We find also examples of their disowning kings deposed; as king Baliol was disowned with his whole race, for attempting to enslave the kingdom's liberties to foreign power. And if this may be done for such an attempt, as the greatest court parasites, and sycophants consent; what then shall be done for such as attempt to subject the people to domestic or intestine slavery? shall we refuse to be slaves to one without, and be, and own ourselves contented slaves to one within the kingdom? It is known also that king James the I. his authority was refused by his subjects in France, so long as he was a prisoner to the English there, though he charged them upon their allegiance, not to fight against the party who had his person prisoner: they answered, They owned no prisoner for their king, nor owned no allegiance to a prisoner. Hence princes may learn, though people submit to their government; yet their resignation of themselves to their obedience is not so full, as that they are obliged to own allegiance to them, when either morally or physically they are incapacitate to exercise authority over them. They that cannot rule themselves cannot be owned as rulers over a people.

2. Neither hath there been any nation, but what at one time or other hath furnished examples of this nature. The English history gives account, how some of their kings have been dealt with by their subjects, for impieties against the law and light of nature, and encroachments upon the laws of the land. Vortigern was dethroned for incestuously marrying his own sister. Neither did ever blasphemies, adulteries, murders, plotting against the lives of innocents, and taking them away by poison or razor, use to escape the animadversion of men, before they were priest-ridden unto a belief that princes persons were sacred. And if men had that generosity now this man that now reigns might expect some such animadversion. And we find also king Edward, and Richard the II. were deposed, for usurpation upon laws and liberties, in doing whereof the people avowed, They would not suffer the laws of England to be changed.

Surely the people of England must now be far degenerate, who having such laws transmitted to them from their worthy ancestors, and they themselves being born to the possession of them without a change, do now suffer them to be so encroached upon, and mancipate themselves, and leave their children vassals to popery, and slaves to tyranny.

3. The Dutch also, who have the best way of guiding of kings of any that ever had to do with them (witness their having so many of them in chains, now in Batavia in the East Indies) are not wanting for their part to furnish us with examples. When the king of Spain would not condescend to govern them according to their ancient laws, and rule for the good of the people, they declared him to be fallen from the seigniory of the Netherlands, and so erected themselves into a flourishing common-wealth. It will not be amiss to transcribe some of the words of the edict of the states general to this purpose. It is well known, (say they) 'That a prince and lord of a country is ordained, by God, to be sovereign and head over his subjects, to preserve

and defend them from all injuries, force, and violence; and that if the prince therefore faileth therein, and instead of preserving his subjects, doth outrage and oppress them, depriveth them of their privileges and ancient customs, commandeth them, and will be served of them as slaves; they are no longer bound to respect him as their sovereign lord, but to esteem of him as a tyrant, neither are they bound to acknowledge him as their prince, but may abandon him, &c.' And with this agrees the answer William, prince of Orange, to the edict of proscription, published against him by Philip the II. There is, says he, 'A reciprocal bond betwixt the lord and his vassal; so that if the lord break the oath, which he hath made unto his vassal, the vassal is discharged of the oath made unto his lord.' This was the very argument of the poor suffering people of Scotland, whereupon they disowned the authority of Charles the II.

4. The monarchy of France is very absolute; yet there also the state hath taken order with their tyrants; not only have we many instances of resistances made against them, but also of disowning, disabling, and invalidating their pretended authority, and repressing their tyranny. So was the two Childerici served: so also Sigebertus, Dagabertus, and Lodowick the II. kings of France.

5. The great body of Germany moves very slowly, and is inured to bear great burdens: yet there also we find Joanna of Austria, mother of Charles V. was put to perpetual imprisonment: which example is adduced by the earl of Morton, in his discourse to the queen of England (whereof I rehearsed a part before) vindicating the deposing and disowning queen Mary of Scotland. 'If, saith he, we compare her with Joanna of Austria—what did that poor wretch commit, but that she could not want a little lustful pleasure as a remedy necessary for her age? and yet, poor creature, she suffered that punishment, of which our dame, convicted of most grievous crimes, now complains.'—Buchanan's History of Scotland, book xx. p. 748.

The duke of Saxon, the landgrave of Hesse, and the magistrates of Magdeburgh, joined in a war against her son Charles V. and drew up a conclusion by resolution of lawyers, wherein are these words——'Neither are we bound to him by any other reason, than if he keep the conditions on which he was created emperor. By the laws themselves it is provided, That the superior magistrate shall not infringe the right of the inferior, and if the superior magistrate exceed the limits of his power, and command that which is wicked, not only we need not obey him, but if he offer force we may resist him.' Which opinion is confirmed by some of the greatest lawyers, and even some who are patrons of tyranny, Grotius none of the greatest enemies of tyrants, *de jure belli*. lib. 1. chap. 4. p. 11. saith out of Barclaius, and with him, That the king doth lose his power when he seeketh the destruction of his subjects. It was upon the account of the tyranny of that bloody house of Austria over the Helvetians, that they shook off the rule and government of that family, and established themselves into a republic. And at this present time, upon the same accounts, the tyranny and treachery of this imperial majesty, the Hungarians have essayed to maintain and justify a revolt in disowning the emperor, now for several years.

6. Poland is an elective kingdom, and so cannot but be fertile of many instances of casting off tyrants. Henricus Valesius, disowned for fleeing, and Sigismundus for violating his faith to the states, may suffice. *Lex Rex*, q. 24. p. 217.

7. In Denmark, we find Christiernus their king, was, for his intolerable cruelty, put from the kingdom, he and all his posterity, and after twenty years did end his life in prison.

8. In Swedland, within the compass of one century, the people deposed and banished the two Christierns, and dethroned and imprisoned Ericus, for

their oppressions and tyranny, and for pursuing the destruction of their subjects.

9. The Portuguese, not many years ago, laid aside and confined Alphonsus their king, for his rapines and murders.

10. Some dukes of Venice have been so disowned by these commonwealths men, that laying aside their royal honours as private men, they have spent their days in monasteries. Buchan. *de jure regni apud Scotos*.

11. If we will resolve the old Roman histories, we shall find no small store of such examples, both in the time of their kings, consuls, and emperors. Their seventh king Tarquinius Superbus was removed by the people, for his evident usurpation: saith Livius, 'That is, for he had nothing for a right to the government, but mere force, and got the rule neither by the people's consent and choice, nor by the authority of the senators.' So afterwards the empire was taken from Vitellius, Heliogabulus, Maximinus, Didius, Julianus, Lex Rex, *ubi supra*.

12. But it will be said, Can there be any instances of the primitive christians adduced? Did ever they, while groaning under the most insupportable tyranny of their persecuting emperors, disown their authority, or suffer for not owning it? To this I answer, 1. What they did, or did not of this kind, is not of moment to enquire.: seeing their practice and example, under such disadvantages, can neither be known exactly, nor what is known of it be accommodated to our case: for (1.) They were never forced to give their judgment, neither was the question ever put to them, whether they owned their authority or not? If they transgressed the laws, they were liable to the punishment, they craved no more of them. (2.) They confess themselves to be strangers, that had no establishments by law; and therefore they behoved to be passively subject, when in no capacity to resist; there

was no more required of them. Yet Lex Rex Quest. 35. page 371. cites Theodoret affirming, 'Then evil men reigned through the unmanliness of the subjects.' (3.) Their examples are not imitable in all things; they were against resistance, which we doubt not to prove is lawful against tyrannical violence: many of them refused to flee from the fury of persecutors: they ran to martyrdom, when neither cited nor accused; and to obtain the crown thereof they willingly yielded up their lives and liberties also to the rage of tyrants. We cannot be obliged to all these. 2. Yet we find some examples not altogether unapplicable to this purpose. When Barochbach, the pretended king of the Jews, after the destruction of Jerusalem, set himself as king in Bitter, a city in Arabia; the Christians that were in his precincts, refused to own him as king; which was one great cause of his persecuting them. It is true he persecuted them also for other things, as for their not denying Christ; so are we persecuted for many other things, than for our simple disowning of the king: yet this is reckoned as a distinct cause of their suffering, by Mr. Mede, on the Revel. Part. 1. Page 43. Gees Magist. Origin. Chap. 10. Sect. 7. Page 361. The same last cited author shews, that when Albinus, Niger, and Cassius, successively usurped the empire, having none of them any legal investiture, the Christians declined the recognition of their claim, and would not own them; and that upon this Tertullian says, That is, the Christians could never be found to be Albinians, or Nigrians, or Cassians, meaning they were never owners of these men for magistrates. And so may we say, We may be ashamed to be found amongst the Charlites and Jacobites of these times. Not unlike is the passage of Ambrose, who, in favours of Valentinian the rightful governor, contested against Maximus the tyrant, and not only disowned him, but excommunicated him, for which he was threatened with death. And yet it is observable, that when Maximus offered to interpose his power in defence of Ambrose, that he might not be banished by Justina the empress, he would not accept of the help of Maximus, whose power he disallowed and disowned. Whence I observe,

that it is not without a precedent for a minister to disown a tyrant, to refuse favour from him: yea, and to excommunicate him, yea, even without the concurrence of his fainting brethren; for all which some of our faithful ministers have been much condemned in our day, especially Mr. Donald Cargil for excommunicating Charles the II, and James, Duke of York, as if such a thing had never been done before: whereas, we see what Ambrose did to Maximus. And this same faithful minister, Ambrosius minister at Milan, in Italy, did also hold out of the assembly of the Christians Theodosius the emperor, though a most virtuous prince, for that grievous scandal committed by him, against the innocent people at Thessalonica in killing so many of them in a passionate transport. But, 3. since this objection of primitive Christians is much insisted on, both against this and the head of defensive arms: I shall further take notice of several distinctions, that do make the difference between their case and ours very vast. (1.) There is a great difference betwixt a prince of the common religion of his subjects, but distinct from some of them, whom yet he does not seek to entice to his religion, but gives them liberty, and the benefit of the law as other subjects: which was the case of many in these primitive times sometimes. And a prince, by all means, both foul and fair, pressing to a revolt from the true, and to embrace a false religion. In this case (which is ours with a witness) it must be granted we should be wary, that we neither engage with him, nor own allegiance to him, when he would withdraw us from our allegiance to God. (2.) There is a great difference betwixt a prince persecuting the true religion, which only a few of his subjects here and there did profess, who in regard of their paucity were never in capacity to be looked upon as the body of the people, empowering him as their public servant; (which was their case) and a prince persecuting that religion, which was professed by the body of the nation, when they set him up. In this latter case, men of great sense have denied he should be owned for a prince, because then he is stated against the common good. This was our case under

the former king, and yet under this, though all professors be not now persecuted, the public religion and ancient reformation is persecuted in a few, whom he intends to destroy, and in their destruction to bury it. (3.) There is a difference betwixt a prince persecuting religion, publicly owned and received of his subjects, yet never approved nor confirmed by law (as it was not in the primitive times) and a prince persecuting religion ratified and established by the laws of the land, which is our case. It will seem clear to every soul, not benighted with court darkness, that he then of course, and by law, falleth from his right in this case, because now he is not only stated against the common good, but against the very laws by which the subjects must be ruled. Then he ruleth not as a prince, to whom the law giveth his measures and bounds, but rageth as a tiger and tyrant, and ought to be carried towards as such. (4.) There is a difference betwixt a prince suppressing that religion established by law, which he never professed, nor never gave his consent to these laws (as might be the case of some of the Arian emperors) though it be unlawful for any people to set up any mortal over them, who is not in this case bound to the good behaviour; and a prince, opposing and oppressing that religion, which himself hath professed, and is ratified by laws with his own consent: which was our case under the former king, who did give the most solemn ratification of them that ever was given, but afterwards most perfidiously retracted it.

As also this apostate papist, did sometime profess himself protestant, and consented to the laws establishing it, and the penal statutes against papists, though now he is going about to raze all, and ruin that alone valuable treasure of our nation, religion. (5.) There is a difference betwixt a prince consenting to laws establishing religion which he now persecuteth (which might have been the case of Julian the apostate) and a prince, who not only consented to these laws, but who did upon these very terms, and no other, get and receive his crown and sceptre, that he should preserve the religion as reformed, and protect as a father the professors thereof, and maintain the

laws establishing it, which yet he, perfidiously, being once settled in the government, breaks, casts, cassates and overturns (which was done by Charles) or, and a prince who will be bounded by the laws consented to, nor be bound to the observation of any laws whatsoever; but challenges it as his prerogative royal, to be absolute above all laws, and denying all security upon terms, is free to destroy religion and liberty, and all the valuable interests of the nation, when he pleases. This is James's character. (6.) There is a difference betwixt a prince breaking the main and only article of his covenant, in a fit of fury and rage being transported upon some mistakes (which was the case of Theodosius the emperor) and a prince not only violating this upon deliberation, but plainly declaring, that neither oath nor declaration can or will bind him; but these being made void, he will destroy without restraint all these covenanted privileges (this was the case of Charles) or, and a prince who, as he never will come under the bond of a covenant with his people: so tho' he makes never so many fair promises with the greatest solemnities, maintains a principle, that he will keep no promises, but when, and with whom he pleases, and can get a dispensation to break all when he likes. (This is James's ingenuity.) Sure in this case, such as are characterized, declare themselves so far from being princes, that they profess before the world, they are no more men to be conversed with: for if neither their words, writs, vows, promises, oaths, declarations, nor protections can bind them, what society can be had with them? Are they not to be looked upon, and carried towards as common enemies of morality, religion, righteousness, liberty, humanity, yea even of mankind itself? Now then, let the world be judge, if the people of Scotland can be judged in conscience, reason, prudence, policy, or any imaginable way, bound to own their authority, being so stated, and by the act rescissory all human ground rescinded, that ever it shall be otherwise; let them go seek other slaves where they can find them, for we will not sell ourselves and posterity to

tyrants as slaves, nor give up our religion and the exercise of it to the mouldings of the court.

II. In the second place, it being clear from these forementioned instances, that tyrants and usurpers have been disowned; and it being also as clear as light can make any thing, from the foregoing account of their government, and all the characters of truculency, treachery and tyranny, conspicuously reluctant therein, that these two gentlemen, whose authority we are pressed to own, were tyrants and usurpers: it remains therefore to prove from all dictates of reason about government, that their pretended authority could not nor cannot be owned.

For the argument runs thus; the authority of tyrants and usurpers cannot be owned; but the authority of Charles and James was and is the authority of tyrants and usurpers, therefore their authority cannot be owned. Now it is the major of this syllogism that I undertake to prove, the minor being so clear from their history, that to prove it by witnesses were to do what is already done.

1. All authority to be owned of men must be of God, and ordained of God: for so the apostle teacheth expresly, Rom. xiii. 1. &c. which is the alone formal reason of our subjection to them, and that which makes it a damnable sin to resist them; because it is a resisting the ordinance of God. The Lord owns himself to be the author of magistrates, Prov. viii. 15. By me kings reign and princes decree justice.

As he is the author of man, and hath made him a sociable creature, so he is the author of the order of human society, which is necessary for the preservation of mankind, he being the God of order and not of confusion.

And this must hold not only of the supreme authority, but of subordinate magistrates also; for they must be included in the higher powers, to whom

we must be subject, Rom. xiii. and they that resist them, resist God's ordinance too. Their judgment is God's, as well as the judgment of the supreme magistrate, Deut. i. 17. 2 Chron. xix. 6, 8. They are called gods among whom the Lord judgeth, Psal. lxxxii. 1. He speaketh not there of a congregation of kings.

We are to be subject to them for the Lord's sake, as well as to the supreme magistrate, 1 Pet. ii. 13. therefore all magistrates, superior and inferior, are ordained of God in the respective places. It is true, Peter calls every degree of magistracy an ordinance of man, not that he denies it to be an ordinance of God for so he would contradict Paul, Rom. xiii. but terms it so emphatically, to commend the worth of obedience to magistrates, though but men, when we do it for the Lord's sake: not effectively, as an invention of men, but subjectively, because exercised by men, and created and invested by human suffrages, considered as men in society, and objectively, for the good of man, and for the external peace and safety of man, thereby differenced from the ministry, an ordinance of Christ, for the Spiritual good of mens souls. Hence, those rulers that are not of God, nor ordained of God, cannot be owned without sin; but tyrants and usurpers are the rulers, that are not of God, nor ordained of God, but are set up, and not by him, &c. Hos. viii. 1.-4. therefore they cannot be owned without sin.

I refer it to any man of conscience and reason to judge, if these scriptures, proving magistracy to be the ordinance of God, for which alone is to be owned, can be applied to tyrants and usurpers. How will that, Rom. xiii. read of tyrants? Let every soul be subject to tyrants, for they are ordained of God as his ministers of justice, &c. and are a terror to good works, and a praise to the evil. Would not every man nauseate that as not the doctrine of God? Again, how would that sound, Prov. viii. By me tyrants reign, and usurpers decree injustice? Harsh to Christian ears. Can they be said to be gods among whom the Lord judgeth? If they be, they must be

such as the witch of Endor saw, gods coming out of the earth, when she raised the devil; in a very catechrestical meaning, as the devil is called the god of this world. And indeed they have no more power, nor otherwise to be owned, than he hath: for this is a truth, tyranny is a work of satan, and not from God; because sin, either habitual or actual, is not from God; tyranny is sin in habit and act: therefore——The magistrate, as magistrate, is good in nature and end, being the minister of God for good, a tyrant as a tyrant, is quite contrary. Lex Rex saith well, 'A power ethical, politic or moral, to oppress, is not from God, and is not a power, but a licentious deviation of a power, and no more from God, but from sinful nature, and the old serpent, than a licence to sin,' quest. 9. p. 59. Hence sin, a licence to sin, a licentious sinning, cannot be from God; but tyranny, usurpation, absolute power enaroaching upon all liberties, laws, divine and human, is sin, a licence to sin, a licentious sinning: therefore——But, to make this clear, and to obviate what may be said against this, let it be considered, how the powers that be are of God, and ordained of God. Things are said to be of God and ordained of God, two ways; by his purpose and providence, and by his word and warrant.

Things may be of God, either of his hand working, or bringing them about, ordaining and ordering them to be to his glory, either by a holy overruling providence, as Samson's desire of a wife was of God, Judg. xiv. 4. and Amaziah's insolent and foolish rejection of Joash's peaceable overture, 2 Chron. xxv. 20. or by a powerful effective providence; so Rom. xi. 36. Of him and through him are all things, 1 Cor. viii. 6. One God, of whom are all things. Or things be of God, of his word warranting and authorizing. So we are commanded to try the spirits; whether they be of God (1 John iv. i.) So in this sense, sin, tentation, lust, corruptions of the world are not of God, Jam. i. 13, 1 John ii. 16.

Again, things are ordained of God, either by the order of his counsel or providential will; either effectively, by way of production, or direction; or permissively, by way of non-impediment: or they are ordained by the order of his word and preceptive will. The former is God's rule, the latter is ours: the former is always accomplished, the latter is often contradicted: the former orders all actions, even sinful; the latter only that which is good and acceptable in the sight of God: by the former Israel rejected Samuel, by the latter they should have continued Samuel's government, and not sought a king: by the former Athaliah usurped the government, by the latter she should have yielded obedience, and resigned the government to the posterity of Ahaziah: by the former, all have a physical subordination to God at creatures, subject to his all disposing will; by the latter, those whom he approves have a moral subordination to God, as obedient subjects to his commanding will. Now magistrates are of God, and ordained by him both these ways, tyrants but one of them. I say, magistrates, the higher powers, to whom we owe and must own subjection, are of God both these ways; both by his purpose and providence; and that not merely eventual, but effective and executive of his word, disposing both of the title and right, and possession of the power, to them whom he approves, and bringing the people under a conscientious subjection, and by his word and warrant. So Adonijah the usurper (though he had the pretence of hereditary right, and also possession by providence) was forced to own king Solomon in these terms, upon which only a magistrate may be owned: 'the kingdom' says he, 'was mine, and all Israel set their faces on me that I should reign: howbeit the kingdom is turned about, and become my brother's, for it was his from the Lord,' 1 Kings ii. 15. He had both providence turning about the kingdom to him, and also the warrant of the Lord's approbative and preceptive will. But tyrants and usurpers are only of God, and ordained of God, by his overruling purpose and permissive providence, either for performing his holy purpose towards themselves, as Rehoboam's professing he would be a

tyrant, and refusing the lawful desires of the people was of God, 2 Chron. x. 15. or for a judgement and vengeance upon them that are subject to them, Zech. xi. 6. whereby they get a power in their hand, which is the rod of the Lord's indignation, and a charge and commission against a hypocritical nation, Isa. x. 5, 6. This is all the power they have from God, who 'gives Jacob to the spoil, and Israel to the robbers, when they sin against him,' Isa. xlii. 24. This doth not give these robbers any right, no more than they whose 'tabernacle prosper, into whose hand God bringeth abundantly,' Job xii. 6. Thus all robbers, and the great legal robbers, tyrants and their authorized murderers, may be of God, viz. by his providence. Hence those that are not ordained of God's preceptive will, but merely by his providential will; their authority is not to be owned; but tyrants and usurpers are not ordained of God's preceptive, but merely by his providential will. The minor needs no proof, yet will be cleared by many following arguments, the major will be afterwards more demonstrated. Here I shall only say, they that have no other ordination of God empowering them to be rulers, than the devil hath, must not be owned; but they that have no other than the ordination of providence, have no other ordination of God empowering them to be rulers, than the devil hath: therefore they that have no other than the ordination of providence, must not be owned.

2. But let us next consider what is comprehended in the ordination of that authority which is to be owned as of God: and it may be demonstrated, there are two things in it, without which no authority can be owned as of God, viz. institution and constitution so as to give him, whom we must own as God's minister, authority both in the abstract and concrete, that is, that he should have magistracy by God's ordination, and be a magistrate by and according to the will of God. All acknowledge that magistracy hath God's institution, for the powers that be are ordained of God: which contains not only the appointment of it, but the qualification and form of it. That government is appointed by divine precept all agree, but whether the

precept be moral natural, or moral positive, whether it was appointed in the state of innocency, or since disorder came into the world, whether it be *primario* or *secundario*, from the law of nature, is not agreed upon. It may possibly be all these ways; government in the general may be from the law and light of nature appointed in innocency, because all its relative duties are enjoined in the fifth command, and all nations naturally have an esteem of it, without which there could be no order, distinction, or communion in human societies but the specification or individuation may be by a postnate, positive and secondary law, yet natural too, for though there be no reason in nature why any man should be king and lord over another, being in some sense all naturally free, but as they yield themselves under jurisdiction the exalting of David over Israel is not ascribed to nature, but to an act of divine bounty, which took him from following the ewes, and made him feeder of the people of Israel, Psal. lxxviii. 70, 71. yet nature teacheth, that Israel and other people should have a government, and that this should be subjected to. Next, not only is it appointed to be, but qualified by institution, and the office is defined, the end prescribed, and the measures and boundaries thereof are limited, as we shall hear. 'Again, the forms of it though politically, they are not stinted, that people should have such a form and not another; yet morally, at least negatively, whatever be the form it is limited to the rules of equity and justice, and must be none other than what hath the Lord's mould and sanction. But there is no institution any of these ways for tyranny. Hence, that power hath no institution from God, cannot be owned as his ordinance; but the power of tyrants is that power, being contrary in every respect to God's institution, and a mere deviation from it, and eversion of it: Ergo—To the minor it may be replied; though the power which tyrants may exercise, and usurpers assume, may be in concrete contrary to God's institution, and so not to be owned; yet, in the abstract, it may be acknowledged of God. It is but the abuse of the power, and that does not take away the use. We may own the power, though we do not own

the abuse of it. I answer, 1. I acknowledge the distinction as to magistrates is very pertinent; for it is well said by the congregation in a letter to the nobility, Knox's History of Scotland, Book 2. 'That there is a great difference betwixt the authority, which is God's ordinance, and the persons of these who are placed in authority; the authority and ordinance of God can never do wrong, for it commandeth that vice be punished, and virtue maintained; but the corrupted person placed in this authority may offend.'

It is certain, higher powers are not to be resisted; but some persons in power may be resisted. The powers are ordained of God; but kings commanding unjust things are not ordained of God to do such things; but to apply this to tyrants, I do not understand. Magistrates in some acts may be guilty of tyranny, and yet retain the power of magistracy; but tyrants cannot be capable of magistracy, nor any one of the scripture-characters of righteous rulers. They cannot retain that which they have forfeited, and which they have overturned; and usurpers cannot retain that which they never had. They may act and enact some things materially just, but they are not formally such as can make them magistrates, no more than some unjust actions can make a magistrate a tyrant. A murderer, saving the life of one and killing another, does not make him no murderer: once a murderer ay a murderer, once a robber ay a robber, till he restore what he hath robbed: so once a tyrant ay a tyrant, till he makes amends for his tyranny, and that will be hard to do. 2. The concrete does specificate the abstract in actuating it, as a magistrate in his exercising government, makes his power to be magistracy; a robber, in his robbing, makes his power to be robbery; an usurper in his usurping makes his power to be usurpation; so a tyrant in his tyrannizing, can have no power but tyranny. As the abstract of a magistrate is nothing but magistracy, so the abstract of a tyrant is nothing but tyranny. It is frivolous then to distinguish between a tyrannical power in the concrete, and tyranny in the abstract; the power and the abuse of the power: for he hath no power as a tyrant, but what is abused. 3. They that object thus, must

either mean, that power in it general notion is ordained of God, but this particular power abused by tyrants, and assumed by usurpers, is not ordained: or they must mean, that the very power of tyrants and usurpers is ordained of God, but the way of holding it and using it, is not of God. If the first be said, they grant all I plead for; for though the power in general be ordained, yet what is this to tyrants and usurpers? would not this claim be ridiculous for any man to say, God hath ordained governments to be, therefore I will challenge it? God hath ordained marriage, therefore any may cohabit together as man and wife, without formal matrimony. If the second be alledged, that the power of these prevailing dominators is ordained, but not their holding and using of it: this is nonsense, for how can a power be ordained, and the use of it be unlawful? For the abuse and use of tyrannical power is all one and reciprocal: an usurper cannot use his power but by usurpation.

Again, is it not plain, that the abstract and the concrete, the act or habit, and the subject wherein it is, cannot have a contrary denomination? if drunkenness and theft, lying or murder, be of the devil; then the drunkard, the thief, the liar, and the murderer, are of the devil too: so if tyranny and usurpation, or the use or abuse of tyrants and usurpers be of the devil, then most the tyrants and usurpers also be of him: none can say, the one is of the devil, and the other of God. Wherefore it is altogether impertinent to use such a distinction, with application to tyrants or usurpers, as many do in their pleading for the owning of our oppressors; for they have no power, but what is the abuse of power.

3. As that authority which is God's ordinance must have his institution; so it must have his divine constitution from himself and by the people. Wherever then there is authority to be owned of men, there must be these two, constitution from God and constitution from the people. For the first, God hath a special interest in the constitution of authority, both immediately

and mediately. Immediately, he declares such and such forms of government to be lawful and eligible, and does order whom, and who, and how people shall direct governors. And so, he confers royal graces, and endowments, and gifts for government on them, as on Joshua and Saul: so they become the Lord's anointed, placed and set on the throne of the Lord, 1 Chron. xxix. 23. and honoured with majesty, as his deputies and vicegerants, having their crown let on by God, Psal. xxi. 3. But in regard now he doth not by any special revelation determine, who shall be the governors in this or that place; therefore he makes this constitution by meditation of men, giving them rules how they shall proceed in setting them up. And seeing, by the law of nature, he hath enjoined government to be, but hath ordered no particular in it with application to singulars he hath committed it to the positive transaction of men, to be disposed according to certain general rules of justice. And it must needs be so; for first, without this constitution, either all or none would be magistrates: if he hath ordained civil power to be, and taken no order in whom it shall be, or how it shall be conveyed, any might pretend to it; and yet none would have it, more than another. If then he hath affixed it to a peculiar having and holding, by virtue whereof this man is enstated and entitled to the office, and not that man, there must be a law for constituting him in authority, which will discover in whom it is. 2. If it were not so, then resisting of a particular magistrate would not be a resisting of the ordinance of God, if a particular magistrate were not constitute of God, as well as magistracy is institute of God: for still it would be undetermined, who were the owner; and so it would be left as free and lawful for the resister to take the place, as for the resisted to hold it; the institution would be satisfied if any possessed it: therefore there must be constitution to determine it. 3. No common law of nature can put in practice, without particular constitution regulating it. That wives and children own their superior relations, is the law of nature; but there must be such a relation first fixed by human transaction, before they can own them;

there must be marriage authorized of God, there must be children begotten, and then the divine ordination of these relative duties take place. So the judges of Israel for four hundred and fifty years were given of God, Acts xiii. 20. not all by an immediate express designation, but a mediate call from God by men, as Jephthah; Judg. xi. 6, 11. Inferior judges also are magistrates appointed by God, yet they have their deputation from men. Our Saviour speaks of all magistrates, when he applies that of the 82 psalm to them, I said ye are gods; and shews how they were gods, because unto them the word of God came, John x. 35. that is, by his word and warrant he authorized them, not by immediate designation in reference to the most of them, but the word of God comes to them, or his constitution is past upon them, who are advanced by men according to his word. When men therefore do act according to the divine rule, in the moulding and erecting of government and governors, there the constitution is of God, though it be not immediate. And where this is not observed, whatever power (so named or pretended) there may be, or whatsoever persons there be that take upon them to be the power, and are not thereto appointed or therein instated, and do exercise such a power as God hath not legitimated, they are not a power ordained of God. Hence, whatsoever power hath no constitution from God, either immediate or mediate, cannot be owned: but the authority of tyrants and usurpers, is a power that hath no constitution from God, either immediate or mediate; therefore it cannot be owned. The major is cleared above. The minor is also undeniable: for, either they must pretend to an immediate constitution by revelation, that James duke of York a vassal of antichrist, had, by all his plots and pranks, merited the crown of Britain, and therefore must be constitute king; and this I hope they will not pretend to, except the Pope hath gotten such a revelation from Pluto's oracle; or they must have recourse to the mediate constitution by men: and if so, then either this mediate constitution of God is left undetermined, indefinitely and absolutely giving way to any that will assume what power they please and

can: and then, I confess tyrants may have a constitution; but this constitution cannot be of God; or else it is fixed by a rule, regulating the succession or constitution of the governors, and obliging the people to own the government so constituted, with exclusion and disallowance of any other. And so, if in that constitution there be a substantial deviation from the rule, as when incompetent or unallowed persons be the advancers of themselves, or others, into that place by illegal and sinistrous means, in as much as in that case there is the divine disapprobation, it may be said there is no ordinance of God, but a contradiction and contra-ordination to God's order. Gee's magist. origin. chap. 5. sect. 4. subject 3 page 135. This will shake off this of ours, and all other tyrants and usurpers, that come into the government, and hold it not according to God's rule.

4. It is clear also in the second place, that the authority which we can own out of conscience, must have constitution by the people. The special way by which men should be called into the place of sovereign power, may perhaps not be found so expressly defined in scripture, as mens call to the other ordinance of the ministry is; yet in this two things are essentially necessary to the constitution of a magistrate, the peoples consent and compact either formal and virtual. And without these we can own conscientious subjection and allegiance to no man living. That the first is necessary will be evident, from the law of nature and nations, and from scripture. First, The light and law of nature dictates, that the right and interest of constituting magistrates is in the elective vote or suffrage of the people. This will appear, 1. If we consider the original of government among men, especially after they were so multiplied, that there was a necessity of a reduction into diverse communities; which, whatever was before the flood, yet after it, behoved to be by a coalition with consent under an elective government. The scripture makes it more than probable, that the partition of commonwealths was in Peleg's days, in whole time the earth was divided, Gen. x. 2. occasioned by

the confusion of "languages at Babel, which did dissolve their union, and scatter them abroad upon the face of all the earth," Gen. xi. 9.

Then was it that we may conceive, as Buchanan says, *de jure regni apud Scot.* 'The time was when men dwelt in cottages and caves, and as strangers did wander to and fro without laws, and such as could converse together of the same language, assembled together as their humours did lead them or as some common utility did allure them, a certain instinct of nature did oblige them to desire converse and society.' But this confusion of languages, and communion of language, in several divided parcels, could not incorporate these several parties into communities; that behoved to be the effect of some other cause: and what should that be, but the joint will, consent and agreement of the severally languaged? It could not be by consanguinity; for there is no direction from nature for a confinement of that into such and such degrees, to make out the bonds of a common-wealth, or possibility of knowing all within such degrees; besides all within these degrees might not be of the same language. Now, the scripture says, they "were divided every one after his tongue, after their families, in their nations," Gen. x. 5. Next, it could not be by cohabitation: for how that must go to be the boundaries of a common-wealth, inclusively, or exclusively, is not defined by nature, nor can it be otherwise determined, than by human choice. Then, it could not be by mens belonging to such a sovereign: for, after that division and confusion, they could not all be under one sovereign, nor under the same that they were subject to before; and a sovereign cannot be before the aggregation of the subjects whereof he is head, they must first be a commonwealth before they can belong to it. Again, it cannot be founded upon the right of fatherhood: for, in that scattering, such a right could not be uninterruptedly preserved: and then Noah should also have been the universal magistrate, which he could not be in these multiplied secessions. And further, if it be refounded on the right of fatherhood, either every company had one common father over all, or every father made a

commonwealth of his own children: the latter cannot be said, for that would multiply commonwealths in infinitum: neither can the first be said; for, if they had one common father, either this behoved to be the natural father of all the company, which none can think was so happily ordered by Babel's confusion: or else the eldest in age, and so he might be incapable for government, and the law of nature does not direct that the government should alway be astricted to the eldest of the community: or else, finally, he behoved to be their political father, by consent. For, before this consent, they were unengaged as to common order of government; none of the community having any legal claim to sovereignty more than the rest. When therefore they were forced to conclude upon association, for their mutual preservation, they must be thought to act rationally, and not to make their condition worse, but rather better by that conclusion; and if they found it worse, to resume their radical right which they had conferred upon men subject to law, not to tyrannize over them: and in this case, certainly they had the power of choosing what kind of government suited most to their advantage, and would best preserve their liberties, and how far this should be extended, and who should be affirmed into this combination; still with a reservation of the privilege to their own safety, if their associates should not do their duty: and so they might also reserve to themselves a liberty to alter the form, when they found it productive of more prejudice than advantage, and never to leave their condition remediless; and to pitch upon this way of succession, and not another, the way of free election of every successor, or of definite election limited to one line, or to the nearest in line; and *e contra*, with a reserve still of their primeve privileges, to secure themselves from the inconveniences of that determination, or to change it; and to make choices of such a family and line, and not another, and whether the eldest always of that family, or the fittest is to be chosen; and however it be, yet still by the peoples consent: and in all this to have respect to some good, great and necessary ends, which, if they should be disappointed of, and find

these means useless or destructive to, they were to be loosed from their obligation to use or to own them. See *Jus populi vindicat.* chap. 5. p. 80, &c. 2. If we consider how nature determines the peoples interest in the constitution of governors: whence comes it that this man, and not that man, this race and family, and not that, is invested with that title? It will be found there is no title on earth now to the crowns, to families, to persons, but the peoples suffrage: for the institution of magistracy in general does not make James Stewart a king, no more than John Chamberlain: neither do qualifications make one, otherwise there might be many better than is this day extant; for there are many men better qualified: and there is no prophetic or immediate callings to kingdoms now: and as for conquest without consent, and having no more for a title, it is no better than royal Latrocinny.

It is certain, God would not command us to obey kings, and leave us in the dark, that we should not know him that hath a real call to it. And if he have not the peoples call, where shall we find another? It remains therefore they must have it from the people, who have it to give radically and virtually, having a power to preserve themselves, and to put it in the hands of one or more rulers, that they may preserve themselves by them. All men are born alike as to civil power (no man being born with a crown on his head) and yet men united in society may give it to this man, and not to that man; therefore they must have it virtually, for they cannot give what they have not. And as cities have power to choose their magistrates, so many cities have power to create an universal ruler over them all. The people also have power to limit the magistrates power with conditions; so that the present ruler shall not have so much prerogative as his predecessor, as royalists cannot deny, therefore they must have given that power which they can limit. See *Lex Rex*, quest. 4. p. 10. &c. 2dly, The scripture also gives light in this particular. 1. In giving directions and rules about their orderly calling their governors, empowering them to "take wise men, and

understanding, and known among their tribes, to be made rulers," Deut. i. 13. "To make judges and officers in all their gates," Deut. xvi. 18. "To set one among their brethren king over them, and not a stranger," Deut. xvii. 15. To what purpose are these rules given them, if they had no interest to choose their magistrates? Would God command them to set a king over them, if they had not power to do it? And to set such a man over them, and not such an one, if they had no influence in making one at all? And accordingly that wise statist says very well, 2 Sam. xvi. 18. Hushai to Absalom, nay, but whom the Lord and this people, and all the men of Israel choose, his will I be, and with him will I abide. Which will also hold in the negative, whom the Lord and the people, and all the men of the kingdom do not choose, his we will not be, nor with him will we abide. 2. The scripture expressly attributeth the making of kings to the people. All the people of Judah took Azariah, and made him king, instead of his father Amaziah, whom they had executed, 2 Kings xiv. 21. They came with a perfect heart to make David king in Hebron, 1 Chron. xii. 38. So they made Joash king, 2 Chron. xxiii. 11. 3. Even these that were particularly designed of God, and chosen to be rulers, yet were not formally invested with power, before the people conferred it upon them. Gideon was called of God to it, but was not judge, till the people said, Rule thou over us, both thou and thy son, giving him an hereditary right for his children, Judg. viii. 12. Saul was appointed to be king, and therefore Samuel honoured him, because he was marked out of God to be king, 1 Sam. ix. 24. and anointed him with oil, 1 Sam. x. 1. after which he was gifted and qualified for government. God gave him another heart, vers. 9. yet all this did not make him king, till the people met for his inauguration, vers. 17. &c. and crowned him, and made him king in Gilgal, 1 Sam. xi. last verse. David was anointed by Samuel, and yet was a persecuted fugitive for several years, and never acknowledged formally king, till the men of Judah came and anointed him, 2 Sam. ii. 4. for if he had been king before, then there were two kings in Israel at one time, and

David failed of his royal duty, in not punishing the murderer Saul; whereas himself says, he would not touch the Lord's anointed. Therefore the people made all kings, and that by choice and consent, without which they were no kings. Hence I argue, if the consent and choice of the people be so essentially necessary to the making of kings, then they who set up themselves against the consent of the body of the land, and without the choice of any, must be usurpers, not to be acknowledged for lawful kings; but the former is true, as is proven above: therefore.—Now plain it is, that this duke set up himself against the consent of the body, being excluded from the government by the representatives of England, and generally hated of all; who disdaining to wait upon the formal choice of any, but after he had paved his passage to the throne upon his brother's blood, did usurp the title without all law.

5. The second thing necessary for the legal constitution of a king by the people, is their compact with him: which must either be express or tacit, explicit or implicit. Two things are here to be proven, that will furnish an argument for disowning both the brothers. First, that there must be a conditional reciprocally obliging covenant between the sovereign and the subjects, without which there is no relation to be owned. Secondly, that when this compact is broken in all or its chiefest conditions by the sovereign, the peoples obligation ceases. The first I shall set down, in the words of a famous author, our renowned countryman Buchanan, in his dialogue '*de jure regni apud scotos*. There is then (or there ought to be) a mutual compact between the king and his subjects', &c. That this is indispensibly necessary and essential to make up the relation of sovereign and subjects, may be proved both from the light of nature and revelation.

First, It may appear from the light of natural reason. 1. From the rise of government, and the interest people have in erecting it by consent and choice (as is shewed above) if a king cannot be without the peoples making,

then, all the power he hath must either be by compact or gift: if by compact, then we have what we proposed: and if by gift: then if abused, they may recal it; or if they cannot recover it, yet they may and ought to hold their hand, and give him no more that they may retain, that is, no more honour or respect, which is in the honourer before the honoured get it. Can it be imagined, that a people acting rationally, would give a power absolutely, without restrictions, to destroy all their own rights? Could they suppose this boundless and lawless creature, left at liberty to tyrannize, would be a fit mean to procure the ends of government? for this were to set up a rampant tyrant to rule as he listeth, which would make their condition a great deal worse than if they had no ruler at all, for then they might have more liberty to see to their safety. See *jus populi*, chap. 9. pag. 96, 97. 2. This will be clear from the nature of that authority, which only a sovereign can have over his subjects; which, whatever be the nature of it, it cannot be absolute, that is against scripture, nature, and common sense, as shall be proven at more length.

That is to set up a tyrant, one who is free from all conditions, a roaring lion and a ranging bear to destroy all if he pleases. It must be granted by all, that the sovereign authority is only fiduciary, entrusted by God and the people with a great charge: a great pledge is impawned and committed to the care and custody of the magistrate, which he must take special care of, and not abuse, or waste, or alienate, or sell: (for in that case, royalists themselves grant he may be deposed.) He is by office a patron of the subjects liberties, and keeper of the law both of God and man, the keeper of both tables. Sure, he hath no power over the laws of God, but a ministerial power, he may not stop and disable them as he pleases; of the same nature is it, over all other parts of his charge. He is rather a tutor, than an inheritor and proprietor of the commonwealth, and may not do what his pupil's interest, what he pleases. In a word, the nature and whole significancy of his power lies in this, that he is the nation's public servant, both objectively

in that he is only for the good of the people, and representatively in that the people hath impawned in his hand all their power to do royal service. The scripture teaches this, in giving him the titles of service, as watchmen, &c. allowing him royal wages for his royal work, Rom. xiii. he is God's minister attending continually on this thing.

There is his work, for this cause pay you tribute also. There is his wages and maintainance. He is called so in that transaction with Rehoboam; the old men advised him to be a servant unto the people, then they should be his servants, 1 Kings xii. 7. There was a conditional bargain proposed: as to be a servant, or tutor, or guardian upon trust, always implies conditions and accountableness to them that entrust them. 3. It must needs be so, otherwise great absurdities would follow. Here would be a voluntary contracted relation, obliging us to relative duties, to a man that owed none correlative to us, and yet one whom we set over us. It were strange, if there were no condition here; and no other voluntarily susceped relations can be without this, as between man and wife, master and servant, &c. This would give him the disposal of us and ours, as if both we and what we have were his own, as a man's goods are, against which he does not sin whatever he doth with them. So this would make a king that could not sin against us; being no ways obliged to us, for he can no otherwise be obliged to us, but upon covenant conditions; he may be obliged and bound in duty to God otherwise, but he cannot be bound to us otherwise: and if he be not bound, then he may do what he will, he can do no wrong to us to whom he is noways bound. This also is point blank against the law of God, which is the second way to prove it, by the light of revelation or scripture. 1. In the very directions about making and setting up of kings, the Lord shews what conditions shall be required of them, Deut. xvii. 15. &c. and in all directions for obeying them, the qualifications they should have are rehearsed, as Rom. xii. 3, 4. Therefore none are to be set up but on these conditions, and none are to be obeyed but such as have these qualifications.

2. In his promises of the succession of kings, he secures their continuation only conditionally, to establish the kingdom, if they be constant to do his commandments and judgments, 1 Chron. xxviii. 7. There shall not fail a man to sit upon the throne, yet so that they take heed to their way to walk in God's law, as David did, 2 Chron. vi. 16.

Now he was not otherwise to perform these promises, but by the action and suffrage of the people setting him up, (which he had appointed to be the way of calling kings to thrones,) if therefore the Lord's promise be conditional, the people's actions also behoved to be suspended upon the same conditions. 3. We have many express covenants between rulers and subjects in scripture. Jephthah was fetched from the land of Tob, and made the head of the Gileadites by an explicit mutual stipulation, wherein the Lord was invocated as a witness, Judg. xi. 6, 8, 9, 10, 11. So all the elders of Israel came to make David king; and king David made a league with them in Hebron before the Lord, and then they anointed him over Israel, 2 Sam. v. 3. he made there a covenant with them before the Lord, 1 Chron. xi. 3.

He was no king before this covenant, and so it was a pactional oath between him and the kingdom, upon terms according to the law, Deut. xvii. He was only a king in fieri; one who was to be king, but now actually inaugurate a covenanted king upon terms that sanctified them. It is true, they came to recognise Rehoboam's rights, and came to Shechem to make him king, 1 Kings xii. 1. and yet when he would not enter in covenant-terms with them, to satisfy their just demands, the people answered the king, saying, what portion have we in David, neither have we inheritance in the son of Jesse, to your tents, O Israel, vers. 16. They refused to acknowledge such an usurper, and we find no prophets ever condemning them for it. So when Jehoash or Joash was crowned, Jehoiada made a covenant between the Lord and the king and the people, between the king also and the people,

2 Kings xi. 17. 2 Chron. xxiii. 11, 16. From all these reasons and scriptures, it is clear, there must be a mutual compact between the subjects and every sovereign they own subjection to, which if he refuse, and usurp the sword, they are under an anterior obligation to subtract their allegiance, and to make use of their sword, if they be in capacity to pull it out of his hands, and use it against him. And of this we are put in mind by the motto of our old coronation pieces, which have these words about the sword, 'for me, but, if I deserve, against me:' and surely to him that hath it now in his hands, it may be said, thou hast deserved, and as yet deserves. We see then, the allegiance that this usurper alledges is his due, wants a bottom, to wit, a compact with the people. Whence I argue, if there must of necessity be a compact between the king and the people, when he is advanced to the government: then he that advances himself, without and against this compact, is an usurper not to be owned; but the former is true: therefore he that advances himself without and against this compact, is an usurper not to be owned. And who more notoriously deserving such a signature, than James VII. and II. who hath made horns of his own strength, or the Pope's bulls, to push his brother out and himself into the throne, upon no terms at all, or any security for religion and liberty. One objection is to be removed here: can the customs of the Jews be binding to all nations? The kings of Judah made such covenants, shall therefore all kings do so? *Answ.* Why not this custom, as well as crowning, which they used likewise? These rules are not typical or ceremonial, nor only so judicial as to be peculiarly judicial, but are matters of moral equity, bearing a standing reason founded upon that law, Deut. xvii. 15. &c. limiting the prince to stand to conditions. If we cast at divine laws for rules of government where will we find better laws? It is recorded of the first of the British kings who was Christian, that writing to Eleutherius bishop of Rome, (before Antichrist took that seat) for the Roman laws, he received this answer: 'By divine clemency ye have received the law and faith of Christ, you have the Old and New Testaments, out of

them in God's name by counsel of your states take laws, and govern your kingdom.' And of another, that he began his laws thus. God spake all these words, &c. And so repeated the laws of God. The second thing I undertook to prove, is that assertion of Buchanan ubi supra, de Jure Regni. 'There being a paction between the king and subjects, he who first recedes from what is covenanted, and doth counteract what he hath covenanted, he looses the contract; and the bond being loosed which did hold fast the king with the people, whatever right did belong to him by virtue of that compact, he looses it, and the people are as free as before the stipulation.' Which is also asserted by the author of Jus populi, chap. 6. pag. 112. 'It is no less clear, that when the sovereign doth not perform the principal, main, and most necessary conditions, condescended and agreed upon, by right he falleth from his sovereignty: and pag. 117. when the prince doth violate his compact, as to all its conditions, or as to its chief, main, and most necessary condition, the subjects are by right free from subjection to him, and at liberty to make choice of another.' This is so clear that it needs no labour to prove it, that, upon this head, we were loosed from all allegiance to the former tyrant, who was admitted upon terms of an explicit covenant, the conditions whereof he did as explicitly break.

There are two cases wherein subjects are loosed from covenanted allegiance to their princes. 1. When the prince remits the obligation of the subjects, and refuses allegiance upon that basis; then he can no more demand it by virtue of that compact. He that remits, and will not have that allegiance, that the subjects covenanted upon such and such conditions to him, these subjects should not give it that they so covenanted, for they should not prostitute it to a refuser and remitter: but Charles the II. remitted and would not have that allegiance, which we covenanted upon such and such conditions, viz. upon the terms of the covenant, which he cassed and annulled and made criminal to own: therefore to him we should not have given it, which we so covenanted. 2. When the prince doth enter into a

mutual covenant with the people upon mutual conditions, and does not only cease to perform the conditions, but simply denies all obligation to do it, and makes it a quarrel to insinuate so much, yea persecutes all who dare assert the obligation of that covenant; and yet demands allegiance, not upon the obligation of that covenant which he hath remitted, but absolutely upon the grounds of his prerogative: in this case it will be evident also, the subjects are not bound either to own their formerly covenanted allegiance to him, or that which he demands on other grounds. Grotius de Jure belli, is clear as to this, lib. 1. cap. 4. num. 12. 'If there be such a clause or condition in the very devolution of the government upon a prince, as if he do so and so, the subjects shall be loosed from all bonds of obedience, then, when he does so, he becomes a mere private person.' Grotius there supposes the power is transferred upon a resolute condition; that is, if he transgress the condition, the power shall be resolved into its first fountain: much more if it be transferred expressly also upon a suspensive condition, that he shall continue to maintain the ends of the covenant, defend religion and the liberties of the subjects, in the defence whereof we shall own allegiance to him, otherwise not. In that case, if he do not maintain these ends, plain it is, our obligation ceases; for how can it stand upon a conditional obligation, when his performance of the condition sists? But whatever be the conditions mutual, it flows natively from the nature of a mutual compact, 'That he who doth not perform the conditions agreed upon, hath no right to the benefit granted upon condition of performance of these conditions; especially if he perform not, or violate these conditions upon supposition whereof he would not have gotten the benefit: it were very absurd to say in a mutual conditional compact, one party shall still be found to perform his conditions, though the other perform none, but break all. Were it the act of rational creatures to set up a sovereign, upon conditions he shall not play the tyrant, and yet be bound to him though he tyrannize never so much? We have the name of mutual compacts in the spies covenant with Rahab, Josh.

ii. 20. "If thou utter this our business, then we will be quit of thine oath, which thou hast made us to swear:" if she should break, condition, then the obligation on their part should cease. But next, all the stress will ly in proving that the covenant, on such and such conditions between a prince and subjects, doth equally and mutually oblige both to each other: for if it equally oblige both, then both are equally disengaged from other by the breach on either side, and either of them may have a just claim in law against the other for breach of the conditions. But royalists and court slaves alledge, that such a covenant obliges the king to God, but not to the people at all: so that he is no more accountable to them, than if he had none at all. But the contrary is evident: for, (1.) If the compact be mutual, and if it be infringed on one side, it must be so in the other also; for in contracts, the parties are considered as equals, whatever inequality there may be betwixt them otherwise: I speak of contracts among men. (2.) If it be not so, there is no covenant made with the people at all: and so David did no more covenant with Israel, than with the Chaldeans: for to all with whom the covenant is made it obliges them to it. Otherwise it must be said, he only made the covenant with God, contrary to the text: for he made it only before the Lord as a witness, not with him as a party. Joash's covenant with the Lord is expresly distinguished from that with the people. (3.) If it be not so, it were altogether nonsense to say, there were any covenant made with the king on the other hand: for he is supposed to be made king on such and such terms: and yet, by this, after he is made king he is no more obliged unto them, than if there had been no compact with him at all. (4.) If he be bound as king, and not only as a man or Christian, then he is bound with respect to the people; for with respect to them he is only king: but he is bound as king, and not only as a man or Christian, because it is only with him as king that the people covenant, and he must transact with them under the same consideration. Next, that which he is obliged to, is the specifical act of a king, to defend religion and liberty, and rule in righteousness; and

therefore his covenant binds him as a king. Again, if he be not bound as king, then as a king he is under no obligation of law or oath, which is to make him a lawless tyrant; yea, none of God's subjects. It would also suppose that the king as king could not sin against the people at all, but only against God: for as king he could be under no obligation of duty to the people, and where there is no obligation, there is no sin; by this he would be set above all obligations to love his neighbour as himself, for he is above all his neighbours, and all mankind, and only less than God; and so by this doctrine, he is loosed from all duties of the second table, or at least he is not so much obliged to them as others. But against this it is objected: both prince and people are obliged to perform their part to each other, and both are obliged to God, but both are not accountable to each other; there is not mutual power in the parties to compel one another to perform the promised duty; the king hath it indeed over the people, but not the people over the king, and there is no indifferent judge superior to both, to compel both, but God. Ans. 1. What if all this should be granted? Yet it doth not infringe the proposition: what if the people have not power to compel him? Yet, if by law, he may fall from his sovereignty, though, indeed, he is not deposed: he loses his right to our part, when he breaks his part. 2. There is no need of a superior arbiter: for as in contracting they are considered as equal, so the party keeping the contract is superior to the other breaking it. 3. There may be mutual co-active power, where there is no mutual relation of superiority and inferiority: yea, in some cases, inferiors may have a co-active power by law, to compel their superiors failing in their duty to them; as a son wronged by his father, may compel him to reparation by law; and independent kingdoms, nothing inferior to each other, being in covenant together, the wronged may have a co-active power to force the other to duty, without any superior arbiter. 4. The bond of suretiship brings a man under the obligation to be accountable to the creditor, though the surety were never so high, and the creditor never so low: Solomon says, in general,

without exception of kings; yea, including them because he was a king that spake it, Prov. vi. 1, 2. "My son, if thou be surety for thy friend,—thou art snared with the words of thy mouth." Now a king's power is but fiduciary; and therefore he cannot be unaccountable for the power concredited to him. And if this generation had minded this, our stewards should have been called to an account for their stewardship ere now. Hence I argue, if a covenanted prince, breaking all the conditions of his compact, doth forfeit his right to the subjects allegiance, then they are no more to own him as their sovereign; but the former is proved, that a covenanted prince, breaking all the conditions of his compact, doth forfeit his right to the subjects allegiance: Therefore—And consequently when Charles II. expresly bound by covenant to defend and promote the covenanted reformation and liberties of the kingdom, to whom only we were bound in the terms of his defending and promoting the same, did violently and villainously violate and vilify these conditions, we were no more bound to them. Somewhat possibly may be objected here, 1. If this be the sense of the covenant, then it would seem that we were not bound to own the king, but only when and while he were actually promoting and carrying on the ends of the covenant. *Ans.* It does not follow, but that we are obliged to preserve his person and authority in these necessary intervals, when he is called to see to himself as a man; for we must preserve him as a mean, because of his aptitude and designation for such an end, albeit not always formally prosecuting it: we do not say, that we are never to own him, but when actually exercised in prosecuting these ends: but we say, we are never to own him, when he is tyrannically and treacherously abusing his authority for destroying and overturning these ends, and violating all the conditions of his compact. It may be. Object. 2. Saul was a tyrant, and a breaker of his royal covenant, and persecutor of the godly, and murderer of the priests of the Lord, usurper upon the priest's office, and many other ways guilty of breaking all conditions: and yet David and all Israel owned him as the

anointed of the Lord. *Ans.* 1. Saul was indeed a tyrant, rejected of God, and to be ejected out of his kingdom in his own time and way, which David, a prophet knowing, would not anticipate. But he was far short, and a mere bungler in acts of tyranny in comparison of our grassators: he broke his royal covenant in very gross particular acts, but did not cass and rescind the whole of it, did not burn it, did not make it criminal to own its obligation, nor did he so much as profess a breach of it, nor arrogate an absolute prerogative, nor attempt arbitrary government, nor to evert the fundamental laws, and overturn the religion of Israel, and bring in idolatry as ours have done: he was a persecutor of David upon some private quarrels, not of all the godly upon the account of their covenanted religion: he murdered 85 priests of the Lord, in a transport of fury, because of their kindness to David; but he did not make laws adjudging all the ministers of the Lord to death, who should be found most faithful in their duty to God and his church, as ours have done against all field preachers: he usurped upon the priest's office, in one elicited act of sacrificing: but he did not usurp a supremacy over them, and annex it as an inherent right of his crown. 2. He was indeed such a tyrant, as deserved to have been dethroned and brought to condign punishment, upon the same accounts that Amaziah and Uzziah were deposed for afterwards: and in this the people failed in their duty, and for it they were plagued remarkably. Shall their omission be an argument to us? 3. As the question was never put to the people, whether they owned his authority as lawful, or not? So we do not read, either of their universal owning him, or their positive disowning him: however, that is no good argument, which is drawn from a not doing to a doing; because they did it not, therefore it must not be done. 4. They owned him; but how? As the minister of God, not to be resisted or revolted from under pain of damnation? (as all lawful magistrates ought to be owned, Rom. xiii. 2, 4.) This I deny: for David and his six hundred men resisted him resolutely; and though the body of the nation did long lazily ly and couch as asses under his

burden, yet, at length, weary of his tyranny, many revolted from under him, and adjoined themselves to David at Ziklag, "while he kept himself close, because of Saul the son of Kish," 1 Chron. xii. 1. who are commended by the Spirit of God for their valour, verse. 2. &c. "and many out of Manasseh fell to him, when he came with the Philistines against Saul, to battle," verse 19. This was a practical disowning of the tyrant, before the Lord deposed him. 5. David did indeed pay him and his character some deference, as having been the anointed of the Lord; yet perhaps his honouring him with that title, the Lord's anointed, 1 Sam. xxiv. 1 Sam. xxvi. and calling him so often his Lord the King, cannot be altogether justified, no more than his using that same language to Achish king of Gath, 1 Sam. xxix. 8. I shewed before how titles might be allowed; but this so circumstantiate, does not seem so consistent with his imprecatory prayer, for the Lord's avenging him on him, 1 Sam. xxiv 12. and many other imprecations against him in his Psalms. In some of which he calls the same man, whom here he called, Psal. lix. 63, 14. and the evil, violent and wicked man, Psal. cxi. 1, 4. and the vilest of men, Psal. xii. ult. However it be, there can be no argument from hence, to own the authority of tyrants and usurpers.

6. Though this necessary conditional compact, which must always be in the constitution of lawful rulers, be not always express and explicit, so that a written authentic copy of it cannot be always produced; yet it is always to be understood, implicitly at least, transacted in the ruler's admission to the government, wherein the law of God must regulate both parties; and when he is made ruler, it must be understood that it is upon terms to be a father, feeder, and protector, and not a tyrant, murderer and destroyer. All princes are so far pactional, that they are obliged by the high and absolute Sovereign from whom they derive their authority, to reign for the peace and profit of the people. This is fixed unalterably by the laws of the supreme legislator, and solemnly engaged unto at the coronation: and whosoever declines or destroys this fundamental condition, he degrades and deposes

himself. It is also not only the universal practice, but necessary for the constitution and conservation of all commonwealths, to have fundamental laws and provisions about government, both for the upholding, and transmitting and transferring it, as occasion calls, and preventing and punishing violations thereof, that there be no invasion or intrusion upon the government; and if there be any entrance upon it not according to the constitution, that it be illegitimated, and the nation's liberties always secured. This doth infer and regulate a conditional compact with all that are advanced to the government, albeit it should not be expressed. For it is undeniable that in the erection of all governors, the grand interests of the community must be seen to, by legal securities for religion and liberty, which is the end and use of fundamental laws. Now, how these have been unhinged and infringed, by the introduction and present establishment by law of that monster of the prerogative, enacted in Parliament *anno* 1661, the apologetic relation doth abundantly demonstrate, lect. 10. Concerning the King's civil supremacy, enhancing all the absoluteness that ever the Great Turk could arrogate, and yet far short of what hath been usurped since, and impudently proclaimed to the world; especially by him who now domineers, in his challenges of sovereign authority, prerogative royal, and absolute power, which all are to obey without reserve; whereby the whole basis of our constitution, and bulwark of our religion, laws and liberty, is enervated, and we have security of no law but the king's lust. Hence I argue, those princes that, contrary to their virtual compact (at least) at their coming to the crown, overturned all fundamental laws: Ergo they cannot be owned. The major is plain; for they that overturn fundamental laws are no magistrates; thereby all the ends of government being subverted, and the subverter cannot be owned as a father or friend, but an open enemy to the commonwealth, nor looked upon as magistrates doing their duty, but as tyrants, seeking themselves with the destruction of the commonwealth. And in this case, the compact, the ground of the constitution, being violated,

they fall from their right, and the people are liberated from their obligation; and they being no magistrates, the people are no subjects; for the relation is mutual, and so is the obligation, *Jus populi*, chap. 9. page 183. The minor is manifest, both from the matter of fact, and the mischiefs framed into laws, by the sovereign authority, prerogative royal, and absolute power foresaid: whereby what remains of our fundamental constitutions, either in religious or civil settlements, unsubverted as yet, may be subverted when this absolute monarch pleases. Which absolute authority we cannot in conscience own, for these reasons, taken both from reason and scripture. First, It is against reason, 1. A power contrary in nature cannot be owned; absolute power is such: for that which takes away, and makes the people to give away their natural power of preserving their lives and liberties, and sets a man above all rule and law, is contrary to nature: such is absolute power, making people resign that which is not in their power to resign, an absolute power to destroy and tyrannize. 2. A power contrary to the first rise of its constitution cannot be owned; absolute power is such: for the first rise of the constitution is a people's setting a sovereign over them, giving him authority to administer justice over them: but it were against this, to set one over them with a power to rage at random, and rule as he lists. It is proven before, a king hath no power but what the people gave him; but they never gave, never could give an absolute power to destroy themselves. 3. That power which is against the ends of government cannot be owned; absolute power is such: for that which will make a people's condition worse than before the constitution, and that mean which they intended for a blessing to turn a plague and scourge to them, and all the subjects to be formal slaves at the prince's devotion, must needs be contrary to the ends of government; but absolute power is such: for against the exorbitance thereof, no means would be left to prevent it obstructing all the fountains of justice, and commanding laws and lawyers to speak; not justice, righteousness, and reason; but the lust and pleasure of one man, turning all into anarchy and confusion:

certainly it could never be the intention either of the work or workers, at the constitution of government, to set up a power to enslave the people, to be a curse to them, but their ends were to get comfort, safety and liberty, under the shadow of government. 4. That power which invalidates, and is inconsistent with the king's compact with the people, cannot be owned; absolute power is such: for the tenor of that is always to secure laws and liberties, to rule according to law; but to be absolute invalidates, and is inconsistent with that: that which were an engagement into contradictories cannot consist with that compact; but to engage to be absolute, and yet to rule by law, is an engagement into contradictories, which no people could admit for a security. It is inconsistent with this compact, to give the king absolute power to overturn religion and liberty; and to assume that which was never given, were to invalidate this compact, and to make himself no king; but to restore unto the people the power they conferred upon him for the defence of religion and liberty. 5. That power which is not from God, nor of God, cannot be owned; but absolute power is not of God; because it is a power to tyrannize and sin, which, if it were of God, he should be the author of sin; for if the moral power be of God, so must the acts be; but the acts of absolute power being lawless, cannot be from God: Ergo, neither the moral power to commit these acts. 6. That ruler who cannot be God's minister for the people's good, cannot be owned; (for that is the formal reason of our conscientious subjection to rulers, Rom. xiii. 4, 5.) But absolute sovereigns are such as cannot be God's ministers for the people's good; for if they be God's ministers for good, they must administer justice, preserve peace, rule by law, take directions from their master; and if so, they cannot be absolute. 7. A tyrant in the signal act and exercise cannot be owned; but an absolute prince is such; being a power that may play the tyrant if he pleases, and by law as king; and so if kings be by action tyrants, then people are by action slaves; and so royal power cannot be a blessing to them; yea, a lawless breaker of all bonds, promises, and oaths, cannot be

owned as lawful power; but absolute power is such: for, it cannot be limited by these obligations, at least people cannot have any security by them. 8. A lawless power is not to be owned; an absolute power is a lawless power: ergo, not to be owned. The major is plain. Cicero says, lib. 2. 'The reason of making laws was the same, as of the creation of kings.' And Buchanan, de Jure Regni, very excellently, when 'the lust of kings was instead of laws, and being vested with an infinite and immoderate power, they did not contain themselves within bounds.—The insolency of kings made laws to be desired; for this cause laws were made by the people, and kings constrained to make use, not of their licentious wills in judgment, but of that right and privilege which the people had conferred upon them, being taught by many experiences, that it was better that their liberty should be concredited to laws, than to kings; better to have the law, which is a dumb king, than a king, who is not a speaking law.' If then laws be necessary for the making of kings, and more necessary than kings, and the same cause requires both, then a king without laws is not to be owned. A king must be a speaking and living law, reducing the law to practice. So much then as a king hath of law, so much he hath of a king; and he who hath nothing of the law, hath nothing of a king. Magna charta of England saith, 'The king can do nothing but by law, and no obedience is due to him but by law.' Buchanan rehearses the words of the most famous emperors, Theodosius and Valentinianus, to this effect, 'It is,' say they, 'a word worthy of the majesty of a king, to confess he is a tied prince to the laws; and indeed it is more to submit a principality to the laws, than to enjoy an empire.' But now that an absolute power must be a lawless power, is also evident; for that is a lawless power that makes all laws void, needless and useless; but such is absolute power: for it cannot be confined to the observance of laws. 9. That power which is destructive to the people's liberties cannot be owned; absolute power is such: for such a licentious freedom as is absolute cannot consist with the people's liberties; for these may infringe when he pleases.

Now these, in their own nature, and in all respects, being preferable to the king's prerogative, and it being no prerogative which is not consistent with, yea in its own nature adapted to, the precious interests of religion and liberty: when the king's absolute authority is stated in contradictory terms to these, we cannot own that authority; for now he hath another authority than could be given him for the preservation of these interests; in the preservation whereof he can only have an authority to be owned, seeing he claims a power to destroy them, if he please. 10. If we should own absolute authority, then we should own a royal prerogative in the king to make and dispense with laws: now that cannot be owned; for, it would infer that the king had a masterly dominion over his subjects, to make laws, and inflict penalties without their consent.

And plain it is, they that make kings must have a co-ordinate power to make laws also; but the people, in their representatives, make kings, as is proven. Next, a prerogative to dispense with laws, except such laws as are in their own nature dispensable, without prejudice to any law of God or liberties of men, cannot be owned: for any power to dispense with reason and law, not grounded on any other reason but mere will and absolute pleasure, is a brutish power. It cannot be a right annexed to the crown, to do so; for a king, as a king, can do nothing but what he may do by law. Nay, this is not only a brutish power, but a blasphemous power, making him a kind of god on earth, illimited, that can do what he pleases: and to dispute it further, were to dispute whether God hath made all under him slaves by their own consent? or, whether he may encroach on the prerogative of God or not? By this prerogative, he arrogates a power to dispense with the laws of God also, in pardoning murderers, &c. which no man hath power to do; the law of God being so peremptorily indispensable. Gen. ix. 6. "Whoso sheddeth man's blood, by man shall his blood be shed." Numb. xxxv. 30, 31. "Whoso killeth any person, the murderer shall be put to death— Moreover, ye shall take no satisfaction for the life of a murderer, but he

shall be surely put to death." These pardons are acts of blood to the community. If the judgment be God's, as it is, Deut. i. 17. and not for man, but for the Lord, 2 Chron. xix. 6. then no king can arrogate a power to dispense with it, no more than an inferior judge can dispense with the king's laws; for the king is but a minister, bearing the sword, not in vain, but as a revenger, to execute wrath upon them that do evil, Rom. xiii. 4. They are but bastard kings who give out sentences out of their own mouth, contrary to God's mind.

And if he may do acts of grace by prerogative above law, then may he also do acts of justice (so pretended) by the same prerogative; and so may murder innocents, as well as pardon murderers; he may condemn the just, as well as justify the wicked; both which are alike abomination to the Lord, Prov. xvii. 15. This power cannot be owned in any man. 11. To own absolute power, were to recognise the king as the proper and sole interpreter of the law. This Buchanan shews to be very absurd, 'When you grant the interpretation of laws to a king, you give him such a license, that the law should not speak what the lawgiver meaneth, but what is for the interpreter's interest; so that he may turn it to all actions, as a Lesbian rule, for his own advantage; and so what he pleases the law shall speak, and what he will not, it shall not speak.' Now the king's absolute pleasure can no more be the sense of the law, than it can be the law itself: he is king by law, but he is not king of law; no mortal can make a sense to a law, contrary to the law; for it involves a contradiction: the true meaning is only the law. This also would take away the use of all laws; for they could not declare what were just and unjust, but as the king pleased: their genuine sense could not be the rule. 12. If we own the law to be above the king, then we cannot own the king to be absolute; but the former is true; for he must be under it several ways: (1.) Under its directive power; that will not be denied. (2.) Under its constitutive power; he is not a king by nature, but by constitution and law: therefore the law is above the king; because it is only from the law

that there is a king, and that such a man and not another is king, and that the king must be so and so qualified, and they that made him a king, may also unmake him by the same law. (3.) Under its limiting and restrictive power, as a man he cannot be absolute, nor as a king by law. (4.) Under its co-active power. A lawmaker, said king James the VI. should not be a law-breaker: but if he turn an overturner of the fundamental laws, that law or covenant that made him king, doth oblige to unmake him. Whatever power he hath, it is only borrowed fiduciary power, as the nation's public servant: and that which was lent him in pledge or pawn may be reclaimed, when abused by him.

Especially if he turn parricide, kill his brother, murder his nobles, burn cities, then he may and ought to be punished by law. Otherwise God should have provided better for the safety of the part than of the whole, though that part be but a mean for the safety of the whole: for if he turn a tyrant in his absoluteness, the people must be destroyed, if they may not repress him: thus he is secured, and the whole exposed to ruin. Yea, if he be a man, as well as a king, he must be under rule of law; and when he transgresses, either his transgressions are punishable by men, or they are not transgressions with men. See many arguments to this purpose in *Lex Rex*, quest. 14, 19, 22, 23, 24, 26, 27. But secondly, I prove it by scripture, 1. Even as a king he is regulated by law, not to multiply horses, nor wives, nor money, but to keep the words of the law, and not lift up himself above his brethren, Deut. xvii. 16, 17, 19, 20. he must observe to do according to the law, and not turn from it to the right hand or to the left, Josh. i. 7. therefore he must not be absolute. 2. He is certainly under that law, Matth. vii. 12. Whatsoever ye would that men should do to you, do you even so to them: which is the universal fundamental law. If then he would have us keeping in our line of subordination to him, he must keep his line, and so cannot be absolute. 3. What is God's due and peculiar prerogative, can be owned in no mortal; but absolute power is God's due and peculiar prerogative. He alone

does whatsoever pleases him, Psal. cxv. 3. He alone worketh all, things after the counsel of his own will, Eph. i. 11. Acts or commands founded upon the sole pleasure of the agent, are proper to God. It is God's will and not the creature's that can make things good or just. It is blasphemy therefore to ascribe absolute power to any creature. 4. That which the Spirit of God condemned as a point of tyranny in Nebuchadnezzar, that is no prerogative to be owned; but the Spirit of God condemned this in him, proceeding from absolute power, that whom he would he slew, and whom he would he kept alive, whom he would he set up, and whom he would he put down. And his heart was lifted up, Dan. v. 19, 20. 5. That which God condemns and threatens in tyrants in the word in general, cannot be owned; but absolute power God condemns and threatens in the word in general; that they "turned judgment into gall," and said, "Have we not taken to us horns by our own strength?" Amos vi. 12, 13. 6. The word of God speaks nothing of the king's absolute prerogative, to make laws as he will. It is plain the king of Judah had it not: but the Sanhedrim had a great part of the legislative power, and of the punitive power in a special manner: the princes and people had it by Jeremiah's acknowledgement, Jer. xxvi. 14. And Zedekiah confesses to them, The king is not he that can do any thing against you, Jer. xxxviii. 5. 7. We find the king in scripture had not an absolute power, to expone or execute the law as he would; Saul made a law, 1 Sam. xiv. 24. Cursed be the man that eats any food until the evening. But expounding it, and thinking to execute it after a tyrannical manner, he was justly resisted by the people, who would not let him kill innocent Jonathan. 8. Nor had he the sole power of interpreting it; for inferior judges were interpreters, who are no less essential judges than the king who are set to judge for the Lord, and not for the king, 2 Chron xix. 6. and therefore they were to expone it according to their own conscience, and not the king's. They were to speak righteousness and judge uprightly, Psal. lviii. 1. hence called gods as well as kings, Psal. lxxxii. 1.

There was no essential difference between a king of God's approving, and a judge; there being but one law to both, Deut. xvii. 9. He was subject to judgment as well as others: for being but a brother, even while on the throne, who was not to lift up his heart above his brethren, Deut. xvii. ult. When this cause was to be judged, his person, though never so great, was not to be respected: nor were they to be afraid of the face of man, for the judgment was God's, Deut. i. 17. therefore the judges were to give out sentence in judgment, as if the Lord were to give it out: there was no exception of kings there. Yea we find, according to common law, they judged and punished offending kings, as shall be made appear: 10. If they were under church censures, then they were not absolute; but we find kings were under church censures; not only rebuked sharply to their face, of which we have many instances; but also subjected to church discipline, as Uzziah shut up for his leprosy.

And certainly at all times this must be extended to all: for the king is either a brother, or not: if not, then he should not be king, according to the scripture, Deut. xvii. 15. then also he is not a Christian, nor can he say the Lord's prayer: if he be, then if a brother offend, he is subject to the church, Matth. xviii. there is no exceptions of kings there. The objection from Eccles. viii. 3, 4.—he doth whatsoever pleaseth him, where the word of a king is, there is power, and who may say unto him, What dost thou? is of no significancy here. For, 1. This argument will enforce absolute obedience, if the power be to be taken absolutely; for it is obedience that is there commanded: and so we must not only own the absolute authority, but obey it without reserve, which never any yet had the impudence to plead for, until James the unjust claimed it in a Scots proclamation: but we answer, It is better to obey God than man. 2. If he may do whatsoever pleases him, then he may turn priest, then he may kill whom he pleases, and take possession; and yet for Saul's usurpation Samuel could say more than what dost thou? even to tell him, he had done foolishly, and his kingdom should not

continue, 1 Sam. xiii. 13, 14. And for Ahab's tyranny, Elijah could tell him, the dogs shall lick thy blood, even thine, 1 Kings xxi. 19, And Ezekiel, thou profane wicked prince of Israel, Ezek. xxi. 25. 3. The meaning is then only this; that a righteous king's just power may not only be controlled: he is armed with power that may not be resisted, for he beareth not the sword in vain, and therefore we must not stand in an evil matter against them. I conclude then this argument, with the word of an ingenious author, upon this same subject, both in thesi and hypothesi: 'Whosoever shall offer to rule arbitrarily, does immediately cease to be king by right, seeing by the fundamental, common and statute laws of the realm, we know none for supreme magistrate and governor but a limited prince, and one who stands circumscribed and bounded in his power and prerogative. Ill effects of animosities,' page 17.

7. From what is said, this is the result, that it is essentially necessary to a moral power and authority, to have a right and title, without which we can own none, but as a tyrant without a title. For what is authority, but a right to rule? if then it have not a right, it is not authority. This will be undeniable, if we consider, that as private dominion, or property, consists in a right to enjoy; so public dominion, in a right to rule. Some things indeed are exposed to the common and arbitrary use of every man, and also at the beginning, by reason of the fewness of mankind, dominion was not reduced to distinct property; yet now, upon the multiplication of occupants, of necessity it must be stated by peculiar appropriation, from the law of nature, and by the grant of the supreme king, who hath given the earth to the children of men, Psal. cxv. 16. not to be caught up as the food of beasts, which the stronger seize, and the weaker get only what the other leave them, but divided by right as an inheritance, by him who separated the sons of Adam, and set the bounds of the people, Deut. xxxii. 8. Especially public dominion cannot be without a foundation, for its relation to the subjected, and must be so tied up, that it may be said, this man is to command, and

these are to obey. I shew, that authority is from God, both by institution and constitution; so that the subjects are given to understand, such an one is singled out by God to sustain this authority, by prescribing a rule for men's entry into the authoritative relation, whereby he communicates that power to them which is not in others, and which otherwise would not be in them. Hence it is, that orderly admittance that must give the right, and upon men's having or not having such an entrance to it, depends the reality or nullity of the power they challenge.

Where therefore there is no lawful investiture, there is no moral power to be owned; otherwise John of Leyden's authority might have been owned: the unlawfulness of such a power consists in the very tenor itself; and if we take away the use or holding of it, we take away the very being of it: it is not then the abuse of a power lawfully to be used, but the very use of it is unlawful. But in the usurpation of this man, or monster rather, that is now mounted the throne, there is no lawful investiture in the way God hath appointed as is shewed above; therefore there is no moral power to be owned. To clear this a little further, it will be necessary to remove the ordinary pretences, pleaded for a title to warrant the owning of such as are in power, which are three chiefly, to wit, possession, conquest, and hereditary succession. The first must be touched more particularly, because it hath been the originate error, and spring of all the stupid mistakes about government, and is the pitiful plea of many, even mal contents, why this man's authority is to be owned, asserting, that a person attaining and occupying the place of power (by whatsoever means) is to be owned as the magistrate. But this can give no right: for, 1. If providence cannot signify God's approbative ordination, it can give no right; for without that there can be no right; but providence cannot signify his approbative ordination, because that, without the warrant of his word, cannot signify either allowance or disallowance, it is so various, being often the same to courses directly contrary, and oftentimes contrary to the same course; sometimes

savouring it, sometimes crossing it, whether it be good or bad, and the same common providence may proceed from far different purposes, to one in mercy, to another in judgment; and most frequently very disproportionable to men's ways. Providence places sometimes "wickedness in the place of judgment, and iniquity in the place of righteousness," Eccl. iii. 16. that is, not by allowance. By providence it happens to the just according to the work of the wicked, and to the wicked according to the work of the righteous, Eccl. viii. 14. No man knoweth either love or hatred by all that is before them. All things come alike to all, there is one event to the righteous and to the wicked, Eccl. ix. 1, 2. It were a great debasing of the Lord's anointed, to give him no other warrant than sin hath in the world, or the falling of a sparrow. 2. Either every providential possession, in every case, gives a title; or, God hath declared it as a law, that it shall be so in this particular matter of authority only.

The first cannot be said: for that would justify all robbery: nor the second, for where is that law found? Nay, it were impious to alledge it; for it would say, there is no unjust possessor or disorderly occupant, but if he were once in the possession, he were right enough, and then usurpation would be no sin. 3. If none of the causes of magistracy be required to the producing of this possessory power, then it cannot give or have any right; for without the true causes it cannot be the true effect, and so can have no true right to be owned: but none of the causes of magistracy are required to the production of this; neither the institution of God, for this might have been, if magistracy had never been instituted; nor the constitution of men, for this may usurp without that. 4. That which must follow upon the right, and be legitimated by it, cannot be owned as the right, nor can it give the title: but the possession of the power, or the exercise thereof, must follow upon its right, and be legitimated by it: therefore.—A man must first be in the relation of a ruler, before he can rule; and men must first be in the relation of subjects, before they obey.

The commands of public justice, to whom are they given but to magistrates? They must then be magistrates, before they can be owned as the ministers of justice: he must be a magistrate, before he can have the power of the sword: he cannot, by the power of the sword, make himself magistrate. 5. That which would make every one in the possession of the magistracy a tyrant, cannot be owned: but a possessory occupation giving right, would make every one in possession a tyrant; for, that which enervates, and takes away that necessary distinction between the king's personal capacity and his legal capacity, his natural and his moral power, will make every king a tyrant (seeing it makes every thing that he can do as a man, to be legally done as a king) but a possessory occupation giving right, would enervate and take away that distinction: for how can these be distinguished in a mere possessory power? The man's possession is all his legal power; and if possession give a right, his power will give legality. 6. What sort or size of possession can be owned to give a right? Either it must be partial or plenary possession: not partial, for then others may be equally entitled to the government, in competition with that partial possessor, having also a part of it: not plenary, for then every interruption or usurpation on a part, would make a dissolution of the government. 7. Hence would follow infinite absurdities; this would give equal warrant, in case of vacancy, to all men to step to, and stickle for the throne, and expose the commonwealth as a booty to all aspiring spirits: for they needed no more to make them sovereigns, and lay a tie of subjection upon the consciences of people, but to get into possession: and in case of competition, it would leave people still in suspense and uncertainties whom to own; for they behoved to be subject only to the uppermost, which could not be known until the controversy be decided: it would cassate and make void all pre-obligations, cautions, and restrictions from God about the government: it would cancel and make vain all other titles of any, or constitutions, or provisions, or oaths of allegiance: yea, to what purpose were laws or pactions made about

ordering the government, if possession gave right, and laid an obligation on all to own it? Yea, then it were sinful to make any such provisions, to fence in and limit the determination of providence, if providential possession may authorize every intrusive acquisition to be owned: then also in case of competition of two equal pretenders to the government, there would be no place left for arbitrations.

If this were true, that he has the power that is in possession, the difference were at an end; no man could plead for his own right then; in this also it is inconsistent with itself, condemning all resistance against the present occupant, yet justifying every resistance that is but successful to give possession. 8. That which would oblige us to own the devil and the pope, cannot be a ground to own any man; but if this were true, that possession gave right, it would oblige us to own the devil and the pope. Satan we find claiming to himself the possession of the world's kingdoms, Luke iv. 6. which as to many of them is in some respect true, for he is called the god of this world, and the prince of this world, John xiv. 30. 2 Cor. iv. 4. Are men therefore obliged to own his authority? or shall they deny his, and acknowledge his lieutenant, who bears his name, and by whom all his orders are execute, I mean the man that tyrannizes over the people of God? For he is the devil that casts some into prison, Rev. ii. 10. Again, the pope, his captain-general, lays claim to a temporal power and ecclesiastic both, over all the nations, and possesses it over many; and again, under the conduct of his vassal the duke of York, is attempting to recover the possession of Britain: shall he therefore be owned. This cursed principle disposes men for popery, and contributes to strengthen popery and tyranny both on the stage, to the vacating of all the promises of their dispossession. 9. That which would justify a damnable sin, and make it a ground of a duty, cannot be owned; but this fancy of owning a very power in possession would justify a damnable sin and make it the ground of a duty; for, resistance to the powers ordained of God is a damnable sin, Rom. xiii. 2.

But the resisters having success in providence, may come to the possession of the power, by expelling the just occupant; and, by this opinion, that possession would be ground for the duty of subjection for conscience sake. 10. If a self-created dignity be null and not to be owned, than a mere possessory is not to be owned; but the former is true: as Christ saith, John viii. 54. If I honour myself my honour is nothing. 11. That which God hath disallowed possession without right, Ezek. xxi. 27. I will overturn, overturn, overturn it, until he come whose right it is, Hos. viii. 4. They have set up kings and not by me, Matth. xxvi. 52. All they that take the sword shall perish with the sword; by this the usurper of the sword is differenced from the true owner. 12. Many scripture examples confute this; shewing that the possession may be in one, and the power with right in another.

David was the magistrate, and yet Absalom possessed the place, 2 Sam. xv. xvi. xvii. xviii. xix. chap. Sheba also made a revolt and usurped the possession in a great part, and yet David was king, 2 Sam. xx. 2. Adonijah got the start in respect of possession, exalting himself saying, I will be king: yet the kingdom was Solomon's from the Lord, 1 Kings 1. The house of Ahaziah had not power to keep still the kingdom, 2 Chron. xxii. 9. and Athaliah took the possession of it, yet the people set up Joash, xxiii. 3. Next we have many examples of such who have invaded the possessor, witness Jehoram and Jehoshaphat's expedition against Mesha, king of Moab, Elisha being in the expedition, 2 Kings, iii. 4, 5. Hence we see the first pretence removed.

The second is no better; which Augustine calls *Magnum Latrocinium*, a great robbery; I mean conquest, or a power of the sword gotten by the sword; which, that it can give no right to be owned, I prove That which can give no signification of God's approving will, cannot give a title to be owned: but mere conquest can give no signification of God's approving will, as is just now proven about possession: for then the Lord should have

approven all the unjust conquests that have been in the world. 2. Either conquest as conquest must be owned, as a just title to the crown, and so the Ammonites, Moabites, Philistines, &c. prevailing over God's people for a time, must have reigned by right, or as a just conquest. In this case, conquest is only a mean to the conquerors seizing and holding that power, which the state of the war entitled him unto; and this ingress into authority over the conquered, is not grounded on conquest but on justice, and not at all privative, but inclusive of the consent of the people; and then it may be owned; but without a compact, upon conditions of securing religion and liberty, and posterity, cannot be subjected without their content; for whatever just quarrel the conqueror had with the present generation, he could have none with the posterity, the father can have no power to resign the liberty of the children. 3. A king as king, and by virtue of his royal office, must be owned to be a father, tutor, protector, shepherd, and patron of the people; but a mere conqueror, without consent cannot be owned as such.

Can he be a father and a patron to us against our will, by the sole power of the sword? A father to these that are unwilling to be sons? An head over such as will not be members? And a defender thro' violence? 4. A king, as such, is a special gift of God, and blessing, not a judgment: but a conqueror, as such, is not a blessing, but a judgment, his native end being not peace, but fire and sword. 5. That which hath nothing of a king in it, cannot be owned to make a king; but conquest hath nothing of a king in it: for it hath nothing but violence and force, nothing but what the bloodiest villain that was never a king may have, nothing of God's approving and regulating will, nothing of institution or constitution; and a plain repugnancy to the ordination of God, for God hath said, Thou shalt not kill; conquest says, I will kill, and prosper, and reign. 6. A lawful call to a lawful office may not be resisted; but a call to conquest, which is nothing but ambition or revenge, ought to be resisted; because not of God's preceptive will, otherwise he should be the

author of sin. 7. That power which we must own to be the ordinance of God, must not be resisted, Rom. xiii. 2.

But conquest may be resisted in defence of our king and country: therefore it must not be owned to be the ordinance of God. 8. That which God condemns in his word, cannot be owned; but dominion by the sword God condemns in his word, Ezek. xxxii. 26. "Ye stand upon the sword,—— and shall possess the land," Amos vi. 13. "Ye rejoice in a thing of naught, which say, Have we not taken to us horns by our own strength?" Habbak. ii. 5, 6.——"Wo to him that increaseth that which is not his, how long," &c. 9. We have many examples of invading conquerors; as Abraham, for the rescue of Lot, pursued the conquering kings unto Dan, Gen. xiv. 4. "Jonathan smote a garrison of the conquering Philistines," 1 Sam. xiii. 3. The Lord owning and authorising them so to do. The people did often shake off the yoke of their conquerors in the history of the judges: but this they might not do to their lawful rulers. What is objected from the Lord's people conquering Canaan, &c. is no argument for conquest: for he, to whom belongs the earth and its fulness, disposed to Israel the land of Canaan for their inheritance, and ordained that they should get the possession thereof by conquest; it followeth not therefore, that kings now, wanting any word of promise, or divine grant to any lands, may ascend to the thrones of other kingdoms than their own, by no better title than the bloody sword. See *Lex Rex*, quest. 12. The third pretence of hereditary succession remains to be removed; which may be thus disproven, 1. This classes with the former, though commonly asserted by royalists.

For either conquest gives a right, or it does not; if it does, then it looses all allegiance to the heirs of the crown dispossessed thereby: if it does not give a right, then no hereditary succession founded upon conquest can have any right, being founded upon that which hath no right: and this will shake the most part of hereditary successions that are now in the world. 2. If

hereditary succession have no right but the people's consent; then of itself it can give none to a man that hath not that consent; but the former is true. For, it is demanded, how doth the son or brother succeed? By what right? It must either be by divine promise; or by the father's will, or it must come by propagation from the first ruler, by a right of the primogeniture; but none of these can be. For the first, we have no immediate divine constitution tying the crown to such a race, as in David's covenant: it will easily be granted, they fetched not their charter from heaven immediately, as David had it, a man of many peculiar prerogatives, to whose line the promise was astricted of the coming of the Messias, and Jacob's prophecy that the sceptre should not depart from Judah until his coming, Gen. xlix. 10. was restricted to his family afterwards: wherefore he could say, The Lord God of Israel chose me before all the house of my father, to be king over Israel for ever; for he hath chosen Judah to be the ruler; and of the house of Judah, the house of my father; and among the sons of my father, he liked me to make me king over Israel; and of all my sons he hath chosen Solomon, 1 Chron. xxviii. 4, 5. All kings cannot say this; neither could Saul say it, tho' immediately called of God as well as David: yet this same promise to David was conditional, if his children should keep the Lord's ways, 2 Chron. vi. 16. Next, it cannot be said this comes from the will of the father; for according to the scripture, no king can make a king, though a king may appoint and design his son for his successor, as David did Solomon, but the people make him. The father is some way a cause why his son succeedeth, but he is not the cause of the royalty conferred upon him by line: for the question will recur, who made him a king, and his father, and grandfather, till we come up to the first father? Then, who made him a king? Not himself; therefore it must be resounded upon the people's choice and constitution: and who appointed the lineal succession, and tied the crown to the line, but they? It is then, at the best, the patrimony of the people, by the fundamental law of the kingdom, conferred upon the successor by consent.

And generally it is granted, even where the succession is lineal, he that comes to inherit, he does not succeed by heritage, but by the force of law; the son then hath not his kingdom from his father, but by law, which the people made and stand to, as long as it may consist with the reasons of public advantage, upon which they condescended to establish such a family over them. Neither can it be said, it is by a right of primogeniture, propagated from the first ruler; for this must either be Adam the first of the world or Fergus for example, the first of this kingdom. It could not come from Adam as a monarch and father of all: for that behoved to be, either by order of nature, or his voluntary assignment: it could not be transferred by order of nature; for besides the difficulty to find out Adam's successor in the universal monarchy, and the absurdity of fixing it on Cain, (who was a cursed vagabond, afraid of every man and could not be an universal monarch, yet Adam's first born.) It will be asked, how this passed from him unto others? Whether it went by fatherhood to all the sons, fathers to their posterity? Which would multiply as many commonwealths, as there have been fathers since: or if it went, by primogeniture, only to the first-born, that he alone could claim the power which would infer the necessity of an universal monarchy, without multiplication of commonwealths.

If it was by his voluntary assignment, to whom, and in what proportion, he pleased; then the universal monarchy died with himself, and so could not be conveyed at all: for, either he behoved to give each son a share, to be conveyed downwards to their children in that proportion; or whole and solid to one: so also the former dilemma recurs, for if the first be said, it will make as many little kingdoms as there have been sons of Adam; if the second, the world should be but still one kingdom. But however it be, this could never be the way that God appointed, either for raising a magistratical power where it is wanting, or deriving a right to any in being; considering the multiplication, division, confusion, and extinction of families that have been. If it be from Fergus the first of his line; then either it comes from him

as a king, or as a father: not the first, for the reason above hinted: nor as a father; for a father may defraud his son of the heritage, a king cannot divide the kingdom among his sons; it must then be length refounded on the peoples consent. 3. If even where lineal succession is constituted by law, for eviting the inconveniencies of frequent elections, people are not tied to admit every first born of that line; then that birth-right, where there is no more, cannot make a king; but the former is true; for they are tied only conditionally, so he be qualified, and have a head to sit at the helm, and not a fool or monster; neither are they free to admit murderers or idolaters by the laws of God, and of the land: it is not birth then, but their admission being so qualified, that makes kings. Hence, 4. That which takes away the peoples birth-right, given them of God to provide for their liberties in the fittest government, and that is not to be owned; but to make birth alone a title to the crown, takes away the peoples birth-right given them of God of providing for their liberties in the fittest government, fetters their choice to one destructive to these. Certainly where God hath not bound the conscience, men may not bind themselves nor their posterity; but God hath never fettered men to a choice of a government or governing line; which, contrary to the intention of the oath, may prove destructive to the ends thereof. Nor can the fathers leave in legacy, by oath, any chains to fetter the after wits of posterity to a choice destructive to religion and liberty. Israel was bound, by covenant, not to destroy the Gibeonites; but if they had risen to cut off Israel, Who can doubt but they were loosed from that obligation? For to preserve cut-throats was contrary to the intention of the oath: so when either monarchy, or the succeeding monarch, proves destructive to the ends of government, the choice, law, or oath of our fathers, cannot bind us. 5. If we are tied to the hereditary succession, not for the right the successor hath by birth, but for our covenanted allegiance to them whose successor he is; then cannot his birth-right be the ground of our allegiance, and consequently hereditary succession cannot make a king; but the former is

true; for in hereditary crowns, the first family being chosen by the suffrages of the people, for that cause the hereditary successor hath no privilege or prerogative, but from him who was chosen king: therefore the obligation to the son, being no greater than the obligation to the father, which is the ground of that, if the father then was owned only because he was chosen, and qualified for government, the son cannot be owned for any other cause, but as chosen in him, and also qualified and admitted with consent. We cannot choose the father as qualified, and tie ourselves to the successors, be what they will. 6. If a king be not born heir of a kingdom, then is he not king by birth; but he is not born heir of a kingdom; for, a mean cannot be born to inherit the end, the king is but a mean for the kingdom's preservation. If the kingdom be his, by birth, as an inheritance, why may he not upon necessary occasions sell his inheritance? But if he sell it, then all confess he is no more king. 7. If that which makes a king cannot be transmitted from father to son; then succession, by birth, cannot make a king; but the former is true. The royal faculty of governing cannot be transmitted: Solomon asked it from God, he had it not from his father: nor can he be born to the honour of a king, because not born with either the gift or honour to be a judge. God maketh high and low, not birth. Nor can the call and constitution of a king, according to the will of God, be transferred from father to son, for that cannot be in God's way without the intervening consent of the people, that cannot make him a born king. 8. If no dominion can come by nature, as is proven before, then can no man be a born king: nature and birth cannot give them a sceptre in their hand, nor kingly majesty, they must have that alone from God and the people, and may only expect honour from their own good government: kings (as Plutarch says) must be like dogs that are best hunters, not these who are born of best dogs. 9. The peculiar prerogative of Jesus Christ must not be ascribed to any other; but this is his peculiar prerogative, to be born a king, of whom it might be truly said, Where is he that is born king of the Jews? And for this

end was he born, who came out of the womb with a crown on his head, which no creature can bear. 10. In scripture we find that a king was to be so and so qualified, not a stranger, but a reader of God's word, &c. Deut. xvii. 15, &c. he was not qualified by naked birth. Hence, if all the qualifications requisite in an heir cannot make a king qualified according to the institution of God, then his being heir cannot make him king: but the first is true, an heir may be an heir without these qualifications. 11. We find in the scripture, the people were to make the kings by that law, Deut. xvii. 15. Thou shalt choose him whom the Lord chooseth: yea, neither Saul nor David were kings, till the people met to make them: therefore birth never made them kings, even though the kingdom was tied to David's line. That was only a typical designment by special promise, because Christ was to come of that line; it was therefore established in David's family for typical reasons, that cannot be now alledged. 12. We find in the disposal of government among brethren, this birth order was not seldom inverted; as when Jacob was preferred before Esau, Judah before all the elder sons of Jacob, Ephraim before Manasseh, Solomon before Adonijah. Hence if this gentleman, now regnant, have no better pretences than these now confuted, we cannot recognize his right to reign; yea, though this last were valid, yet he cannot plead it, it being expressly provided in our laws against the succession of a papist. But there is one grand objection against all this. The Jews and other nations are commanded to bring their necks under the yoke of the king of Babylon, and to serve him, and yet he had no other right to these kingdoms; than the Lord's providential disposal, because the Lord had "given all these lands into his hand," Jer. xxvii. 6, 7, 12. Ans. 1. He was indeed an unjust usurper, and had no right but the Lord's providential gift; which sometimes makes "the tabernacles of robbers prosper, into whose hand God bringeth abundantly, Job xii. 6. And gives Jacob sometimes for a spoil, and Israel to the robbers, Isa. xlii. 24. And giveth power to the beast to continue forty and two months, and to have power over all kindreds, and

tongues, and nations," Rev. xiii. 5, 7. His tyranny also was very great extensively, in respect of his oppressions and usurpations by conquest; but it was not so great intensively, as our robbers and spoilers may be charged with; he was never such a perverter of all the ends of government, nor a treacherous overturner of all conditions, he was never a persecutor of the Jewish religion, he never oppressed them upon that account, nor endeavoured its extirpation, he never enacted such mischiefs by law. The Lord only made use of him to bring about the holy ends of the glory of his justice and wisdom, in which respect alone he is called his servant, as elsewhere his rod and hammer, having given him a charge against an hypocritical nation, to trample them down in his holy providence; and accordingly there was no resistance could prevail, they must be trampled upon, no help for it; but no subjection was required, acknowledging his magistratical right by divine ordinance, but only a submissive stooping to the holy disposal of divine providence; no owning was exacted either of the equity of that power, or of fealty to the administrator. 2. This behoved to be a particular command, by positive revelation given at that time, not binding to others in the like condition; which I refer to the judgment of the objectors: put the case, and make it run parallel, if the king of England were in league with the king of France, and breaking that league, should provoke that aspiring prince, growing potent by many conquests to discover his designs, make preparations and give out threatnings for the conquest of England and all Britain; were the people of England bound to surrender themselves as servants and tributaries to him for 70 years, or for ever, under pain of destruction, if they should not? This were one of the most ridiculous inferences that ever was pleaded; nay, it would make all refusal of subjection to invaders unlawful. 3. I will draw an argument from this to confirm my plea: for these commands of subjection to Babylon, were not delivered, until after the king of Judah had surrendered to Nebuchadnezzar, and entered into covenant with him to be subject to him, 2 Kings xxiv. chap.

in keeping which covenant the kingdom might have stood, and after he had rebelled against him, and broken that covenant, "when lo, he had given his hand," after which he could "not prosper, or escape, or be delivered," Ezek. xviii. 14, 15, 18, 2 Chron. xxxvi. 13. Then the commandment came, that they should disown their own king Zedekiah, now forfeiting his right by breach of covenant, and be subject to Nebuchadnezzar, whence I argue, if people are commanded to disown their covenant-breaking rulers, and subject themselves to conquerors, then I have all I plead for; but the former is true, by the truth of this objection: therefore also the latter. There is a 2d Objection from Rom xiii. 1. "Let every soul be subject to the higher powers, the powers that be are ordained of God;" yet the Roman emperor, to which they were to be subject, was an usurper. Ans. It cannot be proven, that the apostle intendeth here the Roman emperor as the higher power: there were at this time several competitions for the empire, about which Christians might have their own scruples whom to own; the apostle does not determine their litigations, nor interest himself in parties but gives the general standard of God's ordinance they had to go by. And the best expositors of the place do alledge, the question and doubt of Christians then was not so much in whom the supremacy was, as whether Christians were at all bound to obey civil power, especially Pagan? Which the apostle resolves, in giving general directions, to obey the ordinance of magistracy, conform to its original, and as it respects the end for which he had and would set it up: but no respect is there had to tyrants. 2. It cannot be proven, that the supreme power then in being was usurped, there being then a supreme Senate, which was a lawful power; nor that Nero was then an usurper, who came in by choice and consent, and with the good liking of the people. 3. The text means of lawful powers, not unlawful force, that are ordained of God by his preceptive will, not merely by his providential disposal, and of conscientious subjection to magistracy, not to tyranny, describing and characterizing the powers there, by such qualifications as tyrants and usurpers are not capable of. But I mind

to improve this text more fully hereafter, to prove the quite contrary to what is here objected.

8. From the right of magistracy, flows the magistratical relation, which is necessary to have a bottom, before we can build the relative duties thereon. This brings it under the fifth commandment, which is the rule of all relative duties between inferiors and superiors, requiring honour to be given to fathers, masters, husbands, &c. and to rightful magistrates, who are under such political relations, as do infer the same duties; and prohibiting not only the omission of these duties, but also the committing of contrary sins; which may be done, not only by contrary acts, as dishonouring and rebelling against fathers, magistrates, &c. but also by performing them to contrary objects, as by giving the father's due to the father's opposite, and the magistrates due to tyrants who are their opposites. Certainly this command, prescribing honour, does regulate to whom it should be given; and must be understood in a consistency with that duty and character of one that hath a mind to be an inhabitant of the Lord's "holy hill," Psal. xv. 4. "In whose eyes a vile person is contemned, but he honoureth them that fear the Lord." So that we sin against the fifth command, when we honour them that we are obliged to condemn by another command. Hence I argue, if owning or honouring of tyrants be a breach of the fifth command, then we cannot own their authority: but the former is true: therefore the latter. I prove the assumption: a honouring the vile, to whom no honour is due, and who stand under no relation of fathers as fathers, is a breach of the fifth command; but the owning of tyrants authority is a honouring the vile, to whom no honour is due, and who stand under no relation of fathers, and is yet a honouring them as fathers: therefore the owning of tyrants authority is a breach of the fifth command. The major is clear: for if the honouring of these to whom no honour is due, were not a breach of the fifth command, that precept could neither be kept at all or broken at all. It could not be kept at all; for, either it must oblige us to honour all indefinitely, as fathers, and other relations,

which cannot be; or else it must leave us still in suspense and ignorance, who shall be the object of our honour; and then it can never be kept: or finally, it must astrict our honouring to such definite relations, to whom it is due; and then our transgression of that restriction shall be a breach of it. Next, if it were not so, it could not be broken at all: for if prostituting and abusing honour be not a sin, we cannot sin in the matter of honour at all; for if the abuse of honour be not a sin, then dishonour also is not a sin: for that is but an abuse of the duty, which is a sin as well as the omission of it. And what should make the taking away of honour from the proper object to be sin, and the giving it to a wrong object to be no sin? Moreover, if this command do not restrict honour to the proper object, we shall never know who is the object. How shall we know who is our father, or what we owe to him, if we may give another his due? The minor also is manifest: for if tyrants be vile, then no honour is due to them, according to that, Psal. xv. 4. and yet it is a honouring them as fathers; if they be owned as magistrates; for magistrates are in a politic sense fathers; but certain it is, that tyrants are vile, as the epithets and characters they get in scripture prove. But because, in contradiction to this, it may be said, though fathers be never so wicked, yet they are to be honoured, because they are still fathers; and though matters be never so vile and froward, yet they are to be subjected unto, 1 Pet. ii. 18-20. and so of other relations, to whom honour is due by this command; therefore though tyrants be never so vile, they are to be owned under these relations, because they are the higher powers in place of eminency, to whom the apostle Paul commands to yield subjection, Rom. xiii. and Peter to give submission and honour, 1 Pet. ii. 13, 17. Therefore it must be considered, that as the relative duty of honouring the relations to whom it is due, must not interfere with the moral duty of condemning the vile, who are not under these relations; so this general moral of condemning the vile, must not cassate the obligation of relative duties, but must be understood with a consistency therewith, without any prejudice to the duty

itself. We must condemn all the vile, that are not under a relation to be honoured, and these also that are in that relation, in so far as they are vile. But now tyrants do not come under these relations at all, that are to be honoured by this command. As for the higher powers that Paul speaks of, Rom. xiii. they are not those which are higher in force, but higher in power, not in authority, but in power, not in a celsitude of prevalency, but in a pre-excellency of dignity; not in the pomp and pride of their posterity, and possession of the place, but by the virtue and value of their office, being ordained of God not to be resisted, the ministers of God for good, terrors to evil doers, to whom honour is due; those are not tyrants but magistrates. Hence it is a word of the same root which is rendered authority, or an authorized power, 1 Tim. ii. 2. and from the same word also comes that supreme, to whom Peter commands subjection and honour, 1 Pet. ii. 13. Now these he speaks of have the legal constitution of the people, being the ordinance of man, to be subjected to for the Lord's sake, and who sends other inferior magistrates for the punishment of evil doers, and for the praise of them that do well, who are to be honoured as kings or lawful magistrates; this cannot be said of tyrants. But more particularly, to evince that tyrants and usurpers are not to be honoured according to this command, and that it is a breach of it so to do; let us go through all these relations of superiority, that come under the obligation of this command, and we shall find tyrants and usurpers excluded out of all. First, They cannot come under the parental relation: we are indeed to esteem kings as fathers, though not properly, but by way of some analogy, because it is their office to care for the people, and to be their counsellors, and to defend them, as fathers do for children: but roaring lions and ranging bears, as wicked rulers are, Prov. xxviii. 15. cannot be fathers. But kings cannot properly be owned under this relation, far less tyrants (with whom the analogy of fathers cannot consist) there being so many notable disparities betwixt kings and fathers. 1. A father may be a father to one child; but a king cannot be a king or politic

father to one only, but his correlate must be a community; a tyrant can be a father to none at all in a politic sense. 2. A father is a father by generation to all coming out of his loins; a king not so, he doth not beget them, nor doth their relation flow from that; a tyrant is a destroyer, not a pro-creator of people. 3. A father is the cause of the natural being of his children, a king only of the politic well being of his subjects; but tyrants are the cause of the ill being of both. 4. A father, once a father, as long as his children live, retains still the relation, though he turn mad and never so wicked; a king turning mad may be served as Nebuchadnezzar was, at least all will grant in some cases the subjects may shake off the king; and if in any case, it is when he turns tyrant. 5. A father's relation never ceases, whithersoever his children go; but subjects may change their relation to a king, by coming under another king in another kingdom; a tyrant will force all lovers of freedom to leave the kingdom where he domineers. 6. A father's relation never changes, he can neither change his children, nor they change their father; but a king may naturalize new subjects, and subjects may also change their sovereign. Royalists will grant a state or commonwealth may make a king, and there is great reason sometimes that a monarchy be turned into a commonwealth; but a tyrant changes those that are under him, expels the natives, brings in foreigners, and all good patriots do pant for a change of him every day. 7. A father hath no power of life and death over his children; a king hath it over his subjects according to law; a tyrant usurps it over the innocent against law. 8. A father is not a father by consent of his children; as a king is by consent of his subjects; a tyrant is neither a father with it nor without it. 9. A father is not made by the children, as a king is by his subjects, as was shewed: a tyrant is neither a natural, nor by compact, but a self created power. 10. A father is not chosen conditionally upon compact, as a king is by the free suffrages of the community; a tyrant in this differs from a king that he is not chosen, and in tyranny from a father. 11. Children wanting a father cannot choose whom they will to be their father;

as subjects wanting a king may choose whom they will, and what form they please; but though they can, yet if they be rational, they will never choose a tyrant, nor a tyrannical form of government. 12. Children cannot restrict their father's power to what degrees they please; as subjects may limit their kings, at their first erection; but a tyrant, though he ought, yet he will not be limited, and if he might, he should be restrained. 13. Children cannot set bounds how long they will have their fathers to continue; subjects may condescend upon the time, in making laws how long such an one shall be their sovereign, during life, or while faultless, according as the fundamental law is made at first; tyrants ought every day to be repressed that they should not continue at all. Yet giving and not granting, that a king were to be owned under the relation of a father; though every man be bound to own and maintain his father's parental authority, yet let the case be put, that the father turns a robber, murderer, an avowed enemy to God and the country, is his person and authority in that case to be owned, to the dishonour of God, and hurt and hazard of the country? or ought he not rather to be delivered up even by the son to justice? Much more then will it follow, that a king who turns the more dangerous, because the more powerful robber, and legal murderer, and enemy to God and the country, cannot be owned seeing the relation between father and son is stronger and stricter as having another original, than can be betwixt king and subjects, and stands unremoved as long as he is father, though turning such, they ought to contribute, (in moral duty, to which their relative duty must cede) that he should no more be a father, nor no more a living man, when dead by law. Secondly, They cannot come under the herile or masterly relation, though analogically also sometimes they are stiled so, and subjects are called servants, by reason of their subjection, and because it is the office of kings to command, and subjects to obey, in this there is some analogy. But kings cannot properly be owned under this relation, as masters over either persons or goods of subjects, far less tyrants, yea kings assuming a masterly power turn tyrants.

Now that the magistratical relation is not that of a master, is clear from many disparities and absurdities, whether we consider the state of hired servants or slaves. For hired servants, the difference is vast betwixt them and subjects. 1. The hired servant gets reward for his service, by compact; the subjects none, but rather gives the royal reward of tribute to the king for his service; the tyrant exacts it to maintain his tyranny. 2. The hired servant is maintained by his master; the subjects maintain the king; the tyrant robs it from them by force. 3. The hired servant bargains only for a time, and then may leave him; the subject cannot give up his covenanted allegiance, at that rate and for these reasons as the servant may his service; a tyrant will make nor keep no such bargain. 4. The hired servant must have his master's profit mainly before his eyes, and his own secondarily; but the magistrates power is primarily ordained to the public good of the community and only consequentially to the good of himself. 5. The master hath a greater power over the hired servant, to make and give out laws to him, which if they be lawful he must obey; than the king hath over the nation, to which he is the sole lawgiver, as is shewed. 6. The hired servant's subjection is mercenary and servile; but the subject's subjection is civil, free, voluntary, liberal, and loving to a lawful king. Again for slaves, the difference between them and subjects is great. 1. Slavery, being against nature, rational people would never choose that life, if they could help it; but they gladly choose government and governors. 2. Slavery would make their condition worse than when they had no government, for liberty is always preferable; neither could people have acted rationally in setting up government, if to be free of oppression of others they had given themselves up to slavery, under a master who may do what he pleases with them. 3. All slaves are either taken in war, or bought with money, or born in the house where their parents were slaves, as Abraham and Solomon had of that sort; but subjects are neither captives, nor bought, nor born slaves.—4. Slavery is not natural, but a penal fruit of sin, and would never have been if sin had not been; but government

is not so, but natural and necessary. 5. Slaves are not their master's brethren, subjects are the king's brethren, "over whom he must not lift up himself," Deut. xvii. 20. 6. Masters might purchase and sell their slaves, Abimelech took sheep and men servants and gave them unto Abraham, Gen. xx. 14. Jacob had maid-servants, and men-servants, and asses, Gen. xxx. 43. no otherwise than other goods, Solomon got to himself servants and maidens, and servants born in his house, Eccles. ii. 7. a king cannot do so with his subjects. 7. Princes have not this power to make the people slaves, neither from God, nor from the people: from God they have none, but to feed and to lead them, 2 Sam. v. 2. to rule them so as to feed them, 1 Chron. xi. 2. Psal. lxxviii, 71, 72. From the people they have no power to make slaves, they can give none such. 8. Slavery is a curse: it was Canaan's curse to be a servant of servants, Gen. ix. 25. but to have magistrates is a promised blessing, Jer. xvii. 25. 9. To be free of slavery is a blessing, as the redemption from Egypt's bondage is every where called, and the year of redemption was a jubilee of joy, so the freedom of release every seven years a great privilege, Jer. xxxiv. 9. but to be free of government is a judgment, Isa. iii. 4, 5. 'tis threatened, "Israel shall abide without a king and without a prince;" Hos. iii. 4. In the next place, they cannot be owned as masters or proprietors over the goods of the subjects; though in the case of necessity, the king may make use of all goods in common, for the good of the kingdom; for, 1. The introduction of kings cannot overturn nature's foundation; by the law of nature property was given to man, kings cannot rescind that. 2. A man had goods ere ever there was a king; a king was made only to preserve property, therefore he cannot take it away. 3. It cannot be supposed that rational people would choose a king at all, if he had power to turn a great robber to preserve them from lesser robberies and oppressions; would rational men give up themselves for a prey to one, that they might be safe from becoming a prey to others? 4. Then their case should be worse, by erecting of government, if the prince were proprietor of their goods, for

they had the property themselves before. 5. Then government should not be a blessing, but a curse, and the magistrate could not be a minister for good. 6. Kingdoms then should be among the goods of fortune, which the king might sell and dispoise as he pleased. 7. His place then should not be a function, but a possession. 8. People could not then, by their removes, or otherwise, change their sovereigns. 9. Then no man might dispose of his own goods without the king's consent, by buying or selling, or giving alms; nay, nor pay tribute, for they cannot do these things except they have of their own. 10. This is the very character of a tyrant, as described, 1 Sam. viii. 11. "He will take your sons," Zeph. iii. 3. "Her princes are roaring lions, her judges are evening wolves." 11. All the threatnings and rebukes of oppression condemn this, Isa. iii. 14, 15, Ezek. xlv. 9. Mic. iii. 2, 3. Ahab condemned for taking Naboth's vineyard. 12. Pharaoh had not all the land of Egypt, till he bought it, Gen. xlii. 20. So the land became Pharaoh's not otherwise. Yet giving, and not granting that he were really a master in all these respects; notwithstanding if he turn to pursue me for my life, because of my fidelity to my master and his both, and will withdraw me from the service of the supreme universal master, I may lawfully withdraw myself from his, and disown him for one, when I cannot serve two masters. Sure he cannot be master of the conscience. Thirdly, they cannot come under the conjugal relation, though there may be some proportion between that and subjection to a lawful ruler, because of the mutual covenant transacted betwixt them; but the tyrant and usurper cannot pretend to this, who refuse all covenants.

Yet hence it cannot be inferred, that because the wife may not put away her husband, or renounce him, as he may do her in the case of adultery; therefore the people cannot disown the king in the case of the violation of the royal covenant. For the king's power is not at all properly a husband's power, 1. The wife, by nature, is the weaker vessel, but the kingdom is not weaker than the king. 2. The wife is given as an help to the man; but here

the man is given as an help to the common-wealth. 3. The wife cannot limit the husband's power; as subjects may limit their sovereigns. 4. The wife cannot prescribe the time of her continuing under him; as subjects may do with their sovereigns. 5. The wife cannot change her husband; as a kingdom can do their government. 6. The husband hath not power of life and death; but the sovereign hath it over malefactors. Yet giving, and not granting, his power were properly marital: if the case be put, that the man do habitually break the marriage-covenant, or take another wife, and turn also cruel and intolerable in compelling his own wife to wickedness; and put the case also, that she should not get a legal divorce procured, who can doubt but she can disown him, and leave him? For this case is excepted out of that command, 1 Cor. vii. 10. Let not the wife depart from her husband, meaning for mere difference in religion, or other lesser causes; but adultery doth annul the marriage relation. See Pool's Synopsis critic, in locum. So when a prince breaks the royal covenant and turns tyrant, or without any covenant commits a rape upon the common-wealth, that pretended relation may and must be disowned. Hence, we see, there is no relation can bring a king or ruler under the object of the duty of the fifth command, except it be that of a fiduciary patron, or trustee, and public servant: for we cannot own him properly either to be a father, or a master, or a husband. Therefore what can remain, but that he must be a fiduciary servant? Wherefore if he shall either treacherously break his trust, or presumptuously refuse to be entrusted, upon terms and conditions to secure and be accountable for, (before God and man) religion and liberty, we cannot own his usurped authority. That metaphor which the learned Buchanan uses, *de jure regni*, of a public and politic physician, is not a relation different from this of a fiduciary servant; when he elegantly represents him as entrusted with the preservation and restoration of the health of the politic body, and endowed with skill and experience of the laws of his craft. If then he be orderly called unto this charge, and qualified for it, and discharges his duty faithfully, he deserves,

and we are obliged to give him the deference of an honoured physician; but if he abuse his calling, and not observe the rules thereof, and instead of curing, go about wilfully to kill the body he is entrusted with, he is no more to be owned for a physician: but for a murderer.

9. If we enquire further into the nature of this relation between a king, (whose authority is to be owned) and his subjects; we can own it only as it is reciprocal in respect of superiority and inferiority; that is, whereby in some respects the king is superior to the people, and in some respects the people is inferior to him. The king is superior and supreme as he is called, 1 Pet. ii. 13. In respect of formal sovereignty, and executive authority, and majestic royal dignity, resulting from the peoples devolving upon him that power, and constituting him in that relation over themselves, whereby he is higher in place and power than they, and in respect of his charge and conduct is worth ten thousands of the people, 2 Sam. xviii. 3. and there is no formally regal tribunal higher than his; and though he be lesser than the whole community, yet he is greater than any one, or all the people distributively taken; and though he be a royal vassal of the kingdom, and princely servant of the people; yet he is not their deputy, because he is really their sovereign, to whom they have made over their power of governing and protecting themselves irrevocably, except in the case of tyranny; and in acts of justice, he is not accountable to any, and does not depend on the people as a deputy.

But, on the other hand, the people is superior to the king, in respect of their fountain power of sovereignty, that remains radically and virtually in them, in that they make him their royal servant, and him rather than another, and limit him to the laws for their own good and advantage, and though they give to him a politic power for their own safety; yet they keep a natural power which they cannot retract, the power of justice to govern righteously, yet it is not so irrevocably given away to him, but that when he abuseth his

power to the destruction of his subjects, they may wrest a sword out of a mad man's hand, though it be his own sword, and he hath a just power to use it for good, but all fiduciary power abused may be repealed. They have not indeed sovereignty, or power of life and death formally; yet, in respect, they may constitute a magistrate with laws, which if they violate they must be in hazard of their lives, they have this power eminently and virtually. Hence, in respect, that the king's power is, and can be only fiducial, by way of trust reposed upon him, he is not so superior to the people, but he may and ought to be accountable to them in case of tyranny; which is evident from what is said, and now I intend to make it further appear. But, first, I form the argument thus; we can own no king that is not accountable to the people: ergo, we cannot own this king. To clear the connexion of the antecedent and consequent, I add; either he is accountable to the people, or he is not: if he be accountable to all, then he is renouncible by a part, when the community is defective as to their part, it is the interest of a part, that would, but cannot, do their duty, to give no account to such as they can get no account from for his maleversations. This is all we crave: if he be not accountable, then we cannot own him, because all kings are accountable: for these reasons, 1. The inferior is accountable to the superior; the king is inferior, the people superior: ergo, the king is accountable to the people. The proposition is plain; if the king's superiority make the people accountable to him in case of transgressing the laws; then, why should not the peoples superiority make the king accountable to them, in case of transgressing the laws? Especially, seeing the king is inferior to the laws: because the law restrains him, and from the law he hath that whereby he is king; the law is inferior to the people, because they are as it were its parent, and may make or unmake it upon occasion: and seeing the law is more powerful than the king, and the people more powerful than the law, we may see before which we may call the king to answer in judgment, Buchan. *jure regni apud Scot*. That the king is inferior to the people is clear on many

accounts: for these things which are institute for others sake, are inferior to those for whose sake they are required or sought; a horse is inferior to them that use him for victory; a king is only a mean for the peoples good; a captain is less than the army, a king is put a captain over the Lord's inheritance, 1 Sam. x. 1. He is but the minister of God for their good, Rom. xiii. 4. Those who are before the king, and may be a people without him: let the king be considered either materially as a mortal man, he is then but a part inferior to the whole; or formally under the reduplication as a king, he is no more but a royal servant, obliged to spend his life for the people, to save them out of the hand of their enemies, 2 Sam. xix. 9: A part is inferior to the whole, the king is but a part of the kingdom: a gift is inferior to them to whom it is given, a king is but a gift given of God for the peoples good: that which is mortal, and but accidental, is inferior to that which is eternal, and cannot perish politically; a king is but mortal, and it is accidental to government that there be a succession of kings; but the people is eternal, one generation passeth away, and another generation cometh, Eccl. i. 4. especially the people of God, the portion of the Lord's inheritance, is superior to any king, and their ruin of greater moment than all the kings of the world; for, if the Lord for their sake smite great kings, and slay famous kings, as Sihon and Og, Psal. cxxxvi. 17,—20. if he give kings and famous kingdoms for their ransom, Isa. xliii. 3, 4. then his people must be so much superior than kings, by how much his justice is active to destroy the one, and his mercy to save the other. All this proves the people to be superior in dignity; and therefore, even in that respect, it is frivolous to say, the king cannot be accountable to them, because so much superior in glory and pomp; for they are superior every way in excellency; and though it were not so, yet judges may be inferior in rank considered as men, but they are superior in law over the greatest as they are judges, to whom far greater than they are accountable.

The low and mean condition of them to whom belongs the power of judgment, does not diminish its dignity; when the king then is judged by the people, the judgment is of as great dignity as if it were done by a superior king; for the judgment is the sentence of the law. 2. They are superior in power: because every constituent cause is superior to the effect, the people is the constituent cause, the king is the effect, and hath all its royalty from them, by the conveyance God hath appointed; so that they need not fetch it from heaven, God gives it by the people, by whom also his power is limited, and, if need be, diminished from what they gave his ancestors: hence, if the people constitute and limit the power they give the king, then they may call him to an account, and judge him for the abuse of it; but the first is true, as is proven above: ergo.—The major is undeniable, for sure they may judge their own creature, and call him to an account for the power they gave him, when he abuses it, though there be no tribunal formally regal above him, yet, in the case of tyranny, and violating his trust, there is a tribunal virtual eminently above him, in them that made him, and reposed that trust upon him, as is said. 3. The fountain power is superior to the power derived: the people, though they constitute a king above them, yet retain the fountain power, he only hath the derived power: certainly the people must retain more power eminently, than they could give to the king, for they gave it, and he receives it with limitations; if he turn mad or incapable, they may put curators or tutors over him; if he be taken captive, they may appoint another to exercise the power; if he die, then they may constitute another, with more or less power; so then if they give away all their power, as a slave selleth his liberty, and retain no fountain power or radical right, they could not make use of it to produce any of these acts: they set a king above them only with an executive power for their good, but the radical power remains in the people, as in an immortal spring, which they communicate by succession to this or that mortal man, in the manner and measure they think expedient; for otherwise, if they gave all their

power away, what shall they reserve to make a new king, if this man die? What if the royal line surcease, there be no prophets now sent to make kings; and if they have power in these cases, why not in the case of tyranny? 4. If the king be accountable by law, for any act of tyranny done against one man, then much more is he accountable for many against the whole state: but the former is true; a private man may go to law before the ordinary judges, for wronging his inheritance, and the king is made accountable for the wrong done by him. Now, shall the laws be like spiders webs, which hold flies, but let bigger beasts pass through? Shall sentence be past for petty wrongs against a man, and none for tyrannizing over religion, laws, and liberties of the kingdom? Shall none be past against parricide or fratricide, for killing his brother, murdering the nobles, and burning cities? Shall petty thieves be hanged for stealing a sheep; and does the laws of God or man give impunity for robbing a whole country of the nearest and dearest interests they have, to crowned heads, for the fancied character of royalty, which thereby is forfeited? 5. If there be judges appointed of God independently, to give out and execute the judgment of the Lord on all offenders, without exception of the highest; then the king also must be subject to that judgment; but there are judges appointed of God independently, to give out and execute the judgment of the Lord on all offenders, without exception of the highest. Two things must be here proved; first, that in giving judgment they do not depend on the king, but are the immediate vicars of God. Secondly, that the king is not excepted from, but subject to their judgment, in case he be criminal.

First, They cannot depend upon the king, because they are more necessary than the king; and it is not left to the king's pleasure whether there be judges or not. There may be judges without a king, but there can be no king without judges, nor no justice, but confusion; no man can bear the people's burden alone, Numb. xi. 14, 17. If they depended on the king, their power would die with the king; the streams must dry up the fountain; but

that cannot be, for they are not the ministers of the king, but of the kingdom, whose honour and promotion, though by the king's external call, yet comes from God, as all honour and promotion does, Psal. lxxv. 7. The king cannot make judges whom he will, by his absolute power, he must be tied to that law, Deut. i. 13. To take wise men and understanding, and known: neither can he make them during pleasure; for if these qualifications remain, there is no allowance given for their removal. They are gods, and the children of the most high, appointed to defend the poor and fatherless, as well as he, Psal. lxxxii. 3, 6. They are ordained of God for the punishment of evil doers, in which they must not be resisted, as well as he, Rom. xiii. 1, 2. By me (saith the Lord) rule—all the judges of the earth, Prov. viii. 16. To them we must be subject for conscience sake, as being the ministers of God for good; they must be obeyed for the Lord's sake, as well as the king; though they are sent of him, yet they judge not for man, but for the Lord, 2 Chron. xix. 6. hence they sit in his room, and are to act as if he were on the bench; the king cannot say, the judgment is mine, because it is the Lord's; neither can he limit their sentence (as he might, if they were nothing but his deputies) because the judgment is not his: nor are their consciences subordinate to him, but to the Lord immediately; otherwise if they were his deputies, depending on him, then they could neither be admonished, nor condemned for unjust judgment, because their sentence should neither be righteous nor unrighteous, but as the king makes it; and all directions to them were capable of this exception, do not so or so, except the king command you; crush not the poor, oppress not the fatherless, except the king command you; yea, then they could not execute any judgment, but with the king's licence, and so could not be rebuked for their not executing judgment.

Now all this is contrary to scripture, which makes the sentence of the judges undecidable, when just, Deut. xvii. 11. The Lord's indignation is kindled, when he "looks for judgment, and behold oppression, for

righteousness, and behold a cry," Isa. v. 7. Neither will it excuse the judges to say, the king would have it so; for even they that are subservient to "write grievousness, to turn aside the needy from judgment," &c. are under the wo, as well as they that prescribe it, Isa. x. 1, 2. The Lord is displeased when "judgment is turned away backward, and judgment stands afar off,"——and when there is no judgment, whatever be the cause of it, Isa. lix. 14, 15. The Lord threatens he will be "avenged on the nation," when a man is "not found to execute judgment," Jer. v. 1, 9. And promises, if they "will execute judgment and righteousness, and deliver the spoiled out of the hand of the oppressor," he will give them righteous magistrates, Jer. xxii. 3, 4. but if they do not, he will send desolation, *ibid.* He rebukes those that "turn judgment to wormwood, and leave off righteousness in the earth," Amos v. 7. He resents it, when "the law is slacked, and judgment doth not go forth" freely, without overawing or over-ruling restraint, Hab. i. 4.

Can these scriptures consist with the judges dependence on the king's pleasure, in the exercise and execution of their power? therefore, if they would avoid the Lord's displeasure, they are to give judgment, though the king should countermand it. Secondly, That the king is not excepted from their judgment, is also evident from the general commands, Gen. ix. 6. "Whoso sheddeth man's blood, by man shall his blood be shed:" there is no exception of kings or dukes here: and we must not distinguish where the law distinguisheth not, Numb. xxxv. 30, 31. Whoso killeth any person, the murderer shall be put to death by the mouth of witnesses,—ye shall take no satisfaction for the life of a murderer which is guilty of death, but he shall be surely put to death. What should hinder then justice to be awarded upon a murdering king? Shall it be for want of witnesses? It will be easy to adduce thousands. Or, shall this be satisfaction for his life, that he is a crowned king? The law saith, there shall be no satisfaction taken. The Lord speaketh to under judges, Levit. xix. 5. Ye shall do no unrighteousness in judgment, thou shalt not respect the person of the poor, nor honour the

person of the mighty. If kings be not among the mighty, how shall they be classed? Deut. i. 17. Ye shall not respect persons in judgment, but you shall hear the small as well as the great; you shall not be afraid of the face of man, for the judgment is God's. If then no man's face can outdare the law and judgment of God, then the king's majestic face must not do it; but as to the demerit of blood, he must be subject as well as another. It is no argument to say, the Sanhedrim did not punish David for his murder and adultery; therefore it is not lawful to punish a king for the same; a reason from not doing is not relevant. David did not punish Joab for his murder, but authorized it, as also he did Bathsheba's adultery; will that prove, that murders connived at, or commanded by the king, shall not be punished? Or that whores of state are not to be called to an account? Neither will it prove, that a murdering king should not be punished; that David was not punished, because he got both the sin pardoned, and his life granted from the Lord, saying to him by the mouth of the prophet Nathan, Thou shalt not die. But as for the demerit of that fact, he himself pronounced the sentence out of his own mouth, 2 Sam. xii. 15. "As the Lord liveth, the man that hath done this thing shall surely die." 'So every king condemned by the law, is condemned by his own mouth: for the law is the voice of the king. Why then do we so much weary ourselves concerning a judge, seeing we have the king's own confession, that is, the law?' Buchanan *de jure regni*.

And there needs be no other difficulty to find a tribunal for a murdering king, than to find one for a murderer; for a judgment must acknowledge but one name, viz. of the crime. If a king then be guilty of murder, he hath no more the name of a king, but of a murderer, when brought to judgment; for he is not judged for kingship, but for his murder; as when a gentleman is judged for robbery, he is not hanged, neither is he spared, because he is a gentleman, but because he is a robber. See Buchanan above. 6. If the people's representatives be superior to the king in judgment, and may execute judgment without him, and against his will, then they may also seek

account of him; for if he hath no power but from them, and no power without them to act as king, (no more than the eye or hand hath power to act without the body) then his power must be inferior, fiduciary, and accountable to them; but the former is true, the peoples representatives are superior to the king in judgment, and may execute judgment without him, and against his will. In scripture we find the power of the elders and heads of the people was very great, and in many cases superior to the king; which the learned Dr. Owen demonstrates in his preliminary exercitations on the epistle to the Hebrews, and proves out of the Rabbins, that the kings of the Jews might have been called to an account, and punished for transgressing of the law. But in the scripture we find, (1.) They had a power of judgment with the supreme magistrate in matters of religion, justice and government. Hamor and Shechem would not make a covenant with Jacob's sons, without the consent of the men of the city, Gen. xxxiv. 20. David behoved to consult with the captains of thousands, and every leader, if it seemeth good to bring again the ark of God, 1 Chron. xiii. 1, 2, 3. So also Solomon could not do it without them, 1 Kings viii. 1. Ahab could not make peace with Benhadad against the consent of the people, 1 Kings xx. 8. The men of Ephraim complain that Jephthah, the supreme magistrate, had gone to war against the children of Ammon without them, and threatned to burn his house with fire, which he only excuses by the law of necessity, Judges xii. 1, 2, 3. The seventy elders are appointed of God, not to be the advisers only and helpers of Moses, but to bear a part of the burden of ruling and governing the people, that Moses might be eased, Numb. xi. 14, 17. Moses upon his sole pleasure, had not power to restrain them in the exercise of judgment given of God.

They were not the magistrate's depending deputies, but in the act of judging, they were independent, and their consciences as immediately subjected to God as the superior magistrate, who was to add his approbative suffrage to their actings, but not his directive nor imperative suffrage of

absolute pleasure, but only according to the law; he might command them to do their duty, but he could do nothing without them. (2.) They had power, not derived from the prince at all, even a power of life and death. The rebellious son was to be brought to the elders of the city, who had power to stone him, Deut. xxi. 18, 24. They had power to punish adultery with death, Deut. xxii. 21. They had power to cognosce whom to admit into, and whom to seclude from the cities of refuge: so that if the king had commanded to take the life of an innocent man, they were not to deliver him, Josh. xx. throughout. But besides the elders of cities, there were the elders and heads of the people, who had judicial power to cognosce on all criminal matters, even when Joshua was judge in Israel we find they assumed this power, to judge of that matter of the two tribes and the half, Josh. xxii. 30. And they had power to make kings, as Saul and David, as was shewed: and it must needs follow, they had power to unmake them in case of tyranny. (3.) They had power to convene, even without the indiction of the ruler, as in that, Josh. xxii. They convene without him; and without advice or knowledge of Samuel, the ruler, they convene to ask a king, 1 Sam. viii. And without any head or superior, they convene and make David king, notwithstanding of Ishbosheth's hereditary right. Without and against tyrannous Athaliah's consent, they convene and make Joash king, and cared not for her Treason, treason, 2 Kings xi. But now the king alone challenges the prerogative power of calling and dissolving parliaments as he pleases, and condemns all meetings of estates without his warrant, which is purely tyrannical; for, in cases of necessity, by the very law of nature, they may and must convene. The power is given to the king only by a positive law, for order's sake; but otherwise, they have an intrinsical power to assemble themselves. All the forecited commands, admonitions, and certifications, to execute judgment, must necessarily involve and imply a power to convene, without which they could not be in a capacity for it: not only unjust judgment, but no judgment, in a time when truth is fallen in the streets, and equity cannot enter, is

charged as the sin of the state; therefore they must convene to prevent this sin, and the wrath of God for it: God hath committed the keeping of the commonwealth, not to the king's only, but also to the people's representatives and heads. And if the king have power to break up all conventions of this nature, then he hath power to hinder judgement to proceed, which the Lord commands: and this would be an excuse, when God threatens vengeance for it. We would not execute judgment, because the king forbade us. Yet many of these forementioned reproofs, threatnings, and certifications were given, in the time of tyrannous and idolatrous kings, who, no doubt, would inhibit and discharge the doing of their duty; yet we see that was no excuse, but the Lord denounces wrath for the omission. (4.) They had power to execute judgment against the will of the prince. Samuel killed Agag against Saul's will, but according to the command of God, 1 Sam. xv. 32. Against Ahab's will and mind Elijah caused kill the priests of Baal, according to God's express law, 1 Kings xviii. 40. It is true it was extraordinary, but no otherwise than it is this day; when there is no magistrate that will execute the judgment of the Lord, then they who have power to make the magistrate, may and ought to execute it, when wicked men make the law of God of none effect. So the princes of Judah had power, against the king's will, to put Jeremiah to death, which the king supposes, when he directs him what to say to them, Jer. xxxviii. 25. They had really such a power, though in Jeremiah's case it would have been wickedly perverted. See *Lex Rex*, q. 19, 20. (5.) They had a power to execute judgment upon the king himself, as in the case of Amaziah and Uzziah, as shall be cleared afterwards. I conclude with repeating the argument: if the king be accountable, whensoever this account shall be taken, we are confident our disowning him for the present will be justified, and all will be obliged to imitate it: if he be not, then we cannot own his authority, that so presumptuously exalts himself above the people.

10. If we will further consider the nature of magistracy, it will appear what authority can conscientiously be owned, to wit, that which is power, not authorised power, not might or force; moral power, not merely natural. There is a great difference betwixt these two: natural power is common to brutes, moral power is peculiar to men; natural power is more in the subjects, because they have more strength and force; moral power is in the magistrate, they can never meet adequately in the same subject; natural power can, moral only may warrantably exercise rule; natural power is opposed to impotency and weakness, moral to illicitness or unlawfulness; natural power consists in strength, moral in righteousness; natural power may be in a rout of rogues making an uproar, moral only in the rulers; they cannot be distinguished by their acts, but by the principle from which the acts proceed; in the one from mere force, in the other from authority. The principle of natural power is its own might and will, and the end only self; moral hath its rise from positive constitution, and its end is public safety. The strength of natural power lies in the sword, whereby its might gives law; the strength of moral power is in its word, whereby reason gives law, unto which the sword is added for punishment of contraveeners: natural power takes the sword, Matth. xxvi. 52. Moral bears the sword, Rom. xiii. 4. In natural power the sword is the cause; in moral it is only the consequent of authority; in natural power the sword legitimates the sceptre; in moral the sceptre legitimates the sword: the sword of the natural is only backed with metal, the sword of the moral power is backed with God's warrant: natural power involves men in passive subjection, as a traveller is made to yield to a robber; moral power reduces to conscientious subordination. Hence the power that is only natural, not moral authority, not power, cannot be owned; but the power of a tyrant's and usurper's is only natural, not moral, authority, not power: Ergo it cannot be owned. The major cannot be denied; for it is only the moral power that is ordained of God, unto which we must be subject for conscience sake. The minor also; for the power of tyrants is

not moral, because not authorized, nor warranted, or ordained of God by his preceptive ordinance, and therefore no lawful magistratical power. For the clearer understanding of this, let it be observed, there are four things required to the making of a moral or lawful power; the matter of it must be lawful, the person lawful, the title lawful, and the use lawful. 1. The matter of it, about which it is exerted, or the work to be done by it, must be lawful and warranted by God: and if it be unlawful it destroys its moral being. As the pope's power, in dispensing with divine laws, is null and no moral power; and so also the king's power, in dispensing with both divine and human laws is null. Hence that power, which is, in regard of matter unlawful, and never warranted by God, cannot be owned; but absolute power, which is the power of tyrants and usurpers, (and particularly of this of ours) is in regard of matter unlawful, and never warranted by God: Ergo—2. The person holding the power must be such as not only is capable of, but competent to the tenure of it, and to whom the holding of it is allowed; and if it be prohibited, it evacuates the morality of the power. Korah and his company arrogated to themselves the office of the priesthood, this power was prohibited to them, their power then was a nullity. As therefore a person that should not be a minister, when he usurps that office is no minister; so a person that should not be a magistrate, when he usurps that office, is no magistrate. Hence, a person that is incapable and incompetent for government cannot be owned for a governor; but the duke of York is such a person, not only not qualified as the word of God requires a magistrate to be, but by the laws of the land declared incapable of rule, because he is a papist, a murderer, an adulterer, &c. 5. There must be a moral power, a lawful title and investiture, as is shewed above; which, if it be wanting, the power is null, and the person but a scenical king, like John of Leyden. This is essentially necessary to the being of a magistrate; which only properly distinguishes him from a private man; for when a person becomes a magistrate, what is the change that is wrought in him? what new

habit or endowment is produced in him? he hath no more natural power than he had before, only now he hath the moral power, right and authority to rule, legally empowering him to govern. Let it be considered, what makes a subordinate magistrate, whom we own as such; it must be only his commission from a superior power, otherwise we reject him; if one come to us of his own head, taking upon him the stile and office of a bailiff, sheriff or judge, and command our persons, demand our purses, or exact our oaths; we think we may deny him, not taking ourselves to owe him any subjection, not owning any bond of conscience to him; why? because he hath no lawful commission. Now, if we require this qualification in the subordinate, why not in the supreme? Hence, that magistrate, that cannot produce his legal investiture, cannot be owned; but the duke of York cannot produce his legal investiture, his admission to the crown upon oath and compact, and with the consent of the subjects, according to the laws of the land, as is shewed above: therefore——4. There must also be the lawful use of the power; which must be not only legal for its composure, but right for its practice; its course and process in government must be just, governing according to law, otherwise it is mere tyranny: for what is government, but the subjecting of the community to the rule of governors, for peace and order's sake, and the security of all their precious interests? and for what end was it ordained, and continued among men, but that the stronger may not domineer over the weaker? and what is anarchy, but the playing the rex of the natural power over the moral? Hence, that power which is contrary to law, evil and tyrannical, can tie none to subjection; but the power of the king, abused to the destruction of laws, religion and liberties, giving his power and strength unto the beast, and making war with the Lamb, Rev. xvii. 13, 14. is a power contrary to law, evil and tyrannical: therefore it can tie none to subjection: wickedness by no imaginable reason can oblige any man. It is objected by some, from Rom. xiii. 1. There is no power but of God; the usurping power is a power: therefore it is of God, and consequently we owe subjection to it.

Ans. 1. The original reading is not universal, but this: for there is no power if not from God: which confirms what I plead for, that we are not to own any authority, if it be not authorized by God.

The words are only relative to higher powers, in a restricted sense and at most are but indefinite, to be determined according to the matter; not all power simply, but all lawful power. 2. It is a fallacy from what is said according to a certain thing, there is no power but of God, that is no moral power, as universal negatives use to be understood, Heb. v. 4. No man taketh his honour unto himself, but he that is called of God; which is clear, must not be understood for the negation of the fact, as if no man at all doth or ever did take unto himself that honour, for Korah did it, &c. but, no man taketh it warrantably, with a moral right and God's allowance without God's call: so also the universal imperative, in that same text, must not be taken absolutely without restriction; for if every soul without exception were to be subject, there could be none left to be the higher powers; but it is understood with restriction to the relation of a subject. So here, no power but of God, to be understood with restriction to the relation of a lawful magistrate. It is also to be understood indiscriminately, in reference to the divers species, sorts and degrees of lawful power, supreme and subordinate, whether to the king as supreme, or to governors, &c. as Peter expresses it: or whether they be Christian or pagan; it cannot be meant of all universally, that may pretend to power, and may attain to prevailing potency; for then by this text, we must subject ourselves to the papacy now intended to be introduced; and indeed if we subject ourselves to this papist, the next thing he will require will be that. 3. To the minor proposition, I answer, the usurping power is a power; it is power, I grant, that it is power, or authority, I deny.

Therefore it is of God by his providence, I concede; by his ordinance, I deny. Consequently we owe subjection to it, I deny. We may be subject

passively, I grant. Actively, out of conscience, I deny. But some will object, 2. Though the power be usurped, and so not morally lawful in all these respects; yet it may do good, its laws and administrations may be good. Answ. I grant all is good that ends well, and hath a good beginning. This cannot be good which hath a bad principle, good from the entire cause. Some government for constitution good, may, in some acts, be bad; but a government for constitution bad cannot, for the acts it puts forth, be good. These good acts may be good for matters but formally they are not good, as done by the usurper: they may be comparatively good, that is better so than worse; but they cannot be absolutely, and in a moral sense good: for to make a politic action good, not only the matter must be warrantable, but the call also. It may indeed induce subjects to bear and improve to the best, what cannot be remedied; but cannot oblige to own a magistratical relation.

II. The nature of the power thus discovered, let us see the nature of that relative duty, which we owe and must own as due to magistrates, and what sort of owning we must give them; which, to inquire a little into, will give light to the question. All the duty and deference the Lord requires of us, towards them whom we must own as magistrates, is comprehended in these two expressions, honour required in the fifth command, and subjection required in Rom. xiii. 1. &c. 1 Pet. ii. 13. &c. Whomsoever then we own as magistrates, we must own honour and subjection as due to them: and if so be, we cannot, upon a conscientious ground, give them honour and subjection, we cannot own them as magistrates. The least deference we can pay to magistrates is subjection, as it is required in these words; Let every soul be subject to the higher powers, and, submit yourselves to every ordinance of man for the Lord's sake. But this cannot be given to tyrants and usurpers; therefore no deference can be paid to them at all: and consequently they cannot be owned. That this subjection, which is required to the higher powers, cannot be owned to tyrants, will be apparent, if we consider, 1. The subjection required is orderly subjection to an orderly

power, that we be regularly under him that is regularly above; but usurpation and tyranny is not an orderly power, orderly placed above us; therefore we cannot be orderly under it. This is gathered from the original language, where the powers to be subjected to, are ordained of God and the ordinance of God, and he that resisteth the power is counter-ordered, or contrary to his orderly duty; so the duty is to be subject. They are all words coming from one root, which signifies to order; so that subjection is to be placed in order under another relative to an orderly superiority; but, to occupy the seat of dignity unauthorized, is an ataxy, a breaking of order, and bringing the commonwealth quite out of order. Whereby it may appear, that, in relation to an arbitrary government, there can be properly no orderly subjection. 2. The thing itself must import that relative duty which the fifth command requires; not only a passive stooping endurance, or a feigned counterfeit submission, but a real active duty including obedience to lawful commands; and not only so, but support and maintenance; and that both to the acts of his administration, and to his standing and keeping his station, assisting him with all our abilities, both human and Christian; and not only as to the external acts of duties, but the inward motions of the heart, as consent, love, reverence, and honour, and all sincere fealty and allegiance.

But can a subjection of this extent be paid to a tyrant or usurper? Can we support those we are bound to suppress? Shall we love the ungodly, and help those that hate the Lord? Can we consent, that we and our posterity should be slaves? Can we honour them who are vile, and the vilest of men; how high soever they be exalted? 3. The ground of this subjection is for conscience sake, not for wrath, that is, so far and so long as one is constrained by fear, and, to avoid a greater evil, to stoop to him, but out of conscience of duty, both that of piety to God who ordained magistracy, and that of equity to him who is his minister for good, and under pain of damnation if we break this orderly subjection, Rom. xiii. 2, 5. But can it be imagined, that all this is due to a tyrant and usurper? Can it be out of

conscience, because he is the Lord's minister for good? The contrary is clear, that he is the devil's drudge serving his interest: Is resistance to tyrants a damnable sin? I hope to prove it to be a duty. 4. If subjection to tyrants and usurpers will inveigle us in their snares, and involve us in their sin and judgment, then it is not to be owned to them; but the former is true; therefore the latter. In the foregoing head I drew an argument, for withdrawing from and disowning the prelatic ministers, from the hazard of partaking in their sin, and of being obnoxious to their judgment, because people are often punished for their pastor's sins; Aaron and his sons polluting themselves, would have brought wrath upon all the people, Lev. x. 6. because the teachers had transgressed against the Lord, therefore was Jacob given to the curse, and Israel to reproaches, Isa. xliii. 27, 28. and all these miseries lamented by the church, were inflicted for the sins of her prophets, and the iniquities of her priests, Lam. iv. 13. the reason was, because they owned them, followed them, countenanced them, complied with them, or connived at them, or did not hinder, or else disown them. The same argument will evince the necessity of withdrawing our subjection from, and disowning, usurping, and tyrannical rulers, when we cannot hinder their wickedness, nor give any other testimony against them, to avert the wrath of the Lord. If the defections of ministers will bring on the whole nation desolating judgments; then much more have we reason to fear it, when both magistrates and ministers are involved in, and jointly carrying on, and caressing and encouraging each other in promoting a woful apostasy from God: when the heads of the house of Jacob and princes of the house of Israel, abhor judgment, and pervert all equity. The heads judge for reward, and the priests teach for hire, and the prophets divine for money, and yet lean upon the Lord, and say, is not the Lord among us: none evil can come upon us. Then we can expect nothing, but that Zion for their sake shall be plowed as a field, and Jerusalem become heaps, and the mountain of the house as the high places of the forest, Mic. iii. 9, 11, 12. Certain it is,

that subjects have smarted sore for the sins of their rulers: for Saul's sin, in breaking covenant with the Gibeonites, the land suffered three years famine, 2 Sam. xxi. 1. and the wrath of the Lord could not be appeased, till seven of his sons were hanged up unto the Lord. What then shall appease the wrath of God, for the unparalleled breach of covenant with God in our days? For David's sin of numbering the people, 70,000 men died by the pestilence, 2 Sam. xxiv. 5. For Jeroboam's sin of idolatry, who made Israel to sin, the Lord threatens to give Israel up, because of the sins of Jeroboam, 1 Kings xiv. 16. only they escaped this judgment, who withdrew themselves and fell into Judah. For Ahab's sin of letting go a man whom the Lord had appointed to utter destruction, the Lord threatens him, thy life shall go for his life, and thy people for his people, 1 Kings xx. 42. Because Manasseh, king of Judah, did many abominations, therefore the Lord threatened to bring such evil upon Jerusalem and Judah, that whosoever heard it, his ears should tingle, &c. 2 Kings xxi. 11, 12. and notwithstanding of his repentance and the reformation in the days of Josiah, notwithstanding the Lord turned not from the fierceness of his great wrath, wherewith his anger was kindled against Judah, because of all the provocations that Manasseh had provoked him withal, 2 Kings xxiii. 26. which was accomplished by the hands of the Chaldeans, in Jehoiakim's time. Surely, at the commandment of the Lord, came this upon Judah, to remove them out of his sight, for the sins of Manasseh according to all that he did, and also for the innocent blood which he shed,—which the Lord would not pardon, 2 Kings xxiv. 3, 4. And Jeremiah further threatens, that they should be removed into all kingdoms of the earth, because of Manasseh for that which he did in Jerusalem, Jer. xv. 4. Certainly passages were recorded for our learning, Rom. xv. 4. and for our examples, to the intent we should not do as they did, 1 Cor. x. 6. and for our admonition, ver. 11. Whence we may be admonished, that it is not enough to keep ourselves free of public sins of rulers; many of those then punished, were free of all actual accession to

them; but they became accessory to, and involved in the guilt of them, when they did not endeavour to hinder them, and bring them to condign punishment for them, according to the law of God, which respecteth not persons; or, at least, because they did not revolt from them, as Libnah did: there might be other provocations on the peoples part, no doubt, which the Lord did also punish by these judgments; but when the Lord specifies the sin of rulers as the particular procuring cause of the judgment; it were presumption to make it the occasion only of the Lord's punishing them: for plain it is, if these sins of rulers had not been committed, which was the ground of the threatening and execution, the judgment would have been prevented; and if the people had bestirred themselves as became them, in repressing and restraining such wickedness, they had not so smarted; and when that sin, so threatened and punished, was removed, then the judgment itself was removed or deterred. It is just and necessary, that the subjects, being jointly included with their rulers in the same bond of fidelity to God, be liable to be punished for their rebellion and apostacy, when they continue under the bond of subjection to them. But how deplorable were our condition, if we should stand obnoxious to divine judgments, for the atheism, idolatry, murders, and adulteries of our rulers, and yet be neither authorized nor capacitated to hinder it, nor permitted to withdraw ourselves from subjection to them? But it is not so; for, the Lord's making us responsible for their debt, is an empowering us either to repress their wickedness when he gives us capacity, or at least to save ourselves harmless from their crimes, by disowning them; that being the only way of standing no longer accountable for their souls.

12. It remains to consider the ends for which government was institute by God, and constitute by men; from whence I argue, that government, that destroys the ends of government, is not to be owned; but tyranny, and especially this under which we howl, destroys all the ends of government; therefore it is not to be owned. The minor I prove thus, That government,

that destroys all religion and safety, destroys all the ends of government; but this popish and arbitrary absolute power, destroys religion and safety; therefore—it is evident, both from the laws of nature and revelation, that the ends of government are the glory of God, and the good of mankind. The first is the glory of God, the ultimate end of all ordinances; to which whatever is opposite, is not to be owned by them that fear him: whatever power then is destructive to religion, and is applied and employed against the glory of the universal King, and for withdrawing us from our fealty and obedience to him, is nothing but rebellion against the supreme Lord and Lawgiver, and a traiterous conspiracy against the Almighty, and therefore not to be owned: and they are enemies to religion, or strangers to it, who are not sensible this hath been the design of the present government, at least these twenty-seven years, to overturn the reformed covenanted religion, and to introduce popery. Hence, seeing a king at his best and highest elevation, is only a mean for preserving religion, and for this end only chosen of the people to be keeper of both tables of the law, he is not to be regarded, but wholly laid aside, when he not only moves without his sphere, but his motion infers the ruin of the ends of his erection, and when he employs all his power for the destruction of the cause of Christ, and advancement of antichrist, giving his power to the beast; he is so far from deserving the deference of the power ordained of God, that he is to be looked upon, and treated as a traitor to God, and stated enemy to religion and all righteousness. The second end of government is the good of the people, which is the supreme and cardinal law; the safety of the people is the supreme law. Which cannot be denied, if it be considered, 1. For this only the magistrate is appointed of God to be his minister for the people's good, Rom. xiii. 4. and they have no goodness but as they conduce to this end: for all the power they have of God is with this proviso, to promote his people's prosperity. (It were blasphemy to say, they are his authorised ministers for their destruction) to which if their conduct degenerate, they degrade

themselves, and so must be disowned. He is therefore, in his institution, no more than a mean for this end; and himself cannot be either the whole or half of the end; for then he should be both the end and the mean of government; and it is contrary to God's mould to have this for his end, to multiply to himself silver and gold, or lift up himself above his brethren, Deut. xvii. 17, 20. If therefore he hath any other end than the good of the people, he cannot be owned as one of God's moulding, 2. This only is the highest pitch of good princes ambition, to postpone their own safety to the peoples safety. Moses desired, rather than the people should be destroyed, that his name should be razed out of the book of life. And David would rather the Lord's hand be on him and his father's house, than on the people, that they should be plagued, 1 Chron. xxi. 17. But he that would seek his own ambitious ends, with the destruction of the people, hath the spirit of the devil, and is to be carried towards as one possessed with that malignant spirit. 3. Originally their power is from the people, from whom all their dignity is derived, with reserve of their safety, which is not the donative of kings, nor held by concession from them, nor can it be resigned or surrendered to the disposal of kings; since God hath provided, in his universal laws, that no authority make any disposal, but for the good of the people. This cannot be forfeited by the usurpation of monarchs, but being always fixed in the essential laws of government, they may reclaim and recover it when they please. Since then we cannot alienate our safety, we cannot own that authority which is inconsistent with it. 4. The attaining this end was the main ground and motive of peoples deliberating to constitute a government, and to choose such a form, because they thought it most conducive for their good; and to admit such persons as fittest instruments for compassing this end; and to establish such a conveyance, as they thought most contributive for this end. When therefore princes cease to be what they could be constitute for, they cease to have an authority to be owned; but ceasing to answer these ends of government, they cease to be

what they could be constitute for. 5. For no other end were magistrates limited with conditions, but to bound them, that they might do nothing against the peoples good and safety.

Whosoever then breaking through all legal limitations, shall become injurious to the community, lists himself in the number of enemies, and is only to be looked upon as such. 6. For this end all laws are ratified or rescinded, as they conduce to this end, which is the soul and reason of the law: then it is but reason, that the law establishing such a king, which proves an enemy to this, should be rescinded also. 7. Contrary to this end no law can be of force; if then, either law or king be prejudicial to the realm, they are to be abolished. 8. For this end, in cases of necessity, kings are allowed sometimes to neglect the letter of the laws, or private interests, for the safety of the community: but if they neglect the public safety, and make laws for their own interests, they are no more trustees but traitors. 9. If it were not for this end, it were more eligible to live in desarts, than to enter into societies. When therefore a ruler, in direct opposition to the ends of government, seeks the ruin, not only of religion, but also of the peoples safety, he must certainly forfeit his right to reign. And what a vast, as well as innocent number, have, for religion, and their adherence to their fundamental rights, been ruined, rooted out of their families possessions, oppressed, persecuted, murdered, and destroyed by this and the deceased tyrant, all Scotland can tell, and all Europe hath heard. If ever the ends of government were perverted and subverted in any place. Britain is the stage where this tragedy has been acted.

13. I may argue from the covenant, that to own this authority is contrary to all the articles thereof. 1. That authority which overturns the reformation of religion in doctrine, worship, discipline and government, which we are sworn to preserve against the common enemies thereof, in the first article, cannot be owned; but the present pretended authority overturned (and

continues more to overturn) the reformation of religion, &c. therefore it cannot be owned. For against what common enemy must we preserve it, if not against him that is the chief enemy thereof? And how can we own that authority, that is wholly employed and applied for the destruction of religion? 2. If we are obliged to extirpate popery, without respect of persons, lest we partake in other mens sins; then we are obliged to extirpate papists without respect of persons; and consequently the head of them. (For how otherwise can popery be extirpated? Or how otherwise can we cleanse the land of their sins?) But in the 2d article we are obliged to extirpate popery without respect of persons, lest we partake in others mens sins: therefore we are obliged to extirpate papists without respect of persons, and consequently the crowned Jesuit, and therefore cannot own him: for how can we own him, whom we are bound to extirpate? 3. If we be engaged to preserve the rights and liberties of parliaments, and the liberties of the kingdoms, and the king's authority only in the preservation and defence of the true religion and liberties of the kingdoms, then we cannot own his authority, when it is inconsistent with, opposite to, and destructive of all these precious interests, as now it is with a witness. But in the 3d article we are engaged to preserve the rights and privileges of parliaments, and the liberties of the kingdoms, and the king's authority only in the preservation and defence of the true religion and liberties of the kingdoms: therefore all allegiance that we can own to any man, must stand perpetually thus qualified, in defence of religion and liberty; that is, so far as it is not contrary to religion and liberty, and no further; for if it be destructive of these, it is null. If we should then own this man, with this restricted allegiance, and apply into his own authority (as we must apply it to all authority that we can own) it were to mock God and the world, and own contradictions: for can we maintain the destroyer of religion, in defence of religion, and the destroyer of all our rights and liberties, and all our legal securities for them, in the preservation of these rights and liberties? That

were pure nonsense. 4. If we be obliged to endeavour, that all incendiaries and malignants, &c. be brought to condign punishment, then we cannot own the authority of the head of these incendiaries and malignant enemies; but in the fourth article, we are obliged to endeavour, that all incendiaries and malignants, &c. be brought to condign punishment: therefore——The connexion of the major cannot well be doubted, for is it imaginable, that the head of that unhallowed party, the great malignant enemy, who is the spring, and gives life unto all these abominations shall be exempted from punishment, or owned for a sacred majesty? shall we be obliged to discover, and bring to justice the little petty malignants, and this implacably stated enemy to Christ escape with a crown on his head? Nay, we are by this obliged, if ever we be in case, to bring these stated enemies to God and the country to condign punishment, from the highest to the lowest: and this we are to do, as we would have the anger of the Lord turned away from us, which cannot be, without hanging up their heads before the Lord against the sun, as was done in the matter of Peor, Numb. xxv. 4. For hath not he and his accomplices made the kingdom a curse? and we, with our own consent, have made ourselves obnoxious to it, if we do not procure, each in our capacities, and pursue these traitors and rebels, that the judgment of the Lord be executed upon the accursed. 5. No wilful opposer of peace and union between the kingdoms is to be owned; but, according to the 5th article, we are obliged to endeavour, that justice be done upon him: but this man and his brother have been wilful opposers of peace and union between the kingdoms, all true peace and union, except an union in confederacy against the Lord; for they have taken peace from both the kingdoms, and destroyed and annulled that which was the bond of their union, to wit, the solemn league and covenant. 6. If we are obliged to assist and defend all those that enter into this league and covenant, in the maintaining and pursuing thereof, and never to suffer ourselves to be divided, to make defection to the contrary part, &c. According to the 6th article then, we

must not ow't the butcher of our covenanted brethren, who hath imbrued his hands in their blood, in maintaining and pursuing thereof, and would have us withdrawn into so detestable a defection; for we cannot both own him as he requires to be owned, and as God requires every magistrate to be owned (so as not to resist him under pain of damnation, Rom. xiii. 2.) and assist our brethren too in refilling his murders: and our owning of him were a dividing of ourselves from our brethren that oppose him, into a defection to the contrary part, whereof he is head and patron. Lastly, In the conclusion, we are obliged to be humbled for the sins of these kingdoms, and to amend in a real reformation; whereof this is one to be mourned for, that after the Lord had delivered us from the yoke of this tyrannical family, we again joined in amity with the people of these abominations, and took these serpents into our bosom again, which hath bit us so sore, and wherewith the Lord hath scourged us severely. And if it was our sin to engage with them at first, then it is our sin to continue under their subjection; and is not consistent with that repentance, that the Lord's contendings call for, to continue owning that power which was our sin to own at first.

III. In the third place, I promised to confirm my thesis from more express scripture arguments. Therefore I shall endeavour to gather them as briefly as may be. 1. From scripture inferences, nearly and natively consequential. 2. From scripture assertions. 3. From scripture precepts. 4. From scripture practices. 5. From scripture promises. 6. From scripture threatnings. 7. From scripture prayers.

First, I shall offer some arguments deduced by way of immediate inference, from the grounds laid before us in scripture about government: wherein I shall confine my self to these particulars.

1. Let us consider the characters of a magistrate, laid down in scripture; and we may infer, if tyrants and usurpers are not capable of these

characters, then they cannot be owned for magistrates. For if they be not magistrates, they cannot be owned as magistrates; but if they be not capable of the characters of magistrates, they are not magistrates: Ergo, if they be not capable of the characters of magistrates, they cannot be owned as magistrates. To find out the characters of magistrates, we need seek no further than that full place, Rom. xiii. Which usually is made a magazine of objections against this truth; but I trust to find store of arguments for it from thence, not repeating many that have been already deduced therefrom. We find, in this place, many characters of a magistrate, that are all incompatible with a tyrant or usurper. 1. He is the higher power, verse 1. Authorities supereminent, signifying such a pre-excellency as draweth towards it a recognition of honour; but this is not competent to tyrants and usurpers; for they are the vilest of men, let them be never so high exalted, Psal. xii. last verse, and if they be vile then they are to be contemned, Psal. xv. 4. and no more to be regarded than Herod was by Christ, when he called him a fox, Luke xiii. 32. But more particularly, let us consider what is the highness, or dignity of magistrates, set forth in scripture. They are stiled gods, not to be reviled, Exod. xxii. 28. among whom God judgeth, Psal. lxxxii. 1. so called, because the word of God came unto them, John x. 35. But tyrants are rather devils, as one of them is called Lucifer, Isa. xiv. 12. and they that persecute and imprison the people of God, because actuated by the devil, and acting for him, do bear his name, Rev. ii. 10. They are devils that cast the Lord's witnesses into prison. The magistrate's judgment is God's judgment, Deut. i. 17. because it is not for man, but for the Lord, 2 Chron. xix. 6. and therefore Solomon is said to have sat on the throne of the Lord, 1 Chron. xxix. 23. But it were blasphemy to say, That tyrants judgment, usurping the place without his warrant, and giving forth judgment against his laws, and cause, and people, is the Lord's judgment, or for him, or that they sit on the throne of the Lord. A throne of iniquity is not the throne of the Lord, for he hath no fellowship with it; the tyrant's throne is a throne of iniquity, Psal. xciv. 20.

Magistrates are truly to be subjected to and obeyed, as principalities and powers, Tit. iii. 1. it is a sin to speak evil of them, verse 2. for it is presumption to despise dominion, and speak evil of dignities, 2 Pet. ii. 10. Jude 8. But tyrants are very catechrestically and abusively principalities and powers, no otherwise then the devils are so termed, Eph. vi. 12. and there is no argument to own or obey the one more than the other: for if all principalities and powers are to be subjected to and owned, then also the devil must, who gets the same title. To speak truth of tyrants indignities, cannot be a speaking evil of dignities; for truth is no evil, nor is tyranny a dignity. Hence they that are not capable of the dignity of rulers, as these places prove: Ergo——Against this it is objected. That Paul did apply this character to the tyrannical high priest Ananias, whom, after he had objurated for manifest injustice, he honours with that apology, that he wist not that he was the high priest, for it is written, thou shalt not speak evil of the ruler of thy people, Acts xxiii. 5. Ans. Though all should be granted that is in this objection, yet our argument would not be enervated: for grant we should not speak evil of tyrants, that does not evince that we should hold them us rulers; for we should bless our persecutors, Rom. x. 14. and speak evil of no man, Tit. iii. 2. that does not say, We should hold every man, or our persecutors, to be rulers. The meaning must be, he knew not that he was the high-priest; that is, he did not acknowledge him to be either high priest or ruler, he could acknowledge or observe nothing like one of that character in him: for as the high-priest's office was now null and ceased, so this Ananias was only an usurper of the office, in place of Ismael and Joseph, who had purchased it by money: and Paul had learned from his master Gamaliel, Tit. Talmud. of the Sanhedrim. That a judge who hath given money for purchasing this honour, is neither a judge, nor to be honoured as such, but to be held in place of an ass. And it was common among the Jews to say, If such be gods, they are silver gods, not to be honoured, as is quoted by Pool's synopsis criticorum, &c. on the same place. And that this must be

the sense of it is plain; for he could not be ignorant that he was there in place of a judge, being called before him, and smitten by him authoritatively, whom therefore he did threaten with the judgment of God; it were wicked to think, that he would retract that threatening which he pronounced by the Spirit of God. And therefore this place confirms my thesis: if a tyrannical judge, acting contrary to law, is not to be known or acknowledged to be a ruler, but upbraided as a whited wall; then a tyrant is not to be known or acknowledged as such; but the former is true, from this place: therefore also the latter. Paul knew well enough he was a judge, and knew well enough what was his duty to a judge, that he should not be reviled; but he would not acknowledge this priest to be a judge, or retract his threatening against him.

2. He is of God, and ordained of God; I proved before, tyrants are not capable of this; yea, it were blasphemy to say, They are authorized, or ordained of God, by his preceptive will. Hence, take only this argument. All rulers that we must own are ordained of God, do reign, and are set up by God, Prov. viii, 15. (for that and this place are parallel) but tyrants do not reign, nor are set up by God, Hos. viii. 4. They are set up (saith the Lord) but not by me: Ergo, we cannot own them to be ordained of God. 3. Whosoever resisteth this power ordained of God, resisteth the ordinance of God, and they that resist, shall receive to themselves damnation, verse 2. This cannot be owned of a tyrant, that it is a damnable sin to resist him, for it is duty to resist, and also repress him, as is proven already, and shall be afterwards. Hence, whatsoever authority we own subjection to, we must not resist it; but we cannot own that we must not resist this authority: therefore we cannot own it at all. Again, That cannot be the power not to be resisted, which is acquired and improved by resisting the ordinance of God; but the power of usurpers and tyrants is acquired and improved by resisting the ordinance of God: Ergo, their power cannot be the power not to be resisted. The major is manifest; for when the apostle says, The resisting of the power

brings damnation to the resister, certainly that resistance cannot purchase dominion instead of damnation: and if he that resists in a lesser degree, be under the doom of damnation; then certainly he that does it in a greater degree, so as to complete it, in putting himself in place of that power which he resisted, cannot be free. The minor is also undeniable; for, if usurpers acquire their power without resistance forcible and sensible, it is because they that defend the power invaded, are wanting in their duty; but however morally the tyrant or usurper is always, or in contrary order to a lawful power. 4. Rulers are not a terror to good works, but to the evil, and they that do that which is good, shall have praise of the same, verse 3. This is the character and duty of righteous magistrates, though it be not always their administration; but an usurper and tyrant is not capable or susceptible of this character; but, on the contrary, is, and must be a terror to good works, and a praise to the evil: for he must be a terror to them that would secure their rights and liberties in opposition to his encroachments, which is a good work; and he must be a tutor, patron, and protector of such, as encourage and maintain him in his usurpation and tyranny, which is an evil work: and if he were a terror to the evil, then he would be a terror to himself and all his accomplices, which he cannot be. Therefore, that power which is not capable of the duties of magistrates, cannot be owned; but the power of tyrants and usurpers is such: Ergo—We find in scripture the best commentary on this character, where the duties of a magistrate are described; they must justify the righteous, and condemn the wicked, Deut. xxvii. 1. They must, as Job did, deliver the poor that cry, and put on righteousness as a clothing,—and be eyes to the blind, and feet to the lame, and a father to the poor—and break the jaws of the wicked, Job xxix. 12, 17. Their throne must be established by righteousness, Prov. xvi. 12. A king sitting on the throne of judgment must scatter away all evil with his eyes—then mercy and truth will preserve him, and his throne is upholden by mercy, Prov. xx. 8, 28. But tyrants have a quite contrary

character; the throne of iniquity frames mischief by a law, and condemns the innocent blood, Psal. xciv. 20, 21. They judge not the fatherless, neither doth the cause of the widow come unto them, Isa. i. 23. They build their house by unrighteousness, and their chambers by wrong, and use their neighbours service without wages, Jer. xxii. 13. They oppress the poor, and crush the needy, Amos iv. 1. They turn judgment to gall, and the fruit of righteousness to hemlock, and say, have we not taken horns to us by our own strength, Amos vi. 12, 13. These contrary characters cannot consist together. 5. He is the minister of God for good, verse 4. not by providential commission, as Nebuchadnezzar was, and tyrants may be eventually, by the Lord making all things turn about for the good of the church; but he hath a moral commission from God, and is entrusted by the people, to procure their public and political good at least.

Now, then tyranny and usurpation, are together inconsistent; for if tyrants and usurpers were ministers for good, then they would restore the public and personal rights, and rectify all wrongs done by them; but then they must surrender their authority, and resign it, or else all rights cannot be restored, nor wrongs rectified. Hence, these that cannot be owned as magistrates of God for good, cannot be owned as magistrates; but tyrants and usurpers, (and in particular this man) are such as cannot be owned as ministers of God for good: Ergo——Again, if magistracy be always a blessing, and tyranny and usurpation always a curse, then they cannot be owned to be the same thing, and the one cannot be owned to be the other; but magistracy, or the rightful magistrate, is always a blessing; tyranny and usurpation, or the tyrant and usurper, always a curse: Ergo——That the former is true, these scriptures prove it. God provides him for the benefit of his people, 1 Sam. xvi. 1. A just ruler is compared to the light of the morning, when the sun riseth, even a morning without clouds, 2 Sam. xxiii. 4. So the Lord exalted David's kingdom, for his people Israel's sake, 2 Sam. v. 12. Because the Lord loved Israel for ever, therefore made he Solomon

king, to do judgment and justice, 1 Kings x. 9. When the righteous are in authority the people rejoice——The king by judgment stablished the land, ——Prov. xxix. 2, 4. The Lord promises magistrates as a special blessing, Isa. i. 26. Jer. xvii. 25. And therefore their continuance is to be prayed for, that we may lead a quiet and peaceable life, in all godliness and honesty, 1 Tim. ii. 2. And they must needs be a blessing, because to have no ruler is a misery: for when Israel had no king, every man did that which was right in his own eyes, Judges xvii. 6. And the Lord threatens it as a curse to take away the stay and the staff——the mighty man, and the man of war, the judge and the prophet, &c. Isa. iii. 1, 2. &c. And that the children of Israel shall abide many days without a king, and without a prince, Hos. ii. 4. But on the other hand, tyrants and usurpers are always a curse, and given as such: it is threatened among the curses of the covenant, that the stranger shall get up above Israel very high——and that they shall serve their enemies, which the Lord shall send against them——and he shall put a yoke of iron upon their neck, until he hath destroyed them, Deut. xxviii. 43, 48. As a roaring lion and a ranging bear, so is a wicked ruler over the poor people, Prov. xxviii. 15. and therefore, when the wicked beareth rule the people mourn, Prov. xxix. 2. The Lord threatens it as a curse, that he will give children to be their princes, and babes shall rule over them, Isa. iii. 4. And if unqualified rulers be a curse, much more tyrants. They are the rod of his anger, and the staff in their hand is his indignation, his axe, and sawe, and rod, Isa. x. 5, 15. It is one thing to call a man God's instrument, his rod, axe, sword, or hammer; another thing to call him God's minister; there is a wide difference betwixt the instruments of God's providence, and the ministers of his ordinance; those fulfil his promises only, these do his precepts. Such kings are given in the Lord's anger, Hos. xiii. 11. therefore they cannot be owned to be ministers of God for good. 6. He beareth not the sword in vain, for he is the minister of God, a revenger to execute wrath upon him that doth evil, verse 4. The apostle doth not say, He that beareth

the sword is the ruler, but he is the ruler that beareth the sword. This is not every sword, for there is the sword of an enemy, the sword of a robber, the sword of a common traveller; but this as a faculty of political rule, and authoritative judgment. It is not said, He takes the sword (as the Lord expresses the usurpation of that power, Matth. xxvi. 52.) but he beareth the sword, hath it delivered him into his hand by God, by God's warrant and allowance, not in vain; to no end or without reason, or without a commission, as Paraeus upon the place expounds it. He is a revenger to execute wrath, not by private revenge, for that is condemned by Paul before, Rom. xi. 19. not by providential recompense, for when a private person so revengeth, it is the providential repayment of God; but as God's minister, by him authorized, commissioned, and warranted to this work. Now this cannot agree with a tyrant or usurper, whose sword only legitimates his sceptre, and not his sceptre his sword, who takes the sword rather than bears, and uses it without reason or warrant from God, in the execution of his lustful rage upon him that doth well, and hath no right to it from God. Hence, he that beareth the sword no other way but as it may be said of a murderer, cannot be a magistrate bearing the sword; but a tyrant and usurper beareth the sword no other way but as it may be said of a murderer: Ergo.—So much for the characters of a magistrate, which are every way inapplicable to tyrants and usurpers, and as inapplicable to this of ours as to any in the world.

2. If we consider the scripture resemblances, importing the duty of magistrates, and the contrary comparisons, holding forth the sin, vileness, and villainy of tyrants and usurpers; we may infer, that we cannot own the last to be the first. First, From the benefit they bring to the commonwealth, magistrates are stiled, 1. Saviours, as Othniel the son of Kenaz is called, Judges iii. 9. and Jehoahaz in his younger years, 2 Kings xiii. 5. and all good judges and magistrates, Neh. ix. 27. But tyrants and usurpers cannot be such, for they are destroyers, whom the Lord promises to make go forth

from his people, Isa. xlix. 17. The Chaldean tyrant is called the destroyer of the Gentiles, Jer. iv. 7. and the destroyer of the Lord's heritage, Jer. l. 11. where they can no more be owned to be magistrates, than Abaddon or Apollyon can be owned to be a saviour. 2. From their paternal love to the people, they are stiled fathers, and therefore to be honoured according to the fifth command. So Deborah was raised up a mother in Israel, Judges v. 7. Kings are nursing fathers by office, Isa. xlix. 23. But that tyrants cannot be such, I have proved already; for they can no more be accounted fathers, than he that abuseth or forceth our mother. 3. From the protection and shelter that people find under their conduct, they are called shields, Psal. xlvii. ult. The princes of the people, the shields of the earth, belong unto God. But tyrants cannot be such, because they are the subverters of the earth. 4. From the comfort that attends them, they are resembled to the morning light, and fruitful showers of rain, 2 Sam. xxiii. 4. They waited for me, as for the rain, saith Job xxix. 23. But tyrants cannot be resembled to these, but rather to darkness, and to the blast of the terrible ones, Isa. xxv. 4. as a storm against the wall. If darkness cannot be owned to be light, then cannot tyrants be owned to be magistrates. 5. From their pastoral care and conduct and duty, they are feeders. The judges of Israel are commanded to feed the Lord's people, 1 Chron. xvii. 6. David was brought to feed Jacob his people, and Israel his inheritance, Psal. lxxvii. 71. But tyrants are wolves, not shepherds. 6. By office they are physicians, or healers, Isa. iii. 7. That tyrants cannot be such, is proven above. Secondly, On the other hand, the vileness, villainy, and violence of tyrants and usurpers, are held forth by fit resemblances, being compared to these unclean creatures. 1. Tyrants are wicked dogs, as they who compass about Christ, Psal. xxii. 16, 20. Saul is called Dog there, and in that golden psalm, Psal. lix. 6. Saul and his accomplices watching the house to kill David, make a noise like a dog, and go round about the city. 2. They are pushing bulls, Psal. xxii. 12. and crushing kine of Bashan, that oppress the poor, Amos iv. 1. They have need

then to have their horns cut short. 3. They are roaring lions, that are wicked rulers over the poor people, Prov. xxviii. 15. Zeph. iii. 3. So Paul calls Nero the lion, out of whose mouth he was delivered, 2 Tim. iv. 17. 4. They are ranging bears, Prov. xxvii. 15. So the Persian monarch is emblemized Dan. vii. 5. 5. They are leviathan, the piercing serpent and dragon, Isa. xxvii. 1. and have great affinity in name and nature with the apocalyptick dragon. So also, Isaiah li. 9. the Egyptian tyrant is called dragon and Nebuchadnezzar swallowed up the church like a dragon, Jer. li. 34. See also Ezek. xxix. 3. 6. They are wolves, ravening for the prey, Ezek. xxii. 27. Evening wolves, that gnaw not the bones till the morrow, Zeph. iii. 3. 7. They are leopards; so the Grecian tyrants are called, Dan. vii. 6. and antichrist, Rev. xiii. 2. 8. They are foxes; so Christ calls Herod, Luke xiii. 32. 9. They are devils, who cast the Lord's people into prison, Rev. ii. 10, 13. Now, can we own all these abominable creatures to be magistrates? Can these be the fathers we are bound to honour in the fifth commandment? They must be esteemed sons of dogs and devils that believe so, and own themselves sons of such fathers.

If we further take notice, how the Spirit of God describes tyranny, as altogether contradistinct and opposite unto the magistracy he will have owned; we may infer hence, tyrants and usurpers are not to be owned. What the government instituted by God among his people was, the scripture doth both relate in matter of fact, and describes what it ought to be by right, viz. That according to the institution of God, magistrates should be established by the constitution of the people, who were to make them judges and officers in all their gates, that they might judge the people with just judgment, Deut. xvi. 18. But foreseeing that people would affect a change of that first form of government, and, in imitation of their neighbouring nations, would desire a king, and say, I will set a king over me, like all the nations that are about me, Deut. xvii. 14. The Lord, intending high and holy ends by it, chiefly the procreation of the Messiah from a kingly race, did permit the change, and gave directions how he should be moulded and

bounded, that was to be owned as the magistrate under a monarchical form; to wit, that he should be chosen of God, and set up by their suffrages, that he should be a brother, and not a stranger; that he should not multiply horses, nor wives, nor money, (which are cautions all calculated for the people's good, and the security of their religion and liberty, and for precluding and preventing his degeneration into tyranny) and that he should write a copy of the law in a book, according to that which he should govern, verse 15. to the end of the chapter, yet the Lord did not approve the change of the form, which that luxuriant people was long affecting, and at length obtained: for, long before Saul was made king, they proffered an hereditary monarchy to Gideon, without the boundaries God's law required: which that brave captain knowing how derogatory it was to the authority of God's institution, not to be altered in form or frame without his order, generally refused, saying, I will not rule over you, neither shall my son rule over you; the Lord shall rule over you, Judges viii. 23. But his bastard, the first monarch and tyrant in Israel, Abimelech, by sinistrous means being advanced to be king by the traiterous Sechemites, Jotham, and other of the godly, disowned him; which, by the Spirit of God, Jotham describes parabolically significantly holding out the nature of that tyrannical usurpation, under the apologue of the trees itching after a king, and the offer being repudiate by the more generous sort, embraced by the bramble: signifying, that men of worth and virtue would never have taken upon them such an arrogant domination, and that such a tyrannical government, in its nature and tendency, was nothing but an useless, worthless, sapless, aspiring, scratching, and vexing shadow of a government, under subjection to which there could be no peace nor safety. But this was rather a tumultuary interruption than a change of the government; not being universally either desired or owned; therefore, after that the Lord restored the pristine form, which continued until, being much perverted by Samuel's sons, the people unanimously and peremptorily desired the change thereof,

and, whether it were reason or not, would have a king; as we were fondly set upon one, after we had been delivered from his father's yoke: and the Lord gave them a king with a curse, and took him away with a vengeance, Hos. xiii. 11. as he did our Charles II. Yet he permitted it, but with a protestation against and conviction of the sin, that thereby they had "rejected the Lord," 1 Sam. viii. 7. and with a demonstration from heaven, which extorted their own confession, that they "had added unto all their sins this evil to ask a king," 1 Sam. xii. 17, 18, 19. And to deter and dissuade from such a conclusion, he appoints the prophet to shew them the "manner of the king" that should reign over them, 1 Sam. viii. 9. to declare before hand, what sort of a ruler he would prove, when they got him; to wit, a mere tyrant, who would take their sons and appoint them for himself, for his chariots, and for horsemen, and to run before his chariots, and make them his soldiers, and labourers of the ground, and instrument makers, and household servants, and he would take their fields and vineyards—the best of them, and give unto his servants. In a word, to make all slaves; and that in the end, when this should come to pass, they should cry out because of their king, but the Lord would not hear them, ver. 11-18. All which, as it is palpable in itself, so we have sensibly felt in our experience to be the natural description of tyranny, but more tolerable than any account of ours would amount to. It is both foolishly and falsely alledged by royalists or tyrannists, that here is a grant of uncontrollable absoluteness to kings to tyrannize over the people without resistance, and that this manner of the king is in the original *Mishpat*, which signifies right or law; so that here was a permissive law given to kings to tyrannize, and to oblige people to passive obedience, without any remedy but tears; and therefore it was registered, and laid up before the Lord in a book, 1 Sam. x. 25. But I answer, 1. If any thing be here granted to kings, it is either by God's approbation, directing and instructing how they should govern; or it is only by permission and providential commission to them, to be a plague to the

people for their sin of choosing them, to make them drink as they have brewed, as sometimes he gave a charge to the Assyrian rod to trample them down as the mire of the streets: if the first be said, then a king that does not govern after that manner, and so does not make people cry out for their oppression, would come short of his duty, and also behoved to tyrannize and make the people cry out; then a king may take what he will from his subjects, and be approved of God: this were blasphemy absurd, for God cannot approve of the sin of oppression. If the second be said, then it cannot be an universal grant, or otherwise all kings must be ordained for plagues; and if so, it were better we wanted such nursing fathers. 2. Though Mishpat signifies right or law, yet it signifies also, and perhaps no less frequently, manner, course, or custom: and here it cannot signify the law of God, for all these acts of tyranny are contrary to the law of God; for to make servants of subjects is contrary to the law of God, Deut. xvii. 20. Forbidding to lift up himself so far above his brethren; but this was to deal with them as a proud Pharaoh; to take so many for chariots and horsemen, is also contrary to the law, Deut. xvii. 15. "He shall not multiply horses;" to take their fields and vineyards is mere robbery, contrary to the moral and judicial law, whereof he was to have always a copy, ver. 18. And contrary to Ezek. xlvi. 18. "The prince shall not take of the peoples inheritance," &c. This would justify Ahab's taking Naboth's vineyard, which yet the Lord accounted robbery, and for which tyrants are called "companions of thieves," Isa. i. 23. and "robbers," Isa. xlii. 24. into whose hands the Lord sometimes may give his people for a spoil in judicial providence; but never with his approbation and grant of right: to make them cry out, is oppression, which the Lord abhors, Isa. v. 7, 8. And if this be all the remedy, it is none; for it is such a cry, as the Lord threatens he will not hear. 3. It is false, that this manner of the Lord was registred in that book mentioned, 1 Sam. x. 25. for that was the law of the kingdom, accordingly the copy of which the king was to have for his instruction containing the fundamental laws, point blank

contrary to this which was the manner of the king; there is a great difference between the manner of the kingdom, which ought to be observed as law, and the manner of the king, what he would have as lust. Would Samuel write in a book the rules of tyranny, to teach to oppress, contrary to the law of God? He says himself, he would only teach both king and people "the good and the right way," 1 Sam. xii. 23, 25. 4. Nothing can be more plain, than that this was a mere dissuasive against seeking; for he protests against this course, and then lays before them what sort of a king he should be, in a description of many acts of tyranny; and yet in the end it is said, 1 Sam. vii. 19. "Nevertheless the people refused to obey the voice of Samuel, and said, Nay, but we will have a king."

Now, what else was the voice of Samuel, than a dissuasion? I am not here levelling this argument against monarchy in the abstract, that does not ly in my road; but I infer from thence, 1. If God was displeased with this people for asking and owning a king, who was only to become a tyrant and dissuades from the choice, by a description of his future tyranny; then certainly he was displeased with them, when they continued owning, when he was a tyrant indeed, according to that description; but the former is true, therefore also the latter. The consequence is clear: for continuing in sin is sin; but continuing in owning that tyrant, which was their sin at first, was a continuing in sin; therefore——The minor is confirmed thus: continuing is counteracting the motives of God's dissuasion, especially when they are sensibly visible, is a continuing in sin; but their continuing in owning Saul after he became a tyrant, was a continuing in counteracting the motives of God's dissuasion, when they were sensibly visible. I do not say, because it was their sin to ask Saul, therefore it was not lawful to own him, while he ruled as a magistrate: and so if Charles II. had ruled righteously, it would not have been sin to own him; but after the Lord uses dissuasives from a choice of such an one, and these are signally verified, if it was to make the choice, then it must be sin to keep it. 2. If it was their sin to seek and set up

such an one before he was tyrant, who yet was admitted upon covenant terms, and the manner of it registred; then much more is it a sin to seek and set up one, after he declared himself a tyrant, and to admit him without any terms at all, or for any to consent or give their suffrage to such a deed; but the former is true, therefore the latter: and consequently, to give our consent to the erection of the duke of York, by owning his authority, was our sin. 3. If it be a sin to own the manner of the king there described, then it is a sin to own the pretended authority, which is the exact transumpt of it; but it is a sin to own the manner of the king there described, or else it would never have been used as a dissuasive from seeking such a king. 4. To bring ourselves under such a burden, which the Lord will not remove, and involve ourselves under such a misery, wherein the Lord will not hear us, is certainly a sin, ver. 18. But to own or choose such a king, whose manner is there described, would bring ourselves under such a burden and misery, wherein the Lord would not hear us: therefore it were our sin.

4. We may add the necessary qualifications of magistrates, which the Lord requires to be in all, both superior and inferior: and thence it may be inferred, that such pretended rulers, who neither have nor can have these qualifications, and are not to be owned as ministers, who have no qualifications for such a function. We find their essentially necessary qualifications particularly described. Jethro's counsel was God's counsel and command; that rulers must be able men such as fear God, men of truth, hating covetousness, Exod. xviii. 21. Tyrants and usurpers have none, nor can have any of these qualifications, except that they may have ability of force, which is not here meant: but that they be morally able for the discharge of their duty: surely they cannot fear God, nor be men of truth; for then they would not be tyrants. It is God's direction, that the man to be advanced and assumed to rule, must be a man in whom is the spirit, Numb. xxvii. 18. as is said of Joshua; what spirit this was, Deut. xxxiv. 9. explains, he was full of the spirit of wisdom, that is, the spirit of government; not the

spirit of infernal Jesuitical policy, which tyrants may have, but they cannot have the true regal spirit, but such a spirit as Saul had when he turned tyrant, an evil spirit from the Lord. Moses saith, They must be wise men, and understanding, and known among the tribes, Deut. i. 13. for if they be children or fools, they are plagues and punishments, Isa. iii. 2, 3, 4. &c. not magistrates, who are always blessings. And they must be known men of integrity, not known to be knaves or fools, as all tyrants are always. The law of the king is, Deut. xvii. 15. he must be one of the Lord's chusing. Can tyrants and usurpers be such? No, they are set up, but not by him, Hos. viii. 4. He must be a brother, and not a stranger, that is, of the same nation, and of the same religion: for though infidelity does not make void a magistrate's authority; yet both by the law of God and man, he ought not to be chosen, who is an enemy to religion and liberty. Now it were almost treason, to call the tyrant a brother; and I am sure it is no reason, for he disdains it, being absolute above all. That good king's testament confirms this, the God of Israel said, the rock of Israel spake, he that ruleth over men must be just, ruling in the fear of God, 2 Sam. xxiii. 3. But tyrants and usurpers cannot be just: for if they should render every one their right, they would keep none to themselves, but behoved to resign their robberies in the first place, and then also they must give the law its course, and that against themselves. These scriptures indeed do not prove, that all magistrates are in all their administrations so qualified, nor that none ought to be owned, but such as are so qualified in all respects. But as they demonstrate what they ought to be, so they prove, that they cannot be magistrates of God's ordaining, who have none of these qualifications: but tyrants and usurpers have none of these qualifications. Much more do they prove, that they cannot be owned to be magistrates who are not capable of any of these qualifications: but usurpers are not capable of any or these qualifications. At least they conclude, in so far as they are not so qualified, they ought not to be owned, but disowned; but tyrants and usurpers are not so qualified in any thing:

therefore in any thing they are not be owned, but disowned. For in nothing are they so qualified as the Lord prescribes.

Secondly, I shall offer some reasons from scripture assertions.

1. It is strongly asserted in Elihu's speech to Job, that he that hateth right should not govern, where he is charging Job with blasphemy, in accusing God of injustice; of which he vindicates the almighty, in asserting his sovereignty and absolute dominion, which is inconsistent with injustice, and shews both that if he be sovereign, he cannot be unjust: and if he be unjust, he could not be sovereign: which were horrid blasphemy to deny. And in the demonstration of this, he gives one maxim in a question, which is equivalent to an universal negative, Job xxxiv. 17, 18. Shall even he that hateth right govern? And wilt thou condemn him that is most just? Is it fit to say to a king, thou art wicked; and to princes ye are ungodly? In which words, the scope makes it clear, that if Job made God a hater of right, he should then deny his government; and if he took upon him to condemn him of injustice, he should blasphemously deny him to be king of the world. For it is not fit to say to any king, that he is wicked, or so ungodly, as to be a hater of right; for that were treason, lese majesty, and in effect a denying him to be king; much less is it fit to say to him that is King of kings. Here then it is affirmed, and supposed to hold good of all governors, that he that hateth right should not govern, or bind, as it is in the margin; for Habash signifies both to bind and to govern, but all to one sense; for governors only can bind subjects authoratively, with the bonds of laws and punishments. I know the following words are alledged to favour the uncontroulableness and absoluteness of princes, that it is not fit to say to them, they are wicked. But plain it is, the words do import treason against lawful kings, whom to call haters of right were to call their kingship in question; as the scope shews, in that these words are adduced to justify the sovereignty of God by his justice, and to confute any indirect charging him with injustice, because

that would derogate from his kingly glory, it being impossible he could be king, and unjust too. So in some analogy, though every and of injustice do not unking a prince; yet to call him wicked, that is habitually unjust, and a hater of justice, were as much as to say, he is no king, which were intolerable treason against lawful kings. But this is no treason against tyrants; for truth and law can be no treason: now this is the language of truth and law, that wicked kings are wicked; and they that are wicked and ungodly ought to be called so, as Samuel called Saul, and Elijah, Ahab, &c. However it will hold to be a true maxim, whether we express it by way of negation or interrogation.

Shall even he that hateth right govern? But are not tyrants and usurpers haters of right? Shall therefore they govern? I think it must be answered, they should not govern. If then they should not govern, I infer, they should not be owned as governors. For if it be their sin to govern (right or wrong, it is all one case, for they should not govern at all) then it is our sin to own them in their government: for it is always a sin to own a man in his sinning.

The royal prophet, or whoever was the penman of that appeal for justice against tyranny, Psal. xciv. 20. does tacitly assert the same truth, in that expostulation, shall the throne of iniquity have fellowship with thee, that frameth mischief by a law? Which is as much as if he had said, the throne of iniquity shall not, no, cannot have fellowship with God; that is, it cannot be the throne of God that he hath any interest in, or concern with, by way of approbation: he hath nothing to do with it, except it be to suffer it a while, till he take vengeance on it in the end. And shall we have fellowship with that throne, that God hath no fellowship with, and that is not his throne, but the devil's, as it must be, if God doth not own it? Much may be argued from hence; but in a word, a throne which is not of God, nor ordained of God, but rather of the devil, cannot be owned (for that is the reason of our subjection to any power, because it is of God, and ordained of God, Rom. xiii. 1. And that is the great dignity of magistracy, that its throne, is the throne of God, 1 Chron. xxix. 23.) But a throne of tyranny and usurpation, is a throne which is not of God, nor ordained of God, but rather of the devil: Ergo——. The minor is proved: a throne of iniquity, &c. is a throne which is not of God, nor ordained of God, but rather of the devil; but a throne of tyranny and usurpation is a throne of iniquity: Ergo, it is not of God, and so not to be owned.

3. The Lord charges it upon Israel as a transgression of his covenant, and trespass against his law, that they had set up kings, and not by him, and had

made princes and he knew it not, Hos. viii. 4. and then taxes them with idolatry, which ordinarily is the consequent of it, as we have reason to fear will be in our case. He shews there the apostasy of that people, in changing both the ordinances of the magistracy and of the ministry, both of the kingdom and of the priesthood, in which two the safety of that people was founded: so they overturned all the order of God, and openly declared they would not be governed by the hand of God, as Calvin upon the place expounds it. Whereas, the Lord had commanded, if they would set up kings, they should set none up but whom he choosed, Deut. xvii. 15. yet they had no regard to this, nor consulted him in their admission of kings, but set them up, and never let him to wit of it, without his knowledge; that is, without consulting him, and without his approbation, for it can have no other sense. I know, it is alledged by several interpreters, that here is meant the tribes secession from the house of David, and their setting up Jeroboam. I shall confess that the ten tribes did sin in that erection of Jeroboam, without respect to the counsel or command of God, without waiting on the vocation of God, as to the times and manner, and without covenanting with him for security for their religion and liberty; but that their secession from David's line, which by no precept or promise of God they were astricted to, but only conditionally, if his children should walk in the ways of God, or that their erecting of Jeroboam was materially their sin, I must deny; and assert, that if Jeroboam had not turned tyrant and apostate from God (for which they should have rejected him afterwards, and returned to the good kings of David's line) he would have been as lawful a king as any in Judah, for he got the kingdom from the Lord the same way, and upon the same terms that David did, as may be seen expressly in 1 Kings xi. 38. It must be therefore meant, either generally of all tyrants whom they would set up without the Lord's mind, as at first they would have kings on any terms though they should prove tyrants, as we have seen in Saul's case. Or particularly Omri whom they set up, but not by the Lord; 1 Kings xvi. 16.

And Ahab his son, and Shallum, Menaham, Pekah, &c. who were all set up by blood and treachery, the same way that our popish duke is now set up, but not by the Lord, that is by his approbation. Hence I argue, those kings that are not owned of God, nor set up by him, must not be owned by us (for we can own none for kings but those that reign by him, Prov. viii. 15. and are ordained of him, Rom. xiii. 1.) But tyrants and usurpers are not owned of God as kings, nor are set up by him: Ergo——Again, if it be a sin to set up kings, and not by God, then it is a sin to own them when set up: for, that is a partaking of, and continuing in the sin of that erection, and hath as much affinity with it, as resetting hath with theft; for if they be the thieves, they are the resetters who receive them and own them.

4. The prophet Habakkuk, in his complaint to God of the Chaldean tyranny, asserts that God hath made righteous, as the fishes of the sea, as the creeping things, that have no ruler over them, Habak. i. 14. Now how were they said to be without a ruler, when the Chaldean actually commanded, and absolutely ruled over them? yea, how can the fishes and reptiles have no ruler over them? If domineering be ruling, they want not that; when the weaker are over-mastered by the stronger, and by them made either to be subject, or to become their prey. But the meaning is, these creatures have no ruler over them by order of nature: and the Jews had then no ruler over them by order of law, or ordination from God, or any that was properly their magistrate by divine institution, or human orderly constitution.

We see then it is one thing for a people to have an arbitrary or enthralling tyranny; another to have true magistracy or authority to be owned over them; without which kingdoms are but as mountains of prey, and seas of confusion. Hence I argue, if the Jews having the Chaldean monarch tyrannizing over them, had really no ruler over them, then is a tyrant and usurper not to be owned for a ruler: but the former is true: therefore also the latter.

5. Our Saviour Christ delivers this as a commonly received, and a true maxim, John viii. 54. "He that honoureth himself, his honour is nothing." The Jews had objected that he had only made himself Messias, ver. 53. To whom he answers, by way of concession, if it were so indeed, then his claims were void, if I honour my self, my honour is nothing: and then claims an undubitable title to his dignity, It is my father that honoureth me. Here is a twofold honour distinguished, the one real, the other suppositious and null, the one renounced, the other owned by Christ, self-honour, and honour which is from God. Hence I argue, a selfcreated dignity is not to be owned; the authority of tyrants and usurpers is a self created dignity: Ergo —. This was confirmed above.

Thirdly, I shall offer some other considerations confirming this truth, from those scriptures which I class among precepts. And these I find of divers sorts touching this subject.

1. I shew before that the greatest of men, even kings, are not exempted from punishment, if guilty of capital crimes; for where the law distinguisheth not, we ought not to distinguish. There is one special and very peremptory law, given before the law for regulating kings, which, by that posterior law, was neither abrogated nor limited even as to kings, Deut. xiii. 6-9. If thy brother (and a king must be a brother, Deut. xvii. 15.)—entice thee secretly, saying, let us go and serve other gods—Thou shalt not consent unto him, nor hearken unto him, neither shall thine eye pity him. How famous Mr. Knox improved this argument, is shewed in the third period. That which I take notice of here is only, that kings are not excepted from this law; but if they be open enticers to idolatry, by force or fraud, persecution or toleration, as this idolater now reigning is palpably doing, they are obnoxious to a legal animadversion. As it cannot be supposed, that secret enticers should be liable to punishment, and not open avouchers of a desire and design to pervert all the nation to idolatry: that a private perverter

of one man, though never so nearly and dearly related, should be pursued and brought to condign punishment, and a public subverter of whole nations, and introducer of a false and blasphemous idolatrous religion, should escape scot free. Let the punishment inflicted be in a judicial way, and of what measures it pleases the judge to determine, I shall not controvert here; only I plead, that idolatrous tyrants are not excepted from this law: and infer, that if they ought to be punished, they ought to be deposed; and if they ought to be deposed, they cannot be owned, when undeniably guilty of this capital crime, as was urged above.

To this I may add that part of that prophetic king's testament; who, being about to leave the world, under some challenges of maladministration in his own government, (for which he took himself to the well ordered everlasting covenant, for pardon and encouragement,) after he had shewn what rulers should be, he threatens, by antithesis, tyrannical pretenders, in these severe words, which do also imply a precept, and a direction how to deal with them, 2 Sam. xxiii. 6, 7. "But they of Belial shall be all of them as thorns thrust away, because they cannot be taken with hands, but the man that shall touch them must be fenced with iron, and the staff of a spear, and they shall be utterly burnt with fire in the same place." Let these words be understood as a threatening against all the wicked in general, who are to be quenched as the fire of thorns; or particularly of the promoters of antichrist's kingdom, in opposition to Christ's, as some interpreters judge; it will not weaken, but confirm my argument, if kings who are ringleaders of that gang be not excepted.

I know some do understand this of rebels against righteous rulers: which though indeed it be a truth, that they that are such should be so served, and roughly handled with iron, and the staff of a spear; yet it is not so consonant to the scope and connexion of this place, shewing the characters of righteous rulers, and of usurping tyrants, making an opposition between

rulers that are just, ruling in the fear of God, and those that are rulers of Belial, promising blessing upon the government of the one, and contempt and rejection to the other, and shewing how both should be carried towards: neither does it agree with the words themselves, where the supplement in our translation is redundant; for it is not in the Hebrew. The sons of Belial, only they of Belial, clearly relative to the rulers of whom he was speaking before. And indeed the word Belial, in its etymology is not more applicable to any than to tyrants; for it comes from *beli not*, and *Hhall* above, because they will have none above them, or from *beli not*, and *Hhol* a yoke, because they cannot suffer a yoke, but cast away the yoke of laws and the yoke of Christ, saying, Let us burst his bands, &c. Nor is it always agreeable to truth, to understand it only of rebels against righteous rulers, that they can never be taken with hands: For as very rarely righteous rulers have any rebels to be the objects of their rigour and rage; so when there are any, discreet and wise rulers will find many ways to take and touch them, and quath or quiet them. But it is always true of tyrants, for they can never be taken with hands, neither in a friendly manner, taken by the hand and transacted within any bargain as other men, for they that would do so, will find them like pricking and jagging briers, which a man cannot handle without hurt to himself: nor can they be any other way repressed or restrained, or touched, but by hands fenced with iron, that is, with the sword of necessity, or axe of justice. And this is insinuated as duty, so to endeavour to extirpate and eradicate such thorns, as pester the commonwealth; but if it cannot be done, it must be duty and wisdom both not to meddle with them, nor own them, no more than Jotham, who would not subject himself, nor come under the shadow of the bastard bramble. I confess it is commonly taken as a threatening of the Lord's judgment against these sons of Belial: And so it is. But it teacheth also what men are called to, when they have to do with such, to wit, to take the same course with them as they would to clear the ground of thorns and briers. And that it is

restricted to the Lord's immediate way of taking them off, is not credible: for, it can have no tolerable sense to say, they shall be thrust away, because they cannot be taken with the Lord's hands: neither is there need, that he should be fenced with iron, &c. And let iron, &c. be taken tropically for the Lord's sword of vengeance; yet how can it be understood, that he must be fenced therewith? or that he will thrust them away, as a man must be fenced against thorns? What defence needs the Lord against tyrants! It is only then intelligible, that the Lord, in his righteous judgment, will make use of men and legal means, and of those who cannot take them with hands, in his judicial procedure against them. Hence I argue, if tyrants are to be dealt with as thorns, that cannot be taken with hands, but to be thrust away by violence, then, when we are not in case to thrust them away, we must let them alone, and not meddle nor make with them, and so must not own them, for we cannot own them without meddling, and without being pricked to our hurt; but the former is true: therefore,—Of this same nature, another threatening confuting the pretence of the prince's impunity, may be subjoined out of Psal. lxxxii. 6, 7. "I have said, ye are gods, and all of you are children of the most high, but ye shall die like men, and fall as one of the princes." From which words the learned author of the history of the Douglasses, Mr. David Hume of Godscraft, in his discourse upon Mr. Craig's sermon, upon the words, doth strongly prove, that the scope is to beat off all kings, princes and rulers, from the conceit of impunity for their tyrannical dominations; that they must not think to domineer and do what they list, and overturn the foundations or fundamental laws of kingdoms, because they are gods; as if they were thereby uncontrollable, and above all law and punishment: no, they must know, that if they be guilty of the same transgressions of the law, as other capital offenders, they shall die like other men, and fall as princes, who have been formerly punished. It is not to be restricted to a threatening of mortality; for that is unavoidable, whether they judge justly or unjustly, and the fear thereof usually hath little efficacy to

deter men from crimes punishable by law: neither can it be understood only of the Lord's immediate hand taking them away, exclusive of men's legal punishment; for expressly they are threatned to die like common men, and to be liable to the like punishment with them: now, common men are not only liable to the Lord's immediate judgment, but also to men's punishment. Hence, if tyrants and overturners of the foundations of the earth must be punished as other men, then when they are such, they cannot be looked upon as righteous rulers, for righteous rulers must not be punished; but the former is true: therefore,—According to these scriptures, which either express or imply a precept to have no respect to princes in judgment, when turning criminals, we find examples of the people's punishing Amaziah, &c. which is recorded without a challenge, and likewise Athaliah.

2. There is a precept given to a humbled people, that have groaned long under the yoke of tyranny and oppression, enjoining them, as a proof of their sincerity in humiliation, to bestir themselves in shaking off those evils they had procured by their sin, Isa. lviii. 6. "Is not this the fast that I have chosen, to loose the bands of wickedness, to undo the heavy burdens, and to let the oppressed go free, and that ye break every yoke?" which are all good works of justice and mercy, and more acceptable to God, than high flown pretences of humiliation, under a stupid submission, and hanging down the head as a bulrush. We see it then a duty to relieve the oppressed, and to repress tyranny, and break its yoke. If it be objected, (1.) That these are spiritual bonds and yokes, that are here commanded to be loosed and broken; or if any external be meant, they are only the yokes, of their exactions and usuries. For Answ. I grant, that it is the great duty of a people humbling themselves before the Lord, "to break off their sins by righteousness, and their iniquity, by shewing mercy to the poor," Dan. iv. 27. but that this is the genuine and only sense of this place, cannot be proved, or approved by the scope; which is, to press them to those duties they omitted, whereby the poor oppressed people of God might be freed

from the yokes of them that made them to howl, and to bring them to the conviction of those sins for which the Lord was contending with them, whereof this was one, that they exacted all their labours, or things wherewith others were grieved (as the margin reads) or suffered the poor to be oppressed. (2.) If it be alledged, that this is the duty proper to rulers to relieve the oppressed, &c. I answer, it is so; but not peculiar to them: yet most commonly they are the oppressors themselves, and cast out the poor, which others must take into their houses. But the duty here is pressed upon all the people, whose sins are here cried out against (ver. 1.) upon all who professed the service of God, and asked the ordinances of justice (ver. 2.) upon all who were fasting and humbling themselves, and complained they had no success (ver. 3.) the reasons whereof the Lord discovers (ver. 4, 5.) whereof this was one, that they did not loose those bands, nor break these yokes, nor relieved the oppressed; and those works of justice (ver. 6) are pressed upon the same grounds, that the works of mercy are pressed upon (ver. 7.) sure these are not all, nor only rulers. Hence I argue, if it be a duty to break every yoke of oppression and tyranny, then it is a duty to come out from under their subjection; but the former is true: therefore also the latter.

3. In answer to that grand objection of the Jews subjection to Nebuchadnezzar, I shewed what little weight or force there is in it. And here I shall take an argument from that same passage. The Lord commands his people there, to desert and disown Zedekiah, who was the possessor of the government at present, and says, it was the way of life to fall to the Chaldeans, Jer. xxi. 8, 9. which was a falling away from the present king. Either this commanded subjection to the Chaldeans is an universal precept; or it is only particular at that time. If it be universal, obliging people to subject themselves to every conqueror, then it is also universal, obliging people to renounce and disown every covenant-breaking tyrant, as here they were to fall away from Zedekiah: if it be only particular, then the owners of tyranny have no advantage from this passage. And I have advantage, so far

as the ground of the precept is as moral, as the reason of that punishment of Zedekiah, which was his perfidy and perjury. Hence, if the Lord hath commanded to disown a king breaking covenant, then at least it is not insolent or unprecedented to do so; but here the Lord hath commanded to disown a king: therefore,—

Fourthly, We may have many confirmations of this truth from scripture practices approved.

1. I was but hinting before, how that after the death of that brave captain and judge Gideon, when Abimelech, the son of his whore, did first aspire into a monarchy, which he persuaded the silly Shechemites to consent to, by the same argument, which royalists make so much of, for asserting the necessity of an hereditary monarchy, (whether it is better for you, either that all the sons of Jerubbaal——reign over you, or that one reign over you?) and by bloody cruelty did usurp a monarchical or rather tyrannical throne of domination, founded upon the blood of his seventy brethren, (as we know, whose throne is founded upon the blood of all the brethren he had,) Jotham, who escaped, scorned to put his trust under the shadow of such a bramble, and they that did submit, found his parable verified, a mutual fire reciprocally consuming both the usurping king and his traiterous subjects; neither did all the godly in Israel submit to him. See Pool's Synopsis Critic. on the place, Jud. ix. Here is one express example of disowning a tyrant and usurper.

2. I shewed before, how, after the period of that theocracy, which the Lord had maintained and managed for some time in great mercy and majesty in and over his people, they itching after novelties, and affecting to be neighbour-like, rejected the Lord in desiring a king; and the Lord permitting it, gave them a king in wrath, (the true original and only sanction of tyrannical monarchy,) when the characters of his tyranny, presaged by

Samuel, were verified in his aspiring into a great deal of absoluteness especially in his cruel persecuting of David, not only the 600 men that were David's followers stood out in opposition to him, but, in the end, being weary of his government, many brave and valiant men, whom the Spirit of God commends and describes very honourably, fell off from Saul, even when he was actually tyrannizing, before he was dead, 1 Chron. xii. 1. &c. They came to David to Ziklag, while he yet kept himself close, because of Saul the son of Kish, (N.B. now he is not honoured with the name of king,) they were armed with bows, and could use both the right hand and the left. And of the Gadites, there separated themselves unto David men of might, fit for the battle, that could handle shield and buckler, whose faces were as the faces of lions, ver. 8. And the Spirit came upon Amasai chief of the captains, saying, thine are we David, and on thy side, thou son of Jesse. Here was a formed revolt from Saul unto David before he was king; for after this he was made king in Hebron, and there could not be two kings at once. Hence I argue, if people may separate themselves from, and take part with the resister, against a tyrant; then they may disown him, (for if they own him still to be the minister of God, they must not resist him, Rom. xiii. 2.) But here is an example that many people did separate themselves from Saul, and took part with the resister David: therefore—Here two of the first monarchs of Israel were disowned, Abimelech and Saul.

3. The first hereditary successor was likewise disowned, as was hinted above likewise. The ten tribes offer to covenant with Rehoboam, in terms securing their rights and liberties. They desired nothing on the matter, but that he would engage to rule over them according to the law of God; to which, when he answered most tyrannically, and avowed he would tyrannize over them, and oppress them more than any of his predecessors, they fell away from, and erected themselves into a new commonwealth, 1. Kings xii. 16. So when Israel saw that the king hearkened not unto them, they answered, what portion have we in David? Neither have we

inheritance in the son of Jesse; to your tents, O Israel; now see to thine own house David, 2 Chron. x. 16. Now, however the event of this declared revolt proved sorrowful, when they and their new king made defection unto idolatry, yet if they had stated and managed it right, the cause was good, justifiable, and commendable. For, (1.) We find nothing in all the text condemning this. (2.) On the contrary, it is expressly said, the cause was from the Lord, that he might perform his saying, which he spake by Ahijah, 1 Kings xii. 15. 2 Chron. x. 15. And (3.) When Rehoboam was preparing to pursue his pretended right, he was reprov'd and discharged by Shemaiah, ye shall not go up, nor fight against your brethren, for this thing is from me, 1 Kings xii. 24. 2 Chron. xi. 4. (4.) Whereas it is alledged by some, that this was of God only by his providence, and not by his ordinance; the contrary will appear, if we consider how formally and covenant-wise the Lord gave ten tribes to Jeroboam, 1. Kings xi. 35, 37, 38. "I will take the kingdom out of his son's hand, and I will give it unto thee, even ten tribes; and I will take thee, and thou shalt reign according to all that thy soul desireth, and shalt be king over Israel; and it shall be, if thou wilt hearken unto all that I command thee, and wilt walk in my ways, and do that which is right in my sight, to keep my statutes and commandments, as David my servant did, that I will be with thee, and build thee a sure house, as I built for David, and will give Israel unto thee."

Where we see the kingdom was given unto him on the same terms and conditions, that it was given to David. He may indeed give kingdoms to whom he will, by providential grant, as unto Nebuchadnezzar, and others; but he never gave them a kingdom upon these conditions, and, by way of covenant, that does always imply and import his word, warrant, and ordinance. (5.) If we consider the cause of the revolt, we will find it very just: for after the decease of the former king, they enter upon terms of a compact with the successor, upon a suspensive condition, to engage into fealty and allegiance to him as subjects, if he would give them security for

their liberties and privileges. A very lawful, laudable and necessary transaction, founded upon moral equity, and upon the fundamental constitutions of that government, and suitable to the constant practice of their predecessors, in their covenanting with Saul and David. As for that word, 1 Kings xii. 19. So Israel rebelled against the house of David: it is no more than in the margin, they fell away or revolted; and no more to be condemned than Hezekiah's rebellion, 2 Kings xviii. 7. The Lord was with him, and he rebelled against the king of Assyria. That was a good rebellion. Hence if it be lawful for a part of the people to shake off the king, refuse subjection to him, and set up a new king of their own, when he resolveth to play the tyrant, and rule them after his own absolute power; then it is a duty, when he actually plays the tyrant, and by his absolute power overturns laws and religion, and claims by law such a prerogative; but the former is true: Ergo—See Jus populi vindic. chap. 3. page 52.

4. This same Jeroboam, when he turned tyrant and idolater, was revolted from and deserted by the priests and the levites, and after them out of all the tribes of Israel, by all such as set their heart to seek the Lord God of Israel; because that king, degenerating into tyranny and idolatry, had put them from the exercise of their office and religion (as our Charles did,) and ordained him priests for the devils, and for the calves: so they returned to Rehoboam, being induced by his administration of the government, which for a time was better than he promised, for three years he walked in the ways of David and Solomon, 2 Chron. xi. 13,—17. Hence I argue, if idolatrous tyrants may be deserted, then they may be disowned abroad, it is the same duty at home, though may be not the same policy or prudence.

5. Another example of the like nature we have in the reign of Baasha, who succeeded to Nadab, Jeroboam's son, whom he slew, and reigned in his stead, (the same way that the duke came to the throne) for he could not keep his subjects within his kingdom, but behoved to build Ramah, that he might

not suffer any to go out or come in to Asa, king of Judah, a good prince, 1 Kings xv. 17. yet that could not hinder them, but many strangers out of Ephraim, and Manasseh, and Simeon, fell to him in abundance, when they saw that the Lord his God was with him, 2 Chron. xv. 9. Hence, if people may choose another king, when they see the Lord is with him, then they may disown their country king, when they see the devil is with him.

9. When Jeroboam, the son of Ahab, reigned over Israel, we have an express example of Elisha's disowning him, 2 Kings iii. 14, 15. And Elisha said unto the king of Israel, what have I to do with thee?—As the Lord of hosts liveth, before whom I stand, surely were it not that I regard the presence of Jehoshaphat the king of Judah, I would not look towards thee, nor see thee. Here he declares so much contempt of him, and so little regard, that he disdains him a look.

And if he would not regard him, nor give him honour, then he did not own him as king; for all kings are to be honoured, that are owned to be kings really. It may be alledged by some, that Elisha was an extraordinary man, and this was an extraordinary action, and therefore not imitable. I shall grant it so far extraordinary, that it is not usual to carry so to persons of that figure, and that indeed there are few Elishas now, not only for his prophetic spirit which now is ceased, but even in respect of his gracious spirit of zeal, which in a great measure is now extinguished: he was indeed an extraordinary man, and this action did demonstrate much of the spirit of Elias to have been abiding with him. But that this was was inimitable, these reasons induce me to deny, (1.) Prophets were subjects to kings, as well as others, as Nathan was to David (1 Kings i 32, 33.) every soul must be subject to the higher powers that are of God. (2.) All the actions of prophets were not extraordinary, nor did they every thing by extraordinary inspiration; that was peculiar to Christ, that he could prophesy, and do extraordinary acts when he pleased, because he received the spirit not by

measure, and it rested upon him. (3.) This particular action and carriage was before he called for the minstrel, and before the hand of the Lord came upon him, ver. 15. Ergo, this was not by inspiration. (4.) The ground of this was moral and ordinary, for hereby he only shewed himself to be a person fit to abide in the Lord's tabernacle, and an upright walker, in whose eyes a vile person is contemned, Psal. xv. 4. And a just man, to whom the unjust is an abomination, Prov. xxix. 29. What further can be alledged against this instance, I see not. And I need draw no argument by consequence, it is so plain.

7. This same Jehoram, after many signal demonstrations of the power of God exerted in the ministry of his servant Elisha, which sometimes did extort his acknowledgement, and made him call the prophet his father, 2 Kings vi. 21. yet, when in the strait siege of Samaria, he was plagued with famine for his idolatry, insomuch that the pitiful mothers were made to eat their own tender children; became so insolent a tyrant, that being incensed into a madness of outrageous malice against the prophet Elisha, that he sware, God do so to him, and more also, if the head of Elisha, the son of Shaphat, should stand on him that day, accordingly he sent a messenger to execute it. But the prophet, from a principle of nature, and reason, and law, as well as grace, and by the spirit of a man as well as of a prophet, stood upon his defence and encouraged those that were with him to keep out the house against him, saying, see ye how this son of a murderer (a proper stile for such a monster of a king) hath sent to take away mine head—2 Kings vi. 32. This is a strong argument for self defence; but I improve it thus; if tyrants may be opposed as sons of murderers, and murderers themselves, and no otherwise to be accounted than under such a vile character, then can they not be owned as kings; but here is an example for the first: Ergo.—

8. This man's brother in law, of the same name, Jehoram the son of Jehoshaphat, who had the daughter of Ahab to wife, and therefore walked in

the way of the house of Ahab, gives us another instance. He turned apostate and tyrant, and Abimelech-like (or if you will, York-like) slew his brethren, and divers also of the princes of Israel; moreover he made high places in the mountains of Judah and caused the inhabitants of Jerusalem to commit fornication, and compelled Judah thereto: for which cause of his intolerable insolency in wickedness, Libnah one of the cities of priests in Judah, revolted from him, 2 Kings viii. 22. because he had forsaken the Lord God of his fathers, 2 Chron. xxi. 10. which was the motive and impulsive cause of their disowning him, and is not to be detorted to that restricted cavil of royalists, understanding it only as the meritorious or procuring cause of his punishment, and loss sustained thereby; for it is not said of the Edomites, who revolted at the same time, as it is mentioned in another paragraph; neither of the Philistines and Arabians, and Ethiopians, whose spirit the Lord stirred up against him; these were also a punishment to him: nor would it sound very suitably to be said, that they opposed him, because he had forsaken the Lord God of his fathers: for that would insinuate some influence that his apostasy had on them, as certainly it could not but have on the Lord's priests that dwelt in Libnah, who understood by the law of God, what was their duty to do with enticers, or drawers or drivers to idolatry: and when they were not in capacity to execute the judgment of the Lord, this was the least they could, to revolt. Here then is an example of a peoples revolt from a prince, and disowning allegiance to him, because of apostasy and tyranny.

9. In this kingdom of Judah, after long experience of a succession of hereditary tyranny in many wicked kings, the people, after they had long smarted for their lazy loyalty, in their stupid abandoning, forgetting and foregoing this privilege of disowning tyrants, and keeping them in order, began at length to bestir themselves in their endeavours to recover their lost liberties, and repress tyrants insolencies on several occasions; wherein, though sometimes were extravagancies, when circumstances did mar the

justice of the action, and some did go beyond their sphere in tumultuary precipitations; yet, upon the matter, it was justice, and in conformity to a moral command. One impregnable witness of this we have, in the pious plot of Jehoiada the priest, who being but a subject, as all priests were (as the deposition of Abiathar by king Solomon, 1 Kings ii. 27. proveth) entered into an association with the inferior rulers, to choose and make a new king: and notwithstanding that the idolatress and the tyrant Athaliah, who had the possession of the government, cried treason, treason at the fact, they had her forth without the ranges, and slew her, 2 Kings xi. 14, 16. This was according to the law, Deut. xiii. and approved by all interpreters, even Mr. Pool in his Synopsis Critic. though otherwise superlatively loyal, yet approves of this, and says, she was an incurable idolatress, and therefore deserved to be deposed by the nobles of the kingdom, and quotes Grotius in loc. saying (she reigned by mere force; for the Hebrews were to have brethren for their kings, but not sisters, Deut. xvii. 15.) Hence if tyrants may be forcibly repressed, then may they peaceably be disowned; but this example confirms that: therefore——

10. The sacred history proceeds in the relation, how this same Joash the son of Ahaziah, after he degenerated into murdering tyranny, was slain by Jozachar and Jehozabad, 2 Kings xii. 20, 21. but that was by his own servants in private assassination: therefore they are called murderers by Amaziah his son, 2 Kings xiv. 5, 6. but upon the matter it was the justice of God, which he deserved (if it had been duly execute) for the blood of the son of Jehoiada the priest, 2 Chron. xxiv. 25. So Amon the son of Manesseh, for his walking in the way of his father in idolatry and tyranny, and forsaking the Lord God of his fathers, was slain in his own house by his servants, who conspired against him; but though this was justice also upon the matter and consonant to the command for punishing idolaters and murderers, yet because defective in the manner, and done by them that took too much upon them in a perfidious way of private assassination and

conspiracy, therefore the people of the land punished them for it, 2 Kings xxi. 23, 24. But the repressing and punishing of Amaziah is a more unexceptionable instance.

The people made a conspiracy against him in Jerusalem, and he fled to Lachish; but they sent after him to Lachish, and slew him there, 2 Kings xiv. 19. after the time that he turned away from following the Lord, 2 Chron. xxv. 27. which was according to the command, Deut. xiii. which hath no exception of kings in it. This action was not questioned either by the people or his successor, as the forementioned conspiracies were. His son Uzziah succeeding, who did right, and consulted the Lord (2. Chron. xxvi. 4, 5.) did not resent nor revenge his father's death; which certainly he would have done, by advice of Zechariah, who had understanding in the visions of God, if it had been a transgression. The famous and faithful Mr. Knox doth clear this passage beyond contradiction in his conference with Lethington. Hence I take an argument a fortiori, if people may conspire and concur in executing judgment upon their king turning idolater and tyrant, then much more may they revolt from him; but this example clears the antecedent: therefore.

11. The fame power and privilege of people's punishing their princes, was exemplified in the successor of him last mentioned, to wit, in Uzziah the son of Amaziah, called Azariah, 2 Kings xv. when he degenerated into the ambition of arrogating a supremacy in causes ecclesiastic and sacred, as well as civil, his heart was lifted up to his destruction, for he transgressed against the Lord his God, and went into the temple of the Lord to burn incense. In which usurpation he was resisted by Azariah the priest, and with him fourscore priests of the Lord, that were valiant men, who withstood him, and told him, it did not appertain to him to take upon him so much, and bade him go out of the sanctuary, or else it should not be for his honour. Which indeed he stomached at as an affront, to be controuled and resisted;

but in thinking to resent it, he was plagued of the Lord with leprosy; which the priests looking upon, they thrust him out from thence: and thereafter sequestered him from all supremacy, both that which he had before in things civil, and that which he was affecting in matters sacred; for he was made to dwell in a several house, being a leper, (the law including, and here execute upon, the king as well as the beggar) and to resign the government into his son Jotham's hands, 2 Chron. xxvi. 16,—21. where it appears, he was not only excommunicated by a ceremonial punishment, but also deposed judicially. Whether he voluntarily demitted or not, it is to no purpose to contend; 'tis evident, that by the law of God, the actual exercise of his power was removed, whether with his will or against it, it is all one; and that he was punished both by God and by men is undeniable. Yea, in this, his punishment was very gentle, and far short of the severity of the law: for by the law he should have been put to death, for intermeddling with these holy things, interdicted to all but to the priests, under pain of death, Numb. iii. 10. Numb. xviii. 7. The stranger that cometh nigh shall be put to death. All were strangers that were not priests. Whence I argue, if a prince, for his usurpation beyond his line in things sacred, may by the priests be excommunicated, and by the people deposed; then may a prince, not only usurping a supremacy (as Charles did) but an absolute power of overturning all things, sacred and civil (as James doth) and oppressing his subjects in all their liberties, be disowned, a fortiori, for that is less than deposing or dethroning; but this example clears the antecedent; therefore——. See Knox's discourse to Lethington. *Lex Rex*, quest. 44. sect. 15, p. 461. *Jus popul.* chap. 3. p. 56.

12. What if I should adduce the example of a king's rebellion against, and revolt from a superior king, to whom he and his fathers both acknowledged themselves subject? Surely our royalists and loyalists would not condemn this; and yet in justifying it, they should condemn their beloved principle of uncontrouled subjection to uncontroulable sovereigns possessing the

government. Ahaz became servant to the Assyrian monarch, 2 Kings xvi. 7. yet Hezekiah his son, when the Lord was with him, and he prospered—rebelled against the king of Assyria, and he served him not, 2 Kings xviii. 7. Hezekiah was indeed a king; but he was not Sennacherib's king; he acknowledges himself his vassal, and that he offended in disowning him, ver. 14. which certainly was his sin against the Lord, to make such an acknowledgment: for if his father's transaction with the Assyrian was sin, then it was duty to break the yoke; if the Lord was with him in that rebellion, then it was sin to acknowledge it to be his offence: and to make good this acknowledgment, it was certainly his sin to commit sacrilege, in robbing the house of God, to satisfy that tyrant. By way supplement, I shall add that instance of repressing a mad and furious tyrant, which all will acknowledge to be lawful. Nebuchadnezzar was both stricken of God with madness, and for that was depelled from the kingdom, according to the heavenly oracle, The kingdom is departed from thee, and they shall drive thee from men, Dan. iv. 31, 33. Calvin says upon the place, he was ejected, as usually is done to tyrants, by the combination of the nobles and people, Pool's synopsis critic. in locum. Thus he was unkinged for a time, both by the just judgment of God, and by the intermediation of the just judgment of men; and could not be owned to be king at that time, when his nails were as birds claws, and he could not tell his own fingers: they could not own him to be the governor then of so many kingdoms, when he could not govern himself. Hence, though this is an instance of heathens, yet, because they acted upon a rational ground, it may be argued, If kings, because natural madness, when they cannot govern themselves, may not be owned; then also, because of moral madness, when they will not govern but to the destruction of kingdoms, may not be owned, but the former is true: therefore also the latter. The same reason against the government of asses, will also militate against the government of tygers, the first is more eligible than the last.

Fifthly, This may be confirmed from several promises in scripture.

1. There are many gracious and precious promises of reformation of the magistracy, and restitution of good rulers, as a great blessing from God to mankind, and to the church, Isa. i. 26. 'I will restore thy judges as at the first, and thy counsellors as at the beginning, afterward thou shalt be called the city of righteousness.' If judges must first be restored before the city can be a city of righteousness, then they must be restored before we can own the government thereof: for that government, under which it cannot be a city of righteousness, cannot be owned, since it is no government, but a rebellion and combination of thieves, see ver. 33. I do not here restrict the promise, as it is a prophecy, to its exact fulfilment, as if no government were to be owned but what answers this promise, of the restitution of the primitive order of magistrates; but I plead, that when the princes are rebellious, and companions of thieves, the government is not to be owned, till judges be so far restored, as to reduce righteousness in some measure, which cannot be under tyranny.

And in the general I may plead, that none is to be owned as a magistrate, but who some way is found in a promise; for there is no ordinance of God, no duty, no blessing, no good thing, either to be done or enjoyed, but what is in a promise; but tyranny, or owning of tyrants, or subjection to usurpers, is not, nor cannot be in a promise. We have many other promises about magistrates, as, that the Lord will be for a spirit of judgment to him that sitteth in judgment, Isa. xxviii. 6. A tyrant cannot be capable of this happiness, nor we under tyranny, nor any while they own them. Kings shall be the church's nursing fathers, and their queens her nursing mothers, Isa. xlix. 23. Kings are not always so, but all kings to be owned are such as can be so, at least they are never to be owned when they turn destroyers of what they should nourish; but tyrants can never be nourishers. It is promised to the Lord's people, if they will hearken diligently unto the Lord, and keep the

sabbath, then shall there enter into their gates kings and princes, Jer. xxiii. 3, 4. But it is never promised, neither doth it come to pass in providence, that these duties procured tyrants.

There are many other promises to the same purpose: from whence may be concluded, the Lord will not always leave his people to howl under uneluctable tyranny, but will accomplish their deliverance in his own time and way, though we are not to look to miracles. Whence I argue, 1. Since all the ordinances of God, and rulers in a special manner, are appointed and promised as blessings, these cannot be owned for his ordinance, which are not blessings, but curses. 2. That which would vacate and evacuate all the promises of magistracy, cannot be a doctrine of God; but this that obliges to own tyrants and usurpers, as long as they are up, would vacate and evacuate all the promises of magistracy: for except the Lord work miracles, (which are not in the promise) and do all without means, they cannot be accomplished. For if any means be used, they must be such as will infer disowning of tyrants; for magistrates cannot be restored, except tyrants be removed; and whatever way they be removed without miracles, by others or their own subjects, they must still be disowned, and that before they be removed: for if they be to be owned before their removal, if they exist, cannot make them to be disowned: dispossession cannot take away their right, if they have it before.

2. There are many promises of breaking the yoke of tyrants, Isa. x. 27. "His burden shall be taken away from off thy shoulder, and his yoke from off thy neck." And in that promise of the church's deliverance and enlargement, wherein they are prophetically urged and stirred up to some activity in co-operating with the providence, Isa. lii. 1, 2. "They are called to awake, and put on strength and their beautiful garments—and to shake themselves from the dust—and to rise and to loose themselves from the bands of their neck," that were captives. Here is not only a promise of

deliverance or a ground of encouragement what the church may expect, but a promise of, and direction for their being active in delivering themselves, as men, from the encroachments that were made on their human liberties, that they should loose themselves from these bands. Whose bands? from their bands that ruled over them, and made them to howl, and the Lord's name to be blasphemed, (ver. 5) Here is a promise of breaking the bands of rulers, by them who howled under their subjection. And it also includes a precept, that people should not stay any longer under these yokes, than they can shake them off, or slip from under them. Hence we see we are not to ly stupidly sleeping, or sinking in the ditch, expecting the accomplishment of the promise of deliverance; but are to endeavour actively, in dependence upon the Lord's assistance, to deliver ourselves. Hence we may argue, 1. A promise by way of command, that a people under bands of oppressing rulers shall rouse themselves up to loose themselves from them, implies and infers a promise and a duty of disowning those rulers (for otherwise they cannot be loosed from their subjection.) But here is a promise by way of command, that a people under bands of oppressing rulers shall rouse themselves up to loose themselves from them: Ergo——2. If the removal of tyranny and usurpation be promised as a blessing, then those can never be owned to be the ordinance of God; for the removal of that can never be a blessing; but in these promises we see the removal of those is promised as a blessing: therefore they can never be owned.

Sixthly, To the same purpose we may cite some threatnings, that will confirm the same truth.

1. There are many threatnings against tyrants themselves. There are two mentioned, Jer. xxii. that seem partly to quadrate, and near of a piece with our misrulers; both because of the demerit of the threatning, and the likeness of the judgment threatned. The ground of it was "building their house by unrighteousness, and their chambers by wrong," ver. 13. And

severally threatned: "Jehoiakim with the burial of an ass unlamented," ver. 18, 19. Coniah with a life without prosperity, and a death without issue to succeed, ver. 30. The first of these is verified in the elder of our royal brothers, the last is like to be of both. But that which I take notice of is, first, the demerit, building their house by unrighteousness, on which Whitehall is built with a witness: and particularly it is noted of Jehoiakim, as his crimson sin (to which his son Jehoiachin or Coniah served himself heir) that he burnt Jeremiah's roll, or causes of wrath; so did our dominators burn the causes of wrath (a book written by the commission of the general assembly) and the covenants. Then I note these words, ver. 15. "Shalt thou reign because thou closest thyself in cedar, &c." It is certainly not fit for us to say, He shall reign, of whom the Lord says, He shall not reign; but when we own the authority of those whom the Lord threatens they shall not reign, we say, they shall reign; for we say, they have a right to reign, and own ourselves obliged to do all that is required in our capacity to perpetuate their reign. There is a terrible threatning against Zedekiah, Ezek xx. 25,—27. "Thou profane," or as some translate it, "thou worthy to be killed," (Pool. synops. crit. in locum.) "wicked prince of Israel—Thus saith the Lord God, remove the diadem, take off the crown, this shall not be the same, exalt him that is low, and abase him that is high; I will overturn, overturn, overturn it, and it shall be no more until he come whose right it is, and I will give it him." Than which nothing can be more applicable to our princes, who are profane, and the patterns and patrons of it, whose diadem the Lord will remove; and if he threaten it, wo to them that contribute to hold it on. We see here a profane and wicked prince threatned to be overturned must not be owned, because he hath no right; but our excommunicate tyrant is a profane and wicked prince, threatned to be overturned: Ergo—There is another dreadful threatning against tyrants, Amos iv. 1, 2. "Hear this word ye kine of Bashan, which oppress the poor, which crush the needy—The Lord God hath sworn by his holiness, that lo the days shall come upon you, that he

will take you away with hooks, and your posterity with fishhooks." Shall we own these, against whom the Lord hath engaged his holiness by oath so solemnly, that he will fish them with hooks? we may fear if there be such a tie as allegiance between them and us, that that same hook which fishes them may also catch us; as it is said of Pharaoh and his subjects, when he is hooked, then his fish stick unto his scales, and he and they are left in the wilderness, Ezek. xxix. 4, 5. that is, as Grotius expounds it, whoever are of his community shall be consorts in his calamity, Pool. Critic. in locum. If we then own them, we must be of their community, and so partake of their judgments.

2. There are many threatnings against illimited loyalty, and those who had more of that than religion: for this Ephraim was broken in judgment, because he walked willingly after the commandment, Hos. v. 11. And because the statutes of Omri were kept, and the works of the house of Ahab, therefore the Lord threatens to make them a desolation, Mic. vi. ult. And among other threatnings against the men of such universal loyalty, that is notable, Hos. x. 3. "Now ye shall say, we have no king, because we feared not the Lord, what then should a king do to us?" It is the just punishment of wicked loyalty, that prefers the fear and favour of kings to the fear and favour of God, that at length they are brought to that pass, that either they have no kings at all to look to, or else they have such of whom it may be said, they are no kings in effect; for they cannot act the part of kings to them that trust in them. Hence, 1. If to have really no kings be a punishment. 2. If those that have the name of kings, that can do no good, be no kings; then tyrants that can do no good, but a great deal of hurt, must be reckoned no kings also; but here it is threatned, people that had kings, that had the name, but could do no good, should reckon they had no kings: therefore much more may tyrants be reckoned to be no kings, who can do no good, but a great deal of hurt.

Seventhly, This truth is confirmed from scripture-prayers; whereof there are many against tyrants, none for them. Hence we argue, If we are not to pray for tyrants, then we are not to own them; for we are to pray for all that are in authority, 1 Tim. ii. 2. But we are not to pray for tyrants; Ergo, we are not to own them. The minor now must be proved. And this leads me to another subordinate question, which hath also been a head of suffering to some serious seekers of God in our land of late.

The profane emissaries of this and the late tyrant, sent out with bloody commissions to hunt after the Lord's hidden ones, in order to murder all whom they might meet with, that made conscience of adhering to every part of the present testimony; among other trapping questions to discover their prey, they used to put this to them as a discriminating Shibboleth, and tessera of owning the present tyranny, will you say, God save the king? and for refusing this, many have been cruelly murdered in the fields; and many before their bloody judicatories, have for this been arraigned and condemned, and executed to the death. Wherefore to this somewhat must be said, 1. By way of concession. 2. By way of vindication, of scrupling it, and suffering upon it.

First, In the general, it will be necessary to premit by way of concession, 1. It is duty to pray, supplicate and interceed for all men, 1 Tim. ii. 1. not collectively considered nor distributively for every one universally without exception, but indefinitely and indiscriminately, for the kinds of every individual, for all sorts and sexes, of whatsoever nation or religion, Jew or Gentile, Christian or infidel, not excluding any for these distinctions: and not only so, but for every individual of the kinds, also conditionally, if they be among those all whom the Lord will have to be saved, verse 4. If they be among those all for whom the mediator gave himself a ransom to be testified in due time, verse 5, 9. If they have not sinned the sin unto death, for which we are not bidden pray, 1 John v. 19. Which, because we know

not particularly who are guilty of it, charity will oblige us to take into our prayers many that may never be the better of them; yet it is necessary that we pray in faith, for what, or whomsoever we pray, at least, if I may so call it, we must have a negative faith, a belief that they have not sinned that sin unto death; which we cannot have at all, there being some whose demonstrations of desperate displays of affronted wickedness, and hatred of holiness may give ground to doubt of it, as Christians had of Julian the apostate. 2. We are obliged to love our enemies, to bless them that curse us, to do good to them that hate us, to pray for them that despitefully use and persecute us, Mat. v. 44. Accordingly our master, who commanded this, did give us a pattern to imitate, when he prayed, Father forgive them for they know not what they do, Luke xxiii. 34. And his faithful martyr Stephen, prayed for his murderers, Lord lay not this sin to their charge, Acts vii. the last verse. We are to pity them, and not to seek vengeance against them, for any injuries they can do to us. Yet, as this doth not interfere with a holy and zealous appeal to God for righting, and resenting, and requiting, the wrongs done to us, that he may vindicate us and our cause, and make them repent of their injuries done to us, to the glory of God, and conviction of onlookers, and confusion of themselves, which may well consist with mercy to their souls; so all we can pray for them in their opposition to us, is in order to their repentance, but never for their prosperity in that course.

And we may well imitate, even against our enemies, that prayer of Zechariah's, "The Lord look upon it, and require it," 2 Chron. xxiv. 22. But we are never to pray for Christ's stated enemies, as to the bulk of them; and under that formality as his enemies: for we must not "love them that hate the Lord," 2 Chron. xix. 2. but hate them, and hate them with a perfect hatred, Psal. cxxxix. 21, 22. We are to pray for the elect among them, but only to the end they may escape the vengeance, which we are obliged to pray for against them. 3. We are not to execrate our enemies, or use imprecations against any, out of blind zeal, or the passionate or revengeful

motions of our own hearts: our Lord rebuked his disciples for such preposterous zeal, Luke ix. 55. "Ye know not what manner of spirit ye are of;" but against the stated and declared enemies of Christ, as such and while such, we may well take a pattern from the imprecatory prayers of saints recorded in scripture; such as do not peremptorily determine about the eternal state of particular persons: which determinations, except we be extraordinarily acted by the same spirit, whose dictates these are, are not to be imitated by us. We find several sorts of imprecations in the Psalms and other scriptures: some are imitable, some not; some are prophetic, having the force of a prophecy, as David's Psal. xxxv. 4. "Let them be confounded—that seek after my soul.—Let destruction come upon him," Psal. lv. 15. "Let them go down quick to hell." And Jeremiah, chap. xvii. 18. "Let them be confounded that persecute me,—destroy them with double destruction." Without this prophetic spirit, determining the application of these threatnings to particular persons, we may not imitate this peremptoriness. Some are typical of Christ's mediatory devoting his enemies to destruction; who as he interceeds for his friends, so, by virtue of the same merits (by them trampled upon) he pleads for vengeance against his enemies; which mediatory vengeance is the most dreadful of all vengeance, (Heb. x. 29.) So also, Psal. xl. He whose ears were opened, and who said, "lo I come,"—verse 6, 7. (that is Christ) does imprecate shame, and confusion, and desolation, ver. 14, 15. As also Psal. cix. the Psalmist personates Christ, complaining of, and imprecating against his enemies; particularly Judas the traitor, verse 8. It must be dreadful to be under the dint of the Mediator's imprecations; and also dreadful to clash with him in his intercessions, that is, to appreciate for them against whom he intercedes. But some imprecations against the enemies of God are imitable; such as proceed from pure zeal for God, and the spirit of prayer, as that, Psal. cix. last verse, "Put them in fear, O Lord, that the nations, may know themselves to be but men." Psal. lxxxiii. 16.—"fill their faces with shame that they may seek

thy name." This is to be imitated in general against all the enemies of God, Psal. cxxix. 5. "Let them all be confounded that hate Zion;" without condescending on particular persons, except obviously and notoriously desperate and presumptively Christ's implacable enemies. 4. Touching magistrates it is a great duty to pray, that God would give us magistrates, as he hath promised for the comfort of his church, Isa. i. 26. Isa. xlix. 2. Jer. xxx. 21. Promises should be motives and fomenters of prayer. We ought to pray against anarchy as a plague, and with all earnestness beg of God, that the mercy of magistracy may again be known in Britain, of which it hath been long deprived. 5. And when we have them, it is a necessary duty to pray for them; "For kings and for all that are in authority, that we may lead a quiet and peaceable life in all godliness and honesty," 1 Tim. ii. 2. Where it is specified, what sort we should pray for, and to what end. As we are not to pray for all men absolutely; for some, as they are declared to be out of the precincts of Christ's mediation, so they must be out of our prayers: so there may be some in actual rule, that may be excepted out of the verge of the Christian prayers, as was said of Julian the apostate. But he that is a magistrate indeed, and in authority, the subjects are to pray and to give thanks for him, not as a man merely, but as a magistrate. Yea, though they be heathen magistrates, Ezra vi. 10. We may pray for all in authority, two ways; as men, and as kings. As men, we may pray for their salvation, or conversion, or taking them out of the way, if they be enemies to Christ's kingdom, according as they are stated; and upon condition, if it be possible, and if they belong to the election of grace. Though for such as are opposites to the coming of Christ's kingdom, as it is a contradiction to the second petition of the Lord's prayer, (thy kingdom come.) So, in the experience of the most eminent wrestlers, they have found less faith, and less encouragement, in praying for them, than for any other sort of men. It is rare that ever any could find their hands in praying for the conversion of the rulers. And though we pray that the Lord would convince them; yea, and

confound them, in mercy to their souls; yet this must never be wanting in our prayers for tyrants, as men, that God would bring them down, and cause justice overtake them, that God may be glorified, and the nation eased of such a burden. But if we pray for them as kings, then they must be such by God's approbation, and not mere possessory occupants, to whom we owe no such respect nor duty. For whatever the Hobbists, and the time serving Casuists of our day, and even many good men (though wofully lax in this point) homologating both doctrinally and practically their heathenish notions, say to the contrary; I hope it be in some measure made out, that tyrants are no more the ordinance of God, nor to be owned as his ministers and vicegerents, than the devil the prince of this world for the Lord's anointed, or Baal's priests for true ministers. If we pray for them as kings, we must pray for their peace, prosperity, and preservation, that their government may be blessed with success, their designs not frustrated, nor their desires disappointed. This we cannot pray for tyrants. 6. Albeit, we may pray for the peace of the nation, and for the government thereof, so far as it may conduce to our own and the church's tranquillity, that we may live a peaceable and godly life under it; yet this cannot be extended to the peace of tyrants, for whom the best prayer that we can bestow is, that the Lord would bridle and restrain them, that they may not mar the church's peace. That command, Jer. xxix. 7. "Seek the peace of the city, whithersoever I have caused you to be carried captives, and pray unto the Lord for it, for in the peace thereof shall you have peace," is apparent to have been but of a temporary nature, upon occasion of their captivity there, until the 70 years should be expired, having it also declared by God, that their own peace was bound up in that of Babylon's: for after that time they are taught the contrary carriage towards that city, to depart, and pray against it, and exult and rejoice in its ruin: "O daughter of Babylon, happy shall he be that rewardeth thee as thou hast served us, that dasheth thy little ones against the stones," Psal. cxxxvii. 8, 9. "The voice of them that flee out of the land of

Babylon, to declare in Zion the vengeance of the Lord, the vengeance of his temple," Jer. l. 28. And Jer. li. 35. "The violence done to me, and to my flesh, be upon Babylon, shall the inhabitant of Zion say, and my blood be upon Chaldea, shall Jerusalem say." Certainly this is not the season to seek the peace of mystical Babylon, but to pray for the destruction thereof, and all its supporters: which we cannot do, if we pray for them that improve, employ, and apply all their power to support it, lest we pray contradictions; as many do, who pray against Babel's brats, and yet pray for the king; but the comfort is this, that nonsensical prayers will do little good, little hurt, but to themselves that pray them.

Secondly, To vindicate the scruplers and refusers of such compelled and extorted devotions in praying for tyrants, I shall offer these considerations,

1. The imposed form of it (which as it is found in the original from whence it is taken, is only paraphrastically expounded, God save the king; and catechrestically applied to tyrants, being in the native sense of the words of this signification. Let the king live; which is a very improper wish for men of death, of whom God says they shall die, and the law says, they should die for their murders and capital crimes) must be taken either as an adulatory compliment; or a congratulatory honour; or a precatory benediction. The first as it is extorted most illegally, so it can be tendered neither civilly, nor sincerely, nor christianly; but all ingenious men would think it a base imposition, to be forced not only to subject themselves to their tyrannical oppressors, but to flatter them as if they were not such. Whatever they may force the mouth to speak dissemblingly, they can never compel the heart to think such wishes are due to them; and so they can never be cordial, nor confident with candor: and to interpose the holy and dreadful name of God, in a dissembling compliment, to flatter base men, is a horrid mocking of God, and a heinous taking his name in vain, contrary to the third command. If it be a congratulation (as always it is used in

scripture, and in cases formerly; being never imposed on men, by way of compulsion, before this set of tyrants started up, that know they can get no deference of honest men, but by extortion) it is the more abominable; not only for the hypocrisy that is in it, but the blasphemy, in giving thanks for the promoter of the devil's interest, and the destroyer of Christ's, and the liberties of mankind. What have we to congratulate him for, but for overturning our laws and liberties, and oppressing us in most grievous tyranny? Besides, to give the vilest of men, when exalted, any congratulatory honour, is contrary to the fifth command, as is shewed above. "And it were a forsaking of the law, thus to praise the wicked, since they that keep the law, will contend with them," Prov. xxviii. 4. If it be a benediction, we cannot bestow it upon one whom our father curses, our mother curses, and all our brethren. It is no less preposterous to bless whom the Lord declaredly curses, than to curse whom he blesses. "The curse of the Lord is in the house of the wicked," Prov. iii. 33. we cannot then bless that house. Nor can we bless them that our mother curses, and cries for vengeance against, as she did against Nebuchadnezzar, Jer. li. 34, 35. Nor them against whom the blood of our dead brethren hath a moral cry, "How long, O Lord, holy and true, dost thou not judge and avenge our blood," Rev. vi. 10. And the vexed spirits of our brethren, yet howling under the same yoke, are putting up before the throne of grace, the same continued cry, with incessant importunity; "How long, how long shall the wicked triumph? How long shall they break in pieces thy people? O God, to whom vengeance belongeth," Psal. xciv. 1-4. Yea God hath said it, and we must not contradict it in our practice, against all tyrants that wrest judgment, and say unto the wicked, "Thou art righteous, him shall the people curse, nations shall abhor him," Prov. xxiv. 24. And this must stand registred, as the everlasting clause of all Zion's haters, to which all her lovers must say, Amen, that they shall be as the grass upon the house tops, and never have the benefit of the church's benediction, Psal. cxxix. 8. "Neither do they

which go by say, The blessing of the Lord be upon you; we bless you in the name of the Lord." This one word may be a sufficient supersede as from blessing any of the enemies of God; or of the church, while acting in a declared opposition to God for the destruction of his people and interest.

2. Either this——Save the king, as they mouth it, and demand the repetition of it, is a prayer, or it is not. If not, it must be a dreadful profanation of the name of God, to be commanded to speak to him, and yet not to pray. If it be a prayer, we would expect another way of dealing with us, if they really desired the benefit of our prayers, than a threatening us with death, if we did it not. And if they did desire it, as Darius did, "that we might offer sacrifices of sweet savour unto the God of heaven, and pray for the life of the king and of his sons," Ezra vi. 10. we could not refuse to pray for him, so far as might consist with that prayer of the same Darius, in that same decree, ver. 12. "That God may destroy all kings and people, that shall put to their hand to alter and destroy the house of God." We can pray no prayer inconsistent with this; and to pray that God would save this king, and yet destroy all kings that put to their hand against his house, were to pray contradictions. But they know they deserve no prayers, and must force them, if they get them. And all the world knows, that compelled prayers are no devotion; and if they be no devotion, they must be sin; imposed prayers are not the prayers that God will hear and accept: and if we have not the faith of acceptance in them, they must be sin; for whatever is not of faith is sin, Rom. xiv. last ver. All prayers which God will hear, must proceed from the heart voluntarily and fervently, in spirit and in truth, with the whole heart; but imposed and compelled prayers cannot be such, especially when they are not only by them imposed, but prescribed as to the form of them: which sets and forms prescribed by men, and such men as usurp a supremacy over the church, cannot be subjected to, according to the word of God, and principles of our reformation.

3. That infallible proposition of the apostle, whatsoever is not of faith is sin, must be urged yet a little further: and that with a reference, both to the person required to be prayed for, and to the matter of the duty more generally. First, if we cannot pray for this man, neither as a Christian, nor as a king, then we cannot satisfy this imposed demand; for it will not satisfy for him as a heathen: but we cannot in faith pray for him, either as a Christian, or as a king. Not as a Christian, for besides that he is an excommunicate apostate (by a sentence, which we believe stands yet ratified in heaven, pronounced by a faithful servant of Christ) and a papist, which, as such, can no more be prayed for, than the pope as pope; for whom, and all the limbs of antichrist, the only prayer that protestants can pray, is, that the Lord would consume him with the spirit of his mouth, and destroy with the brightness of his coming, 2 Thess. ii. 8. (we cannot reconcile the prayers of some, that pray against the pope and his supporters, and upholders of his tottering kingdom, and yet for this his antichristian vassal) his rage and resolution in prosecuting a war against Christ and his followers, is such, that if we may make comparisons, our faith will have little more ground to pray for James, than Christians of old could find for Julian the apostate. Nor as a king, for that we cannot do, because he is none with God's approbation, and may not do, for a very heathen could teach us to pray, that God would destroy all kings that put to their hand to alter and destroy the house of God, Ezra vi. 12. And besides, in the second place, with respect to the matter of the duty in general; that cannot be, in faith, which wants a warrant in the word, either by precept, promise, or practice; but to pray for wicked tyrants and enemies of God, wants a warrant in the word, either by precept, promise, or practice: there is no precept for it, either general or particular, neither express, nor any to which this is reducible: and who dare add without a precept in the worship of God, either for matter, manner, or end, what he hath not commanded? For such presumption Nadab and Abihu were destroyed, Levit. x. 1, 2. because they

did that which the Lord had not commanded. What command can there be for praying for that, which is against the preceptive will of God? But it is against the preceptive will of God that there should be tyrants: therefore to pray that these may be preserved in the world, cannot fall under a command of God. There is no promise for it, which is the foment and foundation of prayer: we can pray for nothing that we have not a promise for, either general or particular; but we have none, nor can have any, for the preservation of a plague to us, as tyrants are.

There is no practice for it in scripture, to pray for kings that put to their hand to destroy the house of God. Samuel did indeed mourn for Saul, but the Lord reprov'd him for it, how long wilt thou mourn for Saul, seeing I have rejected him from being king over Israel? 1 Sam. xvi. i. belike this reproof was for his praying for Saul's preservation as king, for otherwise we may mourn for wicked wretches, for their sin and misery both. But hence, if the Lord reprove his servant, for mourning for a king whom he disowned, then we may not pray for such a king whom the Lord disowns, as he disowns all tyrants, for they are set up and not by him; but the antecedent is true in that example of Samuel; therefore also the consequent, that we may not pray for them as kings, whom the Lord disowns.

4. Moreover, to confirm this yet further; that prayer is not of faith, and so sin, which is contrary to the precepts of God, and his promises, and the practices of the saints; but praying for wicked kings, their preservation, is contrary to these precepts, promises, and practices, &c. Ergo——. It is contrary to some divine precepts, both affirmative and negative. There is an affirmative precept, prescribing what prayer should be used under the domination of tyrants, that they should weep and say, Spare thy people, O Lord, give not thine heritage to reproach, that the heathen should rule over them, wherefore should they say among the people, where is their God? Joel ii. 17. If it be a reproach to be under heathen rulers, and if we should

pray that they may not rule, but that our God may shew himself where he is, and who he is, in delivering his people from their domination; then it is contrary to this, to pray for the preservation of tyrants, that do rule over them to their destruction and reproach; for it is contradictory to pray, that they may not rule, and that they may be preserved in ruling. There is a negative precept, prohibiting the salutation of heretics and enemies of the gospel, which will condemn this salutation of heretical kings: for, in the original, God save the king, is no more than a solemn salutation, or apprecatory wish that he may prosper. 2 Epist. John ver. 10, 11. "If there come any——, and bring not this doctrine,——neither bid him God speed, for he that biddeth him God speed, is partaker of his evil deeds." God speed, in the Greek, is the same with God save, in the Hebrew. If then we must not say, God save a heretic; neither must we say, God save an heretical king, or a popish tyrant, a sworn enemy to the gospel of Christ, and the coming of his kingdom. This is also inconsistent with that rule and directory of our prayers, commonly called the Lord's prayer, not only because it cannot be reduced to any of its petitions, (which are comprehensive of all that we are warranted to pray for,) but because it is contradictory to the second, which is, thy kingdom come. The coming of Christ's kingdom in our land cannot consist with the preservation of the tyrant's reign, which is Satan's rule, for antichrist's and satan's kingdom, and Christ's, cannot be promoted both at once. It may be also demonstrated, that it is inconsistent with all the petitions of that perfect form of prayer. With the first, hallowed be thy name; for when they who rule over his people make them to howl, then his name continually is blasphemed, Isa. lii. 5. Yea much profaned in the frequent repeating that imposition. With the second, thy kingdom come; for when he takes unto him his great power and reins, then is the time he will destroy them that destroy the earth, Rev. xi. 17, 18. It is against the third, thy will be done—for it is against his preceptive will that there should be a throne of iniquity, it shall not have fellowship with him; as it would

have, if according to his will. And therefore Habbakkuk pleads from the Lord's holiness and righteousness against tyrants, Habbak. i. 13, 14. It is against the fourth, give us this day our daily bread, to pray for them that rob us of it, whom the Lord hath set over us for a plague, to domineer over our bodies, and all the means of life, Neh. ix. 37. The saints there make a complaint of kings, and pray to remove them, not to save them: the church also prays against base rulers on this account, because under them they get their bread with the peril of their lives, Lam. v. 8, 9. It is against the fifth, forgive us our debts or sins; for if we pray for taking away the guilt of sin, we must also pray for removing the punishment; whereof this is one, to be under tyrants: and if it be sin which brings on judgment, then it is sin to pray for the keeping of it on, and continuing thereof; and though we should forgive their sin against us, yet we ought to complain against their sins against God, and the church, in defiling it, and shedding the blood of the saints, Psal. lxxix. 1-7. It is against the sixth, Lead us not into temptation, and deliver us from evil: for their government is a continued tract of temptation, they being a snare on Mizpah, and a net spread upon Tabor, Hos. v. 1. And if we pray to be delivered from all evil, then we must pray to be delivered from tyranny, which is a great evil. It is against the conclusion also, For thine is the kingdom,—and glory: tyrants being stated in opposition to the glory of God. Again, in the next place, it is against many promises of giving good rulers, and of breaking the yoke of tyrants, (as I cited several above;) neither of which can consist with the preservation of tyrants, if such a prayer should be answered according to the idol of the heart of the supplicants: for if God should save this man as long as we may pray for him as a king, then all the promises of a change and revolution are precluded. Lastly, It is contrary to the constant tenor of the saints prayers against the enemies of God. Deborah prayed upon the destruction of a tyrant, so let all thine enemies perish, O Lord, Judg. v. ult. Jotham prayed against the bastard king, Let fire come out from Abimelech and devour the

men of Shechem, and—let fire come out from the men of Shechem and devour Abimelech, Judg. ix. 20. David prays against Saul, whom he calls Cush the Benjamite in the title of Psal. vii. alluding to Kish his father, or because he was no better than an Ethiopian, a Cushite, Amos ix. 7. and could no more change his manners than an Ethiopian can change his skin, Jer. xiii. 23. See Pool's synops. critic. in locum. Where it is proven, that this was Saul; against him he prays, that the Lord would awake to judgment, Psal. vii. 6. and that he would break the arm of the wicked and the evil man, Psal. x. 15. that he would not slay them, (to wit, suddenly, or in a common way) lest the people forget, but scatter, and bring them down, and consume them in wrath, that they may not be, that it may be known God ruleth in Jacob to the ends of the earth, Psal. lix. 11, 13. This is a psalm against dogs, ver. 9. what dogs?—Saul and his men watching David. See the title. As also it is against Saul that he prays, that the Lord would not grant his desires, nor further his devices, and as for the head of them that compassed him about, (which was Saul.) Let the mischief of their own lips cover them, Psal. cxl. 8, 9. There is also a prayer, that the saints may execute vengeance, and the judgment written upon tyrants, and bind them with chains, Psal. cxlix. 6, 8, 9. The church is brought in praying for vengeance against the Babylonian tyrant, Nebuchadnezzar the king of Babylon hath devoured me,—the violence done to me and my flesh be upon Babylon shall the inhabitants of Zion say, Jer. li. 34, 35. Paul imprecates any man that does not love the Lord Jesus, let him be Anathema Maranatha, 1 Cor. xvi. 22. and sure no tyrant, persecutor, subverter of Christ's kingdom, can be a lover of Christ. The martyrs, under the fifth seal slain for the word of God, and the testimony which they held, are brought in crying against the tyrants that murdered them, How long! O Lord, holy and true, dost thou not judge and avenge our blood, Revel. vi. 9, 10. Which though it be to be understood of a moral cry of blood, as Abel's blood cried against Cain: yet ought to be a pattern of our prayers against such bloody enemies, imbruing their hands in

the blood of our brethren, for which we ought to pray that the Lord would haste to make inquisition. Durham observes from this place, that God's people, in a holy way, may pray for vengeance upon persecutors.

5. Let us consider the person and matter, for whom and for what this prayer is extorted. Either it is for the personal salvation of James the papist, or the royal preservation of James the tyrant. It will not satisfy to pray, that if it be possible, and if it were the Lord's will, he might be taken to heaven, that so we might be quit of him. Neither were it lawful to pray, that, except we prayed first, that he might repent of this his wickedness, if perhaps it might be forgiven him, as Peter directed Simon Magus to pray for himself, Acts viii. 22. for it is unlawful to pray for the salvation of a papist, except upon supposition of his repentance and relinquishing popery. We must pray nothing but according to the will of God; and it is not the will of God, that they that have and keep, and will not part with the mark of the beast, should be saved, for he is adjudged of God to drink of the wine of his wrath, Revel. xiv. 9, 10. So we cannot pray for him as a Christian, which he is not; nor as a papist, except that he may get repentance. Nor can we pray for him as a king, which he is not; nor as a tyrant, except that he may repent of and relinquish his tyranny and usurpation: for tyrants as such cannot be saved, no more than papists as such; for Tophet is ordained of old, yea for the king it is prepared,—Isa. xxx. 33. We cannot then pray for his salvation, except we pray for his repentance, and relinquishing all his sins, and so we must pray for him relinquishing his kingship, and that he may cease to be king; for that is his sin, that he hath made himself king without God, and against the laws of the land.

And now, while he continues such, we must complain in prayer, not for his misgovernment only, but for that he governs, and desire to be delivered from him. See Gee's magistrates original, pag. 258. But now considering what a man, and what a king he hath been, guilty of murder, adultery,

idolatry, under sentence of the law both of God and man; we can pray no otherwise for him, than for a murderer, adulterer, or an idolater. We cannot pray for him as cloathed with authority, or that the Lord may bless his government, for that is his sin and our misery, that he is a governor: and his throne is a throne of iniquity, which we dare not pray may have fellowship with God. Can we pray that God would bless him on a throne of iniquity? Could we pray, that the Lord would bless a drunkard in his drunkenness, abusing his enjoyments? Or a thief in his stealing, though he used his purchase never so soberly? What if prevailing robbers by land, or pirates by sea, preying upon all passengers, should require this as the sign of subjection to them, and only condition whereupon such, as they apprehend and overcame, should be suffered to live, that they should pray for preservation and prosperity to them? Would not this be wickedness thus to pray for thieves and robbers? And are not tyrants the greatest of thieves, that rob and destroy twenty for one of private robberies? And do they not require this as such a sign on such a condition?

6. Lastly, Then the plea will be reduced to this, that it is exacted as a badge of loyalty, and sign, Tessera, Shibboleth of owning the authority. Which I have at this length endeavoured to prove, cannot be conscientiously owned by us, in these circumstances. And even by this argument: that authority which we cannot pray for we cannot own; but we cannot pray for this tyrannical authority: therefore.—The minor I trust is in some measure made manifest, by what is said above. And so I conclude this head, with that form of prayer, that I use for the king. O Lord God, to whom vengeance belongeth, shew thy self; lift up thyself, thou judge of the earth, render a reward to the proud. Lord, how long shall the wicked? how long shall the wicked triumph? Shall the throne of iniquity have fellowship with thee, that frameth mischief by a law? The mighty and terrible God destroy all kings and people, that put to their hand to alter and destroy the house of

God. Overturn, overturn, overturn this throne of tyranny, and let it be no more, until he come whose right it is.

HEAD III.

The refusing to swear and subscribe the many unlawful imposed oaths, for which many have suffered great cruelties; chiefly that of Abjuration which was the cause of several their suffering to death, vindicated.

Another great head of grievous sufferings, in this fatal period, hath been, this stated war between Christ and his enemies in Scotland, he hath not wanted witnesses, who in their wrestlings for the word of God and the testimony which they held, thought it their duty to refuse all illegally imposed and wickedly required transactions with his declared enemies, and tampering any manner of way with them, in taking or subscribing any of their conscience couzening impositions of deceitful and destructive bonds and oaths, obtruded by men who have cast off all sense of a Deity, or regard to humanity, upon the consciences of poor people, to debauch them and cast them down from the only excellency or integrity that was left them: whereby (though they have missed of their design as to some, who through grace have escaped the snares of these fowlers, and in resisting have overcome through the blood of the Lamb) they have prevailed to inveigle the generality, even of the professors of this generation, into such a degree of defection and wretched compliance with all their snares, that as it prognosticates universal desolation ineluctable, (if it be not prevented as universal as the compliance hath been,) so it proclaims the infamy of the compliers perjury as indelible as their perfidy with whom they have complied. The consideration of which woful apostasy, in its various steps by which it hath been propagated and promoted, ought to deter and demur all the fearers of God, that would not partake of its threatned punishment,

from venturing any more to come near the brink, or border of such precipices, and paths of the destroyer, when so many have stumbled, and fallen, and been hooked, and taken; yea not so much as to look near them, lest they be left to follow their look, but to stand aloof from every appearance of transacting with these man catchers, yea conscience-catchers, who are so cunning to ensnare and destroy; as their predecessors, to whose sins and judgments also they serve themselves heirs, are described by the Holy Ghost, Jer. v. 26-29. They lay wait as he that setteth snares, they set a trap, they catch men,——their houses are full of deceit, therefore they are become great and waxen rich.——Shall I not visit for these things saith the Lord? Many and manifold have been the snares, traps and gins, laid in the way of the professors of this generation and nation, by these mischief hatchers, these keen and cunning persecutors, the party now regnant or rather raging, in madness and malice against Christ and all that are loyal and zealous for his interest against their encroachings thereon, whereby they have caught and cozened many out of their consciences, and have broken the neck of some, the peace of others, and the hearts of not a few. Yea no nation can be instanced, wherein so many oaths and bonds have been imposed on peoples consciences, so nauseating for naughtiness and number, as well as noxious in their nature, in an age, as have been in Scotland within these 27 years past; on design to waste all remainder of conscience, or sense of religion among people, that so having worn out the awful impression of it, they may introduce what they would, upon a people involved in the same apostasy with themselves and either to incorporate all with themselves in the same combination against the Lord, or to extirpate all dissenters, who should discover any tenderness of conscience, in not going along with them in the same excess of riot. And to the end they might have the greater concurrence and countenance, with the help of hell's policy, they contrived them in such terms as might engage many to take them, and load the recusants with odious obloquies, either as silly scruplers, or

sedition schismatics, or rebels. For this hath been all along their grand project, to level their designs against religion, not directly and formally under that notion, but obliquely to the destruction of the lovers and professors of it under the nickname of fanatical enemies to government. Of these ensnaring engines levelled to these ends, some have been more patent and open, others more latent and hidden; both have made a pray of people, the last chiefly. For a snare the more latent and hidden it be and the more varnished over with the vermillion of pretended honesty and innocence, it is the more dangerous; and will be so accounted by all the circumspect and cautious, as in its design more destructive, and in its effects, when discovered, more dolorous, than that which is more open and manifest. A hook, the braver that it is busked, and the better that it is baited, the surer and more successful it is to catch the simple fish; if it want its busking, they will not so readily bite at it.

In vain is a net spread in the sight of any bird; yet though this is a truth, such silly birds have the bulk of us been, such silly doves without a heart, and so senselessly stupefied, as to suffer ourselves to be blindfolded and hood-winked into snares, of such a manifest baseness, as none could be readily supposed might fall into, who did not brutishly abandon all common sense of reason, besides religion; as a test, and oaths of arbitrary allegiance, bonds of conformity, and irregular regulation, &c. Some again, and these, alas! too many, have been ensnared with snares of a more smooth, and subtile complexion, and poisoned with gilded arrows, coloured over with the specious pretexts of the enemies relenting condescendency and tenderness, stooping now to universal and general terms, obviously thought capable of a very good construction, and daubed over with the untempered mortar of the frequency of the most universally unscrupled supscription of very good and conscientious men and the rarity of recusants lying under the reproach of some few, wild, fantastical fools. These well busked hooks have caught many; of which sort have been many banded indemnities, and easily

swallowed oaths thereunto appended. Though the present indeed is contrived without gins of this sort, and now all these snares of oaths and bands are as illegally taken away as they were before imposed; upon the same design, to catch silly fish by other methods; not with hooks, as before, but with a large spread net, to hale the whole school to antichrist's shore; and to put to proof and practice the vastness of that leviathan prerogative of absolute power, to dispense with all oaths; especially because, in all of them, even the most monstrous, people might think there was some tie obliging them to maintain the protestant religion, therefore to obliterate that, and bury it in oblivion, all now are taken away; but the guilt of them still remains upon the land, and the grievous cry of suffering for refusing them still continues; and therefore the iniquity of them must be looked unto and lamented, and that with an eye to the account and reckoning must be rendered for them, to a greater judgment than that of creatures. But among all these destructive and diabolical devices, there have been none more charming and cheating, than that cunningly contrived oath of abjuration, as it is called, enjoined to be taken by all within the kingdom, by a proclamation about it, representing a late declaration emitted by that party, whose sufferings I am vindicating (as a manifesto of their enemies) under the most odious character, that the malice of men helped with hell's hatred could devise; and requiring all to abjure it in the most peremptory manner, and under the severest penalty that ever was heard. This oath, I say, was contrived with such cunning, and followed with such keenness, that it hath involved more under its obligation, and engaged more to subscribe it, than any other that went before it: because it hath been painted over with such pretexts, as never any before was capable of. The pressing of it hath been so impartial, upon travelling to the country, &c. And their acceptance of the pass annexed to it thought so necessary, as without it no business could be gone about. Its subscription so universally unscrupled, even by the generality of great professors and ministers too; the thing abjured

represented so odious, as no honest man could refuse to renounce; and the matter renounced, under its best aspect and construction, esteemed only a paper declaration of a party very despicable, wherein the principles, profession, or confession of the church seems no way concerned; and if any way concerned, yet the concern appearing so finall, as few or none durst state their sufferings upon that head. Yet I believe, if either such as have taken it, or others that may have the tentation of the like hereafter, will impartially ponder it; so much iniquity may be discovered in it, as may oblige the one to mourn in the sense of its fulness, and the other to beware of its danger. And so much rather would I offer this to consideration, that I know one who was wofully wheedled into it, that found the bitter effects of this poisoned pill in his wounded conscience, after reflections on the deed, in such a measure that he despaired of ever recovering peace. And this man had as much, and more to say, to justify his deed, than any that ever took it; having it with all the advantages that ever it could be tendered with: for, being urged thereunto before the justiciary, he expresly refused to disown that declaration, and the principles whereupon it was founded, and told them that it was misrepresented in the proclamation: and when they yielded to an abstract disowning of it in so far as the proclamation represents it, or, if so be, it might be so represented, he gave in a sense in writ, wherein he would take it; shewing that, upon supposition, the declaration did assert such things as was represented, he would disown it: and after the sense was accepted as satisfactory, he refused to swear after the ordinary manner, following the clerks, blind manuduction, but behoved to have it written down: and when it was written, with express specification of that apologetical declaration, he refused to swear it, till it was altered and corrected, and the word pretended put in the stead of it: which done, before he subscribed it, he protested it might be constructed in no other sense, than the genuine meaning of the words he delivered in, and that it might not be reckoned a compliance for fear of his life: yet, notwithstanding of all this,

he lost the jewel of inward peace, and knew the terror of the Lord for many days. Therefore I shall chiefly insist on discovering the iniquities of this last oath, called the abjuration oath, both because it is the smoothest, and more generally taken than any other, and approved by many that condemn the rest, and refusing it hath been punished by death, and most illegally pressed upon all, under the penalty thereof, as none of the rest was; and because as all other oaths successively imposed, were so contrived that the last did always imply and involve the substance of the former, so it will appear that the iniquity of none of the preceeding oaths was altogether wanting in this. But to the end, both the complication of the iniquities of this oath may be evinced, and the continued strain of all the oaths (which have also been heads of suffering, though not to this degree) may be discovered; I shall touch somewhat of all the sorts of them, and shew that their iniquity cleaves to this last oath: and then come to canvass this oath itself, after I have premitted some general concessions.

First, In a few words some general concessory propositions may be premitted,

1. That oaths both assertory and promissory are lawful, will not be denied but by Quakers, &c. It is clear, swearing is a moral duty, and so material, that oftentimes it is used for the whole worship of God, Deut. vi. 13. "Thou shalt fear the Lord thy God, and shalt serve him, and swear by his name," Deut. x. 20.—"To him shalt thou cleave and swear by his name." The reason is, because by whomsoever we swear, him we profess to be our God, and invoke him as witness of our heart's uprightness, and honest meaning in the thing sworn, according as it is understood by both parties, and as avenger if we prove false. Hence, every oath, which doth not bind us faster to serve and cleave to him, is but a breach of the third command. Again, it is not only commanded as a duty, but qualified how it should be performed, Jer. iv. 1, 2. Where it is required of a people returning to the Lord, to swear

in truth, in judgment, and in righteousness. Hence, every oath which is not so qualified, and does not consist with a penitent frame, is sin. It is likewise promised in the covenant, that believers shall speak the language of Canaan, and swear to the Lord, Isa. xix. 18. every oath then that is not in the language of Canaan, is unsuitable to believers, that is to say, consentaneous to the word of God, and confession of our faith. Again, he that sweareth in the earth shall swear by the God of truth, Isa. lxv. 16. and therefore that oath which is not according to truth, is dishonourable to the God of truth. If all the oaths imposed upon Scotland these many years, were examined by these touch-stones, they would be found all naught. So giving bands for security, which for obligation are equivalent to promissory oaths, are also lawful materially; but with the same qualifications, otherwise they are sinful.

2. This duty when suitably discharged, truly, judiciously, righteously, in the fear of God, according to his will, is in many cases very necessary. Not only in vows, in which God is the party, in matters morally necessary, to keep the righteous judgments of God, Psal. cxix. 106. Nor only in national covenants for reformation, and promoting the interest of Christ, whereof we find many instances in scripture, in Moses, Joshua, Asa, Hezekiah, Josiah, Ezrah, Nehemiah, their making and renewing such covenants by oath, coming under the dreadful curse of it if they should break it. And this may make our hearts meditate terror, for the universal unparalleled breach of solemn covenants with God, that exposes the nation to the curse of it; but also in human transactions, whereunto God is invoked as a witness, as in national transactions, at choosing and inaugurating their magistrates, for security of religion and liberties, as we have many examples in scripture. Seldom indeed do such bonds hold tyrants, but it is this generation's indelible brand and bane, that without this they have come under the yoke of ineluctable slavery, and have entailed it upon posterity. As likewise in contracts and mutual compacts of friendship, or stricter association, when edification, or other satisfaction, or security calls for it, as Jacob sware to

Laban, David to Jonathan, &c. In which the matter must be clear, and mutually understood, and honestly meant, without equivocation and mental reservation, and all ambiguity, as also possible, and likely to continue so: for otherwise, it were but a mocking of God and man, to swear a thing we either cannot, or will not perform, according to the meaning of him in whose favours the oath is given. But withal we ought to be sparing in such things except where the matter of the oath or bond is weighty and necessary, and not multiply them needlessly upon formality or custom; for if there were suitable confidence in one another, there would not be need for so many of these securities. And specially in relative stipulations betwixt man and wife, &c. Where an indissoluble relation is entered into. And, in a particular manner, even in things civil, when we are called thereunto by a lawful magistrate, for deciding of controversies, or our own vindication, or to confirm our obligation to some duty, an oath for confirmation is an end of all strife, Heb. vi. 16. But always in this the matter must be lawful, according to the will of God, and true, and certainly known, and also necessary, weighty, useful, worthy of such confirmation, for the glory of God, and the good of our neighbour, that his holy name be not taken in vain; for otherwise if the matter be false, God is made witness of a lie; if uncertain, conscience condemns us that we know not, nor care not, what we call God witness to; if unlawful, then God is called to approve what he hath condemned, and so to contradict himself, which is horrid blasphemy. With all which cases, and hell devised impositions on consciences in these days, obtruded to debauch and ensnare them, not one of them, levelling all at one design, how smoothly soever conceived, can be taken without a wound and wramp to the conscience.

3. Of all these cases, only two are applicable to our imposed transactions with our wicked rulers, viz. in the matter of friendly contracts, or in the matter of judicial appearances before them, and swearing and banding before, and to them. In both which, there must be a sort of confederation,

with them. In contracts with them it will not be doubted; and in judicial submitting to their authoritative impositions of such securities, it is evident, there must be also a confederation with them, not only in acknowledging their authority, but in coming under mutual exacted stipulations; wherein, by taking these oaths and bands, we give them security of orderly subjection, as members of the community whereof they are judges, and get their security of acquittance, and that we shall not be molested nor prosecuted among the recusants. Now concerning this confederation, I shall concede in two cases, it may be owned, and consequentially oaths and bonds may be given to men of their stamp, 1. A confederation which is more discrete, or discriminative may be allowed to them; that is, such bargains wherein they and we are kept still divided as two parties, and not under one incorporation, as in contracts of co-habitation, living under them as tenants, buying and selling, and the like. But we cannot enter into a confederation unitive with them, which may make us one body or party. 2. A confederation which is necessary and unavoidable; when either an unavoidable strife or contention doth arise between them and us, whereupon we are compelled to answer in law, and can no otherwise be decided but by our oath of confirmation, which is an end of all strife; or when we are falsely accused of some odious and heinous crime, as of murder or adultery: it is then lawful and necessary to vindicate ourselves, by giving all these legal confirmations that we are free of these things; for otherwise to ly under the imputation of such enormities, were shamefully scandalous to religion. But we cannot allow any transactions of this sort, which are elective and voluntary, to make or pursue either peace or pleas with them, when our own interest or benefit draweth us thereunto; but ere we go to law, or give oaths and bonds to, and before the unjust and perfidious, and such also as we cannot own as magistrates, we would rather take wrong, and suffer ourselves to be defrauded as the apostle adviseth, 1 Cor. vi. 1, 7. It was not unlawful, as expositors shew from that place, for the Corinthians to

answer in law for their own vindication, being pursued by a heathen; but it was utterly a fault to go voluntarily one with another. And if to pursue a brother was a fault, then much more to go to law with an apostate, with whom there should be less meddling. And if to go before the unjust magistrates, as these heathen judges were at Corinth, who yet were magistrates, was utterly a fault, then much more to go before such as have neither rightful nor righteous authority at all: which yet must be acknowledged, if we take oaths and bands before them: for none can exact these but acknowledged magistrates. Hence it is apparent, it would be an elective confederation with these wicked usurping judges, when brought before them to take their tendered oaths and bonds, not as parties pursued before them, but as transacting with them, with whom, as well as before whom, we must give these confirming securities: and so not only must we acknowledge them to be gods, among whom the Lord sitteth, whose holy name is interposed in such solemn transactions; but also we must swear and enter in bonds to them as they require. This indeed is necessary when called before them against our will, and accused of horrid crimes, as was always in the imposition of the oath of abjuration audaciously imputed to the refusers, that they asserted murdering principles, and owned it lawful to kill all that served the king; in such a case, to declare with the most solemn asseverations, for vindication of truth, that we disown not only all such assertions, but all such thoughts as that it is lawful to kill all that serve the king, or any that serve him because they serve him, or because they have injured us any manner of way, and to declare our abhorrence of all murder and assassinations. But to swear such things to them, when we are altogether innocent, would be a granting that we were legally suspected, by offering a legal purgation. And so all the subjects of Scotland should take upon them to purge themselves from a suspicion of murder, which were odious. And to abjure a declaration, as asserting such things, when it asserts no such thing, is a swearing to a lie.

4. All solemn securities of oaths or bonds, that are sacred promises, are by strictness of law, of most strict and indispensable obligation, as Mr. Durham on the third command, shews in many cases: No man's loss, or private prejudice, can make it void, (though we swear to our own hurt, we must not change, Psal. xv. 4) nor indifferency in the matter, if once engaged in, for then our souls are bound, Numb. xxx. 2. nor deceit of others, if the deceit be circumstantial only, as in the Gibeonites case; nor the extortion of it by fear or violence, if the matter be lawful; nor rashness and sin in the manner, if lawful in the matter, as with the Gibeonites; nor another meaning afterwards devised, not according to the imposer's mind, nor our own at first who took it, (that is but a swearing deceitfully, Psal. xxiv. 4.) nor any good meaning or design in reversing the oath (Saul was punished for breaking his oath with the Gibeonites, out of zeal, 2 Sam. xxi. 2.) nor though the oath be conceived by creatures, (as by the altar or temple, &c. Mat. xxxiii. 20,—22.) nor when the thing becomes impossible, if that possibility could have been foreseen or prevented; nor any other sacred meaning, by equivocation or mental reservation, which are abominable; nor any dispensation from pope or king; nor any other posterior oath. None of these things can make an oath void; but if we have bound ourselves, God will require it: "For whoso despises an oath, by breaking the covenant, when lo he hath given his hand, he shall not escape, God shall recompense it," Ezek. xvii. 18, 19. They are null indeed and of no force, when they become bonds of iniquity, tying to things unlawful or impossible; or when the thing sworn is not in our own power, Numb. xxx. 5. Or when there is deceit in it, not in circumstantials only, but in essentials; or when it hinders a greater good, when the case materially altereth; or when the party sworn to relaxeth us. All these do condemn the horrid breach of the sacred and solemn league and covenant, and confutes the perverting and wresting the words of it in the third article, as if it did oblige to allegiance of tyrants; for, in that case, the obligation is unlawful, and there is a case in essentials, and

the case materially altereth, (for in the covenant we are bound to the king, not to a tyrant) and the party sworn to have relaxed us long ago, by annulling the covenant; yet all these things prove, that the covenant is still in force, and that all the oaths and bonds contradictory to it, are sinful: and yet though it be sinful to take them, and sinful to keep them, it is nevertheless perjury to break them, especially to them whose erroneous conscience is bound by them, under a notion of their lawfulness.

And in a special manner it is here conspicuous, how deceitful a juggle that sinful shift of many hath been, that they could subscribe an unlawful bond under a penalty: as for example, to answer to their courts, or to go to church, or separate from the persecuted meetings of the Lord's people, under such a penalty, which they thought to pay the penalty would clear them off, as if it were only an alternative bond. The iniquity of this juggle will appear, if we consider, such bonds cannot be alternative: for alternatives are always disjunctive, binding equally either to this or that; and the one alternative is no more determinately enjoined by the imposer, than the other. And so, if these bonds were alternative, it should be in the binder's choice, whether to answer the court, go to church, to separate meetings, or pay so much money. But it is not so, for the stipulation and promise is determinate to the obligation, for which the bond is required, and the penalty is annexed, as a punishment of the breach of that obligation. And that fancy of eluding the bond by paying the penalty, would quite enervate all security among men, in their mutual compacts of that nature; and under that pretence, they might give a satisfactory compliance to the most wicked imposed obligation imaginable, to subscribe the Turk's Alcoran, with a reserved attention only to pay the imposed penalty. Which reservation is so far from being suitable to that christian simplicity the gospel requires, that it does not answer that moral honesty that our concern, in the good of human society, calls for. It is incumbent on all that expect to dwell on God's holy hill, to have this requisite qualification for one, though

they swear to their own hurt they will not change it, and they must be far from swearing deceitfully; and consequently, if they bind themselves by a promise, which a Christian should be no less tender of than his oath, they must keep it. And besides, to condescend that that penalty or fine should be paid, by ourselves, or friends in our behalf, were to condescend that these enemies should be enriched by our own or the spoil of our friends, upon the account of the forfeiture of our promise; which seems such a dishonest and dishonourable thing, that an honest heart would disdain it. And though this should be flouted as foolish preciseness, to chuse rather to ly still and suffer in such a case; yet it may be considered that Christ's cross, even with reproaches, is always a better choice than the world's ease, purchased at any price which is a hire for Christ's enemies.

5. All divines and casuists do grant, that an oath must be taken in his sense and meaning who tenders it, and in whose favours it is conceived: because oaths and bonds are for security, and therefore whosoever would deal honestly and christianly in taking an oath, must take it in the sense that it is understood by such as impose it; otherwise the holy name of God should be taken in vain, and the swearers and promisers shall deal deceitfully, in frustrating the end of the oath or bond, and the design of the tenderers thereof. And therefore, as reason and religion requires, that all oaths or bonds be so conceived and enunciated, that all concerned may understand them, and if there be any doubt how far they bind, the imposers should explain the same, as Abraham did to his servant: So conscience requires, that they be always taken in the imposer's sense, and as they discover their sense and sentiments of them, and not according to the meaning that we may think the words capable of; nor yet according to the wheedling explications, that they may give or allow, which are as deceitful and ensnaring as the things themselves. Nor is it to be looked upon as a favour to get a liberty to put a sense upon them, contrary to their known meaning; for that is but a liberty to mock God, to mock others, and

ourselves too, and nothing but a snare to the conscience. And to put a gloss upon printed oaths or bonds, which in strict construction they will not bear, and then to subscribe them in the terms as offered, is not only an intangling ourselves into the bond of sinful oaths and bands, but to stumble the godly, and harden the wicked in the present, and to mock posterity in future ages; who shall see the oaths in the terms subscribed, but not the sense they were taken in. See Apolog. Relat. Sect. 14. It is known by manifold experiences that it is dangerous to hearken to their overtures who study to ensnare us, but far more hurtful and hateful to propound overtures to them. For they interpret it a ceding and giving ground, and when they see a man beginning to yield, then they will seem to be very condescending, even to accept of little at first, that they may draw him on to more: like cunning anglers sometimes recoiling and drawing back the well baited and busked hook, to invite the poor unwary fish to pursue, and sometimes letting it run away with the hook when it bites kindly: So when they find a man offering and ready to accept of accommodations, they will be very yielding and easy, but with a design to hook him. But conscience can find no safety at present, nor satisfaction afterwards in accommodations with them. For it is plain to all that are not blinded with ignorance, or partiality, or a judicial stroke, that our imposers are such sons of Belial as cannot be taken with hands, or by the hand; and if we reflect upon the matters upon which these accommodations are to be offered or accepted, they are not things upon which we may come and go, upon our discretion, as we do with our own particulars, or with problems to be disputed, or ambiguous propositions capable of different senses; but matters so and so circumstantiate, as do require the positive determinate judgment of the conscience, concerns of truth and falsehood, duty and sin, which cannot admit of accommodation, or dispensation, or reservation, or any other sense than the imposers and they that state their inquisition about such things do own, and are observedly known to have and maintain about them. Otherwise, all other

forged accommodations are but tampering tricks, juggling with jugglers, deceiving the deceivers, in such a way as does not well consist with the simplicity of the gospel, or the doves innocency; for what is that but a swearing or promising deceitfully! Psal. xxiv. 4. "a conceiving and uttering from the heart words of falsehood," Isa. lix. 13. "a false oath," Zech. viii. 17. "which are hateful to God who will be a swift witness against false swearers," Mal. iii. 5. Neither will they be so easily deceived, for they will readily yield to accommodations, or any tolerable sense that we can put upon their snares; for they reckon that a yielding in part, and are glad to find us so far justifying their acts and impositions, as by our offer practically to declare they bear a good sense, and they will come many ways to our hand to get us hooked so.

Secondly, These things being premittid, I shall offer reasons why it was necessary, in point of conscience, to refuse all the oaths hitherto tendered; and consequently conscientious sufferers upon this account will be vindicated. And first, some general reasons against all of them together, and then a word to each sort of them.

1. There is one general argument, that will condemn coming in any terms of oaths or bonds with that party, that have broken the covenant, overturned the reformation, and destroyed the people of the Lord: because such transactions with them (as hinted above) are a sort of confederacy with the known enemies of truth and godliness, importing a voluntary subjection to them, compliance and incorporation with them, as members of the same community, whereof they are acknowledged to be the head. Now all such sort of confederacy with such malignant enemies of God and of the church, is unlawful, as Mr. Gillespie demonstrates in his useful case of conscience, concerning associations and confederacies with idolaters, or any known enemies of truth and godliness. Though civil compacts for common commerce may be allowed, as Abraham was confederate with Aner, Eshcol,

and Mamre, Gen. xiv. 13. Jacob covenanted with Laban by way of lawborrows, Gen xxxi. 14. But sacred confederations of this sort are unlawful from these arguments, 1. The law of God condemns them, Exod. xxiii. 32. "Thou shalt make no covenant with them, nor with their gods, they shall not dwell in thy land, lest they make thee sin against me,"——Where not only religious covenants are discharged in a toleration of the idolatry, but familiar conversation also, they shall not dwell in thy land. If then we must not suffer them, if in capacity, sure we must far less be imposed upon by them; if we are not to be familiar with heathens, far less with apostates, that call themselves Christians; for the apostle lays much more restraint from communion with them, than with Pagans, 1 Cor. v. 10, 11. The reason of the law, lest they make thee sin: as long therefore as there is that hazard of sinning, the law obliges to that caution. So Exod. xxxiv. 12, —16. "Take heed to thyself, lest thou make a covenant with the inhabitants of the land—lest it be a snare—but ye shall destroy their altars—lest thou make a covenant with them—and they go a whoring after their gods, and thou take of their daughters unto thy sons"—Here again all sacred transactions are discharged, upon a moral and perpetually binding ground, and all toleration is prohibited, and conjugal affinity. Such compliance brought on the first desolating judgment, the flood on the old world (Gen. vi. 1, 2, 3.) when the godly conformed and incorporated themselves, and joined in affinity with that ungodly crew, from whom they should have separated themselves. Likewise Deut. vii. 2, 3, 4, 5.—"Thou shalt make no covenant with them, nor shew mercy unto them, neither shalt thou make marriages with them—for they will turn away thy son from following me—so shall the anger of the Lord be kindled against you—but thus shall ye deal with them, ye shall destroy their altars." Where all transactions with a people devoted to destruction are discharged, even that of toleration of malignant enemies, according to which precept, "David resolved to destroy early all the wicked of the land, and cut off all wicked doers, from the city

of the Lord," Psal. ci. 8. Mark this, all, of what degree or quality soever, without respect of persons. And lest it should be thought this is meant only of these seven nations there enumerate, the law is interpreted by the spirit of God or many other nations; where Solomon is condemned for joining in affinity with other wicked people, besides these, 1 Kings, xi. 1, 2. So that it is to be understood generally, against confederacies with all, to whom the moral ground is applicable, and the danger of insnaring the people of God. It is clear likewise, we must have nothing to do with the wicked, but to treat them and with them as enemies, Psal. cxxxix. 21, 22. with whom, as such, there can be no confederation; for that supposes always the enmity is laid aside, but that can never be between the professors of religion and the professed enemies thereof: but that must always be the language of their practice, "Depart from me ye workers of iniquity, for the Lord hath heard me," Psal. vi. 8. The command is peremptory and perpetual, "Forsake the foolish," Prov ix. 6. "Make no friendship with them," Prov. xxii. 24. "Say not a confederacy to them." Isa. viii. 12. where it is clear from the opposition in that text, betwixt confederating with the wicked and the fear of God, that the one is not consistent with the other. There is an express discharge to yoke or have any fellowship with them, 2 Cor. vi. 14. to the end—"for what fellowship hath righteousness with unrighteousness?—what concord hath Christ with Belial?—wherefore come out from among them, and be separate."—2. Many sad and sharp reproofs for such transactions and confederations do conclude the same thing, Judg. ii. 1, 2, 3—"I said,—ye shall make no league with the inhabitants of this land, you shall throw down their altars: but you have not obeyed my voice, Why have you done this? Wherefore—I will not drive them out from before you—" It cannot be expected, the Lord will drive out these enemies, if we swear subjection and allegiance, and come under confederations with them; for thereby we contribute actively to their settlement and establishment, and bring ourselves not only under the misery, but the guilt of strengthening the hands

of evil doers. So Jer. ii. the people of God are reprov'd, for making themselves home-born slaves. How? by outlandish confederacies, verse 18. "Now what hast thou to do in the way of Assyria?—The Chaldee paraphrase hath it, What have you to do to associate with Pharaoh king of Egypt? and what have you to do to make a covenant with the Assyrian?" So may we say, what have we to do to take their oaths and bonds, that are as great enemies as they were? Ephraim is reprov'd for mixing himself among the people, Hos. vii. 8. by making confederacies with them. What follows? He is a cake not turned, hot in the nether side, zealous for earthly things, but cold and raw in the upper side, remiss in the things of Christ. And this we have seen in our experience to be the fruit of such bargains, or bonds, or oaths, that they that were engaged in them, have always in some measure fallen from their former fervour for Christ. Nay we shall find, that such transactions are seldom or never recorded in the book of God without a reproof, or some greater marks of God's displeasure put upon them? which doubtless is set purposely as beacons, that we may beware of them. And therefore, 3. We may take notice of many disallowed and condemned examples, on which the Lord set marks of wrath, as Ahab's covenant with Benhadad, 1 Kings xx. 32. to the end. Asa's covenant with Benhadad, which the prophet calls a foolish deed, 2 Chron. xvi. from beginning to verse 10. proceeding from an evil heart of unbelief, as all such transactions are overawed compliances. Jehoshaphat's with Ahab hath the same censure, though he kept himself free of Ahab's idolatry, and Ahab seemed to have been penitent before he joined with him, and his relation to him was very near, the enemy of both was an infidel, the cause was good, to recover a city of refuge, the manner of his proceeding was pious, consulting the prophets, and his end good; yet all this did not justify that wickedness, related 2 Chron. xviii. and reprov'd 2 Chron. xix. 2. Jehu the prophet is sent to him, "Shouldst thou love them that hate the Lord? therefore is wrath upon thee from before the Lord." After this, when he joined himself with Ahaziah,

who did very wickedly, the Lord brake his works, 2 Chron. xx. 35. to the end: which made him afterwards mend his fault, for he would not again join with him, when he sought the like association, 1 Kings xxii. 49. So Amaziah's bargain with the Israelites, when the Lord was not with them, is condemned by the prophet, admonishing him to disjoin himself from them, 2 Chron. xxv. 7,—20. and Ahaz's bargain with Tilgath Pilneser the Assyrian, 2 Chron. xviii. 16 &c. is plainly disallowed. 4. The complaints, confessions, and lamentations of the Lord's people, mourning over this sin, demonstrate the evil of it, Ezra ix. 14. "Should we again break thy commandments, and join in affinity with the people of these abominations? Wouldst not thou be angry with us, till thou hadst consumed us, so that there shouldst be no remnant nor escaping?" Psal. cvi. 35. "They were mingled among the heathen, and learned their works."

All these commands, reproofs, examples and complaints, are written for our learning; and being seriously laid to heart, will sufficiently sear all the fearers of God to join, but stand aloof from all compliances, conjurations, or confederacies with the enemies of God, directly or indirectly, formally or interpretatively, for fear of partaking of their sins, and receiving of their plagues. I insist the more largely on this argument, both because it will conclude that for which those proofs are adduced, to condemn all bonding or bargaining with malignant enemies; and because it will vindicate the aversion of this poor persecuted remnant, from associating in expeditions of war, with promiscuous subverters and perverters of the cause, on which it were not proper to my purpose to dilate any discourse in a distinct head, while I must confine myself only to the heads of sufferings; only because it may be objected, and it will be profitable to consider it, that these scriptures disprove only voluntary and elective confederations with the wicked, but cannot condemn necessitated subscriptions of lawful obligations, when the matter is not sinful; nor come they home to the case of prisoners, who are constrained to transact and treat, and have do with the men in power,

otherwise, if all bonds were unlawful, then prisoners might not procure liberty for longer or shorter time, upon bond and bail, to answer again when called; which yet is generally approven, and practised without scruple, and see us not want a precedent in scripture, in that Jason gave such security, Acts xvii. 9. I shall therefore subjoin here some considerations, by way of answer to this. 1. These scriptures disprove all covenants, Exod. xxiii. 32. All confederacies, Isa. viii. 12. All concord or agreement with the men of Belial, 1 Cor. vi. 15. and, without distinction of voluntary or overawed transactions, all unitive agreements of whatsoever sort are discharged, and can no more be restricted to the particulars there specified, as if any other covenant, confederacy, or concord might be lawful, that there was not a joining in marriage, an associating in war, or communion in communion in worship with them, than the moral grounds of these prohibitions can be so restricted: for the hazard of sins and snares, the hurt of faithless fears from whence they flow, and the hatefulness of such unequal conjunctions, which are the grounds and reasons of these laws, as may be seen in these forecited places, cannot be restricted to the particulars specified. But now all the tendered oaths and bonds of our adversaries, when subscribed as they require; yea, even those transactions of prisoners for procuring their liberty, on terms of engaging to re-enter themselves according to agreement with their persecutors, are unitive covenants, or conditional agreements, giving solemn securities for their respective obligations, upon terms wherein both parties accord; for these bonds are given to them, and not only before them, as was said. They are confederacies of the subjected, seeking the peace and favours of their superiors, which when overawed are sinful to be made with wicked enemies of religion, as well as when unconstrained, for Ahaz's transaction with the Assyrian, was forced out of fear, and yet it is called a sinful confederacy, not to be homologated by any of the fearers of the Lord, Isa. viii. 12. They are concords and agreements with the unrighteous sons of Belial, and not about common matters, but matters wherein religion and

righteousness are nearly concerned: can any think that these commands are given with exception of prisoners? and that if any Israelite was prisoner to these nations, he might make a covenant with them for his liberty, upon an engagement to render himself prisoner to them again? Then he might give bond to God's devoted enemies, to bind up his hands from prosecuting the war with them, which all Israel was obliged to do: for if they might covenant subjection to them, then it would have been their sin to rebel, as it was Zedekiah's sin to rebel against Nebuchadnezzar, because it was breach of covenant: and so there might be a case, wherein the Israelites, notwithstanding of all these prohibitions, would be obliged not to destroy, nor break down their altars, to wit, if they made such a bargain with them for their liberty, to surrender themselves as their subjects. Now we read, many times they were brought under subjection, and that as a punishment of their leaguings with them: and yet they broke the yoke, when they cried unto the Lord, and never submitted any longer than they were able to deliver themselves. Whence it is plain, that they never bound themselves to such subjection by oath, bond, or promise, for that would have been no mercy which was purchased by treachery. 2. It is a voluntary compact with the men in power to procure liberty upon bond to answer again, and cannot be called necessitated; or if it be, it is but a necessitated sin. It must be voluntary, because it is an act of the will, and the will cannot be forced; it is the consent of the will, and the consent cannot but be voluntary, in so far as it is a consent; and by this, whereas, before they so procured liberty, they were prisoners by constraint, now when they must return to prison, they are prisoners by consent: It is the prisoner's choice, whether he will come out upon these terms, or not; and every choice, in so far as it is a choice, is elective and voluntary: it is put to the man's choice, whether he will continue under the cross, and continue his testimony for the cause, or surcease from it for a time, the latter in the case is chosen. It is the prisoner's desire and petition, to transact with them in these terms for

liberty, without which no benefit of any such bond can be procured, and every desire is voluntary. Yea, it is a formal compact and capitulation with them, binding and obliging these bonders by their own word and writ, at least to be at their call and command, not by compulsion and force now, but by the moral obligation of their own compact: now, every such compact is voluntary. And therefore, if all voluntary covenants, confederacies, and agreements, be discharged in scripture, then this bond of compearance also must be discharged. The judgment of the famous Mr. Rutherford, or a draught of a petition to have been presented to the committee of estates, by those ministers who were prisoners in the castle of Edinburgh, will confirm what is said: we find it in the third part of his letters, Numb. 93. where are these words, 'I am straitned as another suffering man, but dare not petition this committee, 1. Because it draws us to capitulate with such as have the advantage of the mount, the Lord so disposing for the present, and to bring the matters of Christ to yea and no (you being prisoners, and they the powers) is a hazard.' 3. This agreement with the enemies for liberty upon these terms, is sinful. For it is not only an acknowledgement of a wicked power, in owning and transacting with them as judges, who can free them and bind them as prisoners by law, which is disproved above; but it is a binding themselves over to a packed, perverse, and law-perverting judicatory, not as prisoners by forcible constraint, but a willing consent, acknowledging the legality of their imprisonment, and obliging themselves to observe it when demanded: yea, it is a covenanted and bonded obedience to a wicked law; for it is a wicked law, to exact from a sufferer for truth his re-entry to prison, for no crime but his duty. As also it is a justifying of a wicked sentence; for it is a wicked sentence, that an innocent man shall return to prison when they please; which is justified when they bind themselves to obey it. This is no ways like a man's going to the gibbet on his own feet; for the man does not bind himself to do that, neither is it exacted of him as an obedience to a law, nor is it given forth as a part of his

sentence, only he chooseth it for his own ease: but if all these did concur, it were unlawful for a martyr for righteousness to obey such a law, or voluntarily to submit to such a wicked sentence. Neither is it of any pertinency to urge, that it is lawful for a man to submit so far to a robber, as to bind himself to return to him against such a day with another purse to him: for this is a necessitated bargain, to give what a man hath, and promise more to save his life, and is like a man's casting his goods out at sea to save the ship; the other is not so, but elective: this is only a choice of the least of two evils of suffering, but the other is a choice of one of two evils, which is sin, which cannot come under a Christian's election at all; this is a compact with the robber, which is still discrete, and no ways unitive of the robber and him, in any bargain of concord, or confederacy, or acknowledged subjection, only a passive surrender to his greater force as an enemy; but the other is unitive, as between rulers and ruled: this is not any obedience to a law, nor is the man's purse required to be given, or promised under that notion, as the other is. I shall here also subjoin some more of that foresaid letter of Mr. Rutherford's, in the second place, says he, 'A speaking to them in writ, and passing in silence the sworn covenant, and the cause of God, which is the very present controversy, is contrary to the practice of Christ and the apostles, who being accused, or not accused, avouched Christ to be the Son of God, and the Messias, and that the dead must rise again, even when the adversary initiated the question.' Now plain it is, that neither in the bonds nor petitions, is there any word of the cause or testimony suffered for.

4. As it is sinful, so it is very scandalous in several respects; in that at least it hath the appearance of evil, which Christians should abstain from, 1 Thes. v. 22. and seems to be a voluntary subjecting themselves to their impositions (at least of that to return to prison again) a willing acknowledgment of their unjust usurpations; a spontaneous consenting to their mischiefs framed into a law, and exacted under the notion of a law; a gratifying of the enemies of religion, and pleasing them more than any thing

a prisoner can do, except he should wholly deny the cause: and therefore chiefly always this overture is most acceptable from those that durst give any testimony, because they look upon it as some indication of their fainting or falling from it, or of their wearying of the cross of Christ, of which they are very glad; and an offending and making sad the hearts, and condemning the practice, of some truly tender and zealous confessors of Christ, who have had strong tentations to make such transactions, and durst not yield so far for a world; yea it is certainly an argument of faithless fear, and impatient wearying of the cross, because of the fury of the oppressor, which the Lord taxeth, when the captive hastneth that he may be loosed, and that he should not die in the pit, nor that his bread should fail; which is a dishonour to him who hath promised to bear their charges, and hath given them many encouragements to trust, that he will open a door in his own time and way. See Isa. li. 13, 14. Of this Rutherford addeth in that forecited letter: 'Silence of the cause of God which adversaries persecute, seems a tacit deserting of the cause, when the state of the question is known to beholders, and I know the brethren intend not to leave the cause. And a little after, says he, the draught of that petition which you sent me, speaks not one word of the covenant of God, for the adhering to which you now suffer, and which is the object of men's hatred, and the destruction whereof is the great work of the times; and your silence, in this nick of time, appears to be a not confessing of Christ before men, and you want nothing to beget an uncleanly deliverance, but the profession of silence:' which is professed by all that petition for such a bond, when their address and transaction speaks no more in favours of the cause, than if they denied it. It is plainly a coming out of prison without a testimony, which cannot consist with faithful and zealous suffering for Christ, and is far from the choice of Christ's witnesses, who overcame by the blood of the Lamb, and the word of their testimony, recorded, Heb. xi. 35.—Who were tortured, not accepting deliverance, that they might obtain a better resurrection. 5. As it is a scandalous, so it is

very inconvenient and unsuitable for the confessors of Christ. In that not only they may be ignorant, and much troubled to know what underhand dealings their friends may use sometimes to procure that liberty, without acquainting them, and how odiously their act of deliverance may be worded and registred to the prejudice of the cause, which they dare not testify against afterwards when they do know it, for fear of many inconveniences. But also it cannot be vindicated from being a dishonourable shifting, and putting off, or casting off the call of a testimony; and confessing either an inconstancy, or impatience, or unreadiness, or want of resolution, to confess or profess the testimony for Christ, without some respite to gather new defences for it: whereas Christ's witnesses should be ready always to give an answer to every man that asketh them a reason of the hope that is in them, 1 Pet. iii. 15. And besides, they involve themselves into the incumbrances of a doubtful suspence about the event, whereas if they keep their first resolution and condition with cheerfulness, aloof from such bargains, they know the utmost they have to fear or hope from men. But now, as it is hard for them to come off without some sinful engagement, and to continue any measure of faithfulness when they are out, for fear of being soon called again; so they bring themselves into many sad difficulties how to behave, and cast themselves into many tentations unavoidably. However, except of late, a precedent of this practice can hardly be instanced among the sufferers of Christ in former times, but, on the contrary, many have refused such offers. I shall only name one; in the persecution of queen Mary of England, Dr. Sands, prisoner at London, had the offer of liberty, upon the term of such a bond, finding bail to appear when he should be called, but refused it absolutely; and when a gentleman, without his knowledge, having procured it by giving 1000 l. bond for him, brought him forth and required his consent and observance of the obligation, he would not consent to give any security, and denied his resolution to observe it in the least; whereupon the gentleman very courteously told him, he would stand to his hazard. This

was far more like the innocency of the dove, but this new prudence resembles more wisdom of the serpent. Finally, as for Jason's business, which is so much harped upon by these bonders. (1.) These were rulers that he had to deal withal, and not raging tyrants. (2.) They were indifferent arbiters between Jason and the lewd fellows that troubled him, and not both judge and party; he gave no security to his persecutors, as these bonders do, but to the true judges of the cause, who impartially took cognizance of it, from whom Jason might and did expect right. (3.) This was before he was prisoner, being as free as his accusers, and having the law as free for him as it was for them; whereby he could vindicate himself and abide the law, and be absolved by it: which does not answer the case of prisoners actually engaged in and called to a testimony for Christ, when there is no law but what is established in opposition to Christ. (4.) In the original it is, when they got satisfaction from him; that is, when he so cleared himself, that they could not fasten any transgression upon him, then they absolved him.

2. All these oaths and solemn securities that have been imposed in these times, are dreadful and heinous breaches of the third command, by taking his name in vain in the worst sort, whereby the takers cannot be holden guiltless. For it is impossible such oaths and bonds, however they be constructed, can ever be taken with these requisite qualifications necessary to be observed in all oaths (and consequently in all solemn promises or bonds) that are mentioned once for all, Jer. iv. 2. where one that sweareth, must do it in truth, in judgment, and in righteousness. 1. They cannot be taken in truth, which is a necessary qualification in all oaths, according to the definition of a true oath, which is a solemn invocation of God, for confirmation of some true, lawful, grave, and weighty, useful and worthy business, wherein he is attested and appealed unto, that he, as the only searcher of hearts, may give his testimony to the truth of the thing, and punish the swearers, if he swear not in truth. And this swearing in truth does import and require both sincerity of the heart, filled with reverence and the

awful apprehension of a present God; and simplicity of the mind, well informed of the genuine meaning of the oath, that we have clear uptaking of it, and take it not implicitly, but with our own understanding; and also singleness and honesty of the intention, that it be not to deceive, by putting any other sense than the imposer hath, or will allow when he understands it: so the meaning must be clear, and such as may be obviously gathered from the words, and according as they are supposed to be understood by others, especially them that exact the oath; for if they mean one thing and we another, God's name is profaned, and the end of the oath frustrated, and so all equivocations and mental reservations are condemned; as all divines treating on oaths teach, and worthy Mr. Durham particularly on the third command, who asserts, 'that though we could devise some other meaning, that might seem to make for us; yet if that was not meant at first tendering, but otherwise understood by him that did take it, it will not absolve from the guilt of perjury; for an oath of strict law, and will not admit, on any respect or account, of interpretations prejudicial to the native truth of it, lest it should be found to be' (according to Psal. xxiv. 4.) 'a swearing deceitfully.' And he afterwards says, 'much less will it exempt a man from guilt, that in swearing he had a meaning of the words, contrary to what in common sense they bear, and in the construction of all indifferent persons, without oath, or beyond it; but it should be plain, single, and clear.' And Paraeus saith, in Catech. Urs. part 2. quest. 102. An oath hath the divine sanction, that it might be a bond of verity among men, and a testimony that God is the author and defender of truth. Now, none of these oaths and bonds can be taken in truth; for if they may be safely taken in any sense, it must be such as the oath in the design of the imposers cannot bear, and which the imposers never intended, nor would they ever have allowed, if they had understood it; which industriously the takers have a care they should not understand, and so they must take it in that sense with a mind to deceive, which cannot be in truth, but most derogatory both to the truth and

simplicity of the gospel. And they are all unclear and ambiguous which cannot be taken in truth, because they have no truth in them, as Dr. Sanderson saith, *de jure. promiss. oblig. prael.* 6. Sect. 10. 'A proposition of an ambiguous and indefinite sense, before the matter be distinguished, is not a true proposition; yea, nor a proposition at all: for a proposition, as its definition cleareth, should signify either a truth or a falsehood, without any ambiguity; and therefore, says he; such oaths should be suspected that there is some deceit lurking, and every pious and prudent man should refuse them offered under such terms,' cited by *apol. relat.* sect. 10. pag. 118. and sect. 15. pag. 267. In fine, none of them can be taken in truth, since they are all denying the truth, as will be evident by the induction of all of them: which, how it can consist with the fear of God, or sincerity of the heart, cannot be imagined; and if conscience be called into judgment, it will condemn the taking them. 2. They cannot be taken in judgment, is that, with knowledge and deliberation, minding and understanding what it is we swear or subscribe, as Mr. Durham explains it in the place above cited. For, first, they cannot be taken in judgment, because they are all ambiguous, the terms of them being capable of divers senses, not explained by the imposers. And if they were explained in their sense, then they could not be taken in righteousness; and so at best they are uncertain: and that is dreadful to invoke the majesty of God to be a witness to uncertainties; for that is to swear with an evil conscience and contempt of God to dare to call him in as a witness of that which is in suspense, whether it be truth or a lie; and such a swearer must make it a matter indifferent, whether he make God a witness of a truth or of a lie in the case. Vide *Paraeum. loc. sup. cit.* pag. 754. sect. 4. Dr. Sanderson as before, gives these reasons further against all ambiguous oaths. 'Because of him who tendereth the oath. For the proper end of an oath is, that he in whose favours it is taken should have some certainty of that whereof he doubted before; but there can be no certainty out of the words which have no certain sense. Next, because of him who

swaereth, who, if he take such an oath in these terms, either stumbleth his neighbour, or spreadeth a net for his own feet; for to what else should such collusion tend, but either that by our example others may be induced to take it, whereby they are stumbled; or, that afterwards, by virtue of that oath, something may be required of us, which is either unlawful or hurtful, and this is to lay a snare for ourselves! Therefore let every prudent man beware of suffering himself to be deceived by these wiles, and of thinking so much either of the favour of the ill will of any other, as to swallow the bait under which he is sure there is a hook: it is expedient, that, in the matter of oaths, all things be done aright, and that the sense be clear to all, and that is, to swear with a clear conscience,' apol. relat. pag. 267. But next, they cannot be taken in judgment; because they are all imposed and extorted under a severe penalty, and some of them of death, and so must be taken out of fear. Such oaths are by many famous divines judged unlawful, especially public oaths imposed by authority, and under colour of law; these are worse than a man's private oath given to a robber, for fear of death, if the matter be unlawful: for, without the matter be lawful or unlawful, such oaths coacted, exacted, and imposed by law, cannot be taken in judgment; for if they be taken out of respect to the law; then it is the person's suffrage to the equity of that law, and an approbation of the imposition; which, in the present case, cannot be done, by any man of conscience; for, whether the oaths be lawful or not, the authority imposing them is nought, and the law wicked, and can never be approven; and if they be extorted out of fear, then they cannot be taken with deliberation, or voluntary and unviolented choice, unconstrained light or liberty, which are all the ingredients of judgment. 3. They cannot be taken in righteousness, that is, according to the law of equity as well as piety, neither wronging God nor others by our oaths. Lawful oaths should be in themselves ties of equity, as well as truth. And Paraeus faith, in the place before cited, lawful oaths are only these which are engaged into about things true, certainly known, lawful, possible,

weighty, necessary, useful and worthy. And if that be true, then are all the oaths and bonds taken these many years but fetherings into bonds of iniquity; which, when the consciences of the takers will reflect on them, will become galls of bitterness, and found to have none of these qualifications; but on the contrary, to be about matters false, uncertain, unlawful, impossible, frivolous, fruitless, useless, and unworthy, to the worst degree of baseness; and, which is worst of all, dreadfully sinful, and horrid to be thought on to interpose the name of God upon, making him the approver of what his soul hates, and a witness of that which he will be an avenger of, as will appear by the particular consideration of all of them.

2. Let it be considered, that though (as the pleaders for these transactions do impertinently) alledge the same words in other cases might be subscribed in a more abstract sense, as being capable of a good construction; yet complexly considered in the form and frame of all the oaths and bonds we have been troubled with, they cannot be subscribed in any sense; and if in any, that must be the imposer's sense, which in them all is always pernicious. 1. They cannot be taken in any sense though never so good, if we consider the absolute illegality of their arbitrary imposition. It will be confessed that oaths should be very tenderly imposed upon consciences, not only lest the name of God be prostitute to profanation, in matters light and trivial, or dubious and uncertain; but lest a tyrannical jurisdiction be exercised over the souls of men, which are not subject to any power that mortals can claim: so it cannot be denied, but that the constitution of our government requires, and reason as well as religion says it is necessary, that no ruler hath right to enjoin an oath which is not first enacted into a law; and it was always accounted a good plea for refusing oaths, when there was no law for them; and some have been charged with treason, for exacting oaths without a statute ordaining them: which might be brought in as a charge against all the imposers of our oaths, the most part of which have been enacted and extorted without any colour of law; some of

them being never ordained by any act of parliament, and others of them before they could obtain such a mischief framed into an act for them, and all of them neither ever legally administred nor righteously enacted, by such who had power to make acts; for as for the packed parliaments that made them, no conscientious man could ever own such a company of perjured traitors, to be their parliamentary representatives. Yet abstracting from that, I say, the oaths that have been imposed without and against law could never be taken in any sense, without consenting to their treasonable breach of law, for which they have forfeited their lives to justice, whenever there shall be a judicatory to revise their administrations: and these that have been imposed by a pretended law, could never be taken without justifying of that law that ordained them, which hath been nothing but a mischief framed into a law by a throne of iniquity. 2. They cannot be taken in a good sense, with a safe conscience, considering either what is plain in them, or what is more ambiguous. What is plain and capable but of one sense, that is always either restraining to a clear sin, to renounce some part of the covenanted reformation, in profession or practice; or constraining from a clear duty, that we should not do that which we may or ought to do. There is nothing in all of them plain but what obliges to one of these two. Again, what is ambiguous in them, as it ought to be refused for its ambiguity; so, when it is explained according to the imposer's mind and meaning, the sense will be found always pernicious, though the words may be plausible. As when they require an obligation to allegiance, or loyalty, or peaceableness, or orderliness, and other smooth words, signifying excellent things in an abstract notion, these will be found to carry quite another sense, if we enquire into the imposer's meaning, in which only oaths and bonds must be taken. The only way to find out their meaning, is to consider either their acts or actings, or their designs and intentions, as they are discoverable by any man of prudence or consideration. If we consult their acts or actings practically, and not only legally explaining them for a commentary, then by

allegiance, we can understand nothing else but an owning of their absolute tyranny: by loyalty, nothing but an absolute and implicit obedience of their absolute commands, without reserve (as the late proclamation for the toleration expounds it) by peaceableness, nothing but a stupid subjection to them, letting them do what they please without resistance or controul; and by orderliness nothing but a disorderly compliance and conformity with them, in going along with the corruptions and defections of the time; for their acts and actings expound them so. If we consider their designs and intentions, according to which they are all uniformly calculate and equally levelled; he is blind who hath not seen they have been driving all this time at these designs (to which all these oaths and bonds have been adapted and successfully subservient, and by which they have been promoted to the present pass) to overturn gradually all the degrees of our covenanted reformation, to establish tyranny, and advance it unto greater degrees of absoluteness, and to introduce popery and slavery: so that by allegiance and loyalty can be meant nothing else but an obligation to own and obey, and never to oppose the design of advancing tyranny; and by peaceableness and orderliness, nothing else can be intended, than an obligation never to oppose either the present settlement, or future establishment of popery and arbitrary power, upon the ruins of the reformation, and our civil and religious rights and liberties. Whence, they that can take these oaths and bonds in any other sense, and plead for the inoffensiveness of the terms, in a more abstract notion, and sense alledged more legal, without regard to that of the imposers, practically explained by their administrations, and so looking more to the briberies of their blinded reason and worldly interest, than to the dictates of conscience, please themselves with such notions and quibbling evasions, do but mock God, deceive the world, elude the enemies, and delude themselves. And all these debatings for accommodations and expositions in another sense, are but foul fairdings of conscience-beguiling

compoundings in, and pitiful priggings for, a base compliance. But it is usual for a guilty son of Adam to sew fig-leaves.

4. Let it be considered, that all these oaths and bonds that the land hath been debauched with these 27 years, are all condemned by, and contradictory to anterior binding orders, the acts of the general assemblies requiring no oaths in the common cause to be taken, without the church's consent, as was cleared in the historical part, upon the fifth period, page 97. And that especially they are condemned as being contradictory to, and violatory of prior oaths, of continuing indispensable obligation; being designed, pressed, and imposed, on purpose to delete the same out of the minds and memories of the present generation; I mean the national and solemn league and covenants, and other former nationally binding public engagements. Which, because they are not only broken and burnt, but declared criminal to be owned, and because the owning of their obligation is ordinarily inserted in the indictments of our martyrs, I must touch upon them more particularly. It was cleared above, Head I. arg. 11. from the form, the object, and from the ends of the covenant, which are all moral, and of indispensable obligation, that it is of perpetual and unalterably binding force, obliging the present and all future generations, as well as that which did first come under the bond of it. And to confirm this, I shall add more particularly these many considerations. 1. The national engagements are national promises, plighting and pledging the nation's public faith, for the preservation and propagation of religion and liberty, to succeeding posterity; which if succeeding generations may reverse, then the faith of men, and the faith of nations, can be of no force above a century of years; nay nor after the decease of them that personally made the promise: and so every new ruler, every new parliament, yea every person coming up to succeed the father in any capacity, might be free not to stand to it, which were very absurd. Certainly that promise of the jewish nobles and rulers, not to exact usury of their brethren, but to restore, and not require it of

them, did not only oblige themselves but would bring their posterity under the curse, if they should exact the same debt there remitted, Neh. v. 12, 13. And does not a national promise of preserving the reformation, bind as much to the curse of the breach of it? 2. They are national vows, avowing and avouching, and devoting themselves and their posterity to be the Lord's people, and to keep his statutes, and promote his interests, which do bind the posterity. Jacob's vow at Bethel, that the Lord should be his God, Gen. xxviii. 21. did oblige all that his posterity, virtually comprehended in him; he found him in Bethel, and there he spake with us, saith the prophet many hundred years after, Hos. xii. 4. The Israelites vow to destroy the Canaanites, did oblige all their posterity, Numb. xxi. 2. Not only by virtue of the Lord's command, but by virtue of their vow; as we are obliged to preserve the reformation, not only by virtue of the Lord's command, but by virtue of our covenants. Vows are bonds to the soul, which must stand, Numb. xx. 2, 4. And whereas it is said, that as a woman's father or husband might disannul her vow, and so the magistrate might abrogate the covenant: besides the impertinency of this comparison, as might be easy to demonstrate, it may be, by giving and not granting that he might do so; yet if the father and husband shall hold their peace, then all her vows shall stand, and her bonds wherewith she bound her soul shall stand, ver. iv. 7. but so it was, that the supreme magistrate did give his consent to the national covenant, and the successor did swear the solemn league and covenant, and received the crown on the terms thereof, to preserve and promote religion and liberty; and therefore his vows must stand, they cannot be made void afterwards; for, it is a snare to devour that which is holy, and after vows to make enquiry, Prov. xx. 25. So we find the Rechabites were obliged to observe the vow of their forefathers Jonadab, Jer. xxxv. 6. 14. And if the father's vow obliges the children, shall not the nation's vow oblige the posterity? 3. They are national oaths which do oblige posterity: Esau's oath to Jacob, resigning his birth-right, did oblige

his posterity never to recover it, Gen. xxv. 33. Joseph took an oath of the children of Israel to carry up his bones into Canaan, Gen. 1. xxv. which the posterity, going forth of Egypt in after ages, found themselves straitly sworn to observe, Exod. xii. 19. and accordingly buried them in Shechem, Josh. xxiv. 32. The spies swore to preserve Rahab alive and her house, Josh. ii. 12, &c. which was without the consent of the magistrate, and yet Joshua found himself obliged to observe it, Josh. vi. 22. Moses swore unto Caleb to ensure him an inheritance, Josh. xiv. 9. and upon this ground he demands it as his right, ver. 12. which he could not do, if successors might reverse their predecessors lawful oaths.

The Lord will in a special manner, resent and revenge the posterities breach of the oath of their father's covenant, Ezek. xvi. 59. "Thus saith the Lord God, I will even deal with thee, as thou hast done, which hast despised the oath, in breaking the covenant," which was the covenant of their fathers.

4. They are national covenants, wherein king, parliament, and people do covenant with each other, for the performance of the respective duties of their several stations, either as to the work of reformation, or as to the preservation of each others mutual rights and privileges: so that they are national covenants made by men with men; and these we find do oblige the posterity. Israel's covenant with the Gibeonites did oblige the posterity, Josh. ix. 15, 19. and for the breach of it many ages after, the posterity was plagued, 2 Sam. xxi. 1. Zedekiah was bound by his predecessor's covenant, though it was such as made the kingdom base, yet in keeping it, it was only to stand. "Shall he break the covenant, and be delivered? Thus saith the Lord, as I live, surely mine oath that he hath despised and my covenant that he hath broken, even it will I recompense upon his own head," Ezek. xvii. 12, 14, 15, 19. The apostle says even of human covenants, "Though it be but a man's covenant, yet if it be confirmed, no man disannulleth or addeth thereunto," Gal. iii. 15. that is, cannot do so lawfully much less can one man disannul a nation's covenant.

5. They are national attestations of God

as a witness, for the perpetuity, as well as fidelity of these sacred engagements. All such covenants, wherein the holy name of God is invoked as witness, are owned of God as his (hence the covenant betwixt David and Jonathan, is called the covenant of the Lord, 1 Sam. xx. 8.) and Zedekiah's fault was the breach of the Lord's covenant, Ezek. xvii. forecited. So likewise that covenant mentioned Jer. xxxiv. 8, 9, 10. wherein the princes and people did swear to let their Hebrew servants go free, is called God's covenant, verse 18. and upon this account sorer judgments are threatened, verse 19, 20. "And I will give the men that have transgressed my covenant, which have not performed the words of the covenant which they had made before me——into the hands of their enemies." Certainly this did oblige the posterity, at least not to recal these servants, and, it was always morally obliging. So our national covenant, sworn with hands lifted up to the most high God, being materially also binding, cannot be abrogated by the posterity except the Lord renounce his interest in them; as long as the witness liveth then, who claims them as his, they cannot be made void; especially considering. 6. They are national covenants made with God, as the other party contracting, in the matters of God, which none can dispense with, or grant remissions in; and therefore they must perpetually bind, until he loose them. And if even the posterity break them, the Lord will make them that hate them to reign over them, and he will bring a sword upon them to avenge the quarrel of his covenant, Levit. xxvi. 15, 17, 25. Such were all the national covenants of the Lord's people, renewed by Joshua, Asa, Jehoshaphat, Hezekiah, Josiah, Ezra, Nehemiah, for the breaches of which the Lord plagued the posterity. It was for breach of their fathers covenant with God, that the ten tribes were carried away captive, 2 Kings xvii. 15, &c. We have already experienced the threatned judgments for covenant breaking, and may look for more. 7. They are for their matter national covenants, about things moral objectively, obliging to join ourselves to the Lord in a perpetual covenant that shall not be forgotten, Jer.

l. 5. I might easily demonstrate all the articles of the covenant to be morally binding, but they are demonstrated sufficiently above, Head 1. Arg. 11. therefore they are perpetually binding. 8. They are for their ends national covenants, inviolably obliging. Which cannot be made void, though they should be broken, because the ends of them are always to be pursued, as is proved above, Head 1. therefore they are perpetual. 9. They are for their formality national covenants, most solemnly sworn, and subscribed by all ranks, with uplifted hands, with bended knees, with solemn invoking the name of God, with solemn preaching, prayer and praise, rendering themselves and the posterity obnoxious to the curse, if they should break it. Now the solemnities of the oath do aggravate the heinousness of the breach of it, as is clear from Jer. xxxiv. 19. Ezek. xvii. 18. quoted above: the reason is, because of their greater deliberation in the action, and because of the greater scandal accompanying the violation thereof. Hence as they are national oaths and covenants so solemnized, they are national adjurations, under the pain of a national curse, not to break them nationally, which do make the posterity obnoxious to it; as Joshua adjured Israel, saying, "Cursed be the man that raiseth up, and buildeth this city Jericho," Josh. vi. 26. which was fulfilled many generations after, in the days of Ahab, upon Hiel the Bethelite, 1 Kings xvi. last verse. So the curse of introducing abjured prelacy and popery, if it be let in, will be impendent on the nation. All national covenants have a curse annexed, in case of a breach, whenever it shall be: so in Nehemiah's covenant, 'They clave to their brethren, and entered into a curse, and into an oath, to walk in God's law, which was given by Moses the servant of God, and to observe and to do all the commandments of the Lord our Lord, and his judgments and statutes;' particularly not to enter into affinity with their malignant enemies, Neh. x. 29, 30. which certainly did oblige the posterity, because the thing was moral; so in our covenants we are bound to the same things, and nothing but these: and therefore the posterity is liable to the curse of perjury, for the

breach thereof. 10. They are for their legality national laws, being solemnly ratified by the parliament and by the king, and made the foundation of their compact with him at his inauguration, whereby they became the fundamental laws of the government, and among the very laws and rules of governing, which, though they be rescinded by a wicked law, yet make the rescinders chargeable not only of perjury, in breaking a covenant, but of treason and tyranny, in breaking and altering the constitution of the government, and render them liable to the curse thereof: for they cannot rescind that, nor escape its vengeance: whereof we have a speaking pledge already, in that the rescinder of these covenants was so terribly rescinded, and cut off by the hands of unnatural violence; God thereby fulfilling that threatned judgment of covenant breakers, that he hath broken his covenant shall be brought to destruction, and bloody and deceitful men shall not live out half their days; Psal. lv. 20. last verse. So Charles II. got not leave to live out half the days that he projected to himself. 11. They are national engagements of an hereditary nature, like that of Israel, Deut. xxix. 14, 15. which did oblige not only the present, but the absent, 'not only them that stood there that day before the Lord their God, but them that were not there that day.' Grotius de jur. bel. lib. 2. cap. 6. gives these marks of hereditary covenants, (1.) When the subject is of a permanent nature, and as long as the same body remains: therefore as long as Scotland is Scotland, whose people in their personal capacity, whose parliaments in their parliamentary capacity, whose king in his princely capacity, did all solemnly and sacredly engage in the covenant, it must be real and perpetually obliging. (2.) When there is such a clause in the covenant, as that it should be perpetual, there are many clauses in the solemn league to this purpose. In Art. 1. are these words, 'That we, and our posterity after us, may, as brethren, live in faith and love, and the Lord may delight to dwell in the midst of us.' In the 5th Art. 'We shall each one of us, according to our place and interest, endeavour that the kingdoms may remain conjoined in a firm peace and union to all

posterity.' (3.) When it is such as is made for the good of the kingdom, the covenant expresses its end, for the perpetual good of the kingdom, 'having before our eyes the glory of God, the advancement of the kingdom of—— Christ, the honour and happiness of the king and his posterity, and the true public liberty, safety, and peace of the kingdoms; wherein every one's private condition is included.' And again it is added, 'for preservation of ourselves and our religion from utter ruin and destruction.' All this is a public national good. (4.) The matter is moral, about materially binding duties, and therefore it must be hereditary, and of perpetual obligation. 12. Lastly, They are national obligations, taking on public duties, by way of virtual representation of the posterity. And they that think it irrational, that the father should represent and involve the family, must resolve us how the religious and civil covenants of Israel and Judah, made in Moses', Joshua's, David's, Asa's, Joash's, Hezekiah's, Josiah's and Nehemiah's days, did comprehend and bind as well the absent as the present, and their posterity, yet unborn; as also, how the laws and contracts continually passed by some do take in others, not personally consenting; yea, how comes it to pass, that every succeeding generation is bound to the laws, and must be obedient to the kings, that they did not make themselves, no reason can be given, but because they are virtually represented by, and included in their fathers. Now, if these arguments prove our national covenants to be perpetually binding, and cannot be dispensed with, then must these posterior oaths that are made in a diametrical opposition to the covenants, and are condemned by the covenants, be false and unlawful oaths; but the first is proved: therefore these oaths so opposite to, and condemned by the covenants, are false and unlawful. That they are opposite to the covenant, will appear in the induction of all of them. And that, whatever they be imposed by this party, they are condemned by the covenants, wherein we are obliged to make no such transactions with them, will appear if we consider these and the like expressions, 'That we shall neither directly, nor indirectly, suffer

ourselves to be divided by whatsoever suggestion, allurements, or terror, from this blessed conjunction, nor shall cast in any let or impediment that may stop or hinder any such resolution, as shall be found to conduce for so good ends.' Which are the words of the national covenant, clearly condemning oaths and bonds given to malignants, which are divisive of them that adhere to, and unitive with them that oppose the covenant, and impeditive of resolutions to prosecute the ends thereof. So, in the solemn league and covenant, Art. 4. 'We are obliged to oppose all such as make any faction or parties amongst the people contrary to this league and covenant; but by these oaths and bonds, such factions are made,' &c. And by Art. 6. 'We are obliged to assist and defend all those that enter into this covenant (contradicted by all the latter oaths and bonds) and not to suffer ourselves directly, or indirectly, by whatsoever combination,——to be divided——from this blessed union,——whether to make defection to the contrary part, or to give ourselves to a detestable indifferency,' &c. Which we do, when we divide ourselves from these that refuse these oaths, and make defection unto the party that impose them. And in the solemn acknowledgment of sins, and engagement to duties, 'We are sworn, sect. 6. to be so far from conniving at, complying with, or countenancing of malignancy, injustice, &c. that we shall not only avoid and discountenance these things, &c. but take an effectual course to punish and suppress these evils.' All which we counteract and contradict, when we take any of these oaths or bonds.

In the second place, by a particular induction of the several kinds of these oaths and bonds, the iniquity of each of them will appear; and the complex iniquity of the smoothest of them, the oath of abjuration compared with every one of them, will be manifest. And consequently the honesty and innocence of sufferers for refusing them will be discovered.

1. The first in order, which was a copy to all the rest, was the declaration, ordained to be subscribed by all in public charge, office, or trust, within the

kingdom: 'Wherein they do affirm and declare, they judge it unlawful to subjects, upon pretence of reformation, or any other pretence whatsoever, to enter into leagues and covenants, or take up arms against the king,——and that all these gatherings,——petitions, protestations——that were used——for carrying on of the late troubles, were unlawful and seditious; and particularly that these oaths,——the national covenant,——and the solemn league and covenant, were and are in themselves unlawful oaths.' Here is a confederacy required against the Lord, at which the heavens might stand astonished; an unparalleled breach of the third command. Which could no more be taken in truth and righteousness, than an oath renouncing the bible; but it hath this advantage of the rest; that it is somewhat plain, and the iniquity legible on its front. 1. That it is a renouncing of solemn and sacred covenants, perpetually binding to moral and indispensable duties, the wickedness whereof is evident from what is said above. 2. It makes perjury of the deepest dye, the absolute necessary qualification of all in public office, who cannot be presumed capable of administrating justice, when they have avowed themselves perjured and perfidious, and not to be admitted among heathens, let be Christians, nor trusted in a matter of ten shillings money, according to the laws of Scotland. 3. It renounces the whole work of reformation, and the way of carrying it on, as a pretence and trouble unlawful and seditious, which if it be a trouble, then the peace they have taken in renouncing it, must be such a peace as is the plague of God upon the heart, filling it with senselessness and stupidity in his last judgment, because of the palpable breach of covenant; or such a peace, as is very confident with the curse and vengeance of God, pursuing the quarrel of a broken covenant. 4. It condemns the taking up arms against the king, which shall be proven to be duty. Head 5. Besides, that hereby the most innocent means of seeking the redress of grievances, that religion, risings, law, and practice of all nations allows, is condemned. Yet, in effect, for as monstrous as this oath is, the complex of its iniquity is touched in the oath

of abjuration; in which many of these methods of combinations, risings and declarations of war against the king, and protestations against his tyranny, which were used in the late troubles for carrying on the reformation, are abjured; in that a declaration is renounced, in so far as it declares war against the king, and asserts it lawful to kill them that serve him: which yet, in many cases in the covenanted reformation here renounced, were acknowledged and practised as lawful, besides that it hath many other breaches of covenant in it, as will be shewed.

II. The next net they contrived to catch consciences, was the oath of allegiance and supremacy: 'Wherein they that took it for testification of their faithful obedience to their most gracious and redoubted sovereign, Charles king of Great Britain,——do affirm, testify, and declare,——That they acknowledge their said sovereign, only supreme governor of this kingdom, over all persons and in all causes; and that no foreign prince——hath any jurisdiction, power, or superiority over the same; and therefore do utterly renounce all foreign power,——and shall, at their utmost power, defend, assist, and maintain his majesty's jurisdiction foresaid,——and never decline his power——.' The iniquity of this oath is very vast and various, 1. It is a covenant of allegiance with a king, turned tyrant and enemy to religion, subverter of the reformation, and overturner of our laws and liberties: and therefore demonstrate to be sinful both from the first general argument against oaths, and from head 2d. 2. It cannot be taken in truth, righteousness, or judgment: because the words are general and very comprehensive, and ambiguous, capable of diverse senses; when he is affirmed to be supreme over all persons, and in all causes, and to be assisted, and maintained, in that jurisdiction. Who can be sure in swearing such an oath, but that he may thereby wrong others, wrong parliaments in their privileges, wrong the church in her liberties, and which is worse, wrong the Lord Jesus Christ, who is supreme alone in some causes? Can an oath be taken in truth and righteousness, to assist him in all encroachments,

upon causes that are not subordinate to him? And in invading all those privileges of subjects, which are natural, civil, moral, and religious? For if he be supreme in all causes, then all these depend upon him, and be subordinate to him. And can it be taken in judgment, and with a clear mind, when it may be debated and doubted (as it may by some) whether the obligation of it is to be considered, as circumstantiate and specificate to the present object of it, supposing him a tyrant? Or in a more abstract notion, as it might be rendered in the sense of its first authors as it was taken in king James the VI's days, and as they plead for taking the English oath of allegiance, as it was excepted by the Puritans in queen Elizabeth's days? Whether it obliges to a king in idea, and in a more general consideration, as one who is said never to die? Or with reference to such an one as we have, a mortal man, and an immortal enemy to all those precious interests, for preservation of which he only received his kingship? Whether it must be taken in that of the imposers, practically explained by their administrations? Or in any other sense, alledged more legal? These would be clear, before it can be taken with the due qualifications of an oath. 3. As for the civil part of it, or ecclesiastical, no other examination needeth to be enquired after, than what they give forth on their acts on record: the act of supremacy (to be seen in the historical representation of the sixth and last period,) senses the ecclesiastical part of it: and the act for acknowledgment of his Majesty's prerogative does sufficiently sense, explain and expound the civil part; declaring, 'That it is inherent in the crown, and an undoubted part of his royal prerogative,——to have the sole choice and appointment of all officers of state,——the power of calling, holding, and dissolving parliaments and all conventions and meetings of estates,——the power of armies, making of peace and war, treaties and leagues with foreign princes or states, or at home by the subjects among themselves:——and that it is high treason in the subjects,——upon whatsoever ground to rise——in arms,——or make any treaties or leagues——among themselves: without

his majesty's authority first interponed thereto; that it is unlawful to the subjects, of whatsoever quality or function to convocate——themselves, for holding of councils to treat, consult, or determine in any matters civil or ecclesiastic, (except in the ordinary judgments) or make leagues or bonds upon whatsoever colour or pretence, without his majesty's special consent,——that the league and covenant, and all treaties following thereupon, and acts or deeds that do or may relate thereunto, are not obligatory,——and that none——should presume, upon any pretext of any authority whatsoever, to require the renewing or swearing of the said league and covenant,' &c. Whereby it appears, that all this screwing up the prerogative to such a pitch is by the oath of allegiance to defend all this jurisdiction justified: and so, these palpable encroachments on the privileges of the Scots parliaments, that, by the fundamental constitutions of the government always had a share in making laws, and peace and war: these robberies of our natural privileges of defending ourselves by arms, in case of the king's tyranny and oppression, and of convocating for consultations about the best means thereof; and these invasions upon our ecclesiastical privileges, in keeping general assemblies for the affairs of religion for an affair newly happening, always strenuously contended for as a part of the testimony; yea, all these rescindings, repealing, and condemnings of the way and manner, methods and measures, of promoting the covenanted reformation, are by this oath explained, and by this act acknowledged to be parts of that supremacy and jurisdiction to be defended and maintained: as likewise, by many wicked acts since promulgated, which promote the supremacy to a vast degree of absoluteness, which all do interpret what that supremacy is which is sworn to be maintained, to wit, pure tyranny established by law. See the many grievous consequences of this laid out at large, in Apol. Relat. Sect. 10. 4. Here is absolute allegiance sworn to an absolute power, paramount to all law, engaging to faithful obedience to their sovereign, as supreme over all persons, and in all causes——and to defend, assist, and

maintain his said jurisdiction, and never to decline his power: there is no restriction here on obedience, nor limitation on the power, nor definition of the causes, nor circumscription of the cases, in which that assistance, &c. is to be given, whether they be lawful or not. Now, absolute allegiance to an absolute power cannot be sworn by any man of conscience, nor owned by any man of reason, as is proven, Head 2. Arg. 6. It cannot be lawful in any sense, to swear such an oath to any mortal, nay, not to a David nor Hezekiah: because to swear unrestricted and unlimited allegiance to any man, were a manifest mancipating of mankind, not only to an ass-like subjection, but to a servile obligation to maintain and uphold the persons and government of mutual men, be what they will, turn to what they will; it is known the best of men may degenerate: and by this no remedy is left to redress ourselves, but our heads, hearts, and hands all tied up under an engagement to defend, assist, and maintain whosoever doth hold the government, manage it as he pleases. This reason will also conclude against the English oath of allegiance, though it be a great deal more smoothly worded, and seems only to require a rejection of the Pope, and legal subjection to the king; yet, that comprehensive clause makes it border upon absoluteness, I will bear faith and true allegiance to his majesty's heirs and successors, and him and them will defend to the uttermost of my power, against all conspiracies and attempts whatsoever. There are no conditions here at all, limiting the allegiance, or qualifying the object; but an arbitrary imposition of true allegiance and defence, in all cases, against all attempts, (even that of repressing their tyranny not excepted), not only of their persons, but of their dignities, if this be not an illimited allegiance to an absolute power, I know not what is. 5. Here is an acknowledgment of the ecclesiastical supremacy resident in the king: which is the most blasphemous usurpation on the prerogatives of Christ, and privileges of his church that ever the greatest monster among men durst arrogate: yea, the Roman beast never claimed more; and, in effect, it is nothing else but one of

his name of blasphemy twisted out of the Pope's hands by king Henry the VIII. and handed down to queen Elizabeth, and wafted over to James the VI. for that was the original and conveyance of it. The iniquity whereof is discovered above, Head 1. Arg. 3. But further, may be aggravated in these particulars, (1.) It is only a change of the Pope, but not of the popedom; and nothing else but a shaking off the ecclesiastical pope, and submitting to a civil pope, by whom Christ's hardship is as much wronged as by the other: and hereby a door is opened for bringing in popery (as indeed by this stratagem it is brought now to our very doors) for by the act of supremacy he hath power to settle all things concerning doctrine, worship, discipline or government, by his clerks the bishops, having all the architectonic power of disposing, ordering, and ordaining these, as he in his royal wisdom thinks fit. (2.) By this church and state are confounded (whereof the distinction is demonstrate above) making the magistrate a proper and competent judge in church matters, not to be declined; whereby also he hath power to erect new courts, mongrel judicatories; half civil, half ecclesiastic, which have no warrant in the word. (3.) By this, many palpable and intolerable encroachments made upon the liberties and privileges of the church of Christ are yielded unto; as that there must be no church-judicatories or assemblies, without the magistrate's consent, but that the power of convoking and indicting assemblies do belong only to him, and the power of delegating and constituting the members thereof, that he may dissolve them when he pleases; that his presence, or his commissioners, is necessary unto each national assembly; that ministers have no proper decisive suffrage in synods, but only of advice; that the church judicatories be prelimited, and nothing must be treated there, which may be interpreted grating upon the prerogative, nor any thing whatsoever, but what he shall allow and approve, without which it can have no force nor validity; yea, by this a door should be opened unto the utter destruction and overthrow of all church-judicatories, seeing he is made the fountain of all church power. (4.) By

this, the magistrate is made a church-member as he is a magistrate, and so all magistrates as such are church-members, even heathens. And yet, (5.) By this he is exempted from subjection to the ministry, because they are made accountable to him in their administrations, and in the discharge of their function are under him as supreme. Yea, (6.) By this the magistrate is made a church officer, having the disposal of the church's government. And not only so, but (7.) By this he is made a church officer of the highest degree, being supreme in all causes, to whom ministers in the discharge of their ministry are subordinate. And so, (8.) By this the church of the New Testament is made imperfect, so long as she wanted a Christian magistrate, wanting hereby a chief officer; yea, and the apostles did amiss in robbing the magistrate of his power. (9.) By this the magistrate might exercise all acts of jurisdiction, immediately by himself; seeing he can do it as supreme by his commissioners in ecclesiastic affairs. (10.) Finally, by this oath the king is made the head of the church, being supreme over all persons, and in all causes, unto whom all appeals and references must ultimately be reduced, even from church judicatories. Those things are only here touched they are more apodictically confirmed above, and may be seen made out at large in Apol. Relat. Sect. 12. But I proceed. 6. It is contrary unto the solemn League and Covenant; into whose place, after it was broken, burnt, buried, and rescinded, since they have remitted the subjects allegiance by annulling the bond of it, they substitute and surrogate this in its place: and therefore none can comply with the surrogation of the second, except he consent to the abrogation of the first oath. All the allegiance we can own according to the covenants, stands perpetually and expressly thus qualified, viz. in defence of religion and liberty, according to our first and second covenants, and in its own nature must be indispensibly thus restricted: therefore to renew the same, or take an oath of allegiance simply, purposely omitting the former restriction, when the powers are in manifest rebellion against the Lord, is, in effect, a disowning of that limitation, and of the

sovereign prerogative of the great God, which is thereby reserved and as much as to say, 'Whatever authority command us to do, we shall not only stupidly endure it, but actively concur with, and assist in all this tyranny.' See Naph. first edition, Pag. 177, 178. Vindicated at length by Jus Populi. chap. 11. By all this the iniquity of the Scots oath of allegiance and supremacy may appear, and also that of the English oath of allegiance, even abstract from the supremacy, is in some measure discovered; though it is not my purpose particularly to speak to that: yet this I will say, That they that plead for its precision from the supremacy annexed seem not to consider the full import of its terms; for under the dignities, superiorities and authorities, there engaged to be upheld, the ecclesiastical supremacy must be included; for that is declared to be one of the dignities of the crown there, as well as here; and hither it was brought from thence. And therefore those Scots men that took that oath there, and pled, that though the oath of allegiance in Scotland be a sin, yet it is duty to take the oath in England, seem to me to be in a great deceit: for the object is the same, the subject is the same, the duty expected, required, and engaged into, is the same, and every thing equal in both. Yet all this iniquity, here couched, is some way comprehended in, and implied by the oath of abjuration: for the civil part is imported in abjuring a declaration, for its declaring war against the king, where it is clear, he is owned as king, and all part with them that declare war against him being renounced, it is evident the abjurers must take part with him in that war, and so assist and defend him; for being subjects, they must not be neutral, therefore if they be not against him, they must be for him, and so under the bond of allegiance to him: the ecclesiastical supremacy is inferred from that expression of it, where some are said to serve him in church, as well as in state, which implies an ecclesiastical subordination to him as supreme over the church.

III. The tenor of some other bonds was more smooth and subtile, as that of the bond of peace; several times renewed and imposed, and under several

forms; but always after one strain; engaging to live peaceably, whereby many were caught and cheated with the seeming fairness of these general terms; but others discerning their fallaciousness, refused and suffered for it. This in the general is capable of a good sense: for no Christian will refuse to live peaceably, but will endeavour, if it be possible, as much as lieth in them, to live peaceably with all men, Rom. xii. 18. that is, so far to follow peace with all men, as may consist with the pursuit of holiness, Heb. xii. 14. But if we more narrowly consider such bonds, we shall find them bonds of iniquity. For, 1. They are covenants of peace, or confederacies with God's enemies, whom we should count our enemies, and hate them because they hate him, Psal. cxxxix 21. It is more suitable to answer, as Jehu did to Joram, 2 Kings ix. 22.—What peace, so long as the whoredoms of thy mother Jezebel, and her witchcrafts are so many? than to engage to be at peace with those, who are carrying on Babylon's interest, the mother of harlots and witchcrafts. 2. This cannot be taken in truth, judgment, and righteousness, because of the fallacy and ambiguity of the terms: for there are diverse sorts of peace and peaceableness; some kind is duty, some never. It must then be rightly qualified, for we can profess and pursue no peace of confederacy with the enemies of God, not consistent with the fear of the Lord, otherwise we cannot expect to have the Lord for a sanctuary, but for a stone of stumbling, Isa. viii. 8, 12,—14.—No peace obstructing the gospel or testimony, or abstracting from the duty of the day: no peace tending to sinful security, Jer. viii. 11. No peace leading to slavish stupidity; no peace prompting to preposterous prudence, in palliating sin, or daubing defections with untempered mortar; no peace inconsistent with truth; they must go together, Zech. i. 19. No peace that may not be followed with holiness, Heb. xii. 14. But it must be so qualified, that it be in the Lord, in truth, in duty, contributing for the good of the church, Psal. cxxii. 8, 9. and the fruit of that wisdom, which is first pure, and then peaceable, James iii. 17. Now, all that know the imposers of these bonds, will

acknowledge that is not the peace they are seeking. 3. If we further enquire into their meaning of living peaceably, and seek a determinate sense of it from their acts and actings, it is plain they mean such a peaceable living, as gives obedience to their wicked laws, and is a compliance to their established courses: and it must be such a peaceable living, as is opposite to their sense of sedition, rebellion, schism, &c. Which they interpret every seasonable duty to be: and it must be such a peaceable living, as they were presumed not to have been observant of before; and whatever it be, must be opposite to that with which they were charged as turbulent, and so contrary to all the duties of our covenanted profession, as going to meetings, withdrawing from the curates, &c. Which they interpret not to be peaceable living. 4. This is contrary to our covenants, which oblige us to a constant contending with, and opposition to them. Yet all this is engaged into in the oath of abjuration, which abjures all war against the king, and all doing injury to them that serve him, and consequently to peace, and living peaceably with them.

IV. Of affinity to this were many other bonds of regularity, frequently renewed and generally imposed, and that with unparalleled illegality and rigour; sometimes by hosts of savage Highlanders; sometimes by circuit courts, and by heritors upon their tenants, and with such unheard of involvements, that the master or heritor was obliged for himself, his wife, children, servants, tenants, and all under him, to live orderly; which in some was more bluntly expressed, in others more flatly explained, that they should keep the public ordinances, that is, hear the curates, and not go to any seditious conventicles, (so they called the persecuted meetings of the Lord's people for the worship of God) and in others yet more impudently exacted, that they should not harbour, entertain, or correspond with any that went to these meetings, but discover and assist to the apprehending of them. There were several forms of them from time to time, some longer, some shorter; but all of them, first and last, were to the same sense and scope.

And the most favourably worded had much wickedness in them: for, 1. They are covenants of order, and coming under the same rule with themselves, which is nothing but their lusts and mischiefs framed into law, not according to the rule of the word of God, but the iniquitous laws of men. 2. They could not be taken in truth, judgment, and righteousness: for either they were ambiguous, or their plain sense obliged to manifest iniquities, to conform with all their enacted corruptions. 3. They are clear breaches of covenant, which obliges to another kind of orderliness, and to follow other rulers, and take none from them in the matters of God. 4. They are impossible, and absurd; obliging masters to bind for all under them, that could neither lie in their power, nor in their duty, to restrain their liberty in these lawful things, and to constrain and compel their consciences to sin. 5. They are unnatural and cruel, obliging the takers to partake with them in their persecution of the godly. 6. They were engagements to hear curates, which is proved to be sin, head 1. throughout. 7. They were engagements to withdraw from the meetings of the Lord's people, proved to be duty, head 4. Yet the oath of abjuration is some way equivalent to this, in that it obliges the abjurers to renounce disorderliness in their sense, and to do no harm to the time-serving orderly clergy or laity, serving and prosecuting their wicked orders.

V. Some other bonds of that nature, and oaths frequently put to suffering people when taken prisoners, did require peaceableness and orderliness, in this stile, that they should either tacitly or expresly condemn some risings in arms, as at Pentland, Bothwel, &c. to be rebellion against the king, and a sin against God, and engage never to rise in arms against the king, or any commissionate by him, upon any pretence whatsoever. The iniquity whereof is manifest: For, 1. This is a covenant equivalent to a league offensive and defensive with them, obliging never to offend or oppose them, nor to defend nor rescue our brethren against and from their murdering violence. 2. This could not be taken in truth, judgment, and

righteousness: for who can tell how far that may extend, upon any pretence whatsoever? This may oblige us to make a stupid surrender of our lives, when the king turns so tyrannical, as to send his cut-throats to demand them, or authorizes his bloody papists to massacre us, then we must not resist upon any pretence. 3. It is contrary to our covenants, that allow resistance in some cases, and oblige to assist and defend all that enter under the bond thereof. 4. This infers an owning of the present authority, as the irresistible ordinance of God, and an obligation of living peaceably in subjection under it; disproved above. To which I shall add a part of that forecited letter of Mr. Rutherford's, the 63d in number of the third part of his printed letters, which are a clear vindication of the principles and practice of our conscientious sufferers on this point: 'There is a promise and real purpose, (saith he) to live peaceably, under the king's authority; but (1.) You do not so answer candidly and ingeniously the mind of the rulers, who to your knowledge, mean a far other thing by authority than you do: for you mean his just authority, his authority in the Lord—in the maintainance of true religion, as in the covenant, and confession of faith—is expressed from the word of God; they mean his supreme authority, and absolute prerogative about laws, as their acts clear, and as their practice is; for they refused to such as were unwilling to subscribe their bond to add, authority in the Lord, or just and lawful authority, or authority as it is expressed in the covenant; but this draught of a petition yields the sense and meaning to them which they crave. (2.) That authority for which they contend, is exclusive of the sworn covenant; so that except ye had said, Ye shall be subject to the king's authority in the Lord, or according to the sworn covenant, you say nothing to the point in hand, and that sure is not your meaning. (3.) Whoever promises so much of peaceable living under his majesty's authority, leaving out the exposition of the fifth command,—may, upon the very same ground subscribe the bond refused by the godly, and so you pass from the covenant, and make all these bypast actings of this kirk

and state these years bypast to be horrid rebellion, and how deep this guilt draws, consider.' 5. This would infer, though the king should send and kill us, we must not resist, nor defend our own lives: yet, being an oath against the sixth command, which enjoineth natural self-preservation, it should be intrinsically sinful; and 'tis all one to swear to non-preservation of self, as to swear to self-murder. 6. I hope to make it appear in the fifth head, that this is against the practice of nations, the law of nature, and the word of God. Yet all this complex iniquity is clearly comprehended in the oath of abjuration, in terms abjuring all war against the king.

VI. There were some other oaths, frequently obtruded upon people, for refusing which they have suffered great cruelties, that can hardly be described by any name; nor can their imposition have a parallel in any age or place, for illegality, inhumanity, arbitrariness, and odiousness. These were the oaths of inquisition, or things beyond all enquiry: whereby people were pressed to answer the inquisitors, according to all their knowledge of things they were interrogate upon, and delate and discover intercommuned persons in their wanderings, or such whole names were in their Porteous rolls, &c. And power was given to single soldiers, to press these oaths upon whom they pleased. The iniquity of which is monstrous: For, 1. This was the worst kind of combination with these blood hounds, to abet and assist them in their pursuing after the Lord's people: which is worse than to be bare consenters to such wickedness, or to be onlookers to their affliction in the day of their calamity; but like that sin charged upon Edom, that they delivered up those of his that did remain in the day of distress, Obad. ver. 13, 14. for these that took oaths, obliged themselves to do all they could to deliver up the remnant that escaped; and if they did not, no thanks to them; if they could not, their sin was in their willingness: it they would not, and yet swore would contribute their help towards it, by telling of all they knew, that was horrid perjury and false swearing. 2. This could be no ways capable of the qualification of an oath; not only because the matter is

wicked and unnatural, to discover, may be, the husband, or children, or nearest relations, to please men, or save their own life, which was a great tentation; and therefore in it there could be no deliberation in swearing: but also for the doubtful perplexity confounding the mind, that they either could not, nor durst not tell of all they knew, and yet swore to do it. 3. It is against the covenant, which obliges to discover malignant enemies, and assist our covenanting brethren, and not to discover them, and assist malignant enemies; which is a perfect inverting the fourth and sixth articles of the covenant. 4. It is contrary to clear precepts in scripture, to assist and defend our brethren, to make our shadow as the night in the midst of the noon-day, and hide the outcast, and bewray not him that wandereth, Isa. xvi. 3, 5. The illegality of this imposition makes it very absurd, that every pitiful officer or soldier should be empowered to impose and exact oaths, and impanel and examine witnesses, about alledged criminals. Yet the monstrosity of this oath serves to aggravate the oath of abjuration; in that the abjurers do renounce their part of, and disown the declarers of that abjured declaration, and so do as much as from them is required, to give them up for a prey to their hunters; yea they declare them murderers, in that they abjure their declaration as asserting murder; and consequently they must be obliged to discover them to their acknowledged judges.

VII. The abominable test comes next: which needs no other refutation than to rehearse it; the substance whereof was a solemn swearing, 'That they owned and sincerely professed the true protestant religion, contained in the confession of faith, recorded in the first parliament of king James VI.—and that they would adhere thereunto all the days of their life,—and never consent to any change or alteration contrary thereto,—but renounce all doctrines, principles, practices, whether popish or fanatical, contrary thereto.—And they swear, that the king is the only supreme governor of this realm, over all persons, in all causes, as well ecclesiastical as civil,—and promises to bear faith and true allegiance to the king's majesty, his heirs

and lawful successors, and to their power shall assist and defend all rights, jurisdictions, prerogatives,——belonging to them——and affirm——it——unlawful for subjects, upon pretence of reformation, or any other pretence whatsoever, to enter into covenants——or to convocate, convene, or assemble——to treat, consult, or determine in any matter of state, civil or ecclesiastic, without his majesty's special command or to take up arms against the king, or these commissioned by him——and that there lies no obligation on them, from the national covenant, or solemn league and covenant——to endeavour any change or alteration in the government, either in church or state, as it is now established by the laws of the kingdom——and they shall never decline his majesty's power and jurisdiction——and finally, they swear, that this oath is given in the plain genuine sense and meaning of the words, without any equivocation, mental reservation, or any manner of evasion whatsoever.' This is the complement of a wicked conspiracy, couching in its capricious bosom the complication of all their mischiefs, comprehending all, and explaining all the former: which indeed cannot be taken with any equivocating evasion, that can escape either the stigma of nonsense and self contradiction, or the censure of atheism and irreligion, or the sentence of divine vengeance against such baffling the name of God. The best sense that can be put upon it, is that which a poor sot expressed, when it was tendered to him, prefacing thus before he took it, Lord have mercy upon my soul. For, 1. It is not consistent with itself, there being such contradictions between that confession of faith and the following part, that no man can reconcile, some whereof may be instanced as follows; (1.) In the 11th art. of that confession, intituled, of Christ's ascension, it is said, 'That Christ is the only head of the church, and just lawgiver, in which honours and offices, if men or angels presume to intrude themselves, we utterly detest and abhor them, as blasphemous to our sovereign and supreme governor Christ Jesus.' And a little before in that same article, it is said, 'This glory, honour and prerogative he alone among

the brethren shall possess.' And in the 16th Art. of the kirk, 'Christ is the only head of the same kirk.' And yet in the test, the king is affirmed to be the only supreme in all causes ecclesiastical. (2.) In the 14th Art. among good works are reckoned these: 'To obey superior powers and their charges (not repugning to the commandment of God) to save the lives of innocents, to repress tyranny, to defend the oppressed.' And among evil works these are qualified, 'To resist any that God hath placed in authority (while they pass not over the bounds of their office.)' And Art. 24th, it is confessed, 'That such as resist the supreme power, doing that which pertains to his charge, do resist God's ordinance,——while the princes and rulers vigilantly travel in the execution of their office.' And yet in the test, true allegiance is engaged into without any such limitations; and it is affirmed to be unlawful, upon any pretence whatsoever, to convocate, &c. or to take up arms against the king. (3.) In the 14th Art. 'Evil works are affirmed to be, not only those that expresly are done against God's commandment, but those also that, in matters of religion, and worshipping of God, have no other assurance but the invention and opinion of men.' And Art. 18th, among the notes of the true church, 'ecclesiastical discipline, uprightly ministred, as God's word prescribes, whereby vice is repressed, and virtue nourished, is one.' In Art. 20th. 'The voice of God and constitution of men are opposed.' And yet in the test, they swear never to endeavour any change or alteration in the government of the church——as it is now established; whereof many things must be altered, yea, the whole form and frame of it, if these propositions be true, as they are. (4.) In the test, they swear never to consent to any change or alteration, contrary to that confession, and that all principles and practices contrary thereto are popish and fanatical (for so they divide them into one of these disjunctively) then must all the following principles in their test be renounced as such, seeing they are contrary to that confession in some propositions or articles; and that the government established by that confession was presbyterian, and this established by the

test is episcopal. 2. It comprehends all the former oaths and bonds, which are cleared above to be sinful. Yet for as wicked as it is, it must be some way homologated by the oath of abjuration, excepting the contradiction that is in it; seeing all these oppositions against the king, sworn against in the test, are abjured and renounced in that oath of abjuration, in renouncing all declarations of war against the king; for if any war can be undertaken against him, all these kinds of opposition must be allowed, that are in the test sworn against.

VIII. In the last place, I shall come to consider more particularly the oath of abjuration itself; for refusing of which, the sufferings were more severe (being extended even to death or banishment) though the words be more smooth than in any of the former, which are these: 'I——do abjure, renounce, and disown a late pretended declaration, affixed on several market crosses, &c. in so far as it declares war against the king, and asserts it lawful to kill any that serve his majesty in church, state, army or country.' That the taking of this oath is a step of compliance, dishonourable to God, derogatory to the day's testimony, contradictory to the many reiterated confessions of Christ's worthy (though poor despised) witnesses, sealed by their blood, bonds and banishments, encouraging and gratifying to the enemies of God, hardening to backsliding brethren, offensive to the generation of the righteous; stumbling to all, leaving a stain and sting upon the conscience of the subscriber, I shall endeavour to make out by these considerations.

1. Considering the party who imposed it; it must be looked upon as a confederacy with them, being tendered upon all the subjects, as a test of their incorporating themselves with, and declaring themselves for their head, and siding with them and him, in this their contest and contention with a poor remnant of the Lord's people, persecuted and murdered by them for truth and conscience sake, who issued forth that declaration against

them, here abjured. Therefore let the party be considered, imposing the oath with such rigour, and prosecuting the refusers with ravenous rage, murdering and torturing all who did not comply with them, declaring a war more formally and explicitly against Christ as king, and all that will dare to assert their allegiance to him; under an open displayed banner of defiance of him and his, than even mortals durst espouse and avouch: the head of that treacherous and truculent faction, both he who was first declared against in that declaration, and he who hath by bloody and treacherous usurpation succeeded to him, being such a monster for murder and mischief, tyranny, oppression and perfidy, that among all the Nimrods and Nero's that past ages can recount, we cannot find a parallel, by all law divine and human, incapable of government, or any trust, or so much as protection, or any privilege, but to be pursued by all, as a common enemy to mankind: and his underlings, agents and complices, devoted to his lust, and serving his wicked designs, in their respective offices and places of trust under him, which by his nomination and sole appointment they have been erected to, and established in, with the stain and indelible character of perjury, the only qualification of their being capable of any advancement, occupying by usurpation, intrusion and violence, the public places of judicatories, and carrying all so insolently and arbitrarily, and with an effrontery of wickedness and despight of all reason, religion or justice, that they cannot but be looked upon as the most pestilent and pestiferous plague that ever pestered a people: the taking then of this oath, by them projected as a pest to infect consciences, with, and pervert them to wicked, truth deserting and law perverting loyalty, and imposed as a test of compliance with them and coming off from that little flock whom they design to devour and destinate to destruction; must be in their own esteem, as well as of the generation of the righteous, to their satisfaction, and the others sorrow, a real incorporating with them, an owning of their usurped power as judges to administer oaths, giving them all obedience they required for the time to

their authority, and all the security they demanded for the subscribers loyalty, an approving of all their proceedings in that matter, and transacting, tampering, and bargaining with these sons of Belial, out of fear, whereby a right is purchased to that common badge of their owned and professed friends, who (upon taking that oath) had from them a privilege and allowance to travel and traffic (where and how they will) through the country, denied to all other that wanted that badge; I mean the pass or testificate they got from them thereupon, which was the mark of that secular beast of tyranny, no less pernicious to the world than popery hath been to the church, and which was given to all the takers of the oath, as a mark or tessera, that they were no enemies to the government, as they call it. O base and unworthy livery! for the suffering sons of Zion to put on the signature of the society of her devourers. Hence, if covenants and confederacies, declaring we are on their side, cannot be made with the enemies of religion, then this oath could not be taken lawfully; but the former is proved above: therefore the latter follows. This will yet more appear,

2. If we consider the party that set forth that declaration, whom the proclamation against it represents so odiously and invidiously, whom the oath imposed obliges us to condemn; being so represented, as if they were maintainers of murdering principles, and perpetrators of assassinating villanies, inconsistent with peace or any good government, and therefore to be exterminated and destroyed out of the land, whom therefore they prosecute and persecute so cruelly to the effusion of their blood, under colour of law. 1. The takers of this oath must have formally, under their unhappy hand, disowned and renounced them, and all part or interest in them, or society or sympathy with them; who yet are known to be the suffering people of God, more earnestly contending, witnessing, wrestling for the faith and word of Christ's patience, and have suffered more for their adherence to the covenanted reformation of the church of Scotland, and for their opposition to all its deformations and defections, than any party within

the land: yet them have they rejected as their companions, though with some of them sometimes they have had sweet company and communion to the house of God, by abjuring and condemning their deed which duty and necessity have drove them to. 2. Hereby they have presumptuously taken upon them, to pass a judgment upon the deed of their brethren, before their murdering enemies? and that not a private discretive judgment, but a public definitive sentence (in their capacity) by the most solemn way of declaring it, that can be, by oath and subscription under their hand; whereby they have condemned all the sufferings of their brethren, who sealed their testimony in opposition to this compliance with their blood, and finished it with honoured joy, as foolish and frivolous profusion of their own blood, nay, as just and legally inflicted and executed upon them, as being rebels, of murdering principles and practices: for this cannot be vindicated from a more than indirect justifying of all the murdering severity executed upon them. 3. And hereby they have unkindly and unchristianly lifted themselves on the other side against them, and take part rather with their enemies than with them; for thus they used to plead for it, when they pressed this oath upon them that scrupled it; when any war is declared against the king, 'any of his majesty's soldiers may question any man whom he is for, and if he be not for the king, he may act against him as an enemy, and if they will not declare for the king and disown the rebels, they are to be reputed by all as enemies.' Which, whatever weakness be in the arguing, plainly discovers, that they take the abjuring of that declaration, in that juncture, to be a man's declaring of what side he is for, and that he is not for the emmitters of that declaration, but for the king and his party: which, in the present state of affairs, is a most dreadful owning of Christ's enemy, and disowning of his friends. Hence, a disowning of the Lord's persecuted people, and condemning their practice, and an owning of their persecutors, and espousing their side of it, is a sinful confederacy; but the taking of this oath is such, as is evident by what is said; therefore it is a sinful confederacy.

3. Considering the nature, conditions, and qualifications of so solemn and serious a piece of God's worship, and way of invoking his holy name, as an oath is; it will appear, that the taking of this imposed oath of abjuration, was a dreadful and heinous breach of the third command, by taking his name in vain, in the worst sort, and so cannot be holden guilty. I prove it thus: An oath which cannot be taken in truth, judgment and righteousness, is a breach of the third command; but this is an oath which cannot be in truth, judgment and righteousness: which is evident; for, 1. It cannot be taken by any conscientious man in truth, in sincerity of the heart, simplicity of the mind, singleness and honesty in the intention, not putting any other sense than the imposer hath, and which is the clear sense of it without oath and beyond it. For if he take it according to the meaning, then he should swear it unlawful ever to declare war against the king, and consequently never to rise in arms against him upon any pretence whatsoever: for, if we may rise in arms for our own defence, we make and must declare a defensive war. And indeed, in themselves, as well as in their sense and meaning who imposed them, these two oaths never to rise in arms against the king, and this of abjuration, are one and the same. Then also should we swear it unlawful, at any time, upon any occasion, or for any cause, to kill any such as serve the king in church, state, army or country, either in peace or war: for that is their thought, and the sense of the oath itself, or what is beyond it: and in part, for their exemption and immunity from all condign punishment, this oath was contrived. But in fine, how can this oath be taken in truth; when it is not apparent, either that the declaring of a war against the king, or killing some for some causes (which shall afterwards be made appear to be lawful) that serve him, are to be abjured and disowned? or that the declaration does assert any such thing? And indeed it will be found to be a denying the truth, and a subscribing to a manifest falsehood, invoking God to be witness thereto. 2. This oath cannot be taken in judgment; that is, with knowledge and deliberation, &c. All the terms of it have much of

obscure ambiguity, declaring a war, and killing any who serve the king, may be constructed in several senses, good and bad, but here they are indefinitely expressed, and universally condemned. Particularly that (in so far as) hath several faces, and can never be sworn in judgment; for if it denote a casualty, and signify as much as because or wherefore, then all declarations of war against any that have the name of king whatsoever, upon whatsoever grounds, and all killing of any serving him, though in our own defence, must be universally condemned, for the consequence is good as to every thing, if it import a restriction, excluding other things in the declaration, but obliging to abjure only that; then it implies also an affirmation, that these two things are contained in it, which will not appear to the judgment of them that will seriously ponder the declaration itself; if again it be a supposition or condition, and to be interpreted, for if so be, then all that the judgment can make of it is, that it is uncertain, and so the conscience dare not invoke God as a witness of that which is uncertain whether it be a truth or a lie. 3. This oath could not be taken in righteousness: for the matter is not true, certainly known, lawful, possible, weighty, necessary, useful, and worthy: it is not true, that the declaration imports so far as it is represented in the oath of abjuration; neither is it certainly known, but by collating these two together the contrary will appear; neither is it lawful (if it were true that such assertions were in it) to abjure all declarations of war against the king, and to swear it unlawful ever to kill any, if he be once in the king's service, in church, state, army, or country; nor is it possible to reduce this assertory oath into a promissory one lawfully, as most part of such oaths may and do necessarily imply; for when I swear such a thing unlawful, it implies my promise, by virtue of the same oath, never to practice it: But it is not possible (as the case stands) for a man to bind up himself in every case from all declared war against the king, or from killing some employed in his service; what if there be a necessary call to join in arms with the Lord's people, for the defence of their

religion, lives and liberties, against him? what if he commands massacre? Shall not a man defend himself? nor endeavour to kill none of that murdering crew, because they are in his service? was ever a fool so fettered? nor is it of such weight, to be the occasion of involving the whole country in perjury or persecution, as by that oath was done; nor was it necessary, in this man's time, to make all abjure a declaration out of date, when the object of it Charles II. was dead, and no visible party actually in arms to prosecute it; nor was it ever of any use or worth, except it were implicitly to gratify their greedy lusting after the blood of innocents, or the blood of silly souls cheated by their snares, by involving them in the same sin of perjury and conscience debauching false swearing, whereof they themselves are so heinously guilty. But let them, and such as have taken that oath, and not fled to Christ for a sanctuary, lay to heart the doom of false swearers, 'the flying roll of the curse of God shall enter into their house,' Zech. v. 4. 'Love no false oath, for all these are things that I hate, saith the Lord,' Zech. viii. 17. 'The Lord will be a swift witness against false swearers,' Mal. iii. 5. And let them sift their conscience before the word, and set the word to the conscience, and these considerations will have some weight.

4. If we consider this particular oath itself, and the words of it more narrowly, we shall find a complication of iniquities in it, by examining the sense of them as the imposers expound them. 1. Not only that declaration, but all such in so far as they declare and assert such things, are here renounced; and hereby many and faithful declarations are disowned, that declare the same things. It is indeed pleaded by some, that profess to be presbyterians, as it was also pretended by some of the pressers of the oath themselves but in order to pervert and cheat the conscience; that here is not required a disowning of the apologetical declaration simpliciter, but only according to which, or rather of a pretended one of their supposing, in so far as it imports such things: but this is frivolous for that pretended one is

intended by the imposers to be the real apologetical declaration, which they will have to be disowned, and cannot be distinguished from it: and though all these assertions cannot be fastened upon that apologetical declaration, but it is evident, that it is invidiously misrepresented: yet that same is the pretended one which they require to be abjured in so far as it asserts such things, which it does not: and if it be according to which to be disowned, then that must either be according to that assertion of killing any, &c. which is not to be found in it, and so it is not to be disowned at all; or it must be according to the declaration of war against the king, and so that which, or formal reason of disowning it, will oblige to disown all declarations of war against the king, which cannot be disowned. Others again object, that it is not required to be disowned formally but only conditionally, taking and confounding in so far, for if so be: but to any thinking man it is plain, this cannot be a supposition nor yet a simple restriction (as they would give it out) but an assertion, that such things are indeed imported in it; for so the imposers think and say: and if it might pass current under that notion, as a supposition, being equivalent to if so be, then under that sophistical pretext, I might renounce the covenant, or the most indisputed confession or declaration that ever was, in so far as it contained such things; and so this equivocation might elude all testimonies whatsoever, and justify all prevarications. 2. This must condemn all defensive war of subjects against their oppressing rulers, in that a declaration is abjured, in so far as it declares war against the king: to press and persuade people to which, it was usually urged by the imposers, that when a war is declared by rebels against the king, then all the subjects are obliged to disown the rebels, or else be reputed for such themselves; and, when it was alledged the war was ceased, because the object declared against was ceased, Charles II. being dead, otherwise if a man be obliged to give his opinion about a war declared against a king deceased and gone, then by the same parity of reason, he must be obliged to give his opinion of that war of the lords of the

congregation (as they were called) against queen Mary, in the beginning of the reformation, It was still replied by them, that the rebellion continued, and all were guilty of it, that did not abjure that declaration; whence it is evident, they mean, that every thing which they call rebellion, must be disowned, and consequently all resistance of superior, upon any pretence whatsoever, as many of their acts explain it; yea, and it was plainly told by some of them, to some that scrupled to take the oath, because they said they did not understand it, that the meaning was to swear, never to rise in arms against the king. Against this it hath been objected by several, that this was always denied by presbyterians, that ever they declared war against the king expresly, purposedly and designedly, but only against him by accident, when he happened to be the adverse party; but this distinction will not be a salvo to the conscience; for the object declared against, is either a king or not; if he be not, then a declaration of war against him is not to be abjured; if he be king, then he is either declared against as king, and by himself, or as an oppressor, or an abuser of his power: the first indeed is to be disowned; for a king, as king or lawful magistrate, must not be resisted, Rom. xiii. 2. But the second, to declare war against a king, as an oppressor and abuser of his power, and subverter of the laws, hath been owned by our church and state many a time, and they have opposed and declared war as purposedly against him, as he did against them, and as really and formally as he was an oppressor: sure he cannot be an oppressor only by accident: however this hath been owned always by presbyterians, that war may be declared against him who is called king. And therefore to abjure a declaration, in so far as it declares war against the king, will condemn not only that declaration, upon the heads wherein its honesty and faithfulness chiefly consists, but all other most honest and honourable declarations, that have been made and emitted by our worthy and renowned ancestors, and by our worthies in our own time, who have formally, avowedly and explicitly, or expresly, purposedly and designedly, declared their opposition to tyranny

and tyrants, and their lawful and laudable designs to repress, depress and suppress them, by all the ways and means that God and nature, and the laws of nations allow, when they did by law itself depose and exauctorate themselves from all rule, or privilege, or prerogative of rulers, and became no more God's ministers, but Beelzebub's vicegerents, and monsters to be exterminated out of the society of mankind. The honestest of all our declarations of defensive war, have always run in this strain; and others, insinuating more preposterous loyalty, have been justly taxed for asserting the interest of the tyrant, the greatest enemy of the declarers, and principal object of the declared war; which disingenious juggling and foisting in such flattering and falsifying distinctions in the state of the quarrel, hath rationally been thought one of the procuring causes or occasions of the discomfiture of our former appearances for the work of God and liberties of our country. 3. This must infer an owning of his authority as lawful king, when the declaration disowning him is abjured, in so far as it declares war against his majesty; for in this oath he is stiled, and asserted to be king, and to have the majesty of a lawful king, and therefore must be owned as such by all that take it; which yet I have proved to be sinful above, Head 2. Against this it hath been quibbled by some, that that declaration does not declare war against the king expressly as king, who set forth the declaration. But this will not salve the matter; for then (1.) It a subscribing to a lie, in abjuring a declaration, in so far as it did declare a thing, which it did not, if that hold. (2.) The enemies impose the abjuring and disowning of it, in so far as it declares war against their king, who had none other but Charles Stewart at that time, who was the king in their sense; and an oath cannot be taken in any other sense, contradictory to the imposers, even though by them allowed, without an unjustifiable equivocation. (3.) Though he had been king, and had not committed such acts of tyranny, as might actually denominate him a tyrant, and forfeit his kingship; yet to repress his illegal arbitrariness and intolerable enormities, and to repel his unjust violence,

and reduce him to good order, subjects, at least for their own defence, may declare a war expressly, purposedly and designedly against their own acknowledged king; this ought not in so far to be disowned; for then all our declarations emitted, during the whole time of prosecuting the reformation, in opposition to our king would be disowned; and so with one dash, unhappily the whole work of reformation, and the way of carrying it on, is hereby tacitely and consequentially reflected upon and reproached, if not disowned. (4.) It must infer an owning of the ecclesiastical supremacy, when it asserts, that some do serve the king in church, as well as in state; there is no distinction here, but they are said to serve him the same way in both. And it is certain they mean so, and have expressed so much in their acts, that churchmen are as subordinate, and the same way subject to the king's supremacy, as statesmen are; the absurdity and blasphemy of which is discovered above. 5. This condemns all killing of any that serve the king in church, state, army or country; for a declaration is abjured, in so far as it asserts it lawful to kill any such; and so by this oath, there is an impunity secured for his idolatrous priests and murdering varlets, that serve him in the church; for his bloody counsellors, and gowned murderers, that serve his tyrannical designs in the state; for his bloody lictors and executioners, the swordmen, that serve him in the army, whom he may send when he pleades to murder us; and for his bloody just-asses, informers, and intelligencing sycophants, the Zyphites, that serve him in the country: all these must escape bringing to condign punishment, contrary to the 4th Art. of the solemn league and covenant, and shall be confuted, Head 6. Against this it is excepted by pleaders for this oath, that it is only a declared abhorring of murdering principles, which no Christian dare refuse; and it may be taken in this sense safely, that it is to be abjured, in so far as it asserts it lawful to kill all that are to be employed by his majesty, or any, because so employed in church, state, army or country, which never any did assert was lawful: but though murdering principles are indeed always to be

declaredly abhorred, and all refusers of that oath did both declare so much, and abhorred the thoughts of them; yet this invasion is naught: for (1.) The declaration asserts no such thing, neither for that cause nor for any other, but expressly makes a distinction between persons under the epithet of bloody cruel murderers, and these only whom it threateneth to animadvert upon. (2.) The only reason of their declared intent of prosecuting these, whom they threaten to bring to condign punishment, was, because they were so employed by the tyrant in such service, as shedding the blood of innocents, murdering people where they met them; and so that's the very reason for which they deserve to be killed, and therefore foolish, impertinent, and very absurd to be alledged as a qualification of the sense of that impious oath.

5. If we consider the proclamation enjoining this oath and narrating and explaining the occasions and causes of it, all these reasons against it will be confirmed; and it will further appear, that the proclamation itself is indirectly approved. For though it might be sustained in the abstract, that we may and must renounce such declarations founded on principles inconsistent with government, and bearing such inferences as are specified in that proclamation; yet complexly considered what they mean by government, what sort of society that is, the security whereof is said to be infringed by that declaration, and what is the scope of that narrative; a renouncing of a paper contradictory thereto, must be in so far a tacite approbation of that proclamation. For that oath, which renounceth what is contrary to such a proclamation, does justify the proclamation; but this oath renounces what is contrary to the proclamation, and that only: therefore it justifies the proclamation. It is intituled, as it was really designed, for discovering such as own or will not disown the foresaid declaration, by them falsely nicknamed, a late treasonable declaration of war against his majesty, and the horrid principle of assassination. And the body of it discovers such hell-bred hatred of, and malice against, that poor party,

destinated, in their design, to final and total destruction, and lays down such contrivances for their discovery and ruin, that the heads and hearts of the inventers and authors may seem to be possessed and inspired with the devil's immediately assisting counsel, and the clerk's pen that drew it up to have been dipt in the Stygian lake, and the gall and venom of hell: representing the emitters, and abettors, and spreaders of that declaration, and all who have been joined in any of their societies, and all who either will own or scruple to disown the said declaration, in the manner by them tendered and imposed, (which are the generality of the most tender and conscientious christians in the land) under all the vilest and most abominable and odious terms, their malice could invent; as if they were 'insolent and desperate rebels, associated under a pretended form of government, who had formerly endeavoured to disguise their bloody and execrable principles, but now had pulled off the mask, and who think it a duty to kill and murder all who do any manner of way serve the present rulers, or bear charge under them, who maintain principles inconsistent with all government and society, and tending to the destruction of the lives of their loyal and honest subjects; treacherous and assassinating principles, &c. Who now have declared their hellish intentions, and for the better performance of their mischievous designs, do lurk in secret, and are never discerned but in the acts of their horrid assassinations, and passing up and down among the king's loyal subjects, take opportunity to murder and assassinate, like execrable rebels; and calling that declaration, an execrable and damnable paper,' &c. All which are execrable and damnable lies, and forgeries of the fathers of them, and a charge which all their sophistry can never make out in any particular: yet by them amplified to a swelling height of heinousness; and, among other circumstances, aggravated, from their frequent refusing the reiterated offers of their clemency, by which they understand their contempt of their presumptuous, Christ-defying, and church-destroying indulgences, and their not submitting to their insnaring

and base indemnities, or their conscience cheating bonds and oaths by them so finely bulked. From these impudently pretended premisses, in their falsely forged viperous narrative, they lay down their bloody methods and measures for prosecuting that poor people, with all vigour of savage severity; ordaining, 'That whosoever shall own that declaration, and the principles therein specified,' (which is a larger dilatation of their meaning, than their pretended, restriction, (in so far as, &c.) and gives a further discovery of the intent of the oath, that gives a covert stroke to all the principles of our reformation, which are reductively specified in that declaration) 'or whosoever shall refuse to disown the same——shall be execute to the death; and commanding all subjects to concur, and do their utmost endeavour to seek, search, delate, and apprehend all such, under the severest penalties of the laws; and to difference the good from the bad, (meaning their own associates and friends, from Christ's followers) by discriminating signs, declaring it their pleasure, and requiring all past the age of 16 years not to presume to travel without testificates of their loyalty and good principles, by taking the oath of abjuration; whereupon they are to have a testificate, which is to serve for a free pass, with certification to all that shall adventure to travel without such a testificate, shall be holden and used as concurrers with the said rebels; commanding all heritors, &c. to give up the lists, of the names of all under them, before the curate; declaring, if any shall refuse to concur in such service, they shall be holden as guilty of the foresaid crimes, and punished accordingly; and strictly prohibiting all to harbour, lodge, or entertain any, unless they have such certificates, under the same pain: and for encouragement to any that shall discover or apprehend any to be found guilty as above said, ensuring to them the sum of 500 merks Scots for each of them.' This is that hell hatched proclamation, so grievous for its effects, so dreadful for its designs, so monstrous for its absurdities, that the like hath not been seen: whereby not only the country's interest and trade hath been prejudged, by compelling all

to have a pass in time of peace, and these to be procured at exorbitant rates, oppressing poor people; not only common hostlers and innkeepers are made judges, empowered to impose oaths upon passengers for their passes, that they be not forged; but many consciences couzened, cheated, wounded and insnared, and the whole land involved in sin. But they that took this oath have approved and justified this detestable, execrable, bloody proclamation, the spurious spawn of the devil's venom against Christ's followers: for they gave all the obedience to it that was required of them in their capacity, and obedience justifies the law enjoining it; they have done all was required, or could be done by them, to answer the design of it in their circumstances; and consequently, by doing the thing prescribed, they have justified the grounds upon which the rescript was founded, and the methods by which it was prosecuted, which hath a dreadful medly of iniquity in it. Hence, (1.) They have subscribed to all these odious characters wherewith they branded that poor persecuted party, and condemned them as insolent, desperate rebels, murderers, bloody assassins, &c. (2.) In disowning that declaration, they have disowned the principles therein specified, and consequently all the testimony against this usurping faction of overturners of the work of reformation, active and passive, that have been given and sealed by the eminent servants of God, since this catastrophe, the principle of defensive arms, and our covenants, and several others which are therein specified. (3.) They have given their consent to all the concurrence therein required, for seeking, searching, delating, and apprehending of these people, and to all the cruel villainies committed against them. (4.) They have taken on their prescribed discriminating sign of loyalty, and of being repute by them men of good principles, that is, their friends, men for the times: which is so sinful and scandalous, that it is shameful to hint at them, and yet shameful to hide them.

6. If we consider the apologetical declaration itself, which is so bespattered, and so odiously represented, and so rigorously enjoined to be abjured; who will more narrowly look into it, and ponder and perpend the purpose and scope of it, will see nothing that can be abjured conscientiously in it, but the whole of it, laying aside prejudice and invidious critical censoriousness, capable of a fair and acceptable construction. The motives leading them to let it forth, being only their desires and just endeavours to prosecute, and secure themselves in the prosecution of holy commanded duties, and to keep a standing testimony against the insolency of those that are given up of God, to lay out themselves in promoting a course of profanity and persecution, notwithstanding of all their viperous threatnings. Their measures being none other, than the commendable precedents and examples of zealous and tender hearted Christians, who have done the like, and our national and solemn covenants, lying with their binding force indispensible upon all of us, and obliging us to endeavour all that is there declared, as being bound for ever to have common friends and foes with our covenanted reformation, to all which they declare and avouch their resolved adherence, and their own former declarations, disowning their allegiance to, and authority of a man who had, by law itself, forfeited all authority, by his intolerable tyranny, perjury, and perfidious breach of trust, reposed and devolved upon him by covenant; by his overturning all the fundamental constitutions of the government, perverting, inverting, and everting all laws, all liberties, all privileges of church and state, all establishments of our covenanted work of reformation, all securities of our life and enjoyments whatsoever, usurping to himself an absolute tyrannical civil supremacy, inconsistent with the safety or freedom of the people; and a monstrous, blasphemous, ecclesiastical supremacy; upon which considerations, to endeavour to make good their freedom and emancipation from that yoke which they had cast off, they behoved to resolve upon defensive resistance, against him and his bloody emissaries; which war being declared before,

they only in this declaration testified their unanimous approbation of, adherence to, and resolutions for prosecuting the same against him and his accomplices, such as lay out themselves to promote his wicked and hellish designs: by which war they do not mean a formed stated and declared insurrection with hostile force, to break the peace of the nation, and involve all in blood, but a resolved, avowed, constant, opposition to the murdering violence, injustice, oppression, and persecution of this wicked faction, now raging, rather than reigning, who have declared, and still prosecute a declared war against Christ, bearing down his work and interest in the land; 'And a constant endeavour, in opposition to them, to pursue the ends of our covenants, in standing to the defence of the glorious work of reformation, and their own lives; and, in the defence thereof, to maintain the cause and interest of Christ against his enemies, and to hold up the standard of our Lord Jesus Christ (meaning the gospel and the word of our testimony,) whereunto they looked upon themselves as bound and obliged by their holy covenants, being therein dedicated to the Lord in their persons, lives, liberties, and fortunes, for defending and promoting this glorious work of reformation, notwithstanding of all opposition, that is or may be made thereunto, and sworn against all neutrality and indifferency in the Lord's matters; whereunto they beseech, invite and obtest, all them who wish well to Zion, to a concurrence and concerting the same cause and quarrel.' In maintaining of which opposition against such wicked enemies, because by them they were restlessly pursued and hunted, and murdered wherever they were found, neither could find any harbour or hiding place in any corner of the country, for searchers, informers, and instigators, who still stirred up the country to raise the hue and cry after them, and caused them to be delivered up, and delated them to the courts of their murdering enemies, whereby much innocent blood was shed; therefore, to stop their career of violence and deter them from such courses, they found it necessary to threaten them with more active and vigorous opposition, and that they might expect to be

treated as they deserved. Wherein they are far from owning assassinating principles, or practising assassinations; for they give only open and plain warning, and advertisement to the world, of their necessitated endeavours to defend themselves, and prevent the murder of their brethren, and can no way be charged with asserting it lawful, to kill all employed in the king's service in church, state, army, or country, as the proclamation in viperous, invective calumny, misrepresents the declaration; but, on the contrary, do jointly and unanimously declare, 'They detest and abhor that hellish principle of killing such as differ in judgment from them, and they are firmly and really purposed, not to injure or offend any whomsoever, but such as are directly guilty of, or accessory to the murder of their brethren.' Whom yet they mind not to assassinate or kill tumultuarily, but to prosecute them with all the legal formalities, that justice in their capacity, and the times disorder and distracted condition will allow; expressly declaring, 'That they abhor, condemn, and discharge all personal attempts upon any pretexts whatsoever, without previous deliberations, common consent, certain probation of sufficient witnesses, or the guilty persons confession.' Neither could it ever be supposed, that they threaten all employed in the king's service with this sort of handling, but some select and expressly distinguished kind of notorious villains, men of death and blood, openly avowing and vaunting of their murders: and these they distinguished into several classes, according to the respective aggravations of their wickedness: in the first, 'They place those that murder by command, under pretext of an usurped authority, as counsellors, justiciary, and officers of their forces, or bands of robbers, and not all, nor any of these neither, but the cruel and bloody.' In the second class, they threaten such as are actually in arms against them of an inferior rank, and such gentlemen, and bishops, and curates, as do professedly and willingly serve them to accomplish and effectuate their murders, by obeying their commands, making search for these poor men, delivering them up, instigating, informing, and witnessing

against, and hunting after them: and not all these neither, but such as cruelly prosecute that service, to the effusion of their blood. Neither do they threaten all equally, nor any of them peremptorily, 'But that continuing after the publication of this their declaration, obstinately and habitually in these courses (plainly declaring they intended no hurt to them if they would hold up their hands) they would repute them as enemies to God and the reformation, and punish them as such, according to their power, and the degree of their offence; withal leaving room for civil and ecclesiastical satisfaction, before lawful and settled judicatories, for the offences of such persons, as their power may nor reach,' &c. And as unwilling to be necessitated to such severe courses, and earnestly desirous they be prevented, they admonish them with sorrow and seriousness, of the sin and hazard of their wicked courses; and protest, that only necessity of self preservation, and zeal to religion, lest it should be totally rooted out by their insolency, did drive them to this threatening declaration, and not because they were acted by any sinful spirit of revenge. This is all that is contained in that declaration. And if there be any thing here so odious and execrable, to be so solemnly abjured, renounced, and abhorred in the presence of God, for the pleasure of, and in obedience to the will of his and our enemies, let all unbiassed considerers impartially weigh, or any awakened conscience speak, and I doubt not but the sweating and subscribing this oath will be cast and condemned.

I shall say nothing of the necessity, or conveniency, or expediency, or formality of this declaration: but the lawfulness of the matter, complexly taken, is so undeniable, that it cannot be renounced, without condemning many very material principles of our reformation: only success and incapacity is wanting to justify the manner, whole procedure, formality, and all the circumstances of the business; if either the declarers themselves, or any other impowered with strength, and countenanced with success to make good the undertaking, had issued out such a declaration in the same terms,

and had prevailed and prospered in the project, many, that have now abjured it, would approve and applaud it. But passing these things that are extrinsic to the consideration in hand it is the matter that they required to be abjured and condemned, it is that the enemies quarrelled at, and not the inexpediency or informalities of it: and it must be taken as they propound it, and abjured and renounced by oath as they represent it; and therefore the iniquity of this subscription will appear to be great, in two respects; 1st, In denying the truth. 2dly, In subscribing to, and swearing a lie. 1. They that have taken that oath have denied and renounced the matter of that declaration, which is truth and duty, and a testimony to the cause of Christ, as it is this day stated and circumstantiate in the nation, founded upon former (among us uncontroverted) precedents and principles of defensive wars, disowning tyranny, and repressing the insolency of tyrants and their accomplices; the whole matter being reducible to these two points, declaring a resolved endeavour of breaking the tyrant's yoke from off our neck, thereby asserting our own and the posterities liberty and freedom, from his insupportable and entailed slavery; and a just threatening to curb and restrain the insolency of murderers, or to bring them to condign punishment: whereof, as the first is noways repugnant, but very consonant to the third article; so the second is the very duty obliged unto in the fourth article of our solemn league and covenant. But all this they have denied by taking that oath. 2. By taking that oath, they have sworn and subscribed to a lie, making it as they represent it, abjuring it in so far as it declares, &c. and asserts it is lawful to kill all employed in the service of the king, in church, state, army, or country; which is a manifest lie, for it asserts no such thing. Neither will any other sense put upon the words, in so far as salve the matter; for as thereby the takers of the oath shall deal deceitfully, In frustrating the end of the oath, and the design of the tenderers thereof; and to take an oath in so far, will not satisfy, as Voetius judgeth, de Pol. Eccl. p. 213. So let them be taken which way they can, either for so much, or even

as, or providing, it is either a denying the truth, or subscribing a lie: and consequently these poor people suffered for righteousness that refused it.

HEAD IV.

The Sufferings of People for frequenting Field Meetings Vindicated.

Hitherto the negative heads of sufferings have been vindicated: now follow the positive, sounded upon positive duties, for doing, and not denying, and not promising and engaging to relinquish which, many have suffered severely. The first, both in order of nature and of time, that which was first and last, and frequently, most constantly, most universally, and most signally sealed by sufferings, was that which is the clearest of all, being in some respect the testimony of all ages, and which clears all the rest, being the rise and the root, cause and occasion of all the rest; to wit, the necessary duty of hearing the gospel, and following the pure and powerful faithfully dispensed ordinances of Christ, banished out of the churches to private houses, and persecuted out of the houses to the open fields, and there pursued and opposed, and sought to be suppressed, by all the fury and force, rigour and rage, cruelty and craft, policy and power, that ever wicked men, maddened into a monstrous malice against the mediator Christ, and the coming of his kingdom, could contrive or exert; yet still followed and frequented, owned and adhered to by the lovers of Christ, and serious seekers of God, even when for the same they were killed all day long, and counted as sheep for the slaughter, and continually oppressed, harrassed, hunted, and cruelly handled, dragged to prisons, banished and sold for slaves, tortured, and murdered. And after, by their fraudulent favours of ensnaring indulgencies and indemnities, and a continued tract of impositions and exactions, and many oaths and bonds, they had prevailed with many, and even the most part both of ministers and professors, to

abandon that necessary duty; and even when it was declared criminal by act of parliament, and interdicted under pain of death, to be found at any field meetings: they nevertheless persisted in an undaunted endeavour, to keep up the standard of Christ, in following the word of the Lord wherever they could have it faithfully preached, though at the greatest of hazards: And so much the more that it was prosecuted by the rage of enemies, and the reproach and obloquies of pretended friends, that had turned their back on the testimony, and preferred their own ease and interests to the cause of Christ; and with the greater fervour, that the labourers in that work were few, and like to faint under so many difficulties. What the first occasion was that constrained them to go to the fields, is declared at length in the historical deduction of the testimony of the sixth Period: to wit, Finding themselves bound in duty, to testify their adherence to, and continuance in their covenanted profession, their abhorrence of abjured prelacy, and their love and zeal to keep Christ and his gospel in the land, after they had undergone and endured many hazards and hardships, oppressions and persecutions, for meeting in the houses where they were so easily attrapped, and with such difficulty could escape the hands of these cruel men; they were forced to take the fields, though with the unavoidable inconveniences of all weathers, without a shelter: yet proposing the advantages, both of conveniency for meeting in great numbers, and of secrecy in the remote recesses of wild muirs and mountains, and of safety, in betaking themselves to inaccessible natural strengths, safest either for flight or resistance; and withal, having occasion there to give a testimony for the reformation with greater freedom. And to this very day, though many have a pretended liberty to meet in houses, under the security of a man's promise, whose principle is to keep no faith to heretics, and under the shelter and shadow of an Antichristian toleration; yet there is a poor people that are out of the compass of this favour, whom all these forementioned reasons do yet oblige to keep the fields, that is both for conveniency, secrecy, and safety; they

dare not trust those who are still thirsting insatiably after their blood, nor give them such advantages as they are seeking, to prey upon them, by shutting themselves within houses; and moreover, they take themselves to be called indispensibly, in the present circumstances, to be as public, or more than ever, in their testimony for the preached gospel, even in the open fields. Now this would be a little cleared; and to essay the same, I would offer, 1st, Some concessions, 2dly, Some postulata, or supposed grounds. 3dly, Some more special considerations, which will conduce to clear the case.

First, That we may more distinctly understand what is the duty here pleaded for, and what is that which these people suffer for here vindicated; let these concessions be premised,

1. Now under the evangelical dispensation, there is no place more sacred than another, to which the worship of God is astricted, and which he hath chosen for his house and habitation, whither he will have his people to resort and attend, as under the legal and typical dispensation was ordered; there was a place where the Lord caused his name to dwell, Deut. xii. 5, 11. But now, "neither in the mountain, nor at Jerusalem, the Father will be worshipped; but every where, and any where, in spirit and in truth," John iv. 21, 23, 24. And the apostle wills, "that men pray every where, lifting up holy hands, without wrath and doubting," 1 Tim. ii. 8. We abhor therefore the English and popish superstition of consecrated places, and assert that all are alike in this respect, houses or fields.

2. In the constitute state of the church, or wherever it can be obtained, order, decency, and conveniency doth require that there be appointed places, sequestrate and appropriate for the meetings of the Lord's people, according to that general rule, "Let all things be done decently and in order," 1 Cor. xiv. last verse. And, in that case private conventicles, set up in a

schismatical competition with public churches, are not to be allowed. But even then private meetings for prayer and conference, are necessary, lawful, and laudable. But now the church is broken by a crew of schismatical intruders, who have occupied the places of public assemblies: and thrust out the Lord's ministers: It is these we scar at, and not the place.

3. Suppose a magistrate should interdict and discharge the public place of worship, and restrain from the churches, but leave all other places free to meet in: or if he should prohibit the houses, but leave freedom for the fields, or discharge the fields, and give liberty in houses; in that case we would not contend for the place out of contempt: though it were duty then to witness against such a sacrilegious injury done to the church, in taking away their meeting places; yet it were inexpedient to stickle and strive for one spot, if we might have another; then when only excluded out of a place, and not included or concluded and restricted to other places, nor otherwise robbed of the church's privileges, we might go to houses when shut out of churches, and go to fields when shut out of houses, and back again to houses when discharged thence. But this is not our case, for we are either interdicted of all places: or if allowed any, it is under such confinements as are inconsistent with the freedom of the gospel: and besides, we have to do with one from whom we can take no orders, to determine our meetings; nor can we acknowledge our liberty to depend on his authority, or favour which we cannot own nor trust, nor accept of any protection from him. Neither is it the place of fields or houses that we contend for; nor is it that which he mainly opposes: but it is the freedom of the gospel faithfully preached, that we are seeking to suppress. The contest betwixt him and us, is the service of God in the gospel of his Son; that we profess, without owning him for the liberty of its exercise: and therefore as an enemy to the matter and object of these religious exercises, which are the eye-sore of antichrist, he prosecutes with such rage the manner and circumstances thereof.

4. Even in this case, when we are persecuted in one place, we flee unto another, as the Lord allows and directs, Matth. x. 23, And if occasionally we find a house, either public, or a church or a private dwelling house that may be safe or convenient, or capacious of the numbers gathered, we think it indifferent to meet there, or in the field; but, in the present circumstances, it is more for the conveniency of the people, and more congruous for the day's testimony, to keep the fields in their meetings, even though it irritate the incensed enemies. Which that it may appear.

Secondly, I shall offer some postulata or hypothesis to be considered, or endeavour to make them good, and infer from them the necessity and expediency of field meetings at this time in these circumstances: which consequently vindicate the sufferings that have been thereupon stated formerly, and are still continued.

1. It is necessary at all times that Christians should meet together, whether they have ministers or not, and whether the magistrate allow it or not. The authority of God, their necessity, duty, and interest, makes it indispensable in all cases. It is necessary for the mutual help, "two are better than one, for if they fall, the one will lift up his fellow," Eccl. iv. 9, 10. It is necessary for cherishing mutual love, which is the new commandment, and badge of all Christ's disciples, John xiii. 34, 35. a principle which they are all taught of God, 1 Thess. iv. 9. It is necessary for nourishing union to communicate together, in order to their being of one mind, and one mouth, and that they receive one another, Rom. xv. 5, 6, 7. 1 Cor. i. 10. Standing fast in one spirit, striving together for the faith of the gospel, Phil. 1. 27. It is necessary for serving one another in love, Gal. v. 13. bearing one another's burdens, and so fulfilling the law of Christ, Gal. vi. 2. submitting to one another, Eph. v. 21. 1 Pet. v. 5. teaching and admonishing one another, Col. iii. 16. comforting one another, 1 Thess. iv. last verse, edifying one another, 1 Thess. v. 11. exhorting one another, Heb. iii. 13. It is

necessary for considering one another, and provoking unto love, and to good works; and for this end, they must not forsake the assembling of themselves together, as the manner of some is, for that were to sin wilfully, Heb. x. 24, 25, 26. Must these things depend on the magistrate's allowance? Or can they be done without meeting together in private or public? The same reasons do alike conclude for the necessity of both. If then there must be meetings for these ends necessary at all times, then when they cannot do it within doors, they must do it without. 2. There is a necessity for meeting for preaching and hearing the gospel; the enjoyment whereof hath always been the greatest design and desire of saints, who could not live without it; therefore they loved the place where the Lord's honour dwelt, Psal. xxvii. 8. This was the one thing they desired of the Lord, and that they would seek after, to behold the beauty of the Lord, Psal. xxvii. 4. For this they panted, and their soul thirsted, Psal. xlii. 1, 2. without which every land is but a thirsty land, where there is no water, where they cannot see the power and glory of God, as they have seen it in the sanctuary, Psal. lxxiii. 1, 2. O how amiable are his tabernacles? "One day in his courts is better than a thousand elsewhere," Psal. lxxxii. 1, 10. No gladness to them like that of going to the house of the Lord, Psal. cxxii. 1. A christian cannot possibly live without gospel ordinances, no more than children can want the breasts, or the poor and needy want water when their tongue faileth for thirst; they are promised it in high places, and in the wilderness, when they can get it in no where else, Isa. lxi. 17, 18. There is an innate desire in the saints after it, as new born babes they desire the sincere milk of the word, 1 Pet. ii. 2. So that any that is offended with them for this, must be offended with them for being christians, for as such they must have the gospel, cost what it will. It is the greatest desire of the spouse of Christ, to know where he feeds and where to find the Shepherd's tents, where they may rest at noon, Cant. i. 7, 8. And not only in their esteem is it necessary: but in itself, the church cannot bear the want of it, for where there is no vision, the word of the Lord is then very

precious, 1 Sam. iii. 1. No wonder then that the Lord's people make such ado of it, in a famine of it, that they go from sea to sea to seek it, Amos viii. 11, 12. and that they are content to have it at any rate; though with the peril of their lives, because of the sword of the wilderness, Lam. v. 9. Seeing they cannot live without it. Would men be hindered, by law, from seeking their natural food? Nay, they would fight for it before they wanted it, against any that opposed them. If then they cannot get it with peace, they must have it with trouble: and if they cannot get it in houses, they must have it wherever it is to be found, with freedom, and the favour of God.

3. It is necessary that the meetings be as public, as they can be with conveniency and prudence; yea, simple hazard should no more hinder their publicness and solemnity, than their being at all. Especially, in an evil time, when wickedness is encouraged and established, and conformity thereto pressed, truth banished, and a witness for Christ suppressed, corruption in doctrine, worship, discipline, and government connived at, countenanced, and advanced, the word of God is become a reproach, and men have no delight in it, apostasy is become universal, and both magistrates and ministers generally turned promoters of it, which is the true description of our times: then the meetings of the Lord's people, that endeavour to keep clean garments, should be more frequent, public, and avowed. The reasons are, 1. Then the call of God, by his word and works, is more clamant, for public and solemn humiliation, in order to avert public imminent judgments, and impendent strokes from God. It is not enough to reform ourselves privately and personally, and to keep ourselves pure from such courses, by an abstraction and withdrawing from them, as is proved, Head 1. (where this is improved as an argument against hearing the curates) Nor is it enough to admonish, exhort, reprove, and testify against such as are involved in these courses, but it is necessary, for them that would be approven, to adhere to the truth, and serve God after the right manner, and to mourn, sigh, and cry for all the abominations of the time, so as to get the

'mark of mourners on their foreheads,' Ezek. ix. 4. and they that do so, will be found 'on the mountains like doves in the valleys, all of them mourning, every one for his iniquity,' Ezek. vii. 16. and not only to be humbled every family apart, but there must be a great mourning, as the mourning of Hadadrimmon in the valley of Megiddon,' Zech. xii. 11. to the end. That is a solemn public mourning there promised. There must be a 'gathering themselves together, though a nation not desired, before the decree bring forth, before the day pass as the chaff, and the fierce anger of the Lord come upon them, if they would have any possibility of their hiding,' Zep. ii. 1, 2, 3. 'The trumpet then must be blown in Zion, to sanctify a fast, to call a solemn assembly, gather the people, sanctify the congregation assemble the elders, gather the children,'——Joel ii. 15, 16. As was exemplified in Ezra's time, when there were great congregations of people assembled publicly, weeping very sore, then there was hope in Israel, Ezra x. 1, 2. and when that messenger of the Lord came up from Gilgal to the people of Israel, and reproved them for their defections and compliance with the Canaanites, they had such a solemn day of humiliation, that the place of their meeting got a name from it, they called the name of that place Bochim, that is, weepers, Judg. ii. 4, 5. 'And when the ark was at Kirjathjearim all the house of Israel lamented after the Lord——and they gathered together at Mizpeth, and drew water, and poured it out before the Lord,' 2 Sam. vii. 2. 6. I shewed before, that there is reason to fear that the sins of a few, especially of magistrates and ministers, will bring wrath upon the whole body of the people, as is plain from these scriptures, Lev. x. 6. Isa. xliii. 27, 28. Lam. iv. 13. Micah iii. 11, 21. shewing the sins of ministers may procure universal destruction. And 2 Sam. xxiv. 25. 2. Kings xxi. 11. Jer. xv. 4. proving the sins of magistrates may procure it: and Numb. iii. 14, 15. Josh. xxii. 17, 18. Demonstrating that the sins of a party of the people may draw wrath upon the whole. Now, the only way the scripture points out to evite and avert such public judgments is to make our resentment of these indignities done

to our God, our mourning over them, and our witness against them, as public as the sins are, at least as public as we can get them, by a public pleading for truth, Isa. lix. 4. For the defect whereof he hides his face, and wonders that there is no man, no intercessor, ver. 16. that is, none to plead with God, in behalf of his borne down truths; there must be in order to this, a public seeking of truth, which if there be any found making conscience of, the Lord makes a gracious overture to pardon the city, Jer. v. 1. We cannot think there were no mourners in secret there, but there was no public meetings for it, and public owning the duty of that day: There must be valour for the truth upon the earth, Jer. ix. 3, a public and resolute owning of truth: there must be a making up the hedge, and standing in the gap for the land, that the Lord should not destroy it, Ezek. xxii. 30. a public testimony in opposition to defection: there must be a pleading with our mother, Hos. ii. 2. which is spoken to private persons in the plural number, commanding all that would consult their own safety, publicly to condemn the sins of the whole nation, that they may escape the public punishment thereof, as it is expounded in Pool's Synop. Critic. in locum. By this means we must endeavour to avert the wrath and anger of God, which must certainly be expected to go out against the land, which hath all the procuring causes, all the symptoms, prognostics, and evidences of a land devoted to destruction, that ever a land had. If then there must be such public mourning, and such solemn gathering for it, such public pleading for truth, seeking for truth, valour for truth, making up the hedge, and pleading with our mother, there must of necessity be public meetings for it: for these things cannot be done in private, but must be done by way of testimony. Which I make a second reason, The nature and end of meeting for gospel ordinances is for a public testimony for Christ and his truths and interest, against sin and all dishonours done to the Son of God. So that the only end, is not only to bring to Christ, and build up souls in Christ, but it is to testify also for the glory of Christ, whether souls be brought in and built up or not.

The preached gospel is not only the testimony of Christ, 1 Cor. i. 6. but a testimony for Christ; in which sense, the testimony of Jesus is said to be the spirit of prophecy, Rev. xix. 10. so called, Durham expounds it, for its bearing witness to Christ; in which respect ministers are often called witnesses. It is also the testimony of Israel (not only given to Israel, but given by Israel) unto which the tribes go up, the tribes of the Lord, Psal. cxxii. 4. Whensoever therefore, or howsoever the testimony of the church is contradicted, that is not a lawful meeting of the tribes of the Lord. It is also the testimony of the preachers for Christ, against them that will not receive them, Mark vi. 11. And a witness unto all nations to whom they preach, Matth. xxiv. 14. And of all the witnesses that hold it, and suffer for it, Rev. vi. 9. And the same which is the word of Christ's testimony, is the word of theirs, Rev. xii. 11. by which they overcome, and for which they love not their lives. Wherever then the gospel is preached, it must be a testimony except it be public, at least as public as can be, as we find all Christ's witnesses were in the Old and New Testaments. 3. The motive or principle prompting the Lord's people to a frequenting of gospel ordinances, is a public spirit, stirring up to a public generation work, whereof this is the scope, to promote the kingdom of Christ, and not only to obey the Lord's command enjoining the duty, to enjoy the Lord, the end thereof, to edify their own souls; but to partake in, and promote this great work of the day, for the glory of God, and the church's good. For the gospel is not only a banner of love over his friends, but Christ's standard of war against his enemies, Isa. lix. 19. under which all that countenance it, are called to lift themselves as his soldiers, called, and chosen, and faithful: and it is required of his soldiers that they be valiant for the truth upon the earth, discovering a gallant greatness and generosity of a public spirit, having their designs and desires not limited to their own interests, even spiritual, but aiming at no less than Christ's public glory, the church's public good, the saints public comfort, having a public concern for all Christ's interests,

public sympathy for all Christ's friends, and a public declared opposition to all Christ's enemies: this is a public spirit, the true spirit of all Christ's zealous lovers and votaries; which, when he is a missing, will prompt them to go about the city, in the streets, and in the broad ways, to seek him whom their soul loveth, Cant. iii. 2. and not only in their beds, or secret corners, but they must go to the streets, and to the fields, and avow their seeking of Christ, even though the watchmen should smite them, and the keepers of the walls take their vails from them, Cant. v- Which obliges them to take him into their own cottages, and entertain him in their hearts, and give him a throne there, but also to endeavour to enlarge his dwelling, and propagate his courtly residence through the world, that the kingdoms of the earth may become the kingdoms of the Lord; and if they cannot get that done, yet that he may have the throne in their mother's house, and take up his abode in the church, or nation they belong to, that there his ordinances be established in purity, peace, plenty, and power, according to his own order; and if that cannot be, but that their mother play the harlot, and he be provoked to give up house with her, and, by her children's treachery, the usurping enemy be invited into his place and habitation, and take violent possession of it, and enact his extrusion and expulsion by law; yet they will endeavour to secure a place for him among the remnant, that he may get a lodging among the afflicted and poor 'people that trust in the name of the Lord—that they may feed and ly down, and none make them afraid, Zeph. iii. 12, 13. that the poor of the flock that wait on him, may know that it is the word of the Lord,' Zech. xi. 11. they will lay out themselves to strengthen their hands. This is the work of the public spirited lovers of the gospel, which hath been, and yet is the great work of this our day, to carry the gospel, and follow it, and keep it up, through the land, as the standard of Christ, against all opposition, from mountain to hill, when now Zion hath been labouring to bring forth as a woman in travail, and made to go forth out of the city, and to dwell in the field, Mic. iv. 10. Therefore, seeing it is the public work of

the day, and all its followers must have such a public spirit, it follows that the meetings to promote it must be as public as is possible. 4. The interest and privilege of the gospel, to have it in freedom, purity, power, and plenty, is the public concern of all the Lord's people, preferable to all other interests; and therefore more publicly, peremptorily, and zealously to be contended for, than any other interest whatsoever. It is the glory of the land. 1 Sam. iv. 21. without which, Ichabod may be the name of every thing; and every land, though never so pleasant, will be but a dry and parched land, where no water is, in the esteem of them that have seen the Lord's glory and power in the sanctuary, Psal. lxiii. 1. Whereas its name is Hephzibah and Beulah, Isa. lxii. 4. and Jehovah-Shammah, Ezek. xlviii. ult. where God is enjoyed in his gospel-ordinances; and the want and reproach of the solemn assemblies, is a matter of the saddest mourning of the Lord's people, Zeph. iii. 18. Therefore, while the ark abode in Kirjath jearim, the time was thought very long, and all the house of Israel lamented after the Lord, 1 Sam. vii. 2. then they heard of it at Ephratah, and found it in the fields of the wood, Psal. cxxxii. 6. But it hath been longer than twenty years in our fields of the woods, and therefore we should be lamenting after it with a greater concernedness; especially remembering, how we were privileged with the gospel, which was sometimes times publicly embraced and countenanced by authority, and ensured to us by laws, statutes, declarations, proclamations, oaths, vows, and covenant-engagements, whereby the land was dedicated and devoted unto the Son of God, whose conquest it was. And now are not all the people of God obliged to do what they can, to hinder the recalling of this dedication, and the giving up of the land as an offering unto satan and antichrist? And how shall this be, but by a public contending, for this privilege, and a resolving they shall sooner bereave us of our hearts blood, than of the gospel in its freedom and purity? But this we cannot contend for publicly, if our meetings be not public. 5. The nature and business of the gospel ministry is such, that it obliges them that

exercise it to endeavour all publicness, without which they cannot discharge the extent of their instructions: their very names and titles do insinuate so much. They are witnesses for Christ, and therefore their testimonies should be public, though their lot oftentimes be to witness in sackcloth. They are heralds, and therefore they should proclaim their master's will, though their lot be often to be a voice crying in the wilderness, as John the Baptist was in his field preachings. They are ambassadors, and therefore they should maintain their master's majesty in the public port of his ambassadors, and be wholly taken up about their sovereign's business. They are watchmen, and therefore they should keep and maintain their post their master has placed them at. Nay, they are lights and candles, and therefore cannot be hid, Matth. v. 14, 15. The commands and instructions given them, infer the necessity of this. They must cry aloud, and spare not, and lift up their voice like a trumpet and shew the Lord's people their transgressions and sins, Isa. lviii. 1. They are watchmen upon Jerusalem's walls which must not hold their peace day nor night, nor keep silence, nor give the Lord rest, till he establish, and till he make Jerusalem a praise in the earth, Isa. lxii. 6, 7. They are watchmen, that must command all to hearken to the sound of the trumpet, Jer. vi. 17. They must be valiant for the truth upon the earth, Jer. ix. 3. They must say, Thus saith the Lord even to a rebellious nation, whether they will hear or forbear, and not be afraid of them, Ezek. ii. 5, 6. They must cause the people to know their abominations, Ezek. 16. 2. and the abominations of their fathers, Ezek. xx. 4. And what their master tells them in darkness, that they must speak in the light, and what they hear in the ear, that they must preach upon the house tops, Matth. x. 27. These things cannot be done in a clandestine way; and therefore now, when there is no much necessity, it is the duty of all faithful ministers, to be laying out themselves to the utmost in their pastoral function, for the suppressing of all the evils of the time, notwithstanding of any prohibition to the contrary, in the most public manner, according to the examples of all the faithful

servants of the Lord, both in the Old and New Testaments; though it be most impiously and tyrannically interdicted, yet the laws of God stand unrepealed; and therefore all who have a trumpet and a mouth, should set the trumpet to their mouth, and sound a certain sound; not in secret, for that will not alarm the people, but in the most public manner they can have access to; and it is the duty of all to come and hear, and obey their warnings and witnessings, command who will the contrary. It was for mocking, despising his words, and misusing his prophets, that the wrath of the Lord arose against his people, the Jews, until there was no remedy, 2 Chron. xxxvi. 16. Therefore from all that is said, it must be concluded, that meetings for gospel ordinances must be as public as can be: and if so, then that they should be in houses, safety will not permit to us; to go to the streets or market places, neither safety nor prudence will admit; therefore we must go to the fields with it, cost what it will.

4. Seeing then there must be meetings, and public meetings; and seeing we cannot, and dare not in conscience countenance the curates meetings, we must hear, own, embrace and follow such faithful ministers, as are clothed with Christ's commission, righteousness and salvation, and do keep the words of the Lord's patience, and the testimony of the church of Scotland in particular. This I think will not, or dare not be denied, by any that own the authority of Christ (which none can deny or instruct the contrary, but our ministers that ventured their lives in preaching in the fields, have had a certain seal to their ministry, and is sealed sensibly in the conviction of many, and confession of more) that Christ's ministers and witnesses, employed about the great gospel-message, clothed with his authority and under the obligation of his commands lying upon them, must preach, and the people must hear them, notwithstanding of all laws to the contrary. Divines grant that the magistrate can no more suspend from the exercise, than he can depose from the office of the ministry; for the one is a degree unto the other. See Apollon. de jure Magist. circa Sacra, Part 1. p. 334, &c.

Rutherford's *Due right of Presbyterians*, p. 430, &c. For whether it be right in the sight of God, to hearken unto men more than unto God, the consciences of the greatest enemies may be appealed unto, Acts iv. 19. They must not cease, wherever they have a call and occasion, to teach and preach Jesus Christ, Acts v. last verse. Necessity is laid upon them; yea, wo unto them, if they preach not the gospel, 1 Cor. xi. 16. In all things they must approve themselves, as the ministers of God, in much patience, in afflictions, in necessities, &c. by honour and dishonour, by evil report and good report, as deceivers, and yet true, as unknown, and yet well known, —2 Cor. vi. 4. 8. 9. They must preach the word, be instant in season, and out of season; reprove, rebuke, exhort with all long suffering and doctrine, 2 Tim. iv. 2. Dare any say then, that a magistrate's or tyrant's laws can exauctorate a minister? or silence him by his own proper elicite acts, as king or tyrant, or formally and immediately? Will mischiefs framed into a law warrant such iniquity? or an act of a king of clay rescind the mandates of the King of kings? or exempt people from obedience due thereunto? or will the bishops canons, who have no power from Christ, or the censures of them, that stand condemned themselves by the constitutions of the church, and acts of the general assemblies, have any weight in the case? And yet these are all that can be alledged, except odious and invidious calumnies, the ordinary lot of the most faithful, against the present preachers in the fields, which are sufficiently confuted in their late informatory vindication, and need not here be touched. Seeing therefore they have given up themselves unto Christ as his servants they must resolve to be employed for him to the uttermost of their power, and must not think of laying up their talent in a napkin; especially now when there is so great necessity, when defection is yet growing, covered, countenanced more and more, division nothing abated, but new oil cast daily into the flames of devouring contentions; the people generally drowned in the deluge of the times, snares and sins, and like to be overwhelmed in the inundation of black popery,

now coming in at the opened sluice of this wicked toleration, with the congratulations of addressing ministers, when now the harvest is great, and the labourers are few; great then is the necessity, and double must the woe be that abideth such ministers, as are silent at such a time: and great and inexcusable is the sin of the people, if they do not come out, and countenance faithful ministers, the messengers of the Lord of hosts, from whom they should seek the law, Mal. ii. 7. especially when there are so many, that have so palpably betrayed their trust, and so few that are faithful in the necessary testimony of the day. Seeing then faithful ministers must preach, and people must hear, where can they meet with conveniency, and safety and freedom, except either under the shelter of this wicked toleration, which they dare not do, or else go to the fields?

5. It must be obtained also, that the ministers have a right to preach in this unfixed manner, wherever they have a call; their relation now, in this disturbed state of the church, being to be considered more extensively, than in its unsettled condition. For understanding which, we must distinguish a three or fourfold relation, that a minister of the gospel stands into. First, He is a minister of Christ, and steward of the mysteries of God, 1 Cor. iv. 1. having his commission from Christ as his master: and this relation he hath universally, wherever he is. Secondly, He is a minister of the catholic church, though not a catholic minister of it, which is his primary relation; for that is the church, in which ministers are set, 1 Cor. xii. 28. and to which they are given, Eph. iv. 11, 22. Thirdly, He is a minister of the particular church whereof he is a member; and so in Scotland, a minister is a minister of the church of Scotland, and is obliged to lay out himself for the good of that church. Fourthly, He is a minister of the particular congregation, whereunto he hath a fixed relation in a constitute case of the church: this last is not essential to a minister of Christ, but is subservient to the former relation; but when separated from such a relation, or when it is impossible to be held, he is still a minister of Christ, and his call to preach the gospel

stands and binds. See Mr. Durham's digression on this particular, on Rev. chap. 2. pag. 89. &c. in quarto. For though he be not a catholic-officer, having an equal relation to all churches, as the Apostles were; nevertheless he may exercise ministerial acts authoritatively, upon occasions warrantably calling for the same, in other churches, as heralds of one king, having authority to charge in his name where-ever it be: especially in a broken state of the church, when all the restriction his ministerial relation is capable of, is only a tie and call to officiate in the service of that church whereof he is a member; and so he hath right to preach every where, as he is called for the edification of that church. The reasons are, 1. He hath power from Christ the master of the whole church; and therefore, wherever the master's authority is acknowledged, the servant's ministerial authority cannot be denied; at least in relation to that church, whereof he is a member as well as a minister. 2. He hath commission from Christ principally for the edification of Christ's body, as far as his ministry can reach, according to the second relation. 3. His relation to the whole church is principal, that which is fixed to a part is only subordinate, because it is a part of whole 4. His commission is indefinite to preach the gospel, which will suit as well in one place as in another. 5. The same great ends of the church's great good and edification, which warrants fixing of a minister to a particular charge in the church's peaceable state. 6. Else it would follow, that a faithful minister, standing in that relation to a disturbed and destroyed church, and all his gifts and graces were useless in that case, which notwithstanding are given for the good of the church. 7. Yea, by this, when his fixed relation cannot be kept, it would follow, that he ceased to be a minister, and his commission expired; so that he should stand in no other relation to Christ, than any private person so qualified, which were absurd: for by commission he is absolutely set apart for the work of the ministry, so long as Christ hath work for him, if he continue faithful. 8. This hath been the practice of all the propagators of the gospel from the beginning, and of our reformers in particular; without

which they could never have propagated it so far: and it was never accounted the characteristic of apostles, to preach unfixedly; because in times of persecutions, pastors and doctors also might have preached wherever they came, as the officers of the church of Jerusalem did, when scattered upon the persecution of Stephen, Acts viii. 1. did go every where preaching the word, ver. 4. Since therefore they may and must preach, in this unfixed manner, they must in this broken state look upon all the godly in the nation, that will own and hear them, to be their congregation, and embrace them all, and consult their conveniency and universal advantage, in such a way as all equally may be admitted, and none excluded from the benefit of their ministry. And therefore they must go to the fields with it.

6. The Lord hath so signally owned, successfully countenanced, and singularly sealed field preaching in these unfixed exercises, that both ministers and people have been much encouraged against all opposition to prosecute them, as having experienced much of the Lord's power and presence in them, and of the breathings of the enlivening, enlarging, enlightening and strengthening influences of the Spirit of God upon them. The people are hereby called, in this case of defection, to seek after these waters that they have been so often refreshed by: for in this case of defection, God being pleased to seal with a palpable blessing on their souls, the word from ministers adhering to their principles, they may safely look on this as a call from God to hear them, and follow after them so owned of the Lord. And it being beyond all doubt, that the assemblies of the Lord's people to partake of pure ordinances, with full freedom of conscience in the fields, hath been signally owned and blessed of the Lord, and hath proven a mean to spread the knowledge of God beyond any thing that appeared in our best times; and in despite of this signal appearance of God, and envy at the good done in these meetings, all endeavours being used by wicked men to suppress utterly all these rendezvouzes of the Lord's militia, both by open force and cunning Midianitish wiles; ministers cannot but look upon it as

their duty, and that the Lord hath been preaching from heaven, to all who would hear and understand it, that this way of preaching, even this way, was that wherein his soul took pleasure, and to which he hath been, and is calling all who would be co-workers with him this day, to help forward the interest of his crown and kingdom. Many hundreds of persecuted people can witness this, and all the martyrs have sealed it with their blood, and remembered it particularly on the scaffolds, that they found the Lord there, and that he did lead them thither, where he had made them to ride upon the high places of the earth, and to eat the increase of the fields, and to suck honey out of the rock, and that in their experience, under the Spirit's pouring out from on high, they found the wilderness to be a fruitful field, and, in their esteem, their feet were beautiful upon the mountains that brought good tidings, that published peace, that brought good tidings of good, that published salvation, that said unto Zion, Thy God reigneth. And all the ministers that followed this way, while they were faithful, and had but little strength, and kept his word, and did not deny his name, found that verified in their experience, which was said of Philadelphia, Rev. iii. 8. that they had an open door which no man could shut. The characters whereof, as they are expounded by Mr. Durham, were all verified in these meetings: where 1. The ministers had a door of utterance upon the one side opened to them; and the people's ears were opened to welcome the same, in love to edification, simplicity, and diligence on the other. 2. This had real changes following, many being made humble, serious, tender, fruitful, &c. 3. The devil raged and let himself to oppose, traduce, and some way to blast the ministry of the most faithful more than any others: just as when Paul had a greater door and effectual opened to him, there were many adversaries, 1 Cor. xvi. 9. 4. Yet the Lord hath been observedly defeating the devil and profanity in every place, where the gospel came, and made him fall like lightning from heaven, by the preaching of the word. 5. And the most experimental proof of all was, that hereby ground was gained upon the

kingdom of the devil, and many prisoners brought off to Jesus Christ. And therefore seeing it is so, this must certainly be a call to them who are yet labouring in that work, which others have left off, to endeavour to keep this door open with all diligence, and reap the corn while it is ripe, and when the sun shines make hay, and with all watchfulness, lest the wicked one sow his tares, if they should fall remiss.

7. As for the circumstance of the place, of this unfixed manner of celebrating the solemn ordinances of the worship of God, in a time of persecution: this cannot be quarrelled at by any, but such as will quarrel at any thing. But even that is better warranted, than to be weakened with their quarrels. For before the law, mountain-worship was the first worship of the world, as Abram's Jehovah-jireh, Gen. xxii. 14. Jacob's Bethel, (or house of God in the open fields) Gen. xxviii. 17, 19. his Peniel, Gen. xxxii. 30. his El-Elohe Israel, Gen. xxxiii. ult. do witness: under the law, they heard of it at Ephratah, they found it in the fields of the wood, Psal. cxxxii. 6. After the law, field preaching was the first that we read of in the New Testament, both in John's preaching in the wilderness of Judea, being the voice of one crying in the wilderness, and the master-usher of Christ, Matth. iii. 1. 3. and in his ambassadors afterwards, who, on the Sabbath, went out to a river-side where prayer was wont to be made, as Lydia was converted at Paul's field preaching, Acts xvi. 13, 14. And chiefly the prince of preachers, Christ himself preached many a time by the sides of the mountains, and the sea-side: that preaching, Matth. v. was on a mountain, ver. 1. And this is the more to be considered, that our Lord had liberty of the synagogues to preach in, yet he frequently left them, and preached either in private houses, or in the fields; because of the opposition of his doctrine by the Jewish teachers, who had appointed that any who owned him should be excommunicate: and therefore, in the like case, as it is now, his servants may imitate their master: for though all Christ's actions are not imitable: such as these of his divine power, and the actions of his divine prerogative

(as his taking of the ass without the owner's liberty) and the actings of his mediatory prerogative, which he did as Mediator; but all his gracious actions, and moral upon moral grounds, and relative upon the grounds of relative duties, are not only imitable, but the perfect pattern for imitation. Therefore that superstitious and ridiculous cavil, that such meetings in fields or houses are conventicles, gathering separate congregations, is not worth the taking notice of: for this would reflect upon Christ's and his apostles way of preaching, and the constant method of propagating the gospel in times of persecution, in all ages since, which hath always been by that way which they call keeping of conventicles. It is absurd to say, It is a gathering of separate congregations, it is only a searching or seeking after the Lord's sheep, that are made to wander through all the mountains, and upon every high hill, and his flock which is scattered by corrupt shepherds, and the cruelty of the beasts of the field, Ezek. xxxiv. 5, 6. and preaching to all who will come and hear the word of truth, in such places where they may get it done most safely, and may be most free from distraction and trouble of their enemies, who are waiting to find them out, that they may haul them to prisons, or kill them.

8. As for the circumstance of the time, that is specially alledged to be unseasonable, especially when there is a little breathing, and some relaxation from the heat of persecution, to break the peace, and awaken sleeping dogs by such irritating courses, is thought not consistent with christian prudence. This is the old pretence of them that were at ease, and preferred that to duty. But as we know no peace at this time, but a peace of confederacy with the enemies of God, which we desire not to partake of, and know of no relaxation of persecution against such as continue to witness against them; so let what hath been said above in the third hypothesis, of the necessity of publicness in our meetings at such a time as this is, be considered; and let the scripture be consulted, and it will appear, not only that in preaching the gospel there must be a witness and testimony

kept up, (as is proved above) and not only that ministers preach the word, and be instant in season and out of season, 2 Tim. iv. 2. But that such a time, as this, is the very season of a testimony. For, in the scripture, we find, that testimonies are to be given in these seasons especially, 1. When the enemies of God, beginning to relent from their stiffness and severity, would compound with his witnesses, and give them some liberty, but not total; as Pharaoh would let the children of Israel go, but stay their flocks; and now our Pharaoh will give some liberty to serve God, but with a reservation of that part of the matter of it, that nothing be said to alienate the hearts of the subjects from his arbitrary government. But Moses thought it then a season to testify (though the bondage of the people should be thereby continued) that there should not a hoof be left behind; for, says he, we know not with what we must serve the Lord, until we come thither, Exod. x. 24, 25, 26. So must we testify for every hoof of the interest of Christ this day. 2. When there is a toleration of idolatry, and confederacy with idolaters, and suspending the execution of penal laws against them, or pardoning of those that should be punished: in such a season as this, that messenger, that came from Gilgal, gave his testimony as Bochim against their toleration of idolatrous altars, and confederacy with the Canaanites, Judg. ii. 1, 2. He is called an angel indeed, but he was only such an one as ministers are, who are called so, Rev. ii. 1. for heavenly spirits have brought a heavenly message to particular persons, but never to the whole people; the Lord hath committed such a treasure to earthen vessels, 2 Cor. iv. 7. and this came from Gilgal, not from heaven: so the man of God testified against Eli, for his toleration of wicked priests, though they were his own sons, 1 Sam ii. 27, &c. So Samuel witnessed against Saul, for his toleration and indemnity granted to Agag, 1 Sam. xv. 23. So the prophet against Ahab, for sparing Benhadad, 1 Kings xx. 42. The angel of Ephesus is commended for this, and he of Pergamos, and he of Thyatira is condemned, for omitting this testimony, and allowing a toleration of the Nicolaitans and Jezebel, Rev. ii.

2, 14, 20. In such a case of universal compliance with these things, and the peoples indulging themselves under the shadow of the protection of such a confederacy, the servants of the Lord that fear him must not say a confederacy, though they should be accounted for signs and wonders in Israel, Isa. viii. 12, 13, 18. But now idolatrous mass-altars are set up, none thrown down, penal statutes against papists are stopt and disabled, and the generality of ministers are congratulating, and saying a confederacy in their addresses for the same. 3. When the universal apostasy is come to such a height, that error is prevailing, and few siding themselves in an avowed opposition against it; as Elijah chose that time, when the people were halting between two opinions, 1 Kings xviii. 21. And generally all the prophets and servants of Christ, consulted alway the peoples necessity for the timing of their testimonies: and was there ever greater necessity than now, when popery is coming in like a flood? 4. When wicked men are chief in power; as when Haman was promoted. Mordecai would not give him one bow, though all the people of God should be endangered by such a provocation, Esther iii. 2. And when tyrants and usurpers are set up without the Lord's approbation, then they that have the Lord's trumpet should set it to their mouth, Hos. viii. 1, 4. Is not this the case now? 5. When, upon the account of this their testimony, the Lord's people are in greater danger, and enemies design to massacre them, then, if they altogether hold their peace at such a time, there shall enlargement and deliverance, arise another way, but they and their father's house shall be destroyed, who are silent then as Mordecai said to Esther, Esth. iv. 11. And who knows not the cruel designs of the papists now? 6. When iniquity is universally abounding, and hypocrisy among professors, then the servants of the Lord must cry aloud and not spare, Isa. lviii. 1. as the case is this day. 7. When the concern of truth, and the glory of God, is not so illustriously vindicated as he gives us to expect it shall be; then the watchmen must not hold their peace, and they that make mention of the name of the Lord must not keep silence, Isa. lxii.

6, 7. especially when his name and glory is blasphemed, baffled, and affronted, as at this day with a witness. 8. When ministers generally are involved in a course of defection, and do not give faithful warning, but daub over the peoples and their own defections; then the prophets must prophesy against the prophets, Ezek. xiii. 2, 10. &c. As, alas! this day there is a necessity for it. 9. When public worship is interdicted by law, as it was by that edict prohibiting public prayer for 30 days in Daniel's time: they could not interdict all prayer to God; for they could forbid nothing by that law, but that which they might hinder and punish for contraveening; but mental prayer at least could not be so restrained. And certain it is, they intended only such prayer should be discharged as might discover Daniel: but might not the wisdom of Daniel have eluded this interdiction, by praying only secretly or mentally? No, whatever carnal wisdom might dictate, his honesty did oblige him in that case of confession, when he knew the writing was signed, to go into his house, and to open his windows, and to kneel upon his knees three times a day,—as he did aforetime, Dan. vi. 10. Now, what reason can be given for his opening his windows? Was it only to let in the air? or was it to see Jerusalem out at these windows? The temple he could look toward, as well when they were shut. No other reason can be assigned, but that it was necessary then to avouch the testimony for that indispensable duty then interdicted. And is not public preaching indispensable duty too? which is declared criminal, except it be confined to the mode their wicked law tolerates; which we can no more homologate, than omit the duty. 10. When it is an evil time, the evil of sin is incumbent, and the evil of wrath is impendent over a land; then the lion hath roared, who will not fear? The Lord God hath spoken, who can but prophesy? Amos iii. 8. There is no contradiction here to that word, which hath been miserably perverted in our day, to palliate sinful silence of time-servers, Amos v. 13. The prudent shall keep silence in that time, for it is an evil time: whereby we cannot understand a wylie withdrawing our witness

against the time's evils: for there they are commanded to bestir themselves actively, in seeking good, hating the evil, loving the good, and establishing judgment in the gate, ver. 14, 15. but we understand by it a submissive silence to God, without fretting (according to that word, Jer. viii. 14. For the Lord our God hath put us to silence,—and Mic. vii. 9.) Calvin upon the place expounds it, 'The prudent shall be affrighted at the terrible vengeance of God; or they shall be compelled to silence, not willingly (for that were unworthy of men of courage to be silent at such wickedness) but, by the force of tyrants, giving them no leave to speak.' Sure then this is such a time, wherein it is prudence to be silent to God, but not to be silent for God, but to give public witness against the evils of sin abounding, and public warning of the evils of punishment imminent. 11. Then is the season of it, when worldly wisdom thinks it unseasonable, when men cannot endure sound doctrine, but after their own lusts they heap to themselves teachers, having itching ears, and turn away their ears from the truth; then to preach the word, and be instant is indeed in itself seasonable, because profitable and necessary; but it is out of season as to the preachers or hearers external interest, and in the esteem of worldly wiselings, 2 Tim. iv. 2, 3, 4. See Pool's Synops. Critic. in Locum. So in our day, men cannot endure free and faithful dealing against the sins of the times, but would have smooth things and deceits spoken unto them; like those, Isa. xxx. 10. And nothing can be more offensive, than to speak plainly (so as to give every thing its own name) either of the sins of the times, or of the snares of the times, or of the miseries and evils of the times, or of the duties of the times, or of the dangers, and the present crisis of the times: which no faithful minister can forbear. Therefore so much the more is it seasonable, that it is generally thought unseasonable. 12. In a word, whenever the testimony of the church, or any part of it, is opposed and suppressed; then is the season to keep it, and contend for it, and to hold it fast, as our crown, Rev. iii. 10, 11. It must be then a word spoken in due season, and good and necessary (Prov. xv.

23.) at this time, to give a public testimony against all wrongs done to our blessed Lord Jesus, all the encroachments upon his prerogatives, all the invasions of the church's privileges, all the overturnings of our covenanted reformation, and this openly designed introduction of popery and slavery. But now how shall this testimony be given by us conveniently? Or how can it be given at all, at this time, in our circumstances, so as both the matter and manner of it may be a most significant witness bearing to the merit of it, except we go to the fields? Who can witness significantly against popery and tyranny, and all the evils to be spoken against this day, under the protection of a papist and tyrant, as house-meetings under the covert of this toleration are stated? For if these meetings be private and secret, then the testimony is not known; if they be public, then they are exposed to a prey. Now, by all these general hypotheses, it is already in some measure evident, that field meetings are very expedient. But I shall add some particular considerations, to inculcate the same more closely.

In the third place, besides what is said, To clear the lawfulness and necessity of a public testimony against the evils of the present time, some considerations may be added to prove the expediency of this way and manner of giving a testimony, by maintaining held meetings in our present circumstances,

1. The keeping of field meetings now, is not only most convenient for testifying, but a very significant testimony in itself, against this popish toleration; the wickedness of whole spring and original, and of its nature and terms, channel and conveyance, end and design, is shewed in the historical narrative thereof, and cannot be denied by any presbyterian, whose constant principle is that there should be no toleration of popery, idolatry, or heresy, in this reformed and covenanted church. Reason and religion both will conclude, that this is to be witnessed against, by all that will adhere to the cause of reformation overturned hereby, and resolve to

stand in the gap against popery, to be introduced hereby, and that will approve themselves as honest patriots in defending the laws and liberties of the country subverted hereby. And besides, if it be considered with respect to the granter; it is palpable his design is to introduce popery, and advance tyranny, which can be hid from none that accept it, the effectuating whereof hath a necessary and inseparable connexion with the acceptance of the liberty; and is so far from being avertible by the accepters, that it is chiefly promoted by their acceptance, and the design of it is to lay them by from all opposition thereto. If it be considered with relation to the accepters, it is plain it must be taken as it is given, and received as it is conveyed, from its fountain of absolute power, through a channel of an arbitrary law disabling and religion dishonouring toleration, which is always evil; and with consent to the sinful impositions, with which it is tendered; concerning and affecting the doctrine of ministers, that they shall preach nothing which may alienate the subjects from the government: against all which there is no access for a protestation, confident with the improvement of the liberty, for it is granted and accepted on these very terms; that there shall be no protestation; for if there be, that will be found an alienating of the hearts of the subjects from the government, which, by that protestation, will be reflected upon. If it be considered with respect to the addressers for it, who formally say a confederacy with, and congratulate the tolerator for his toleration, and all the mischiefs he is machinating and effectuating thereby: then seeing they have presumptuously taking upon them to send it in the name of all presbyterians, it concerns all honest men, zealous Christians, and faithful ministers of that persuasion and denomination, in honour and conscience, to declare to the world by some public testimony, that they are not consenters to that sinful, shameful, and scandalous conspiracy, nor of the corporation of these flattering addresses who have betrayed the cause; with which all will be interpreted consenters, that are not contradicters. Further this toleration is sinful as is cleared above, Period 6. And to accept of it is

contrary to our solemn covenants and engagements, where we are bound to extirpate popery, preserve the reformation, defend our liberties, and never to accept of a toleration evasive of all these precious interests we are sworn to maintain. And it is heinously scandalous, being, in effect, a succumbing at length, and yielding up the cause, which hath been so long controverted, and so long contended for; at least an appearance of ceding and lying by from contending for the interests of Christ, of condemning our former wrestlings for the same, of purchasing a liberty to ourselves at the rate of burying the testimony in bondage and oblivion; of hardening and confirming open adversaries in their wicked invasions on our religion, laws, and liberties; of being weary of the cross of Christ, that we would fain have ease upon any terms, and of weakening the hands, yea, condemning the practice and peremptoriness of these that are exempted from the benefit, or rather the snare of it, and suffer when others are at ease. It is also attended with many inconveniences; for either such as preach under the covert of it, must forbear declaring some part of the counsel of God, and give no testimony seasonable this day: or else if they do, they will soon be discovered, and made a prey. Hence, seeing there must be a testimony against this toleration, it is certainly most expedient to give it there, where the meeting is without the reach and bounds of it, and interdicted by the same proclamation that tenders it, and where the very gathering in such places is a testimony against it: for to preach in houses constantly and leave the fields, would now be interpreted and homologating the toleration that commands preaching to be restricted; especially when an address is made in name of all that accept the benefit of it, from which odium we could not vindicate ourselves, if we should so make use of it.

2. The keeping of field meetings now is a testimony against that wicked law that discharges them, and interdicts them as criminal; yea, in some respect a case of confession; for if Daniel's case, when public prayer was discharged under pain of death, was a case of confession, as all grant; then

must also our case be, when public preaching is discharged under the same penalty; for it is equivalent to an universal discharge of all public preaching, when the manner of it is discharged, which we can only have with freedom and safety in way of public testimony, which can be none other in our circumstances but in the fields. Again, if the law be wicked that discharges them, as certainly it is, and is demonstrated from what is said already, then it must be sin to obey it; but it were an obeying of it to quit the fields.

3. The keeping of field meetings now is a testimony against tyranny and usurpation, encroaching upon our religion, laws, and liberties, and presuming to restrict and bound the exercise of the ministerial function, and discharge it altogether, except it be modified according to the circumstances prescribed by a wicked law, which cannot be allowed as competent to any man whose authority is not acknowledged, for reasons given in Head 2. Therefore, though there were no more, this is sufficient to call all ministers to give testimony against such an usurpation, by refusing to obey any such act, and preaching where God giveth a call. For otherwise, to submit to it, would be an acknowledging of his magistratical power to discharge these meetings, and to give forth sentences against faithful ministers.

4. The keeping of field meetings now is a testimony for the honour, headship, and princely prerogative of Jesus Christ, which hath been the great word of his patience in Scotland, and by an unparalleled insolence encroached upon by usurpers in our day, and in effect, denied by such as took a new holding for the exercise of their ministry from their usurped power. Now in these meetings, there is a practical declaration of their holding their ministry, and the exercise thereof from Christ alone, without any dependence upon, subordination to, or licence and warrant from his usurping enemies; and that they may and will preach in public, without authority from them. If then it be lawful and expedient to maintain the interests of a king of clay against an usurper; then much more must it be

lawful and expedient, to maintain the quarrel of the King of kings, when wicked men would banish him and his interests out of the kingdom by their tyrannical cruelty, and cruel mercy of a destructive toleration.

5. The keeping of field meetings now is a testimony for the gospel and the ministry thereof; which is always the dearest and nearest privilege of Christians, and in the present circumstances, when our lives and our all are embarked in the same bottom with it, and sought to be destroyed together with it, by a party conspiring against Christ, it is necessary duty to defend both by resisting their unjust violence; especially when religion and the gospel is one and the chief of our fundamental land rights, and the cardinal condition of the established policy, upon which we can only own men for magistrates by the law of the land: and this testimony, by defence of the gospel and of our own lives, cannot be given expediently any where but in the fields. It is also a testimony for the freedom and authority of the gospel ministry, and for their holding their unremoveable relation to the church of Scotland, which is infringed by these tyrannical acts, and maintained by these exercises; which is a privilege to be contended for, above and beyond all other that can be contended for or defended, especially to be maintained against those that have no power or authority to take it away. There will no man quit any of his goods upon a sentence coming from an incompetent judge: and shall ministers or people be hectorred or fooled from such a privilege by them that have no such power.

6. The keeping of field meetings now is a testimony for our covenants, the owning whereof is declared criminal by that same law that discharges these meetings; in which we are sworn to preserve the reformation in doctrine, worship, discipline, and government, and to defend all the church's liberties, and to oppose all their opposites, and endeavour their extirpation: And in the solemn acknowledgment of sins and engagements to duties, we are sworn, Because many have of late laboured to supplant the

liberties of the kirk, to maintain and defend the kirk of Scotland, in all her liberties and privileges, against all who shall oppose and undermine the same, or encroach thereupon, under any pretext whatsoever. Since then, the owning of these meetings and the covenants are both discharged together, and the owning of the covenant does oblige to a public opposition against the dischargers, and an avowed maintenance of the church's privileges, whereof this is, in a manner, the only and chief liberty now left to be maintained, to keep meetings where we may testify against them, without dependence on their toleration; it must follow, that these meetings are to be maintained, which only can be in the fields, with conveniency.

7. To give over these field meetings now, would be an hardening and encouraging of these enemies in their wicked design of banishing all these meetings out of the land; which manifestly would be defeat, by a resolute refusal of all to submit to their discharging of them; and they that do submit, and give them over, do evidently contribute to the effectuating that wicked design, which is of that sort, but further is intended to extirpate all meetings for gospel ordinances, in which there is any testimony against them. To comply therefore with such a forbearance of them at this time, would lay a stone of stumbling before them, to encourage them in these their designs: when they should see their contrivance so universally complied with, wherein they might boast that at length they had prevailed, to put quite away that eye-sore of theirs, field meetings.

8. To give over these field meetings now, were a stumbling to the poor ignorant people; who might think, that now it appears that work was but of men, and so hath come to naught; and would look upon it as an evidence of fainting, and succumbing at last in the matter of the testimony, as being quite overcome; and that indeed all have embraced and accepted this present toleration, and were all alike sleeping under the shade, and eating the fruits of such a bramble.

9. Finally, To give over these field meetings now, would be very scandalous to the posterity, and to strangers, who shall read the history of our church, to find, that as prelacy came in without a joint witness, and the monstrous, blasphemous, and sacrilegious supremacy was erected, without a testimony in its season; so black popery itself, and tyranny, was introduced by a toleration, which laid them all by from a testimony against these; who formerly had valiantly, resolutely, and faithfully contended against all lesser corruptions; but at last, when that came, and stricter prohibitions of all public meetings, but under the covert thereof, were emitted, then all were persuaded to comply with that course. How astonishing would it be to read, that all these contendings, sealed with so much precious blood, should come to such a pitiful period! But I hasten to the next, which is the second positive ground of suffering.

HEAD V.

The Principle of, and Testimony for, Defensive Arms Vindicated.

This truth is of that sort, that can hardly be illustrated by demonstration; not for the darkness thereof, but for its self-evidencing clearness, being scarcely capable of any further elucidation, than what is offered to the rational understanding by its simple proposition. As first principles can hardly be proven because they need no probation, and cannot be made clearer than they are, and such as cannot consent to them, are incapable of conceiving any probation of them; so this truth of self preservation being lawful, because it is congenite with and irradicated in every nature, that hath a self which it can preserve, can scarcely be more illustrated than that it may do so, than that it can do so. And therefore to all who have a true respect to their own, as well as a due concern in the interest of mankind, and zeal for the interest of Christ, it might seem superfluous to make a

doubt or debate of this: were it not that a generation of men is now prevailing, that are as great monsters in nature, as they are malignant in religion, and as great perverters of the law of nature, as they are subverters of municipal laws, and everters of the laws of God: who for owning this principle, as well as using the practice of defensive resistance for self-preservation against tyrannical violence, have set up such monuments of rage and cruelty, in the murder of many innocent people, as was never read nor heard of before. It hath been indeed the practice of all nations in the world, and the greatest of men have maintained this principle in all ages; but the bare asserting the principle, when extorted by severe inquisitions, was never a cause of taking the lives of any, before this was imposed on the poor sufferers in Scotland, to give their judgment, whether or not such appearances for defence (as the tyranny of rulers had forced people to) were rebellion, and a sin against God, which they could not in conscience assert; and therefore, though many that have suffered upon this head, have been as free of the practice of such resistance as any; yet because they would not condemn the principle, they have been criminally processed, arraigned, and condemned to the death. And against this truth they have been observed to have a special kind of indignation, either because the light of it, which cannot be hid, hath some heat with it to scorch them; or because they fear the impression of this in the hearts of people more than others, knowing that they deserve the practical expression of it by the hands of all. But the reason they give why they are so offended at it, is, that they look upon it as the spring of all the errors of presbyterians, and a notion that destroys them; which indeed will be found to have a necessary connexion with many of the truths that they contend for this day, as it hath been the necessary method of defending them. What practices of this kind hath been, and what were the occasions inducing, or rather enforcing to these defensive resistances, here to be vindicated as to the principle of them, is manifested in the historical representation, shewing, that after the whole body of the land was engaged

under the bond of a solemn covenant, several times renewed, to defend religion and liberty; and in special manner the magistrates of all ranks, the supreme whereof was formally admitted to the government upon these terms; he, with his associates, conspiring with the nobles, to involve the whole land in perjury and apostasy, overturned the whole covenanted work of reformation; and thereby not only encroached upon the interest of Christ and the church's privileges, but subverted the fundamental constitution of the kingdom's government, and pressed all to a submission unto, and compliance with that tyranny and apostasy, erected upon the ruins thereof; yet the godly and faithful in the land, sensible of the indispensable obligation of these covenants, resolved to adhere thereunto, and suffered long patiently for adherence unto the same, until being quite wearied by a continued tract of tyrannical oppressions, arbitrarily enacted by wicked laws, and illegally executed against their own laws, and cruelly prosecuted even without all colour of law, in many unheard of barbarities, when there could be no access for, or success in complaining, or getting redress by law, all petitions and remonstrances of grievances being declared seditious and treasonable, and interdicted as such: they were forced to betake themselves to this last remedy of defensive resistance, intending only the preservation of their lives, religion and liberties; which many times hath been blessed with success, and therefore zealously contended for, as an inadmissible privilege, by all well affected to the cause of Christ, and interest of their country, because they found it always countenanced of the Lord; until the cause was betrayed by the treachery, and abandoned by the cowardice of such, as were more loyal for the king's interests, than zealous for Christ's and the country's; for which the Lord in his holy jealousy discountenanced many repeated endeavours of this nature, cutting us off, and putting us to shame, and would not go forth with our armies. But because the duty is not to be measured by, and hath a more fixed rule to be founded upon than providence; therefore the godly did not only maintain the principle in their

confessions and testimonies, but prosecute the practice in carrying arms, and making use of them in the defence of the gospel and of themselves, at field meetings; which were always successfully prosperous, by the power and presence of God. This question is sufficiently discussed, by our famous and learned invincible patrons and champions for this excellent privilege of mankind, the unanswerable authors of *Lex Rex*, the *Apologetical Relation*, *Naphtali*, and *Jus populi vindicatum*. But because it is easy to add to what is found, I shall subjoin my mite; and their arguments being various and voluminously prosecute, and scattered at large through their books, I shall endeavour to collect a compend of them in some order. The two first speak of a defensive war, managed in a parliamentary way: and the two last, of resistance against the abuse of a lawful power, when there is no access to maintain religion and liberty any other way; which does not come up so close to our case, nor is an antithesis to the assertions of our adversaries, who say, that it is no ways lawful, in any case, or upon any pretence whatsoever, to resist the sovereign power of a nation, in whomsoever it be resident, or which way soever it be erected. I shall consider it more complexly and extensively, and plead both for resistance against the abuse of a lawful power, and against the use and usurpation of a tyrannical power, and infer not only the lawfulness of resisting kings, when they abuse their power (as is demonstrate unanswerably by these authors) but the expediency and necessity of the duty of resisting this tyrannical power, whensoever we are in a capacity, if we would not be found treacherous covenant-breakers, and betrayers of the interest of God, and the liberties of the nation, and of our brethren, together with the posterity, into the hands of this popish and implacable enemy, and so bring on us the curse of Meroz, and the curse of our brethren's blood, crying for vengeance on the heads of the shedders thereof, and upon all, who being in case, came not to their rescue; and the curse of posterity, for not transmitting that reformation and liberty, whereof we were by the valour of our forefathers put and left in

possession. I shall not therefore restrict myself to the state of the question, as propounded ordinarily, to wit, Whether or not, when a covenanted king doth really injure, oppress and invade his subjects civil and religious rights, or unavoidably threatens to deprive their dearest and nearest liberties, and sends out his emissaries with armed violence against them; and when all redress to be had, or hope by any address or petition, is rendered void or inaccessible, yea addressing interdicted under severe penalties, as treasonable; then, and in that case, may a community of these subjects defend themselves, and their religion and liberties, by arms, in resisting his bloody emissaries? But, to bring it home to our present case, and answer the laxness of the adversaries position of the uncontrollableness of every one that wears a crown, I shall state it thus: Whether or not is it a necessary duty for a community (whether they have the concurrence of the primores or nobles, or not) to endeavour, in the defence of their lives, religion, laws and liberties, to resist and repress the usurpation and tyranny of prevailing dominators, using or abusing their power for subverting religion, invading the liberties, and overturning the fundamental laws of their country? I hold the affirmative, and shall essay to prove it, by the same arguments that conclude this question, as usually stated; which will more than evince the justifiableness of the sufferings upon this head. In prosecuting of this subject, I shall first premit some concessory considerations to clear it. And secondly, bring reasons to prove it.

First, For clearing of this truth, and taking off mistakes, these concessions may be considered.

1. The ordinance of magistracy, which is of God, is not to be resisted, no, not so much as by disobedience or non obedience, nay, not so much as mentally, by cursing in the heart, Eccles. x. 20. but a person clothed therewith, abusing his power, may be in so far resisted. But tyrants, or magistrates turning tyrants, are not God's ordinance; and there is no hazard

of damnation, for refusing to obey their unjust commands, but rather the hazard of that is in walking willingly after the commandment, when the statutes of Omri are kept. So that what is objected from Eccl. viii. 2-4. "I counsel thee to keep the king's commandment," &c. is answered on Head II. and is to be understood only of the lawful commands of lawful kings.

2. Rebellion is a damnable sin, except where the word is taken in a lax sense, as Israel is said to have rebelled against Rehoboam, and Hezekiah against Sennacherib, which was a good rebellion, and clear duty, being taken there for resistance and revolt. In that sense indeed some of our risings in arms might be called rebellion; for it is lawful to rebel against tyrants. But because the word is usually taken in an evil sense, therefore it would have been offensive to acknowledge that before the inquisitors, except it had been explained. But rebellion against lawful magistrates, is a damnable sin, exemplarily punished in Korah and his company, who rebelled against Moses; and in Sheba and Absalom, who rebelled against David. For to punish the just is not good, nor to strike princes for equity, Prov. xvii. 26. and they that resist shall receive to themselves damnation, Rom. xiii. 2. So that this objection brought from this place, as if the apostle were commanding their subjection without resistance to Nero, and such tyrants; as it is very impertinent, it is fully answered above, Head II. Here it will be sufficient to reply, 1. He is hereby vindicating Christianity from that reproach, of casting off or refusing subjection to magistrates for conscience sake in general. And it is very considerable, what Buchanan says in his book *de juri regni*, that Paul did not write to the kings themselves, because they were not Christians, and therefore the more might be born with from them, though they should not understand the duty of magistrates; but imagine, that there had been some Christian king who had turned tyrant and apostate, 'to the scandal of religion: what would he have written then? Sure if he had been like himself, he would have denied that he should be owned for a king, and would have interdicted all Christians communion with him,

and that they should account him no king, but such as they were to have no fellowship with, according to the law of the gospel.' 2. He speaks of lawful rulers here, not tyrants, but of all such as are defined and qualified here, being powers ordained of God, terrors to evil works, ministers of God for good. Yea, but say prelates, and their malignant adherents, these are only motives of subjection to all powers, not qualifications of the powers. I answer, they are indeed motives, but such as can be extended to none but to these powers that are so qualified. 3. He speaks of lawful powers indefinitely in the plural number, not specifying any kind or degree of them, as if only kings and emperors were here meant. It cannot be proven, that the power of the sword is only in them. Neither was there a plurality of kings or emperors at Rome to be subject to: if he meant the Roman emperor, he would have designed him in the singular number. All the reasons of the text agree to inferior judges also, for they are ordained of God, they are called rulers in scripture, and God's ministers, revengers by office, who judge not for man, but for the Lord: and inferior magistrates also are not to be resisted, when doing their duty, 1 Pet. ii. 13. yet all will grant, when they go beyond their bounds, and turn little tyrants, they may be withstood. 4. He does not speak of Nero, concerning whom it cannot be proven, that at this time he had the sovereign power as the learned Mr. Prin shews: or if he had, that he was a tyrant at this time; and if he meant him at all, it was only as he was obliged to be by right, nor as he was in deed. All men know, and none condemns the fact of the senate, that resisted Nero at length, without transgressing this precept. Yea I should rather think, the senate is the power that the apostle applies this text to, if he applied it to any in particular. 5. The subjection here required, is the same with the honour in the fifth command, whereof this is an exposition, and is opposite to the contraordinateness here condemned. Now, subjection takes in all the duties we owe to magistrates, and resistance all the contraries forbidden; but unlimited obedience is not here required: so neither unlimited subjection.

3. We may allow passive subjection in some cases, even to tyrants, when the Lord lays on that yoke, and in effect says, he will have us to lie under it a while, as he commanded the Jews to be subject to Nebuchadnezzar: of which passage, adduced to prove subjection to tyrants universally, Buchanan, as above, infers, that if all tyrants be to be subjected to, because God by his prophet commanded his people to be subject to one tyrant; then it must be likewise concluded, that all tyrants ought, to be killed, because Ahab's house was commanded to be destroyed by Jehu. But passive subjection, when people are not in capacity to resist, is necessary. I do not say passive obedience, which is a mere chimera, invented in the brains of such sycophants, as would make the world slaves to tyrants. Whosoever suffereth, if he can shun it, is an enemy to his own being: for every natural thing must strive to preserve itself against what annoyeth it; and also he sins against the order of God, who in vain hath ordained so many lawful means for preservation of our being, if we must suffer it to be destroyed, having power to help it.

4. We abhor all war of subjects, professedly declared against a lawful king, as such; all war against lawful authority, founded upon, or designed for maintaining principles inconsistent with government, or against policy and piety; yea, all war without authority. Yet, when all authority of magistrates, supreme and subordinate, is perverted and abused, contrary to the ends thereof, to the oppressing of the people, and overturning of their laws and liberties, people must not suspend their resistance upon the concurrence of men of authority, and forbear the duty in case of necessity, because they have not the peers or nobles to lead them: for if the ground be lawful, the call clear, the necessity cogent, the capacity probable, they that have the law of nature, the law of God, and the fundamental laws of the land on their side, cannot want authority though they may want parliaments to espouse their quarrel. This is cleared above, Head 2. yet here I shall add, 1. The people have this privilege of nature, to defend themselves and their

rights and liberties, as well as peers; and had it, before they erected and constituted peers or nobles. There is no distinction of quality in interests of nature, though there be in civil order: but self defence is not an act of civil order. In such interests, people must not depend upon the priority of their superiors, nor suspend the duties they owe to themselves and their neighbours, upon the manuduction of other mens greatness. The law of nature allowing self-defence, or the defence of our brethren, against unjust violence, addeth no such restriction, that it must only be done by the conduit or concurrence of the nobles or parliaments. 2. The people have as great interest to defend their religion as the peers, and more, because they have more souls to care for than they, who are fewer. And to be violented in their consciences, which are as free to them as to the peers, is as insupportable to them: yea, both are equally concerned to maintain truth, and rescue their brethren suffering for it, which are the chief grounds of war; and if the ground of the defensive war be the same with them and without them, what reason can be given, making their resistance in one case lawful, and not in the other? Both are alike obliged to concur, and both are equally, obnoxious to God's threatened judgments, for suffering religion to be ruined, and not relieving and rescuing innocents. It will be but a poor excuse for people to plead, they had no peers to head them. What if both king and nobles turn enemies to religion, (as they are at this day) shall people do nothing for the defence of it then? Many times the Lord hath begun a work of reformation by foolish things, and hath made the least of the flock to draw them out, Jer. xlix. 2. and l. 45. and did not think fit to begin with nobles, but began it, when powers and peers were in opposition to it; and when he blessed it so at length, as to engage the public representatives to own it, what was done by private persons before, they never condemned. 3. The people are injured without the nobles, therefore they may resist without them, if they be able: for there can be no argument adduced, to make it unlawful to do it with them. 4. It is true the nobles are

obliged beyond others, and have authority more than others to concur; but separately they cannot act as representatives judicially: they have a magistratical power, but limited to their particular precincts where they have interest, and cannot extend it beyond these bounds; and so if they should concur, they are still in the capacity of subjects; for out of a parliamentary capacity they are not representatives. 5. All the power they can have is cumulative, not privative; for the worse condition of a ruler ought not to be by procuring. Why then shall the representatives, betraying their trust, wrong the cause of the people, whose trustees they are? Nay, if it were not lawful for people to defend their religion, lives, and liberties without the concurrence of parliaments, then their case should be worse with them than without them; for they have done it before they had them, and so they had better be without them still. 6. People may defend themselves against the tyranny of a parliament, or primores, or nobles: therefore, they may do it without them; for if it be lawful to resist them, it is lawful to wave them, when they are in a conspiracy with the king against them.

5. We disallow all war without real undeclinable necessity, and great and grievous wrongs sustained: and do not maintain it is to be declared or undertaken upon supposed grounds, or pretended causes: and so the question is impertinently stated by our adversaries, 'Whether or not it be lawful for subjects, or a party of them, when they think themselves injured, or to be in a capacity, to resist or oppose the supreme power of a nation.' For the question is not, if when they think themselves injured they may resist? But when the injuries are real: neither is it every reality of injuries will justify their resistance, but when their dearest and nearest liberties are invaded, especially when such an invasion is made, as threatens ineluctable subversion of them. Next, we do not say, That a party's esteeming themselves in a capacity, or their being really in a capacity, doth make resistance a duty; except, all alike, they have a call as well as a capacity,

which requires real necessity, and a right to the action, and the things contended for to be real and legal rights, really and illegally encroached upon: their capacity gives them only a conveniency to go about the duty, that is, previously lawful upon a moral ground. No man needs to say, Who shall be judge? the magistrate or people? For, 1. All who have eyes in their head may judge whether the sun shine or not; and all who have common sense may judge in this case. For when it comes to a necessity of resistance, it is to be supposed, that the grievances complained of, and sought to be redressed by arms, are not hid, but manifest; it cannot be so with any party only pretending their suffering wrong. 2. There is no need of the formality of a judge, in things evident to nature's eye, as grassant tyranny undermining and overturning religion and liberty must be. Nature, in the acts of necessitated resistance, in such a case, is judge, party, accuser, witness, and all. Neither is it an act of judgment, for people to defend their own: defence is no act of jurisdiction, but a privilege of nature. Hence, these common sayings, all laws permit force to be repelled by force; and the law of nature allows self defence: the defence of life is necessary, and flows from the law of nature. 3. Be judge who will, the tyrant cannot be judge in the case: for, in these tyrannical acts, that force the people to that resistance, he cannot be acknowledged as king, and therefore no judge: for it is supposed, the judge is absent, when he is the party that does the wrong. And he that does the wrong, as such, is inferior to the innocent. 4. Let God be judge, and all the world, taking cognizance of the evidence of their respective manifestos of the state of their cause.

6. We condemn rising to revenge private injuries; whereby the land may be involved in blood for some petty wrongs done to some persons, great or small; and abhor revengeful usurping of the magistrate's sword, to avenge ourselves for personal injuries. As David's killing of Saul would have been, 1 Sam. xxiv. 10. 12. 13, 1 Sam. xxvi. 9, 10. To object which, in this case, were very impertinent: for it would have been an act of offence in a remote

defence: if Saul had been immediately assaulting him, it could not be denied to be lawful: and it would have been an act of private revenge for a personal injury, and a sinful preventing of God's promise of David's succession, by a scandalous assassination. But it is clear, then David was resisting him, and that is enough for us; and he supposes he might descend into battle, and perish, 1 Sam. xxvi. 10. not excluding, but that he might perish in battle against himself resisting him. We are commanded indeed not to resist evil, but whosoever shall smite us on the one cheek, to turn to him the other also, Matth. v. 39. and to recompence to no man evil for evil, Rom. xii. 17. But this doth not condemn self defence, or resisting tyrants violently, endangering our lives, laws, religion, and liberties, but only resistance by way of private revenge and retaliation, and enjoin patience, when the clear call and dispensation do inevitably call unto suffering; but not to give way to all violence and sacrilege, to the subverting of religion and righteousness. These texts do no more condemn private persons retaliating the magistrate, than magistrates retaliating private persons, unless magistrates be exempted from this precept, and consequently be not among Christ's followers: yea, they do no more forbid private persons, to resist the unjust violence of magistrates, than to resist the unjust violence of private persons. That objection from our Lord's reproof of Peter, Matth. xxvi. 52. Put up thy sword, for all they that take the sword, shall perish by the sword, hath no weight here: for this condemns only making use of the sword, either by way of private revenge, or usurping the use of it without authority, (and so condemns all tyrants) which private subjects do not want to defend themselves, their religion and liberty; or using it without necessity, which was not in Peter's case, both because Christ was able to defend himself, and because he was willing to deliver up himself. Pool's Synops. Critic. in Locum. Christ could easily have defended himself, but he would not; and therefore there was no necessity for Peter's rashness; it condemns also a rash precipitating and preventing the call of God to acts of

resistance; but otherwise it is plain, it was not Peter's fault to defend his master, but a necessary duty. The reason, our Lord gives for that inhibition at that time, was twofold; one expressed Matth. xixvi. 52. For they that take the sword, &c. Which do not belong to Peter, as if Peter were hereby threatened; but to those that were coming to take Christ, they usurped the sword of tyrannical violence, and therefore are threatened with destruction, by the sword of the Romans: so is that commination to be understood of antichrist, and the tyrants that serve him, Rev. xiii. 13. He that killeth with the sword must be killed with the sword, which is a terrible word against persecutors. The reason is, John xviii. 11.—The cup which my Father hath given me, shall I not drink? Which clearly refels that objection of Christ's non-resistance. To which it is answered, That suffering was the end of his voluntary susceped humiliation, and his errand to the world, appointed by the Father, and undertaken by himself, which is not our practice: though it be true, that even in his sufferings he left us an ensample that we should follow his steps, 1 Pet. ii. 21. In many things, as he was a martyr, his sufferings were the purest rule and example for us to follow, both for the matter, and frame of spirit, submission, patience, constancy, meekness, &c. but not as he was our sponsor, and after the same manner, for then it were unlawful for us to flee, as well as to resist, because he would not flee at that time.

7. As we are not for rising in arms for trifles of our own things, or small injuries done to ourselves, but in a case of necessity for the preservation of our lives, religion, laws, and liberties, when all that are dear to us, as men and as Christians, are in hazard: so we are not for rising up in arms, to force the magistrates to be of our religion, but to defend our religion against his force. We do not think it the way that Christ hath appointed, to propagate religion by arms: let persecutors and limbs of antichrist take that to them; but we think it a privilege which Christ hath allowed us to defend and preserve our religion by arms: especially, when it hath been established by

the laws of the land, and become a land right, and the dearest and most precious right and interest we have to contend for. It is true faith Christ, John xviii. 36. 'My kingdom is not of this world; if my kingdom were of this world, then would my servants fight that I should not be delivered to the Jews.' But this objection will not conclude, that Christ's kingdom is not to be defended and preserved by resistance, of all that would impiously and sacrilegiously spoil us of it in this world, because it is not of this world: for then all were obliged to suffer it to be run down, by slaves of hell and satan, and antichrist's vassals, papists and malignants: yea, magistrates were not to fight for it, for they are among his servants, if they be Christians. But the good confession he witnesses here before Pilate, is, that he hath a kingdom, which, as it is not in opposition to any cesarean majesty; so it must not be usurped upon by any king of clay, but is specially distinct from all the kingdoms of the world, and subordinate to no earthly power, being of a spiritual nature; whereof this is a demonstration, and sufficient security for earthly kingdoms, that his servants, as such, that is, as Christians, and as ministers, were not appointed by him to propagate it by arms, nor to deliver him their king at that time, because he would not suffer his glorious design of redemption to be any longer retarded: but this doth not say, but though they are not to propagate it as Christians, and as ministers, by carnal weapons, yet they may preserve it with such weapons as men. Hence that old saying may be vindicated, prayers and tears are the arms of the church. I grant they are so, the only best prevailing arms, and without which all others would be ineffectual, and that they (together with preaching and church discipline, &c.) are the only ecclesiastical or spiritual arms of a church as a church; but the members thereof are also men, and as men they may use the same weapons that others do, and ye my flock, the flock of my pasture, are men, saith the Lord, Ezek. xxxiii. 31. Yea, from this I shall take an argument; if it be lawful for private subjects, without the concurrence of parliaments, to resist a tyrant by prayers and tears; then it is lawful also to

resist him by violence, but the former is true, as our adversaries grant by this objection, and I have proved it to be duty to pray against tyrants, Head 2. Ergo—. The connection is founded upon these reasons, 1. This personal resistance by violence, is as consistent with that command, Rom. xiii. 1. 2. 'Let every soul be subject unto the higher powers—whosoever therefore resisteth the power, resisteth the ordinance of God;' as resistance by prayer is with that, 1 Tim. ii. 1, 2. I exhort—that—supplications—be made—for kings, and for all that are in authority. If the prince be good, the one is as unlawful as the other; and a sinful resistance of the ordinance of God (to pray against him) no less than the other (to fight against him.) Therefore when he becomes a tyrant, and destroyer of the Lord's inheritance, and an apostate, as I may not pray for him except conditionally, but against him as an enemy of Christ; so I may also fight against him as such. 2. As adversaries themselves will grant, that resistance by prayers and tears is more powerful and effectual than the other; so the laws of the land make the one treasonable as well as the other; and that deservedly, when the prince is doing his duty; but when he turneth tyrant, neither can justly be condemned.

These things being permitted, I shall come shortly to the purpose, and endeavour to prove this truth, That it is a necessary duty for a community (whether they have the concurrence of the primores, nobles, and representatives or not) to endeavour, in the defence of their religion, lives, laws, and liberties, to resist and repress the usurpation and tyranny of prevailing dominators, using or abusing their power, for subverting religion, invading the liberties, and overturning the fundamental laws of the country. Wherein I shall be but short, because this truth is sufficiently confirmed by all the arguments of the second head; yet I may only hint at many others, and prosecute them in this order. First, I shall produce some arguments from the law of nature and nations. 2dly, From the common practice of all Christian people. 3dly, From express scriptures.

I. The arguments of the first class are very multifarious: I shall reduce them to a few, as compendiously as may be, and only give the strength of them in a syllogistical form, without expatiating, save where the matter requires.

1. The great antagonists of this truth, through the clearness thereof, are forced to assert and grant such particulars, as will by consequence justify this plea. 1. Barclay contra Monarchum, is cited by the Apol. Relat. and Jus Populi asserting 'That if a king will alienate and subject his kingdom, without his subjects consent, or be carried with a hostile mind to the destruction of his people, his kingdom is actually lost, and the people may not only lawfully resist, but also depose him.' Grotius de jure belli, lib. 1. cap. 4. asserts the same, and adds, 'If he but attempt to do so he may be resisted.' The surveyor of Naphtali grants the same, pag. 23, 24. Yea, this hath been granted in open court, by the council of Scotland, That in case of the king's alienating his kingdoms he may be resisted. Hence, 1. If vendition or alienation of kingdoms, or attempts of it, do annul a king's authority, then an alienation of them from Christ, to whom they are devoted by covenant, and selling to antichrist, as is attempted by this king, gives the people a right to resist him; but the former is here conceded: Ergo—(2.) We need say no more to apply the other, that carrying a hostile mind to the destruction of the people does forfeit his kingdom, and gives the people right to resist, than that a papist is always known to carry a hostile mind to the destruction of protestants, and all the designs declared these 27 years have been demonstrative efforts of it. 2. Dr. Ferne acknowledgeth, 'That personal defence is lawful against the sudden, illegal, and inevitable assaults of the king's messengers, or of himself, in so far as to ward off his blows, or hold his hands. As also, he alloweth private persons liberty to deny subsidies and tribute to the prince, when he employeth it to the destruction of the commonwealth.' Hence, (1.) If one may defend himself against the sudden, illegal, and inevitable assaults of the king or his messengers; then may

many men, in defence of their lives and liberties, defend themselves against the surprising massacres, the sudden assaults, and much more the devised and deliberate assaults of a tyrant's bloody emissaries, which are illegal and inevitable, as all their furious and bloody onsets have been; but the former is here allowed: therefore,—3. Bodin de Repub. lib. 2. cap. 5. granteth, 'If a king turn tyrant, he may lawfully, at his subjects request, be invaded, resisted, condemned, or slain by a foreign prince.' Hence, if foreign princes may lawfully help a people oppressed by their own sovereign; then people may resist themselves, if they be able and hold in their pains; but the former is here granted: therefore—The consequence cannot be denied, for foreigners have no more power or authority over another sovereign, than the people have themselves. 4. Arnisaeus de Author. Princip. c. 2. n. 10. granteth, 'That if the prince proceed extrajudicially, without order of law, by violence, every private man hath power to resist.' So the surveyor of Naphtali, as above, 'Grants so much of a woman's violent resisting attempts against the honour of her chastity, and tending to ensnare her in sin, whereof, her non-resistance makes her guilty.' Hence, (1.) If every extrajudicial violence of a prince may be resisted; then also all contrajudicial violence against law or reason must be opposed, for that is more grievous, and all their violences, wherein they do not act as judges, must be resisted, and that is all together, for in none of them they can act as judges; but the former is here granted: therefore—2. If a woman may defend her chastity against the king, lest her non-resistance make her guilty, (oh, if all women had been of this mind, the country would not have been pestered so with the king's bastards); then may a nation, or any part of it, resist a tyrant's attempt upon the honour of their religion, enticing them to fornication with the mother of harlots, lest their non-resistance make them guilty; but the former is here yielded: therefore,—5. That same Arnisaeus, cap. 4. saith, 'Of the former (to wit, he who is called a tyrant in title) it is determined by all without any difficulty, that he may be lawfully repulsed,

or if by force he be gotten into the throne, he may warrantably be thence removed, because he hath not any jot of power which is not illegitimate, and unto which resistance is forbidden for the fear of God and for conscience sake, and therefore he is no further to be looked at than as an enemy.' This is so pat and pertinent to the present possessor of the government, that no words can more particularly apply it. 6. Grotius de jure belli, lib. 1. cap. 4. granteth, the law of not resisting does not bind when the danger is most weighty and certain, 'And we do not plead for it in any other case.' And further he says, 'The law of non-resistance seemeth to have flowed from them, who first combined together into society, and from whom such as did command did derive their power: now, if it had been asked of such, whether they would choose to die, rather than in any case to resist the superior by arms? I know not if they would have yielded thereto, unless with this addition, if they could not be resisted but with the greatest perturbation of the commonwealth, and destruction of many innocents. And afterwards he hath these words, nevertheless I scarce dare condemn every one or the lesser part, which may only be done at utmost extremity, notwithstanding respect is to be had to the common good.' From which we need make no inference, the concession is so large, that it answers our case. 7. The surveyor of Naphtali, in the place above cited, 'Grants legal self-defence against the sovereign, by way of plea in court, for safety of a man's person or estate,—as also is the case of most habited, notour and complete tyranny against law, to the destruction of the body of a people, and of all known legal liberties, and the being of religion according to law.—And in case of his not being in his natural and right wits.'—Hence, (1.) If it be lawful to resist the king by a plea in law, for an estate, (yea the law will allow), by actual force, if he come to take possession of it illegally: then it must be lawful for their lives and estates, liberties and religion, to resist him by force, when the legal resistance is not admitted; but the former is yielded here: therefore.—The reason of the connexion is, the municipal law permits

the one, and the law of nature and nations (which no municipal law can infringe) will warrant the other: he hath no more right to be both judge and party in this case, more than in the other: and he can no more act as a sovereign in this case, than in the other. (2.) If it be lawful to resist habited, notour, and complete tyranny against law, to the destruction of the body of a people, and of all known legal liberties, and the being of religion, according to law: then we desire no more to conclude the duty of resisting this tyranny exercised this 27 years habitually, which the desolation of many hundred families, the banishment of many hundreds to slavery, the rivers of blood, &c. have made notour to all Scotland at least, and the perversion of all the fundamental laws, and all civil and religious liberties, yea the subversion of every remaining model of our religion, as reformed and covenanted to be preserved, in doctrine, worship, discipline and government, and designs to introduce popery and establish arbitrary government, have made complete; but the former is here granted: therefore—3. If in case of his being out of his wits, he should run upon an innocent man to kill him, or attempt to cut his own throat, it were then lawful to resist him, yea, a sin not to do it; then when in a rage, or deliberately, he is seeking to destroy many hundreds of the people of God, he may be resisted; but the former is clear: therefore—. 4. King James the VI. in his remonstancie for the right of kings, against the oration of Cardinal Perron, hath these words, The public laws make it lawful, and free for any private person, to enterprize against an usurper of the kingdom. Then shall it not be duty, to enterprize against a man, who by the laws of the land is not capable of a right to reign, who hath got into the throne by the means of murder, and can pretend no right but that of succession, which I proved to be, none, Head 2. However, we see by these concessions of adversaries, that the absolute subjection they talk of will not hold, nor the prerogative be so uncontroulable in every case, as they would pretend, and that in many cases, the safety of the people hath the supremacy

above it; and that also in these cases the people must be judges, whether they may resist or not.

2. From the law of nature I may argue, 1. If God, the fountain of all power, and author of all right, hath given unto man both the power and the right, of, and reason to manage self-defence, and hath noways interdicted it in his word to be put forth against tyrants; then it is duty to use it against them upon occasion; but the former is true: therefore,—2. If this power and right were restrained in man against the unjust violence of any, it would either be by policy, or grace, or some express prohibition in the word of God; but none of these can be said: therefore.—Policy cannot destroy nature, but is rather cumulative to it; a man entering into a politic incorporation, does not lose the privilege of nature: if one particular nature may defend itself against destroying violence out of society, then must many of these natures combined in society have the same right, and so much the more that their relative duties super-add an obligation of mutual assistance. Grace does not restrain the right of sinless nature, though it restrains corruption: but self-defence is no corruption: Grace makes a man more a man than he was. And nothing can be more dishonourable to the gospel, than that by the law of nature it is lawful to resist tyrants, but we are bound by religion from withstanding their cruelty: the laws of God do not interfere one with another. 3. That law which alloweth comparative re-offending, so as to kill rather than be killed, teacheth resistance: but so the law of nature alloweth, except we be guilty of murder in the culpable omission of self defence. The reason is, because the love of self is nearer and greater, as to temporal life, than the love of our neighbour: that being the measure of this: therefore it obliges rather to kill than be killed, the exigence of necessity so requiring. 4. If nature put no difference between the violence of a tyrant than of another man: then it teaches to resist both alike: but it putteth no difference, but rather aggravates that of a tyrant; being the violence of a man, the injustice of a member of the

commonwealth, and the cruelty of a tyrant. And it were absurd to say, we might defend ourselves from the lesser violence, and not from the greater. 5. If particular nature must yield to the good of universal nature; then must one man, though in greatest power, be resisted, rather than the universal commonwealth suffer hurt: but the former is true; for that dictates the necessity of the distracted father to be bound by his own sons, lest all the family be hurt: Ergo the greatest of men or kings, when destructive to the commonwealth, must be resisted; for he is but one man, and so but particular nature. 6. That which is irrational, and reflects upon Providence, as putting men in a worse condition than brutes, is absurd and contrary to the law of nature: but to say, that the brutes have power to defend themselves by resisting what annoys them, and deny this power to men, is irrational and reflects upon Providence, as putting men in a worse condition than brutes: therefore it is absurd, and contrary to the law of nature.

3. From the institution of government I may argue thus: that power and government which is not of God may be resisted: the tyrants power and government, in overturning laws, subverting religion, bringing in idolatry, oppressing subjects, is not of God: Ergo it may be resisted: the major is clear, because that is only the reason why he is not to be resisted, because the ordinance of God is not to be resisted, Rom. xiii. 2. But they that resist a man destroying all the interests of mankind, overturning laws, subverting religion, &c. do not resist the ordinance of God. And if it were not so, this would tend irremediably to overthrow all policies, and open a gap to all disorder, injustice, and cruelty, and would give as great encouragement to tyrants to do what they list, as thieves would be encouraged, if they knew nobody would resist them or bring them to punishment.

4. From the original constitution of government by men, it may be argued thus: if people at the first erection of government acted rationally, and did not put themselves in a worse case than before, wherein it was lawful to

defend themselves against all injuries, but devolved their rights upon the fiduciary tutorship of such, as should remain still in the rank of men, that can do wrong, who had no power but by their gift, consent, and choice, with whom they associated not to their detriment but for their advantage, and determined the form of their government, and time of its continuance, and in what cases they might recur to their primitive liberty, and settled a succession to have course not *jure hereditario* but *jure et vi legis*, for good ends; then they did not give away their birth-right of self-defence, and power of resistance, which they had before to withstand the violence, injuries, and oppressions of the men they set over them, when they pervert the form and convert it to tyranny, but did retain a power and privilege to resist and revolt from them, and repel their violence when they should do violence to the constitution, and pervert the ends thereof: but the former is true. Ergo—the minor is cleared, Head. 2. And the connexion is confirmed from this; if the estates of a kingdom give the power to a king, it is their own power in the fountain, and if they give it for their own good, they have power to judge when it is used against themselves, and for their evil; and so power to limit and resist the power that they gave.

5. From the way and manner of erecting governors by compact, the necessity whereof is proven Head 2. Many arguments might be deduced; I shall reduce them to this form: If people must propose conditions unto princes, to be by them acquiesced in and submitted unto at their admission to the government, which thereupon becomes the fundamental laws of the government, and securities for the people's rights and liberties, giving a law claim to the people to pursue the prince, in case of failing in the main and principal thing covenanted, as their own covenanted mandatarius who hath no *jus* or authority of his own, but what he hath from them, and no more power but what is contained in the conditions, upon which he undertaketh the government; Then when either an usurper will come under no such conditions, or a tyrant doth break all these conditions, which he once

accepted, and so become *stricto jure* no prince, and the people be *stricto jure* liberated from subjection to him, they may and must defend themselves and their fundamental rights and privileges, religion and laws, and resist the tyranny overturning them: but the former is true, Ergo—The connexion is clear: and the minor is proved Head 2. And at length demonstrated and applied to the government of Charles the Second by *Jus Populi*. cap. 6. See Arg. 4, 5. Head 2.

6. From the nature of magistracy it may be argued thus, That power which is properly neither parental, nor marital, nor masterly and despotic, over the subjects, persons, and goods, but only fiduciary, and by way of trust, is more to be resisted than that which is properly so; but that power which is properly so, that is parental power, and marital, and masterly, may be resisted in many cases; Therefore, that power which is not so properly, but only fiduciary is more to be resisted. That a king's power over his subjects, is neither parental, nor marital, &c. is proven Head 2. And the major needs no probation. The minor is clear by instances, 1. If children may, in case of necessity, resist the fury of their father, seeking to destroy them; then must private subjects resist the rage and tyranny of princes, seeking to destroy them, and what is dearest to them; for there is no stricter obligation moral between king and people, than between parents and children, nor so strict; and between tyrants and people there is none at all; but the former cannot be denied: Therefore,—2. If wives may lawfully defend themselves against the unjust violence of enraged husbands; then must private subjects have power to resist the furious assaults of enraged tyrants, for there is not so great a tie betwixt them and people, as between man and wife; yea there is none at all; but the former is true: Ergo,—3. If servants may defend themselves against their masters; then must private subjects defend themselves against a tyrant or his emissaries; but the former is true: Ergo,—4. If the king's power be only fiduciary, and by way of pawn, which he hath got to keep; then when that power is manifestly abused, to

the hurt of them that intrusted him with it, he ought to be resisted by all whom he undertook to protect; but the former is true: Therefore the latter.

7. From the limited power of princes it may be thus argued: If princes be limited by laws and contracts, and may be resisted by pleas in law, and have no absolute power to do and command what they will, but must be limited both by the laws of God and man, and cannot make what laws they will in prejudice of the people's rights, nor execute the laws made according to their pleasure, nor confer on others a lawless licence to oppress whom they please; then when they turn tyrants, and arrogate a lawless absoluteness, and cross the rules, and transgress the bounds prescribed by God's laws, and man's laws, and make their own lusts a law, and execute the same arbitrarily, they must be resisted by force, when a legal resistance cannot be had, in defence of religion and liberty; but all princes are limited, &c. Therefore,—The minor is proved, Head 2. And the connexion may be thus confirmed in short: That power which is not the ordinance of God may be resisted; but an absolute illimited power, crossing the rules, and transgressing the bounds prescribed by God's law and man's, is not the ordinance of God; Therefore it may be resisted.

8. Further from the rule of government, it may be argued several ways, 1. That power which is contrary to law, evil and tyrannical, can ty none to subjection, but if it oblige to any thing, it ties to resistance; but the power of a king against law, religion, and the interests of the subjects, is a power contrary to law, evil and tyrannical: Therefore,—The major is plain, for wickedness can ty no man, but to resist it; that power which is contrary to law, evil and tyrannical is wickedness. 2. That power, and those acts, which neither king can exercise; nor command, nor others execute, nor any obey, must certainly be resisted: but such is the power and acts that oppress the subjects, and overturn religion and liberty; Therefore—The minor is evident from scriptures condemning oppression and violence, both in them that

command, and in them that execute the same, and also them that obey such wicked commands. The major is clear from reason; both because such power and such acts as cannot be commanded, cannot be executed, cannot be obeyed lawfully, are sinful and wicked: and because it cannot be a magistratical power, for that may always be exercised and executed lawfully. And what a man cannot command, the resisting of that he cannot punish; but acts of oppression against law, religion, and liberty, a man cannot command; Ergo, the resisting of these he cannot punish. 3. That government of administration, which is not subordinate to the law and will of God, who hath appointed it, must be resisted; but that government or administration, which undermines or overturns religion and liberty, is not subordinate to the law and will of God; Therefore—The major is clear; for nothing but what is the ordinance of God, subordinate to his law and will, is irresistible, Rom. xiii. 2. The assumption is undeniable.

9. From the ends of government, which must be acknowledged by all to be the glory of God, and the good of mankind; yea, all that have been either wise or honest, have always held that the safety of the people is the supreme law. The argument may run thus, in short, 1. That doctrine which makes the Holy One to cross his own ends in giving governors, must be absurd and unchristian as well as irrational; but such is the doctrine that makes all kings and tyrants irresistible upon any pretence whatsoever: Ergo—The minor I prove: That doctrine which makes God intending his own glory and the people's good, to give governors both as fathers to preserve, and as murderers to destroy them, must make the Holy One to cross his own ends; for these are contradictory; but the doctrine that makes all kings and tyrants irresistible, &c. is such: for, by office, they are fathers to preserve, and, by office also, they must be murderers, vested with such a power from God, by the first act, if they be irresistible when they do so; seeing every power that is irresistible is the ordinance of God. Hence also when a blessing turns a curse, it is no more the ordinance of God, but to be resisted; but when a

king turns a tyrant, overturning religion and liberty, then a blessing turns a curse: Therefore—2. Means are to be resisted, when they are not useful for, but destructive to the ends they were appointed for; but governors overturning religion and liberty, are means not useful for, but destructive to the ends for which they were appointed; seeing then they are neither for the glory of God, nor the good of mankind: Therefore—3. If all powers and prerogatives of men are only means appointed for, and should vail unto the supreme law of the people's safety, and all laws be subordinate to, and corroborative of this law, and when cross to it are in so far null, and no laws, and all law formalities in competition with it are to be laid aside, and all parliamentary privileges must yield to this, and king and parliament both conspiring have no power against it; and no sovereign power, by virtue of any resignation from the people can comprize any authority to act against it; then it is duty to obey this supreme law, in resisting all powers and prerogatives, all laws, and law formalities, and all conspiracies whatsoever against this supreme law, the safety of the people; but the former is true, as was proven Head 2. Therefore—4. That power which is obliged, and appointed to command and rule justly and religiously, for the good of the people, and is only set over them on these conditions, and for that end, cannot ty them to subjection without resistance, when the power is abused to the destruction of laws, religion and people; but all power is so obliged and appointed: therefore, whensoever it is so abused, it cannot ty people to subjection, but rather oblige them to rejection of it.

10. From the obedience required to government, it may be argued thus. 1. If we may flee from tyrants, then we may resist them; but we may flee from tyrants: therefore we may resist them. The connexion I prove, (1.) If all grounds of justice will warrant the one as well as the other, then if the one be duty, so is the other; but the former is true; for the same justice and equity that warrants declining a tyrant's unjust violence by flight, will warrant resistance when flight will not do it; the same principle of self-

defence, that makes flight duty, when resistance is not possible, will also make resistance duty, when flight is not possible; the same principle of charity to wives and children, that makes flight lawful, when by resistance they cannot avoid tyranny, will make resistance duty, when by flight they cannot evite it; the same principle of conscience to keep religion free, that prompts to flight, when resistance will not save it, will also prompt to resist it, when flight is not practicable. (2.) If to flee from a just power, when in justice we are obnoxious to its sword, be to resist the ordinance of God, and so sin: then to flee from an unjust power, must be also a resisting of the abusing of it, and so duty, for the one is resistance as well as the other; but the difference of the power resisted makes the one lawful; the other not. Again, if royal power may be resisted by interposing seas and miles, why not also by interposing walls and arms? Both is resistance, for against a lawful magistrate that would be resistance. (3.) If a tyrant hath irresistible power to kill and destroy the people, he hath also irresistible power to cite and summon them before him; and if it be unlawful to resist his murders, it must be as unlawful to resist his summons. (4.) For a church or community of Christians, persecuted for religion, to flee with wives and children, strong and weak, old and young, to escape tyrannical violence, and leave the land, were more unlawful than to resist; for what is not possible as a natural means of preservation is not a lawful mean; but this were not a possible mean: neither is it warranted in nature's law, or God's word, for a community or society of Christians, that have God's right and man's law to the land, and the covenanted privileges thereof, to leave the country and cause of Christ, and all in the hands of a tyrant and papist, to set up idolatry upon the ruins of reformation there. A private man may flee, but flight is not warranted of them as of a private single man. 2. If it be duty to disobey, it is duty to resist tyrants, in defence of religion and liberty; but it is duty to disobey them: Therefore—The connection only will be struck at, which is thus strengthened: If subjection be no more pressed in scripture than

obedience, then if non-obedience be duty, non-subjection must be so also, and consequently resistance; but subjection is no more pressed in scripture than obedience; for all commands of subjection to the higher powers, as God's ministers, under pain of damnation, do only respect lawful magistrates, and in lawful things, and do include obedience: and non-obedience to the power so qualified is a resisting of the ordinance of God, as well as non-subjection. If then obedience to magistrates be duty, and non-obedience sin, and obedience to tyrants sin, and non-obedience duty; then by parity of reason, subjection to magistrates is duty, and non-subjection is sin, and also subjection to tyrants is sin, and non-subjection duty.

11. From the resistance allowed in all governments, it may be argued thus; if it be duty to defend our religion, lives and liberties, against an invading army of cut-throat papists, Turks or Tartars, without or against the magistrates warrant; then it must be duty to defend the same against invading home-bred tyrants, except we would subscribe ourselves home-born slaves: but the former is true; therefore—The minor cannot be doubted, because the magistrates power cannot be privative and destructive to defence of our religion, lives and liberties; nor can it take away nature's birth-right to defend these, or make it fare the worse, than if we had no magistrates at all. Now, if we had no magistrates at all, we might defend these against invaders; and whether we have magistrates or not, we are under moral obligations of the law of God to endeavour the defence of these: but this needs not be insisted on. The connexion of the proposition is clear; if princes be more tyrannical in invading religion and liberties themselves, than in suffering others to do it, or hindering them to be opposed: and if their invasion be more tyrannical, hurtful and dangerous, than the invasion of strangers, then if it be duty to resist strangers invading their interests, it is more duty to resist home-bred tyrants invading the same;

but the former is true: therefore the latter. Resisting in the one case is no more resisting the ordinance of God than in the other.

12. From the motives of resistance we may draw this argument, which might be branched out into several, but I shall reduce it to this complex one: if when we are in a capacity, we cannot acquit ourselves in the duties that we owe to our covenanted religion, and our covenanted brethren, and posterity, and ourselves, nor absolve or exoner ourselves from the sin and judgment of tyrants, who overturn religion, oppress our brethren, impose slavery on ourselves, and entail it upon posterity, by a passive subjection, submission to and not opposing these mischiefs; then resistance is necessary: but the former is true: therefore—. The connexion is clear, for there cannot be a medium; if we cannot discharge these duties by subjection, submission, and not opposing, then we must do them by non-subjection, non-submission, and opposing, since they must be done some way. The assumption is thus confirmed. 2. The duties we owe to religion, when it is corrupted, declined from, and overturned, are not only to reform our own hearts and ways, and keep ourselves pure from the corruptions established, and to rebuke and witness against the compliers with the same, and so by work, doing and suffering, keep and contend for the word of our testimony; but further, when, by the constitution of the kingdom, religion is become a fundamental law, and consequently the magistrate, overturning it, is violating and everting the main grounds and ends of the government, and turning grassant and ingrained tyrant, especially when it is not only so authorised and confirmed by law, but corroborated by solemn vows and covenants made and sworn unto God by all ranks of people, to maintain and defend this religion with their lives and fortunes,—and resist all contrary errors and corruptions according to their vocation: and the utmost of that power that God puts in their hands all the days of their lives; as also mutually to defend and assist one another, (as in the national covenant.) And sincerely, really, and constantly endeavour—the preservation of the

reformed religion in doctrine, worship, discipline and government, the extirpation of popery, prelacy, &c.—and to assist and defend all those that enter into the same bond in the maintaining thereof,—(as in the solemn league;) then to defend and maintain that religion, and themselves professing it; when it is sought to be razed; this must be an interest as necessary to be defended, as that of our bodies which is far inferior, and as necessary a duty, as to defend our nation and civil liberties from perpetual slavery, and as preferable thereunto, as Christ's interest is to man's, and as the end of all self-preservation is to the means of it, the preservation of religion being the end of all self-preservation; but this duty cannot be discharged without resistance, in a mere passive subjection and submission: otherwise the same might be discharged in our universal submission to Turks coming to destroy our religion. Certainly this passive way cannot answer the duty of pleading for truth, Isa. lix. 4. seeking the truth, Jer v. 1. being valiant for it, Jer. ix. 3. making up the hedge, standing in the gap, &c. Ezek. xxii. 30. which yet are necessary incumbent duties according to our capacity; therefore we cannot answer the duties we owe to religion in a mere passive way. 2. The duty we owe to our covenanted brethren, is to assist and defend them, and relieve them when oppressed, as we are bound by our covenants, and antecedently by the royal law of Christ, the foundation of all righteousness among men toward each other, Matth. vii. 12. 'All things whatsoever ye would that men should do to you, do ye even so to them.'—We would have them helping us when we are oppressed, so should we do to them when it is in the power of our hands to do it, and not forbear to deliver them for fear the Lord require their blood at our hand, Prov. xxiv. 11, 12. But this cannot be done by mere subjection without resistance. 3. There is no way to free ourselves of the sin and judgment of tyrants, by mere passive subjection: we find in the scriptures, people have been so involved and punished for the sins of tyrants; as the people of Judah for Manasseh, 2 Kings xxi. 11. &c. Jer. xv. 4. whose sins if they had not

been committed, the judgment for them had been prevented, and if the people had hindered them they had not smarted; but being jointly included with their rulers in the same bond of fidelity to God, and made accountable as joint principals with their kings for that debt, by their mutual as well as several engagements to walk in his ways, they were liable to be punished for their rebellion and apostacy, because they did not hinder it. Hence somewhat must be done to free ourselves of their sin, and to escape their judgments: but this can be nothing else but opposition to them by resistance; or else if we make any other opposition, it will make us more a prey to their jury.

II. Secondly, This truth is confirmed from the common practice of the people of God, even under persecution. Whence I shall draw an argument from examples, which, to condemn, were impious, and, to deny, were most impudent. And, for form's sake, it may run thus: What the people of God, under both testaments, have frequently done, in time of persecution, for defending, vindicating, or recovering their religion and liberties, may and ought to be done again in the like circumstances, when these are in the like hazard; but, under both testaments, the people of God frequently in times of persecution have defended, vindicated, or recovered their religion and liberties by defensive arms, resisting the sovereign powers that sought to destroy them: therefore this may and ought to be done again, when these religious, civil and natural privileges, are in the like hazard to be destroyed by the violent encroachments of the sovereign powers. The proposition cannot be denied, except by them that do profess themselves enemies to the people of God, and condemn their most frequently reiterated practices most solemnly and signally owned of God, to the confusion of their enemies, to the conviction of the world that the cause for which they contended was of God, and to the encouragement of all the patrons of such a cause, to hope, that when it is at the lowest it shall have a revival and glorious issue. It is true, sometimes they did not resist, when either they were not in a capacity,

or did not see a call to such an action, but were not extraordinarily spirited of the Lord for passive testimonies under a suffering dispensation: but it is as true, that many times they did resist, when the Lord capacitated, called, and spirited them for active testimonies. And therefore, if their suffering under these circumstances may be imitated, by a people so stated; then also their actions under these other circumstances may be imitated, by a people in the like case. And by an impartial scrutiny it will be found, that the examples of their endeavoured resistance will be little inferior, if not superior in number or importance, to the examples of their submissive sufferings in all ages; which will appear in the probation of the assumption, by adduction of many instances, which I shall only cursorily glean out of that plentiful harvest that histories afford.

1. I need only to glance at that known and famous history of the Maccabees, of undoubted verity, though not of canonical authority. In which according to scripture predictions, we have a notable account of heroic enterprises, achievements, and exploits performed by them that knew their God, and tendered his glory, and their religion and country's liberties, above the common catechrestic notions of uncontrollable irresistible royalty, and absolute implicit loyalty, that have abused the world in all ages. We have there an account of the noble and successful resistance of a party of a few godly and zealous patriots, without the concurrence of civil authority, or countenance of the ephori or nobles of the kingdom, against a king universally acknowledged and subjected unto, that came in peaceably, and obtained the kingdom by flatteries, with whom the greatest part and those of the greatest note took part, and did wickedly against the covenant and nation's interest, and were corrupted by flatteries: yet a few priests, with the concurrence of some common countrymen, did go to arms against him and them; and the Lord did wonderfully assist them for a considerable time; as was foretold by Daniel xi. This fell out under the persecution of Antiochus Epiphanes, and was happily begun by Matthias a

godly priest, and his five sons, who, being commanded under severe certifications to worship according to the then law, and the king's wicked lust, did valiantly resist that abomination, and went to defensive arms: which, while living, he patronized, and, when a dying, did encourage his sons to it by a notable oration, shewing what case his country was in, and what a duty and dignity it was to redeem and deliver it. This was vigorously prosecuted by Judas Maccabeus, expressly for the quarrel of religion and liberty, against that mighty tyrant and all his emissaries.

2. To come to the history of the gospel dispensation: It is true in that time of the primitive persecutions under heathen emperors, this privilege of self-defence was not so much improved or contended for by Christians, who studied more to play the martyrs, than to play the men, because in these circumstances the Lord was pleased to spirit for and call them unto, and accept of their hands passive testimonies; while they were incorporate under a civil relation with the heathens, in subjection to governors who did not by open tyranny, overturn their civil liberties, only did endeavour to eradicate religion, which, at that time, had never become their right by law; while they were scattered and out of capacity, and never could come to a separate formed community by joint concurrence and correspondence, to undertake a declared resistance; while religion was only a propagating through the nations, and the Lord providentially did preclude the least appearance that might be of propagating it by any formed force, being the gospel of peace, designed to save, and not to destroy: yet even then, instances are not wanting of Christians resisting their enemies, and of rescuing their ministers, &c. As they are found on record. 1. How some inhabiting Mareota, with force rescued Dionysius, of Alexandria, out of the hands of such as were carrying him away, about the year 255. 2. How about the year 310, the Arminians waged war against Maximus, who was come against them with an army because of their religion. 3. How about the year 342, the citizens of Athanasius their minister, against Gregorius the intruded

curate and Syrianus the emperor's captain, who came with great force to put him in. 4. How about the year 356, the people of Constantinople did in like manner stand to the defence of Paulus, against Constantius the emperor, and killed his captain Hermogenes; and afterwards, in great multitudes, they opposed the intrusion of the heretic Macedonius. 5. How, when a wicked edict was sent forth to pull down the churches of such as were for the clause of one substance, the christians that maintained that testimony resisted the bands of soldiers, that were procured at the emperor's command by Macedonius, to force the Mantinians to embrace the Arian heresy; but the Christians at Mantinium, kindled with an earnest zeal towards Christian religion, went against the soldiers with chearful minds and valiant courage, and made a great slaughter of them. 6. How, about the year 387, the people of Cesarea did defend Basil their minister. 7. How, for fear of the people, the lieutenant of the emperor Valens durst not execute those 80 priests who had come to supplicate the emperor, and were commanded to be killed by him. 8. How the inhabitant's of mount Nitria espoused Cyril's quarrel, and assaulted the lieutenant, and forced his guards to flee. 9. How, about the year 404, when the emperor had banished Chrysostom, the people flocked together, so that the emperor was necessitated to call him back again from his exile. 10. How the people resisted also the transportation of Ambrose, by the command of Valentinian the emperor; and chused rather to lose their lives, than to suffer their pastor to be taken away by the soldiers. 11. How the Christians, oppressed by Baratanes king of Persia, did flee to the Romans to seek their help. And Theodosius, the emperor, is much praised for the war which he commenced against Chosroes king of Persia, upon this inducement, that the king sought to ruin and extirpate those Christians in his dominions, that would not renounce the gospel.

3. But when religion was once embraced in embodied corporations, and established by law, and became a people's common interest and liberty, in a capacity to defend it with their lives and other liberties, and when it was

propagated through the nations; then the Lord did call for other more active testimonies, in the preservation and defence of it: of which we have many instances in histories. About the year 894, the Bohemian Christians resisted Drahomica their queen, who thought to have destroyed them, and reintroduced paganism. About the year 1420, they maintained a long defensive war against the government, and the pope's legates, under the management of their brave captain Zizca; which was further prosecuted after him by the remaining Thaborites. And again in this century, in the year 1618, they maintained a defensive war against the emperor Ferdinand II. electing and erecting a new king in opposition to him, Frederick Palatine of the Rhine, in which cause many received a crown of martyrdom: and this was also espoused by king James VI, who sent to aid his son in law against the emperor.

4. If we look to the histories of the Waldenses, these constant opposers of antichrist, we will find many instances of their resistance. About the year 1194, very early, while Waldo (from whom they had their name) was alive, they began to defend themselves by arms, after the bloody edict of Alphonsus king of Arragon; an edict so like to many of ours emitted this day, as it would seem our enemies have taken the copy of it: so it were very seemly for the people grieved with such edicts to imitate the copy of the Waldenses their practice, in opposition to them. In the year 1488, they resist by arms Albert de Capitaneis, sent by pope Innocent VIII. in Pragola and Frassaniere, and throughout Piedmont; where, for the most part, the offspring of the old Waldenses had their residence, where, very evidently, through many successions of ages, they shewed themselves to be the true successors of their worthy progenitors, valiant for the truth. That's a famous instance of their resistance, in opposing vigorously the Lord of trinity, in that same Piedmont, at which time they so solemnly asked their ministers, Whether it were not lawful to defend themselves against his violence? Who answered affirmatively. And accordingly they did it with wonderful success

at that time, and many times thereafter. Especially it is notour in the memory of this present age, how in the year 1655, a vigorous defensive war was prosecuted against the duke of Savoy, by their captains Ginavel, Jahier, &c. which was espoused by many protestant princes. And no further gone than the very last year, it is known how they resisted the arms of that tyger, and the French that helped him, and that their simplicity in trusting popish promises was their ruin.

5. If we look over the histories of the Albigenses, we find many instances of their defensive resisting their oppressing superiors. About the year 1200, they defended themselves at Beziers and Carcasson, against the pope's legate and his crossed soldiers, under the conduct first of the earl of Beziers, and then of the earl of Foix, and earl of Remand of Thoulouse, and were helped by the English, who then possessed Guienne bordering upon Thoulouse; which resistance continued several years. Afterwards in the year 1226, they maintained a resistance against the king of France.

6. In Spain, we find the people of Arragon contesting with Alphonsus III. and associating themselves together against him. And they tell Pedro III. their king, that if he would not contain himself within the limits of the laws, they would pursue him by arms, about the year 1283. As also other Spaniards, who rose in arms several times against Pedro the first king of Castile.

7. It was this which brought the Cantons of Helvetia into this state of freedom, wherein they have continued many years: for, about the year 1260, they levied war against their oppressing nobles. And in the year 1308, they joined in covenant to defend themselves against the house of Austria; and in the year 1315, they renewed it at Brunna, in which, at length, the rest of the Cantons joined, and formed themselves into a commonwealth.

8. If we take a glance of the Germans, we will find at the very commencement of the reformation, as soon as they got the name of protestants, they resisted the emperor Charles V. The duke of Saxon, the land grave of Hesse, and the city of Magedburgh, with advice of lawyers, concluded. 'That the laws of the empire permitted resistance of the emperor in some cases, that the times were then so dangerous, that the very force of conscience did leave them to arms, and to make a league to defend themselves though Cesar or any in his name should make war against them—for since he attempteth to root out religion, and subvert our liberties, he giveth us cause enough to resist him with a good conscience: The matter standing as it doth, we may (say they) resist'—as may be shewed both by sacred and profane histories.—And so they undertook and stated the war upon the account of religion and liberty.

9. If we but cast an eye over to the Hollanders, we will find how much they stand obliged to this practice of defensive arms; having thereby recovered both religion and liberty, and established themselves into a flourishing state. We find even in the time of D. de Alva's persecution, they began to defend Haerlem and Valenciennes in Hainault, and went on till under the conduct of William of Nassau prince of Orange, they declared the king of Spain to have fallen from the government of those countries; and so effectually shook off the yoke of Spanish tyranny.

10. If we go to the French Hugonets, we will find many instances among them, and many brave heroes raised up, to maintain the principle, and prosecute the practice thereof, of older and later date. The history of the civil wars of France is stored with their trophies; and the memories of Conde and Coligni will ever be fragrant. There were many resistances there, both before and since the Parisian massacre. It is sad, that the present protestants there are so far degenerate from the spirit of their ancestors.

11. The many practices of the Hungarians, resisting the encroachments of the house of Austria, prove the same. And when Matthias denied the free exercise of religion unto the protestants of Austria, they took up arms in their own defence, and sent a protestation unto the states of Hungary, requiring their assistance, conform to their league. And now this present war there founded upon this plea.

12. The Polonians have oftentimes levied war against their kings: and we are furnished by Clark in his Martyrol. with a late instance of their resistance against the sovereign powers, at Lesna in Poland, in the year 1655.

13. The Danes and Swedes have not been wanting, for their parts, in taking course with their Christierns, kings of that name, whom they resisted and punished. And generally, wherever the reformation was received, we find this principle espoused, and the practice of it prosecuted. Nay, there hath been no nation in the world, but it will be found, they have either resisted or killed tyrants.

14. The most deserving and celebrated monarchs in the world have espoused the quarrel of oppressed subjects. Not only such as Tamerlane, whose observable saying is noted, when he advanced against Bajazet, I go (says he) to chastise his tyranny and to deliver the afflicted people. And Philip and Lewis of France, who assisted the barons of England against king John. And Charles the great, who upon this ground undertook a war against the Lombards in Italy. But even Constantine the great, hath it recorded for his honour, that he employed his power and force against Licinius, upon no other motive but because he banished, tortured, and destroyed those Christians in his dominions, that would not abandon their religion. And queen Elisabeth is commended for assisting the Dutch to maintain their religion by force, when they could not enjoy it by favour.

And king James the VI. gave public aid to the protestants in Germany and Bohemia against the emperor. Against whom also Gustavus Adolphus marched, that he might deliver the oppressed cities from the bondage that Ferdinand had brought them into. Yea, king Charles I. this man's father, pretended at least to help the protestants in France at Ree and Rochel: and though he himself was avowedly resisted by the parliaments of both kingdoms, yet he was forced to declare, in his acts of oblivion and pacification, The Scots late taking up arms against him, in defence of their religion, laws and privileges, to be no treason nor rebellion.—See Apol. Relat. Sect. 11. pag. 149. And though the late Charles II. condemned all the risings of the people of Scotland for defence of religion and liberty, and their lives and privileges which his own tyranny forced them into; yet he justified the present revolt of heathens and Mahometan subjects from the young king of Bantam in Java Major in the East Indies, who, when he got the government in his hands by his father's resignation, killed his subjects, and caused them to be killed without any cause, which was the reason of their revolt from him, and defending the father against the son: this defensive war of these subjects was justified by the said Charles, in his sending ammunition, &c. for relief. These, and many more instances that might be adduced, are sufficient evidences of the righteousness and reason of such resistances, when the greatest of princes have undertaken the patrociny of them.

III. From scripture proofs. I shall but briefly gather some of the many that might be pressed, which being put together, to me seem impregnable. I shall reduce them to these Heads, 1. I shall adduce some practices of the Lord's people, frequently reiterated, never condemned, always approven, confirming this point. 2. Some severe reprehensions for their omission of this duty, in the season thereof. 3. Some promises both of spiriting for the duty, and of countenancing it, when undertaken. 4. Some precepts

commanding such achievements. 5. Some prayers supplicating for them. All which put together will make a strong argument.

First, For practices of this kind, there is nothing more common in scripture history.

1. I shall begin at the first war that is recorded in the world: wherein some lots fell to the godly at first, but afterwards by the virtue and valour of their brethren they were vindicated, and the victory recovered with honour. Lot, and his family living in Sodom, was taken prisoner, by Chedarlaomer and his confederates, Gen. xiv. 12. but Abraham hearing of it, armed his trained his servants, and pursued them to Dan, and rescued him, ver. 14,—19. thereby justifying that rebellion of the cities of the plain, by taking part and vindicating the rebels. Hence, he that may rescue subjects from the violence of any tyrannizing domination by arms, may also rise with these subjects to oppose that violence; but here is an example of that in Abraham:—therefore,

2. After the Lord's people were possessed of Canaan, and forgetting the Lord, did enter into affinity with these interdicted nations, some of them were left to prove Israel, that the generations of the children of Israel might know to teach them war, Judg. iii. 1, 2. And when they did evil in the sight of the Lord, he sold them into the hand of Cushan Rishathaim, king of Mesopotamia, whom they served and were subject to eight years, vers. 8. but when they cried unto the Lord, their rebellion, shaking off that yoke, was successful under the conduct of Othniel, vers. 10. And after a relapse unto the like defection, they became subject to Eglon king of Moab, whom they served eighteen years, vers. 14. but attempting the same remedy by arms, under the conduct of Ehud, they recovered their liberty. And after his death, falling into that sin again, which procured the like misery, they became subject to Jabin king of Canaan, who twenty years mightily

oppressed them, Judg. iv. 1-3. but by the Lord's commandment, under the conduct of Deborah and Barak, they rebelled and prevailed. Whence, if the Lord's people serving a sovereign domineering power, may shake off the yoke of their subjection: then it is duty to defend themselves and resist them, for there is no other way of shaking it off; but these examples prove the former: therefore,—Obj. If any cavil that these were not their own kings, to whom they owed allegiance, but only invading conquerors, whom they might resist. I answer, (1.) Yet they were the sovereign powers for the time; and therefore, if royalists and loyalists grounds hold good, they ought upon no pretence whatsoever to have been resisted: and though possibly they might not be by compact their own kings, yet by conquest they were, as much as that would make them, and by their own consent, when they paid them king's due, viz. tribute, (2.) No more are they our kings, who either intrude themselves into an arbitrary domination over us, (without any terms of a compact upon a pretence of hereditary succession) or being our covenanted kings overturn all the conditions of their compact, and degenerate into tyrants: to such we owe no allegiance, more than Israel did to these dominators. (3.) I retort that old Colewort twice boiled, who should be judge, whether they were their own lawful kings or not? For they acted as kings, and thought themselves their absolute lords, and gave themselves out to be such; and yet we find an approved rebellion against them. Mr. Gee, in his Magistrate's Original, chap. 8. Sect. 4. Pag. 268. improves these instances to the same purpose; and adds, 'Neither (as far as my observation goes) can any immediate or extraordinary command or word for what they so did be pretended to, or pleaded from the text, for many of them, or for any, save Barak or Gideon.'

3. Yet Gideon's example, though he had an extraordinary call, cannot be pretended as unimitable on the matter; for that was ordinary, though the call and manner was extraordinary. He, with the concurrence of a very few men, did break the yoke of subjection to Midian, Judg. vi. and vii. chap. and

having called his brethren out of all mount Ephraim, into a conjunction with him in the pursuit of his victory; when he demanded supply of the princes of Succoth, and of the men of Penuel, and they denied it, he served them as enemies. Whence, if a small party may with God's approbation deliver themselves, and the whole of their community, from the bondage of their oppressing dominators whom they had served several years, and may punish their princes that do not come out to their help, in a concurrence with them, and encouragement of them in that attempt; then must it be duty to defend themselves against their oppressors that rule over them, and all ought to concur in it; or else there would not be justice in punishing them that were defective in this work; but we see the former from this example: therefore,—Obj. If it be said, Gideon, and the rest of the extraordinary raised judges, were magistrates, therefore they might defend and deliver their country, which a private people that are only subjects may not do. I answer. (1.) They were subject to these tyrants that oppressed them who were then the sovereign powers of that time, and yet they shook off their yoke by defensive arms. (2.) They were not then magistrates when they first appeared for their country's defence and deliverance, neither in that did they act as such, but only as captains of rebels, in the esteem of them that had power over them. It is clear, Gideon was not ruler, till that authority was conferred upon him after the deliverance. See Judg. viii. 22, &c. yet he did all this before.

When his bastard Abimelech usurped the government, and was made king by the men of Shechem, at length God sending an evil spirit between him and his accomplices that set him up, not only was he resisted by the treacherous Schechemites, (which was their brand and bane in the righteous judgment of God), for their aiding him at first and killing his brethren, Judg. ix. 23, 24, &c. but also he was opposed by others of the men of Israel, as at Thebez, where he was slain by a woman, vers. 50. at the end. Whence, if an usurping tyrant, acknowledged as king by the generality, may be disowned

by the godly, and threatened with God's vengeance to consume both him and his accomplices that comply with him; and if he may be opposed and resisted, not only by those that set him up, but also by others that were in subjection to him, and at length be killed by them, without resentment of the rest of the nation; then must it be duty for a people, who had no hand in the erection of such a dominator, to defend themselves against his force; but the former is true by this example: therefore——.

5. When Israel fell under the tyranny of Ammon, oppressing them eighteen years, they did, by resisting these supreme powers, shake off their yoke, under the conduct of Jephthah. And being challenged sharply by the men of Ephraim, who it seems claimed the prerogative of making war, and therefore came to revenge and reduce Jephthah and his company to order, casting herein belike a copy to our regular loyalists, who are very tenacious of this plea of the Ephraimites, that, at least, without the nobles of the kingdom, no war is to be made; yet we find Jephthah did not much regard it, but stoutly defended himself, and slew of them 42,000 men, by their Shibboleth, Judg. xii. If people then, when questioned for defending themselves, by them that claim a superiority over them, and should deliver them, may defend themselves both without them and against them; then it is a people's duty and privilege: but the former is true by this example.

6. They were then made subject to the Philistines 46 years, whom the men of Judah acknowledged for their rulers: yet Samson, that rackle-handed saint, never ceased from pelting them upon all occasions: and when challenged for it by the men of Judah, saying, 'Knowest thou not that the Philistines are rulers over us? What is that, that thou hast done?' Samson objects nothing against their being rulers; but notwithstanding prosecutes his purpose of vindicating himself in defence of his country, as they did unto me, says he, so have I done unto them, Judg. xv. 11. Hence, If saints may avenge themselves upon them whom the country calls rulers, and when

enabled by God, may do to them as they did to them; then must it be a duty for them to defend themselves against them; but the antecedent is true by this example.

7. When Saul, in the pursuit of the Philistines, had charged the people with a foolish oath (like unto many of the ensnaring oaths that monarchs use to impose upon people) not to eat any food until the evening, Jonathan his son tasted but a little honey, and lo he must die; which Saul confirmed with another peremptory oath, God do so to him, and more also, if he should not die. Whereupon the people, as resolute on the other hand to save him, resisted the rage of that ruler, and swore as peremptorily, that not one hair of his head should fall to the ground. So the people rescued Jonathan that he died not, 1 Sam. xiv. 44, 45. Hence, If people may covenant by oath to resist the commands, and rescue a man from a tyrant's cruelty, then it is duty to defend themselves against him: the antecedent is true here.

8. Afterwards, when the manner of the king, presaged by Samuel, was verified in Saul's degeneration into many abuses of government, this privilege of resistance was not wholly mancipated, but maintained by David's defensive appearance with his little army, he took Goliath's sword, not for ornament, or only to fright Saul, but to defend himself with it, and was captain first to four hundred men, 1 Sam. xxii. 2. had a mind to keep out Keilah against him with six hundred men, 1 Sam. xxiii. 13. and afterwards a great host came to him to Ziklag, while he kept himself close because of Saul the son of Kish, 1 Chron. xii. 1. throughout, where they left Saul, and came and helped David against him. This is proved at length by Lex Rex. quest. 32. p. 340.

9. The city Abel, whether Sheba the traitor had fled, did well to resist Joab the king's general, coming to destroy a whole city for a traitor's sake, and not offering peace to it (according to the law, Deut. xx. 10.) and

defended themselves by gates and walls, notwithstanding he had a commission from the king, 2 Sam. xx. and after the capitulating, they are never challenged for rebellion.

10. The ten tribes revolted from the house of David, when Rehoboam claimed an absolute power, and would not acquiesce to the people's just conditions, 1 Kings xii. 2 Chron. x. which is before justified, Head 2. Hence, if it be lawful for a part of the people to shake off the king, refuse subjection to him, and set up a new one, when he but resolves to play the tyrant; then it must be duty to resist his violence, when he is tyrannizing; but the antecedent is clear from this example. This is vindicated at more length by Jus pop. ch. 3. p. 52.

11. The example of Elisha the prophet is considerable, 2 Kings vi. 32. "Elisha sat in his house, (and the elders sat with him) and the king sent a man before him; but ere the messenger came to him, he said to the elders, See how this son of a murderer hath sent to take away mine head; look when the messenger cometh, shut the door, and hold him fast at the door: is not the sound of his master's feet behind him?" Here was violent resistance resolved both against the man and the master, though the king of the land for the time. And this calling him the son of a murderer, and resisting him, is no more extraordinary (though it was an extraordinary man's act) than it is for a plaintiff to libel a true crime against a wicked person, and for an oppressed man to close the door upon a murderer, Lex Rex, quest. 32. p. 346. Hence, if a king or his messenger coming to use unjust violence, against an innocent subject, be no more to be regarded than a murderer's emissary, but may be resisted by that innocent subject; then must a community of such innocent subjects defend themselves against a tyrant or his emissaries, coming against them on such a wicked errand; the antecedent is here clear.

12. The city Libnah revolted from under Jehoram's tyranny, 2 Chron. xxi. 10. p. Martyr on the place saith, They revolted, because he endeavoured to compel them to idolatry. This is justified above, Head 2. Hence, if it be lawful for a part of the people to revolt from a tyrannical prince, making defection from the true religion; then it is duty to defend themselves against his force: the antecedent is here plain.

13. When Athaliah usurped the monarchy, Jehoiada the priest strengthened himself, and made a covenant with the captains, &c. to put her down, and set up Joash, 2 Kings xi. 2 Chron. xxiii. and when she came and cried, treason, treason, they regarded it not, but commanded to kill her and all that help her. Whence, if those that are not kings may lawfully kill an usurper, and all her helpers, then may a people resist them; but Jehoiada, though no magistrate, did it.

14. The repressing and punishing Amaziah the son of Joash is an undeniable instance, vindicated by Mr. Knox. See above, per. 3. p. 54. After the time that he turned away from the following the Lord, the people made a conspiracy against him in Jerusalem, and he fled to Lachish, but they sent and slew him there, 1 Kings xiv. 19. 2 Chron. xxv. 27. Hence, a fortiori, if people may conspire and concur in executing judgment upon their king turning idolater and tyrant, then much more must they defend themselves against his violence.

15. The same power, of people's resisting princes, was exemplified in Uzziah or Azariah, when he would needs be supreme in things sacred as well as civil, 2 Kings xv. 2 Chron. xxvi. Fourscore priests, that were valiant men, withstood him, and thrust him out of the temple, they troubled him, saith Vatablus, they expelled him, saith Ar. Mont. vid. Pool's Synopsis. in Loc. See this vindicated by Mr. Knox. Per. 3. pag. 48, 49. above. Hence, if private subjects may, by force, resist and hinder the king from transgressing

the law, then must they resist him when forcing them to transgress the law of God.

16. After the return from the Babylonish captivity, when the Jews were setting about the work of building the temple, which they would do by themselves, and not admit of any association with malignants (upon their sinister misinformation, and sycophantic accusation, that they were building the rebellious and bad city, and would refuse to pay the king toll, tribute, and custom) they were straitly discharged by Artaxerxes to proceed in their work, and the inhibition was execute by force and power, Ezra iv. But by the encouragement of the prophets Haggai and Zechariah, countermanding the king's decree, they would not be hindered, the eye of their God being upon them, though Tatnai the governor of those parts, Shetharboznai, and their companions, would have boasted them from it, with the usual arguments of malignants, who hath commanded you to do so and so? Ezra v. 3.—5. And yet this was before the decree of Darius was obtained in their favours, Ezra vi. Hence, if people may prosecute a duty without and against a king's command, and before an allowance by law can be obtained; then may a people resist their commands and force used to execute them: but here the antecedent is manifest.

17. When Nehemiah came to Jerusalem, and invited the Jews to build up the walls of the city, they strengthened their hands for that good work against very much opposition: and when challenged by Sanballat the Horonite, Tobiah the servant, the Ammonite, and Gesham the Arabian. Great king's-men all of them, who despised and boasted them, What is this that ye do? Will ye rebel against the king? Say they. He would not plead authority, though, in the general, he had the king's warrant for it; yet he would not give them any other satisfaction, than to intimate, whether they had that or not, having the call of God to the work, they would go on in the duty, and God would prosper them against their opposition, Neh. ii. 19, 20.

and accordingly, notwithstanding of all scoffs, and plots, and conspiracies, to hinder the building, yet they went on, and were encouraged to remember the Lord, and fight for their brethren, &c. and to build with weapons in their hands, Neh. iv. and brought it to an end, notwithstanding of all their practices to fright them from it, chap. vi. Hence, If neither challenges of rebellion, nor practices of malignant enemies who pretend authority, nor any discouragements whatsoever, should deter people from a duty which they have a call and capacity from God to prosecute, and if they may promote it against all opposition by defensive arms; then, when a people are oppressed and treated as rebels, for a necessary duty, they may and must defend themselves, and maintain their duty, notwithstanding of all pretences of authority against them.

18. I shall add one instance more, which is vindicated by Jus Populi, from the history of Esther. Because Mordecai refused to do homage to a hangman, (Haman I should say) a cruel edict was procured from Ahasuerus to destroy all the Jews, written and sealed with the king's ring, according to the laws of the Medes and Persians, becoming a law irrevocable and irreversible, Esther iii. 12, 13. Yet the Lord's providence, always propitious to his people, brought it about so, that Haman being hanged, and Mordecai advanced, the Jews were called and capacitated, as well as necessitated, to resist that armed authority that decreed to massacre them, and that by the king's own allowance, Esther ix. When his former decree drew near to be put in execution, in the day that the enemies of the Jews hoped to have power over them, it was turned to the contrary, that no man could withstand them. Here they had the allowance of authority to resist authority: and this was not a gift of a new right by that grant, which they had not before; only it was corroborative of the irradical right to defend themselves, which is not the donative of princes, and which they had power to exercise and use without this, though may be not the same capacity; for the king's warrant could not make it lawful in point of conscience; if it had not been so before.

Hence, if people may have the allowance of well advised authority, to resist the decree and force of unlawful authority; then may a people maintain right authority, in defending themselves against the injuries of pretended authority; but by this instance we see, the Jews had Ahasuerus's allowance to resist the decree and force of his own ill advised authority, though irreversible. And hence, we see, that distinction, in this point, is not groundless, between resisting the authority of supreme powers, and the abuses of the same.

2dly, We have in the scripture both tacit and express reproofs, for lying by from this duty in the season thereof,

1. In Jacob's swan song or prophetic testament, wherein he foretels what should be the fate and future condition of each of the tribes, and what should be remarked in their carriage influencing their after lot in their generations, for which they should be commended or discommended, approved or reprov'd; coming to Issachar, he prophetically exprobrates his future ass like stupidity, that indulging himself in his lazy ease, and lukewarm security, he should be mancipate himself and his interests into a servile subjection unto his oppressors impositions, even when he should be in a capacity to shake them off, and free himself, by resistance, Gen. xlix. 14, 15. "Issachar is a strong ass couching down between two burdens." This is set down by the Holy Ghost, as the brand and bane, not of the person of Issachar, Jacob's son, but of the tribe, to be inured upon them, when they should be in such a condition by their own silliness: Hence I argue, If the Holy Ghost exprobrate a people for their stupid subjection to prevailing tyranny, when they do not improve their ability, capacity, and right to maintain and defend their liberties and privileges, from all unjust invasion; but the former is true here: therefore also the later.

2. In Deborah's song after their victorious resistance, the people are severely upbraided for not concurring in that expedition, Jud. v. 16, 17, 23. and Meroz is particularly cursed for not coming to the help of the Lord, to the help of the Lord against the mighty. This is recorded as a resting reproof, against all that will withdraw their helping hand from the Lord's people, when necessitate to appear in defensive arms for the preservation of their lives and liberties. On the other hand, Zebulon and Naphthali are commended for jeoparding their lives in the high places of the fields, and are approved in that practice of fighting against the king of Canaan, that then ruled over them, ver. 18, 19. Hence, if people be reproved and cursed for staying at home to look to their own interests, when others jeopard their lives for their countries defence and freedom from tyranny and oppression; then this implies it is a duty to concur in so venturing; but here, Reuben, Dan, Asher, and Meroz, are reproved and cursed for staying at home, when Zebulon and Naphthali jeoparded their lives, &c. Ergo.

3dly, We have in the scriptures many promises of the Lord's approving and countenancing the duty of defensive arms, even against their oppressing rulers.

1. In that forecited testament of the patriarch Jacob, in that part of it which concerns God, he prophesies that tribe shall have a lot in the world answering his name, and be engaged in many conflicts with oppressing dominators, who at first should prevail over him, but at length God should so bless his endeavours, to free himself from their oppressions, that he should overcome. There is an excellent elegancy in the original, answering to the etymology of the name of Gad, which signifies a troop, reading thus in the Hebrew, Gad, a troop shall overtroop him, but he shall overtroop them at the last, Gen. xlix. 19. And Moses homologating the same testimony, in his blessing the tribes before his death, shows, that he should make a very forcible and successful resistance, and should execute the

justice of the Lord over his oppressors, Deut. xxxiii. 20, 21, Wherein is implied a promise of resistance to be made against oppressing conquerors, who should acquire the supreme rule over them for a time: and the success of that resistance for overcoming, necessarily supposes resistance. Hence, where there is a promise of success at last to a people's conflicts against prevailing tyranny, there is implied an approbation of the duty, and also a promise of its performance wrapped up in that promise; but here is a promise, &c. Ergo—

2. In that threatning against tyrants, shewing how they shall be thrust away and burnt up with fire, there is couched a promise, and also an implied precept of resisting them, 2 Sam. xxiii. 6, "The sons of Belial shall be all of them as thorns thrust away—with hands fenced with iron," &c. which clearly implies resistance, and more than that, rejection and repression. Hence, If it be threatned as a curse against rulers of Belial, and promised as a blessing, that they shall be so roughly handled; then this implies a duty to resist them, who cannot be otherways taken; but here this is threatned, &c.

3. When the Lord shall have mercy on Jacob, and chuse Israel, it is promised, Isa. xiv. 2, 3. "That they shall take them captives, whose captives they were. And they shall rule over their oppressors." This necessarily implies and infers a promise of resistance against these oppressing rulers, in the time of their domineering, as well as revenge after their yoke should be broken; and something of men's actions, as well as God's judgment in breaking that yoke; for they could not take them captives, nor rule over them, except first they had resisted them whose captives they were: there is resisting of the supreme power, subjection whereunto was the bondage wherein they were made to serve. Hence, If it be promised, that a captivated and subjugated people shall break the yoke, and free themselves of the bondage of them that had them in subjection; then it is promised in that

case, they must resist the supreme powers; for such were they whose captives they were: the antecedent is here expressed.

4. There are promises that the Lord's people, when those that rule over them are incensed against the holy covenant, and when many of their brethren that should concur with them shall be frightened from their duty by fear, or corrupted with flattery, shall be made strong to exploits, though in such enterprizes they may want success for some time, "and fall by the sword and flame, and by captivity, and spoil many days," Dan. xi. 30,—34. Which is very near parallel to the case of the covenanted people of Scotland, their appearing in defensive exploits against their covenant-breaking rulers these many years bygone. This was very eminently fulfilled in the history of the Maccabees, before rehearsed. Hence, If it be promised, that a people shall be strong to do exploits, in resisting the arms of their rulers, opposing their covenant, and overturning their religion and liberties; then it must be approved that such resistance is lawful, even though it want success; but this is here promised. To the same purpose it is promised, that after the Lord's people have been long kept as prisoners under the bondage of oppressing rulers, they shall by a vigorous resistance, be saved from their tyranny, Zech. ix. 13,—17. "When the Lord shall bend Judah for him, and raise up Zion's sons against the sons of Greece."—So it was in their resistances and victories against the successors of Alexander, who had the rule over them for a time. And so it may be again, when the Lord shall so bend his people for him. Hence, If the Lord promises to fit and spirit his people for action against their oppressing rulers, and to crown their achievements, when so fitted and spirited, with glorious success; then it is their duty, and also their honour to resist them; but here that is plainly promised.

5. There are promises of the Lord's making use of his people, and strengthening them to break in pieces the power of his and their enemies,

and his defending, and maintaining them against all their power and projects, when they think most to prevail over them. As is promised in the threatned catastrophe of the Babylonian usurpation, Jer. li. 20,—24. —"Thou art (says he to Israel, of whom he speaks as the rod of his inheritance in the preceding verse) my battle ax and weapons of war, and with thee will I break in pieces," &c. Whensoever this hath been, or shall be accomplished, (as it may relate to the vengeance to be execute upon the New Testament Babylon) it clearly implies their breaking in pieces powers that were supreme over them. Hence, If the Lord will make use of his people's vindictive arms against Babylon ruling over them, then he will justify their defensive arms against Babylon oppressing them. Here it is promised, &c. So Micah iv. 11. to the end. Many nations shall be gathered to defile and look upon Zion, and then the Lord shall give an allowance and commission to his people to arise and thresh, &c. What time the accomplishment of this is referred to, is not my concern to enquire: it seems to look to the New Testament times, wherein the Lord's people shall be first in great straits, and then enlarged; but to restrict it to the spiritual conquest over the nations by the ministry of the word, (though I will not deny but that may be included) seems too great a straitning of the scope, and not so apposite to the expressions, which certainly seem to import some forcible action of men, and more than the peaceable propagation of the gospel. It is usually referred to the latter days of that dispensation, when both the Jewish and Gentile Zion shall be totally and finally delivered from Babylon, or antichristian tyranny; before, or about which period, the enemies of Christ and of his people shall attempt their utmost power to destroy the church, groaning under their bondage; but when they are all well mustered in a general rendezvous, the Lord's people shall have a gallant game at the chace. But whensoever the time be of fulfilling the promise, it ensures to the people of God the success of their defensive arms against them that pretended a domination over them. And it looks to a time, when they should

have no rulers of their own, but them under whose subjection they had been long groaning, and now brought to a very low pass; yet here they should not only resist, but thresh them. Hence, If in the latter days the people of God are to be honoured, and acted forth with such a spirit and capacity to thresh and beat down these powers under which they have been long groaning; then, when the Lord puts them in such capacity to attempt it, they should be ambitious of such an honour; but here it is promised, &c.

The same may be inferred from the prophet's vision, Zech. i. 19, 20. He sees four carpenters resisting the four horns; the horns scattered Judah, so that no man did lift up his head; but the carpenters came to fray them, to cast out the horns of the Gentiles, which lifted up their horn over the land of Judah. These horns had the supreme power over Judah for a time, while they were in no capacity to resist them; but as soon as the Lord furnishes them with capacity and instruments impowered to resist them, they do it effectually. The carpenters are certainly the Lord's people themselves; for here they are opposite to the Gentiles, which all were except the Lord's people. Hence, if the Lord promises, when reconciled to his people, to furnish them with instruments to fray and scatter the power of tyrants, who have long borne down their head; then when they are so furnished, they may resist them: but the Lord here promises that, &c. This is more plainly promised also, Zech. x. 5. &c. "Then they shall be as mighty men which shall tread down their enemies,—And the pride of Assyria shall be brought down"—Hence, if the Lord, when he shall have mercy on his people, will bless their resistance so, as to bring down the pride and sceptre of them that had the power over them; then, in hope of such a blessing, they may attempt such a duty, when the call is clear.

Fourthly, We have also precepts, from whence we may consequentially conclude the approved duty of defensive arms against oppressing rulers.

1. The children of Israel are commanded to vex the Midianites, and smite them, for saith the Lord, they vex you with their wives, Numb. xxv. 17, 18. And to avenge themselves, Numb. xxx. 2. Which did not only oblige the people, when they had Moses for their magistrate to lead them forth; but in the days of Gideon, when they were under their rule whom they were to avenge themselves upon. Hence, if people must vex their enemies, and avenge themselves of them, by war offensive, when ensnared by their craftiness; much more may they resist them by a war defensive, when invaded by their cruelty.

2. There is a command to punish every city or party making apostacy unto idolatry, Deut. xiii. 12, 15. Upon this moral ground was Israel's war against Benjamin, Judg. xx. And their bringing Amaziah unto condign punishment; which is vindicated by Mr. Knox, See above Per. 3. pag. 52, 53. Hence, if people are to bring to condign punishment idolatrous apostates seeking to entice them; then much more ought they to resist such tyrants seeking to enforce them to such apostacy.

3. There is a precept, not only to defend, but also to rescue and deliver our brethren when in hazard, Prov. xxiv. 11, 12. We must not forbear to deliver them, when drawn to death: which will at least infer the duty of assisting them when forced to defend themselves; for, if it be a duty to rescue them from any prevailing power that would take their lives unjustly, much more is it duty to defend them and ourselves both against their murdering violence; but it is duty to rescue them, &c.

4. All that would learn to do well, are commanded, Isa. i. 17. to relieve the oppressed; which is not spoken to magistrates only, many of whom were the oppressors, the princes were rebellious, and companions of thieves, ver. 23, So also, Isa. lviii. 6. It is required of a people that would be accepted of God in their humiliations; to let the oppressed go free, and to break every

yoke. Hence, if it be duty to relieve the oppressed by breaking the yoke of them that oppress them; then it is duty to defend them and ourselves, both against them that would oppress us more; but the former is here commanded: Therefore, &c.

5. There is a command for a spoiled oppressed people, when the Lord is reconciled to them, and sympathizes with them, to deliver themselves from their rulers servitude, Zech. ii. 7. 'Deliver thyself O Zion, which dwellest with the daughter of Babylon.' Which comprehends all the ordinary active means of people's delivering themselves, from oppressing powers that rule over them: and consequently defensive resistance; for it cannot only be restricted to flight included (ver. 6.) the promise annexed (ver. 9.) imports more, when they that spoiled them shall be a spoil to their servants: whereby it insinuated, they were so to deliver themselves, as not only to free themselves from their servitude, but to bring their masters under subjection. Hence, if the Lord's people, being subject to tyrants ruling over them for the time, may deliver themselves from their oppressing masters, then may they resist them, and defend themselves: The antecedent is express here in the command.

6. There is a command given by Christ to his disciples, to provide themselves with defensive weapons, necessary for their defence against them that would pursue after their lives; as well as with other things necessary for their sustenance, Luke xxii. 36.—'Now he that hath a purse let him take it, and likewise his scrip, and he that hath no sword, let him sell his garment and buy one.' Before, when he had sent them out upon an extraordinary commission, as it were to serve their apprenticeship in the work of the gospel, he did not allow them such solicitous care to provide themselves, because he would give them a proof of his sufficiency to sustain and protect them, without the ordinary means of their own diligence. But now when he was about to withdraw his bodily presence from them,

and would warn them of the discouragements they were to expect in the prosecutions of their more continued work, which they had a commission for not to be retracted, he would not have them to expect provision and protection by a course of miracles, but to provide themselves with means for their sustenance, and also for their defence against the violence of men: which chiefly was to be expected from their rulers, who would persecute them under the notion of transgressors of the laws of their kingdoms and countries. He was not indeed to make much use of them, at that time, for himself; who was then to finish the work of redemption by suffering: only, that what was written might be accomplished in him, he would make so much use of them, as voluntarily to be involved under the censure and reproach of rebellion, being taken among men in arms, that he might be reckoned among transgressors, ver. 37. Therefore, when they told him, they had two swords, he said, 'It is enough,' ver. 38. I need not stand upon that impertinency of a conceit, that these were spiritual swords; which deserve no confutation, being fitter to be put among quakers delirious distractions, than to be numbered among the notions of men of understanding: for then the purse and the scrip must be spiritual too; and these spiritual things must be bought by selling of garments; and yet they would be such spiritual tools, as would a sharp edge for cutting off of carnal ears, and such as would be both visible and sensible; and two of them would be enough. They were then ordinary material swords, which the Lord commands his followers to provide themselves with for their defence as men, in cases of necessity, and, when they should be in a capacity to improve them against their murdering persecutors, against whom he gives his royal grant of resistance; that the world may know his subjects, though they have more privileges spiritual, yet they have no less human privileges than other men: albeit, at that period of his determined suffering, he would not allow the present use of them. Hence, if the Lord's people should provide themselves with arms of defence, though they should be reputed transgressors for so

doing; then may they use these arms of defence against them that persecute them under that notion; but the antecedent is clear: Therefore, &c.

Fifthly, We may infer the same truth from some of the prayers of the saints, wherein they glory in the confident expectation of the Lord's strengthening them, and favouring and approving their helpers, and in the experience of the Lord assisting them, while in the mean time constitute in a formed appearance of resistance. I shall only hint these,

1. In that prayer, Psal. xliv. 5. They glory, in hope, that through the Lord they will push down their enemies, &c. yet now they were under the power of tyrannizing dominators which they were resisting: for, ver. 9. they complain they were put to shame, because the Lord went not forth with their armies, and they which hated them spoiled them,—And for his sake were killed all day long: hence, they plead, That the Lord would awake,—and not forget their affliction and oppression. Whereby it is evident they were under the yoke of tyrannizing powers, and resisting according to their might. Which, by whomsoever, or upon what occasion soever the Psalm was compiled, shews, that no want of success in resisting tyrants, can mar the saints faith in pleading for the Lord's assistance and approbation of the duty. Hence, they that, in faith, may pray for, and boast of their treading down their tyrannizing powers that rise up against them, may also, in faith, attempt the resisting of them in their own defence; but here the Lord's people did the former.

2. We find David under Saul's persecution, while he had a party of 600 men to defend himself against his rage, in the psalms which he composed upon that occasion, not only complaining of oppressors, but encouraging himself in the faith that God would be with them that assisted him, in his essay of defending himself, and imprecating destruction to Saul and his accomplices; that the Lord would cut them off in his truth, and let him see

his desire upon them, Psal. liv. 4, 5. last verse. And Psal. lvii. 4. And Psal. lvii. throughout. And Psal. cxl. 7, 9. He imprecates against the head of them that compassed him about, and consequently against Saul. Whence I argue, 1. If the Lord's people, conflicting with, and encompassed with oppressing rulers as so many lions and dogs, may pray and praise for the help of those that assist them, in their endeavours of self preservation from them; then may they make use of their help for their defence, for which they pray and praise; but here we see the Lord's people did the former: Therefore they may do the latter. 2. If we may pray against kings, and for preservation from them; then may we defend ourselves against them, and endeavour the means of that preservation for which we pray. The connexion is before cleared; yet here I add: That which will give a dispensation from our duty of praying for them, will also dispense from the duty of being passively subject to their will; and consequently will allow defending ourselves from their violence; but here we see tyranny and treachery, and designed mischief will give a dispensation from our duty of praying for them, though that be duty as indispensable as subjection. Again, if any thing demur us from resisting of princes, it must be respect to their majesty, and the character of the Lord's anointing upon them; but we see, no respect to that will demur a believer from praying in faith against them: therefore no such respect will hinder, but that he may defend himself against his violence. And indeed, if we consider it right, if the impression of any majesty God hath put upon princes, should bind up our hands from any resistance, it will restrain from prayer resistance: for, if that impression have any force at any time, it must be when a man is most solemnly stated before God, and speaking to God as a Christian, rather than when he is acting as a man with a man like himself: and as prayer resistance is the more formidable and forcible resistance than any other (as this Saul and many other kings, have found by their woful experience) so it is more restricted than other resistance; for we may defend ourselves against many whom we must not pray against, to wit, our private

enemies, for whom we are commanded to pray: yet nobody will deny but we may resist their violence: and likewise, we are commanded to pray for kings, when invested with God's authority; but when their degeneration looses us from that obligation to pray for them, and allows us to pray against them when they turn enemies to God (as we see in the prayers of the psalmist) then also we may more warrantably resist them by defensive arms.

3. Among the hallelujahs, in the end of psalms, there is one calculated for the prevailing time of the church, when the Lord shall take pleasure in his people. In that time of the saints being joyful in glory, when they may glory in the rest and security the Lord will vouchsafe upon them, they are prophetically and very pathetically excited to praise prayer-ways, Psal. cxlix. 6. to the end. "Let the high praises of God be in their mouth, and a two-edged sword in their hand,—to bind their kings with chains,—to execute upon them the judgment written; this honour have all the saints, hallelujah," This was their praise and honour, when they were brought in to execute vengeance upon the kings and nobles of Canaan. This also, in David's time, was the ambition, and also the attainment of the saints, in their triumphant victories over many of their oppressors round about them. But it looks to a further and more famous execution of vengeance upon the tyrants of the earth, when they shall have long kept under the church of God, and at length the Lord shall give his people a capacity to break their yoke: which, whenever it shall be, shall be their honour. Hence, if it is the honour of the saints, when the Lord puts them in capacity, to execute vengeance upon their enemies, though they be kings that oppress them; then it may be their ambition to seek it, at least they may resist them. Thus from several scripture practices, reproofs, promises, precepts, and prayers, this truth may be proven. From which scriptures, though other precious truths are more natively deduced, yet this truth by unstrained and unconstrained consequence may be also clearly inferred.

HEAD VI.

The Sufferings of some, upon the account of extraordinary executing of Judgment upon notorious Incendiaries, and murdering public Enemies by private Persons in the circumstances wherein they were stated vindicated.

Surely (saith Solomon) oppression maketh a wise man mad, as on the other hand, a gift destroyeth the heart. Which, whensoever there is a concurrence and verification of both together, makes it very incident, and noways to be admired, that either some actions of the oppressed be censurable; or, that there be found many to censure them, either out of ignorance or prejudice, at a far off glance, which a nearer or narrower inspection of circumstances, through a prospect of charity, would not so readily condemn. When the oppression of tyrants comes to such a height and pinch of extremity, that it not only threatens a community with desolation, but induces a necessity of unavoidable dissolution, and reduces a people to such a paroxysm of desperation and consternation (in respect of human deliberation bringing them to their wits end) that either they must succumb as slaves, and mancipate consciences, persons, liberties, properties, and all they are or have, to the lust of raging tyrants, and their revenging emissaries; or surrender themselves, and their posterity, and, which is dearer, the interest of religion, to be destroyed: then it is no wonder, that they be sometimes necessitated in such an extremity, to apply extreme remedies to extremity of evils, and forced to fall upon such expedients to prevent their utter extermination, as at other times common order, and ordinary justice would make extravagant. Yea it is no marvel, though they fall into several real extravagancies, which are not to be justified nor extenuated; but rather it is to be acknowledged, as a miracle of the Lord's mercy, that in such a case they are restrained from more scandalous excesses of that nature. Yet even then, such as live at ease, free of oppression who are blinded with prejudice at the oppressed, and bribed

with the indulgence and lenity of the oppressors towards themselves, will look upon these actions as transports of madness, and effects of extravagant zeal, while they weigh them only in the scales of ordinary justice, and do not ponderate them in the ballance of necessitated virtue; nor perpend the circumstances which made those extraordinary acts of judgment, which materially are lawful at all times to be executed by some, to be then necessary acts of justice to be inflicted by them in such a case. But if either the oppressors themselves, or such who are blinded and bribed with their gifts, and killed with their kindness, not only into an omission of concurring, but into a condemning of such extraordinary attempts of taking off those destroyers; or, if onlookers at a distance, would seriously consider, and ingeniously declare their opinion, in a particular application of the case to themselves, what they would do in such circumstances: I doubt not, but as charity should oblige them to be sparing of their censure, in a case whereof they have no experience; so justice, in resolving this point for themselves, would constrain them to justify such extraordinary necessitated practices for self-preservation, in preventing punishing, by destroying their destroyers, and move them rather to admire their patience, who have suffered so much and so long those beasts of prey to devour them, than to censure their precipitancies, in being constrained to endeavour to deliver themselves at last from, and put an end to their cruelty who did most annoy them. 'Yea, (as Naphtali says very well) it were impossible that rational men, after the feeling of so sore grievances, and the teaching of so many and sad experiences, should still couch under the burden, and submit themselves to the yoke of such vile apostate upstarts and bloody villains, and not rather acquit themselves like men, by pulling off these vizards, under which they mask their villanies and clack their violence; and plucking them out of that sanctuary of loyalty, and refuge of authority, which they do not more pretend than profane by all their horrid rebellions against God, and cruel murders executed upon the Lord's people, to the effect that in the

righteous and deserved punishment of these wicked men, both the sin of the land might be sisted, and the fierce anger of the Lord averted,' Naph. first edit. pag. 134. Nevertheless such lawful, and, (as one would think) laudable attempts, for cutting off such monsters of nature, beasts of prey, burdens to the earth, as well as enemies to the commonwealth, are not only condemned as murders and horrid assassinations, but criminally and capitally punished as such. And upon this account, the sufferings of such, as have left a conviction upon the consciences of all that knew them, of their honesty, integrity, soundness in the principles, and seriousness of the practice of religion, have been several singular, and signally severe, and owned of the Lord, to the admiration of all spectators; some being cruelly tortured and executed to the death, for essaying such execution of judgment, as Mr. Mitchel; others for accomplishing it, as Mr. Hackston of Rathillet, and others, who avowed their accession to the cutting off that arch traitor Sharp, prelate of St. Andrews; and others, for not condemning that and the like acts of justice, though they were as innocent of the facts as the child unborn.

The foregoing historical representation of the matters of fact, doth clear the circumstances of the actions: which if ever any of that nature performed by private men without public authority, could be justified, will at least demur the condemning of them. For, the men, or rather monsters, thus removed, had not only been perjured apostates from, and conjured enemies against God, in a conspiracy with the devil, to destroy the reformation, and the remnant that professed it, affronted blasphemers, perfidious betrayers of the country, and enemies to the commonwealth, malignant incendiaries, and habitual murderers of many of the Lord's people, who, for many notorious crimes, had forfeited their lives to justice; but were insolently prosecuting their murdering designs, informing the council, and instigating them against innocent people to destroy them utterly, procuring from them bloody orders to spare none, but cut off all who might fall into their hands, and vigorously and vigilantly with all violence pursuing their murdering mandates, both in

their own persons, and by villains, whom they hounded out as intelligencers to get, and to give notice where any of those people might be detected, whom they avowed, and avowed a design to destroy, when in the heat and height of their rage they were cut off. The actors were noways subject to them, nor any other way related, than declared and independent enemies are to one another, having renounced all relation to them and their masters, as magistrates and their superiors; and were in no terms of peace with them, but maintaining an hostile opposition and carrying, without cessation, arms to resist them; and when they got that advantage over them, that these enemies were seeking against them, they declared solemnly to them, and died, declaring it to the world, that they were not moved out of private revenge for personal injuries they had done against themselves; but being touched with the zeal of God, love to their country, respect to justice trampled upon by tyrants, and for saving themselves, rescuing their brethren, and preventing their murdering them, because there were none that would or could execute justice upon them legally: therefore they were forced to put forth their hands against them as enemies, with whose preservation their own could not consist. Their circumstances were such, that they were reduced to the greatest of extremities, precluding all other human possibility of preserving themselves and their brethren from the destruction intended, and declaredly resolved, and restlessly sought and prosecuted, by these murderers, being persecuted to the death by them, daily chased, hunted, way-laid, turned out of their own habitations, intercommuned, discharged and denied all harbour in any house, under the hazard of the same pains that themselves were liable to, which was death by the present law and so forced to hide in caves and dens; out of which they durst not come forth, if it were but to seek bread for themselves, without imminent danger of their lives; the country raising the hue and cry after them, whensoever they were seen, whereby many were killed as soon as they were apprehended: hence they could neither escape in the land, nor by flight out

of the land, passages by sea and land being stopt, and none suffered to go any where, without strict examination what they were, which was impossible for them to elude: and many other specialties of misery and danger were ingredients in their circumstances, that no words can represent to them that are altogether strangers to them. Wherefore, in such a strait and pinch of perplexity, when they could not other wise escape the fury of these firebrands, nor demur and deter the rest of them from an uncontrouled pursuit after the lives of innocents, nor otherwise avert the wrath of God against the land for the impunity of such vermine; and seeing there was no access to address themselves to magistrates, who by office are obliged to bring such villains to condign punishment; and none were found in public authority, but such as patronized and authorized them; whom in conscience they could not acknowledge, and in prudence durst not make application to them for fear of their lives; what could they do? what was left them to deliberate, but to fall upon this extraordinary course, wherein if they have stumbled into some extravagancies, as to the manner, who can think it strange, considering the case? But as that is not the debate; so as for such acts of vengeance as are peccant in the matter, and were not circumstantiate, as above rehearsed, being disowned in their public declarations, and the actors excluded from their communion, for whom I plead; it were iniquous to impute the scandal of them to that suffering people. It is only the so circumstantiate, necessitated, extraordinary execution of judgment, upon notoriously gross and grassant incendiaries, tyrants, and terrible murdering enemies, where there is no living for them, that I vindicate. And though the handling of this tender and quick-scented subject may seem odious to some, and my discourse upon it is pregnant with an oblique design to obviate such unmerited surmises, I must say, it is only the wiping off of such reproaches as reflect on religion; the vindication of preterite extraordinary practices of this nature; the investigation of present duty with respect to future emergencies; and the restraining all extravagancies incident on this Head,

that I intend. However this may be exploded by this generation, as odious and uncouth doctrine; yet, in former periods of this church, it hath been maintained with courage, and asserted with confidence. How the ancient Scots, even after they received the Christian faith, served their tyrants and oppressors, how in the beginning of the reformation, the killing of the cardinal, and of David Rizio, were and are generally to this day justified, and what was the judgment and pleading of our reformers for practicing this principle against idolaters, &c. needs not be here repeated? Mr. Knox's judgment in particular is before declared, and will be further discovered, if we consider how he resented his slackness, in putting people to execute judgment in these words, insert in second part of the cloud of witnesses, p. 60. 'For God (said he) had not only given me knowledge, and a tongue to make known the impiety of the idol, but had given me credit with many, who would have put in execution God's judgments, if I would only have consented thereto: but so careful was I of the common tranquility, and loath was I to offend some, that in secret conference with zealous men, I travelled rather to slacken that fervency God had kindled in them, than to animate and encourage them to put their hands to God's work; wherein I acknowledge myself to have done most wickedly, and from the bottom of my heart I do ask God pardon, that I did not what in me lay to have suppressed that idol from the beginning.' But the preceeding historical representation doth abundantly demonstrate this is no novelty, to assert, that when the ruin of the country, suppression of religion, destruction of the remnant professing and suffering for it, and the wrath of God is threatened in, and for the impunity of idolaters and murderers, that by the law of God and man should die the death; and supposing always such as are in public office not only decline their duty, but encourage those destroyers, yea authorize them themselves, we may not only maintain defensive resistance according to our capacity, but endeavour also vindictive and, punitive force in executing judgment upon them in cases of necessity, as before

circumstantiate. And I am the more confident to assert it, that what I say cannot be condemned, till first what our reformers have proven be confuted. However, to endeavour to make it somewhat clear, I shall premit some assertions, to clear the state of the question; and then give some reasons for it, when clearly stated.

First. It will be needful for clearing our way, to shew what length we may warrantably go in this matter of executing judgment, in our private capacity, in extraordinary cases of necessity, by setting down some propositions negative and positive, signifying what we disown, and what we own in this point.

I. What we disown, may appear in these assertions,

1. No necessity nor circumstance supposable whatsoever, can justify the murder of the righteous or innocent, or vindicate the unlawful taking away of their lives directly, or indirectly, immediately, or mediately, which in thought as well as deed we must abhor, as a horrid breach of the sixth command. The guilt whereof may be incurred several ways; as by killing them immediately, as Cain did his brother Abel; or commanded them to be killed, as Saul commanded Doeg to kill the Lord's priests; or contriving their murder, as David did Uriah's, and Jezabel Naboth's; or counselling thereunto, as the people advised the princes to the murder of Jeremiah, and all that cried crucify Jesus were murderers of Christ; or by procuring it, as Haman was guilty of the intended murder of the Jews; or concurring therein, as Joab was guilty of Uriah's death as well as David, and Judas of Christ's by betraying him; or by the patrociny thereof, defending and sparing the murderers when called, by office, to punish them, as David was guilty in not punishing Joab, Ahab in patronizing the murder of Naboth; or by consenting thereunto, as Saul consented to the death of Stephen; or by knowing and permitting, and conniving at it, as is condemned, Prov. xxiv.

11, 12. Whether this be done under colour of law, as Pilate murdered our Lord, Herod killed James; or without all colour, by absolute power, Herod the Ascalonite murdered the infants; or whether it be done by purpose, as Joab murdered Abner and Amasa; or without previous purpose yet with knowledge of the action in the perpetrating of it, as men may do in passion, when provoked beside their purpose, or in a tumult, without intending it beforehand; yet that is murder; Barrabas committed murder in the insurrection. For, as for casual killing, contrary to intention, without knowledge, that's no breach of the command. And, whatever may be said of necessitated delivering up the innocent, pursued by a potent enemy, to deliver the city from his fury; or of preferring our own life to our innocent neighbour, in a case when both cannot be preserved, and by preserving the one lawfully, the other happens to lose his life; I do not meddle with these cases. But since this is taken for granted by casuists, I infer, If it be lawful that an innocent man die in case of necessity, that others may be preserved; then much more is it lawful, that the nocent, who are guilty of murdering the righteous all these ways above specified, and actually prosecuting their murdering designs by these methods, should rather be made to die, than the righteous be destroyed. But of this sort of murder, taking away the life of the righteous, none hath the impudence to accuse that reproached people.

2. though a man kill an innocent unwittingly and willingly, besides his knowledge and against his will; yet he may be guilty of sinful homicide, if he was obliged to know that he was in hazard of it, and neglected to consider, lest a man might be killed by what he was doing: as if a man should shoot at random, when he doth not know but some may be killed thereby: or if one were hewing with an ax, which he either knew or might have known to be loose, and the head not well fastened to the helve, did not advertise those about him of it; if by flying off it happened to kill any person, he were not innocent, but if he knew not without any inadvertency, then he were guiltless, Deut. xix. 5. See Durham on 6. Com. So if a man

built a house without battlements, he should bring blood upon his house, if any man fell from thence, Deut. xxii. 8. But of this the question is not.

3. Though a person be not altogether innocent, nor to be reckoned among the righteous; but suppose him wicked and profane, and engaged in an evil course, dishonourable to God, prejudicial to the church and kingdom, and very injurious to us; yet it may be murder to kill him, if he be not guilty of crimes that deserve death by the law of God: for the life of man is not subjected to the arbitrement of any, but his who is the author of life and death; it is necessary to all to obey the law, Thou shalt not kill, without exception, but such killing as is approven by the author of the law, as saith Ames. De Conscientia, cap. 31. quest. 2. Hence, this people so much reproached with extravagant actions, do abundantly clear themselves of that imputation of being of the mind to kill all that differ from them, which was the impudent forgery of the father of lies, in their informatory vindication, Head 3. 'We positively disown (say they) as horrid murder, the killing of any because of a different persuasion or opinion from us, albeit some have invidiously cast this odious calumny upon us.' And it is as clear, they that took the oath of abjuration swore a lie, when they abjured the apologetical declaration, in so far as it is asserted it was lawful to kill all employed in the king's service, when it asserted no such thing, as is shewed above Head 3. To think so much, let be to declare it, far more to practise such a thing against all that served the king, or any merely, because they served him, or because they are in a wicked course, or because they have oppressed us, were abominable: for these things simply do not make men guilty of death, to be punished capitally by men according to the law of God. But when they are stated in such opposition to us, and serve the tyrant's murdering mandates by all those ways above specified; then we may by the law of God and nature and nations, destroy, slay, and cause to perish, and avenge ourselves on them that would assault us, and are seeking our destruction: as

it was lawful for the Jews to do with Haman's emissaries, Esth. viii. 11. 13. and ix. 1, 2. 5. This charge then cannot reach the case.

4. Though murderers, and such as are guilty of death by the law of God, must be punished by death; for, "he that sheddeth man's blood," &c. yet it may be murder for a man to kill another, because he thought him so criminal, and because he thought it his duty, being moved by a pretended enthusiastical impulse, in imitation of the extraordinary actions of such as were really moved by the Spirit of God. As when James and John would have commanded fire to come down to consume the Samaritans, the Lord rebuked them, saying, "Ye know not what manner of spirit ye are of, for the Son of man is not come to destroy men's lives, but to save them," Luke ix. 54,—56. Such impulses had need to be well examined, for ordinarily they will be found not consistent with a gospel spirit, which is always averse from acts of cruelty. Blind zeal sometimes may incite men to fearful work: yea the persecutors have often most of that spirit, as our Lord foretels, "The time cometh, that whosoever killeth you shall think that he doth God service," John xvi. 2. Paul, in his pharisaical zeal, breathed out slaughter against the disciples. And Satan can drive men under several colours, to act such things, as he did the Boors in Germany, and John of Leyden and his followers, whose practices are deservedly detested by all that have any spark of Christianity or humanity: for if this were espoused as a principle, there would be no security for men's lives. But hence it cannot be concluded, that God may not animate some to some rare enterprizes, for the cutting off of tyrants and their bloody emissaries, incendiaries, destroyers of innocent people, and putting an end to, and stopping the career of their murders, in a time of real extreme necessity, the matter of the action being unquestionably lawful, their ends and intentions really good and commendable, there being also a deficiency of others to do the work, and themselves in some probable capacity for it. See Jus Popul. cap. 20. pag. 410. Neither can it be denied, but true zeal may sometimes incite people to

such exploits for the preservation of religion and liberty, their own lives and brethren, all like to be destroyed by the impunity of beasts of prey. This will be found very consistent with a gospel spirit: and though this principle be asserted, and also put in practice; all persons, notwithstanding thereof would have sufficient security for their lives, except such as have really forfeited their lives by all law of God and man. Those that are led by impulses, may pretend the imitation of extraordinary examples, and abuse them; yet hence it will not follow, that in no case these extraordinary examples may be imitated. Shall the examples of good magistrates, executing justice on idolaters and murderers, be altogether unimitable, because tyrants abuse them; in persecuting the innocent? If this arguing were good, it would make all virtuous actions in the world unimitable; for these may be abused by pretenders. See *Jus Popul. ubi supra*, pag. 412. But it cannot be charged upon the sufferers upon this head, that they had nothing to give as the reasons of their actions, but pretexts of enthusiasms.

5. Though a man be really so criminal, as that he deserves death by the law of God and man; yet it may be murder to kill him, if we do not certainly know it, and can prove it, and convict him of it upon trial: for no man must be killed not indicted, or the cause unknown. Thus even magistrates may murder murderers, when they proceed against them without probation or cognition according to law, far more private persons. Thus the Abiezrites would have murdered Gideon, not only unjustly, for his duty of throwing down the altar of Baal, but illegally; because they would have had him brought out that he might die without any further trial, *Judg. vi. 29, 30*. So likewise the Jews that banded and bound themselves under a curse to kill Paul before he was tried, would have murdered him, not only unjustly for his duty, but illegally before he was tried, *Acts xxiii. 12*. But this doth not condemn the actions of those sufferers, in maintaining the necessary execution of judgment, upon persons who are notorious murderers, yea,

professing a trade and prosecuting habitually a tract of continued murdering the people of the Lord.

6. Though it should be certainly known, and sufficiently proven that a man is a murderer, &c. yet it were murder for an inferior, under a relation of subjection to him, to kill him, as long as that subjection were acknowledged; for, whensoever the common and mutual right or relation, either natural, moral, civil, or religious, to the prejudice or scandal of the church, or state, or particular persons, is broken by killing any person, that is murder, though the person killed deserve to die. As if a subject should kill an acknowledged king, a son by nature or in law should kill his natural or legal father, a servant should kill his master, breaking these relations, while their right and tie were acknowledged, (as some of them must still be acknowledged as long as the correlates continue in being, to wit, that of a father is not broken by his becoming a murderer) and to the danger, detriment, and scandal of the church and state; that were properly assassination: for assassins are they, who being subject to others, either out of their own head, for their own ends, or by command of their superiors, kill their superiors, or such as they command them to kill, as Alstedius describes them, Theol. Caf. cap. 18. de homicid. reg. 55. Therefore David would not kill Saul, because he acknowledged him to be the Lord's anointed, to whom he was under a relation of subjection, and because he was his master and father in law, and because it would have tended to the hurt of the kingdom, and involved it in combustions and contentions about the succession, and prejudged his own right, as well as to the scandal of the people of God, though Saul deserved otherwise to be capitally punished. So Ishbosheth was killed by Baanah and Rechab, 2 Sam. iv. 7. so Jozachar and Jehozabad, who killed Joash, 2 Kings xii. 21. were punished as murderers, chap. xiv. 6. because they were his servants, and did assassinate him to whom they were subject: so the servants of Amon were punished by the people, as conspirators against their king and master, 2 Kings xxi. 23, 24.

though Amon deserved to have been punished as well as Amaziah was. Hence generally it is observed by some; that though right be given to equals or superiors, to bring their nearest relations to condign punishment, when they turn enticers to idolatry, Deut. xiii. 6. Yet no right or law, upon any cause or occasion whatsoever, is given to inferiors, as children, &c. to punish their fathers. See Pool. Synop. Critic. in locum. However it be, this cannot condemn the taking off of notorious murderers, by the hand of such as were no way subject nor related to them; but as enemies, who, in extreme necessity, executed righteous judgment upon them, without prejudice of the true, necessary, and chief good of the church and commonwealth, or of any particular person's just right and security, as Naphtali qualifies it, pag. 12, 23. first edition.

7. Though the matter of the action were just, and the murderer such a person as we might punish without any breach of relative obligations, or duties; yet the manner may aggravate it to some degree of murder; if it be done secretly, when it may be execute publicly, or suddenly and precipitantly, when it may be done deliberately, without rushing upon such an action, or hurrying the murderer to eternity; as this also might have had some weight with David not to murder Saul secretly and suddenly in the cave, or when he was sleeping; so Ishbosheth, and Joash, and Amon were murdered; or if it be done subtilly, when it may be performed in more plain and fair dealing; or treacherously, under colour of friendship; or cruelly without regard to humanity; and especially when the actors are at peace with the person, whose blood they shed, as Joab shed the blood of war in peace, 1 Kings ii. 5. in killing Abner and Amasa so craftily and cruelly; and Absalom made his servants assassinate Amnon, 2 Sam. xiii. 28, 29. But this cannot be changed upon them who executed righteous judgment, as publicly, deliberately, and calmly, as the extraordinary exigence of pressing necessity, in extremity of danger, could allow, upon notorious murderers, with whom they were in open and avowed terms of hostility.

8. Though the manner also be inculpable; yet if the principle and motive of killing, even those that deserve to die, be out of malice, hatred, rage, or revenge, for private or personal injuries, it is murder. For the affection and intention doth make one and the same action of taking away the life, homicide or no homicide: Lex Rex faith, Quest. 31. Pag. 338. If a man out of hatred deliberately take away another man's life, he is in so far a murderer, but if that same man had taken away the other's life, by the flying off of his ax head, he neither hating him before, nor intending to hurt him, he is no murderer by God's express law, allowing cities of refuge for the one, and not for the other, Deut. iv. 42. Deut. xix. 4, &c. private revenge is indignity to God, whose it is to take vengeance, Deut. xxxii. 35. Rom. xii. 19. "Dearly beloved avenge not yourselves, for vengeance is the Lord's." For which cause Jacob curses Simeon and Levi their murder of the Shechemites: for in their anger they slew a man, Gen. xlix. 6, 7. So David would not put forth his hand against Saul, for his own private and personal quarrel. So Joab killed Abner, and Absalom Amnon. But this doth not make the execution of judgment, out of zeal for God, respect to righteousness, love to the nations interest, and care to preserve the persecuted people of God from imminent destruction, upon public enemies, incendiaries, that are trampling upon all these precious interests, and threatening the utter ruin of them, and in a particular manner their destruction who thus prevent them.

9. Though the motive or cause were upon a public account, yet it may be murder to have a wrong end in it; as either to intend simply the destruction of the person on whom they execute judgment, as the end to which all their action is directed, or to make their own advantage or honour the end of the action. Thus David would not kill Saul, because it might have been thought he did it to obtain the kingdom, of which he was rightful successor: and deservedly he punished the Amalekite, that brought news of his killing Saul; and Baanah and Rechab, for their killing Ishbosheth, thinking thereby to advance themselves at David's court. So also Joab murdered Amasa to

secure himself in the general's place. And Jehu, though upon the matter he executed righteous judgment, his end was only himself, it is condemned as murder. But when the execution of righteous judgment is both formally intended by the actors, and natively and really doth conduce to the glory of God, the preservation of the remnant threatened to be destroyed by these murderers, the suppressing of impiety, doing of justice, turning away wrath and removing of present, and preventing of future judgments, then it may be duty, Naphtali, pag. 23. first edition.

10. Though the end also were not culpable; yet it may be murder to kill criminals by transgressing the sphere of our vocation, and usurping upon the magistrate's sword: for he, by office, is a revenger, to execute wrath upon him that doth evil, Rom. xiii. 4. none must make use of the sword of vindictive justice, but he to whom the Lord giveth it; therefore they that came to take Christ are condemned and threatened for this, Matth. xxvi. 52. "All they that take the sword, shall perish with the sword." The God of order hath assigned to every man his station and calling, within the bounds whereof he should keep, without transgressing by defect or excess, let every man abide in the same calling wherein he was called, 1 Cor. vii. 20. and study to be quiet, and do his own business, 1 Thess. iv. 11. Therefore David would not kill Saul, because he would have done it beside his calling. And therefore the killing of Joash and Amon was murder, because the assassins did transgress their vocation. But when notorious incendiaries do not only transgress their vocation, but the limits of human society, and turn open enemies to God and man, destroying the innocent, making havoc of the Lord's heritage, and vaunting of their villanies, and boasting of their wickedness, and thereby bringing wrath upon the land if such effrontries of insolence should pass unpunished, and when there is no magistrate to do that work of justice, but all in that place are art and part with them, patrons and defenders of them; yea, no magistrate that can be acknowledged as a minister of God to be applied unto; in that case, it is not a transgression of

our vocation, nor an usurpation upon the magistrates, where there is none, to endeavour to avert wrath, by executing righteous judgment. Otherwise, if for fear, or suspicion of the accidental hazard of private men's usurping the office, or doing of the duty of public persons, every virtuous action which may be abused, shall be utterly neglected, impiety shall quickly gain universal empire, to the extermination of all goodness, Naphtali, pag. 24. first edition. To clear this, it must be considered, that a man's calling is twofold; his particular calling, whereunto in the ordinary course of things he is regularly confined: and his general calling, not circumscribed by particular rules, which from the common obligation of the end for which all callings are institute, in the clear exigence of an extraordinary emergent, according to the general rules of righteousness, bind to an agreeable practice; therefore circumstances may sometimes so diversify actions, that what in the ordinary and undisturbed state of things would be accounted an excess of our particular calling, and an usurpation, in an extraordinary occurrence may become a necessary duty of our general calling.

11. Though it were no usurpation beyond our calling; yet it may be murder, to kill any without the call of God in a case of necessity, either in the immediate defence of life, or though it be in the remote when the hazard is unavoidable. Every thing must have God's call in its season to make it duty, so also the time of killing, Eccles. iii. 3. For want of this David would not kill Saul. Lex Rex saith excellently to this, quest. 31. pag. 329, 330. 'David might have killed Saul when he was sleeping, and when he cut off the lap of his garment, but it was unlawful for him to kill the Lord's anointed, as it is unlawful for him to kill a man because he is the image of God, Gen. ix. 6. except in case of necessity,—David having Saul in his hand, was in a remote posture of defence, the unjust invasion then was not actual, nor unavoidable, nor a necessary mean in human prudence for self preservation; for king Saul was not in an actual pursuit of the whole princes, elders, community of Israel: Saul did but seek the life of one man David, and that not for religion, or a national pretended offence, and therefore he could not, in conscience, put hands on the Lord's anointed: but if Saul had actually invaded David for his life, David might, in that case, make use of Goliath's sword, (for he took not that weapon as a cypher to boast Saul) and rather kill than be killed.' Thus he. By a call here, we do not mean an express or immediate call from God, such as the prophets might have to their extraordinary executions of judgments, as Samuel and Elijah had to kill Agag and Baal's prophets; but either the allowance of man, then there is no question about it; or if that cannot be had, as in the case circumstantiate it cannot, then the providential and moral call of extreme necessity, for preservation of our lives, and preventing the murder of our brethren, may warrant an extraordinary executing of righteous judgment upon the murderers. Men may have a call to a necessary duty, neither every way mediate nor immediate, as the call of running together to quench a fire in a city, when magistrates through wickedness or negligence, will not, or do not, call people forth unto that work; they have not man's call, nor an

immediate call from heaven, yet they have a lawful call from God; so they do not intrude upon the magistrates office, nor want they a call to this execution of judgment, who did materially that work for that exigent which magistrates, by office, were bound to do, being called thereto by God, by nature, and the call of inevitable necessity, which knoweth no human law, and to which some divine positive laws will cede. *Jus populi*. chap. 20. pag. 423.

12. Though this be a principle of reason and natural justice, when all the fore mentioned circumstances are clear, that it is lawful for private persons to execute righteous judgment, upon notorious incendiaries, and murdering public enemies, in cases of necessity; yet it might be a sinful breach of the sixth command, to draw extraordinary examples of it to an ordinary practice in killing all who might be found criminal, and would deserve death by the law, as all that have served under a banner of tyranny and violence, displayed against God and his people, to the ruin of the reformation, wasting of the country, oppression of many honest families, and destruction of many innocent people, are and would be found guilty of murder; as the chief captain would have truly alledged Paul to have been a murderer, if he had been the Egyptian which made an uproar, and led out four thousand men that were murderers, Acts xxi. 58. As for the vulgar and ordinary sort of those vermine of varlets, it is of no advantage for oppressed people to foul their fingers upon them, when their slaughter would not put a stop to, but rather increase the destruction of the people of God; and were unlawful to prevent and anticipate the due and legal execution of justice, where there is any prospect or expectation of its running in its right channel. But for the chief and principal ring leaders, and common public and habitual incendiaries, and masters of the trade of murdering the Lord's people, when there is no other way of being rid of their rage, and preserving ourselves, and preventing the destruction of our brethren, we may in that case of necessity make public examples of them, in an extraordinary procedure

against them, that may be most answerable to the rules of the ordinary procedure of justice, and in imitation of the heroic actions recorded and justified in the word of God, in the like extraordinary cases; which are imitable, when the matter of their actions is ordinary, that is, neither preternatural nor supernatural though the occasion was singular, just and necessary, both by divine precept, and as a mean to good and necessary ends, and when there is no other to do the work, nor any prospect of access to justice in its ordinary and orderly course, nor possibility of suspending it till that can be obtained. We need not then any other call than a spirit of holy zeal for God, and for our own and our brethrens preservation, in that pinch of extremity. We do not hold these extraordinary actions for regular and ordinary precedents, for all times and persons universally: which if people should fancy, and heed more the glory and fame of the action, than the sound and solid rule of the scriptures, they may be tempted and carried to fearful extravagancies. But they may be warrants for private persons in their doing of these things, in an extreme necessity, to which at other times they are not called. And when the Lord, with whom is the residue of the spirit, doth breathe upon his people, more or fewer, to the exciting of more than ordinary zeal, for the execution of justice upon such adversaries, we should rather ascribe glory and praise to him, whose hand is not shortened, but many times chooseth the weak and foolish things of the world to confound the mighty and the wise, than condemn his instruments for doing such things, Naph. pag. 24, 25. prior edit.

All these cases, which are all I can think on at present, comprehending all that may any way infer the guilt of murder, I have collected; to the end I may conclude this one argument, and leave it to be considered: If this extraordinary executing of judgment, upon notorious incendiaries and murdering public enemies, by private persons, in the circumstances above declared, cannot be reduced to any case that can infer the guilt of murder; then it cannot be condemned, but justified; but this extraordinary executing

of judgment, &c. cannot be reduced to any case that can infer the guilt of murder, (as will appear by the induction of all of them:) therefore, this extraordinary executing of judgment, &c. cannot be condemned, but justified.

II. In the next place, What we own may be done warrantably, in taking away the life of men without breach of the sixth command, will appear by these propositions and assertions, which will bring the matter to the present circumstantiate case.

1. It is certain, though the command be indefinitely expressed, it doth not prohibit all killing, but only that which is condemned in other explicatory commands. Our Lord Jesus, repeating this command, explains it by expressing it thus, Matth. xix. 18.—"Thou shalt not murder." And if any be lawful, it is granted by all, that is, which is unavoidable by the invincible necessity of providence, when a man following his duty doth that which beside and contrary his intention, and without any previous neglect or oversight in him, proveth the hurt and death of another, in which case he was allowed to flee to the city of refuge by the law of God. Whence if that physical necessity did justify that kind of killing, shall not a moral necessity every way invincibly unavoidable (except we suffer ourselves and our brethren to be destroyed by beasts of prey) vindicate this kind, in an extraordinary extremity, when the murderers are protected under the scone of pretended authority? In which case the law of God would allow deliberate murderers should be pursued by the avenger of blood, and not to have liberty to flee to these subterfuges and pretexts of authority, (mere tyranny,) but to be taken from the horns of such altars, and be put to death, as Mr. Mitchel says in vindicating his own action, in a letter dated Feb. 1674.

2. It is lawful to take the life of known and convicted murderers by public justice; yea, it is indispensibly necessary by the law of God, and no mercy nor pardon of the magistrate may interpose to spare them; for, 'Whoso killeth any person, the murderer shall be put to death by the mouth of witnesses. '—Ye shall take no satisfaction for the life of a murderer:—but he shall surely be put to death,' he was not to be admitted to the benefit of any refuge: and the reason is, 'Blood defiles the land, and the land cannot be cleansed of the blood that is shed therein, but by the blood of him that shed it,' Numb. xxxv. 30, 31, 32, 33. Hence, if it be so necessary to cleanse the land, then when the magistrate is not only negligent in his duty, but turns a patron and protector of such murderers, and employs them as his emissaries to murder and destroy, it cannot be expected he should cleanse the land, for then he should free it of the burden of himself, and begin with himself: therefore then, there must be more incumbent upon private persons, touched with the zeal of God, than at another time. And as Mr. Knox, in his conference with queen Mary, says, 'They that in the fear of God execute judgment, where God hath commanded, offend not God, though kings do it not;' and adduces the examples of Samuel killing Agag, Elias killing the prophets of Baal, and of Phineas killing Zimri and Cozbi.

3. It is lawful for private persons to kill their unjust assaulters, in defending themselves against their violence, and that both in the immediate defence of our life against an immediate assault, in the instant of the assault, and also in a remote defence of ourselves, when that is as necessary as the first; and there is no other way of escaping the destruction intended by murderers, either by flight or resistance; then it is lawful to preserve ourselves by taking advantages to cut them off.

4. It is lawful in a just war to kill the enemy; yea in the defensive war of private subjects, or a part of the commonwealth, against their oppressing tyrants, as is proven, head 5. Where several of the arguments used to evince

that truth will confirm this; as namely, those arguments taken from the people's power in reformation, and those taken from the hazard of partaking of others sin and judgment: for, if all the magistrates, supreme and subordinate, turn principal patrons and patterns of all abominations, and persecutors and destroyers of the people for not complying with them, then the people are not only under an obligation to resist them; but seeing otherwise they would be liable to their sin, in suffering them thus to trample on religion, and the interests of God as well as their own, in order to turn away the wrath of God, it is incumbent upon them to vindicate religion, and reform the land from these corruptions, in an endeavour to bring those malignant enemies of God, and destroyers of the people, to condign punishment, "that the heads of the people be hanged up before the Lord against the sun, the fierce anger of the Lord may be turned away from the land," Numb. xxv. 4. In this case, as Buchanan says of a tyrant, *De jure regni*, 'A lawful war being once undertaken with such an enemy as a tyrant is, every one out of the whole multitude of mankind may assault, with all the calamities of war, a tyrant, who is a public enemy, with whom all good men have a perpetual warfare.' And though the war be not always actually prosecute in a hostile manner, yet, as long as peace is not concluded and the war ceased, they that have the just side of the quarrel may take advantages, in removing and taking off, (not every single soldier of the contrary side, for that would contribute nothing to their prevailing in the end) but the principal instruments and promoters of the war, by whose fall the offending side would suffer great loss, and the defending would be great gainers. So Jael killing Sisera, Jabin's captain-general, is greatly commended. Now this was the case of the sufferers upon this head, as Mr. Mitchel, one of them represents it in his forecited letter, 'I being (says he) a soldier, not having laid down my arms, but still upon my own defence, having no other end or quarrel at any man—besides the prosecution of the ends of the covenant, particularly the overthrow of prelates and prelacy; and I being a declared

enemy to him (that is Sharp) on that account, and he to me in like manner, I never found myself obliged—to set a centinel at his door for his safety; but as he was always to take his advantage, as it appeareth, so I of him to take any opportunity offered: moreover, we being in no terms of capitulation, but on the contrary, I, by his instigation, being excluded from all grace and favour, thought it my duty to pursue him at all occasions.'

5. It is lawful to kill enemies in the rescue of our brethren, when they are keeping them in bondage, and reserving them for a sacrifice to the fury of tyrants, or leading them forth to the slaughter, or in the time of acting their murdering violence upon them: then, to break prisons, beat up garrisons, surprise the murderers, and kill them in the rescue of our innocent brethren, is very lawful, according to that command, Prov. xxiv. 11, 12. and the practice of Moses, who seeing one of his brethren suffering wrong, he defended him, and avenged him that was oppressed, and slew the Egyptian, Acts vii. 24. For that is a certain truth, which Grotius faith in locum, 'the law of nature gives a right to an innocent, and to the defender of an innocent person, against the guilty offender.' Hence, It cannot but be lawful also, in a case of necessity, when both ourselves and our brethren are pursued incessantly by destroying murderers, to avenge ourselves on them, and slay them, when there is no other way to be rid of their violence.

6. It is lawful to prevent the murder of ourselves or our brethren, when no other way is left, by killing the murderers before they accomplish their wicked design, if they be habitually prosecuting it, and have many times accomplished it before. This followeth upon the other; and upon this account it had been duty for Gedaliah to have suffered Johanan to slay Ishmael, and so prevent the governor's murder, if it had been certainly known that Ishmael was sent by the king of Ammon to assassinate him, Jer. xl. 14, 15. for nothing is there objected against the lawfulness of the thing, but only it was alledged that he spoke falsely. Alftedius asserts this, Caf. de

homicid. reg. 6. p. 331. It is lawful to prevent him that would assault us, and by preventing to kill him before his invasion, if it be so necessary, to prevent him, that our life cannot be otherwise defended but by preventing. And hence he justifies that saying, 'It is lawful to kill him that lieth in wait to murder,' *ibid*. This is all the length that the reproached sufferers, whom I am vindicating, go, in asserting this principle, as may be seen in their Informatory Vindication, Head 3. pag. 544. where they say, 'We maintain it as both righteous and rational, in defence of our lives, liberties, and religion, after an orderly and Christian manner, to endeavour, by all means lawful and possible, to defend ourselves, rescue our brethren, and prevent their murder, in a martial opposition against wicked persecutors, who are seeking to destroy them and us, and imbrue their hands in our blood, according to the true import of the Apologetical Declaration.' Which is very rational; especially considering.

7. These murderers, who are thus to be prevented, are such whom the law of God commands to be put to death, and no where allows to be spared, being public enemies to God and good men, open blasphemers, avowed idolaters, affronted adulterers, notorious murderers, habitual tyrants, suppressing religion, oppressing the innocent, and professing a trade of destroying the Lord's people. Surely, if God hath expressly in his laws provided, that blasphemers, idolaters, murderers, &c. should not be suffered to live, he never intended men daily guilty, yea, making profession of these crimes, should be allowed impunity, either by virtue of their office, or because there is none in office to execute judgment upon them; but in a case of extreme necessity, these laws will not only allow, but oblige people, daily murdered by them, for their own preservation, for vindication of religion, for purging the land of such wickedness, for turning away the wrath of God, to prevent their prosecuting their murdering designs any further, and put a stop to their persecution, by putting an end to their wicked lives: seeing, as Buchanan says, *De Jure Regni*, it is expresly commanded, 'to cut off

wickedness and wicked men, without any exception of rank or degree; and yet in no place of sacred scripture are tyrants more spared than private persons.' Much less their bloody emissaries.

Now, seeing all these cases of killing I have collected, are justifiable in scripture, and none of the sufferers upon this head, whom I am vindicating, have exceeded in principle or practice the amount of these assertions, what is said already may have some weight to demur a censorious condemnation of them. But as the true nonconformist well observes, in answer to Dial. 7. p. 391. Seeing the consideration resulting from the concurrence of all circumstances, whereupon the right dignoscing of such deeds, when actually existent, doth mostly depend, doth more contribute to the clearing and passing a judgment on a case of this nature, when the whole contexture is exposed to certain examination, than to set down general rules directive of such practices (which yet will all justify this in question) therefore to clear the case further, all may be resolved into this state of the question.

'Whether or not private persons, incessantly pursued unto death, and threatened with ineluctable destruction by tyrants and their emissaries, may, to save themselves from their violence, in case of extreme necessity, put forth their hand to execute judgment upon the chief and principal ringleaders, instruments and promoters of all these destructive mischiefs and miseries, who are open and avowed enemies to God, apostates, blasphemers, idolaters, tyrants, traitors, notorious incendiaries, atrocious murderers, and known and convict to be public enemies, prosecuting their murdering designs notourly and habitually, and therefore guilty of death by all laws of God and man; and in such an extraordinary case, put them to death, who have by law forfeited their lives to justice, when there is no access to public justice, no prospect of obtaining it in an orderly way, nor any probability of escaping their intended destruction, either by flight or resistance, if they be past longer unpunished; and so deliver themselves

from their murdering tyranny, while they are under no acknowledged subjection to them, nor at peace with them, but maintaining a defensive resistance against them; and in this extraordinary execution of justice, being not chargeable with ignorance of matters of fact so manifest, nor mistakes of circumstances so palpable, nor with malice, rage or revenge against their persons for private and particular injuries, nor with enthusiastic impulses pretended as their rule, nor with deceit or treachery in the manner, nor with any breach of relation or obligation, nor usurpation upon or prejudice to any lawful right whatsoever in the matter, nor with any selfish or sinister ends in the design; but forced to perform this work of judgment, when there is none other to do it, out of zeal for the glory of God, care of the country's good, love to their brethren, sense of their own danger, and respect to justice; to the end, that by the removal of these wicked destroyers, their war against the prevailing faction of their malignant enemies may be more successfully maintained, their religion, lives, laws, and liberties more securely defended, their brethren rescued, their murder prevented, impiety suppressed, the land cleansed from blood, and the wrath of God averted.' That this is the true state of the question, the preceeding assertions, all comprehended here, do make it evident. To which I answer in the affirmative, and shall come to give my reasons.

Secondly, Then I shall offer some reasons for this, first for some grounds and hypotheses of reason: then more expresly from scripture-proofs.

1. There may be some arguments offered from the dictates of natural reason, which I shall but only glance at.

1. I premit the consideration of the practice of all nations, even such from whom patterns have been taken for government, and who have had the most polite and purest policy, and have been the severest animadvertisers upon all extravagants and transgressors of their vocation: yet even among them, for

private persons to destroy and rid the commonwealth of such burdens, and vile vermin so pernicious to it, was thought a virtue meriting rather commendation, than a thing to be condemned. I shall not here instance the laudable practices recorded in scripture; these may be seen in their own place. Neither do I speak of ruder nations, among whom this is a relict of reason, not of rudeness, as the Oriental Indians have a custom, whenever any person runs a muck, that is, in a revengeful fury, takes such a quantity of opium, as distracts them into such a rage of mad animosity, that they fear not to assault (which is the common operation of that portion there) and go through destroying whom they can find in their way: then every man arms against him: and is ambitious of the honour of first killing him, which is very rational; for otherwise no man could be safe; and it seems to be as rational, to take the same course with our mad malignant mucks who are drunk with hellish fury, and are running in a rage to destroy the people of God whom they can meet with. But all the nations, where the best policy was established, have been of his mind. In Greece public rewards were enacted to be given, and honours appointed for several cities, to those that should kill tyrants, from the mightiest of them to the meanest; with whom they thought there was no bond of humanity to be kept. Hence, Thebe is usually commended for killing her husband, Timoleon for killing his brother, because they were pernicious and destructive to the commonwealth: which, though it seem not justifiable, because of the breach of relation of natural subjection, yet it shews what sentiments the most politic nations have had of this practice. As also among the Romans, Cassius is commended for killing his son, and Fulvius for killing his own son going to Cataline, and Brutus for killing his kinsmen, having understood they had conspired to introduce tyranny again. Servilius Ahala is commended for killing even in the court Sep. Melius, turning his back and refusing to compear in judgment, and for this was never judged guilty of bloodshed, but thought nobilitate by the slaughter of a tyrant, and all

posterity did affirm the same. Cicero, speaking of the slaughter of Cesar, styles it a famous and divine fact, and put to imitation. Sulpitius Asper, being asked, why he had combined with others against Nero, and thought to have killed him? made this bold reply, 'that he knew not any other way to put a stop to his villanies, and redeem the world from the infection of his example, and the evils which they groaned under by reason of his crimes.' On the contrary, Domitius Corbulo is reprehended by all, for neglecting the safety of mankind, in not putting an end to Nero's cruelty, when he might very easily have done it: and not only was he by the Romans reprehended, but by Tyridates the Persian king, being not all afraid lest it should afterward befall an example unto himself.

When the ministers of Caius Caligula, a most cruel tyrant, were, with the like cruelty, tumultuating for the slaughter of their master, requiring them that killed him to be punished, Valerius Asiaticus the senator cried out aloud, 'I wish I had killed him,' and thereby both composed their clamour, and stopt their rage. 'For there is so great force in an honest deed, (saith Buchanan *de jure Regni*, relating this passage) that the very lightest shew thereof, being presented to the minds of men, the most furious assaults are allayed, and fury will languish, and madness itself must acknowledge the sovereignty of reason.' The senate of Rome did often approve the fact, tho' done without their order oftentimes by private hands: as upon the slaughter of Commodus, instead of revenging it, they decreed that his carcase should be exposed and torn in pieces. Sometimes they ordered before hand to have it done; as when they condemned Didimus Julianus, they sent a tribune to slay him in the palace: nay, they have gone so far, as in some cases to appoint reward for such as should kill those tyrants that trampled upon their laws, and murdered virtuous and innocent people; as that sentence of the senate against the two Maximini doth witness, Whosoever killeth them deserves a reward. Buchanan as above, rehearsing many instances of this nature, gives reasons of their approveableness; and these I find here and

there scattered, in his book, *de jure Regni*, 1. They that make a prey of the commonwealth, are not joined to us by any civil bond or tie of humanity, but should be accounted the most capital enemies of God and of all men. 2. They are not to be counted as within human society, but transgressors of the limits thereof; which whoso will not enter into, and contain himself within, should be taken and treated as wolves, or other kinds of noisome beasts, which whosoever spares, he preserves them to his own destruction, and of others; and whosoever killeth, doth not only good to himself, but to all others; and therefore doth merit rather reward than to be condemned for it. For if any man, divested of humanity, should degenerate into such cruelty, as he would not meet with other men but for their destruction (as the monsters I am speaking of, could meet with none of the party here treated on, but to this effect) he is not to be called a man, no more than satyrs, apes or bears. 3. It is expressly commanded to cut off wickedness and wicked men, without any exception of rank or degree; and, if kings would abandon the counsels of wicked men, and measure their greatness rather by duties of virtue, than by the impunity of evil deeds, they would not be grieved for the punishment of tyrants, nor think that royal majesty is lessened by their destruction, but rather be glad that it is purged from such a stain of wickedness. 4. What is here to be reprehended? is it the cause of their punishment? That is palpable. Is it the law which adjudges them to punishment? All laws were desired as necessary for repressing tyrants; whosoever doth condemn this, must likewise condemn all the laws of nations. Is it the person executing the laws? Where will any other be found to do it in such circumstances? 5. A lawful war being once undertaken with an enemy for a just cause, it is lawful not only for the whole people to kill that enemy, but for every one of them: every one therefore may kill a tyrant, who is a public enemy, with whom all good men have a perpetual warfare; meaning, if he be habitually tyrannical, and destructive to the people, so that there is no living for good people for him; otherwise, though a man by

force or fraud acquire sovereignty, no such violence is to be done to him, providing he use a moderate way in his government, such as Vespasian among the Romans, Hiero in Syracuse. 6. Treason cannot be committed against one who destroys all laws and liberties of the people, and is a pernicious plague to the commonwealth.

2. Such is the force of this truth in the case of circumstantiate, that it extorts the acknowledgment of the greatest authors ancient and modern, domestic and foreign, and even of all rational royalists (as Mr. Mitchel lays in his postscript to the forecited letter.) That it is lawful for any private person to kill a tyrant without a title, and to kill tories or open murderers, as devouring beasts, because the good of his action doth not only redound to the person himself, but to the whole commonwealth, and the person acting incurs the danger himself alone.

Tertullian, though a man loyal to excels, says, every man is a soldier inrolled to bear arms against all traitors and public enemies. The ancient ecclesiastical historian, Sozomen, relating the death of Julian, and intimating that he was supposed to have been slain by a Christian soldier, adds, Let none be so rash as to condemn the person that did it, considering he was thus courageous in behalf of God and religion, Sozom. Hist. lib. 6. cap. 2. Barclaius, a great royalist, faith, all antiquity agrees, that tyrants, as public enemies, may, most justly, be attacked and slain, not only by the community but also by every individual person thereof. Grotius de jure belli, lib. i. cap. 4. saith, If any person grasp at dominion by unjust war, or hath no title thereto by consent of the community, and no paction is made with him, nor allegiance granted, but retains possession by violence only, the right of war remains; and therefore it is lawful to attack him as an enemy, who may be killed by any man, and that lawfully. Yea, king James VI. in his remonstrance for the right of kings, says, the public laws make it lawful and free for any private persons to enterprise against an usurper.

Divines say the same. Chamier, Tom. 2. lib. 15. cap 12. Sect. 19. All subjects have right to attack tyrants. Alsted. Theolog. Gaf. cap. 17. reg. 9. p. 321. Any private man may and ought to cut off a tyrant, who is an invader, without a title; because in a hostile manner he invades his native country. And, cap. 1. 18. reg. 14. p. 332. 'It is lawful for every private man to kill a tyrant, who unjustly invades the government. But Dr. Ames concerning conscience, Book 3. Chap 31. concerning manslaughter, asserts all that is here pleaded for in express terms, Quest. 4. Whether or no is it lawful for a man to kill another by his own private authority? Ans. Sometimes it is lawful to kill, no public precognition preceeding; but then only, when the cause evidently requires that it should be done, and public authority cannot be got: For in that case, a private man is publicly constitute the minister of justice, as well by the permission of God, as the consent of all men. These propositions carry such evidence in them, that the authors thought it superfluous to confirm them, and sufficient to affirm them. And from any reason that can be adduced to prove any of these assertions, it will be as evident that this truth I plead for, is thereby confirmed, as that itself is thereby strengthened: for it will follow natively, if tyrants, and tyrants without a title, be to be thus dealt with,; then the monsters, of whom the question is, those notorious incendiaries and murdering public enemies, are also to be so served: for either these authors assert the lawfulness of so treating tyrants without a title, because they are tyrants, or because they want a title. If the first be said, then all tyrants are to be so served; and reason would say, and royalists will subscribe, if tyrants that call themselves kings may be so animadverted upon, because of their perniciousness to the commonwealth by their usurped authority, then the subordinate firebrands that are the immediate instruments of that destruction, the inferior emissaries that act it, and actually accomplish it, in murdering innocent people, may be so treated; for their persons are not more sacred than the other, nor more unpunishable. If the second be said, it is lawful to kill them,

because they want a title; then it is either because they want a pretended title, or because they want a real and lawful one. The latter is as good as none, and it is proven, Head 2. Arg. 7. that no tyrants can have any. The former cannot be said, for all tyrants will pretend some, at least before they be killed.

3. But though some of these great authors neither give their reasons for what they assert, nor do they extend it to all tyrants that tyrannize by virtue of their pretended authority, yet it will not be difficult to prove, that all, great and small, that murder, destroy, and tyrannize over poor people, are to be punished, though they pretend authority for what they do. And hence, if all tyrants, murderers and destroyers of mankind ought to be punished; then when it cannot be done by public authority, it may be done by private; but all tyrants, murderers and destroyers of mankind ought to be punished: Therefore—. The minor is manifest from the general commands of shedding the blood of every man that sheds it, Gen. ix. 6. of putting to death whosoever killeth any person, Numb. xxxv. 30, 31. of respecting no man's person in judgment, Deut. i. 17. And universally all penal laws are general without exception of any; for under that reduplication of criminal transgressing those laws, under that general sanction, they are to be judged; which admits of no partial respect: for if the greatest of men be murderers, they are not to be considered as great, but as murderers; just as the meanest are to be considered as mean or poor, but as murderers. But I need not insist on this, being sufficiently proved, Head 2. Arg. 9. and throughout that Head, proving that tyrants can have no authority: and, if they have no authority, then authority (which they have not) cannot exempt them from punishment. The connexion of the major proposition may be thus urged: when this judgment cannot be executed by public authority, either it must be done by private authority, in case of extreme necessity, or not at all: for there is no medium, but either to do it by public authority, or private: if not at all, then the land must remain still defiled with blood, and cannot be cleansed,

Numb. xxxv. 33. Then the fierce anger of the Lord cannot be averted, Numb. xxxv. 4. for without this executing of judgment, he will not turn it away, Jer. v. 1. Then must murderers be encouraged, by their impunity, to make havoc of all according to their lust, besides that poor handful who cannot escape their prey, as their case is circumstantiate. Besides, this is point black contrary to these general commands, which say peremptorily, the murderer shall be put to death; but this supposed case, when public authority will not or cannot put them to death, says, they shall not be put to death. In this case then I demand, whether their impunity is necessary, because they must not be put to death? or because they cannot be put to death? To say the latter, were an untruth; for private persons can do it, when they get access, which is possible: if the former, then it is clearly contradictory to the commands, which say, they must be put to death, excepting no case, but when they cannot be put to death. If it be said, they must not be put to death, because the law obliges only public authority to execute judgment: to this I reply, 1. I trust to make the contrary appear from scripture by and by. 2. If the law obliges none but those in public authority to execute judgment, then when there is no judgment execute, it must be the sin of none but those in public authority; and if it be only their sin, how comes others to be threatened and punished for this, that judgment is not executed? If they must only stand by, and be spectators of their omissions unconcerned, what shall they do to evite this wrath? shall they exhort them, or witness against them? But that more than all this is required, is proved before several times, where this argument of people's being punished for the sin of their rulers hath been touched. 3. Then when there is no authority, it must be no sin at all that judgment is not executed, because it is the sin of none; it cannot be sin, except it be the sin of some. 4. What if those in public authority be the murderers? Who shall put them to death? By what authority shall judgment be execute upon them? Whether public or private? public it cannot be; for there is no formal public authority above the

supreme, who are supposed the party to be punished; if it be the radical authority of the people, which is the thing we plead for, then it is but private, as that of one party against the other: the people are the party grieved, and so cannot be judges: at best then, this will be extrajudicial executing of judgment. And if the people may do it upon the greatest of tyrants, then a part of them who are in greatest hazard may save themselves from those of lesser note, by putting them to death: for if all the people have right to punish universal tyrants, because they are destroyers of all; then a part hath right to punish particular tyrants, because they are destroyers of them, when they cannot have access to public authority, nor the concurrence of the whole body.

4. Let these murderers and incendiaries be considered, either as a part of the community with them whom they murder and destroy, or not; if they be a part, and do belong to the same community (which is not granted in this case, yet let it be given) then when the safety of the whole, or better part, cannot consist with the sparing or preserving of a single man, especially such an one as prejudices all, and destroys that better part; he is rather to be cut off, than the whole or the better part be endangered: for the cutting off of a contagious member that destroys the rest of the body, is well warranted by nature, because the safety of the whole is to be preferred to the safety of a part, especially a destructive part: but now, who shall cut it off? since it must be cut off, otherwise a greater part of the body will be presently consumed, and the whole endangered. It is sure the physician's duty; but what if he will not, or cannot, or there be no physician? then any that can may and must; yea, one member may, in that case, cut off another. So, when either the magistrate will not, or dare not, or does not, or there is none to do this necessary work of justice, for the preservation of the community; any member of it may rather prevent the destruction of the whole, or a greater part, by destroying the murdering and destructive member, than suffer himself and others to be unavoidably destroyed by his being spared. If they

be not within, or belonging to that society, then they may be dealt with, and carried towards as public enemies and strangers, and all advantages may be taken of them in cases of necessity, as men would do, if invaded by Turks or Tartars.

5. Let it be considered, what men might have done in such a case before government was erected, if there had been some public and notour murderers still preying upon some sort of men. Certainly then private persons (as all are in that case) might kill them to prevent future destruction. Hence, if this was lawful before government was established, it cannot be unlawful when people cannot have the benefit of the government, when the government that is, instead of giving redress to the grieved and oppressed, does allow and empower them to destroy them: otherwise people might be better without government than with it; for then they might prevent their murderers by cutting them off. But so it is that this was lawful before government was established: for let it be adverted, that the scripture seems to insinuate such a case before the flood. Cain, after he murdered his brother, feared that every man that found him should slay him. Gen. iv. 14. If he had reason to fear this, as certainly he had, if the Lord had not removed that, by prorogueing the execution of vengeance upon him, for his greater punishment, and the world's more lasting instruction, and by setting a mark upon him, and inhibiting, under a severe threatning, any to touch him; then every man that should have killed him was the magistrate, (which were ridiculous) or every man was every, and any private person universally, which might have killed him, if this inhibition had not past upon it. Ainsworth upon the place saith, 'That among the ancient Romans, every one might kill without a challenge, any man that was cursed for some public crime.' And cites Dionys. Halicarnas. l. 2. And so Cain spoke this from a dictate of nature and a guilty conscience.

6. At the erection of government, though the people resign the formal power of life and death, and punishing criminals, over to the governor constitute by them; yet, as they retain the radical power and right virtually, so when either the magistrates neglect their duty of vindicating the innocent, and punishing their destroyers, or impower murderers to prey upon them; in that case, they may resume the exercise of it, to destroy their destroyers, when there is no other way of preventing or escaping their destructions; because extreme remedies ought to be applied to extreme diseases. In an extraordinary exigent, when Ahab and Jezebel did undo the church of God, Elias, with the people's help, killed all Baal's priests, against and without the king's will; in this case, it is evident the people resumed their power, as *Lex Rex* saith, quest. 9. p. 63. There must be a court of necessity, no less than a court of justice, when it is in this extremity, as if they had no ruler, as that same learned author saith, quest. 24. pag. 213. If then the people may resume that power in cases of necessity, which they resigned to the magistrate; then a part may resume it, when a part only is in that necessity, and all may claim an interest in the resumption, that had an interest in the resignation.

7. Especially upon the dissolution of a government when people are under a necessity to revolt from it, and so are reduced to their primitive liberty, they may then resume all that power they had before the resignation, and exert it in extraordinary exigents of necessity. If then a people that have no magistrates at all may take order with their destroyers then must they have the same power under a lawful revolt. As the ten tribes, if they had not exceeded in severity against Adoram, Rehoboam's collector, had just cause to take order with that usurper's emissary, if he came to oppress them; but if he had come to murder them, then certainly it was duty to put him to death, and could not be censured at all, as it is not in the history, 1 Kings xii. 18. But so it is that the people pursued by these murderers, some of which in their extreme exigencies they put to death; have for these several years

maintained a declared revolt from the present government, and have denied all subjection to it upon the grounds vindicated, Head 2. And there they must be considered as reduced to their primeve liberty, and their pursuers as their public enemies, to whom they are no otherwise related than if they were Turks, whom none will deny it lawful to kill, if they invade the land to destroy the inhabitants.

8. Hence, seeing they are no other than public enemies, unjustly invading, pursuing, and seeking them to destroy them: what arguments will prove the lawfulness of resistance, and the necessity of self-defence, in the immediate defence of life, as well as remote, will also prove the lawfulness of taking all advantages upon them: for if it be lawful to kill an enemy in his immediate assault, to prevent his killing of them, when there is no other way of preserving themselves from his fury; then it must be lawful also in his remote but still incessant pursuit, to prevent his murdering them by killing him, when there is no other way to escape in a case of extreme necessity. But that this was the case of that poor people, witnesses can best prove it; and I dare appeal to two sorts of them that know it best, that is, all the pursuers, and all the pursued.

9. This is founded, and follows upon the 4th article of the Solemn League and covenant: where we are bound with all faithfulness to endeavour the discovery, of all such as have been, or shall be incendiaries, malignants or evil instruments,—that they may be brought to public trial, and receive condign punishment. Now, as this obliges to the orderly and ordinary way of prosecuting them when there is access to public judicatories: so when there is none either this article obliges to no endeavour at all; (which cannot be, for it is moral duty to endeavour the punishment of such) or else it must oblige to this extraordinary action and execution of judgment, if to any at all. Especially considering, how, in the sense of the short comings of this duty, it is renewed in the solemn acknowledgement of sins, and engagement

to duties, that we shall be so far from conniving at malignity, injustice, &c., that we shall——take a more effectual course, than heretofore, in our respective places and callings, for punishing and suppressing these evils.——Certainly we were called to one way of prosecuting this obligation then, when it was first engaged into, and to another now, when our capacity and circumstances are so materially and formally altered: if the effectual course then was by public authority; then now when that is wanting, there must be some obligation to take some effectual course still, that may suit our places and callings, which will certainly comprehend this extraordinary way of suppressing those evils, by preventing their growth in curbing the instruments, and executing judgment upon them, in a case of extreme necessity, which will suit with all places, and all callings.

II. From the scriptures, these arguments are offered,

First, Some approved examples, and imitable in the like circumstances, will clear and confirm the lawfulness of this extraordinary work of judgment executed by private persons, upon notorious incendiaries, firebrands, and murderers, guilty of death by the law of God,

1. Moses spied an Egyptian smiting an Hebrew, one of his brethren; and he looked this way, and that way, and when he saw that there was no man, he slew the Egyptian, and hid him in the sand, Exod. ii. 11, 12. Here is an uncondemned example: whereof the actor who was the relater did not condemn himself, though he condemns himself for faults that seem less odious; yea, in effect, he is rather condemned by Stephen the Martyr, Acts vii. And though it be extraordinary, in that it was done by private authority, not by a judge, as it was objected to him the second day: yet it was not unimitable; because that action, though heroical, whereof the ground was ordinary, the rule moral, the circumstances commonly incident, the management directed by human prudence, cannot be unimitable; but such

was this action, though heroical. The ground was ordinary, spying his brother in hazard, whose murder he would have prevented. The rule was moral, being according to that moral precept in rescuing our brother in hazard, Prov. xxiv. 11, 12. The circumstances were incident in a case of extreme necessity, which he managed very prudently, looking this way, and that way, and hiding him in the sand. Therefore it may be imitated in the like case. It signifies nothing to say that he was moved by the Spirit of God thereto: for unto every righteous performance the motion of the Spirit of God is requisite. This impulse that Moses had and others after-mentioned, was nothing but a greater measure of that assisting grace, which the extraordinariness of the case, and the difficulties therein occurring did call for; but the interveining of such motions, do not alter the rule, so as to make the action unimitable. Impulses are not the rule of duty, either under an ordinary or extraordinary exigence; but when they are subsequent and subservient both to the rule of duty, and to a man's call in his present circumstances, they clearly determine to the species of an heroic enterprise; in so much that it is not only the particular deed that we are to heed for our imitation, but we are to emulate the grace and principle of zeal which produced it, and is thereby so conspicuously relucient for our upstirring to acts in like manner, as God may give opportunity, as is observed by the true non-conformist, Dial. 7. pag. 392, &c.

2. When Israel joined himself unto Baal-Peor, the Lord said unto Moses, 'Take all the heads of the people, and hang them up before the Lord against the sun, that the fierce anger of the Lord may be turned away from Israel.' And Moses said unto the judges, 'Slay every one his men that were joined unto Ball-Peor.' And when Zimri brought the Midianitish Cozbi in the sight of Moses, and in the sight of all the congregation, who were weeping before the door of the tabernacle; and when Phineas saw it, he rose up,——and took the javelin in his hand, and he went after the men of Israel into the tent, and thrust both of them through,——So the plague was stayed,——

And the Lord spake unto Moses, saying, 'Phineas hath turned away my wrath from the children of Israel, while he was zealous for my sake among them,——I give unto him my covenant of peace,——because he was zealous for his God, and made an atonement for the children of Israel.' Numb. xxv. 3.-13. This action is here much commended, and recorded to his commendation, Psal. cvi. 30, 31. Then stood up Phinehas, and executed judgment, and so the plague was stayed; and that was counted to him for righteousness, unto all generations; that is,——Into justice of the deed before men, who otherwise might have put a bad construction upon it, as rash, out of season, committed against a magistrate by a private person, too cruel by cutting them off from repentance; but God esteemed it as extraordinary just. Pool's Synops. Critic. in Locum. It is certain, this action was some way extraordinary; because Phinehas was not a magistrate, nor one of the judges whom Moses commanded to slay every one his men, ver. 5. Otherwise, if this had been only an ordinary execution of the judgment by the authority of Moses, Phinehas' action would not have been taken so much notice of, nor so signally rewarded; but here it is noted as a singular act of zeal, which it could not have been, if it was only an ordinary execution of the magistrate's command: yet, though this action was signally heroical, proceeding from a principle of pure zeal for God, and prompted by a powerful motion of the Spirit of God to that extraordinary execution of judgment: it is notwithstanding imitable in the like circumstances. For, the matter is ordinary, being neither preternatural, nor supernatural, but just and necessary. The end was ordinary, to turn away the wrath of God, which all were obliged to endeavour. The principle was ordinary, (though at the time he had an extraordinary measure of it) being zealous for the Lord, as all were obliged to be. The rule was ordinary, to wit, the command of slaying every man that was joined to Baal Peor, ver. 5. only this was extraordinary, that the zeal of God called him to his heroical action, though he was not a magistrate, in this extraordinary exigent, to avert the wrath of God; which

was neither by Moses's command, nor by the judges obedience, turned away only by Phinehas' act of another nature, and his zeal appearing therein, and prompting him thereto, the Lord was appeased, and the plague slayed. In which fervour of zeal, transporting him to the omission of the ordinary solemnities of judgment, the Spirit of the Lord places the righteousness and praise of the action. Yet the same call and motion of zeal might have empowered others to do the like: the text speaks of no other call he had, but that of zeal, ver. 11, 12, 13. yea, another was obliged to do the same, upon the ground of that moral command, Deut. xiii. 6.-9. having the ground of God's ordinary judgment, which commandeth the idolater to die the death; and therefore to be imitate of all that prefer the true honour and glory of God to the affection of flesh and wicked princes, as Mr. Knox affirmeth in his conference with Lethingtoun, rehearsed before, per. 3. Further, let it be enquired, What makes it unimitable? Certainly it was not so, because he had the motion and direction of God's Spirit; for men have that to all duties. It was not, because he was raised and stirred up of God to do it; for God may raise up spirits to imitable actions. It was not, because he had an extraordinary call, for men have an extraordinary call, to imitable actions, as the apostles had to preach. We grant these actions are extraordinary and unimitable; which, first, do deviate from the rule of common virtue, and transcend all rules of common reason and divine word; but this was not such, but an heroic act of zeal and fortitude: Next these actions, which are contrary to a moral ordinary command are unimitable, as the Israelites robbing the Egyptians, borrowing, and not paying again, Abraham's offering his son Isaac; but this was not such: next those actions, which are done upon some special mandate of God, and are not within the compass of ordinary obedience to the ordinary rule, are unimitable; but is not such: as also miraculous actions, and such as are done by the extraordinary inspiration of the Spirit of God, as Elias's killing the captains with their fifties by fire from heaven; but none can reckon this among these.

See Jus Populi at length discussing this point, and pleading for the suitableness of this action, cap. 20. If therefore the Lord did not only raise up this Phinehas to that particular act of justice, but also so warrant and accept him therein, and reward him therefore, upon the account of his zeal, when there was a godly and zealous magistrate, able, and whom we cannot without breach of charity presume, but also willing to execute justice; how much more may it be pleaded, that the Lord, who is the same yesterday, to day and forever, will not only pour out of that same spirit upon others; but also when he gives it, both allow them, though they be but private persons, and also call them, being otherwise in a physical and probable capacity to do these things in an extremely necessitous, and otherwise irrecoverable state of the church, to which in a more intire condition he doth not call them? And particularly, when there is not only the like or worse provocations, the like necessity of execution of justice and of reformation, for the turning away of wrath, and removing of judgments, that was in Phinehas's case, but also, when the supreme civil magistrate, the nobles of the kingdom, and other inferior rulers, are not only unwilling to do their duty, but so far corrupted and perverted, that they are become the authors and patronizers of these abominations, Naph. prior Edit. p. 23.

3. When the children of Israel served Eglon the king of Moab, and they cried unto the Lord, he raised them up a deliverer, Ehud the son of Gera, who made a dagger, and brought a present unto Eglon, and put forth his left hand, and took the dagger from his right thigh, and thrust it into his belly, Judg. iii. 21. That this action was approven will not be doubted, since the Lord raised him up as a deliverer who by this heroical action commenced it; and since it was a message from God, and that it was extraordinary, were ridiculous to deny: for sure this was not the judicial action of a magistrate, neither was Ehud a magistrate at this time, but only the messenger of the people sent with a present. Yet it is imitable in the like case, as from hence

many grave authors concluded the lawfulness of killing a tyrant without a title.

4. When the Lord discomfitted the host of Jabin, and Sifera his captain fled into the house of Heber the Kenite, Jael Heber's wife took a nail of the tent, and went softly unto him, and smote the nail into his temples, Judg, iv. 21. of which the prophetess Deborah says, chap. v. 24. "Blessed above women shall Jael the wife of Heber the Kenite be above women in the tent." Yet not only was Jael no magistrate, but in subjection to and at peace with Jabin, though she killed his captain. But there was no injustice here, when he was declared a public enemy, the war was just, he was an oppressor of the people of God, it became Jael, as a member of the commonwealth, to betray and cut off the common enemy. Therefore Jael had sinned, if she had not killed him. Martyr and others cited in Pool. Synops. Critic. upon the place, albeit that author himself, in his English annotations, does cut the knot, instead of loosing it, in denying Deborah's song to be divinely inspired in its first composure, but only recorded as a history by divine inspiration, as other historical passages not approven, only because this heroic fact of Jael is there recommended, which is too bold an attempt upon this part of the holy canon of the scripture: whence we see what inconveniences they are driven to, that deny this principle of natural justice, the lawfulness of cutting off public enemies, to procure the deliverance of the Lord's people. Hence, If it be lawful for private persons, under subjection to, and at peace with the public enemies of the Lord's people to take all advantages to break their yoke, and deliver the oppressed from their bondage, by killing their oppressors; it must be much more lawful for such as acknowledge no such subjection or agreement, to attempt the same in extreme necessity; but the former is true: therefore the latter.

5. When Samson married the Timnite, and obliged himself by compact, to give them thirty sheets and thirty change of garments, upon their solving

his riddle, the Spirit of the Lord came upon him, and he went down to Askelon, and slew thirty men of them, and took their spoil, Judg. xiv. 19. And afterwards, when he lost his wife by the cruelty and treachery of those Philistines, he said unto them, 'Though you have done this, yet will I be avenged of you, and after that I will cease. And he smote them hip and thigh with a great slaughter,' chap. xv. 7, 8. And when the Jews, who acknowledged the Philistines for rulers, came to Etam to expostulate with him, all the satisfaction he gave them was to avouch, that as they had done unto him, so he had done unto them, and to kill a thousand more of them, ver. 11. &c. These were extraordinary heroic facts, not only because they flowed from an extraordinary power wherewith he was endued, and from an extraordinary motion and call; but because of his avenging his own private injuries for the public good, in a way both of fortitude and prudence, without a declared war, provoking the enemies against himself, and diverting from the people, and converting against himself, all their fury, in which also he acted as a type of Christ; and also because he acted not as a magistrate at this time, for by whom was he called or counted a magistrate? not by the Philistines, nor by the men of Judah, for they tell him that the Philistines were their lords, and they bound him and delivered him up to them: yet in his private capacity, in that extraordinary exigence, he avenged himself and his country against his public enemies, by a clandestine war, which is imitable in the like case, when a prevailing faction of murdering enemies domineer over and destroy the people of God, and there is no other way to be delivered from them; for his ground was moral, because they were public enemies, to whom he might do as they did to him. Hence, if saints sometimes, in cases of necessity, may do unto their public enemies, as they have done unto them, in prosecuting a war not declared against them; then much more may they do so in cases of necessity, to deliver themselves from their murdering violence, when a war is declared; but here is an example of the former: ergo

6. When these same Philistines again invaded and over-ran the land in the time of Saul, Jonathan his son, and his armour bearer, fell upon the garrison of these uncircumcised, and killed them, 1 Sam. xiv. 6. 13. This was an heroic action, without public authority; for he told not his father, ver. 1. And singular indeed, in respect of the effect, and were a tempting of the Lord, for so few to assault such a multitude, as it were to imitate Samson in his exploits; but in this respect, these actions are unimitable in consideration of prudence, not of conscience, or as to the lawfulness of the thing: their ground was moral, to cut off public enemies. Hence, If it be lawful to fall upon a garrison of public enemies, oppressing the country, then it must be lawful to fall upon one or two, that are the ring leaders of public enemies, and main promoters of their destruction, that are as pernicious, and have no more right or power, than the Philistines; but such is the case of those about whom the question is.

7. When David dwelt in the country of the Philistines, he and his men went up and invaded the Geshurites, and the Gezrites, and the Amalekites; and David smote the land, and left neither man nor woman alive, 1 Sam. xxvii. 8, 9. This was without public authority, having none from Saul, none from Achish, in whose country he dwelt, and none of his own, being no magistrate. We deny not the divine motion, but plead, that it is imitable from its moral ground, which was that command to cut off the Amalekites, Exod. xvii. and the Amorites, whose relicts these nations were; the same ground that Saul the magistrate had to destroy them. Whence it is lawful sometimes for others than magistrates to do that which is incumbent to magistrates, when they neglect their duty. All I plead for from it is, If it be lawful for private persons, upon the call of God, to cut off their public enemies, when they are obliged by the command of God to destroy them, though they be living quietly and peaceably in the country; then may it be lawful, in cases of necessity, for private persons to cut off their public enemies, whom they are obliged, by the covenant of God, to bring to

condign punishment, and to extirpate them, (as the covenant obliges in reference to malignant incendiaries) when they are ravening like lions for their prey.

8. In the days of Ahab and Jezebel's tyranny, whereby the idolatrous prophets of Baal were not punished according to the law, Elijah said unto the people, 'Take the prophets of Baal, let none of them escape; and they took them to the brook Kishon, and slew them there,' 1 Kings xviii. 40. How Mr. Knox improved this passage we heard before, in the historical representation, Per, 3. and Jus pop. vindicates it, that in some cases private persons may execute judgment on malefactors, after the example of Elias here. Which fact, Peter Martyr, in locum, defendeth thus: 'I say it was done by the law of God; for, Deut. xviii. 20. God decerned that the false prophet should die; and chap. xvii. the same is said of private men and women, who would worship idols; but, chap. xiii. not only is death threatened against a seducing prophet, but a command is added, That no man should spare his brethren.—3dly, It is commanded, that the whole city, when it becometh idolatrous, should be cut off by fire and sword:' And, Lev. xxiv. 14. 16. it is statute, that the blasphemer should not live: 'to which we may add the law or equity of taliation: for these prophets of Baal caused Jezebel and Ahab kill the servants of the Lord.' See Jus pop. cap. 20. pag. 425. Upon this also Mr. Mitchel defends his fact, as above,—'Also Elijah, by virtue of that precept, Deut. xiii. gave commandment to the people to destroy Baal's priests, contrary to the command of the seducing magistrate, who was not only remiss and negligent in executing justice, but became a protector and defender of the seducers; then and in that case, I suppose the Christians duty not to be very dark.'

9. This idolatrous and tyrannical house was afterwards condignly punished by Jehu, 2 Kings ix. x. chap. who destroyed all the idolaters, who were before encouraged and protected by that court, chap. x. 25. This

extraordinary fact was not justified by his magistratical authority; for that was as extraordinary as the fact itself, and conferred as a mean to accomplish the fact. He had no authority by the people's suffrages, nor was he acknowledged as such by the court or body of the people, only the Lord gave it extraordinarily. But it is not the imitation of his assumption of authority that is here pleaded for, but the imitation of his fact in extraordinary cases, when not only tyrants and idolaters pass unpunished, but their insolency in murdering the innocent is intolerable. Mr. Knox vindicates this at length, as before, and shews, that it had the ground of God's ordinary judgment, which commands the idolater to die the death; and that though we must not indeed follow extraordinary examples, if the example repugn to the law, but where it agrees with and is the execution of the law, an example uncondemned stands for a command; for God is constant, and will not condemn in ages subsequent what he hath approved in his servants before. See the Testimony of Period 3. above, and Jus pop. cap. 20. pag. 418.

10. When Athaliah, the mother of Ahaziah, had tyrannized six years, at length Jehoiada, with others, made a conspiracy against her, to depose her, and make Joash king; which when it was discovered, she cried treason, treason, as indeed it would have been so, if she had been the lawful magistrate; for it was an attempt of subjects against her that had the possession of the sovereign power. But Jehoiada commanded the captains to heave her forth without the ranges, and him that followeth her kill with the sword; and they laid hands on her, and she was slain, 2 Kings xii. 14,—16. That this is imitable in the punishment of tyrants, is cleared above. If therefore it be lawful for subjects to kill usurping tyrants, and such as follow them to help them, under whom nevertheless people might have a life; then it must be lawful for private persons to put forth their hand against their cut-throat emissaries, in a case of necessity, when there is no living for them.

11. When Amaziah turned idolater and tyrant, after the time that he turned away from the Lord, they made a conspiracy against him in Jerusalem, and he fled to Lachish; but they sent to Lachish after him and slew him there, Chron. xxv. 37. This fact is before vindicated by Mr. Knox, Period 3. afterward Head 2. and Head 5.

12. When Esther made suit to reverse Haman's letters, the king granted the Jews in every city, not only to gather themselves together, and to stand for their lives, but also to destroy, to slay, and to cause to perish, all the power of the people and province that would assault them, both little ones and women,—and to avenge themselves on their enemies. And accordingly in the day that their enemies hoped to have power over them, the Jews gathered themselves to lay hand on such as sought their hurt, and smote all their enemies with the stroke of the sword, Esth. viii. 11, 13, chap. ix, 1-5, &c. They had indeed that law of nature fortified by the king's accessory authority, as Valentinian, by his edict, granted the like liberty, to resist any unjust invader to depopulate the lands of his subjects, that he might be forthwith liable to a deserved punishment, and suffer that death which he threatned.—And the like of Arcadius is extant, in the Justinian Cod. Tit. How it may be lawful for every man to vindicate himself and the public, without the concurrence of a judge. But that doth not exclude the lawfulness of such resistances in case of necessity, without public authority; so here, it was not the king's commandment that made the Jews avenging themselves lawful, if it had not been lawful before and without it; it gave them only liberty to improve that privilege, which they had from God and nature. Surely their power of resisting did not depend on the king's commandment, as is proven, Head 5. Ergo, neither their power of avenging themselves, to prevent their murder by their enemies, which they could and were obliged to do, if there had been no such authority: Ergo, it was not only suspended upon the king's authority. And as for Haman's sons and adherents, being Agagites, they were obliged, by a prior command, to avenge themselves on

them, on all occasions, by that command to destroy Amalek: therefore it must be lawful, even without public authority, in some cases of necessity, to prevent the murder of public enemies, by laying hands on them that seek the hurt of all the people of God.

Secondly, There are some precepts from which the same may be concluded.

1. There is a command, and the first penal statute against murderers, we read, Gen. ix. 6. 'Whoso sheddeth man's blood, by man shall his blood be shed.' Here the command is given in general to punish capitally all murderers; but there may be some that no magistrate can punish, who are not here exempted, to wit, they that are in supreme authority, and turn murderers, as was said above. Again, the command is given in general to man involving all the community (where the murderer is) in guilt, if his blood be not shed; as we find in the scripture, all the people were threatned and punished because judgment was not executed; and when it was executed even by these who were no magistrates, the wrath of God was turned away, whereof there are many examples above. Further, if the command to shed the blood of murderers be given before the institution of magistracy, then, in case of necessity, to stop the course of murderers, it may be obeyed, when there is no magistrate to execute it: but here it is given before the first institution of magistracy, when now there was no government in the world, but family government, as Grotius on the place saith, 'When this law was given, public judgment was not yet constitute, therefore the natural right and law of taliation is here held forth, which when mankind was increased and divided into several nations, was justly permitted only to judges, some cases excepted, in which that primeve right did remain.' And if in any, then in this case in question. Hence, Lex Rex answereth the p. prelate, essaying to prove, that a magistracy is established in the text denies that Ba Adam, by man, must signify a magistrate, for then

there was but family government, and cites Calvin, of the same mind, that the magistrate is not spoken of here. Though this command afterwards was given to the magistrate, Numb. xxxv. 30. yet in a case of necessity, we must recur to the original command.

2. This same command of punishing murdering enemies, is even, after the institution of magistrates, in several cases not astricted to them, but permitted to the people, yea enjoined to them. As, (1.) Not only magistrates, but the people, are commanded to avenge themselves on their public enemies, as the Israelites, after their being ensnared in the matter of Peor, are commanded to vex the Midianites, and smite them, because they beguiled them, and brought a plague upon them, Numb. xxv. 17, 18. and Numb. xxxi. 2. to avenge themselves on them, and for this end to arm themselves, and go against them, and avenge the Lord of Midian: which they executed with the slaughter of all the males. So likewise are they commanded to destroy Amalek. It is true these commands are given primarily and principally to magistrates, as there to Moses, and afterwards to Saul: yet afterwards we find others than magistrates, upon this moral ground, having the call of God, did execute judgment upon them, as Gideon and David, before they were magistrates, did avenge themselves and the Lord upon them, as is before cleared. It is also true, that there was some holy severity then to be extended against particular nations as such, peculiar to that dispensation, which is not pleaded as imitable; but the ground was moral, and the right of a people's saving themselves by the destruction of their enemies; when there is no other way for it, is natural. And this is all we plead for here. If people may vex their enemies, and avenge themselves against them, even without public authority, when ensnared by their craftiness; much more may they put a stop to their insolency, by cutting off their principle and most pernicious instruments, in case of necessity, when invaded by their cruelty; but here a people is commanded to vex their enemies, and avenge themselves on them, and accordingly Gideon and

David did so, without public authority, and that upon a ground which is moral and natural: Ergo—(2.) The execution of the punishment of murderers is committed to the people: 'The revenger of blood, himself shall slay the murderer, when he meeteth him, he shall slay him,' Numb. xxxv. 19, 21. So that if he met him before he got into any city of refuge, he might lawfully slay him, and if he did flee to any, he was to be rendered up to the avengers hands, Deut. xix. 12. that the guilt of innocent blood may be put away from Israel, ver. 23. This revenger of blood was not the magistrate: for he was the party pursuing, Numb. xxxv. 24. Between whom and the murderer the congregation was to judge: he was only the next in blood or kindred. In the original he is called Goel, the redeemer, or he to whom the right of redemption belongs, and very properly so called, both because he seeks redemption and compensation for the blood of his brother, and because he redeems the land from blood guiltiness, in which otherwise it would be involved. I do not plead that this is always to be imitated, as neither it was always practised in Israel; but if a private man, in a hot pursuit of his brother's murderer, might be his avenger, before he could be brought to judgment, then much more may this power be assumed, in a case of necessity, when there is no judgment to be expected by law, and when not only our brethren have been murdered by them that profess a trade of it, but others also and ourselves are daily in hazard of it, which may be prevented in cutting them off. I do not see what is here merely judicial, so as to be rejected as Judaical: for sure murderers must be slain now as well as then, and there is the same hazard of their escaping now as then: murder involves the land in guilt, now as well as then, and in this case of necessity especially, that law that gives a man right to preserve himself, gives him also right to be his own avenger, if he cannot otherwise defend himself. (3.) Not only the execution, the decision of matters of life and death, is committed to them; as in the case of blasphemy and cursing, 'All that heard were to lay their hands upon his head, and all the congregation was to stone

him,' Lev. xxiv. 14, 16. 'The man-slayer was to stand before the congregation in judgment. Then the congregation shall judge between the slayer and avenger of blood,' Numb. xxxv. 12, 24. The people claimed the power of life and death, in seeking to execute judgment upon those that had spoken treason against Saul, Bring the men (say they) that we may put them to death, 1. Sam. xi. 12. Especially in the case of punishing tyrants, as they did with Amaziah. Certainly this is not so judicial or judaical, as that in no case it may be imitated; for that can never be abrogated altogether, which in many cases is absolutely necessary; but that the people, without public authority, should take the power of life and death, and of putting a stop to the insolency of destroyers, by putting them to death, is in many cases absolutely necessary; for without this they cannot preserve themselves against grassant tyrants, nor the fury of public enemies or firebrands within themselves, in case they have no public authority, or none but such as are on their destroyers side. (4.) Not only the power of purging the land, by divine precept, is incumbent on the people, that it may not ly under blood guiltiness; but also the power of reforming the courts of kings, by taking course with their wicked abettors and evil instruments, is committed to him, with a promise that if this be done, it shall tend to the establishment of their throne; which is not only a supposition in case it be done, but a supposed precept to do it, with an insinuation of the necessity and expediency of it, that it is as suitable as the taking away of the dross from silver, in order to the production of a vessel, Prov. xxv. 4, 5. 'Take away the wicked from before the king, and his throne shall be established in righteousness;' which is not only there given to kings, for then it would be in the second person spoken to them, but to the people to do it before them, as the people did with Baal's prophets from before Ahab. And our progenitors many times have done with wicked counsellors, as may be seen in the foregoing representation, and more fully in the history of the Douglasses, and in Knox's and Calderwood's histories. Hence, if it be duty to reform the court,

and to take away a king's wicked sycophants, counsellors, agents, and instigators to tyranny; then it must be lawful, in some cases of necessity, to restrain their insolency, and repress their tyranny, in executing judgment upon such of them as are most insupportable, who are made drunk with the blood of innocents; but the former is true: therefore——(5.) For the omission of the executing of this judgment on oppressors and murderers, involving the whole land in blood guiltiness, which cannot be expiated but by the blood of them that are so criminal; not only magistrates, but the whole people have been plagued. As for Saul's murdering the Gibeonites, the whole land was plagued, until the man that consumed them, and devised against them to destroy them, seven of his sons were delivered unto them, to be hanged up before the Lord, 2 Sam. xxi. 5, 6. So also for the sins of Manasseh. The reason was, because if the magistrate would not execute judgment, the people should have done it: for not only to the king, but also to his servants, and to the people that entered in by the gates, the command is, execute ye judgment, and deliver the spoiled out of the hand of the oppressor, Jer. xxii. 2, 3. though it be true, this is to be done by every one in their station, justice and order being preserved, and according to the measure of their office, and it chiefly belongs to judges and magistrates: yet this is no wrong to justice, nor breach of order, nor sinful transgression of people's vocation, not only to hinder the shedding of innocent blood, to prevent God's executing of what he there threatens, but also to execute judgment on the shedders, to prevent their progress in murdering villany, when inferior as well as superior magistrates are oppressing and tyrannizing: therefore this seeking, and doing, and executing judgment, is so often required of the people, in such a case, when princes are rebellious and companions of thieves, and in the city where judgment used to be, now murderers bear sway, Isa. i. 17. 21. the Lord is displeased where there is none, Isa. lix. 15, 16. Jer. v. 1. See this vindicated in *Lex Rex*, quest. 34. p. 367. and in *Jus popul.* cap. 10. p. 237.

3. That command concludes the same against idolaters, apostates, and enticers thereunto, Deut. xiii. 6. &c. 'If thy brother—or thy friend, which is as thine own soul, entice thee secretly, saying, let us go and serve other gods——thou shalt not spare nor conceal him, but thou shalt surely kill him——because he sought to thrust thee away from the Lord thy God——And all Israel shall hear, and fear, and do no more any such wickedness.' And ver. 13. &c. 'If thou shall hear say in one of thy cities——saying, Certain men the children of Belial, are gone out——and have withdrawn the inhabitants of their city, saying, let us go to serve other gods——Then shalt thou enquire——and behold if it be truth, and the thing certain——thou shalt surely smite the inhabitants of that city with the edge of the sword, destroying it utterly.'——This cause of the open enticers to idolatry was not brought to the judges, as common idolaters, and such who were enticed to serve other gods, and worship them, were to be brought to the gates, and to be stoned first by the hands of witnesses, and afterwards by all the people, Deut. xvii. 3, 5, 7. But this is another law; of which the Jewish antiquaries, and particularly Grotius out of Philo and the Rabb. upon the place, saith, 'Whereas in other crimes the guilty used to be kept after the sentence a night and a day, that if he could say any more for himself he might, these were excepted from this benefit; and not only so, but it was permitted to any to execute judgment upon them (viz. Enticers to idolatry) without waiting for a judge. The like was used against sacrilegious robbers of the temple, and priests who sacrificed when they were polluted, and those who cursed God by the name of an idol, and those who lay with an idolatress: chiefly those who denied the divine authority of the law: and this behoved to be before the people, at least ten, which in Hebrew they called Hheda.——Neither is this to be admitted in so grievous a crime, when even the man-slayer without the place of refuge might have been killed by the kinsman of the defunct.' And upon Numb. xv. 30. the punishment of presumptuous blasphemers, he says, 'But here these are to be understood thus, that the

guilty shall not be brought to the judges, but be killed by them that deprehended them in the crime, as Phinehas did to Zimri;' and proves it out of Maimonides, Pool. Synop. Critic. on the place. And it must be so; for in this case no mention is made either of judges, or witnesses, or further judgment about it, than that he that was tempted by the enticer should fall upon him, and let the people know it, that they might lay hands on him also; otherwise evil men might pretend such a thing when it was not true.

But in case of a city's apostacy, and hearkning to enticers, the thing was only to be solicitously enquired into, and then though it was chiefly incumbent upon the magistrate to punish it, yet it was not all astricted to him, but that the people might do it without him. As upon this moral ground, was Israel's war stated against Benjamin, Judg. xx. 13. When there was no king nor judge, and also when there were kings that turned idolaters and tyrants, they served them so, as here is commanded: witness Amaziah, as is shewed above. Hence not only Moses, upon the people's defection into idolatry in the wilderness, commanded all on the Lord's side, every man to put his sword by his side,—and slay every man his brother, and every man his companion, and every man his neighbour, whereby three thousand fell at that time by the sword of the Levites, Exod. xxxii. 27, 28. But also Joash, Gideon's father, upon the same moral ground, though he was no magistrate, could say to the Abiezrites, will ye plead for Baal—he that will plead for him, let him be put to death while it is yet morning.—Judg. vi. 31. Moreover, (as Mr. Mitchel adduces the example very pertinently), we see that the people of Israel destroyed idolatry, not only in Judah wherein the king concurred, but in Ephraim, and in Manasseh, where the king himself was an idolater; and albeit, they were but private persons, without public authority: for what all the people was bound to do by the law of God, every one was bound to do it to the uttermost of his power and capacity. Mr. Mitchel offers this place to vindicate his fact of shooting at the prelate, Deut. xiii. 9. 'Wherein, (says he) it is manifest, That the idolater or enticer

to worship a false god, is to be put to death by the hand of those whom he seeks to turn away from the Lord: which precept I humbly take to be moral, and not merely judicial, and that it is not at all ceremonial or levitical. And as every moral precept is universal, as to the extent of place, so also as to the extent of time, and persons.' The chief thing objected here is, that this is judicial precept, peculiarly suited to the old dispensation; which to plead for as a rule under the New Testament, would favour of Jewish rigidity inconsistent with a gospel Spirit. Ans. How Mr. Knox refels this, and clears that the command here is given to all the people, needs not be here repeated; but it were sufficient to read it in the foregoing representation, Period 3. Pag. 24. As it is also cited by Jus Pop. pag. 212. &c. But these general truths may be added, concerning the judicial laws, 1. None can say, that none of the judicial laws, concerning political constitutions, is to be observed in the New Testament: for then many special rules of natural and necessary equity would be rejected, which are contained in the judicial laws of God: yea, all the laws of equity in the world would be so cast: for none can be instanced, which may not be reduced to some of the judicial laws: and if any of them are to be observed, certainly these penal statutes, so necessary for the preservation of policies, must be binding. 2. If we take not our measures from the judicial laws of God, we shall have no laws for punishment of any malefactors by death, of divine right, in the New Testament. And so all capital punishments must be only human constitutions; and consequently they must be all murders: for to take away the life of man, except for such causes as the Lord of our life (to whose arbitrement it is only subject) hath not approven, is murder, as Dr. Ames saith, *De homicidio Conscienc. Lib. 5. Cap. 31. Quest. 2.* For in the New Testament, though in the general, the power of punishing is given to the magistrate, yet it is no where determined, neither what, nor how crimes are to be punished. If therefore penal laws must be taken from the Old Testament; the subject of executing them, as well as the object, must be

thence deduced; that is, what is there astricted to the magistrate must be so still, and what is permitted to the people must remain in like manner their privilege; since it is certain, the New-Testament liberty is not more restricted as to penal laws than the old. 3. Those judicial laws, which had either somewhat typical, or pedagogical, or peculiar to the then judaical state, are indeed not binding to us under that formality; though even these doctrinally are very useful, in so far as in their general nature, or equity of proportion, they exhibit to us some documents of duty; but those penal judgments, which in the matter of them are appended to the moral law, and are, in effect, but accurate determinations and accommodations of the law of nature, which may suit our circumstances as well as the Jews, do oblige us as well as them. And such are these penal statutes I adduce; for, that blasphemy, murder, and idolatry, are heinous crimes, and that they are to be punished, the law of nature dictates: and how, and by whom, in several cases, they are to be punished, the law judicial determines. Concerning the moral equity even of the strictest of them, Amesius de Conscien. Lib. 5. Mosaical appendix of precepts, doth very learnedly assert their binding force: 4. Those judicial laws, which are but positive in their form, yet if their special, internal, and proper reason and ground be moral, which pertains to all nations, which is necessary and useful to mankind, which is rooted in, and may be fortified by human reason, and as to the substance of them approved by the more intelligent heathens; those are moral, and oblige all Christians as well as Jews: and such are these laws of punishing idolaters, &c. founded upon moral grounds, pertaining to all nations, necessary and useful to mankind, rooted in, and fortified by human reason; to wit, that the wrath of God may be averted, and that all may hear and fear, and do no more so wickedly; especially if this reason be superadded, when the case is such, that innocent and honest people cannot be preserved, if such wicked persons be not taken order with. 5. Those judicial laws, which being given by the Lord's immediate authority, though not so solemnly as

the moral decalogue, are neither as to their end, dead, nor as to their use, deadly, nor as to their nature, indifferent, nor in any peculiar respect restringible only to the Jews, but the transgressions whereof both by omission and commission are still sins, and were never abolished neither formally nor consequentially in the New Testament, must be moral; but such, as these penal laws I am speaking of, they cannot be reputed among the ceremonial laws, dead as to their end, and deadly as to their use, or indifferent in their nature: for sure, to punish the innocent upon the account of these crimes, were still sin, now as well as under the Old Testament; and not punish the guilty, were likewise sin now as well as then. If then the matter be moral and not abolished, the execution of it by private persons, in some cases when there is no access to public authority, must be lawful also. Or if it be indifferent, that which is in its own nature indifferent, cannot be in a case of extreme necessity unlawful, when otherwise the destruction of ourselves and brethren is in all human consideration inevitable. That which God hath once commanded, and never expressly forbidden, cannot be unlawful, in extraordinary cases, but such are these precepts we speak of: therefore they cannot be in every case unlawful. Concerning this case of the obligation of judicial laws, Ames. de Conscienc. Lib. 5. Cap. 1. Quest. 9. 6. Those laws which are predicted to be observed and executed in the New Testament, cannot be judicial or judaical, restricted to the old: but such is this. In the day, that a fountain shall be opened for the house of David for sin, and for uncleanness; which clearly points at gospel times; it is said, "The Lord will cause the prophets and the unclean spirits to pass out of the land: and it shall come to pass, that when any shall yet prophesy, then his father and his mother that begat him shall say unto him, thou shalt not live—and shall thrust him through when he prophesieth," Zech. xiii. 3. Which cannot be meant of a spiritual penetration of the heart: for it is said, he shall not live; and the wounds of such as might escape, by resistance or flight, are visible in his hands, ver. 6. It is therefore to be understood of

corporal killing inticers to idolatry, according to the law, Deut. xii. 9. either by delivering them up to the judges, as Piscator on the place says, or as Grotius saith, they shall run through, as Phinehas did Zimri, Numb. xxv. Understand this of a false prophet, desiring to intice the people to the worship of false gods; for the law impowered every Jew to proceed against such—which law expressly adds, that they should not spare their son, if guilty of such a crime. From all which I conclude, if people are to bring to condign punishment idolatrous apostates, seeking to intice them; then may oppressed people, daily in hazard of the death of their souls by compliance; or of their bodies, by their constancy in duty, put forth their hand to execute judgment, in case of necessity, upon idolatrous apostates and incendiaries, and the principal murdering emissaries of tyrants, that seek to destroy people, or enforce them to the same apostacy; but the former is true: therefore, &c.

4. The same may be inferred from that command of rescuing and delivering our brother, when in hazard of his life; for omitting which duty, no pretence, even of ignorance, will excuse us, Prov. xxiv. 11, 12. If thou forbear to deliver them that are drawn unto death, and those that are ready to be slain; if thou sayest, behold we knew it not: doth not he that pondereth the heart consider it? and he that keepeth thy soul doth not he know it, and shall not he render to every man according to his works? That is, 'Rescue out out of the hand of the invader, robber, unjust magistrate, &c. and that either by defending him with your hand, or tongue, or any other lawful way: men use to make a great many excuses, either that they know not his danger nor his innocence, nor that they were possessed of so great authority that they might relieve him, that they have enough to do to mind their own affairs, and not concern themselves with others, &c. He proposes and redargues here, for examples sake, one excuse, comprehending all the rest.' As commentators say, Pool. Syn. Crit. in loc. This precept is indefinitely given to all: principally indeed belonging to righteous magistrates; but in

case of their omission, and if, instead of defending them, they be the persons that draw or send out their destroying emissaries to draw them to death, then the precept is no more to be restricted to them, than that verse. 1. not to be envious against evil men, or vers. 10. If thou faint in the day of adversity, thy strength is small, can be said to be spoken only to magistrates. Hence, if it be a duty to rescue our brethren from any prevailing power that would take their lives unjustly, and no pretence even of ignorance will excuse the forbearance of it, then it must be lawful, in some extraordinary cases, to prevent the murdering violence of public incendiaries, by killing them, rather than to suffer ourselves or our brethren to be killed, when there is no other way, in probability, either of saving ourselves, or rescuing them; but here the former is commanded as a duty: therefore the latter also must be justified, when the duty cannot otherwise be discharged.

Now, having thus at some length endeavoured to discuss this some way odd and esteemed odious head, to which task I have been as unwillingly drawn, as the actors here pleaded for were driven to the occasion thereof, whom only the necessity of danger did force to such achievements, to preserve their own and brethren's lives, in prosecuting the cause; and nothing but the necessity of duty did force me to this undertaking, to defend their name from reproach, and the cause from calumnies. I shall conclude with a humble protestation, that what I have said be not stretched further than my obvious and declared design doth aim at; which is not to press a practice from these precedents, but to vindicate a scripture truth from invidious or ignorant obloquies, and not to specify what may or must be done in such cases hereafter, but to justify what hath been done in such circumstances before. Wherein I acknowledge, that though the truth be certain, such things may be done, yet the duty is most difficult to be done with approbation. Such is the fury of corrupt passion, far more fierce in all than the pure zeal of God is to be found fervent in any, that too much

caution, tenderness, and fear, can scarce be adhibit in a subject, wherein even the most warrantable provocation of holy zeal is ordinarily attended with such a concurrence of self-interest, and other carnal temptations, as it is impossible, without the signal assistance of special grace, to have its exercise in any notable measure or manner, without the mixture of sinful allay; as the true nonconformist doth truly observe as above. Yet this doctrine, though in its defined and uncautioned latitude be obnoxious to accidental abuses (as all doctrines may be abused by men's corruption or ignorance, misapplying the same) is nevertheless built upon such foundations, that religion will own to be firm, and reason will ratify their force. And I hope it is here so circumscribed with scripture boundaries, and restricted in the narrow circumstantiation of the case, that as the ungodly cannot captate advantage from it, to encourage themselves in their murdering villanies, seeing they never were, never can be so circumstantiate, as the exigence here defined requires; so as for the godly, I may presume upon their tenderness, and the conduct of that Spirit that is promised to lead them, and the zeal they have for the honour of holiness, with which all real cruelty is inconsistent, to promise in their name, that if their enemies will repent of their wickedness, and so far at least reform themselves, as to surcease from their cruel murdering violence, in persecuting them to the death, and devouring them as a prey, then they shall not need to fear from the danger of this doctrine, but as saith the proverb of the ancients, wickedness proceedeth from the wicked, but their hand shall not be upon them. But if they shall still proceed to murder the innocent, they must understand, they that hold this truth in theory, will also reduce it to practice. And bloody papists must know, that Christians now are more men, than either stupidly to surrender their throats to their murdering swords, or supinely to suffer their villany to pass unpunished; and though their favours have flattered many, and their fury hath forced others, into a faint succumbing and superseding from all action against them; yet all are

not asleep; and I hope there are some, who will never enter into any terms of peace with them, against whom the Mediator hath declared, and will prosecute a war for ever, but will still own and aim at this, as the highest pitch of their ambition, to be found among his chosen, called, and faithful ones, who maintain a constant opposition against them. However, though the Lord seems, in his providence, to put a bar upon all public appearances under a display of open war against them; and it is not the design of what is said here on this and the foregoing head, to incite or invite to any: yet certainly, even at this present time, all that have the zeal of God, and love to his righteous cause rightly stated in their hearts, will find themselves called not to supersede altogether from all actions, of avowed and even violent opposition against them, whom we are all bound both by the morality of the duty, and the formality of solemn and sacred covenants, to hold out from a violent intrusion into, and peaceable possession of this land devoted to God, and to put them out when they are got in either by fraud or force; and this plea, now brought to an end, will oblige all the loyal lovers of Christ to an endeavour of these, 1. To take alarms, and to be fore-warned and fore-armed, resolute and ready to withstand the invasion of popery; that it be neither established by law, through the supineness of such, who should stand in the gap, and resolve rather to be sacrificed in the spot by a valiant resisting, than see such an abomination set up again; nor introduced by this liberty, through the wiles of such, whose chiefest principle of policy is perfidy, who design by this wide gate, and in the womb of the wooden horse of this toleration, to bring it in peaceably; nor intruded by force and fury, fire and sword, if they shall fall upon their old game of murders and massacres. It concerns all to be upon their guard, and not only to come out of Babylon, but to be making ready to go against it, when the Lord shall give the call. 2. To resist the beginnings of their invasions, before they be past remedy; and for this effect, to oppose their gradual erections of their idolatrous monuments, and not suffer them to set up the idol of the mass in

city or country, without attempting, if they have any force, to overthrow the same. 3. In the mean time, to defend themselves and the gospel, against all their assaults, and to rescue any out of their hands, upon all occasions, that for the cause of Christ they have caught as a prey, and to oppose and prevent their own and the nation's ruin and slavery.

But to conclude: as it will be now expected, in justice and charity, that all the vassals and votaries, subjects and servants, of the one common Lord and King, Christ Jesus, every where throughout his dominions, who may see this representation of the case, and vindication of the cause of a poor wasted and wounded, persecuted and reproached, remnant of the now declining, sometimes renowned church of Scotland, will be so far from standing Esau like on the other side, either as enemies, rejoicing to look on their affliction in the day of their calamity; or as neutral, unconcerned with their distressed conditions; or as strangers, without the knowledge or sense of their sorrows and difficulties; or as Gallio's caring for none of these things, or thinking their case not worthy of compassion, or their cause of consideration; or possibly condemning their sufferings, as at best but started upon slender, subtle, and nice points, that are odd and odious, and invidiously represented: it is now expected, I say, that Christians, not possessed with prejudice, (which is very improper for any that bear that holy and honourable signature) and not willing to be imposed on by misinformations, will be so far from that unchristian temper towards them, as to be easily biassed with all reports and reproaches to their disadvantage, that if they weigh what is in this treatise offered, and truly I may say candidly represented, without any design of prevarication, or painting or daubing, to make the matter either better or worse than it will seem to any impartial observer; they will admit and entertain a more charitable construction of them, and not deny them brotherly sympathy and Christian compassion, nor be wanting in the duty of prayer and supplication for them; at length the Lord would turn his hand upon the little ones, and bring at least a third part,

a remnant of mourners, through the fire. So, to that little flock, the poor of the flock, that wait upon the Lord, and desire to keep his way, I shall only say, though I judged necessity was laid upon me, instead of a better, to essay this vindication of your cause, as stated betwixt you and your Lord's enemies, the men that now ride over your heads, that say to your soul, Bow down that we may go over you, I desire not that you should, yea I obtest that you may not lay any stress on the strength of what I have said; but let its weight ly where it must be laid, on that firm foundation that will bear you and it both, that stone, that tried stone, that precious corner-stone, that sure foundation Christ Jesus; and search the scriptures of truth to see whether these things be so or not: and I doubt not, but by that touchstone if these precious truths be tried, they will be found neither hay nor stubble, that cannot abide the fire, but as silver tried in a furnace of earth purified seven times. Be not offended, that they are contemned as small, and contradicted as odious, but look to the importance of his glory, whose truths and concerns they are, and from whom they are seeking to draw or drive you, who oppose and oppugn these truths. Stand fast therefore in the liberty wherewith Christ hath made you free, and hold fast every word of his patience, that you may be kept in this hour of tentation. Let no man take your crown, or pull you down from your excellency, which is always the design of your wicked enemies, in all their several shapes and shews, both of force and fraud, craft and cruelty. Beware of their snares, and of their tender mercies, for they are cruel; and when they speak fair, believe them not, for there are seven abominations in their hearts. "Say ye not a confederacy, to all them to whom this people shall say a confederacy, neither fear ye their fear, nor be afraid; sanctify the Lord of hosts himself, and let him be your fear, and let him be your dread, and he shall be for a sanctuary, but for a stone of stumbling and a rock of offence, to both the houses of Israel, for a gin and for a snare to the inhabitants of Jerusalem. Wait upon the Lord who hideth his face from the house of Jacob, and look for him among his

children," though now you be reputed for signs and wonders in Israel, from the Lord of hosts which dwelleth in mount Zion. "Who knows, but therefore will the Lord wait, that he may be gracious unto you, and therefore will he be exalted, that he may have mercy upon you, for the Lord is a God of judgment, blessed are all they that wait for him." To whom be all the glory, Amen.

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Having come to a conclusion of the six heads proposed to be treated of, I judged it conducing, by way of a postscript, to subjoin a seventh, in vindication of these conscientious and truly tender sufferers, who, in the dread and awe of the holy, sovereign, and supreme law-giver, who commandeth his subjects and followers, to abstain from all appearance of evil, did in obedience to him and his royal law, choose rather to suffer the rage, robberies, and violence of cruel and bloody enemies, together with censures, reproaches, obloquies, and contempt of apostatising professors, than to give any aid or encouragement to the avowed and declared enemies of Christ, that might contribute to the promoting their sacrilegious, tyrannical, and hellish projects and practices, calculate and prosecute against the gospel and kingdom of Christ, the covenanted reformed religion of the church, the rights, laws, and liberties of the people, and to the introducing of antichristian idolatry, tyranny and slavery, by paying any of their wicked and wickedly imposed exactions, raised for furthering their hellish designs, of which none that pays them can be innocent.

HEAD VII.

The Sufferings of many, for refusing to pay the wicked Exactions of the Cess, Locality, Fines, &c. vindicated.

It will possibly seem impertinent, or at least preposterous at such a time, when the pressure of these burdens is not more pinching to the generality of professing people, and in such a retrograde order, as after the discussion of the foregoing heads to subjoin any disquisition of these questions, which are now out of date and doors with many. But considering that the impositions of these burdens are still pressing to some, and the difficulties of doubts and disputes about them still puzzling, the sin and scandal of complying with them still lying upon the land, not confessed nor forsaken, the leaven of such doctrine as daubs and defends the like compliance still entertained, the sufferings of the faithful, for refusing them, still contemned and condemned, and the fears and expectations of more snares of that nature, after this fair weather is over, still increasing; if I may be so happy as to escape impertinencies in the manner of managing this disquisition, I fear not the censure of the impertinency or needlessness of this essay. As to the order of it, it was intended to have been put in its proper place among the negative heads of sufferings; but knowing of how little worth or weight any thing that I can say is with the prejudged, and having a paper writ by two famous witnesses of Christ against the defections of their day, Mr. M'Ward and Mr. Brown, more fully and largely detecting the iniquity of the cess (from which the wickedness of other exactions also may be clearly deduced) though at such distance at the writing of the foregoing heads, that it could not be had in readiness to take its due place, and time would not allow the suspending other things until this should come to hand; I thought it needful, rather than to omit it altogether, to insert it here. However, tho' neither the form of it, being by way of letter, nor the method adapted to the design of a moving dissuasion, nor the length and prolixity thereof, will suffer it to be here transcribed as it is; yet to discover what were their sentiments of these things, and what was the doctrine preached and homologated by the most faithful both ministers and professors of Scotland, eight or nine years since, how closely continued in by the contendings of

this reproached remnant still persecuted for these things, and how clearly abandoned and refiled from, by their complying brethren now at ease, I shall give a short transumpt and compend of their reasonings, in a method subservient to my scope, and with additions necessary for applying their arguments against the other exactions here adduced in this head, and bringing them also under the dint of them, though not touched by them expressly. I must put altogether, because it would dilate the treatise, already excresced, into a bigness, far beyond the boundaries I designed for it, to handle them distinctly; and their affinity, both as to their fountain, nature, and ends, is such, that what will condemn one of them will condemn all. What and how many and manifold have been the exorbitant exactions, as the fruits and foment of this cruel tyranny, that the godly in our land have been groaning under these twenty seven years, and upon what occasions they have been, at diverse times, and in diverse manners and measures imposed, I need not here relate, the first part of the treatise doth represent it. The first of these tyrannical exactions, were the fines for not hearing the curates, and other parts of non-conformity; which, together with paying the curates stipends, were too universally at first complied with; but afterwards upon more mature consideration, and after clearer discoveries of the imposers projects and practices, they were scrupled and refused by the more tender. And their sufferings, upon the account of that recusancy, have been very great and grievous, to the utter impoverishment and depopulation of many families, besides the personal sufferings of many in long imprisonments, which some choose rather to sustain with patience, than pay the least of those exactions. Yea, some when ordered to be legally liberate, and set forth out of prison, choosed rather to be detained still in bondage, than to pay the jaylor's fees, their keepers demanded of them. Many other wicked impositions have been pressed and prosecuted with great rigour and rage, as militia money, and locality, for furnishing soldiers, listed under a banner displayed against religion and liberty, with necessary provision, in

and for their wicked service; which of late years have been contended against by the sufferings of many, and daily growing a trial to more. But the most impudently insolent of all these impositions, and that which plainly paraphrases, openly expresses and explains all the rest, calculate for the same ends, was by that wicked act of convention, enacted in the 1678, declaring very plainly its ends, to levy and maintain forces for suppressing meetings, and to shew unanimous affection for maintaining the king's supremacy established by law. Or as they represent it in their act, for continuation of it, Act 3. Parl. 3. Char. II. August 20, 1681. 'Seeing the convention of estates held at Edinburgh in the month of July, 1678, upon weighty considerations therein specified, and particularly the great danger the kingdom was under, by seditious and rebellious conventicles, and the necessity which then appeared, to increase the forces, for securing the government, and suppressing these rebellious commotions, which were fomented by seditious principles and practices, did therefore humbly and dutifully offer a chearful and unanimous supply of 800,000 pound Scots,—in the space of five years,—And the estates of parliament now convened, having taken to consideration, how the dangers from the foresaid causes do much encrease, in so far as such as are seditiously and rebelliously inclined, do still propagate their pernicious principles, and go on from one degree of rebellion to another, till now at last the horrid villanies of murder, assassination, and avowed rebellion, are owned, not only as things lawful, but as obligations from their religion,—do therefore, in a due sense of their duty to God, to their sacred sovereign, and the preservation of themselves, and their posterity, of new make an humble, unanimous, chearful, and hearty offer, for themselves, and in name of, and as representing this his majesty's ancient kingdom, of a continuation of the foresaid supply, granted by the convention or estates; and that for the space of five years, or ten terms successive, beginning the first terms payment at Martinmass, 1684, which yet is to be continued until Martinmass, 1688.' Here is a sample of

their wicked demands, shewing the nature, quality, and tendency of all of them; wherein we may note, 1. That they continue it upon the same considerations, upon which it was first granted. 2. That these were, and yet remain to be, the danger of the meetings of the Lord's people for gospel ordinances, by them forced into the fields, which they call rebellious conventicles; and the necessity of securing their usurpation upon the prerogatives of Christ, liberties of his church and privileges of mankind, (which they call their government) and suppressing the testimonies for the interest of Christ (called by them rebellious commotions.) 3. That their motive of continuing it, was their considerations of some weak remainders of former zeal for God, in prosecuting the testimony for the interests of Christ, and principles of the covenanted reformation, (which they call propagating pernicious principles) and some weak attempts to oppose and resist their rebellion against God, and vindicate the work, and defend the people of God, from the destruction they intended against them, and their lawful and obliged endeavours to bring these destroyers and murderers to condign punishment (which they, call horrid villanies of murder, assassinations, and avowed rebellion.)

Here all the active appearances of the Lord's people, vindicated in the foregoing Heads, are industriously represented, under these odious and invidious names, as motives to contribute this supply of means to suppress them, and to involve all the contributors in the guilt of condemning them. 5. That as a tell their allegiance unto, and confederacy with that execrable tyrant (which they call their duty to their sacred sovereign) they enact this as representatives of the kingdom, and must be owned as such by all the payers 5. That it is the same cess that was granted by the convention of estates, and the term of its continuation is not yet expired. And hence it is manifest, that that act of convention, though its first date be expired, and thereupon many plead for the lawfulness of paying it now, that formerly scrupled at and witnessed against it, yet is only renewed, revived and

corroborated, and the exaction continued upon no other basis or bottom but the first state constitution; which was, and remains to be a consummating and crimson wickedness, the cry whereof reaches heaven, since upon the matter, it was the setting of a day betwixt and which (exceeding the Gadarenes wickedness, and short of their civility) they did not beseech Christ, and his gospel to be gone out of Scotland, but with armed violence declared, they would with the strong hand drive him out of his possession; in order to which their legions are levied, with a professed declaration, that having exauctorate the Lord's anointed by law, and cloathed the usurper with the spoils of his honour, they will by force maintain what they have done; and having taken to themselves the house of God in possession, they will sacrifice the lives, liberties, and fortunes of all in the nation, to secure themselves in the peaceable possession of what they have robbed God; and that there shall not be a soul left in the nation, who shall not be slain, shut up, or sold as slaves, who will own Christ and his interest. All which they could not, nor cannot accomplish, without the subsidiary contribution of the people's help. This is the plain sense of the act for the cess; and, though not expressed, the tacit and uniform intention of all the rest; yet, for as monstrous and manifest the wickedness of these designs are, so judicially were the bulk of our seers plagued with blindness, that many of them were left to plead for the payment of these impositions; others, though they durst not for a world do it themselves, to be silent, and by their silence to encourage and embolden many to such a compliance; presuming with themselves, and without further enquiry, that the zeal of God, and love to his glory, and the souls of their brethren, would constrain them to speak in so clamant a case, if they did observe any sin in it. Whereby the universality was involved in the guilt of these things, especially deceived by the patrociny and pleadings of such of late, who formerly witnessed against it. O that it might be given to us to remember Lot's wife turned into a pillar of salt, to season us, lest the stink of our destruction, and what may follow

upon it, be all that the posterity get for a warning not to tread our paths. As for the few that have suffered upon this head, they have been so discredited with perplexities, in their conflicts with the rage of enemies, and reproach of friends, and fear of these snares attending every lot of occupation they could put themselves in, that they have been made to desire death, as their best refuge, and only retreat wherein they may find rest from all these rackings; for, in no place could they escape the reach of some of these impositions, nor the noise of their clamorous contendings of arguments that pleaded for it. But some have had more love to Christ and his interests, than language to plead for him, and more resolution to suffer, than learning to dispute for his cause; and where pure zeal for Christ, and love to his bleeding interests; in a time when he is crucified afresh, and put to open shame, and the concurrence of all is required to help forward the war against him, is in integrity and vigour, it will burn with its flame those knots that it cannot in haste loose; and chuse rather to ly under the imputation of being zealous without knowledge, than life of let go such an opportunity of witnessing a good confession; yea, when it could do more, expire with an Ichabod in its mouth.

But shortly to come to the point, I shall, 1. Permit some concessions. 2. Propose some parallel questions. 3. Offer some reasons to clear it.

1. I shall willingly grant in the general, concerning paying of exactions, impositions, or emoluments.

1. They are to be paid to these to whom they are due; as tribute and custom is to be paid to the powers ordained of God, and for this cause they that are God's ministers, attending continually upon this very thing, Rom. xiii. 6, 7. So stipends and all outward encouragements are due to ministers of the gospel, who sow spiritual things, and should reap these carnal things, 1 Cor. ix. 11, 12. Fines also, and all legal amercements for delinquencies

against such laws must be paid, Deut. xxii. 19. And whatsoever is due by law to officers, appointed by law, for keeping delinquents in custody, as all debts whatsoever. But tyrants exactions, enacted and exacted for promoting their wicked designs against religion and liberty, hirelings salaries, for encouraging them in their intrusions upon the church of God; arbitrary impositions of pecuniary punishments for clear duties; and extorted hirings, of the subordinate instruments of persecution, oppressions, are no ways due, and cannot be debt, and therefore no equity to pay them.

2. It is lawful to pay them, when due and debt, either by law or contract, even though they should be afterward abused and misimproven to pernicious ends. But these payments for such wicked ends, either particularly specified and expressed in the very act appointing them, or openly avouched by the exactors, are of another nature than impositions fundamentally appointed for the public good; and the after misapplication thereof, made by such as are entrusted therewith, is no more imputable unto the land or payers, than is the theft of a collector stealing or running away with the same, without making count or reckoning to superiors. It is then a foolish thing to say, that former impositions were peaceably paid, though we saw and were convinced that their use was perverted, and they were used against the good of the land and God's people: for no such thing was laid down as the ground, or declared as the end of these exactions; but what fell out was by the personal abuse and perversion of those in power: which was their own personal fault, and posterior to the legal engagement and submission to the payment thereof by the land in their representatives.

3. It is lawful to pay them sometimes, even when fundamentally and originally from the first constitution of them they were not due, but illegally or usurpatively challenged and exacted, if afterwards they were by sedition or voluntary engagement, legally submitted unto by the true representatives. But not so, when they were never either lawfully enacted, or legally

exacted, or voluntarily engaged by the representatives, except such as represented the enslavement of the nation, and betrayed the country, religion, liberty, property, and all precious interests, and declaredly imposed to further the destruction of all. Nor can any with reason say, that this case is but like the case of the people of Israel under the feet of enemies, paying to them of the fruits of their ground, as was regretted and lamented by Nehemia, chap. ix. 36, 37. for so they must say, the exactions now in debate are their redemption-money, and by these they purchase their liberty of life and lands, and own themselves to be a people under conquest. And yet they cannot deny, but they are both exacted and paid as tests of their allegiance as subjects, and badges of their loyalty and obedience. But this is answered before, Head 2. Conces. 7. Sect. 2. If any should object the practice of Christ, though otherwise free, yet paying custom, lest he should offend: it is fully solved *ibid.* Head 2. Conces. 9. Here it is sufficient to hint (1.) That which made them to marvel at his wise answer was, that he left the title unstated, and the claim unresolved, whether it belonged to Cesar or not, and taught them in the general to give nothing to Cesar with prejudice to what was God's; which condemns all the payments we speak of, which are all for carrying on the war against God. (2.) Cesar was no tyrant nor usurper at this time; because they had legally submitted themselves unto several Cesars successively before. (3.) It was, lest he should offend: but here it will be evident, that the offence and scandal lieth on the other hand, of paying the exaction: and it is against all religion to say, that both the doing and refusing to do the same act, can give offence. But (4.) make the case like our's, and I doubt not to call it blasphemy to say, that Christ would have paid, or permitted to pay a taxation professedly imposed for levying a war against him, or banishing him and his disciples out of the land; or to fill the mouth of the greedy Pharisees, devouring widows houses, for their pretence of long prayers; or that he would have paid, or suffered to pay their extortions, if any had been exacted of him, or his disciples, for his

preaching, or working miracles; or if help or hire had been demanded, for encouraging those that rose to stone him for his good deeds.

4. It is lawful to pay a part to preserve the whole, when it is extorted by force and threatenings, and not exacted by law; when it is a yielding only to a lesser suffering, and not a consenting to a sin to shift suffering. The objection of a man being seized by a robber, transacting with him to give him the one half or more to save the rest and his life, commonly made use of to justify the paying of these impositions, while under the power and at the reverence of such public robbers, cannot satisfy in this case. It is thus far satisfying, that there is a manifest concession in it, that instead of righteous rulers, we are under the power, and fallen into the hand of robbers, from whom we are not able to rise up. But there is no paritie. For to bring it home without halting, and make it speak sense, we must suppose that the robber not only requires a part for himself, and a part for his underling shavers, horse-rubbers, &c. but a part upon this declared account, that he may by that supply be enabled and furnished with all things necessary, for murdering my father, mother, wife, children, kinsmen, and friends, (all whom he hath now in his power) yea, and for doing that besides, which is worse than all these put together: Whether then shall I, by giving the robber that part which he seeks, enable him to do all these mischiefs? Or by refusing, expose myself to the hazard of being robbed or slain? Let the conscience of any man answer this (for nothing can be here alledged against the paritie as now propounded) and then I fear not but the objection shall be found a blaze of empty words, blown away by any breath. But alas! will this tattle of a robber be found relevant in that day, when the public robbers shall be proceeded against by the just Judge? Let them who think so, think also, they see the court fenced, and the judge set, and hear these words sounding in their ears, "ye are cursed with a curse, for ye have robbed me, even this whole nation;" and then they are like to lay as little

weight on the objection, for fear of falling under the weight of the curse, as I do.

5. It is lawful passively by forcible constraint to submit to the execution of such wicked sentences, as impose these burdens, if it be not by way of obedience to them: this is suffering and not sinning. Hence it is easy to refel that objection; if it be lawful (which hitherto was never questioned) for a man, who is sentenced to die, to go to the place of execution, then a man, being under the moral force of a law, which is equivalent, may pay cesses, localities, fines, &c. Ans. 1. Might it not be doubted, whether a man's going upon his feet to be execute, had as manifest, and from the nature of the thing, a tendency, yea and proper casuality to advance the design of the enemy, and his refusing to go, had as clear a testimony against the clamant wickedness of their course, as his refusing to pay their impositions. Whether, I say, in this case, a man might not, yea, ought not to refuse to go to the place of execution. But 2. Whosoever would conclude any thing from it, to give it either life or legs, must make it run thus: let the order run in this form (else there is no parallel, and so no inference) we appoint all the opposers of our course (that is all the lovers of our Lord Jesus) whom we have for their rebellious rendezvouzing at conventicles sentenced as enemies and traitors to die, to come and be hanged by virtue of our sentence: otherwise besides the moral force of the law, adjudging them to die, we shall use force, and drag them like dogs to the place of execution; and in putting us to this trouble, they shall fall under the reproach, that being sentenced to die, they scrupled forsooth, yea refused to go on their own legs to the gibbet. Let this, I say, be made the case, which to me is the exact parallel, and there every child will know what to answer, or to hiss the objection as pure ridicule. 3. I suppose the objection speaks of a righteous and innocent person, who for righteousness it brought, as a sheep to the slaughter (for a malefactor, who hath lost all right to his life, is not to be understood) then to make the case parallel, it must be taken for granted, (1.)

There is a public law with the penalty of death, statute for the violation thereof. (2.) That the person to be executed, hath not only transgressed that law, but his disobedience to the law is notour. (3.) That he is processed and convict of the transgression thereof: Whereupon follows. (4.) The sentence, and then the execution. Now the law being wicked, and the man from the fear of God, being constrained to disobey the law, he can in nothing be justly construed active, but in that disobedience or renitence: but in the whole of what befalls him for this, he being a captive prisoner, is to be looked upon as passive. Yea the very act of going to the place of execution in the present case, howbeit, as to its physical entity, it is of the same kind, with the executioner's motion that goes along with him, yet in its moral and religious being, whence it hath its specification, it is wholly the suffering of a captive. Well then, ere any thing can be pleaded from the pretended parity; seeing there are laws, made for paying such exactions, cesses, salaries, and fines, for the declared ends of ruining the people and interests of Christ; it is necessary, in order to a just parallel, that the law must be first disobeyed. (2.) The disobedience must be notour. (3.) The delinquent must be processed and pursued, as guilty of the transgression, and convicted thereof, whereupon sentence passeth against him for the breach of the law. Here I grant all with advantage to the cause: as in the first case, so in this, he who is judged guilty of the breach of this wicked law, and who is sentenced for that violation, ought to suffer patiently the spoiling of his goods, and not to decline suffering, if it were unto blood, striving against this sin.

6. It is lawful of two evils of sufferings to chuse the least; where both come in the election, as in the cases forementioned, and in a man throwing of his goods overboard in a storm; these and the like are deeds in the present exigent voluntary and rational, being upon deliberation and choice, where the least evil is chosen under the notion of good, yea of the best that can be in the present case, and accordingly the will is determined, and meets and closes with its proper object; or one of them only be proposed to

be submitted to, but another lesser evil of suffering is in a man's power to chuse and propose, for purchasing his immunity from a greater; which is not imposed nor exacted of him, either by a wicked law, or for wicked ends declared, but voluntarily offered; as in the case of parting with some money to a robber or murderer to save the life, when he is seeking only the life; as the ten men that were going to the house of the Lord said unto Ishmael, "Slay us not for we have treasures in the field," for which he "forbare and slew them not," Jer. xli. 8. In this a man does nothing, which under such circumstances is not only lawful (one of the main ends for which goods are given to him, to wit the preservation of his life, being thereby attained) but it were a grievous sin, and would conclude him guilty of self murder, not to make use of such a mean for preservation of his life, which God hath put in his power, and is in the case called for by his precept. But however force may warrant one to do that, which may be done for shunning a greater evil of loss; yet it is never sufficient to make one to do that which is a greater evil, than all the evil that can be said to be shunned: For the evil shunned is suffering, but the evil done to shun this, is real and active concurrence, in manner, measure, and method, enjoined by law, in strengthening the hands of those who have displayed a banner against all the lovers of our Lord Jesus Christ; a manifest chusing of sin to shun suffering, and a saving of life with the prejudice of that in the preservation whereof he should be ready to lay down all, and be at a point to endure the worst this wicked world can make him suffer, ere he be found guilty in the matter of a compliance of that nature. And though the rod of the wicked should seem to rest on his lot, for his refusal, and he be the object of their rage and revenge, for holding his integrity; yet he shall be honoured as a faithful witness, helped to endure as seeing him who is invisible, and amidst all his sufferings and sorrows, made to rejoice in the hope, that when God shall lead forth these workers of iniquity, he shall not be found amongst the company of these who have turned aside with them into their crooked courses, and for that shall be

overturned and crushed with them, under the curse that is hovering over their heads. It is true a man should not cast himself and his family (which if he provide not for, he is worse than an infidel) upon sufferings, either needlessly or doubtfully, when he is not persuaded it is truth and duty he suffers for, and of value sufficient to countervail the loss he may sustain for it. But on the other hand, in the present and all like cases it is highly of the concernment of all men to be careful and circumspectly cautious, when the case comes to be stated upon suffering or not suffering, in examining well whether the course whereby a man shuns suffering be of God, and not to take plausibilities for demonstrations: seeing the flesh is not only ready to inculcate that doctrine, 'spare thy self,' but is both witty of invention to plead for what will afford ease, and as unwilling to listen to what would, if attended unto, expose us to the malice and rage of rigorous enemies: It being always more becoming the professors of the gospel, and the followers of our Lord Jesus, who must walk to heaven bearing his cross; to abstain at all hazards when the case is doubtful, than to rush forward upon an uncertainty, when it is not evident they have God's approbation for what they do. Yea suppose a person erred to his own hurt in the first case, through weakness, yet it will argue much more sincerity and uprightness towards God, and is done with less danger than in the other. And as many as walk according to this rule, are like to have the peace of the Israel of God, to compensate whatever of trouble or loss they may meet with in the world, when others shall not have this bird of Paradise to sing in their bosom.

II. But shunning prolixity; to come nearer the point, because perhaps some may alledge such cases are not determined in the scriptures, nor can any case be found parallel to these under consideration, from which we may gather the determination thereof; which I think hard indeed to find, because in the wickedness of former ages such monstrous exactions had never a precedent, for such declared ends, so declaredly impudent. I shall make some suppositions, and propose some questions, all of a piece, and some

way parallel to this under debate, and leave any conscience touched with the fear of God to answer.

1. Suppose, when our Lord Jesus and his disciples were tossed upon the waves by the storm at sea, and he was sleeping, that then Herod or Pilate, or the chief rulers, had sent peremptory orders to all men, to supply and furnish with such things as he had, the men they employed, to capacitate them once for all and forever to sink that floating bottom out of sight; and that somewhat should be given to the soldiers engaged in that enterprize, somewhat to the Pharisees for persuading them to it, and fines to be exacted from the recusants, and rewards to be given to such as should keep them in custody that should fall in their hands, either of them that refused to pay the moiety prescribed, or of such of them as should escape drowning. In this case would, or durst any of the lovers of Jesus comply with any of these demands? and not rather chuse to perish with him, or in opposition to such wicked attempts? Now, hath not the Lord Jesus, and all the interest he hath in the nation, been embarked as it were in one bottom, and floating like a wreck in the sea? And have not these called rulers in this land, in their rage against the Lord's anointed, and the handful who adhere to him, sent their peremptory orders to pay a cess for sinking his floating interests; and to pay the curates for persuading to it; and fines for not concurring in it; and rewards to jailors and others appointed to repress the recusants? Who durst concur then in this compliance, who had love to Christ in exercise, and who had his friends in the same bottom embarked? And besides, seeing the great God had the man of whom this is required, bound with his own consent, under a sacred and solemn oath, and under the penalty of never seeing his face, if he do not venture life and fortune to preserve that precious interest, and all who are embarked with it from perishing. Shall he, notwithstanding of this, give what these enemies to Christ, call for as his concurrence, to enable them to execute their wicked contrivance? Does any man think or dream, that the pitiful plea, of what they call a moral force, will clear and

acquit him before God from the guilt of a concurrence in this conspiracy, while in the mean time he furnished whatsoever these enemies demanded of him, with this express declaration, that it was for this cause exacted, and for this end imposed? Or can he think to be saved, when they shall be sentenced, who with so much deliberation and despite have done this thing? O let us consider the after reckoning! And let us not with pretences distinguish ourselves into a defection, or distract ourselves into the oblivion of this, that God is righteous to whom the reckoning must be made.

2. Let it be supposed, under Saul's tyranny, when the Ziphims informed him of David's hiding himself with them, or when Doeg informed him of Ahimelech's resetting him, that an order had been given forth to all Israel, with this narrative: Whereas that rebel David had now openly despised authority, had been entertained by the priest, received Goliath's sword from him, and gathered a company of armed men together, therefore to the end he and his accomplices may be brought to justice, We ordain all from Dan to Beersheba, to concur either personally in this expedition against him, or to pay cess to our standing forces to maintain them in this expedition, or so much to gratify the Ziphims for their kindness, or to furnish Doeg with a sword to murder the priests of the Lord. Would any that favoured David's righteous cause, have dared to do any of these? Would these that durst not concur themselves, contribute any encouragement to the concurrers? Would Saul's servants that would not fall upon the priests of the Lord themselves, have given Doeg one of their swords to do it, or money to buy one, if it had been demanded? To the same purpose, suppose a party comes to a dissenter, with an express order, and this narrative, Whereas there is such a minister met with some people, at an execrable conventicle, as they call it, (but in itself the pure worship of God) therefore to the end the minister may be taken and murdered, and the servants of the Lord for the countenance they gave him may be brought to the same punishment, they ordain him, for the accomplishing of their design, to furnish that party with all necessities, or to

pay such a sum of money for not concurring with them: now, should he in this case not only forbear to lay down his life for his brethren, and forbear to deliver them, that are thus drawn unto death on such an account, (into which forbearance the great God will make so accurate an inquiry, Prov. xxiv. 11, 12. as may make us tremble, whether we look backward or forward) but also furnish according to the tenor of this order, that party of the dragon's legions, in their war against the prince Michael and his angels, with supplies, and think to put off the matter and plead innocent with this, that he was under the moral force of the law, accompanied with such military force, as if he had refused, they would have taken away all he had, &c. For this plea, in its full strength, is to do evil, that some good may come of it, (no true good) which brings damnation, Rom. iii. 8. or to choose sin rather than affliction.

3. What if Manasseh, or other idolatrous princes, that sacrificed to devils, and made children pass through the fire to Molech, had enacted a cess, or under severe impositions of fines had commanded all to concur to a solemn sacrifice of that nature, charging every man against a certain day, to bring in his proportion, in order to celebrate the sacrifice with all its statute solemnities; or should have taken a child from every father, and then made a law, that each of these should contribute such a sum, for furnishing with all necessities, and maintaining these murderers, whom they had conducted to shed the blood of their innocent children, or sacrifice them to Molech: could it be expected that any of the godly would have paid such exactions, and then have wiped his mouth with the notion of a moral force? This comes home enough to our case; for no sacrifice they can offer to the devil, can be more real or so acceptable, as what they declare they intend to do; being so direct, not only in opposition to the coming of the kingdom of Christ, but the deletion of his precious interests, and extirpation of his faithful remnant, and the giving Satan such an absolute dominion in the nation, as that they who have made the decree, and all who put it in

execution, practically declare thereby they have emancipate themselves to his slavery, and sold themselves to work wickedness in the sight of the Lord: so likewise, that all the rest of the nation, may with themselves become his vassals, and in evidence of their opposition to Christ, and in recognition of Satan's sovereignty, and their subjection, they are appointed to pay these back-meals.

4. Let it be supposed, that after Nebuchadnezzar had made the decree, for all to fall down and worship his image, and the three children were apprehended for refusing it, he had made another, that all the Jews especially should contribute, every one a faggot, or money to buy it, to heat the furnace, or a rope to lead them to it; can any man suppose, that Daniel, or the rest of the faithful, would have paid it? Even so, let it be supposed, that any one of these faithful ambassadors of Christ, or all these zealous workers together with God, who have laboured among the people in the preached gospel, should fall into the hands of these hunters, and then they should make a law, and appoint every man in the nation to send but one thread, to make a tow, to hang that minister, or to hang the whole company of Christ's ambassadors, and a farthing to pay the executioner: can any man, without horror, think of complying so far as to contribute what is commanded? Or would not a gracious man, frightened into an abhorrence at the atrociousness of the wickedness, or fired into a flame of zeal for God, say without demur, as not daunted with fear of what flesh could do unto him, I will rather venture my all to keep them alive, or be hanged with them, than by doing what is demanded, be brought forth and classed in the cursed and cruel company of those who shall be dragged before the tribunal of Christ, with their fingers dyed and dropping with the blood of those who are peculiarly dear to him? I know it will be said, that in all these cases it would be a clear case of confession. Well, that's all I would have granted: for that which doth overbalance to a testimony, in all the cases mentioned, is so far from being wanting in the cases now under consideration, that they

have all to enforce the duty, that all of them put together do include; as will be clear to any who consider, 1. The preciousness of the things and interests to be destroyed. 2. The concurrence called for from every one, that this desperate design may be accomplished. 3. The great, manifold and indispensable obligations all are under, not only to abstain from the required concurrence, but to preserve also and maintain these things in opposition to all whom Satan sets on work to serve him in this expedition against the Son of God, and to do it, or endeavour it with the loss of life, and all things dearest to men, to the end, that these things which are Satan's eye sore, as only obstructive of his kingdom, may be preserved among the poor remnant, and propagate in their power and purity to the posterity. Happy he, who shall be found so doing now, when the dragon and his angels are drawn into the fields, and have proclaimed the war, and published to the world the causes thereof; so that now this general having laid aside all his old disguises, doth in his true shape march upon the head of his black legions, who wear his badge and colours, and fight under his banner and standard.

III. In the last place, with all possible brevity, I shall offer some reasons against compliance with these exactions *in cumulo*.

1. To pay these impositions, upon such declared accounts, for such declared causes, and for such declared ends, would condemn the contendings and sufferings of many eminently godly, especially in our day, who have refused them. Of these questions and sufferings thereupon, among the godly in former times, we cannot instruct much for such insolent impositions, as to all the dimensions of their heinousness, were never heard before. But we want not examples of the saints refusing to give their money and other such things to wicked men, either to comply with their wicked demands, obey their wicked laws, encourage their wicked courses, or further their wicked designs. In scripture we find Paul would not give Felix

money that he might be loosed, though he sent for him often for that end, Acts xxiv. 26.

Mr. Durham in his exposition of the revelation, chap. vi. ver. 9. Lect. 6. gives an account, 'That when in the persecution of Dioclesian, the persecutors sought but the bibles, poor coats, money, or cups (wherewith they served) to be given them, as some evidence of their ceding: but they refused to accept deliverance upon these terms; yea, when the soldiers, partly wearying to be so bloody, partly desirous of seeming victory over Christians, did profess themselves content to take any old paper or clout in place of the bible, they refused to give any Ecvola, or cast-away clout; yea, when soldiers would violently pluck such things from them against their wills, they would follow them, professing their adherence unto the truth, and that they had not any way willingly delivered these things, as is to be seen in Baronius, An. 302, p. 748. it is reported of one Marcus Arethusius, who was put to torment under Julian, because he would not build the idol temple which he had formerly demolished, when they were content to accept some part of the expences from him, and to spare his life, he refused to give obolum, or one half penny, Sozom. lib. 5. 9. Cent. Mag. Cent. 4. p. 797 and 833. By which and many other instances we may see, how resolutely the primitive saints held fast their testimonies: from which especially they were called martyrs or witnesses; and by which often, not only many weak ones were strengthened, but also many persecutors convinced, and made to cry out, Certainly great is the God of the Christians; while as they saw, that no allurements on the one side, nor terrors on the other, could make them loose their grips, but still truth and Christ were borne witness unto, and well spoken of by them. It will not be unnecessary here to consider some of Mr. Durham's observations on the fourth lecture; for clearing whereof he adduced these matters of fact, such as Obs. 7. That the giving of a testimony by outward confession of the truth, when called for, is necessary and commendable, as well as soundness of faith; yea, it is

oftentimes the outward testifying of the truth before men, more than the faith of it before God, that bringeth on suffering: and there was nothing more abhorred in the primitive Christians than dissembling of a testimony, to evite suffering, as appeareth in Augustine's writings concerning a lie, and against a lie, and the writings of others to that purpose. Obs. 8. That every truth of the word may be a ground of suffering warrantably: for the least thing that hath a truth in it, as well as the more concerning fundamental truths, is the word of God, and so cannot be dispensed with by his people. Obs. 9. Every truth in the word hath an outward testimony joined to it, and sometimes may be called for upon very great hazards. Obs. 10. When it is called for, this testimony or confession to any truth before men, is no less necessary, and ought as peremptorily to be held and stuck to as the former; therefore it is called (Rom. x.) Confession unto salvation, and called for by a peremptory certification, Matth. x. 32, 33. Obs. 11. That these who are found in the faith of the word, will be also exceeding tenacious of their testimony; in scripture, and in primitive times, we will find the saints sticking at, and hazarding themselves on things which appear of very small moment, yet were to them of great concernment, because of the testimony, which was involved in them, which they would not let go. Such was Mordecai, Esther iii. Daniel vi. his not shutting of his windows. Yea further, in his lately printed sermons on Matth. xvi. 24. Sermon 7. p. 155. the same author saith; there is not in some respect a more and a less in the matter of duty, and in the matter of truth, or in respect of suffering. And a little after, Sect. 5. he says, we would not limit sufferings for Christ to things simply lawful or unlawful; for it may be sometimes for things indifferent in their own nature, which yet being so and so circumstantiated to us, may draw on suffering; a thing may be indifferent and lawful to some, which to others, stated under such and such circumstances may be counted a receding from some part of a just testimony; even though the matter be not such in itself, and in its own nature, yet it may be so circumstantiate to some persons, as it

may be liable to that construction, if they shall recede from or forbear it; as in the example of Daniel, who suffered for opening his windows, which was a thing indifferent in itself, and not essential to his worshipping of God; but—he finds himself bound in conscience, and that on very just ground, to do as he was wont to do before, and that on the manifest hazard of his life, lest his malicious enemies should have it to say, that he receded from his duty, and that he thought more shame now, or was more afraid now, than before, to worship the true God.'

How worthy Mr. Knox argueth for withholding emoluments from the false bishops and clergy, may be seen before, Part 1. Per. 3.

The general assembly, in their declaration, dated July ult. 1648. concerning the then unlawful engagement in a war against England, plainly and positively dehortheth all members of the kirk of Scotland from contributing any assistance thereunto, expressed as followeth, 'That they do not concur in, nor any way assist this present engagement, as they would not partake in other men's sins, and so receive of their plagues; but that by the grace and assistance of Christ, they stedfastly resolve to suffer the rod of the wicked, and the utmost which wicked men's malice can afflict them with, rather than to put forth their hands to iniquity.' In which declaration may be seen at large that candour, faithfulness and freedom which becometh the ministers of the gospel, and dignity of watchmen, in their seasonable warning and dissuading all from assisting any way to that unlawful engagement, perceiving the sin and snare thereof, so obviously tending to the involving the land in guilt, and exposing to wrath; yea, and that notwithstanding of the fair and plausible pretexts of the engagers and joiners therein, who pretended and professed their undertaking to be for the furthering reformation, establishing and securing the covenanted religion from the plottings and endeavours of the popish, prelatic, and malignant enemies thereof, and prosecuting the ends of the covenants; pretences

which no doubt our silent and time-serving ministers (if they had any such now to plead) would strenuously improve, in vindication of their prudent silence, sinful and shameful compliances. Alas, how sad and lamentable is the condition of the church and nation now! that even when the case is so far altered, that not only all such pretences are laid aside, reformation deserted and disdained, the established religion razed and ruined, the covenant broken and burned, and the owning the obligation thereof declared treason, but also an absolute power pleaded and exercised, to the suspending, stopping and disabling all penal laws against popery and prelacy, a gap opened by an antichristian toleration to the letting in all the heresies, idolatries and blasphemies of the mother of harlots, and the land openly defiled therewith, unjust and wicked taxations arbitrarily imposed and levied, for the most dreadful, sacrilegious and hellish ends that ever was published to the world, far exceeding in wickedness these testified against by the assembly 1648, or any formerly. While the watchmen have so far abandoned their duty of setting the trumpet to their mouth, and giving due warning of the sin and danger of those dreadful and judgment procuring courses, that they are caught in the snare, and found complimenting and encouraging the principal instruments of all these evils, by their scandalous flattering addresses.

How faithful and tender some have been even in our day, their sufferings and losses in a measure above others makes manifest, amongst whom the worthy laird of Kersland is not to be forgotten, whose estate, heritable and moveable, was declared forfeited and seized, for his appearing in arms to join with that faithful party, who by horrid oppression, were forced to betake themselves to defensive resistance in the year 1666; who, considering the equity of the cause he appeared for, the indispensibleness of the obligations binding him to that duty, and how much a good conscience is to be preferred to an estate, durst not part with the sweet comforts of the one for the uncertain profits of the other: and as he was earnest with God by

frequent and fervent prayer, for light and stedfastness in the matters of his suffering and testimony, so it pleased the Lord so to determine his heart therein, as that all the endeavours and persuasions used both by friends and foes, to move him to a composition with the enemies for his estate, proved unsuccessful; yea, it is well known how that severals, both of his near relations and others, who used the most forcible and persuasive arguments, as the consideration of the ancient and honourable family he was descended from; the miserable case that he, his lady and children should be in, without his estate; the counsel and judgment of grave and godly ministers; the freedom and practice of other learned and knowing men; together also with the imputation of vain scrupulosity, simple and unwarrantable nicety and preciseness, &c. that yet even some of those who dealt most with him, were, by his defences and reasonings, convinced of the equity of his cause, and brought to commend his upright resolution, and to applaud his tenderness and faithfulness; and in particular his own father, who pleaded much that he would only consent, that he, with others of his friends, might compone in favours of his family, and that he himself should be no ways concerned in it further than to assent that the thing be done; but could not prevail, who afterwards blessed God that he did not; declaring, that he had much more satisfaction and comfort in his son's honesty and stedfastness, than many such estates could ever have afforded him.

I shall here mention some considerations which prevailed with him to decline all composition directly or indirectly with the enemies in that matter. (1.) That he could never attain to freedom to use any such manifest dissimulation, as deliberately to assent to any thing that might import his acknowledging that to be a sin and fault, (yea such a sin and fault as rebellion) which he was convinced in his conscience to be unquestionable duty both before God and man, nor thereby dissembling to insinuate his undoubted right to his estate, to be in the person, or at the disposing of any other. (2.) Considering that there can be no new right procured upon a

composition, and granted to any, but such as shall carry in the narrative thereof that he had forfeited that estate by rebellion, with a long preamble, condemning the cause of God, and dutiful endeavours of his people for reformation, and in defence of religion and liberty, all as sedition, rebellion and treason; whereupon he resolved rather to part with his estate, than be any way instrumental and occasional to the indignifying that holy and honourable cause, with such disdainful, reproachful and blasphemous epithets. And albeit such tenderness in principle and practice of this worthy gentleman, and of many others of the faithful sufferers in our day, be censured and condemned by the lukewarm and worldly-wise professors in this age, as an unprecedented novelty, or precise and unwarrantable notion; yet we find it the same with the faithful sufferers in former ages, and exactly agreeing with the doctrine and principles of the most orthodox and famous divines; for the reverend and learned Calvin having the same case of conscience proposed to him by the godly, persecuted in his age, to which his solid and faithful answer is extant in his 375 epistle, Article 3. thus proposed and answered: 'Whether the confiscation of goods can be fought back again from a prince, in the name and behalf of these who are forfeited for religion?' To which he answers, 'That it is certain it cannot be done without sin; for the new right, or the De Novodamus (as we call it) granted by the prince, doth really contain open blasphemies against the glory of God; because therein mention is made of errors, crimes, and divine lese majesty, whereof the condemned are found guilty; which new right must, in law, be exhibited by him who intendeth to use the same; and that as a certain kind of approbation, no ways to be tolerated. Wherefore, I see not that it is lawful for a godly man, rightly instructed in the gospel, to involve himself into such fictions.'

2. From the fountain and conveyance whence they proceed, the iniquity of these payments might be concluded; which is nothing else than the arbitrary power domineering over us, and oppressing and overpressing the

kingdoms with intolerable exactions which to pay is all the consent and concurrence required of us to entail slavery on the posterity. I mean, to pay it out of submission only to the moral force of its imposition, which is all the justification required of that absolute tyranny imposing it. For we have the testimony of a king for it, (King James' speech to the parliament, in 1609.) That a king degenerateth into a tyrant, when he leaveth to rule by law, much more when he begins—to set up an arbitrary power, impose unlawful taxes, &c. It can be denied by none, that know either religion or liberty, and are not enemies to both, that these impositions under consideration, upon such accounts, for such ends, are as unlawful taxes, and as illegally and arbitrarily imposed, as ever could demonstrate the most despotical absoluteness, paramount to all law, or precedent, but that of Benhadad, of a very tyrannical strain. Thus saith Benhadad, "thy silver and thy gold is mine—yet I will send my servants, and they shall search thine house, and it shall be that whatsoever is pleasant in thine eyes, they shall put in their hand, and take it away," 1 Kings, xx. 3. 6. which even as Ahab and his elders would not hearken to nor consent. But from an extoic dominator this were not so intolerable, as from such as pretend an hereditary right to govern, who should remove violence and spoil, and take away their exactions from the Lord's people, as the Lord saith, Ezek. xlv. 9. But instead of that, That they may do evil with both hands earnestly, the prince asketh, and the judge asketh for a reward: and the great man uttereth his mischievous desire: so they wrap it up, Mic. vii 3, the easy compliance with which, makes Zion as the grape gleanings of the vintage. If those exactions be wicked, then compliance with them must be iniquity: for it justifies the court that enacts and exacts them, a packed juncto of a prevalent faction, made up of perjured traitors, in a course of enmity against God and the country, who, to prosecute the war against the Almighty, and root out all his people out of the land, condescend upon these cesses, fines, &c. as a fit and adapted medium thereunto. Wherefore, of necessity, all that

would not own that conclusion, as their own deed, in these representatives, and own them as their representatives in that deed, must bear witness against the same, by a refusal to own the debt, or pay the same. But I shall conclude this, with observing. (1.) The holy and remarkable righteousness of the Lord, that we, who would not contend earnestly for the liberty of the gospel, who would not acquit ourselves like men, in witnessing our loyalty to Christ, were not fixed in our engagements, nor steadfast in holding the liberties wherewith Christ hath made us free, did not reclaim nor reluctate, when we saw our royal master's prerogative invaded; should be trod upon in all civils, and treated as slaves, even by these, whom we had gratified with a base and sinful forbearance to plead for God, and preserve from their violence these things, these precious and valuable things, which we should have kept more tenderly than the apple of our eye. O the relucency of this righteousness, in making the gods whom we have served smite us, and in making them whose interest we minded, with a misregard and perjury involving neglect of the interest of Christ, thus to destroy our pitiful interests! And thus having taught them to be captains over us, we must now sit in the house of bondage in our land. (2.) Who will not adore and admire the righteousness of the Lord, particularly in leaving some of these to be designedly trod upon, who not only were involved in the common guilt of not withstanding these encroachments, but first went a great way in concurring to the making of these wicked laws; and now have been made to ly under the load, laid upon their loins by the hand of such, to whom they gave the hand in overturning the work of God? Why should not they be spoiled? Why should not the young lions roar upon them, and make their land waste? Why should not men of the same metal and soul with the children of Noph and Tahapenes, break the crown off their head (or feed upon their crown) who have sold, and set the crown of Christ upon another's head, and concurred to crush his faithful remnant? O let us learn to read and revere! Let us not be wheedled with we know not what, out of

our good old principles, into the espousing the interest, or embarking into the same bottom with men of such principles and practices. And whoso is wise, and will observe these things, even they shall understand the loving kindness of the Lord. Great loving kindness, that he hath shewed to his poor remnant, in delivering us from deliverances by such deliverers, whereby the work had been more really and more shamefully ruined and the hope of the posterity more certainly razed.

3. From the declared ends of all of them, declared either verbally or virtually, and indisputable and universally known; to wit, that by such exaction, they might be enabled to maintain and prosecute the national rebellion against Christ, and root out his gospel and all the faithful preachers and professors thereof. These designs being notour, and the impositions demanded being the best expedients, and most adapted means to attain them, it cannot but be manifest, that whosoever complies with the means, do co-operate with the ends: which, if any thing, will involve the compliers in the contriver's sin, and make the payers obnoxious to the enactors judgment. If they that take rewards to slay innocents, be liable to a curse, Deut. xxvii. 25. they cannot say Amen to it, who so co-operate to the effectuating the slaughter. If any thing make Zion liable to be plowed as a field, when the heads thereof judge for reward, Mic. iii. 11, 12. it must be, when they demand such rewards, and the demands are complied with. But some may pretend, and under that pretence think to shut the shower of suffering, and command the serenity and sun shine of a good conscience too, and to shelter their soul under that shadow; that these exactions may be necessary for other ends: Can any state be without exactions? Is it not necessary that forces be maintained, and such as are in public office in the kingdom? Wherewithal shall the nation be guarded against foreign invasion? Alas! the pretence is so false and frivolous as he could not escape the censure of foolish, who in answering it appeared serious, save in a just indignation at its empty vanity. What are these forces and public officers

for? What are they employed about, but to promote the dragon's designs, and serve his drudgery? Shall these guard the nation, who, together with religion, tread upon the poor remaining shadow of liberty? Do they indeed fear a foreign invasion? No; it doth not hold us here: these called rulers hide not their designs, but hold them to our eye that we may not pretend ignorance. They will do the greatest haste first: Christ and his interest is their great eye-sore. This one Jesus, who calls himself a king, (yea, and he will be so to their cost,) and his subjects as the most dangerous party, are to be discussed in the first place: and thereafter, when they are liberated from that fear of returning to his throne, whom they have exauctorate, (for, if ever he do, they are ruined, make haste, O Lord!) and have eaten the flesh and drunk the blood of his people, then they will be in a better case to defend the land, by shewing the enemy those teeth and tusks wherewith they have killed the people of the Lord. But will men put out their own eyes, that they may be taken with the more tameness to grind in their mill, and make them merry at our madness? Have we lost our senses, that we may with confidence jeopard our souls? Have they not invaded the Mediator's kingdom, and taken to themselves his house in possession? And because reavers may not be ruers, they will destroy all in the land, who seem faithful to Christ, and resolute to follow the captain of the host of Israel. But it is not enough that they menace heaven? Will they mock us into the same rebellion with themselves? He will not be mocked, but turn their jest into earnest. I cannot here shift the transcribing some of the very words of that author, whose reasonings I am but gleaning on this subject. 'Oh Britain! O Scotland! bent into, and bold in backsliding, the wrath of God and thy wo seems to be upon the wing. And alas! I am afraid, that by this crowning and crimson wickedness, the Lord God Almighty is making a way to his anger, and preparing the nation for a sacrifice, to expiate in the sight of the world our perjury, defection and heaven daring provocations. Alas! I am afraid, that the sword of the Lord, which shall avenge the quarrel of his

covenant, is near to be drawn,—that the contributors, as well as the stated party of contrivers, decreers and cruel executioners of these decrees, may fall under the blow of the furbished sword of the Lord God: and that the land of such abominations may be swept of its inhabitants with the besom of destruction, and soaked with the blood of those, who instead of contending for Christ, have by this payment associate with his stated, his declared, and implacable enemies, whose rage is come up before him, and will bring him down to take revenge. Alas! my fears, my fears are multiplied upon me, that the war shall not only at last land in Britain: but that he hath been all this while training up a militia abroad, breeding them in blood, and teaching them how to destroy, against the time he gave them order to march, and put the flaming sword in their hand, to be bathed in the blood of backsliding Britain! Oh, if our turning unto him, that he might turn away from the fierceness of his anger, might prevent this woful day! But since, instead of any turning unto him, we surpass the deeds of the heathen, and outdo in wickedness all that went before us, and proceed, with a petulancy reaching heaven, from evil to worse; I am afraid, that all the blood shed since the sword was drawn in the nations about, all the sacked cities, all the burnt crops and villages, all the wasted countries, all the slain of the Lord by sea or land, all the pillagings, rapes, murders, outrages, (which rage itself could hardly outdo,) all the horrid and inhuman cruelties, that hath been committed during this bloody war (wherein the sea hath been dyed, and the land as it were drowned with the blood of the slain) all the truculent and treacherous murders of that monster Alva in the low countries, all the incredible cruelties of the Guises, and the bloodshed in the massacres of France, all the tortures that the people of the Lord have been put to in the vallies of Piedmont, by that little fierce tyger the Duke of Savoy, all the savage and barbarous butcheries of the Irish massacre: shall be forgotten, or seem things not to be mentioned in one day, when what shall be done in Britain comes to be remembered. O Britain, O Britain: of all nations under

the cope of heaven, most ripe for the sickle of vengeance! shall this throne of iniquity, which hath framed so many mischiefs into laws, and all that are accomplices in this wicked conspiracy, who now are gathering themselves against the souls of the righteous, and condemning the innocent blood, be able to save its subjects, when he comes to make inquisition for that blood? Or shall the subjects, calling in all from 60 to 16, be able to support the throne? Alas! in vain shall they offer to draw up, and draw the sword and defend, when the Lord God of Hosts draws his sword, to accomplish upon them the vengeance written, and wrapt up in these words. He shall bring upon them their own iniquity, and shall cut them off in their own wickedness, yea the Lord our God shall cut them off. And, if it come to this, then in that day, escape who will, professing gentlemen and others, who, in this, have complied with the rulers, shall not escape: then shall they be paid for this payment. The storm of his displeasure, (even though they get their souls for a prey, yea so much the more as he will not suffer them to perish eternally) shall be observed to fall particularly upon their houses, interests and estates. Who can think upon the wickedness of Britain, with its just aggravations, and imagine the righteous Lord will not proportion his judgments to the heinousness of our guilt, and his revenge to the rage, whereby he and his Christ hath been, and is opposed, and take other measures?'

4. From the nature of this payment, it is notour they are sinful compliances and transactions with Christ's declared enemies, and do partake of unitive confederacies with them; which are demonstrated to be sinful, Head 3. Arg. 1. in gen. pag. Certainly such bargains cannot be discrete, exacted and complied with by persons no ways incorporate together, being only overcome by mere force: since they are not only demanded and granted acknowledgments of that power that imposes them, as legally lording over them, but obediencial submissions to these wicked laws that enact them; which is a formal justifying of these laws: for laws

cannot be obeyed, except they be justified, seeing laws unjust and unjustifiable cannot be obeyed. Therefore, seeing the payment of the cess, locality, fines, stipends, fees, &c. is an obediential compliance with the laws that enjoin them, that obedience can no more be justified, than the laws enacting such payments; which none can justify but he that is an enemy to those things for opposing which they are enacted. If then compliances with the wicked impositions and exactions of arbitrary dominators, enemies to the work and people of God, be in scripture condemned, then such payments cannot be justified: but such compliances are condemned, and cannot be approved. This was Issachar's brand, that being a strong ass, he couched between burdens, and bowed his shoulders to bear and become a servant to tribute, Gen. xlix. 14. This was Aha's folly, that he so far complied with Benhadad, as to give money to take his help, 1 Kings xv. 18. Condemned by the prophet Hanani, 2 Chron. xvi. 7, &c. much more if he had given it to help him. It is one of the instances of the evil that Menahem did in the sight of the Lord, 2 Kings xv. 18,—20, that when Pul the king of Assyria came against the land, he gave him a thousand talents of silver, that his hand might be with him, which he enacted of Israel; this was certainly evil in the sight of the Lord; for if the confederacy was evil, then this price to procure it was evil also: and if Menahem's exaction was evil, then Israel's compliance was evil also; for thus Ephraim was oppressed and broken in judgment, because he willingly walked after the commandment, Hos. v. 11. It was also a part and proof of Ahaz's confederacy with Tiglath Pileser King of Assyria, that he sent money to him, 2 Kings xvi. 8. Which to all the fearers of the Lord is condemned and discharged, Isa. viii. 13, 14. Which, if it was evil, then also Hezekiah's compliance with Sennacherib, giving him money, and offering to bear that which was put upon him, 2 Kings xviii. 14, 15. was evil: and also Jehoiakim's taxing the land, to give the money according to the commandment of Pharaoh, 2 Kings xxiii. 35. was sinful to the exacter, and likewise to the compliers. These were all sinful

compliances and confederacies with the wicked, making their peace with them to whom they paid them; therefore all peace-making payments, by way of unitive agreement with the wicked must be sinful. And accordingly in the time of Montrose, the general assembly made an act for censuring the compliers with the public enemies of this church and kingdom, June 17. 1646, Sess. 14. See part 1. Per. 5.

5. Where these exactions are extorted only as badges of bondage, without consent unto the law imposing them, it is a case more suitable for lamentation than censure, that she that was princess among the provinces should become tributary, Lam. i. 1. But when they are acknowledgments of the lawgivers, and an exact obedience to the law, and voluntary agreement and bargain with them, strengthening them to the prosecution of their mischiefs, they cannot be free of the imposer's sin. It was the sin of the men of Shechem, and a proof of their heart's inclination to follow Abimelech, that they gave him threescore and ten pieces of silver, enabling him to kill threescore and ten persons, and to hire vain and light persons to follow him, which they paid as an acknowledgment of his usurped power, Judg. ix. 3, —5. for which afterwards fire came out of the house of Abimelech and devoured them. Certainly a voluntary consent unto a mischief is a partaking with the sin of it, a consent unto theft is a partaking with it, Psal. 1. 18. But if there be any consent unto a mischief, it must be when the person agrees it be done against himself, and voluntarily subjects himself to the force of the law imposing it, and not only does not oppose or witness against the doing of it against others, but yields to its reaching himself, and gives what is demanded to strengthen the robbers to exercise robbery over all.

As the payer of the cess, fines and fees, &c. gives all the consent required of him to these mischiefs framed into law, not only to rob himself, but the church and nation of its dearest treasure, the gospel, for the punishment of owning which, and as means to remove it, these payments are exacted. But

the plea of the payers is, That they are constrained to it, and they do it against their will. Ans. 1. He who says he understands this, that the payer of these exactions can purge himself of the guilt of them, is like to buy an after-wit at a dear rate. Can it be thought by any man of knowledge and conscience, that so remote a force makes the deed involuntary, whereby the payer is purged from the guilt of accession to the imposers deeds, whom hereby, in this very imposition, he owns as his representatives! 2. The payment cannot be involuntary; for the law enjoining it, being the public and declared will of the nation, requires no other voluntariness but obedience, and judgeth no other thing involuntariness but disobedience. So that the law being satisfied, it absolves the satisfier from all transgression, and looks upon all who yield obedience as equally willing, and equally out of the reach of its appended penalty, in case of disobedience. Neither are we to please ourselves with other fancies and fictitious unwillingness, when real obedience is yielded, whereby the law is satisfied, and the lawmaker capacitated thereby to act all his intended mischiefs. For to be unwilling to part with money in the case, as it is no virtue in itself, so I suppose there are few who will be solicitous to purge themselves of this. And to be unwilling from some strugglings of light and conscience, is such unwillingness as aggravates the guilt of the giver, and makes it more heinous in the sight of God, and hateful in the eyes of all tender men; the law enjoining such payments, takes no notice of such reluctances, only requireth obedience; and when that is yielded, the law is satisfied, as to the voluntariness of the action, and must construe the agent a willing walker after the command, and a voluntary complier with the public will of the nation. 3. It must be simply, really, and truly a voluntary deed, when there is deliberation and election. The law requiring these payments being promulgate, every man must be supposed to put the question to himself, What shall I do in the case? Shall I obey and be free? or disobey and suffer? Here is election and choice upon mature deliberation; and so the deed becomes voluntary. This

will be confirmed, if we consider the law of God, Deut. xxii. 25. concerning rapes. Where, to make the unvoluntariness of the betrothed virgin, she must not only be supposed to struggle and resist the attempt made upon her chastity and honour by the villain; but she must cry for assistance in that resistance, without which she was held in law willingly to consent to the committing of that wickedness. And moreover, if we consider the law, ver. 13. it will be manifest, in order to her escaping of death, that when violated, and the villain hath committed this villany, she is to carry as Tamar (when defiled of that beast, though of the blood royal) did, 2 Sam. xiii. 19. that is, to complain and cry, and crave justice against him, and be wanting in nothing, that may bring him to condign punishment. This doth aptly correspond to our case. Scotland is the betrothed virgin: we were espoused to Jesus Christ, and joined to him, by a marriage covenant, never to be forgotten; but, the rulers, and with them the body of the land have treacherously broken it; yet there is a remnant that adhere to him as head and husband, because of which, these called rulers incensed against him, will violently commit a rape upon them, and have them prostitute their bodies, their fortunes, yea their souls and consciences to their lusts, and thus they will needs ravish the queen in the king's presence. And so, while with displayed banner they will drive our covenanted husband out of the nation, and destroy all who will own him as such, they call for our assistance and compliance, to enable them to accomplish this wickedness. Now either must we make all the resistance that is in our power; or the law judgeth us willingly to consent, and because of that we fall into the hands of the righteous Judge, and have neither the evidence of our resisting, nor crying, nor pursuing the wicked for this violent rape, to produce and plead upon, why sentence should not pass, and the law's just severity be executed upon us. What? alas! do they declare they will stone our husband? (Ah! for which of his good deeds is this done) and shall they make a law, whereby we shall be obliged to furnish them with stones to do it? And shall they be obeyed?

Is this our struggling? Is this our crying? Is this our endeavour that the wicked may be brought to condign punishment? Oh! let us meditate terror, lest we be brought forth as willing consenters; for whatever vengeance the jealous and just God shall execute upon them, who have committed the rape, shall equally, in its crushing and everlastingly confounding weight, fall upon them who do not by their refusing, and their resisting make their unwillingness manifest; which in the present case is their struggling, their crying, and calling God and man to witness, they are not consenters, but continue constant and loyal in their love to their betrothed husband.

6. A formal consent to the wickedness of these impositions were the less matter, if the payment of them were not also a concurrence to assist them, and a strengthening their hands in it. But this is so manifest, that the paying of the cess, locality, fines, fees, &c. is a concurrence with, and contributing towards the promoting the wicked designs for which they are imposed, that he must have a conscience of brass, and in a great measure feared who will run upon such a formal engagement against the Lord and his anointed King in Zion. If it was Aaron's sin which made the people naked, and which brought so great a sin upon them, to take, and the people's sin and shame to give, that contribution of golden ear-rings for making a calf, Exod. xxii. 3. &c. And if it was Gideon's sin to take and Israel's to give, that contribution of the ear-rings of their prey, to make an ephod, Judg. viii. 25. Then, as it is our oppressors sin to take, so it must be our sin and shame to give, their demanded exaction to help them in erecting such idols of jealousy, as they have set up, and are commanding all to bow to, to provoke the Lord to jealousy, especially when they affrontedly require such contributions to be paid, both as punishments for not assisting, and as means to assist in their establishment. Should we thus help the ungodly, and love them that hate the Lord? 2 Chron. xix. 2. Alas! instead of arguing, it were more fit to fall a weeping, when it is come to be a question amongst us, whether, instead of coming to the help of the Lord against the mighty, we shall really help the

mighty against the Lord, and that while they call for our assistance formally upon this declared account. As the very inscription of their acts, does carry it in their front, requiring a supply to his majesty, &c. If this be not a casting in a lot among them, who can tell what it is? Sure it is a preparing a table for that troop, and a furnishing a drink offering unto that number, Isa. lxxv. 31. Seeing it is a supplying them with necessaries, to solemnize their idolatrous festivities, who forsake the Lord, and not only forget but lay waste his holy mountain, for which all that have any occasion to it, are threatened to be numbered to the sword. If any thing be a strengthening the hands of evil doers, Jer. xxiii. 14. certainly this is. For as they cannot accomplish their cursed ends without these exactions, so the payment of them is all the present, personal and public concurrence in waging this war with heaven, that is required of the nation, to wit, such a sum to furnish them with all necessaries, and maintain the executioners of their hell-hatched and heaven-daring decrees and orders: and the law requiring no more but contributing what is appointed, looks equally upon the givers, as followers of the command, and active concurrers in complying with its end, and carrying on and promoting its design, and so affoils them from all the statute severities, in case of deficiency.

7. If it were only a concurrence in their wickedness to pay those their exacted supplies, it were more easily comported with: but I fear it shall be found a hire and reward for their wicked service. At first they were only enacted and exacted, as helps to capacitate this popish, prelatical and malignant faction, to prosecute the war they had undertaken and declared against Christ: but now, having thereby been enabled to carry it through this length, that they have almost got all visible appearances for Christ, in owning his gospel, and propagating his testimony, quite suppressed by means of these impositions, and having got the fields cleared or those that formerly opposed their course and career, and all obstacles removed that might stand in the way of the reception they have prepared for their mistress

the Babylonish lady, the mother of harlots; they now demand these payments, as their wages and hire for their labour; which to pay now, is more than a justifying, seeing it is a rewarding them for their work. And to pay these pimps, and to purchase their peace thereby, is worse than to bring the hire of a whore into the house of the Lord, (Deut. xxiii. 18.) since it is a hiring them to bring the whore into the house of the Lord. O how hath Scotland played the harlot with many lovers! is this the zeal we should have had to our covenanted husband, and the honour of his house, that we have not only suffered his enemies to come in and take possession of it, but consented to their invasion; and not only consented, but invited them to come in; and not only invited them, but prostitute our estates and consciences also to their arbitrary lusts; and not only played the harlot with them, but hired them also when they had done! and for this the Lord may say to Scotland, as he said to his people of old, 'They give gifts to all whores, but thou givest thy gifts to all thy lovers, and hirest them, that they may come unto thee on every side, for thy whoredom. And the contrary is in thee from other women in thy whoredoms—in that thou givest a reward, and no reward is given unto thee; therefore thou art contrary,' Ezek xvi. 33, 34. There Israel is taxed for hiring the Assyrians: but let it be considered and enquired into in the history, how this was. What evidence can be given of this in their transactions with them? Was it only that they were enticed, or did entice them into a communion with their idolatry, It is true, Ahaz may be an instance of that, in his sending the pattern of the altar he saw at Damascus, 2 Kings xvi. 10. And it cannot be denied, but in several respects they did partake with the Assyrians in their idolatry, which was their adultery. But what could be their hire they gave them for it, if it was not their taxations they paid, and money they sent unto them? as Ahaz did, verse 8. and Hezekiah also, though a good man, 2 Kings xviii. 14, 15. which can no more be justified, than Asa's paying to Benhadad. It was then their confederacies, and the hire of them the Lord calls the hire they gave

unto their lovers. With this also Ephraim is charged, that he hired lovers, Hos. viii. 9, 10. of this we have instances, in Menahem's giving to Pul a thousand talents of silver, and exacting it of the people, 2 Kings xv. 19, 20. And in Hoshea's becoming servant to Shalmanesar king of Assyria, and giving him presents, 2 Kings xvii. 3. If then hiring wicked men in confederacies to help the Lord's people, be a hiring of lovers so much condemned in scripture, what must a hiring of them to hurt them, and rewarding them after they have done, and when they formally seek it for such work, be? but a giving the reward, they seek to slay the innocent (Deut. xxvii. 25.) and a voluntary yielding that which they take, (Ezek. xxii. 12.) which if it be sin in the takers, cannot be justified in the givers, but will render both obnoxious to the indignation of a provoked God, in the day when he shall begin to contend for the wrongs he hath got, both by the work and the wages. Now let all the acts for the cess and continuation thereof, and other acts and edicts for fines and forfeitures, be considered in their just import, according to the true meaning of the enactors, and the causes for which they exact them, and will have them complied with; it will be found they were both declared, intended and improved, and accordingly approved by the compliers, not only as helps, but as hires for our oppressors and destroyers, and for such as have been, and are more destructive and explicitly declared enemies to Christ's interests and people in Scotland, than ever the Assyrians were to the church in the old testament. The cess was not only a help, but a hire to the tyrant and his accomplices, for suppressing meetings for gospel ordinances; especially the continuation of it, from time to time, was humbly, unanimously, chearfully and heartily offered, for themselves, and in name of, and as representing this kingdom, as a hire for the doing of it, and an encouragement to suppress what remained of these conventicles. The locality was intended as a help to the soldiers in their quarterings upon this account; but afterwards, being expressly discharged to be furnished, without payment according to the current rates of the country,

Act 3. par. 3. X. Charles II. Aug. 20, 1681. The contribution of it for nought must be interpreted for a reward of their service, fines are appointed, not only for a punishment of contraveeners of their wicked laws, but for a hire to their most violent executors. Stipends for a hire to their hireling curates. And fees, as a hire to jailors, to keep the Lord's people in bondage. By which hires these destroyers have been rewarded, by them whom they have destroyed, and for which the righteous Lord will reward both.

8. Let it be considered, how far these submissions are short of, and how clearly these compliances are inconsistent with, that duty which lies upon us with reference to them. Our obligation to God and our brethren doth indispensibly bind us to a contrary carriage. If it bind us in our station and capacity to an active renitency, it doth much more bind us up from such compliances. Neither is it imaginable, how moral force can ever justify our doing that deed, we are obliged, by all imaginable bonds, yea, if in any probable capacity, by the utmost of real force, to counteract. Can we give them that which they require, and by which they are enabled to murder our brethren, when we are so indispensibly obliged to rescue our brethren, Prov. xxiv. 11, 12. to relieve the oppressed, Isa. i. 27, to loose the bonds of wickedness, to undo the heavy burdens, to let the oppressed go free, and to break every yoke, Isa. lviii. 6. What do we owe to these enemies, but seeing they have constitute themselves by these acts implacable enemies to Christ, his people and interest *in babite*, not only plainly and importunately to pray that he would overturn them, but to oppose their course, to the uttermost of our power, and to concur to wrath that power out of their hands? And since they will needs make the whole nation a curse, they are so far from being to be complied with, that for these exactings and exactions they are to be looked upon, and carried unto, not only as these who have sold themselves to work wickedness, but endeavour also to engage with themselves all in the same guilt, and expose them to the same curse. And therefore, that the anger of the Lord may be turned away from his people, every one in his

station is obliged to endeavour to bring these Achans to condign punishment.

9. As it must be taken for granted, that these wicked oppressions by law are perjury avouched in the sight of God; yea in a peculiar manner, our covenanted subjection unto him is turned into an open war against him; so we cannot but believe, that for this height of wickedness, the curse of God (to which in the covenant the nation in case of breach, is liable by their own consent) and the Mediator's malediction shall follow, pursue, overtake, and fall upon the head of these, who have made the decrees, and upon all who concur in the execution, and carry on this course: Oh! it is impossible to keep them company, and not fall with them into the hands of the living God. Well then, seeing every one for whom these exactions are required, is under an anterior obligation to God and the brethren, to preserve these precious interests, which the imposers have been long essaying to root out and ruin, and his people whom they have been destroying, with the loss of all he hath, life not accepted. (For I suppose none, who acknowledged his soul is still under the bond of the covenant and it is likely to cost him his soul who denies it) but he will own this to be duty; nay, none who hath any sense of religion; but abstracting from the subjective obligation of a sworn covenant, he will own an objective obligation from the law of the great superior, that doth immediately bind the conscience to witness against this course, and to lay down, if it should come to that, his life for his brethren. Then for a man to give his goods to destroy these things and persons, which he is obliged to defend and preserve with the loss of all, is so clear a making himself a transgressor, in paying his proportion, and being at the expense of destroying what he built, and building what he destroyed, that it seems inexplicable how he can dream to be innocent; especially when more lies upon it than the souls of the compliers are worth even the interest of Christ in the land. And to close this, I would put home the question, and pose the confidence of any that took that covenant, if in that day the question had

been asked at him, whether he would have judged the paying of a cess for the ends narrated, to suppress a testimony for that covenanted reformation, the paying of fines and fees, (for owning it) to the overturners, breakers and burners of it, to be a plain perjury and palpable counteracting of the ends thereof? And let him speak his soul, and it is beyond debate with me, he will not dare to say he took it in a sense which can subsist with these compliances. Nay, I doubt not, if to any morally serious it had been then said, You will pay money, &c. for destroying this covenant and its ends, and deleting the remnant that shall be found to adhere to it he would have given Hazael's answer. It concerns every man, that would be free of the curse of it, to consider how he is brought to make enquiry after vows; or to dream of consistencies betwixt the performing those engagements, and the plainest concurring in a counteracting thereof.

10. If then these impositions be so wicked, and for such wicked ends and causes; then, in order to my being free of this heinous guilt, there is a necessity of my giving a testimony, and such an one, which when brought to the touchstone, will get God's approbation, and be my acquittance from a concurrence. Now, it is not imaginable that my testimony can be the exact obedience to the law, against the wickedness whereof it is witnessed; but on the contrary, it must be at least a plain and positive refusing to yield obedience to that law, when I am in no other case to counteract these commands; for I must either obey and be guilty, or refuse and be innocent. I shall not here plunge into the labyrinth of these debates and difficulties, wherewith this matter of testimonies hath been perplexed, and mostly by those who have had no great mind to the thing. I shall only propound these few queries. (1.) Whether any thing less than a testimony can free me of this guilt, whereby the nation involved in it is made a curse? (2.) Whether, we believe that the testimony of every one shall be called for, in the day when God shall seek out this wickedness? (3.) Whether, if ever it be necessary, it be not then when Christ is openly opposed, and every one is called either to

concur or to testify? (4.) Whether a testimony against a wicked law must not be notour for my testimony must make it evident that the law is not obeyed by me, else it is no testimony. (5.) Whether it be not necessary also, that it be with that plainness and boldness, as it may keep some proportion with the prodigiousness of that wickedness testified against? (6.) Whether to the making it a testimony indeed, it is not only required, that an opposition be made at first, but that this be so persisted in, as by no subsequent deed it be weakened? (7.) Whether we do not take it for granted, that according as a man hath testified, the sentence of the righteous Judge shall pass! For he who hath not purged himself thereby from the guilt of this conspiracy, shall be led forth and punished with these workers of iniquity. It is a saying which would sink in the soul of every one who would be saved, especially in such a day. Whosoever therefore shall confess me before men, him will I confess also before my Father which is in heaven; but whosoever shall deny me before men, him will I also deny, &c. Oh that men would now judge of things and courses, as in that hour they desire to be judged! and then there would be little difficulty what to determine in that case.

11. From what is said it appears, that there is no other way of testifying against it, or shunning the sin of this wickedness, imposing and enjoining these compliances, but by refusing them; which as it is clear duty, so it hath many advantages to countervail all the supposed loss that can be sustained thereby. It is a shameful subterfuge to say, I strengthen them more by doing thus, which will make them take all, and so put themselves in better case to do the mischief decreed. For as it is then my suffering, not my sin, so it is simply false that I do hereby strengthen their hands: for hereby I do more certainly weaken their hands, and wound their cause, by my counteracting, testifying and suffering. For, 1. I do really, to the uttermost of the sphere of my activity, counteract their design; and hence, besides my own upmaking peace of conscience, (which is my hundredfold in this life) I glorify God in the day of visitation, behaving as the subject and soldier of the prince

Michael; and though I lose my life in the conflict, yet the victory over the dragon, and his lieutenant and trustees, and their lictors, is thereby gained, and they are foiled, while I fight and overcome, by my not loving my life in the present case unto the death. 2. I do by my example encourage my brethren to stand fast, and withstand in this evil day. 3. I hereby transmit to posterity a pattern for imitation, and so propagate an opposition to this course to succeeding generations. 4. I hereby (so to speak) engage God to arise and appear to plead his own cause and his people's: for when we, out of love to him and zeal for his interests, take our lives in our hands, or expose our substance as a prey in witnessing for him, then he is engaged to own us, and to plead his cause, taking the quarrel then to be against himself. Hence it is that when he puts on the garments of vengeance for cloathing, and goes forth to meet them, who, in their risings up against his people, run upon the bosses of his buckler, his arm is said to bring salvation to himself, Isa. lix. 16, 17. and Isa. lxiii. 5. This keeps a man in case to pray against such a party; whereas a compliance with them, in the least degree, will wound a man's faith and weaken his confidence, so that he cannot wrestle with God to prevail: For that wherein his strength lay, a good conscience, being sinned away, in vain doth he essay, when he hath cut his own hair, to shake himself as at other times. Alas! if by keeping a due distance from his enemies, we were in case to play the Samsons or Jacobs on our knees, this enemy, who think it their stability to stand upon the ruins of Christ's interest, should not stand long upon their feet. He who would have his prayer heard, Thy kingdom come, should make his practice, in a conformity thereto, speak this plain language, If I perish, I perish, but comply I will not: for it is not necessary that I live, or have an estate, but it is necessary I should witness a good confession against the wrongs done to Christ. 6. This keeps a man in ease, either to act for God with advantage, if an opportunity be put in his hand, or to suffer, as under his supportings, and the shinings of his face, whereby, even while dying, he becomes an ornament to his

profession, gives a dash to the enemy, and so becomes more than a conqueror.

12. Let us consider the matter of scandal in the present case, and remember whose words these are, "Wo to the world because of offences, and wo to him by whom offences come:" and it will appear, the payer of these exactions becomes highly guilty before God. 1. In stumbling and hardening this party of enemies: for though there was never a party before them in the nation (and I much doubt if ever a party can come after them to outdo them) who had so many evidences of plagues poured upon their hearts, that he may pour forth his wrath, and cause his fury to rest upon them; and that in his spotless justice, he will rain snares upon them, that thereafter he may rain fire and brimstone, and horrible tempest, as the portion of their cup, when he shall come to plead his own cause: yet we would beware lest we do any thing that may embolden them, or make them bless themselves in this their stated opposition to Christ's. And because we know not but some of the elect may, for a time, be carried down with the current of this impetuous opposition to him, and may concur actively for a season in promoting this course, we ought, even upon this supposition, so to witness, and so to keep a distance from all apparent or interpretative compliance with what they contrive and carry on, as they may, by beholding our stedfastnes, be provoked to consider their own course; that considering at last how their feet go down to death, and their steps take hold on hell, they may hasten their escape from the company of his enemies, lest they be consumed with the fire of his indignation, if found congregate with the men of these God provoking practices. 2. By paying what is required, I stumble also and offend my weak brethren, while by my example they are encouraged to rush into the same compliance. O! let every man, whose practice may be pleaded as a pattern, remember that word, and who spoke it, "It were better that a milstone were hanged about his neck, and he cast into the midst of the sea, than offend any of these little ones." 3. Sufferers

for refusing this payment are offended, when the payer doth not only encourage the persecutors to proceed with rigour and rage against him, as a peevish and froward malecontent, but does what in him lies to wound the heart and weaken the hands of such a faithful witness: whereas, if the poor sufferer saw himself, by a joint testimony owned by his brethren, he would be comforted, strengthened, and become more confident in the conflict. 4. In paying these things the compliers, either by their example, lay a snare for the posterity, to whose knowledge their carriage may come; and so instead of the leaving them a pattern of contending earnestly for the faith, they spread a net for their feet, yea pave them a way to defection and apostasy; or else they engage the great God, out of zeal to his own glory, and tenderness to his people who shall succeed, for preventing of their following of such progenitors, wherein they have not been followers of him fully, to give such a testimony against their untenderness, and set such marks of displeasure upon their course, that the thoughts of turning aside with them, and following their steps shall be terrible to all that hear of it, lest, for such a compliance, they fall as they did, for falling from their own stedfastness into the hands of the living God. But alas! for the posterity, under whose curse we are like to go off the stage, because of our not having done what we ought, yea what we might; both for transmitting pure ordinances unto them, and for not transcribing in our practice the noble example of our zealous and heroic ancestors, who valiantly resisted when violently attacked, and by their valour wrestled us into a state of liberty. Well, if we leave those that shall succeed us such an example as this, he is like to make us such an example as will fright the following generations, and force them to serve themselves heirs to them who have gone before us, who did acquit themselves as the good soldiers of Jesus Christ, and not to us, the debt of whose declensions and defections cannot be paid, without the destruction of those who shall serve themselves heirs to us. But alas! who does think on what he owes to the poor posterity; or who doth make

confidence to preserve for them that precious treasure put in our custody, and judges it more necessary than to live, to leave the tract of a way contending zealously for God, and the preservation of his interests, and the propagation of his own pure ordinances to the posterity, shining so clearly by suffering and blood, as the way-faring man, and they who shall come after, though fools, need not err therein? Our only comfort is, that the Lord, who shall see his seed, and must prolong his days, will make his pleasure prosper, and preserve some to be witnesses of it to his praise.

FINIS.

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Transcriber's note:

Numbering of headings and subheadings were left as they were in the original. Spelling of many words vary in the text; for example, expressly/expresly, abbreviation for Matthew as Mat. and Matt., Dumfermline/Dunfermline.

Page 82—supplied the word "year" "For resistance of superior powers, we have in this period, first the practice of some noblemen at Ruthven, in the 1582. who took the King, ..."

Long "f" characters were replaced with the standard English "s"; the "ct" ligature was replaced with "ct".

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